The History of Human Marriage

Edvard Westermarck

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By Alfred R. Wallace

Having read the proofs of Mr. Westermarck's book I am asked by the publishers to say a few words by way of introducing the work to English readers. This I have great pleasure in doing, because I have seldom read a more thorough or a more philosophic discussion of some of the most difficult, and at the same time interesting problems of anthropology.

The origin and development of human marriage have been discussed by such eminent writers as Darwin, Spencer, Morgan, Lubbock, and many others. On some of the more important questions involved in it all these writers are in general accord, and this agreement has led to their opinions being widely accepted as if they were well-established conclusions of science. But on several of these points Mr. Westermarck has arrived at different, and sometimes diametrically opposite, conclusions, and he has done so after a most complete and painstaking investigation of all the available facts.

With such an array of authority on the one side and a hitherto unknown student on the other, it will certainly be thought that all the probabilities are against the latter. Yet I venture to anticipate that the verdict of independent thinkers will, on most of these disputed points, be in favour of the new comer who has so boldly challenged the conclusions of some of our most esteemed writers. Even those whose views are here opposed, will, I think, acknowledge that Mr. Westermarck is a careful investigator and an acute reasoner, and that his arguments as well as his conclusions are worthy of the most careful consideration.

I would also call attention to his ingenious and philosophical explanation of the repugnance to marriage between near relatives which is so very general both among savage and civilised man, and as to the causes of which there has been great diversity of opinion; and to his valuable suggestions on the general question of sexual selection, in which he furnishes an original argument against Darwin's views on the point, differing somewhat from my own though in general harmony with it.

Preface to the First Edition

I need scarcely say how fully I appreciate the honour of being introduced to English readers by Mr. Alfred R. Wallace. I am also greatly obliged for his kindness in reading the proofs, and in giving me the benefit of his advice with regard to various parts of the subject.

It is difficult for me to acknowledge sufficiently my obligations to Mr. James Sime for his assistance in preparing this book for the press. The work, as originally written, naturally contained a good many foreign modes of expression. Mr. Sime has been indefatigable in helping me to improve the form of the text; and, in our discussions on the main lines of the argument, he has made several

important suggestions. I am sincerely obliged for the invaluable aid he has given me.

My cordial thanks are due to Mr. Charles J. Cooke, British Vice-Consul at Helsingfors, who most kindly aided me in writing the first part of the book in a tongue which is not my own. I am indebted also to Dr. E. B. Tylor, Professor G. Croom Robertson, Mr. James Sully, and Dr. W. C. Coupland for much encouraging interest; to Mr. Joseph Jacobs for the readiness with which he has placed at my disposal some results of his own researches; and to several gentlemen in different parts of the world who have been so good as to respond to my inquiries as to their personal observation of various classes of phenomena connected with marriage among savage tribes. The information I have received from them is acknowledged in the passages in which it is used.

A list of authorities is given at the end of the book—between the text and the index, and it may be well to add that the references in the notes have been carefully verified.

E. W.

LONDON, May, 1891.

Preface to the Second Edition

In this new edition of my book I have made no essential changes, but here and there the argument has been strengthened by the addition of facts which have come to my knowledge since the appearance of the first edition. The most important of these new facts will be found in the second chapter.

I take this opportunity of expressing my warm appreciation of the thorough way in which the ideas set forth in this book have been discussed by many critics in England and elsewhere. Translations of the work have appeared, or are about to appear, in German, Swedish, French, Italian, and Russian.

E. W.

LONDON, January, 1894.

Preface to the Third Edition

I much regret that the demand for a new edition of this book should come at a time when circumstances prevent me from undertaking such a revision of the work as I feel to be required. Since the appearance of the Second Edition many important facts bearing upon the subject have been brought to light, new theories have been advanced, and old theories, supported by fresh arguments, have been revived. To all this, however, I can do no justice, as I am at present being engaged in anthropological research in Morocco. This edition is, in consequence, a mere reprint of the second. But I purpose, after my return to Europe, to issue an Appendix, in which the book will be brought more up to date and some criticism will be replied to.

E. W.

MOGADOR (MOROCCO), August, 1901.

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THE

History of Human Marriage — Introduction

On the Method of Investigation

It is in the firm conviction that the history of human civilization should be made an object of as scientific a treatment as the history of organic nature that I write this book. Like the phenomena of physical and psychical life those of social life should be classified into certain groups, and each group investigated with regard to its origin and development. Only when treated in this way can history lay claim to the rank and honour of a science in the highest sense of the term, as forming an important part of Sociology the youngest of the principal branches of learning.

Descriptive historiography has no higher object than that of offering materials to this science. It can, however, but very inadequately fulfil this task. The written evidences of history do not reach far into antiquity. They give us information about times when the scale of civilization was already comparatively high—but scarcely anything more. As to the origin and early development of social institutions, they leave us entirely in the dark. The sociologist cannot rest content with this. But the information which historical documents are unable to afford him, may be, to a great extent, obtained from ethnography.

The admirable works of Dr. Tylor, Sir John Lubbock, and Mr. Herbert Spencer have already made us familiar with the idea of a history of primitive

civilization, based on ethnographical grounds. This new manner of treating history has, since the publication of their writings on the subject, gained adherents day by day. Immeasurable expanses have thus been opened to our knowledge, and many important results have been reached. But it must, on the other hand, be admitted that the scientific value of the conclusions drawn from ethnographical facts has not always been adequate to the labour, thought, and acumen bestowed on them. The various investigators have, in many important questions, come to results so widely different, that the possibility of thus getting any information about the past might easily be doubted. These differences, however, seem to me to be due, not to the material, but to the manner of treating it.

"The chief sources of information regarding the early history of civil society," says Mr. McLennan, "are, first, the study of races in their primitive condition; and, second, the study of the symbols employed by advanced nations in the constitution or exercise of civil rights."[1]

Yet nothing has been more fatal to the Science of Society than the habit of inferring, without sufficient reasons, from the prevalence of a custom or institution among some savage peoples, that this custom, this institution is a relic of a stage of development that the whole human race once went through. Thus the assumption that primitive men lived in tribes or hordes, all the men of which had promiscuous intercourse with all the women, where no individual marriage existed, and the children were the common property of the tribe, is founded, in the first place, on the statements of some travellers and ancient writers as to peoples among whom this custom is said actually to prevail, or to have prevailed. Dr. Post has gone still further in his book, 'Die Geschlechtsgenossenschaft der Urzeit und die Entstehung der Ehe.' Without adducing any satisfactory reason for his opinion, he considers it probable that "monogamous marriage originally emerged everywhere from pure communism in women, through the intermediate stages of limited communism in women, polyandry, and polygyny."[2] Mr. Lewis H. Morgan, in his 'Systems of Consanguinity and Affinity of the Human Family,' has suggested no fewer than fifteen normal stages in the evolution of marriage and the family, assuming the existence and general prevalence of a series of customs and institutions "which must of necessity have preceded a knowledge of marriage between single pairs, and of the family itself, in the modern sense of the term."[3] According to him, one of the first stages in this series is the intermarriage of brothers and sisters, as evidence of which he adduces, besides other facts, the historical statements that one of the Herods was married to his sister, and Cleopatra was married to her brother.[4]

Again, in the study of symbols, or survivals, the sociologists have by no means always been so careful as the matter requires. True enough that "wher-

ever we discover symbolical forms, we are justified in inferring that in the past life of the people employing them, there were corresponding realities."[5] But all depends upon our rightly interpreting these symbols, and not putting into them a foreign meaning. The worst is, however, that many customs have been looked upon as survivals that probably are not so. Thus, for instance, I think that Mr. McLennan is mistaken in considering the system of the Levirate, under which, at a man's death, his wife or wives pass to his brother, as a test of the former presence of polyandry, the brothers of a family having a common wife.

Similar conclusions being of common occurrence in modern Sociology, it is not surprising that different writers dissent so frequently from each other. This should be a strong reason for every conscientious investigator first of all putting to himself the question: how can we from ethnographical facts acquire information regarding the early history of mankind?

I do not think that this question can be correctly answered in more than one way. We have first to find out the causes of the social phenomena; then, from the prevalence of the causes, we may infer the prevalence of the phenomena themselves, if the former must be assumed to have operated without being checked by other causes.

If, then, historical researches based on ethnography are to be crowned with success, the first condition is that there shall be a rich material. It is only by comparing a large number of facts that we may hope to find the cause or causes on which a social phenomenon is dependent. And a rich material is all the more indispensable, as the trustworthiness of ethnographical statements is not always beyond dispute. Without a thorough knowledge of a people it is impossible to give an exact account of its habits and customs, and therefore it often happens that the statements of a traveller cannot, as regards trustworthiness, come up to the evidences of history. As the sociologist is in many cases unable to distinguish falsehood from truth, he must be prepared to admit the inaccuracy of some of the statements he quotes. What is wanting in quality must be made up for in quantity; and he who does not give himself the trouble to read through a voluminous literature of ethnography should never enter into speculations on the origin and early development of human civilization.

Often, no doubt, it is extremely difficult to make out the causes of social phenomena. There are, for instance, among savage peoples many customs which it seems almost impossible to explain. Still, the statistical 'method of investigating the development of institutions,' admirably set forth in the paper which Dr. Tylor recently read before 'The Anthropological Institute of Great Britain and Ireland,'[6] will throw light upon many mysterious points. Dr. Tylor has there shown that causal relations among social facts may be discovered by way of tabulation and classification. The particular rules of the different peoples are to be scheduled out into tables, so as to indicate the "adhesions,"

or relations of coexistence of each custom, showing which peoples have the same custom, and what other customs accompany it or lie apart from it. If, then, starting with any two customs, the number of their "adhesions" is found to be much greater than the number of times they would coexist according to the ordinary law of chance-distribution—which number is calculated from the total number of peoples classified and the number of occurrences of each custom—we may infer that there is some causal connection between the two customs. Further on, I shall mention some few of the inferences Dr. Tylor has already drawn by means of this method.

The causes on which social phenomena are dependent fall within the domain of different sciences—Biology, Psychology, or Sociology. The reader will find that I put particular stress upon the psychological causes, which have often been deplorably overlooked, or only imperfectly touched upon. And more especially do I believe that the mere instincts have played a very important part in the origin of social institutions and rules.

We could not, however, by following the method of investigation here set forth, form any idea of the earlier stages of human development, unless we had some previous knowledge of the antiquity of mankind. Otherwise we should, of course, be quite ignorant whether the causes in question operated or not in the past. Fortunately, in this respect also, modern science has come to results which scarcely admit any longer of being considered as mere hypotheses. It teaches us, to quote Sir John Lubbock, "that man was at first a mere savage, and that the course of history has on the whole been a progress towards civilization, though at times—and at some times for centuries—some races have been stationary, or even have retrograded;"[7] that, however, all savage nations now existing are raised high above primitive men; and that the first beings worthy to be called men, were probably the gradually transformed descendants of some ape-like ancestor. We may, further, take for granted that all the physical and psychical qualities that man, in his present state, has in common with his nearest relatives among the lower animals, also occurred at the earlier stages of human civilization. These conclusions open to us a rich source of new knowledge.

Finally, as to social survivals, I agree, certainly, with Mr. McLennan that they are of great importance to Sociology. But we must be extremely careful not to regard as rudiments customs which may be more satisfactorily explained otherwise.

It is only by strictly keeping to these principles that we may hope to derive information touching the early history of man. In doing so, the student will be on his guard against rash conclusions. Considering that he has to make out the primary sources of social phenomena before writing their history, he will avoid assuming a custom to be primitive, only because, at the first glance, it appears so; he will avoid making rules of exceptions, and constructing the history of

human development on the immediate ground of isolated facts. It is true that the critical sociologist, on account of the deficiency of our knowledge, very often has to be content with hypotheses and doubtful presumptions. At any rate, the interests of science are better looked to, if we readily acknowledge our ignorance, than if we pass off vague guesses as established truths.

* * * * *

It is one of the simplest of all social institutions the history of which forms the subject of this book. Indeed, next to the family consisting of mother and offspring only, marriage is probably the simplest. I shall not, however, treat this subject in all its aspects, but confine myself to human marriage, though before dealing with it I must, of course, touch upon the sexual relations of the lower animals also.

The expression "human marriage" will probably be regarded by most people as an improper tautology. But, as we shall see, marriage, in the natural history sense of the term, does not belong exclusively to our own species. No more fundamental difference between man and other animals should be implied in sociological than in biological and psychological terminology. Arbitrary classifications do science much injury.

I shall examine human marriage from its different sides, giving, in accordance with my method, an historical account of each separately. The reader may find much that will outrage his feelings, and, possibly, hurt his sense of modesty; but the concealment of truth is the only indecorum known to science. To keep anything secret within its cold and passionless expanses, would be the same as to throw a cloth round a naked statue.

Chapter I — The Origin of Marriage

From remote antiquity we are told of kings and rulers who instituted marriage amongst their subjects. We read in 'Mahâbhârata,' the Indian poem, that formerly "women were unconfined, and roved about at their pleasure, independent. Though in their youthful innocence, they went astray from their husbands, they were guilty of no offence; for such was the rule in early times." But Swêtakêtu, son of the Rishi Uddâlaka, could not bear this custom, and established the rule that thenceforward wives should remain faithful to their husbands and husbands to their wives.[8] The Chinese annals recount that, "in the beginning, men differed in nothing from other animals in their way of life. As they wandered up and down in the woods, and women were in common, it happened that children never knew their fathers, but only their mothers." The Emperor Fou-hi abolished, however, this indiscriminate intercourse of the sexes and instituted marriage.[9] Again, the ancient Egyptians are stated to be

indebted to Menes for this institution,[10] and the Greeks to Kekrops. Originally, it is said, they had no idea of conjugal union; they gratified their desires promiscuously, and the children that sprang from these irregular connections always bore the mother's name. But Kekrops showed the Athenians the inconvenience to society from such an abuse, and established the laws and rules of marriage.[11] The remote Laplanders, also, sing about Njavvis and Attjis, who instituted marriage, and bound their wives by sacred oaths.[12]

Popular imagination prefers the clear and concrete; it does not recognize any abstract laws that rule the universe. Nothing exists without a cause, but this cause is not sought in an agglomeration of external or internal forces; it is taken to be simple and palpable, a personal being, a god or a king. Is it not natural, then, that marriage, which plays such an important part in the life of the individual, as well as in that of the people, should be ascribed to a wise and powerful ruler, or to direct divine intervention?

With notions of this kind science has nothing to do. If we want to find out the origin of marriage, we have to strike into another path, the only one which can lead to the truth, but a path which is open to him alone who regards organic nature as one continued chain, the last and most perfect link of which is man. For we can no more stop within the limits of our own species, when trying to find the root of our psychical and social life, than we can understand the physical condition of the human race without taking into consideration that of the lower animals. I must, therefore, beg the reader to follow me into a domain which many may consider out of the way, but which we must, of necessity, explore in order to discover what we seek.

It is obvious that the preservation of the progeny of the lowest animals depends mainly upon chance. In the great sub-kingdom of the Invertebrata, even the mothers are exempted from nearly all anxiety as regards their offspring. In the highest order, the Insects, the eggs are hatched by the heat of the sun, and the mother, in most cases, does not even see her young. Her care is generally limited to seeking out an appropriate place for laying the eggs, and to fastening them to some proper object and covering them, if this be necessary for their preservation. Again, to the male's share nothing falls but the function of propagation.[13]

In the lowest classes of the Vertebrata, parental care is likewise almost unheard of. In the immense majority of species, young fishes are hatched without the assistance of their parents, and have, from the outset, to help themselves. Many Teleostei form, however, an exception; and, curiously enough, it is the male on which, in these cases, the parental duty generally devolves. In some instances he constructs a nest, and jealously guards the ova deposited in it by the female; while the male of certain species of Arius carries the ova about with him in his capacious pharynx.[14] Most of the Reptiles place their eggs

in a convenient and sunny spot between moss and leaves, and take no further trouble about them. But several of the larger serpents have a curious fashion of laying them in a heap, and then coiling themselves around them in a great hollow cone.[15] And female Crocodiles, as also certain aquatic snakes of Cochin China, observed by Dr. Morice, carry with them even their young.[16]

Among the lower Vertebrata it rarely happens that both parents jointly take care of their progeny. M. Milne Edwards states, indeed, that in the Pipa, or Toad of Surinam, the male helps the female to disburthen herself of her eggs;[17] and the Chelonia are known to live in pairs. "La femelle," says M. Espinas, "vient sur les plages sablonneuses au moment de la ponte, accompagnée du mâle, et construit un nid en forme de four où la chaleur du soleil fait éclore les œufs."[18] But it may be regarded as an almost universal rule that the relations of the sexes are utterly fickle. The male and female come together in the paring time; but having satisfied their sexual instincts they part again, and have nothing more to do with one another.

The Chelonia form, with regard to their domestic habits, a transition to the Birds, as they do also from a zoological and, particularly, from an embryological point of view. In the latter class, parental affection has reached a very high degree of development, not only on the mother's side, but also on the father's. Male and female help each other to build the nest, the former generally bringing the materials, the latter doing the work. In fulfilling the numberless duties of the breeding season, both birds take a share. Incubation rests principally with the mother, but the father, as a rule, helps his companion, taking her place when she wants to leave the nest for a moment, or providing her with food and protecting her from every danger. Finally, when the duties of the breeding season are over, and the result desired is obtained, a period with new duties commences. During the first few days after hatching, most birds rarely leave their young for long, and then only to procure food for themselves and their family. In cases of great danger, both parents bravely defend their offspring. As soon as the first period of helplessness is over, and the young have grown somewhat, they are carefully taught to shift for themselves; and it is only when they are perfectly capable of so doing that they leave the nest and the parents.

There are, indeed, a few birds that from the first day of their ultra-oval existence lack all parental care; and in some species, as the ducks, it frequently happens that the male leaves family duties wholly to the female. But, as a general rule, both share prosperity and adversity. The hatching of the eggs and the chief part of the rearing duties belong to the mother,[19] whilst the father acts as protector, and provides food, &c.

The relations of the sexes are thus of a very intimate character, male and female keeping together not only during the breeding season, but also after it. Nay, most birds, with the exception of those belonging to the Gallinaceous

family, when pairing, do so once for all till either one or the other dies. And Dr. Brehm is so filled with admiration for their exemplary family life, that he enthusiastically declares that "real genuine marriage can only be found among birds."[20]

This certainly cannot be said of most of the Mammals. The mother is, indeed, very ardently concerned for the welfare of her young, generally nursing them with the utmost affection, but this is by no means the case with the father. There are cases in which he acts as an enemy of his own progeny. But there are not wanting instances to the contrary, the connections between the sexes, though generally restricted to the time of the rut, being, with several species of a more durable character. This is the case with whales,[21] seals,[22] the hippopotamus,[23] the Cervus campestris,[24] gazelles,[25] the Neotragus Hemprichii and other small antelopes,[26] reindeer,[27] the Hydromus coypus,[28] squirrels,[29] moles,[30] the ichneumon,[31] and some carnivorous animals, as a few cats and martens,[32] the yaguarundi in South America,[33] the Canis Brasiliensis,[34] and possibly also the wolf.[35] Among all these animals the sexes remain together even after the birth of the young, the male being the protector of the family.

What among lower Mammals is an exception, is among the Quadrumana a rule. The natives of Madagascar relate that in some species of the Prosimii, male and female nurse their young in common[36]—a statement, however, which has not yet been proved to be true. The mirikina (Nyctipithecus trivirgatus) seems, according to Rengger, to live in pairs throughout the whole year, for, whatever the season, a male and a female are always found together.[37] Of the Mycetes Caraya, Cebus Azarae,[38] and Ateles paniscus,[39] single individuals are very seldom, or never, seen, whole families being generally met with. Among the Arctopitheci,[40] the male parent is expressly said to assist the female in taking care of the young ones.

The most interesting to us are, of course, the man-like apes. Diard was told by the Malays, and he found it afterwards to be true, that the young Siamangs, when in their helpless state, are carried about by their parents, the males by the father, the females by the mother.[41] Lieutenant C. de Crespigny, who was wandering in the northern part of Borneo in 1870, gives the following description of the Orang-utan: "They live in families—the male, female, and a young one. On one occasion I found a family in which were two young ones, one of them much larger than the other, and I took this as a proof that the family tie had existed for at least two seasons. They build commodious nests in the trees which form their feeding-ground, and, so far as I could observe, the nests, which are well lined with dry leaves, are only occupied by the female and young, the male passing the night in the fork of the same or another tree in the vicinity. The nests are very numerous all over the forests, for they are

not occupied above a few nights, the mias (or Orang-utan) leading a roving life."[42] According to Dr. Mohnike, however, the old males generally live with the females during the rutting season only;[43] and Mr. Wallace never saw two full-grown animals together. But as he sometimes found not only females, but also males, accompanied by half-grown young ones,[44] we may take for granted that the offspring of the Orang-utan are not devoid of all paternal care.

More unanimous are the statements which we have regarding the Gorilla. According to Dr. Savage, they live in bands, and all his informants agree in the assertion that but one adult male is seen in every band. "It is said that when the male is first seen he gives a terrific yell that resounds far and wide through the forest.... The females and young at the first cry quickly disappear; he then approaches the enemy in great fury, pouring out his horrid cries in quick succession."[45] Again, Mr. Du Chaillu found "almost always one male with one female, though sometimes the old male wanders companionless;"[46] and Mr. Winwood Reade states likewise that the Gorilla goes "sometimes alone, sometimes accompanied by his female and young one."[47] The same traveller was told that, when a family of Gorillas ascend a tree and eat a certain fruit, the old father remains seated at the foot of the tree. And when the female is pregnant, he builds a rude nest, usually about fifteen or twenty feet from the ground; here she is delivered, and the nest is then abandoned.[48]

For more recent information about the Gorilla we are indebted to Herr von Koppenfells. He states that the male spends the night crouching at the foot of the tree, against which he places his back, and thus protects the female and their young, which are in the nest above, from the nocturnal attacks of leopards. Once he observed a male and female with two young ones of different ages, the elder being perhaps about six years old, the younger about one.[49]

When all these statements are compared, it is impossible to doubt that the Gorilla lives in families, the male parent being in the habit of building the nest and protecting the family. And the same is the case with the Chimpanzee. According to Dr. Savage, "it is not unusual to see 'the old folks' sitting under a tree regaling themselves with fruit and friendly chat, while 'their children' are leaping around them and swinging from branch to branch in boisterous merriment."[50] And Herr von Koppenfells assures us that the Chimpanzee, like the Gorilla, builds a nest for the young and female on a forked branch, the male himself spending the night lower down in the tree.[51]

Passing from the highest monkeys to the savage and barbarous races of man, we meet with the same phenomenon. With the exception of a few cases in which certain tribes are asserted to live together promiscuously—almost all of which assertions I shall prove further on to be groundless—travellers unanimously agree that in the human race the relations of the sexes are, as a rule, of a more or less durable character. The family consisting of father, mother,

and offspring, is a universal institution, whether founded on a monogamous, polygynous, or polyandrous marriage. And, as among the lower animals having the same habit, it is to the mother that the immediate care of the children chiefly belongs, while the father is the protector and guardian of the family. Man in the savage state is generally supposed to be rather indifferent to the welfare of his wife and children, and this is really often the case, especially if he be compared with civilized man. But the simplest paternal duties are, nevertheless, universally recognized. If he does nothing else, the father builds the habitation, and employs himself in the chase and in war.

Thus, among the North American Indians, it was considered disgraceful for a man to have more wives than he was able to maintain.[52] Mr. Powers says that among the Patwin, a Californian tribe which ranks among the lowest in the world, "the sentiment that the men are bound to support the women—that is to furnish the supplies—is stronger even than among us."[53] Among the Iroquois it was the office of the husband "to make a mat, to repair the cabin of his wife, or to construct a new one." The product of his hunting expeditions, during the first year of marriage, belonged of right to his wife, and afterwards he shared it equally with her, whether she remained in the village, or accompanied him to the chase.[54] Azara states that among the Charruas of South America, "du moment où un homme se marie, il forme une famille à part et travaille pour la nourrir;"[55] and among the Fuegians, according to Admiral Fitzroy, "as soon as a youth is able to maintain a wife, by his exertions in fishing or bird-catching, he obtains the consent of her relations."[56] Again, among the utterly rude Botocudos, whose girls are married very young, remaining in the house of the father till the age of puberty, the husband is even then obliged to maintain his wife, though living apart from her.[57]

To judge from the recent account of Herr Lumholtz, the paternal duties seemed to be scarcely recognized by the natives of Queensland.[58] But with reference to the Kurnai in South Australia, Mr. Howitt states that "the man has to provide for his family with the assistance of his wife. His share is to hunt for their support, and to fight for their protection." As a Kurnai once said to him, "A man hunts, spears fish, fights, and sits about."[59] And in the Encounter Bay tribe the paternal care is considered so indispensable, that, if the father dies before a child is born, the child is put to death by the mother, as there is no longer any one to provide for it.[60]

Among the cannibals of New Britain, the chiefs have to see that the families of the warriors are properly maintained.[61] As regards the Tonga Islanders, Martin remarks, "A married woman is one who cohabits with a man, and lives under his roof and protection;"[62] and in Samoa, according to Mr. Pritchard, "whatever intercourse may take place between the sexes, a woman does not become a man's wife unless the latter take her to his own house."[63] Among

the Maoris, says Mr. Johnston, "the mission of woman was to increase and multiply; that of man to defend his home."[64] In Radack, even natural children are received by the father into his house, as soon as they are able to walk.[65]

The Rev. D. Macdonald states that, in some African tribes, "a father has to fast after the birth of his child, or take some such method of showing that he recognizes that he as well as the mother should take care of the young stranger."[66] Certain Africans will not even go on any warlike expedition when they have a young child;[67] and the South American Guaranies, while their wives are pregnant do not risk their lives in hunting wild beasts.[68] In Lado the bridegroom has to assure his father-in-law three times that he will protect his wife, calling the people present to witness.[69] And among the Touaregs, according to Dr. Chavanne, a man who deserts his wife is blamed, as he has taken upon himself the obligation of maintaining her.[70]

The wretched Rock Veddahs in Ceylon, according to Sir J. Emerson Tennent, "acknowledge the marital obligation and the duty of supporting their own families."[71] Among the Maldivians, "although a man is allowed four wives at one time, it is only on condition of his being able to support them."[72] The Nagas are not permitted to marry until they are able to set up house on their own account.[73] The Nairs, we are told, consider it a husband's duty to provide his wife with food, clothing, and ornaments;[74] and almost the same is said by Dr. Schwaner with reference to the tribes of the Barito district, in the south-east part of Borneo.[75] A Burmese woman can demand a divorce, if her husband is not able to maintain her properly.[76] Among the Mohammedans, the maintenance of the children devolves so exclusively on the father, that the mother is even entitled to claim wages for nursing them.[77] And among the Romans, manus implied not only the wife's subordination to the husband, but also the husband's obligation to protect the wife.[78]

The father's place in the family being that of a supporter and protector, a man is often not permitted to marry until he has given some proof of his ability to fulfil these duties.

The Koyúkuns believe that a youth who marries before he has killed a deer will have no children.[79] The aborigines of Pennsylvania considered it a shame for a boy to think of a wife before having given some proof of his manhood. [80] Among the wild Indians of British Guiana, says Mr. Im Thurn, before a man is allowed to choose a wife he must prove that he can do a man's work and is able to support himself and his family.[81] Among the Dyaks of Borneo,[82] the Nagas of Upper Assam,[83] and the Alfura of Ceram,[84] no one can marry unless he has in his possession a certain number of heads. The Karmanians, according to Strabo, were considered marriageable only after having killed an enemy.[85] The desire of a Galla warrior is to deprive the enemy of his genitals, the possession of such a trophy being a necessary preliminary to marriage.[86]

Among the Bechuana and Kafir tribes south of the Zambesi, the youth is not allowed to take a wife until he has killed a rhinoceros.[87] In the Marianne Group, the suitor had to give proof of his bodily strength and skill.[88] And among the Arabs of Upper Egypt, the man must undergo an ordeal of whipping by the relations of his bride in order to test his courage. If he wishes to be considered worth having, he must receive the chastisement, which is sometimes exceedingly severe, with an expression of enjoyment.[89]

The idea that a man is bound to maintain his family is, indeed, so closely connected with that of marriage and fatherhood, that sometimes even repudiated wives with their children are, at least to a certain extent, supported by their former husbands. This is the case among the Chukchi of North-Western Asia,[90] the Basutos in Southern Africa,[91] and the Munda Kols in Chota Nagpore.[92] Further, a wife frequently enjoys her husband's protection even after sexual relations have been broken off. And upon his death, the obligation of maintaining her and her children devolves on his heirs, the wide-spread custom of a man marrying the widow of his deceased brother being, as we shall see in a subsequent chapter, not only a privilege belonging to the man, but, among several peoples, even a duty. We may thus take for granted that in the human race, at least at its present stage, the father has to perform the same function as in other animal species, where the connections between the sexes last longer than the sexual desire.

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In encyclopedical and philosophical works we meet with several different definitions of the word marriage. Most of these definitions are, however, of a merely juridical or ethical nature, comprehending either what is required to make the union legal,[93] or what, in the eye of an idealist, the union ought to be.[94] But it is scarcely necessary to say how far I am here from using the word in either of these senses. It is the natural history of human marriage that is the object of this treatise; and, from a scientific point of view, I think there is but one definition which may claim to be generally admitted, that, namely, according to which marriage is nothing else than a more or less durable connection between male and female, lasting beyond the mere act of propagation till after the birth of the offspring. This definition is wide enough to include all others hitherto given, and narrow enough to exclude those wholly loose connections which by usage are never honoured with the name of marriage. It implies not only sexual relations, but also living together, as is set forth in the proverb of the Middle Ages, "Boire, manger, coucher ensemble est mariage, ce me semble."[95] And, though, rather vague, which is a matter of course, it has the advantage of comprehending in one notion phenomena essentially similar and having a common origin.

Thus, as appears from the preceding investigation, the first traces of marriage are found among the Chelonia. With the Birds it is an almost universal institution, whilst, among the Mammals, it is restricted to certain species only. We observed, however, that it occurs, as a rule, among the monkeys, especially the anthropomorphous apes as well as in the races of men. Is it probable, then, that marriage was transmitted to man from some ape-like ancestor, and that there never was a time when it did not occur in the human race? These questions cannot be answered before we have found out the cause to which it owes its origin.

It is obvious that where the generative power is restricted to a certain season, it cannot be the sexual instinct that keeps male and female together for months or years. Nor is there any other egoistic motive that could probably account for this habit. Considering that the union lasts till after the birth of the offspring, and considering the care taken of this by the father, we may assume that the prolonged union of the sexes is, in some way or other connected with parental duties. I am, indeed, strongly of opinion that the tie which joins male and female is an instinct developed through the powerful influence of natural selection. It is evident that, when the father helps to protect the offspring, the species is better able to subsist in the struggle for existence than it would be if this obligation entirely devolved on the mother. Paternal affection and the instinct which causes male and female to form somewhat durable alliances, are thus useful mental dispositions which, in all probability, have been acquired through the survival of the fittest.

But how, then, can it be that among most animals the father never concerns himself about his progeny? The answer is not difficult to find. Marriage is only one of many means by which a species is enabled to subsist. Where parental care is lacking, we may be sure to find compensation for it in some other way. Among the Invertebrata, Fishes, and Reptiles, both parents are generally quite indifferent as to their progeny. An immense proportion of the progeny therefore succumb before reaching maturity; but the number of eggs laid is proportionate to the number of those lost, and the species is preserved nevertheless. If every grain of roe, spawned by the female fishes, were fecundated and hatched, the sea would not be large enough to hold all the creatures resulting from them. The eggs of Reptiles need no maternal care, the embryo being developed by the heat of the sun; and their young are from the outset able to help themselves, leading the same life as the adults. Among Birds, on the other hand, parental care is an absolute necessity. Equal and continual warmth is the first requirement for the development of the embryo and the preservation of the young ones. For this the mother almost always wants the assistance of the father, who provides her with necessaries, and sometimes relieves her of the brooding. Among Mammals, the young can never do without the mother at the

tenderest age, but the father's aid is generally by no means indispensable. In some species, as the walrus,[96] the elephant,[97] the Bos americanus,[98] and the bat,[99] there seems to be a rather curious substitute for paternal protection, the females, together with their young ones, collecting in large herds or flocks apart from the males. Again, as to the marriage of the Primates, it is, I think, very probably due to the small number of young, the female bringing forth but one at a time; and, among the highest apes, as in man, also to the long period of infancy.[100] Perhaps, too, the defective family life of the Orang-utan, compared with that of the Gorilla and Chimpanzee, depends upon the fewer dangers to which this animal is exposed. For "except man," Dr. Mohnike says, "the Orang-utan in Borneo has no enemy of equal strength."[101] In short, the factors which the existence of a species depends upon, as the number of the progeny, their ability to help themselves when young, maternal care, marriage, &c., vary indefinitely in different species. But in those that do not succumb, all these factors are more or less proportionate to each other, the product always being the maintenance of the species.

Marriage and family are thus intimately connected with each other: it is for the benefit of the young that male and female continue to live together. Marriage is therefore rooted in family, rather than family in marriage. There are also many peoples among whom true conjugal life does not begin before a child is born, and others who consider that the birth of a child out of wedlock makes it obligatory for the parents to marry. Among the Eastern Greenlanders[102] and the Fuegians,[103] marriage is not regarded as complete till the woman has become a mother. Among the Shawanese[104] and Abipones,[105] the wife very often remains at her father's house till she has a child. Among the Khyens, the Ainos of Yesso, and one of the aboriginal tribes of China, the husband goes to live with his wife at her father's house, and never takes her away till after the birth of a child.[106] In Circassia, the bride and bridegroom are kept apart until the first child is born;[107] and among the Bedouins of Mount Sinai, a wife never enters her husband's tent until she becomes far advanced in pregnancy.[108] Among the Baele, the wife remains with her parents until she becomes a mother, and if this does not happen, she stays there for ever, the husband getting back what he has paid for her.[109] In Siam, a wife does not receive her marriage portion before having given birth to a child;[110] while among the Atkha Aleuts, according to Erman, a husband does not pay the purchase sum before he has become a father.[111] Again, the Badagas in Southern India have two marriage ceremonies, the second of which does not take place till there is some indication that the pair are to have a family; and if there is no appearance of this, the couple not uncommonly separate.[112] Dr. Bérenger-Féraud states that, among the Wolofs in Senegambia, "ce n'est que lorsque les signes de la grossesse sont irrécusables chez la fiancée, quelquefois même

ce n'est qu'après la naissance d'un ou plusieurs enfants, que la cérémonie du mariage proprement dit s'accomplit."[113] And the Igorrotes of Luzon consider no engagement binding until the woman has become pregnant.[114]

On the other hand, Emin Pasha tells us that, among the Mádi in Central Africa, "should a girl become pregnant, the youth who has been her companion is bound to marry her, and to pay to her father the customary price of a bride."[115] Burton reports a similar custom as prevailing among peoples dwelling to the south of the equator.[116] Among many of the wild tribes of Borneo, there is almost unrestrained intercourse between the youth of both sexes; but, if pregnancy ensue, marriage is regarded as necessary.[117] The same, as I am informed by Dr. A. Bunker, is the case with some Karen tribes in Burma. In Tahiti, according to Cook, the father might kill his natural child, but if he suffered it to live, the parties were considered to be in the married state.[118] Among the Tipperahs of the Chittagong Hills,[119] as well as the peasants of the Ukraine,[120] a seducer is bound to marry the girl, should she become pregnant. Again, Mr.Powers informs us that, among the Californian Wintun, if a wife is abandoned when she has a young child, she is justified by her friends in destroying it on the ground that it has no supporter.[121] And among the Creeks, a young woman that becomes pregnant by a man whom she had expected to marry, and is disappointed, is allowed the same privilege.[122]

It might, however, be supposed that, in man, the prolonged union of the sexes is due to another cause besides the offspring's want of parental care, i.e., to the fact that the sexual instinct is not restricted to any particular season, but endures throughout the whole year. "That which distinguishes man from the beast," Beaumarchais says, "is drinking without being thirsty, and making love at all seasons." But in the next chapter, I shall endeavour to show that this is probably not quite correct, so far as our earliest human or semi-human ancestors are concerned.

Chapter II — A Human Pairing Season in Primitive Times

Professor Leuckart assumes that the periodicity in the sexual life of animals depends upon economical conditions, the reproductive matter being a surplus of the individual economy. Hence he says that the rut occurs at the time when the proportion between receipts and expenditure is most favourable.[123]

Though this hypothesis is accepted by several eminent physiologists, facts do not support the assumption that the power of reproduction is correlated with abundance of food and bodily vigour. There are some writers who even believe that the reverse is the case.[124]

At any rate, it is not correct to say, with Dr. Gruenhagen, that "the general wedding-feast is spring, when awakening nature opens, to most animals, new and ample sources of living."[125] This is certainly true of Reptiles and Birds, but not of Mammals; every month or season of the year is the pairing season of one or another mammalian species.[126] But notwithstanding this apparent irregularity, the pairing time of every species is bound by an unfailing law; it sets in earlier or later, according as the period of gestation lasts longer or shorter, so that the young may be born at the time when they are most likely to survive. Thus, most Mammals bring forth their young early in spring, or, in tropical countries, at the beginning of the rainy season; the period then commences when life is more easily sustained, when prey is most abundant, when there is enough water and vegetable food, and when the climate becomes warmer. In the highlands, animals pair later than those living in lower regions, [127] whilst those of the polar and temperate zones generally pair later than those of the tropics. As regards the species living in different latitudes the pairing time comes earlier or later, according to the differences in climate.[128]

Far from depending upon any general physiological law, the rut is thus adapted to the requirements of each species separately. Here again we have an example of the powerful effects of natural selection, often showing themselves very obviously. The dormouse (Muscardinus avellanarius), for instance, that feeds upon hazel-nuts, pairs in July, and brings forth its young in August, when nuts begin to ripen. Then the young grow very quickly, so that they are able to bear the autumn and winter cold.[129]

There are, however, a few wild species, as some whales,[130] the elephant, [131] many Rodents,[132] and several of the lower monkeys,[133] that seem to have no definite pairing season. As to them it is, perhaps, sufficient to quote Dr. Brehm's statement with reference to the elephant, "The richness of their woods is so great, that they really never suffer want."[134] But the man-like apes do not belong to this class. According to Mr. Winwood Reade, the male Gorillas fight at the rutting season for their females;[135] Dr. Mohnike, as also other authorities, mentions the occurrence of a rut-time with the Orang-utan. [136] And we find that both of these species breed early in the season when fruits begin to be plentiful,—that is, their pairing time depends on the same law as that which prevails in the rest of the animal kingdom.

Sir Richard Burton says, "The Gorilla breeds about December, a cool and dry month; according to my bushmen, the period of gestation is between five and six months."[137] I have referred this important statement to Mr. Alfred R. Wallace, who writes as follows: "From the maps of rain distribution in Africa in Stanford's 'Compendium,' the driest months in the Gorilla country seem to be January and February, and these would probably be the months of greatest fruit supply." As regards the Orang-utan, Mr. Wallace adds, "I found the young

sucking Orang-utan in May; that was about the second or third month of the dry season, in which fruits began to be plentiful."

Considering, then, that the periodicity of the sexual life rests on the kind of food on which the species lives, together with other circumstances connected with anatomical and physiological peculiarities, and considering, further, the close biological resemblance between man and the man-like apes, we are almost compelled to assume that the pairing time of our earliest human or half-human ancestors was restricted to a certain season of the year, as was also the case with their nearest relations among the lower animals. This presumption derives further probability from there being, even now, some rude peoples who are actually stated to have an annual pairing time, and other peoples whose sexual instinct undergoes most decidedly a periodical increase at a certain time of the year.

According to Mr. Johnston, the wild Indians of California, belonging to the lowest races on earth, "have their rutting seasons as regularly as have the deer, the elk, the antelope, or any other animals."[138] And Mr. Powers confirms the correctness of this statement, at least with regard to some of these Indians, saying that spring "is a literal Saint Valentine's Day with them, as with the natural beasts and birds of the forest."[139]

As regards the Goddanes in Luzon, Mr. Foreman tells us that "it is the custom of the young men about to marry, to vie with each other in presenting to the sires of their future bride all the scalps they are able to take from their enemies, as proof of their manliness and courage. This practice prevails at the season of the year when the tree—popularly called by the Spaniards 'the fire-tree'—is in bloom."[140]

Speaking of the Watch-an-dies in the western part of Australia, Mr. Oldfield remarks, "Like the beasts of the field, the savage has but one time for copulation in the year.[141] About the middle of spring ... the Watch-an-dies begin to think of holding their grand semi-religious festival of Caa-ro, preparatory to the performance of the important duty of procreation."[142] A similar feast, according to Mr. Bonwick, was celebrated by the Tasmanians at the same time of the year.[143]

The Hos, an Indian hill tribe, have, as we are informed by Colonel Dalton, every year a great feast in January, "when the granaries are full of grain, and the people, to use their own expression, full of devilry. They have a strange notion that at this period, men and women are so over-charged with vicious propensities, that it is absolutely necessary for the safety of the person to let off steam by allowing for a time full vent to the passions. The festival, therefore, becomes a saturnalia, during which servants forget their duty to their masters, children their reverence for parents, men their respect for women, and women all notions of modesty, delicacy, and gentleness." Men and women become

almost like animals in the indulgence of their amorous propensities, and the utmost liberty is given to the girls.[144]

The same writer adds that "it would appear that most Hill Tribes have found it necessary to promote marriage by stimulating intercourse between the sexes at particular seasons of the year."[145] Among the Santals, "the marriages mostly take place once a year, in January; for six days all the candidates for matrimony live in promiscuous concubinage, after which the whole party are supposed to have paired off as man and wife."[146] The Punjas in Jeypore, according to Dr. Shortt, have a festival in the first month of the new year, where men and women assemble. The lower order or castes observe this festival, which is kept up for a month, by both sexes mixing promiscuously, and taking partners as their choice directs.[147] A similar feast, comprising a continuous course of debauchery and licentiousness, is held once a year, by the Kotars, a tribe inhabiting the Neilgherries;[148] according to Mr. Bancroft, by the Keres in New Mexico;[149] according to Dr. Fritsch, by the Hottentots;[150] according to the Rev. H. Rowley, by the Kafirs;[151] and, as I am informed by Mr. A. J. Swann, by some tribes near Nyassa. Writers of the sixteenth century speak of the existence of certain early festivals in Russia, at which great license prevailed. According to Pamphill, these annual gatherings took place, as a rule, at the end of June, the day before the festival of St. John the Baptist, which, in pagan times, was that of a divinity known by the name of Jarilo, corresponding to the Priapus of the Greeks.[152] At Rome, a festival in honour of Venus took place in the month of April;[153] and Mannhardt mentions some curious popular customs in Germany, England, Esthonia and other European countries, which seem to indicate an increase of the sexual instinct in spring or at the beginning of summer.[154]

By questions addressed to persons living among various savage peoples, I have inquired whether among these peoples, marriages are principally contracted at a certain time of the year, and whether more children are born in one month or season than in another. In answer, Mr. Radfield writes from Lifu, near New Caledonia, that marriages there formerly took place at various times, when suitable, but "November used to be the time at which engagements were made." As the seasons in this island are the reverse of those in England, this month includes the end of spring and the beginning of summer. The Rev. H. T. Cousins informs me that, among the Kafirs inhabiting what is known as Cis-Natalian Kafirland, "there are more children born in one month or season than in another, viz. August and September, which are the spring months in South Africa;" and he ascribes this surplus of births to feasts, comprising debauchery and unrestricted intercourse between the unmarried people of both sexes. Again, Dr. A. Sims writes from Stanley Pool that, among the Bateke, more children are born in September and October, that is, in the seasons of the early

rains, than at other times; and the Rev. Ch. E. Ingham, writing from Banza Manteka, states that he believes the same to be the case among the Bakongo. But the Rev. T. Bridges informs me that, among the Yahgans in the southern part of Tierra del Fuego, so far as he knows, one month is the same as another with regard to the number of births. I venture, however, to think that this result might be somewhat modified by a minute inquiry, embracing a sufficient number of cases. For statistics prove that even in civilized countries, there is a regular periodical fluctuation in the birth-rate.

In the eighteenth century Wargentin showed that, in Sweden more children were born in one month than in another.[155] The same has since been found to be the case in other European countries. According to Wappäus, the number of births in Sardinia, Belgium, Holland, and Sweden is subject to a regular increase twice a year, the maximum of the first increase occurring in February or March, that of the second in September and October.[156] M. Sormani observed that, in the south of Italy, there is an increase only once in the year, but more to the north twice, in spring and in autumn.[157] Dr. Mayr and Dr. Beukemann found in Germany two annual maxima—in February or March, and in September;—[158]and Dr. Haycraft states that, in the eight largest towns of Scotland, more children are born in legitimate wedlock in April than in any other month.[159] As a rule, according to M. Sormani, the first annual augmentation of births has its maximum, in Sweden, in March; in France and Holland, between February and March; in Belgium, Spain, Austria and Italy, in February; in Greece, in January; so that it comes earlier in southern Europe than farther to the north.[160] Again, the second annual increase is found more considerable the more to the north we go. In South Germany it is smaller than the first one, but in North Germany generally larger;[161] and in Sweden, it is decidedly larger.[162]

As to non-European countries, Wappäus observed that in Massachusetts, the birth-rate likewise underwent an increase twice a year, the maxima falling in March and September; and that in Chili many more children were born in September and October—i.e., at the beginning of spring—than in any other month.[163] Finally, Mr. S. A. Hill, of Allahabad, has proved, by statistical data, that, among the Hindus of that province, the birth-rates exhibit a most distinct annual variation, the minimum falling in June and the maximum in September and October.[164]

This unequal distribution of births over the different months of the year is ascribed to various causes by statisticians. It is, however, generally admitted that the maximum in February and March (in Chili, September) is, at least to a great extent, due to the sexual instinct being strongest in May and June (in Chili, December).[165] This is the more likely to be the case as it is especially illegitimate births that are then comparatively numerous. And it appears extremely

probable that, in Africa also, the higher birth-rates in the seasons of the early rains owe their origin to the same cause.

Thus, comparing the facts stated, we find, among various races of men, the sexual instinct increasing at the end of spring, or, rather, at the beginning of summer. Some peoples of India seem to form an exception to this rule, lascivious festivals, in the case of several of them, taking place in the month of January, and the maximum of births, among the Hindus of Allahabad, falling at the end of the hot season, or in early autumn. But in India also there are traces of strengthened passions in spring. M. Rousselet gives the following description of the indecent Holi festival, as it is celebrated among the Hindus of Oudeypour. "The festival of Holi marks the arrival of spring, and is held in honour of the goddess Holica, or Vasanti, who personifies that season in the Hindu Pantheon. The carnival lasts several days, during which time the most licentious debauchery and disorder reign throughout every class of society. It is the regular saturnalia of India. Persons of the greatest respectability, without regard to rank or age, are not ashamed to take part in the orgies which mark this season of the year.... Women and children crowd round the hideous idols of the feast of Holica, and deck them with flowers; and immorality reigns supreme in the streets of the capital."[166] Among the Aryans who inhabited the plains of the North, the spring, or "vasanta," corresponding to the months of March and April, was the season of love and pleasure, celebrated in song by the poets, and the time for marriages and religious feasts.[167] And among the Rajputs of Mewar, according to Lieutenant-Colonel Tod, the last days of spring are dedicated to Camdéva, the god of love: "the scorching winds of the hot season are already beginning to blow, when Flora droops her head, and the 'god of love turns anchorite.'"[168]

We must not, however, infer that this enhancement of the procreative power is to be attributed directly to "the different positions of the sun with respect to the earth,"[169] or to the temperature of a certain season. The phenomenon does not immediately spring from this cause in the case of any other animal species. Neither can it be due to abundance of food. In the northern parts of Europe many more conceptions take place in the months of May and June, when the conditions of life are often rather hard, than in September, October, and November, when the supplies of food are comparatively plentiful. In the north-western provinces of Germany, as well as in Sweden, the latter months are characterized by a minimum of conceptions.[170] Among the Kaffirs, more children are conceived in November and December than in any other month, although, according to the Rev. H. T. Cousins, food is most abundant among them from March to September. And among the Bateke, the maximum of conceptions falls in December and January, although food is, as I am informed

by Dr. Sims, most plentiful in the dry season, that is, from May to the end of August.

On the other hand, the periodical increase of conceptions cannot be explained by the opposite hypothesis, entertained by some physiologists, that the power of reproduction is increased by want and distress. Among the Western Australians and Californians,[171] for instance, the season of love is accompanied by a surplus of food, and in the land of the Bakongo, among whom Mr. Ingham believes most conceptions to take place in December and January, food is, according to him, most abundant precisely in these months and in February.

It seems, therefore, a reasonable presumption that the increase of the sexual instinct at the end of spring or in the beginning of summer, is a survival of an ancient pairing season, depending upon the same law that rules in the rest of the animal kingdom. Since spring is rather a time of want than a time of abundance for a frugivorous species, it is impossible to believe that our early ancestors, as long as they fed upon fruits, gave birth to their young at the beginning of that period. From the statements of Sir Richard Burton and Mr. A. R. Wallace, already quoted,[172] we know that the man-like apes breed early in the season when fruits begin to be plentiful. But when man began to feed on herbs, roots, and animal food, the conditions were changed. Spring is the season of the re-awakening of life, when there are plenty of vegetables and prey. Hence those children whose infancy fell in this period survived more frequently than those born at any other. Considering that the parents of at least a few of them must have had an innate tendency to the increase of the power of reproduction at the beginning of summer, and considering, further, that this tendency must have been transmitted to some of the offspring, like many other characteristics which occur periodically at certain seasons,[173] we can readily understand that gradually, through the influence of natural selection, a race would emerge whose pairing time would be exclusively or predominantly restricted to the season most favourable to its subsistence. To judge from the period when most children are born among existing peoples, the pairing season of our prehistoric ancestors occurred, indeed, somewhat earlier in the year than is the case with the majority of mammalian species. But we must remember that the infancy of man is unusually long; and, with regard to the time most favourable to the subsistence of children, we must take into consideration not only the first days of their existence, but the first period of their infancy in general. Besides food and warmth, several other factors affect the welfare of the offspring, and it is often difficult to find out all of them. We do not know the particular circumstances that make the badger breed at the end of February or the beginning of March,[174] and the reindeer of the Norwegian mountains

as early as April;[175] but there can be no doubt that these breeding seasons are adapted to the requirements of the respective species.

The cause of the winter maximum of conceptions, especially considerable among the peoples of Northern Europe, is generally sought in social influences, as the quiet ensuing on the harvest time, the better food, and the amusements of Christmas.[176] But the people certainly recover before December from the labours of the field, and Christmas amusements, as Wargentin remarks, take place at the end of that month and far into January, without any particular influence upon the number of births in October being observable.[177] It has, further, been proved that the unequal distribution of marriages over the different months exercises hardly any influence upon the distribution of births.[178] Again, among the Hindus the December and January maximum of conceptions seems from the lascivious festivities of several Indian peoples to be due to an increase of the sexual instinct. According to Mr. Hill, this increase depends upon healthy conditions with an abundant food supply. But, as I have already said, it is not proved that a strengthened power of reproduction and abundance of food are connected with one another.

I am far from venturing to express any definite opinion as to the cause of these particular phenomena, but it is not impossible that they also are effects of natural selection, although of a comparatively recent date. Considering that the September maximum of births (or December maximum of conceptions) in Europe becomes larger the farther north we go; that the agricultural peoples of Northern Europe have plenty of food in autumn and during the first part of winter, but often suffer a certain degree of want in spring; and, finally, that the winter cold does not affect the health of infants, the woods giving sufficient material for fuel,—it has occurred to me that children born in September may have a better chance of surviving than others. Indeed, Dr. Beukemann states that the number of still-born births is largest in winter or at the beginning of spring, and that "the children born in autumn possess the greatest vitality and resisting power against the dangers of earliest infancy."[179] This would perhaps be an adequate explanation either of an increase of the sexual instinct or of greater disposition to impregnation in December. It is not impossible either, that the increase of the power of reproduction among the Hindus in December and January, which causes an increase of births in September and October—i.e., the end of the hot season and the beginning of winter—owes its origin to the fact that during the winter the granaries get filled and some of the conditions of life become more healthy. But it should be remarked that September itself, according to Mr. Hill, is a very unhealthy month.[180]

Now it can be explained, I believe for the first time, how it happens that man, unlike the lower animals, is not limited to a particular period of the year in which to court the female.[181] The Darwinian theory of natural selection

can, as it seems to me, account for the periodicity of the sexual instinct in such a rude race as the Western Australians, among whom the mortality of children is so enormous that the greater number of them do not survive even the first month after birth,[182] and who inhabit a land pre-eminently unproductive of animals and vegetables fitted to sustain human life, a land where, "during the summer seasons, the black man riots in comparative abundance, but during the rest of the year ... the struggle for existence becomes very severe."[183] The more progress man makes in arts and inventions; the more he acquires the power of resisting injurious external influences; the more he rids himself of the necessity of freezing when it is cold, and starving when nature is less lavish with food; in short, the more independent he becomes of the changes of the seasons—the greater is the probability that children born at one time of the year will survive as well, or almost as well, as those born at any other. Variations as regards the pairing time, always likely to occur occasionally, will do so the more frequently on account of changed conditions of life, which directly or indirectly cause variability of every kind;[184] and these variations will be preserved and transmitted to following generations. Thus we can understand how a race has arisen, endowed with the ability to procreate children in any season. We can also understand how, even in such a rude race as the Yahgans in Tierra del Fuego, the seasonable distribution of births seems to be pretty equal, as there is, according to the Rev. T. Bridges, "such a variety of food in the various seasons that there is strictly no period of hardship, save such as is caused by accidents of weather." We can explain, too, why the periodical fluctuation in the number of births, though comparatively inconsiderable in every civilized society, is greater in countries predominantly agricultural, such as Chili, than in countries predominantly industrial, as Saxony;[185] why it is greater in rural districts than in towns;[186] and why it was greater in Sweden in the middle of the last century than it is now.[187] For the more man has abandoned natural life out of doors, the more luxury has increased and his habits have got refined, the greater is the variability to which his sexual life has become subject, and the smaller has been the influence exerted upon it by the changes of the seasons.

Man has thus gone through the same transition as certain domestic animals. The he-goat[188] and the ass in southern countries,[189] for instance, rut throughout the whole year. The domestic pig pairs generally twice a year, while its wild ancestors had but one rutting season.[190] Dr. Hermann Müller has even observed a canary that laid eggs in autumn and winter.[191] Natural selection cannot, of course, account for such alterations: they fall under the law of variation. It is the limited pairing season that is a product of this powerful process, which acts with full force only under conditions free from civilization and domestication.

If the hypothesis set forth in this chapter holds good, it must be admitted that the continued excitement of the sexual instinct could not have played a part in the origin of human marriage—provided that this institution did exist among primitive men. Whether this was the case I shall examine in the following chapters.

Chapter III — The Antiquity of Human Marriage

If it be admitted that marriage, as a necessary requirement for the existence of certain species, is connected with some peculiarities in their organism, and, more particularly among the highest monkeys, with the paucity of their progeny and their long period of infancy,—it must at the same time be admitted that, among primitive men, from the same causes as among these animals, the sexes in all probability kept together till after the birth of the offspring. Later on, when the human race passed beyond its frugivorous stage and spread over the earth, living chiefly on animal food, the assistance of an adult male became still more necessary for the subsistence of the children. Everywhere the chase devolves on the man, it being a rare exception among savage peoples for a woman to engage in it.[192] Under such conditions a family consisting of mother and young only, would probably, as a rule, have succumbed.

It has, however, been suggested that, in olden times, the natural guardian of the children was not the father, but the maternal uncle.[193] This inference has been drawn chiefly from the common practice of a nephew succeeding his mother's brother in rank and property. But sometimes the relation between the two is still more intimate. "La famille Malaise proprement dite—le Sa-Mandei, —" says a Dutch writer, as quoted by Professor Giraud-Teulon, "consiste dans la mère et ses enfants: le père n'en fait point partie. Les liens de parenté qui unissent ce dernier à ses frères et sœurs sont plus étrois que ceux qui le rattachent à sa femme et à ses propres enfants. Il continue même après son mariage à vivre dans sa famille maternelle; c'est là qu'est son véritable domicile, et non pas dans la maison de sa femme: il ne cesse pas de cultiver le champ de sa propre famille, à travailler pour elle, et n'aide sa femme qu'accidentellement. Le chef de la famille est ordinairement le frère aîné du côté maternel (le mamak ou avunculus). De par ses droits et ses devoirs, c'est lui le vrai père des enfants de sa sœur."[194] As regards the mountaineers of Georgia, especially the Pshaves, M. Kovalevsky states that, among them, "le frère de la mère prend la place du père dans toutes les circonstances où il s'agit de venger le sang répandu, surtout au cas de meurtre commis sur la personne de son neveu."[195] Among the Goajiro Indians,[196] the Negroes of Bondo,[197] the Barea, and the Bazes,[198] it is the mother's brother who has the right of selling a girl to her suitor. Touching

the Kois, the Rev. John Cain says, "The maternal uncle of any Koi girl has the right to bestow her hand on any one of his sons, or any other suitable candidate who meets with his approval. The father and the mother of the girl have no acknowledged voice in the matter. A similar custom prevails amongst some of the Komâti (Vaiśya) caste."[199] Among the Savaras in India, the bridegroom has to give a bullock not only to the girl's father, but to the maternal uncle; [200] whilst among the Creeks, the proxy of the suitor asked for the consent of the uncles, aunts, and brothers of the young woman, "the father having no voice or authority in the business."[201]

But such cases are rare. Besides, most of them imply only that the children in a certain way belong to the uncle, not that the father is released from the obligation of supporting them. Even where succession runs through females only, the father is nearly always certainly the head of the family. Thus, for instance, in Melanesia, where the clan of the children is determined by that of the mother, "the mother is," to quote Dr. Codrington, "in no way the head of the family. The house of the family is the father's, the garden is his, the rule and government are his."[202] Nor is there any reason to believe that it was generally otherwise in former times. A man could not of course be the guardian of his sister's children, if he did not live in close connection with them. But except in such a decidedly anomalous case as that of the Malays, just referred to, this could scarcely happen unless marriages were contracted between persons living closely together. Nowadays, however, such marriages are usually avoided, and I shall endeavour later on to show that they were probably also avoided by our remote ancestors.

It might, further, be objected that the children were equally well or better provided for, if not the fathers only, but all the males of the tribe indiscriminately were their guardians. The supporters of the hypothesis of promiscuity, and even other sociologists, as for instance Herr Kautsky,[203] believe that this really was the case among primitive men. According to them, the tribe or horde is the primary social unit of the human race, and the family only a secondary unit, developed in later times. Indeed, this assumption has been treated by many writers, not as a more or less probable hypothesis, but as a demonstrated truth. Yet the idea that a man's children belong to the tribe, has no foundation in fact. Everywhere we find the tribes or clans composed of several families, the members of each family being more closely connected with one another than with the rest of the tribe. The family, consisting of parents, children, and often also their next descendants, is a universal institution among existing peoples.[204] And it seems extremely probable that, among our earliest human ancestors, the family formed, if not the society itself, at least the nucleus of it. As this is a question of great importance, I must deal with it at some length.

Mr. Darwin remarks, "Judging from the analogy of the majority of the Quadrumana, it is probable that the early ape-like progenitors of man were likewise social."[205] But it may be doubted whether Mr. Darwin would have drawn this inference, had he taken into consideration the remarkable fact that none of the monkeys most nearly allied to man can be called social animals.

The solitary life of the Orang-utan has already been noted. As regards Gorillas, Dr. Savage states that there is only one adult male attached to each group; [206] and Mr. Reade says expressly that they are not gregarious, though they sometimes seem to assemble in large numbers.[207] Both Mr. Du Chaillu[208] and Herr von Koppenfels[209] assure us likewise that the Gorilla generally lives in pairs or families.

The same is the case with the Chimpanzee. "It is seldom," Dr. Savage says, "that more than one or two nests are seen upon the same tree or in the same neighbourhood; five have been found, but it was an unusual circumstance. They do not live in 'villages'.... They are more often seen in pairs than in gangs.... As seen here, they cannot be called gregarious."[210] This statement, confirmed or repeated by Mr. Du Chaillu[211] and Professor Hartmann,[212] is especially interesting, as the Chimpanzee resembles man also in his comparatively slight strength and courage, so that a gregarious life might be supposed to be better suited to this animal.

Mr. Spencer, however, has pointed out that not only size, strength, and means of defence, but also the kind and distribution of food and other factors must variously co-operate and conflict to determine how far a gregarious life is beneficial, and how far a solitary life.[213] Considering, then, that, according to Dr. Savage, the Chimpanzees are more numerous in the season when the greatest number of fruits come to maturity,[214] we may almost with certainty infer that the solitary life generally led by this ape is due chiefly to the difficulty it experiences in getting food at other times of the year.

Is it not, then, most probable that our fruit-eating human or half-human ancestors, living on the same kind of food, and requiring about the same quantities of it as the man-like apes, were not more gregarious than they? It is likely, too, that subsequently, when man became partly carnivorous, he continued, as a rule, this solitary kind of life, or that gregariousness became his habit only in part. "An animal of a predatory kind," says Mr. Spencer, "which has prey that can be caught and killed without help, profits by living alone: especially if its prey is much scattered, and is secured by stealthy approach or by lying in ambush. Gregariousness would here be a positive disadvantage. Hence the tendency of large carnivores, and also of small carnivores that have feeble and widely-distributed prey, to lead solitary lives."[215] It is, indeed, very remarkable that even now there are savage peoples who live rather in separate

families than in tribes, and that most of these peoples belong to the very rudest races in the world.[216]

"'The wild or forest Veddahs,'" Mr. Pridham states, "build their huts in trees, live in pairs, only occasionally assembling in greater numbers, and exhibit no traces of the remotest civilization, nor any knowledge of social rites."[217] According to Mr. Bailey, the Nilgala Veddahs, who are considered the wildest, "are distributed through their lovely country in small septs, or families, occupying generally caves in the rocks, though some have little bark huts. They depend almost solely on hunting for their support, and hold little communication even with each other."[218]

In Tierra del Fuego, according to Bishop Stirling, family life is exclusive. "Get outside the family," he says, "and relationships are doubtful, if not hostile. The bond of a common language is no security for friendly offices."[219] Commander Wilkes states likewise that the Fuegians "appear to live in families and not in tribes, and do not seem to acknowledge any chief;[220]" and, according to M. Hyades, "la famille est bien constitutée, mais la tribu n'existe pas, à proprement parler."[221] Each family is perfectly independent of all the others, and only the necessity of common defence now and then induces a few families to form small gangs without any chief.[222] The Rev. T. Bridges writes to me, "They live in clans, called by them Ucuhr, which means a house. These Ucuhr comprise many subdivisions; and the members are necessarily related. But," he continues, "the Yahgans are a roving people, having their districts and moving about within these districts from bay to bay and island to island in canoes, without any order. The whole clan seldom travels together, and only occasionally and then always incidentally is it to be found collected. The smaller divisions keep more together.... Occasionally, as many as five families are to be found living in a wigwam, but generally two families." Indeed, in 'A Voice for South America,' Mr. Bridges says that "family influence is the one great tie which binds these natives together, and the one great preventive of violence."[223]

Speaking of the West Australians, who are probably better known to him than to any other civilized man, Bishop Salvado says that they "au lieu de se gouverner par tribus, paraissent se gouverner à la manière patriarchale: chaque famille, qui généralement ne compte pas plus de six à neuf individus, forme comme une petite société, sous la seule dépendance de son propre chef.... Chaque famille s'approprie une espèce de district, dont cependant les familles voisines jouissent en commun si l'on vit en bonne harmonie."[224]

Mr. Stanbridge, who spent eighteen years in the wilds of Victoria, tells us that the savages there are associated in tribes or families, the members of which vary much in number. Each tribe has its own boundaries, the land of which is parcelled out amongst families and carefully transmitted by direct descent; these boundaries being so sacredly maintained that the member of no single

family will venture on the lands of a neighbouring one without invitation.[225] And touching the Gournditch-mara, Mr. Howitt states that "each family camped by itself."[226]

The Bushmans of South Africa, according to Dr. Fritsch, are almost entirely devoid of a tribal organization. Even when a number of families occasionally unite in a larger horde, this association is more or less accidental, and not regulated by any laws.[227] But a horde commonly consists of the different members of one family only, at least if the children are old and strong enough to help their parents to find food.[228] "Sexual feelings, the instinctive love to children, or the customary attachment among relations," says Lichtenstein, "are the only ties that keep them in any sort of union."[229]

The like is stated to be true of several peoples in Brazil. According to v. Martius, travellers often meet there with a language "used only by a few individuals connected with each other by relationship, who are thus completely isolated, and can hold no communication with any of their other countrymen far or near."[230] With reference to the Botocudos, v. Tschudi says that "the family is the only tie which joins these rude children of nature with each other."[231] The Guachís, Mauhés, and Guatós for the most part live scattered in families,[232] and the social condition of the Caishánas, among whom each family has its own solitary hut, "is of a low type, very little removed, indeed, from that of the brutes living in the same forests."[233] The Marauá Indians live likewise in separate families or small hordes, and so do some other of the tribes visited by Mr. Bates.[234] According to Mr. Southey, the Cayáguas or Wood-Indians, who inhabited the forests between the Paraná and the Uruguay, were not in a social state; "one family lived at a distance from another, in a wretched hut composed of boughs; they subsisted wholly by prey, and when larger game failed, were contented with snakes, mice, pismires, worms, and any kind of reptile or vermin."[235] Again, speaking of the Coroados, v. Spix and v. Martius say that "they live without any bond of social union, neither under a republican nor a patriarchal form of government. Even family ties are very loose among them."[236]

The Togiagamutes, an Eskimo tribe, never visited by white men in their own country until the year 1880, who lead a thoroughly nomadic life, wandering from place to place in search of game or fish, appear, according to Petroff, "to live in the most perfect state of independence of each other. Even the communities do not seem bound together in any way; families and groups of families constantly changing their abode, leaving one community and joining another, or perhaps forming one of their own. The youth, as soon as he is able to build a kaiak and to support himself, no longer observes any family ties, but goes where his fancy takes him, frequently roaming about with his kaiak for

thousands of miles before another fancy calls him to take a wife, to excavate a miserable dwelling, and to settle down for a time."[237]

The ancient Finns, too, according to the linguistic researches of Professor Ahlqvist, were without any kind of tribal organization. In his opinion, such a state would have been almost impossible among them, as they lived in scattered families for the sake of the chase and in order to have pastures for their reindeer.[238]

That the comparatively solitary life which the families of these peoples live, is due to want of sufficient food, appears from several facts. Lichtenstein tells us that the hardships experienced by the Bushmans in satisfying the most urgent necessities of life, preclude the possibility of their forming larger societies. Even the families that form associations in small separate hordes are sometimes obliged to disperse, as the same spot will not afford sufficient sustenance for all. "The smaller the number, the easier is a supply of food procured."[239]

"Scarcity of food, and the facility with which they move from one place to another in their canoes," says Admiral Fitzroy, "are, no doubt, the reasons why the Fuegians are always so dispersed among the islands in small family parties, why they never remain long in one place, and why a large number are not seen many days in society."[240]

The natives of Port Jackson, New South Wales, when visited a hundred years ago by Captain Hunter, were associated in tribes of many families living together, apparently without a fixed residence, the different families wandering in different directions for food, but uniting on occasions of disputes with another tribe.[241] The Rev. A. Meyer assures us likewise, as regards the Encounter Bay tribe, that "the whole tribe does not always move in a body from one place to another, unless there should be abundance of food to be obtained at some particular spot; but generally they are scattered in search of food."[242] Again, with reference to the Australians more generally, Mr. Brough Smyth remarks that "in any large area occupied by a tribe, where there was not much forest land, and where kangaroos were not numerous, it is highly probable that the several families composing the tribe would withdraw from their companions for short periods, at certain seasons, and betake themselves to separate portions of the area, ... and it is more than probable—it is almost certain—that each head of a family would betake himself, if practicable, to that portion which his father had frequented."[243]

Finally, from Mr. Wyeth's account in Schoolcraft's great work on the Indian Tribes of the United States, I shall make the following characteristic quotation with reference to the Snakes inhabiting the almost desert region which extends southward from the Snake River as far as the southern end of the Great Salt Lake, and eastward from the Rocky to the Blue Mountains:—"The paucity of game in this region is, I have little doubt, the cause of the almost entire absence

of social organization among its inhabitants; no trace of it is ordinarily seen among them, except during salmon-time, when a large number of the Snakes resort to the rivers, chiefly to the Fishing Falls, and at such places there seems some little organization.... Prior to the introduction of the horse, no other tribal arrangement existed than such as is now seen in the management of the salmon fishery.... The organization would be very imperfect, because the remainder of the year would be spent by them in families widely spread apart, to eke out the year's subsistence on the roots and limited game of their country. After a portion of them, who are now called Bonaks, had obtained horses, they would naturally form bands and resort to the Buffalo region to gain their subsistence, retiring to the most fertile places in their own, to avoid the snows of the mountains and feed their horses. Having food from the proceeds of the Buffalo hunt, to enable them to live together, they would annually do so, for the protection of their horses, lodges, &c., &c. These interests have caused an organization among the Bonaks, which continues the year through, because the interests which produce it continue; and it is more advanced than that of the other Snakes."[244]

Here, I think, we have an excellent account of the origin of society, applicable not only to the Snakes, but, in its main features, to man in general. The kind of food he subsisted upon, together with the large quantities of it that he wanted, probably formed in olden times a hindrance to a true gregarious manner of living, except perhaps in some unusually rich places. Man in the savage state, even when living in luxuriant countries, is often brought to the verge of starvation, in spite of his having implements and weapons which his ruder ancestors had no idea of. If the obstacle from insufficient food-supply could be overcome, gregariousness would no doubt be of great advantage to him. Living together, the families could resist the dangers of life and defend themselves from their enemies much more easily than when solitary,—all the more so, as the physical strength of man, and especially savage man,[245] is comparatively slight. Indeed, his bodily inferiority, together with his defencelessness and helplessness, has probably been the chief lever of civilization.

"He has," to quote Mr. Darwin, "invented and is able to use various weapons, tools, traps, &c., with which he defends himself, kills or catches prey, and otherwise obtains food. He has made rafts or canoes for fishing or crossing over to neighbouring fertile islands. He has discovered the art of making fire, by which hard and stringy roots can be rendered digestible, and poisonous roots or herbs innocuous."[246] In short, man gradually found out many new ways of earning his living and more and more emancipated himself from direct dependence on surrounding nature. The chief obstacle to a gregarious life was by this means in part surmounted, and the advantages of such a life induced families or small gangs to unite together in larger bodies. Thus it seems that the gregariousness

and sociability of man sprang, in the main, from progressive intellectual and material civilization, whilst the tie that kept together husband and wife, parents and children, was, if not the only, at least the principal social factor in the earliest life of man. I cannot, therefore, agree with Sir John Lubbock that, as a general rule, as we descend in the scale of civilization, the family diminishes, and the tribe increases, in importance.[247] This may hold good for somewhat higher stages, but it does not apply to the lowest stages. Neither do I see any reason to believe that there ever was a time when the family was quite absorbed in the tribe. There does not exist a single well established instance of a people among whom this is the case.

I do not, of course, deny that the tie which bound the children to the mother was much more intimate and more lasting than that which bound them to the father. But it seems to me that the only result to which a critical investigation of facts can lead us is, that in all probability there has been no stage of human development when marriage has not existed, and that the father has always been, as a rule, the protector of his family. Human marriage appears, then, to be an inheritance from some ape-like progenitor.

Chapter IV — A Criticism of the Hypothesis of Promiscuity

The inference drawn in the last chapter is opposed to the view held by most sociologists who have written upon early history. According to them, man lived originally in a state of promiscuity. This is the opinion of Bachofen, McLennan, Morgan, Lubbock, Bastian, Giraud-Teulon, Lippert, Kohler, Post, Wilken, and several other writers.[248] Although suggested at first only as a probable hypothesis, this presumption is now treated by many writers as a demonstrated truth.[249]

The promiscuity of primitive man is not, however, generally considered to be perfectly indiscriminate, but limited to the individuals belonging to the same tribe. It may, therefore, perhaps be said to be a kind of marriage: polygyny combined with polyandry. Sir John Lubbock has also given it the name of "communal marriage," indicating by this word, that all the men and women in a community were regarded as equally husbands and wives to one another. As I do not, in speaking of marriage, take into consideration unions of so indefinite a nature, this seems to be the proper place to discuss the hypothesis in question.

The evidence adduced in support of it flows from two sources. First, there are, in the books of ancient writers and modern travellers, notices of some savage nations said to live promiscuously; secondly, there are some remarkable customs which are assumed to be social survivals, pointing to an earlier stage

of civilization, when marriage did not exist. Let us see whether this evidence will stand the test of a critical examination.

* * * * *

Herodotus and Strabo inform us that, among the Massagetæ every man had his own wife, but that all the other men of the tribe were allowed to have sexual intercourse with her.[250] The Auseans, a Libyan people, had, according to the former, their wives in common;[251] and Solinus reports the same of the Garamantians of Ethiopia.[252] Community of women is, further, alleged to have occurred among the Liburnes, Galactophagi,[253] and the ancient Bohemians.[254] And Garcilasso de la Vega asserts that, among the natives of Passau in Peru, before the time of the Incas, men had no separate wives.[255]

To these statements of ancient peoples Sir J. Lubbock adds a few others concerning modern savages.[256] "The Bushmen of South Africa," he says, "are stated to be entirely without marriage." Sir Edward Belcher tells us that, in the Andaman Islands, the custom is for the man and woman to remain together until the child is weaned, when they separate, and each seeks a new partner.[257] Speaking of the natives of Queen Charlotte Islands, Mr. Poole says that among them "the institution of marriage is altogether unknown," and that the women "cohabit almost promiscuously with their own tribe, though rarely with other tribes."[258] In the Californian Peninsula, according to Baegert, the sexes met without any formalities, and their vocabulary did not even contain the word "to marry."[259] Mr. Hyde states that, in the Pacific Islands, there was an "utter absence of what we mean by the family, the household, and the husband; the only thing possible was to keep the line distinct through the mother, and enumerate the successive generations with the several putative fathers."[260] Among the Nairs, as Buchanan tells us, no one knows his father, and every man looks on his sister's children as his heirs; a man may marry several women, and a woman may be the wife of several men.[261] The Teehurs of Oude live together almost indiscriminately in large communities, and even when two people are regarded as married the tie is but nominal.[262] It is recorded that, among the Tôttiyars of India, "brothers, uncles, nephews, and other kindred, hold their wives in common."[263] And among the Todas of the Neilgherry Hills, when a man marries a girl, she becomes the wife of all his brothers as they successively reach manhood, and they become the husbands of all her sisters when they are old enough to marry.[264]

The Kámilarói tribes in South Australia are divided into four clans, in which brothers and sisters are respectively Ipai and Ipātha, Kŭbi and Kubĭtha, Mŭri and Mātha, Kumbu and Būtha. Ipai may only marry Kubĭtha; Kŭbi, Ipātha; Kumbu, Mātha; and Mŭri, Būtha. In a certain sense, we are told, every Ipai is regarded as married, not by any individual contract, but by organic law, to every Kubĭtha; every Kŭbi to every Ipātha, and so on. If, for instance, a Kŭbi

"meet a stranger Ipātha, they address each other as spouse. A Kŭbi thus meeting an Ipātha, though she were of another tribe, would treat her as his wife, and his right to do so would be recognised by her tribe."[265] This institution, according to which the men of one division, have as wives the women of another division, the Rev. L. Fison calls "group marriage." He contends that, among the South Australians, it has given way in later times, in some measure, to individual marriage. But theoretically, as he says, marriage is still communal: "it is based upon the marriage of all the males in one division of a tribe to all the females of the same generation in another division." To this may be added a statement of the Rev. C. W. Schürmann with reference to the Port Lincoln aborigines. "As for near relatives, such as brothers," he remarks, "it may almost be said that they have their wives in common.... A peculiar nomenclature has arisen from these singular connections; a woman honours the brothers of the man to whom she is married with the indiscriminate name of husbands; but the men make a distinction, calling their own individual spouses yungaras, and those to whom they have a secondary claim, by right of brotherhood, kartetis."[266]

Speaking of the Fuegians, Admiral Fitzroy says, "We had some reason to think there were parties who lived in a promiscuous manner—a few women being with many men."[267] The Lubus of Sumatra, the Olo Ot, together with a few other tribes of Borneo, the Poggi Islanders, the Orang Sakai of Malacca, and the mountaineers of Peling, east of Celebes, are by Professor Wilken stated to be entirely without marriage.[268] The same is said by Professor Bastian to be the case with the Keriahs, Kurumbas, Chittagong tribes, Guaycurûs, Kutchin Indians, and Arawaks.[269] He states, too, that the Jolah on the island of St. Mary, according to Hewett, possess their women in common,[270] and that, according to Magalhães, the like is true of the Cahyapos in Matto Grosso.[271] We read in Dapper's old book on Africa, that certain negro tribes had neither law, nor religion, nor any proper names, and possessed their wives in common.[272] These are all the statements known to me of peoples alleged to be without marriage.

In the first place, it must be remarked that some of the facts adduced are not really instances of promiscuity. Sir Edward Belcher's statement as regards the Andamanese evidently suggests monogamy; and among the Massagetæ and the Teehurs, the occurrence of marriage is expressly confirmed, though the marriage tie was loose. As for the aborigines of the Californian Peninsula, it must be remembered that the want of an equivalent for the verb "to marry" does not imply the want of the fact itself. Baegert indicates, indeed, that marriage did occur among them, when he says that "each man took as many wives as he liked, and if there were several sisters in a family he married them all together."[273] And throughout the Pacific Islands, marriage is a recognized institution. Nowhere has debauchery been practised more extensively than

among the Areois of Tahiti. Yet Mr. Ellis assures us that, "although addicted to every kind of licentiousness themselves, each Arcoi had his own wife; ... and so jealous were they in this respect that improper conduct towards the wife of one of their own number was sometimes punished with death."[274]

As to the South Australians, Mr. Fison's statements have caused not a little confusion. On his authority several writers assert that, among the Australian savages, groups of males are actually found united to groups of females.[275] But after all, Mr. Fison does not seem really to mean to affirm the present existence of group-marriages. The chief argument advanced by him in support of his theory is grounded on the terms of relationship in use in the tribes. These terms belong to the "classificatory system" of Mr. Morgan;[276] but Mr. Fison admits that he is not aware of any tribe in which the actual practice is to its full extent what the terms of relationship imply. "Present usage," he says, "is everywhere in advance of the system so implied, and the terms are survivals of an ancient right, not precise indications of custom as it is."[277] The same is granted by Mr. Howitt.[278] Yet it will be pointed out further on to what absurd results we must be led, if, guided by such terms, we begin to speculate upon early marriage. Moreover, if a Kŭbi and an Ipātha address each other as spouse, this does not imply that in former times every Kŭbi was married to every Ipātha indiscriminately. On the contrary, the application of such a familiar term might be explained from the fact that the women who may be a man's wives, and those who cannot possibly be so, stand in a widely different relation to him.[279] It seems also as if a communism in wives among the Port Lincoln aborigines had been inferred by Mr. Schürmann chiefly from the nomenclature. Indeed, Mr. Curr, who has procured more information regarding the Australian aborigines than any other investigator, so far as I know, states that, in Australia, men and women have never been found living in a state of promiscuous intercourse, but the reverse is a matter of notoriety.[280] "It seems to me," he says, "after a careful examination of the subject, that there is not within our knowledge a single fact, or linguistic expression which requires us to have recourse to the theory of group-marriage to explain it, but that there are several ... directly at variance with that theory."[281] The Rev. John Mathew asserts also, in his recent paper on 'The Australian Aborigines,' that he fails to see that group-marriage "has been proven to exist in the past, and it certainly does not occur in Australia now."[282] At any rate, it may be asserted that such group-marriages are different from the promiscuity which is presumed to have prevailed in primitive society. And this may with even more reason be said of the marriages of the Tôttiyars, Nairs and Todas, of which at least those of the Todas have originated, I believe, in true polyandry.

Many of the assertions made as to peoples living together promiscuously are evidently erroneous. Travellers are often apt to misapprehend the manners and

customs of the peoples they visit, and we should therefore, if possible, compare the statements of different writers, especially when so delicate and private a matter as the relation between the sexes is concerned. Sir Edward Belcher's statement about the Andamanese has been disproved by Mr. Man, who, after a very careful investigation of this people, says not only that they are strictly monogamous, but that divorce is unknown, and conjugal fidelity till death not the exception but the rule among them.[283] As regards the Bushmans, Sir John Lubbock does not indicate the source from which he has taken the statement that they are "entirely without marriage;" all the authorities I have consulted, unanimously assert the reverse. Burchell was told that even a second wife is never taken until the first has become old, and that the old wives remain with the husband on the same terms as before.[284] Barrow tells us almost the same. [285] Indeed, as we have already seen, the family is the chief social institution of this people.

With reference to the Fuegians, Mr. Bridges, who has lived amongst them for thirty years, writes to me, "Admiral Fitzroy's supposition concerning parties among the natives who lived promiscuously is false, and adultery and lewdness are condemned as evil, though through the strength of animal passions very generally indulged, but never with the consent of husbands or wives, or of parents." From the description of Captain Jacobsen's recent voyage to the North-Western Coast of North America, it appears that marriage exists among the Queen Charlotte Islanders also, although the husbands often prostitute their wives.[286] As for Professor Wilken's statements about promiscuity among some peoples belonging to the Malay race, Professor Ratzel calls their accuracy in question. At least, among the Lubus, as Herr Van Ophuijsen assures us, a man has to buy his wife, just as among the other Malay peoples;[287] and Dr. Schwaner expressly says that all that we know about the Olo Ot depends on hearsay only.[288] But, according to him, they are not without marriage.[289]

Some of Professor Bastian's assertions are most astonishing. Any one who takes the trouble to read Richardson's, Kirby's, or Bancroft's account of the Kutchin, will find that polygyny, but not promiscuity, is prevalent among them, the husbands being very jealous of their wives.[290] The same is stated by v. Martius about the Arawaks, whose blood-feuds are generally owing to jealousy and a desire to avenge violations of conjugal rights.[291] The occurrence of marriage among them has also been ascertained by Schomburgk and the Rev. W. H. Brett.[292] The Guaycurûs are said by Lozano to be monogamous,[293] and so, according to Captain Lewin, are as a rule the Chittagong Hill tribes, as we shall find later on. Touching the Keriahs, Colonel Dalton affirms only that they have no word for marriage in their own language, but he does not deny that marriage itself occurs among them; on the contrary, it appears that they buy their wives.[294] The Kurumbas are stated to be without the marriage

ceremony, but not without marriage.[295] And Dapper's assertion that certain negro tribes have their women in common, has never, so far as I know, been confirmed by more recent writers. Dr. Post has found no people in Africa living in a state of promiscuity;[296] and Mr. Ingham informs me, speaking of the Bakongo, that "they would be horrified at the idea of promiscuous intercourse."

The peoples who may possibly live in a state of promiscuity have thus been reduced to a very small number. Considering the erroneousness of so many of the statements on the subject, it is difficult to believe in the accuracy of the others.[297] Ethnography was not seriously studied by the ancients, and their knowledge of the African tribes was no doubt very deficient. Pliny, in the same chapter where he states that, among the Garamantians, men and women lived in promiscuous intercourse, reports of another African tribe, the Blemmyans, that they had no head, and that the mouth and eyes were in the breast.[298] Besides, marriage is an ambiguous word. The looseness of the marital tie, the frequency of adultery and divorce, and the absence of the marriage ceremony may entitle us to say that, among many savage peoples, marriage in the European sense of the term does not exist. But this is very different from promiscuity.

Even if some of the statements are right, and the intercourse between the sexes among a few peoples really is, or has been, promiscuous, it would be a mistake to infer that these utterly exceptional cases represent a stage of human development which mankind, as a whole, has gone through. Further, nothing would entitle us to consider this promiscuity as a survival of the primitive life of man, or even as a mark of a very rude state of society. It is by no means among the lowest peoples that sexual relations most nearly approach to promiscuity. Mr. Rowney, for instance, states that, among the Butias, the marriage tie is so loose that chastity is quite unknown, that the husbands are indifferent to the honour of their wives, that "the intercourse of the sexes is, in fact, promiscuous." But the Butias are followers of Buddha, and "can hardly be counted among the wild tribes of India, for they are, for the most part, in good circumstances, and have a certain amount of civilization among them."[299] On the other hand, among the lowest races on earth, as the Veddahs, Fuegians, and Australians, the relation of the sexes are of a much more definite character. The Veddahs are a truly monogamous people, and have a saying that "death alone separates husband and wife."[300] And with reference to the Australians, Mr. Brough Smyth, states that "though the marriages of Aboriginals are not solemnized by any rites, ... it must not be supposed that, as a rule, there is anything like promiscuous intercourse. When a man obtains a good wife, he keeps her as a precious possession, as long as she is fit to help him, and minister to his wants, and increase his happiness. No other man must look with affection towards her.... Promiscuous intercourse is abhorrent to many of

them." Among the aborigines of the northern and central parts of Australia, there are certainly women wholly given up to common lewdness, and a man is said to be considered a bad host who will not lend his wife to a guest. But Mr. Brough Smyth thinks that these practices are modern, and have been acquired since the aborigines were brought in contact with the lower class of the whites, for "they are altogether irreconcilable with the penal laws in force in former times amongst the natives of Victoria."[301] It seems obvious, then, that even if there are peoples who actually live promiscuously, these do not afford any evidence whatever for promiscuity having prevailed in primitive times. Now let us examine whether the other arguments are more convincing.

* * * * *

"A further fact," Dr. Post says, "which speaks for sexual intercourse having originally been unchecked, is the wide-spread custom that the sexes may cohabit perfectly freely previous to marriage."[302]

The immorality of many savages is certainly very great, but we must not believe that it is characteristic of uncivilized races in general. There are numerous savage and barbarous peoples among whom sexual intercourse out of wedlock is of rare occurrence, unchastity, at least on the part of the woman, being looked upon as a disgrace and even as a crime.

"A Kafir woman," Barrow says, "is chaste and extremely modest;"[303] and Mr. Cousins writes to me that, between their various feasts, the Kafirs, both men and women, have to live in strict continence, the penalty being banishment from the tribe, if this law is broken. Proyart states that, among the people of Loango, "a youth durst not speak to a girl except in her mother's presence," and "the crime of a maid who has not resisted seduction, would be sufficient to draw down a total ruin on the whole country, were it not expiated by a public avowal made to the king."[304] Among the Equatorial Africans, mentioned by Mr. Winwood Reade, a girl who disgraces her family by wantonness is banished from her clan; and, in cases of seduction, the man is severely flogged.[305] In Dahomey, if a man seduces a girl, the law compels marriage, and the payment of eighty cowries to the parent or master.[306] In Tessaua, according to Dr. Barth, a fine of 100,000 kurdi is imposed on the father of a bastard child—a sum which indicates how seldom such children are born there.[307] Among the Beni-Mzab, a man who seduces a young girl has to pay two hundred francs, and is banished for four years.[308] Among the Beni-Amer, according to Munzinger, the unmarried women are very modest, though the married women believe that they are allowed everything.[309] Among the Arab girls in Upper Egypt, unchastity is made impossible by an operation when they are from three to five years old;[310] and among the Marea, continence is a scarcely less necessary virtue, as a maiden or widow who becomes pregnant is killed together with the seducer and the child.[311] As regards the Kabyles, Messrs. Hanoteau and

Letourneux assert, "Les mœurs ne tolèrent même aucune relation sexuelle en dehors du mariage.... L'enfant né en dehors du mariage est tué ainsi que sa mère."[312]

Among the Central Asian Turks, according to Vámbéry, a fallen girl is unknown.[313] Among the Kalmucks,[314] as also the Gypsies,[315] the girls take pride in having gallant affairs, but are dishonoured if they have children previous to marriage. A seducer among the Tunguses is bound to marry his victim and pay the price claimed for her.[316] In Circassia, an incontinent daughter is generally sold as soon as possible, being a disgrace to her parents.[317] Among the wretched inhabitants of Lob-nor, "immorality is severely punished."[318] And regarding the Let-htas, a Hill Tribe of Burma, Mr. O'Riley states that, until married, the youth of both sexes are domiciled in two long houses at opposite ends of the village, and "when they may have occasion to pass each other, they avert their gaze, so they may not see each other's faces."[319]

As to the aborigines of the Indian Archipelago, Professor Wilken states that side by side with peoples who indulge in great licentiousness, there are others who are remarkably chaste. Thus, in Nias, the pregnancy of an unmarried girl is punished with death, inflicted not only upon her but upon the seducer.[320] Among the Hill Dyaks, the young men are carefully separated from the girls, licentious connections between the sexes being strictly prohibited;[321] and the Sibuyaus, a tribe belonging to the Sea Dyaks, though they do not consider the sexual intercourse of their young people a positive crime, yet attach an idea of great indecency to irregular connections, and are of opinion that an unmarried woman with child must be offensive to the superior powers.[322]

By some of the independent tribes of the Philippines also, according to Chamisso, chastity is held in great honour, "not only among the women, but also among the young girls, and is protected by very severe laws;"[323]—a statement which is confirmed by Dr. Hans Meyer and Professor Blumentritt with reference to the Igorrotes of Luzon.[324]

In New Guinea, too, chastity is strictly maintained.[325] Mr. G. A. Robinson and the Catechist Clark, who lived for years with the aborigines, both declare their belief in the virtue of the young women;[326] and Dr. Finsch assures us that the natives of Dory are, in that respect, superior to many civilized nations in Europe.[327] The French naturalists and some English writers spoke highly of the morality of the young people among the Tasmanians.[328] The women of Uea, Loyalty Islands, are described by Erskine as "strictly chaste before marriage, and faithful wives afterwards."[329] In Fiji, great continence prevailed among the young folk, the lads being forbidden to approach women till eighteen or twenty years old.[330] Speaking of the aborigines of Melanesia, Dr. Codrington remarks, "It is certain that in these islands generally there was by no means that insensibility in regard to female virtue with which the

natives are so commonly charged."[331] In Samoa, the girls were allowed to cohabit with foreigners, but not with their countrymen,[332] and the chastity of the chiefs' daughters was the pride of the tribe. But Mr. Turner remarks that, though this virtue was ostensibly cultivated here by both sexes, it was more a name than a reality.[333]

With reference to the Australian natives, Mr. Moore Davis says, "Promiscuous intercourse between the sexes is not practised by the Aborigines, and their laws on the subject, particularly those of New South Wales, are very strict. When at camp, all the young unmarried men are stationed by themselves at the extreme ends, while the married men, each with his family, occupy the centre. No conversation is allowed between the single men and the girls or the married women.... Infractions of these and other laws were visited either by punishment by any aggrieved member of the tribe, or by the delinquent having to purge himself of his crime by standing up protected simply by his shield, or a waddy, while five or six warriors threw, from a comparatively short distance, several spears at him."[334] Concerning several tribes in Western Victoria, Mr. Dawson likewise states that, at the corroborees and great meetings of the tribes, unmarried adults of both sexes are kept strictly apart from those of another tribe. "Illegitimacy is rare," he says, "and is looked upon with such abhorrence that the mother is always severely beaten by her relatives, and sometimes put to death and burned. Her child is occasionally killed and burned with her. The father of the child is also punished with the greatest severity, and occasionally killed."[335]

Turning to the American peoples: among the early Aleuts, according to Veniaminof, "girls or unmarried females who gave birth to illegitimate children were to be killed for shame, and hidden."[336] Egede tells us that, among the Greenlanders, unmarried women observed the rules of modesty much better than married women. "During fifteen full years that I lived in Greenland," he says, "I did not hear of more than two or three young women, who were gotten with child unmarried; because it is reckoned the greatest of infamies."[337] According to Cranz, a Greenland maid would take it as an affront were a young fellow even to offer her a pinch of snuff in company.[338] Among the Northern Indians, girls are from the early age of eight or nine years prohibited by custom from joining in the most innocent amusements with children of the opposite sex. "When sitting in their tent," says Hearne, "or even when travelling, they are watched and guarded with such an unremitting attention as cannot be exceeded by the most rigid discipline of an English boarding-school."[339] Mr. Catlin asserts that, among the Mandans, female virtue is, in the respectable families, as highly cherished as in any society whatever.[340] Among the Nez Percés,[341] the Apaches,[342] and certain other North American peoples,[343] the women are described as remarkably chaste, the seducer being viewed by

some of them with even more contempt than the girl he has dishonoured. And Dobrizhoffer praises the Abiponian women for their virtuous life.[344]

If we add to these facts those which will be adduced further on, showing what man requires in his bride, it must be admitted that the number of uncivilized peoples among whom chastity, at least as regards women, is held in honour and, as a rule, cultivated, is very considerable. There being nothing to indicate that the morality of those nations ever was laxer, the inference of an earlier stage of promiscuity from the irregular sexual relations of unmarried people, could not apply to them, even if such an inference, on the whole, were right. But this is far from being the case: first, because the wantonness of savages, in several cases, seems to be due chiefly to the influence of civilization; secondly, because it is quite different from promiscuity.

It has been sufficiently proved that contact with a higher culture, or, more properly, the dregs of it, is pernicious to the morality of peoples living in a more or less primitive condition. In Greenland, says Dr. Nansen, "the Eskimo women of the larger colonies are far freer in their ways than those of the small outlying settlements where there are no Europeans."[345] And the Yokuts of California, amongst whom the freedom of the unmarried people of both sexes is very great now, are said to have been comparatively virtuous before the arrival of the Americans.[346] In British Columbia and Vancouver Island, "amongst the interior tribes, in primitive times, breaches of chastity on the part either of married or unmarried females were often punished with death, inflicted either by the brother or husband;" whilst, among the fish-eaters of the north-west coast, "it has no meaning, or, if it has, it appears to be utterly disregarded."[347] Again, among the Queen Charlotte Islanders the present depravation has, according to Captain Jacobsen been caused by the gold diggers who went there in the middle of this century.[348] Admiral Fitzroy observed, too, that the unchastity of the Patagonian women did not correspond with the pure character attributed to them at an earlier time by Falkner, and he thinks that "their ideas of propriety may have been altered by the visits of licentious strangers."[349] A more recent traveller, Captain Musters, observed, indeed, little immorality amongst the Indians whilst in their native wilds.[350]

There is, further, no doubt that the licentiousness of many South Sea Islanders, at least to some extent, owes its origin to their intercourse with Europeans. When visiting the Sandwich Islands with Cook, Vancouver saw little or no appearance of wantonness among the women. But when he visited them some years afterwards, it was very conspicuous; and he ascribes this change in their habits to their intercourse with foreigners.[351] Owing to the same influence, the women of Ponapé and Tana lost their modesty;[352] and the privileges granted to foreigners in Samoa have been already mentioned. Nay, even in Tahiti, so notorious for the licentiousness of its inhabitants, immorality

was formerly less than it is now. Thus, as a girl, betrothed when a child, grew up, "for the preservation of her chastity, a small platform of considerable elevation was erected for her abode within the dwelling of her parents. Here she slept and spent the whole of the time she passed within doors. Her parents, or some member of the family, attended her by night and by day, supplied her with every necessary, and accompanied her whenever she left the house. Some of their traditions," Ellis adds, "warrant the inference that this mode of life, in early years, was observed by other females besides those who were betrothed."[353]

Speaking of the tribes who once inhabited the Adelaide Plains of South Australia, Mr. Edward Stephens, who went to Australia about half a century ago, remarks, "Those who speak of the natives as a naturally degraded race, either do not speak from experience, or they judge them by what they have become when the abuse of intoxicants and contact with the most wicked of the white race have begun their deadly work. As a rule, to which there are no exceptions, if a tribe of blacks is found away from the white settlement, the more vicious of the white men are most anxious to make the acquaintance of the natives, and that, too, solely for purposes of immorality.... I saw the natives and was much with them before those dreadful immoralities were well known, ... and I say it fearlessly, that nearly all their evils they owed to the white man's immorality and to the white man's drink."[354]

The Rev. J. Sibree tells us that, among most of the tribes of Madagascar, the unchastity of girls does not give umbrage. But "there are some other tribes," he says, "more isolated, as certain of the eastern peoples, where a higher standard of morality prevails, girls being kept scrupulously from any intercourse with the other sex until they are married."[355]

Nowhere has chastity been more rigorously insisted upon than among the South Slavonians. A fallen girl among them has lost almost all chance of getting married. She is commonly despised and often punished in a very barbarous way; whilst, on the other hand, purity gives a girl a higher value than the greatest wealth. In some places, a father or a brother may even kill a man whom he finds with his daughter or sister. But Dr. Krauss assures us that this rigidity in their morals has gradually decreased, the more foreign civilization has got a footing among them.[356]

Again, Professor Ahlqvist believes that illicit intercourse between the sexes was almost unknown among the ancient Finns, as the terms used by them with reference to such connections are borrowed from other languages.[357] And Professor Vámbéry makes the same observation as regards the primitive Turko-Tartars. "The difference in morality," he says, "which exists between the Turks affected by a foreign civilization and kindred tribes inhabiting the steppes, becomes very conspicuous to any one living among the Turkomans and Kara-

Kalpaks; for whether in Africa or Asia, certain vices are introduced only by the so-called bearers of culture."[358]

Apart from such cases of foreign influence, we may perhaps say that irregular connections between the sexes have on the whole exhibited a tendency to increase along with the progress of civilization. Dr. Fritsch remarks that the Bushmans are much stricter in that matter than their far more advanced neighbours.[359] Robert Drury assures us that, in Madagascar, "there are more modest women, in proportion to the number of people, than in England."[360] Tacitus praised the chastity of the Germanic youth, in contrast to the licentiousness of the highly civilized Romans. These statements may to a certain extent be considered typical. In Europe, there are born among towns-people, on an average, twice as many bastard children, in proportion to the number of births, as among the inhabitants of the country, who generally lead a more natural life. In France, according to Wappäus, the ratio was found even so great as 15·13 to 4·24; though in Saxony, with its manufacturing country people, it was only as 15·39 to 14·64.[361] Nay, in Gratz and Munich the illegitimate births are even more numerous than the legitimate.[362] The prostitution of the towns makes the difference in morality still greater; and unfortunately the evil is growing. Almost everywhere prostitution increases in a higher ratio than population.[363] In consideration of these facts, it is almost ridiculous to speak of the immorality of unmarried people among savages as a relic of an alleged primitive stage of promiscuity.

There are several factors in civilization which account for this bad result. The more unnatural mode of living and the greater number of excitements exercise, no doubt, a deteriorating influence on morality; and poverty makes prostitutes of many girls who are little more than children. But the chief factor is the growing number of unmarried people. It is proved that, in the cities of Europe, prostitution increases according as the number of marriages decreases.[364] It has also been established, thanks to the statistical investigations of Engel and others, that the fewer the marriages contracted in a year, the greater is the ratio of illegitimate births.[365] Thus, by making celibacy more common, civilization promotes sexual irregularity. It is true that more elevated moral feelings, concomitants of a higher mental development, may, to a certain extent, put the drag on passion. But in a savage condition of life, where every full-grown man marries as soon as possible; where almost every girl, when she reaches the age of puberty, is given in marriage; where, consequently, bachelors and spinsters are of rare occurrence,—there is comparatively little reason for illegitimate relations.[366] Marriage, it seems to me, is the natural form of the sexual relations of man, as of his nearest allies among the lower animals. Far from being a relic of the primitive life of man, irregularity in this respect is an

anomaly arising chiefly from circumstances associated with certain stages of human development.

Dr. Post's argument, as I have said, is open to another objection. Free sexual intercourse previous to marriage is quite a different thing from promiscuity, the most genuine form of which is prostitution. But prostitution is rare among peoples living in a state of nature and unaffected by foreign influence.[367] It is contrary to woman's natural feelings as involving a suppression of individual inclinations. In free sexual intercourse there is selection; a woman has for one man, or for several men, a preference which generally makes the connections more durable.

Nowhere are unmarried people of both sexes less restrained than among the savage nations of India and Indo-China. Yet among these savage nations there is no promiscuity. Among the Toungtha, for instance, according to Captain Lewin, prostitution is not understood, and, when explained, it is regarded by them with abhorrence. "They draw rightly a strong distinction between a woman prostituting herself habitually as a means of livelihood, and the intercourse by mutual consent of two members of opposite sexes, leading, as it generally does, to marriage."[368] Among the Tipperahs,[369] Oráons, [370] and Kolyas[371], unmarried girls may cohabit freely with young men, but are never found living promiscuously with them. Among the Dyaks on the Batang Lupar, too, unchastity is not rare, but a woman usually confines herself to one lover. "Should the girl prove with child," says Sir Spenser St. John, "it is an understanding between them that they marry"; and the men seldom, by denying the paternity, refuse to fulfil their engagements.[372] Again, in Tonga, it was considered disgraceful for a girl to change lovers often. And in Scotland, prior to the Reformation, there was a practice called "hand-fasting," which certainly may be characterized as unrestrained freedom before marriage, but not as promiscuity. "At the public fairs," the Rev. Ch. Rogers states, "men selected female companions with whom to cohabit for a year. At the expiry of this period both parties were accounted free; they might either unite in marriage or live singly."[373]

The attempt to explain free intercourse between unmarried people as a relic of a primitive condition of general promiscuity or rather, to infer the latter from the former, must thus, in every respect, be considered a complete failure.

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Sir John Lubbock thinks that his hypothesis of "communal marriage" derives additional support from some curious customs, which he interprets as acts of expiation for individual marriage. "In many cases," he says, "the exclusive possession of a wife could only be legally acquired by a temporary recognition of the pre-existing communal rights."[374]

Thus Herodotus states that, in Babylonia, every woman was obliged once in her life to give herself up, in the temple of Mylitta, to strangers, for the satisfaction of the goddess; and in some parts of Cyprus, he tells us, the same custom prevailed.[375] In Armenia, according to Strabo, there was a very similar law. The daughters of good families were consecrated to Anaitis, a phallic divinity like Mylitta, giving themselves, as it appears, to the worshippers of the goddess indiscriminately.[376] Again, in the valleys of the Ganges, virgins were compelled before marriage to offer themselves up in the temples dedicated to Juggernaut. And the same is said to have been customary in Pondicherry and at Goa.[377]

These practices, however, evidently belong to phallic-worship, and occurred, as Mr. McLennan justly remarks, among peoples who had advanced far beyond the primitive state. The farther back we go, the less we find of such customs in India; "the germ only of phallic-worship shows itself in the Vedas, and the gross luxuriance of licentiousness, of which the cases referred to are examples, is of later growth."[378]

Ancient writers tell us that, among the Nasamonians and Augilæ, two Libyan tribes, the jus primae noctis was accorded to all the guests at a marriage.[379] Garcilasso de la Vega asserts that, in the province Manta in Peru, marriages took place on condition that the bride should first yield herself to the relatives and friends of the bridegroom.[380] In the Balearic Islands, according to Diodorous Siculus, the bride was for one night considered the common property of all the guests, after which she belonged exclusively to her husband.[381] And v. Langsdorf reports the occurrence of a very similar practice in Nukahiva.[382]

With regard to Sir J. Lubbock's interpretation of these customs, as acts of expiation for individual marriage, Mr. McLennan remarks that they are not cases of privileges accorded to the men of the bridegroom's group only, which they should be, if they refer to an ancient communal right.[383] It may also be noted that, in Nukahiva, the license was dependent upon the will of the bride. Moreover, the freedom granted to the wedding guests may be simply and naturally explained. It may have been a part of the nuptial entertainment —a horrible kind of hospitality, no doubt, but quite in accordance with savage ideas, and analogous to another custom, which occurs much more frequently; I mean the practice of lending wives.

Among many uncivilized peoples, it is customary for a man to offer his wife, or one of his wives, to strangers for the time they stay in his hut. Even this practice has been adduced by several writers as evidence of a former communism.[384] To Sir John Lubbock it seems to involve the recognition of "a right inherent in every member of the community, and to visitors as temporary members." Were this so, we should certainly have to conclude that "communal

marriage" has been very prevalent in the human race, the practice of lending wives occurring among many peoples in different parts of the world.[385] But it is difficult to see how the practice could ever have been in any way connected with communism in women for all men belonging to the same tribe. It is not always the wife that is offered; it may as well be a daughter, a sister, or a servant.[386] Thus the people of Madagascar warn strangers to behave with decency to their wives, though they readily offer their daughters;[387] and it is asserted that a Tungus "will give his daughter for a time to any friend or traveller that he takes a liking to," and if he has no daughter, he will give his servant, but not his wives.[388]

It can scarcely be doubted that such customs are due merely to savage ideas of hospitality. When we are told that, among the coast tribes of British Columbia, "the temporary present of a wife is one of the greatest honours that can be shown there to a guest;"[389] or that such an offer was considered by the Eskimo "as an act of generous hospitality;"[390] or, that "this is the common custom when the negroes wish to pay respect to their guests,"[391]—I cannot see why we should look for a deeper meaning in these practices than that which the words imply. A man offers a visitor his wife as he offers him a seat at his table. It is the greatest honour a savage can show his guest, as a temporary exchange of wives—a custom prevalent in North America, Polynesia, and elsewhere[392]—is regarded as a seal of the most intimate friendship. Hence, among the Greenlanders, those men were reputed the best and noblest tempered, who, without any pain or reluctance, would lend their friends their wives:[393] and the men of Caindu, a region of Eastern Tibet, hoped by such an offering to obtain the favour of the gods.[394] Indeed, if the practice of lending wives is to be regarded as a relic of ancient communism in women, we may equally well regard the practice of giving presents to friends, or hospitality in other respects, as a remnant of ancient communism in property of every kind.

The jus primae noctis granted to the friends of the bridegroom may, however, be derived from another source. Touching the capture of wives, Mr. Brough Smyth states that, in New South Wales and about Riverina, "in any instance where the abduction has taken place by a party of men for the benefit of some one individual, each of the members of the party claims, as a right, a privilege which the intended husband has no power to refuse."[395] A similar custom prevails, according to Mr. Johnston, among the Wa-taïta in Eastern Central Africa, though the capture here is a symbol only. After the girl has been bought by the bridegroom, she runs away and affects to hide. Then she is sought out by him and three or four of his friends. When she is found, the men seize her and carry her off to the hut of her future husband, where she is placed at the disposal of her captors.[396] In such cases the jus primae noctis is a reward for a good turn done, or perhaps, as Mr. McLennan suggests,[397]

a common war-right, exercised by the captors of the woman. If we knew all the circumstances, this explanation might prove to hold good also with regard to the right granted to the wedding-guests in the cases we have mentioned. At any rate, it must be admitted that these strange customs may be interpreted in a much simpler way than that suggested by Sir John Lubbock.

There are some instances of jus primae noctis accorded to a particular person, a chief or a priest. Thus, among the Kinipetu-Eskimo, the Ankut, or high-priest has this right.[398] Among the Caribs, the bridegroom received his bride from the hand of the Piache, or medicine-man, and certainly not as a virgin.[399] A similar custom is met with among certain Brazilian tribes, though in some of these cases it is to the chief that the right in question belongs.[400] The Spanish nobleman Andagova states that, in Nicaragua, a priest living in the temple was with the bride during the night preceding her marriage.[401] And among the Tahus in Northern Mexico according to Castañeda, the droit du seigneur was accorded to the cacique.[402]

In descriptions of travel in the fifteenth century, the aboriginal inhabitants of Teneriffe are represented as having married no woman who had not previously spent a night with the chief, which was considered a great honour.[403] The same right, according to Dr. Barth, was presumably granted to the chief of Bagele in Adamáua;[404] and, according to Herodotus, to the king of the ancient Adyrmachidae.[405] Navarette tells us that, on the coast of Malabar, the bridegroom brought the bride to the king, who kept her eight days in his palace; and the man took it "as a great honour and favour that his king would make use of her."[406] Again, according to Hamilton, a Samorin could not take his bride home for three nights, during which the chief priest had a claim to her company.[407] Sugenheim believes even that, in certain parts of France, a similar right was accorded to the higher clergy during the Middle Ages.[408]

Yet Dr. Karl Schmidt has endeavoured, in a learned work, to prove that the droit du siegneur never existed in Europe, the later belief in it being merely "ein gelehrter Aberglaube," which arose in various ways. Thus there was classical witness to ancient traditions of tyrants, who had distinguished themselves by such proceedings as that right was supposed to legalize. From various parts of the world came reports of travellers as to tribes among whom defloration was the privilege or duty of kings, priests, or other persons set apart for the purpose. A grosser meaning than the words will warrant had, besides, in Dr. Schmidt's opinion, been attached to the fine paid by the vassal to his feudal lord for permission to marry. That law, he says, which is believed to have extended over a large part of Europe, has left no evidence of its existence in laws, charters, decretals, trials, or glossaries.[409]

This is not the proper place to discuss Dr. Schmidt's hypothesis; but his arguments do not seem to be conclusive.[410] Several writers speak of estate-

owners in Russia who claimed the droit du seigneur in the last and even the present century;[411] and a friend of mine informs me that, when travelling in that country, he met with aged men whose wives had been victims of the custom. It was certainly a privilege taken by the law of might. But how in such cases shall we draw the line between might and what is properly accepted as right?

Bachofen, Giraud-Teulon, Kulischer, and other writers[412] regard the jus primae noctis accorded to a special person, as a remnant of a primitive state of promiscuity or "communal marriage." It is, in their opinion, a transformation of the ancient communal right, which was taken away from the community and transferred to those who chiefly represented it—the priest, the king, or the nobility.

But why may not the practice in question have been simply a consequence of might? It may be a right taken forcibly by the stronger, or it may be a privilege voluntarily given to the chief man as a mark of esteem,—in either case, it depends upon his authority. Indeed, the right of encroaching upon the marital rights of a subject is not commonly restricted to the first night only. Where the chief or the king has the power of life and death, what man can prohibit him from doing his will? "Quite indisputed," Dr. Holub says, with reference to the Marutse, "is the king's power to put to death, or to make a slave of any one of his subjects in any way he choses; he may take a man's wife simply by providing him with another wife as a substitute."[413] In Dahomey, all women belong to the king, who causes every girl to be brought to him before marriage, and, if he pleases, retains her in the palace.[414] Among the Negroes in Fida, according to Bosman, the captains of the king, who have to supply him with fresh wives, immediately present to him any beautiful virgin they may see; and none of his subjects dare presume to offer objections.[415] In Persia, it was a legal principle that whatever was touched by the king remained immaculate, and that he might go into the harem of any of his subjects.[416] Among the Kukis, "all the women of the village, married or single, are at the pleasure of the rajah," who is regarded by his people with almost superstitious veneration.[417] The Kalmuck priests, who are not suffered to marry, may, it is said, pass a night with any man's wife, and this is esteemed a favour by the husband.[418] And in Chamba (probably Cochin China), Marco Polo tells us, no woman was allowed to marry until the king had seen her.[419]

According to Dr. Zimmermann, it is a dogma among many Malays that the rajah has the entire disposal of the wives and children of his subjects.[420] In New Zealand, when a chief desires to take to himself a wife, he fixes his attention upon one and takes her, if need be by force, without consulting her feelings and wishes, or those of any one else.[421] In Tonga, the women of the lower people were at the disposal of the chiefs, who even used to shoot the

husbands, if they made resistance;[422] whilst in Congo, as we are told by Mr. Reade, when the king takes a fresh concubine, her husband and all her lovers are put to death.[423]

In the interesting 'Notes of a Country Clergyman' in Russkaja Stariná ('Russian Antiquity'), much light is thrown on the life of Russian landlords before the emancipation of the serfs. Here is what is said of one of them: —"Often N. I—tsch would stroll late in the evening about his village to admire the prosperous condition of his peasants; he would stop at some cottage, look in at the window, and tap on the pane with his finger. This tapping was well known to everybody, and in a moment the best-looking woman of the family went out to him.... Another landlord, whenever he visited his estate, demanded from the manager, immediately after his arrival, a list of all the grown-up girls. Then," the author continues, "the master took to his service each of the girls for three or four days, and as soon as the list was finished, he went off to another village. This occurred regularly every year."[424]

Here we have a collection of facts, belonging, as I think, to the same group as the jus primae noctis is of a chief or a priest. And it is obvious that they have nothing to do with "communal marriage." The privilege accorded to the priest, however, seems, in some cases, to have a purely religious origin. Thus, Egede informs us that the native women of Greenland thought themselves fortunate if an Angekokk, or prophet, honoured them with his caresses; and some husbands even paid him, because they believed that the child of such a holy man could not but be happier and better than others.[425] Von Martius thinks that the right granted to the medicine-man among the Brazilian aborigines is owing to savage ideas of woman's impurity.[426] And on the coast of Malabar, Hamilton says, the bride was given to the chief priest, "because the first fruits of her nuptials must be a holy oblation to the god she worships."[427]

* * * * *

Yet another group of facts is adduced as evidence for the hypothesis of ancient communism in women. Sir J. Lubbock and Professor Giraud-Teulon cite some cases of courtesans being held in greater estimation than women married to a single husband, or, at least, being by no means despised.[428] Such feelings, Sir John believes, would naturally arise "when the special wife was a stranger and a slave, while the communal wife was a relative and a free woman," and would, in some instances, long survive the social condition to which they owed their origin.[429] The courtesans are thus regarded as representatives of the communal wives of primitive times. But it seems to me much more reasonable to suppose that if, in Athens and India, courtesans were respected and sought after even by the principal men, it was because they were the only educated women.[430] Besides, as Mr. McLennan justly remarks with regard to such "communal wives," "if any inference is to be made from their

standing in Athens, in the brilliant age of Pericles, as to the state of matters in the primitive groups, proof of primitive communism in women might as well be sought in London or Paris in our own day. Far back in the interval between savagery and the age of Pericles are the heroes of Homer with their noble wedded wives."[431]

It is true that, among some uncivilized peoples, women having many gallants are esteemed better than virgins, and are more anxiously desired in marriage. This is, for instance, stated to be the case with the Indians of Quito, [432] the Laplanders in Regnard's days,[433] and the Hill Tribes of North Aracan.[434] But in each of these cases we are expressly told that want of chastity is considered a merit in the bride, because it is held to be the best testimony to the value of her attractions. There are thus various reasons why courtesans and licentious women may be held in respect and sought after, and we need not, therefore, resort to Sir John Lubbock's far-fetched hypothesis.

Chapter V — A Criticism of the Hypothesis of Promiscuity

(Continued)

We are indebted to Mr. Lewis H. Morgan for information as to the names of various degrees of kinship among no fewer than 139 different races or tribes. This collection shows that very many peoples have a nomenclature of relationships quite different from our own. Mr. Morgan divides the systems into two great classes, the descriptive and the classificatory, which he regards as radically distinct. "The first," he says, "which is that of the Aryan, Semitic, and Uralian families, rejecting the classification of kindred, except so far as it is in accordance with the numerical system, describes collateral consanguinei, for the most part, by an augmentation or combination of the primary terms of relationship. These terms, which are those for husband and wife, father and mother, brother and sister, and son and daughter, to which must be added, in such languages as possess them, grandfather and grandmother, and grandson and granddaughter, are thus restricted to the primary sense in which they are here employed. All other terms are secondary. Each relationship is thus made independent and distinct from every other. But the second, which is that of the Turanian, American Indian, and Malayan families, rejecting descriptive phrases in every instance, and reducing consanguinei to great classes, by a series of apparently arbitrary generalizations, applies the same terms to all the members of the same class. It thus confounds relationships, which, under the descriptive system, are distinct, and enlarges the signification both of the primary and secondary terms beyond their seemingly appropriate sense."[435]

The most primitive form of the classificatory group is the system of the "Malayan family,"[436] which prevails among the Hawaiians, Kingsmill Islanders, Maoris, and, presumably, also among several other Polynesian and Micronesian tribes.[437] According to this system, all consanguinei, near and remote, are classified into five categories. My brothers and sisters and my first, second, third, and more remote male and female cousins, are the first category. To all these without distinction I apply the same term. My father and mother, together with their brothers and sisters, and their first, second, and more remote cousins, are the second category. To all these without distinction I apply likewise the same term. The brothers, sisters, and several cousins of my grandparents I denominate as if they were my grandparents; the cousins of my sons and daughters, as if they were my sons and daughters; the grandchildren of my brothers and sisters and their several cousins, as if they were my own grandchildren. All the individuals of the same category address each other as if they were brothers and sisters. Uncleship, auntship, and cousinship being ignored, we have, as far as the nomenclature is considered, only grandchildren.[438]

From this system of nomenclature all the others belonging to the classificatory group have, according to Mr. Morgan, been gradually developed. The system of the Two-Mountain Iroquois differs from that of the Hawaiians essentially in two respects only, the mother's brother being distinguished by a special term, and so also a sister's children. The Micmac system is somewhat more advanced. Not only does a man call his sister's son his nephew, but a woman applies the same term to her brother's son; and not only is a mother's brother termed an uncle, but also the father's sister is distinguished by a special term, as an aunt. A father's brother is called a "little father;" and a mother's sister, a "little mother." Still more advanced is the system of the Wyandots, which may be regarded as the typical system of the Indians.[439] A mother's brother's son and a father's sister's son are no longer called by the same terms as brothers, but are recognized as cousins; and women apply to their mother's brother's grandsons no longer the same term as to their sons, but call them nephews.

It is needless to enter into further details. Those who shrink from the trouble of reading through Mr. Morgan's extensive tables, will find an excellent summary of them in the fifth chapter of Sir John Lubbock's great work on 'The Origin of Civilization.' It may, however, be added that the most advanced system of the classificatory group is that of the Karens and Eskimo, which differs from our own in three respects only. The children of cousins are termed nephews; the children of nephews, grandchildren; and a grandfather's brothers and sisters, respectively, grandfathers and grandmothers. "Hence," says Sir John Lubbock, "though the Karens and Eskimo have now a far more correct system of nomenclature than that of many other races, we find, even in this, clear

traces of a time when these peoples had not advanced in this respect beyond the lowest stage."[440]

From these systems of nomenclature Mr. Morgan draws very far-reaching conclusions, assuming that they are necessarily to be explained by early marriage customs. Thus, from the "Malayan system," he infers the former prevalence of "marriage in a group" of all brothers and sisters and cousins of the same grade or generation; or, more correctly, his case is, that if we can explain the "Malayan system" on the assumption that such a general custom once existed, then we must believe that it did formerly exist. "Without this custom," he says, "it is impossible to explain the origin of the system from the nature of descents. There is, therefore, a necessity for the prevalence of this custom amongst the remote ancestors of all the nations which now possess the classificatory system, if the system itself is to be regarded as having a natural origin."[441] The family resulting from this custom he calls, in his latest work, the "consanguine family," and in this, consisting of a body of kinsfolk, within which there prevailed promiscuity, or "communal marriage," between all men and women of the same generation, the family in its first stage is recognized. [442] Mr. Morgan believes, however, that as a necessary condition antecedent to this form of the family, promiscuity, in a wider sense of the term, may be theoretically deduced, though, as he says, "it lies concealed in the misty antiquity of mankind beyond the reach of positive knowledge."[443]

It is needless here to consider whether the last conclusion holds good. I shall endeavour to prove that Mr. Morgan's inference of a stage of promiscuous intercourse even within the prescribed limits is altogether untenable. All depends on the point whether the "classificatory system" is a system of blood-ties, the nomenclature having been founded on blood-relationship, as near as the parentage of individuals could be known. Mr. Morgan assumes this, instead of proving it.

Yet in the terms themselves there is, generally, nothing which indicates that they imply an idea of consanguinity. Professor Buschmann has given us a very interesting list of the names for father and mother in many different languages. [444] The similarity of the terms is striking. "Pa," "papa," or "baba," for instance, means father in several languages of the Old and New World, and "ma," "mama," means mother. The Tupis in Brazil have "paia" for father, and "maia" for mother;[445] the Uaraguaçú, respectively, "paptko" and "mamko."[446] In other languages the terms for father are "ab," "aba," "apa," "ada," "ata," "tata"; those for mother, "ama," "emä," "ana," "ena," &c. According to Buschmann, there are four typical forms of words for each of these ideas: for father, "pa," "ta," "ap," "at"; for mother, "ma," "na," "am," "an." Sometimes, however, the meaning of the types is reversed. Thus, in Georgian,[447] as well as in the Mahaga language

of Ysabel,[448] "mama" stands for father; whilst the Tuluvas in Southern India call the father "amme," and the mother "appe."[449]

The terms used often fall outside of the types mentioned. In the Lifu tongue, for example, one term for father is "kaka;"[450] in the Duauru language of Baladea, "chicha";[451] in the Maréan tongue, "chacha" or "cheche."[452] Again, among the Chalcha Mongols and some related peoples, mother is "ekè."[453] In the Kanúri language, of Central Africa, the mother is called "ya";[454] while the Kechua in Brazil call the father "yaya."[455] Among the Bakongo, as I am informed by Mr. Ingham, "se" means father; in Finnish, "isä." Again, by the Brazilian Bakaïri, the mother is called "ise";[456] and, by the people of Aneiteum, New Hebrides, "risi."[457]

Similar terms are often used for other relationships. The Greek, "πάππος" signifies grandfather, and "μάμμα" grandmother. In the Kanúri language, "yaya" stands for elder brother;[458] and, in Lifuan, "mama" and "dhina" are terms for brother, whilst mother is "thine."[459]

The origin of such terms is obvious. They are formed from the easiest sounds a child can produce. "'Pa-pa,' 'ma-ma,' 'tata,' and 'apa,' 'ama,' 'ata,'" Professor Preyer says, "emerge originally spontaneously, the way of the breath being barred at the expiration, either by the lips (p, m), or by the tongue (d, t)."[460] Yet the different races vary considerably with regard to the ease with which they produce certain sounds. Thus the pronunciation of the labials is very difficult to many Indians,[461] on account of which their terms for father, mother, or other near kinsfolk, often differ much from the types given by Professor Buschmann.

It is evident that the terms borrowed from the children's lips have no intrinsic meaning whatever. Hence, if a Bakaïri child calls its father and father's brother "tsogo," its mother and mother's sister "tsego";[462] if a Macúsi names his paternal uncle "papa" as well as his father, and an Efatese names his father and all the tribe brothers of his father "ava" or "tama";[463] if the Dacotahs apply the term "ahta" not only to the father, but also to the father's brother, to the mother's sister's husband, to the father's father's brother's son, &c., and the term "enah" not only to the mother, but also to the mother's sister, to the mother's mother's sister's daughter, &c.;[464] if, among the New Caledonians, an uncle, taking the place of a father, is called "baba" like the father himself, and an aunt is called "gnagna" like a mother;[465] if, as Archdeacon Hodgson of Zanzibar, writes to me, a native of Eastern Central Africa uses the words "baba" and "mama" not only for father and mother respectively, but also, very commonly, for "any near relationship or even external connection;" if, finally, the Semitic word for father, "ab" ("abu"), is not only used in a wide range of senses, but, to quote Professor Robertson Smith, "in all dialects is used in senses quite inconsistent with the idea that procreator is the radical meaning of the

word,"[466]—we certainly must not, from these designations, infer anything as to early marriage customs.

Of course there are other terms applied to kinsfolk besides words taken from the lips of children, or words derived from these. But though considerable, their number has been somewhat exaggerated. Thus, for instance, Professor Vámbéry, in his work upon the primitive culture of the Turko-Tartars, says that the terms for mother, "ana" or "ene" have originally the meaning of woman or nurse, being derived from the roots "an" and "en."[467] Exactly the reverse seems to be the fact, the terms for mother being the primitive words. In the same way, I cannot but think that Professor Max Müller and several other philologists are in error in deriving "pitár," "pater," "father," from the root "pa," which means to protect, to nourish; and "mâtár," "mater," "mother," from the root "ma," to fashion.[468] It seems, indeed, far more natural, as has been pointed out by Sir J. Lubbock and others, that the roots "pa," to protect, and "ma," to fashion, come from "pa," father, and "ma," mother, and not vice versa. [469] I am the more inclined to accept this explanation, as Mr. A. J. Swann informs me, from Kavala Island, Lake Tanganyika, that among the Waguha, the words "baba," and "tata," which mean father, also have the meaning of protector, provider.

I do not deny that relationships—especially in the collateral and descending lines—are in some cases denoted by terms derived from roots having an independent meaning; but the number of those that imply an idea of consanguinity does not seem to be very great. Mr. Bridges writes that, among the Yahgans, "the names 'imu' and 'dabi'—father and mother—have no meaning apart from their application, neither have any of their other very definite and ample list of terms for relatives, except the terms 'macu' and 'macipa' son and daughter. These terms refer to 'magu' which means parturition; 'cipa' ('keepa') signifies woman or female." In Bakongo, according to Mr. Ingham, "se" and "tata" denote father; "mama," "mbuta," and "ngudi," mother; "nfumu," elder brother or sister; "mbunzi," younger brother; and "mbusi," younger sister. "Nfumu" means also Sir, chief; "mbuta" means "the one who bore," from "buta," or "wuta," to beget; and "ngudi," "the one we descended from." Again, Mr. Radfield informs me that, in the language of Lifu, the term for father means root; the term for mother, foundation or vessel; the term for sister, forbidden or "not to be touched;" and the terms for eldest and younger brother, respectively, ruler and ruled. It is possible—I should even say probable—that, in these instances also, the designations for relationships are the radical words. Besides, it should be observed that, in Yahgan, "the terms for relatives are strictly reserved for such, neither are they interchanged," and that in Bakongo, the terms "tata" and "mama" are used as signs of respect to any one, whilst the terms "mbuta" and "ngudi" seem to be applied exclusively to the mother.

Not only has Mr. Morgan given no evidence for the truth of his assumption that the "classificatory system" is a system of blood-ties, but this assumption is not even fully consistent with the facts he has himself stated. It is conceivable that uncertainty as regards fatherhood might have led a savage to call several men his fathers, but an analogous reason could never have induced him to name several women his mothers. Hence, if a man applies the same term to his mother's sisters as to his mother, and he himself is addressed as a son by a woman who did not give birth to him, this evidently shows that the nomenclature, at least in certain cases, cannot be explained by the nature of descent.[470]

There can be scarcely any doubt that the terms for relationships are, in their origin, terms of address. "The American Indians," says Mr. Morgan, "always speak to each other, when related, by the term of relationship, and never by the personal name of the individual addressed."[471] From a psychological point of view, it would, indeed, be surprising if it could be shown that primitive men, in addressing all the different members of their family or tribe, took into consideration so complicated a matter as the degree of consanguinity. Can we really believe that a savage whose intelligence, perhaps, was so deficient that he was scarcely able to count his own fingers, applied the same term to his cousins as to his brothers, because he was not certain whether, after all, they were not his brothers and that, when he did make a distinction between them, he did so because they were begotten by different fathers? Facts show that savages generally denominate their kindred according to much simpler principles, the names being given chiefly with reference to sex and age, as also to the external or social, relationship in which the speaker stands to the person whom he addresses.

In every language there are different designations for persons of different sexes. In the rudest system of nomenclature, the Hawaiian, father and other kinsmen of the same generation are called "makua kana;" mother, mother's sisters, father's sisters, &c., "makua waheena," "kana" and "waheena" being the terms for male and female. A son is called "kaikee kana," a daughter "kaikee waheena," whilst "kana" alone is applied to husband, husband's brother, and sister's husband, and "waheena" to wife, wife's sister, brother's wife, &c.

There are also separate terms in every language for relations belonging to different generations. Among the lower races especially, age, or, more exactly, the age of the person spoken to compared with that of the speaker, plays a very important part in the matter of denomination. According to Dr. Davy, the Veddahs appear to be without names; "a Veddah interrogated on the subject, said, 'I am called a man: when young, I was called the little man: and when old, I shall be called the old man.'"[472] The Hawaiians, as we are informed by Judge Andrews, have no definite general word for brother in common use.

But "kaikuaána" signifies any one of my brothers, or male cousins, older than myself, I being a male, and any one of my sisters, or female cousins, older than myself, I being a female; whilst "kaikaina" signifies a younger brother of a brother, or a younger sister of a sister.[473] Such distinguishing epithets applied to older and younger are, in fact, very frequently met with among uncivilized peoples. Thus, touching the Andamanese, Mr. Man states that "brothers and sisters speak of one another by titles that indicate relative age: that is, their words for brother and sister involve the distinction of elder or younger." A like system is adopted by them in respect to half-brothers, half-sisters, cousins, brothers-in-law, and sisters-in-law.[474] In certain languages, too, there are special terms for an uncle on the father's side older than the father, and for an uncle younger than he;[475] and in the Fulfúlde tongue, the age of the uncles is so minutely specified, that the first, second, third, fourth, and fifth uncle, on both the father's and the mother's side, are each called by a particular name. [476]

The wider meaning in which many terms for kinship are used bear witness in the same direction. The Rev. J. Sibree states that, in Hova, "ray," father, does not take the sense the corresponding word in many Semitic languages has, of "maker" of a thing, but it is used in a wide sense as an elder or superior; and "rény," mother, is also used in a wide sense as a respectful way of addressing an elderly woman.[477] Mr. Swann writes to me that, among the Waguha, West Tanganyika, men advanced in years are termed "baba," father, whilst, in other parts of Equatorial Africa, according to Mr. Reade, old men are addressed as "rera," father, and old women as "ngwe," mother.[478] The Russian "batushka" and "matushka," as also the Swedish "far" and "mor," are often used in a similar way. Again, Mr. Cousins asserts that, among the natives of Cis-Natalian Kafirland, the terms for father, mother, brother, and sister, are not restricted to them only, but are applied equally to other persons of a similar age, whether related or otherwise. "'Bawo,' father," he says, "means elder or older, 'bawo-kulu' means a big-father, one older than father." Probably "bawo," as belonging to the type "pa," was originally used as a term of address, from which the sense of elder or older was derived; but this does not interfere with the matter in question. The Rev. E. Casalis, writing of the Basutos, states that "in addressing a person older than one's self, one says, 'My father, my mother;' to an equal, 'My brother;' and to inferiors, 'My children.'"[479] The Finnish "isä" and the Votyak "ai," father, the Lappish "Aja," and the Esthonian "äi," grandfather, are evidently related to, and probably the roots of, the Finnish "iso" and "äijä" which mean big.[480] The Chukchi use, besides "atta" for father and "mámang" for mother, "empynátchyo" and "émpyngau" respectively, which obviously have the same root as "émpytchin," elder or older.[481] The Brazilian Uainumá call a father "paii," but also "pechyry," i.e., old.[482] "Les jeunes Australiens," says

Bishop Salvado, "ont coutume d'appeler 'mama' ou 'maman' (c'est-à-dire-père) tous les vieillards, comme aussi 'N-angan' (ou mère) les femmes avancées en âge."[483] According to Nicolaus Damascenus, the Galactophagi denominated "all old men fathers; young men, sons; and those of equal age, brothers."[484] In German, the parents are "die Eltern," the older ("die Aelteren"), and they are also called familiarly "die Alten;" the father, "der Alte;" and the mother, "die Alte" or "Altsche."[485] Again, among the North American Indians, old people are very commonly named grandfathers and grandmothers;[486] whilst the Finnish "ämmä" does not signify grandmother only, but old woman in general.[487] Among the Tsuishikari Ainos, the maternal grandfather and grandmother of a child are called both by him, and his father, "henki" and "unarabe" respectively.[488]

As to the collateral line, it should be observed that, in Ćagatai, an elder sister is called "egeći," which actually means old woman "ege," old, big; "eći," woman, sister.[489] In Hungarian, where "bátya" stands for elder brother, an uncle is "nagybátya," i.e., a big elder brother.[490] Among many Ural-Altaic peoples, the same term is applied to an elder brother as to an uncle, to an elder sister as to an aunt.[491] Were we to follow Mr. Morgan's way of reasoning, we should, from this nomenclature, come to very curious conclusions as to the early marriage customs of the peoples in question.

Again, in the Galibi language of Brazil, "tigami" signifies young brother, son, and little child indiscriminately;[492] and several languages have no other words for son and daughter than those for lad and girl.[493] Thus, in Hawaiian, a son is called male child, or more properly, little male; and a daughter, female child or girl.[494] Mr. George Bridgman states that, among the Mackay blacks of Queensland, the word for daughter is used by a man for any young woman belonging to the class which his daughter would belong to if he had one.[495] And, speaking of the South Australians, Eyre says, "In their intercourse with each other, natives of different tribes are exceedingly punctilious and polite; ... almost everything that is said is prefaced by the appellation of father, son, brother, mother, sister, or some other similar term, corresponding to that degree of relationship which would have been most in accordance with their relative ages and circumstances."[496]

All those names, refer, as previously mentioned, not to the absolute, but to the relative, age of the person addressed. Often, too, there is a certain relativity in the use of words denominating sex. Mr. Dall remarks, for instance, that among the Eskimo, the form of the terms of relationship "appears to depend in some cases more on the sex of the speaker than on that of the person to whom the term refers." In Eastern Central Africa, "if a man have a brother and a sister, he is called one thing by the brother, but quite a different thing by the

sister."[497] And several other instances of the same kind are to be found in Mr. Morgan's tables.

As for the third factor influencing the terms of address—i.e., the social relationship which exists between the addresser and the one addressed,—it is obvious that different designations are applied to enemies and friends, to strangers and members of the family-circle, nay, generally, to persons to whom one stands in an altogether different external relationship. The importance of this factor is evident from several statements. Thus, among the Hovas, according to Mr. Sibree, the words for brother and sister "are also used widely for any person whom one meets and desires to act towards in a friendly manner."[498] The Fuegians says Mr. Bridges, form certain kinds of friendships, and "speak of aunts, uncles, brothers, sisters, cousins, nieces and nephews, &c., which are only so through the friendships established."[499] Among the Waguha, strangers are called "ndugu," brother, if of the same tribe;[500] and Mr. Hartshorne tells us that the Veddahs applied to him the term "hura," or cousin. [501] We can understand, then, why the same name, as a rule, is used by the savage to denote just the persons of the same sex and of like age who belong to his own family-circle; and why, as a consequence, the nomenclature is rich or poor according as that circle is small or large. The Yahgans, for instance, who live in families rather than in tribes, have a very definite list of terms for kinsfolk. They have different appellations for nephews and nieces on the brother's side, and nephews and nieces on the sister's side, and their words for uncle and aunt differ according as this relationship is paternal or maternal. They have also special terms for father-, mother-, son-and daughter-, brother-and sister-in-law.[502] On the other hand, the larger, the body of kinsfolk that keep closely together, and the less it is differentiated, as regards the functions of its various members, the more comprehensive are generally the terms of address. The "classificatory system of relationship" must, therefore, have emerged at a time when the separate families had already united in larger bodies.

The same principle explains how it happens that a maternal uncle is almost always distinguished from a father by a separate term, whilst this is not the case with an uncle on the father's side, the former generally living in another community from his nephew, and, besides, very frequently standing to him in a quite peculiar relationship through the rules of succession. It may be fairly assumed, too, that a mother's sister much oftener than a father's sister is called a mother, because sisters, among savages, keep as a rule, far more closely together, when married, than brothers and sisters; sometimes even, especially among the North American Indians, they are the wives of the same man. If we add to this that a father's brother's son and a mother's sister's son are more commonly addressed as brothers than as father's sister's son and a mother's brother's son, it becomes obvious to how great an extent the nomenclature is

influenced by external relations. But as a certain kind of external relationship is invariably connected with a certain degree, or certain degrees, of blood-relationship, the designations given with reference to the former have been taken as terms for the latter.

The basis on which Mr. Morgan has built his hypothesis must be considered, then, altogether untenable.[503] It cannot be proved that, where the "classificatory system" prevails, the nomenclature was intended to express the degree of consanguity so exactly as he assumes, or that it had originally anything whatever to do with descent. On the contrary, I have endeavoured to show that the case was probably just the reverse; so that no inference regarding early marriage customs is to be drawn from the terms for relationships. Even now, in Spanish, a brother's great-grandson is called grandson; in Bulgarian, as also in Russian, a father's father's brother is termed a grandfather, and a father's father's sister a grandmother; the Greek "ἀνεψιός" appears to have been applied to a nephew, a grandson, and a cousin; "neef," in Dutch, still expresses these three relationships indiscriminately; in Flemish and Platt Deutsch, "nichte" is applied to a female cousin as well as to a niece; and Shakspeare, in his will, describes his granddaughter, Susannah Hall, as "my niece."[504] Surely, nobody would look upon these designations as relics of ancient times, when there really might have been some uncertainty as to kinship in the direction which the terms indicate. Mr. Morgan himself admits that, in Latin, "nepos" did not originally signify "either a nephew, grandson or cousin, but that it was used promiscuously to designate a class of persons next without the primary relationships."[505]

* * * * *

Thirty years ago, in a work of prodigious learning,[506] the Swiss jurist, Dr. Bachofen, drew attention to the remarkable fact that a system of "kinship through mothers only" prevailed among several ancient peoples. Moreover, partly from actual statements of old writers, partly from traditions and myths, he came to the conclusion that such a system everywhere preceded the rise of "kinship through males." A few years later, though quite independently of him, Mr. McLennan set forth exactly the same hypothesis, being led to it chiefly by extensive studies in modern ethnology. While, however, Bachofen explained the phenomenon as a consequence of the supremacy of women, Mr. McLennan regarded it as due to the uncertain paternity which resulted from early promiscuity. "It is inconceivable," he says, "that anything but the want of certainty on that point could have long prevented the acknowledgment of kinship through males; and in such cases we shall be able to conclude that such certainty has formerly been wanting—that more or less promiscuous intercourse between the sexes has formerly prevailed. The connection between these two things —uncertain paternity and kinship through females only, seems so necessary—

that of cause and effect—that we may confidently infer the one where we find the other."[507]

It must be observed that the facts adduced as examples of what Mr. McLennan calls "kinship through females only" in most instances imply, chiefly, that children are named after their mothers, not after their fathers, and that property and rank succeed exclusively in the female line. If these customs were to be explained as relics of ancient promiscuity, we certainly should have to admit that such a state was formerly very prevalent in the human race. Yet we could not be sure that it prevailed universally. For, though the number of peoples among whom descent and inheritance follow the mother's side only, is very considerable,[508] the number of those among whom the male line is recognized, is scarcely less—even apart from the civilized nations of Europe and Asia. At present, when anthropologists affirm with so much assurance that a system of exclusive "kinship through females" prevailed everywhere before the tie of blood between father and child had found a place in systems of relationships, it seems appropriate to give a list of peoples among whom such a system does not prevail—a list, however, which cannot pretend to completeness.

Starting, then, with North America, which is acknowledged to be, or to have been, one of the chief centres of "mother-right," or metrocracy, we meet there with many aboriginal nations among whom a son, as a rule takes the father's name and becomes his heir.[509] Thus Cranz states that, among the Eskimo of Greenland, "when a husband dies, his eldest son inherits his house, tent, and woman's boat, and besides must maintain the mother and children, who share the furniture and clothes amongst themselves."[510] Among the Indians bordering on the south-east coast of the river St. Lawrence, according to Heriot, the eldest son took the name of his father with the addition of one syllable.[511] The Californian tribes[512] and the Dacotahs[513] recognized chieftainship as hereditary in the male line; and, with reference to the latter, Mr. Prescott remarks that they cannot well forget relationships, as the names of father and mother are both recollected for three or four generations.[514] Among the Ahts, the eldest son takes all the property left by his father, and the head-chiefs rank is hereditary in the male line.[515] The paternal system prevails, moreover, in thirteen other tribes mentioned by Mr. Frazer in his essay on "Totemism."[516]

In Mexico, Yucatan, San Salvador, Honduras, and Nicaragua, succession ran from father to son; and in Vera Paz, according to Las Casas, kinship was so exclusively recognized in the male line, that the people there thought the most remote kin in their own lineage to be more closely related than the daughter of their mother, provided she was not of the same father. On the other hand, Piedrahita tells us that, among the Chibchas, the sons of sisters, and, in default of such, the brothers of the king, were the heirs to the crown of Bogota, but that

the sons had a right to the personal property of their father; whilst, according to Herrera, the property was inherited by the brothers, and if there were none living, by the sons of those who were dead.[517]

Among the Caribs, kinship was reckoned in the female line, but the authority of the chiefs was hereditary in the male line only, the children of sisters being excluded from the succession.[518] Among the Macas Indians in Ecuador, property descends from father to son;[519] among the Guaycurûs, Abipones, and Araucanians, nobility, or chieftainship, was hereditary in the male line; [520] and the Brazilian aborigines, or at least some of them, laid particular stress upon kinship through fathers.[521] Again, with reference to the Yahgans of Tierra del Fuego, Mr. Bridges writes, "A child belongs equally to the clan of its father and mother as regards duty of revenge, but is always reckoned a member of the father's clan only. Children are generally named after their grandparents, paternal or maternal indifferently. They are quite as much attached to their mother's relatives and these to them, as to their paternal relatives; the only difference is that they are integral parts of the father's clan, not of the mother's." Speaking of the same people, M. Hyades remarks, "L'héritage se transmet à l'époux survivant, ou à défaut, au fils aîné."[522] In short, the paternal system, so far as we know, predominates among the aborigines of South America.

Passing to the Pacific Islands, we find that, though rank and clan are commonly inherited there through the mother, property generally goes in the male line. In Tonga, the son succeeds his father in homage and title,[523] and here, as well as in Fiji, on the father's death, his possessions descend to his children. [524] Ellis tells us that, in Tahiti, the child of a chief was invested, soon after its birth, with the name and office of its father,[525] and in the case of there being no children, the brother of the deceased assumed the government. In other families property always went to the eldest son.[526] Among the Hawaiians, the rank of the principal and inferior chiefs, the offices of the priests, as also other situations of honour and influence, descended from father to son,[527] although on the whole, the female line predominated.[528] In the Hervey Islands, children belonged either to the father's or mother's clan, according to arrangement; usually, however, the father had the preference.[529] In New Caledonia, kinship is reckoned in the male line,[530] and in Lifu, as Mr. Radfield informs me, children belong to the paternal clan. In the Caroline Group, landed property succeeds mostly from father to son, children are named after their father's father or mother's father, and, apparently, the rank of the father influences that of the son, at least if he be a chief.[531] Among the Rejangs[532] and Bataks[533] of Sumatra, as also in several other islands belonging to the Indian Archipelago,[534] and in New Guinea,[535] the male line prevails. In the Kingsmill Islands, "if a chief has several children by different wives, the son of the mother of the highest rank is the successor."[536] And, in New Zealand,

nobility was inherited both in the male and female line; but on the death of a man, his eldest son took the family name which his father had held before him.[537]

Australian children are generally named after their mother's clan; but this is not the case in every tribe.[538] Among the Gournditch-mara, Turra, Moncalon, Torndirrup, and some other tribes, the male line prevails.[539] With reference to the Narrinyeri, the Rev. G. Taplin states that a man's children belong to his tribe (i.e. clan), and not to their mother's; that property descends from father to son, and that, in case of a man dying without issue of his own, his possessions are always transmitted to the brother's children.[540] Again, in the Dieyerie tribe of South Australia, the sons take the father's clan, the daughters the mother's.[541] Even where children are named after their mother, inheritance may go from father to son. Thus, among the West Australians, the hunting ground or landed property descends in the male line, though "children of either sex always take the family name of their mother."[542]

Among the Todas, all children belong to the father's family, and inheritance runs through males only.[543] The same is the case with most of the Indian Hill Tribes: either all the sons dividing their father's property equally, as among the Gonds, Bodo, and Dhimáls; or the eldest son getting the largest share, as among the Kandhs, Karens, and Nagas; or the youngest born male being the only heir, as among the Hos; or the favourite son succeeding without reference to age, as among the Mishmis.[544] Among the Paháriás, too, sons inherit, and nephews by sisters get no share.[545] The law of succession among the Singphos gives to the eldest son all the landed property of the father, to the youngest all his personal property, while the rest inherit nothing.[546] Among the Santals, children belong to the father's clan;[547] and the same is the case with the offspring of intermarriages of Lepchas and Limbus and Butias.[548] Touching the Karens, Dr. A. Bunker writes to me, "A child takes a name of its own, and of neither of the parents; but usually the father, being the stronger, takes the child in case of separation. It is regarded as belonging to both parents, so far as blood goes." If we add to this that the male line prevails in Arabia,[549] Tibet,[550] throughout Russian Asia,[551] and among the Ainos,[552] it must be admitted that the system of "kinship through females only" is of very rare occurrence in Asia, being restricted, so far as I know, to a few parts of India, Ceylon, and the Malay Archipelago.[553]

It is much more prevalent among the African races. Yet, even among them, there are many instances where succession runs in the male line. A king or chief of the Somals[554] and Ba-kwileh[555] is succeeded by his son. Among the Fulah, this dignity is transmitted to the brother, while, in other instances, succession goes from father to son.[556] Among the Negroes of the Gold Coast, according to Bosman, the eldest son succeeded his father in office, though

kinship was reckoned through the mother all along this coast, except at Accra.[557] Dr. A. Sims writes that, among the Bateke, "the child is considered as belonging to the father and mother equally," and takes the grandfather's or grandmother's name. Among the Waguha, according to Mr. Swann, children are generally named after the father. In Lánda, the eldest son inherits all his father's possessions, wives included.[558] Among the Damaras, whose divisions into clans are derived from the mother, the eldest son of the chief wife, nevertheless, is the successor of his father;[559] and the same rule prevails among the Bechuanas.[560] The Rev. A. Eyles states that all Zulu children belong to the father's tribe, and are called by his name or by the name of some of his ancestors.[561] According to Mr. Cousins,[562] this is essentially true of various Kafir tribes, the first son, however, never being named after the grandfather, but always after the father. Warner, Brownlee, and E. v. Weber assert also that, among the people, inheritance passes from father to son.[563] Le Vaillant and Kolben state the same with reference to the Hottentots and Bushmans;[564] and Andersson affirms that, among the Namaquas, daughters take the father's name, sons the mother's.[565] Finally, in the part of Madagascar where Drury was, kinship does not seem to have been, in every case, reckoned through the female, though in that island children generally follow the condition of the mother.[566]

As for ancient peoples, Bachofen has adduced from the works of classical writers evidence for the uterine line having prevailed among several of them. But, to quote Sir Henry Maine, "the greatest races of mankind, when they first appear to us, show themselves at or near a stage of development in which relationship or kinship is reckoned exclusively through males."[567] Several writers have, it is true, endeavoured to prove that, among the primitive Aryans, descent was traced through females only;[568] but the evidence does not seem to be conclusive. Much importance has been attributed to the specially close connection which, according to Tacitus, existed between a sister's children and their mother's brothers;[569] but Dr. Schrader observes that, in spite of this prominent position of the maternal uncle in the ancient Teutonic family, the patruus distinctly came before the avunculus, the agnates before the cognates, in testamentary succession. He also suggests that, when the head of a household died, the women of his family passed under the guardianship of the eldest son, and that a woman's children had therefore, quite naturally, a peculiarly intimate relation to their maternal uncle.[570] It is safe to say with Professor Max Müller, that we can neither assert nor deny that in unknown times the Aryans ever passed through a metrocratic stage.[571]

Even if it could be proved—which is doubtful—that, in former times, a system of "kinship through females only," fully developed, prevailed among all the peoples whose children take the mother's name and are considered to belong

to her clan, though succession runs in the male line, we should still have to account for the fact that a large number of peoples exhibit no traces of such a system.[572] And to them belong many of the rudest races of the world—such as the aborigines of Brazil, the Fuegians, Hottentots, Bushmans, and several very low tribes in Australia and India. The inference that "kinship through females only" has everywhere preceded the rise of "kinship through males," would, then, be warranted only on condition that the cause, or the causes, to which the maternal system is owing, could be proved to have operated universally in the past life of mankind. From Mr. McLennan's point of view, such an inference would be inadmissible, as he cannot prove the former occurrence of a universal stage of promiscuity or polyandry, leading to uncertain paternity—the cause to which he attributes that system.

Yet it is far from being so inconceivable as Mr. McLennan assumes, that "anything but the want of certainty on that point could have long prevented the acknowledgment of kinship through males."[573] Paternity, as Sir Henry Maine remarks, is "matter of inference, as opposed to maternity, which is matter of observation."[574] Hence it is almost beyond doubt that the father's participation in parentage was not recognized as soon as the mother's.[575] Now, however, there does not seem to be a single people which has not made the discovery of fatherhood. In reply to my question whether the Fuegians consider a child to descend exclusively or predominantly from either of the parents, Mr. Bridges certainly writes that, according to his idea, they "consider the maternal tie much more important than the paternal, and the duties connected with it of mutual help, defence, and vengeance are held very sacred." But it is doubtful whether this refers to the mere physiological connection between the child and its parents. Dr. Sims informs me that, among the Bateke, the function of both parents in generation is held alike important, and the Waguha of West Tanganyika, as Mr. Swann states, also recognize the part taken by both. The same is asserted by Archdeacon Hodgson concerning certain other tribes of Eastern Central Africa, though, among them, children take the name of the mother's tribe. Again, the Naudowessies, according to Carver, had the very curious idea that their offspring were indebted to their father for their souls, the invisible part of their essence, and to the mother for their corporeal and visible part; hence they considered it "more rational that they should be distinguished by the name of the latter, from whom they indubitably derive their being, than by that of the father, to which a doubt might sometimes arise whether they are justly entitled."[576] Moreover, it seems as if the father's share in parentage, once discovered, was often exaggerated. Thus, referring to some tribes of New South Wales, Mr. Cameron tells us that, although the father has nothing to do with the disposal of his daughter, as she belongs to the clan of her mother's brother, they "believe that the daughter emanates from her father solely, being

only nutured by her mother."[577] Indeed, Mr. Howitt has found in every Australian tribe, without exception, with which he has acquaintance, the idea that the child is derived from the male parent only. As a black fellow once put it to him, "The man gives the child to a woman to take care of for him, and he can do whatever he likes with his own child."[578] Again, Mr. Cousins writes that, according to Kaffir ideas, a child descends chiefly, though not exclusively, from the father; and the ancient Greeks, as well as the Egyptians[579] and Hindus, [580] maintained a similar view. Nay, Euripides states distinctly that, in his day, the universally accepted physiological doctrine recognized only the share taken by the father in procreation, and Hippocrates, in combating this opinion, and contending that the child descended from both parents, seems to admit that it was a prevalent heresy.[581] Finally, it seems probable that the custom known under the name of "La Couvade"—that is, the odd rule, prevalent among several peoples in different parts of the world, requiring that the father, at the birth of his child, shall retire to bed for some time, and fast or abstain from certain kinds of food—implies some idea of relationship between the two.[582]

Admitting, however, that there was a time when fatherhood, in the physiological sense of the term, was not discovered, I do not think that the preference given to the female line is due to this fact. If the denomination of children and the rules of succession really were in the first place dependent on ideas of consanguinity, it might be expected that a change with reference to the latter would be followed by a change in the former respect also. But the ties of blood have exercised a far less direct influence on the matter in question than is generally supposed, the system of "kinship through females only" being, properly speaking, quite different from what the words imply.

There may be several reasons for naming children after the mother rather than after the father, apart from any consideration of relationship. Especially among savages, the tie between a mother and child is much stronger than that which binds a child to the father.[583] Not only has she given birth to it, but she has also for years been seen carrying it about at her breast. Moreover, in cases of separation, occurring frequently at lower stages of civilization, the infant children always follow the mother, and so, very often, do the children more advanced in years. Is it not natural, then, that they should keep the name of the mother rather than that of a father whom they scarcely know? Mr. Belt tells us that the men and women even of the christianised lower classes of Nicaragua often change their mates, and the children, in such cases remaining with the mother, take their surname from her.[584] According to Swann, the Creeks conferred the honour of a chief on the issue of the female line, because it was impossible to trace the right by the male issue, women only exceptionally having more than two children by the same father.[585] And touching the Khasias, one of the few tribes in India among whom the female line prevails, Dr.

Hooker states that they have a very lax idea of marriage, divorce and exchange of wives being common and attended with no disgrace; "the son therefore often forgets his father's name and person before he grows up, but becomes strongly attached to his mother."[586]

Speaking of certain negro tribes, Winterbottom suggested long ago that the prevalence of the female line was to be explained by the practice of polygyny, [587] and Dr. Starcke has recently called attention to the same point.[588] The Rev. D. Macdonald likewise remarks, in his account of the Efatese of the New Hebrides, that the idea that children are more closely related to the mother than to the father is an idea perfectly natural among a polygynous people.[589] It is a customary arrangement in polygynous families that each wife has a hut for herself, where she lives with her children; but even where this is not the case, mother and children naturally keep together as a little sub-family. No wonder, then, if a child takes its name after the mother rather than after the father. This is the simplest way of pointing out the distinction between the issue of different wives, a distinction which is of special importance where it is accompanied by different privileges as to succession. It is worth noticing that, among the Negroes, who are probably the most polygynous race in the world, the female line is extremely prevalent; whereas, among the Hill Tribes of India, who are on the whole, monogamists, children, with few exceptions, take the name of the father. With reference to the Basutos, a Bechuana tribe, Mr. Casalis observes that the authority of the eldest maternal uncle preponderates to excess, especially in polygynous families, where the children have no strong affection for their father.[590]

Further, among several peoples a man, on marrying, has to quit his home, and go to live with his wife in the house of her father, of whose family he becomes a member. This is a common practice among several of the North American tribes,[591] and prevailed, in the southern part of the New World, among the Caribs.[592] In some parts of Eastern Central Africa, also, a man who marries a full grown girl "immediately leaves his own village and proceeds to build a house in the village of his wife."[593] Among the Sengirese, according to Dr. Hickson, the man always goes to his wife's house, unless he be the son of a rajah, in which case he may do as he pleases.[594] Dr. Hooker tells us that, among the Khasias, "the husband does not take his wife home, but enters her father's household, and is entertained there."[595] And in Sumatra, in the mode of marriage called "ambel anak," the father of a virgin makes choice of some young man for her husband, who is taken into his house to live there in a state between that of a son and that of a debtor.[596]

According to Dr. Starcke, this custom is due to the great cohesive power of the several families, which causes them to refuse to part with any of their members. "Since men are more independent," he says, "they are also

less stationary; they can no longer attract the women to themselves, and are therefore attracted by them.[597] Under such circumstances, there is nothing astonishing in the fact that children are named after the mother's tribe or clan, which is the case in all the instances just given of peoples among whom the husband has to settle down with his father-in-law. Indeed, Dr. Tylor has found that, whilst the number of coincidences between peoples among whom the husband lives with the wife's family and peoples among whom the maternal system prevails, is proportionally large, the full maternal system never appears among peoples whose exclusive custom is for the husband to take his wife to his own home.[598] And it is a remarkable fact that where both customs—the woman receiving her husband in her own hut, and the man taking his wife to his—occur side by side among the same people, descent in the former cases is traced through the mother, in the latter through the father.[599] In Japan, should there be only daughters in the family, a husband is procured for the eldest, who enters his wife's family, and, at the same time, takes its name.[600]

Again, as to the rules of succession, Dr. Starcke has set forth the hypothesis that they are dependent on local connections, those persons being each other's heirs who dwell together in one place. Among the Iroquois, for instance, at the death of a man, his property is divided among his brothers, sisters, and mother's brothers, whilst the property of a woman is transmitted to her children and sisters, but not to her brothers. "Owing to the faculty of memory," Dr. Starcke says, "childhood and youth involve a young man in such a web of associations that he afterwards finds it hard to detach himself from them. The man who, when married, has lived as a stranger in the house of another, clings to the impressions of his former home, and his earlier household companions become his heirs. But the brother who has wandered elsewhere stands in a more remote relation to his sister than do the sisters and the children living with her in the parental home, and he is therefore excluded from the inheritance."[601]

Though agreeing, in the main, with Dr. Starcke's hypothesis, I do not think it affords a complete explanation of the matter. It certainly accounts for the fact that, under the maternal system, it is just the nearest relatives on the mother's side who are a man's heirs, to the exclusion of other members of the clan. But, if succession really depended upon local relations only, or upon the remembrance of such relations in the past, it would be the most natural arrangement, where father and children lived together till the latter were grown up, for the father to be succeeded by his son. It seems probable that the causes which make children take their mother's name, have also directly exercised some influence upon the rules of succession; but I am inclined to believe that the power of the name itself has been of the highest importance in that respect.

By means of family names former connections are kept up, and the past is associated with the present. Even we ourselves are generally more disposed

to count kin with distant relatives having our own surname than with those having another. And upon man in a savage state language exercises, in this matter, a much greater influence than upon us. With reference to the aborigines of Western Australia, Sir George Grey observes, "Obligations of family names are much stronger than those of blood;" and a "Saurian," or a "Serpent," from the East considers himself related to a "Saurian," or a "Serpent," from the West, though no such relationship may exist.[602] Among the Ossetes, according to Baron von Haxthausen, a man is considered more nearly related to a cousin a hundred times removed, who bears his name, than to his mother's brother; and he is bound to take blood revenge for the former, while the latter is in fact not regarded as a relative at all.[603] Speaking of certain Bantu tribes, Mr. McCall Theal remarks that their aversion to incestuous marriages is so strong, that a man will not marry a girl who belongs to another tribe, if she has the same family name as himself, although the relationship cannot be traced.[604] Is it not a justifiable presumption that a similar association of ideas has influenced the rules of succession also,—all the more so, where community of name implies community of worship as well? It should be observed that in every case—at least so far as I know—where rank and property are inherited through females only, children are named after the mother,—but not vice versa, thanks to the direct influence of local and other connections. In China, a man is even strictly forbidden to nominate as his heir an individual of a different surname.[605]

It is a difficult, sometimes even a hopeless, task to try to find out the origin of savage laws and customs, and I do not pretend to have given an exhaustive explanation of those in question. But it seems to be sufficiently clear, from what has been said, that we have no right to ascribe them to uncertain paternity; nay, that such an assumption is not even probably true. No one has yet exhibited any general coincidence of what we consider moral and immoral habits with the prevalence of the male and female line among existing savages. Among the Barea, for instance, as among the Negroes of Loango, inheritance goes through mothers only, though adultery is said to be extremely rare;[606] whilst, on the other hand, among the wanton natives of Tahiti, possessions always descend to the eldest son. With the Todas and Tibetans, among whom paternity is often actually uncertain on account of their polyandrous marriage customs, succession runs through the male line only. "If one or more women," Mr. Marshall says with reference to the former, "are in common to several men, each husband considers all the children as his—though each woman is mother only to her own—and each male child is an heir to the property of all of the fathers."[607] Among the Reddies, a son—although it often happens that he does not know his real father—is the heir of his mother's husband.[608] And, in India and Ceylon, female kinship is associated with polyandry of the beena type—where the husbands come to live with the wife in or near the house of her birth; and

male kinship with that of the deega type—where the wife goes to live in the house and village of her husband.[609]

Lastly, as Mr. Spencer remarks, avowed recognition of kinship in the female line only, shows by no means an unconsciousness of male kinship. As a proof of this may be adduced the converse custom which the early Romans had of recognizing no legal relationship between children of the same mother and of different fathers. For, if it cannot be supposed that an actual unconsciousness of motherhood was associated with this system, neither is there any adequate warrant for the supposition that actual unconsciousness of fatherhood was associated with the system of "kinship through females only" among savages.[610]

The prevalence of the female line would not presuppose general promiscuity even if, in some cases, it were dependent on uncertainty as to fathers.[611] The separation of husband and wife, adultery on the woman's side, and the practice of lending wives to visitors occurring very frequently among many savage nations, the proverb which says, "It is a wise child that knows his own father," holds true for a large number of them. According to Mr. Ingham, the Bakongo, who trace their descent through the mother only, assert as a reason for this custom uncertain paternity; but nevertheless, as we have already seen, they would be horrified at the idea of promiscuous intercourse.

* * * * *

Having now examined all the groups of social phenomena adduced as evidence for the hypothesis of promiscuity, we have found that, in point of fact, they are no evidence. Not one of the customs alleged as relics of an ancient state of indiscriminate cohabitation of the sexes, or "communal marriage," presupposes the former existence of that state. The numerous facts put forward in support of the hypothesis do not entitle us to assume that promiscuity has ever been the prevailing form of sexual relations among a single people, far less that it has constituted a general stage in the social development of man, and, least of all, that such a stage formed the starting-point of all human history.

It may seem to the reader that this question has received more attention than it deserves. But I have discussed it so fully not only because of the importance of the subject, but because of the insight the customs mentioned give us into sexual and family relations very different from our own, and because the unscientific character of the conclusions we have tested shows most clearly that sociology is still a science in its infancy.

Even now my criticism is not finished. Having shown that the hypothesis of promiscuity has no foundation in fact, I shall endeavour, in the next chapter, to demonstrate that it is opposed to all the correct ideas we are able to form with regard to the early condition of man.

Chapter VI — A Criticism of the Hypothesis of Promiscuity

(Concluded)

Against the hypothesis of promiscuity Sir Henry Maine has urged that a good deal of evidence seems to show that promiscuous intercourse between the sexes tends to a pathological condition very unfavourable to fecundity; and "infecundity, amid perpetually belligerent savages, implies weakness and ultimate destruction."[612]

Dr. Carpenter refers to the efforts of the American planters to form the negroes into families, as the promiscuity into which they were liable to fall produced infertility, and fertility had become important to the slave-owners through the prohibition of the slave-trade.[613] It is also a well-known fact that prostitutes very seldom have children, while, according to Dr. Roubaud, those of them who marry young easily become mothers.[614] "Il ne pousse pas d'herbe dans les chemins où tout le monde passe," Dr. Bertillon remarks.[615] And, in a community where all the women equally belonged to all the men, the younger and prettier ones would of course be most sought after, and take up a position somewhat akin to that of the prostitutes of modern society.

It may perhaps be urged that the practice of polyandry prevails among several peoples without any evil results as regards fecundity being heard of. But polyandry scarcely ever implies continued promiscuous intercourse of many men with one woman. In Tibet, for example, where the brothers of a family very often have a common wife, more than one are seldom at home at the same time.[616] Mr. Talboys Wheeler has even suggested that polyandry arose among a pastoral people, whose men were away from their families for months at a time, so that the duty of protecting these families would naturally be undertaken by the brothers in turn.[617] Again, among the Kaniagmuts, the second husband was only a deputy who acted as husband and master of the house during the absence of the true lord;[618] and the same was the case in Nukahiva.[619] But especially remarkable is the following practice connected with polyandry. In the description given by Bontier and Le Verrier of the conquest and conversion of the Canarians in 1402 by Jean de Bethencourt we read that, in the island of Lancerote, most of the women have three husbands, "who wait upon them alternately by months; the husband that is to live with the wife the following month waits upon her and upon her other husband the whole of the month that the latter has her, and so each takes her in turn."[620] Mr. Harkness tells us about a Toda who, having referred to his betrothal to his wife Pilluvāni and the subsequent betrothal of the latter to two others, Khakhood and Tūmbut, said, "Now, according to our customs, Pilluvāni was to pass the first month

with me, the second with Khakhood, and the third with Tūmbut."[621] Among the Kulus, in the Himalaya Mountains, when parents sell a daughter to several brothers, she belongs during the first month to the eldest brother, during the second to the next eldest, and so on;[622] whilst, as regards the Nairs, whose women, except those of the first quality, may marry twelve husbands if they pleased. Hamilton states that "all the husbands agree very well, for they cohabit with her in their turns, according to their priority of marriage, ten days, more or less, according as they can fix a term among themselves."[623]

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The strongest argument against ancient promiscuity is, however, to be derived from the psychical nature of man and other mammals. Mr. Darwin remarks that from what we know of the jealousy of all male quadrupeds, armed, as many of them are, with special weapons for battling with their rivals, promiscuous intercourse is utterly unlikely to prevail in a state of nature. "Therefore," he continues, "looking far enough back in the stream of time, and judging from the social habits of man as he now exists, the most probable view is that he aboriginally lived in small communities, each with a single wife, or if powerful with several, whom he jealously guarded against all other men."[624] Yet, according to the same naturalist, it seems certain, from the lines of evidence afforded by Mr. Morgan, Mr. McLennan, and Sir J. Lubbock, that almost promiscuous intercourse at a later time was extremely common throughout the world;[625] and a similar view is held by some other writers.[626] But if jealousy can be proved to be universally prevalent in the human race at the present day, it is impossible to believe that there ever was a time when man was devoid of that powerful feeling. Professor Giraud-Teulon[627] and Dr. Le Bon[628] assert, indeed, that it is unknown among almost all civilized peoples; but this assertion will be found to be groundless.

Starting from the very lowest races of men: we are told that the Fuegians "are exceedingly jealous of their women, and will not allow any one, if they can help it, to enter their huts, particularly boys."[629] Several writers assert the same as regards the Australians.[630] Thus, according to Sir George Grey, "a stern and vigilant jealousy is commonly felt by every married man;"[631] and Mr. Curr states that, in most tribes, a woman "is not allowed to converse or have any relations whatever with any adult male, save her husband. Even with a grown-up brother she is always forbidden to exchange a word."[632] With reference to the Veddahs of Ceylon, Mr. Bailey says that, with the very smallest cause, the men are exceedingly jealous of their most unattractive wives, and are very careful to keep them apart from their companions.[633]

According to a Thlinket myth, the jealousy of man is older than the world itself. There was an age, it is supposed, when men groped in the dark in search of the world. At that time a Thlinket lived who had a wife and sister; and he

was so jealous of his wife, that he killed all his sister's children because they looked at her.[634]

Great jealousy is met with among the Atkha Aleuts, according to Father Yakof; among the Kutchin Indians, according to Richardson and Hardisty; among the Haidahs, according to Dixon; among the Tacullis, according to Harmon; among the Crees, according to Richardson.[635] The Indians on the Eastern side of the Rocky Mountains visited by Harmon, in their fits of jealousy, "often cut off all the hair from the heads of their wives, and, not unfrequently, cut off their noses also; and should they not in the moment of passion have a knife at hand, they will snap it off at one bite, with their teeth.... The man is satisfied in thus revenging a supposed injury; and having destroyed the beauty of his wife, he concludes that he has secured her against all future solicitations to offend."[636] In California, if a married native woman is seen even walking in the forest with another man than her husband, she is chastised by him, whilst a repetition of the offence is generally punished with speedy death.[637] Among the Creeks, "it was formerly reckoned adultery, if a man took a pitcher of water off a married woman's head, and drank of it."[638] The Moquis allow their wives to work only indoors, afraid of having rivals.[639] The Arawaks, [640] as also the Indians of Peru,[641] are stated to commit horrible crimes of jealousy. The Botocudos, who are known to change wives very frequently, are, nevertheless, much addicted to that passion.[642] And, regarding the Coroados of Brazil, v. Spix and v. Martius say that revenge and jealousy are the only passions that can rouse their stunted soul from its moody indifference.[643]

In the Sandwich Islands, according to Lisiansky, jealousy was extremely prevalent,[644] and, in Nukahiva, the men punish their wives with severity upon the least suspicion of infidelity.[645] The Areois of Tahiti, too, although given to every kind of licentiousness, are described by Ellis as utterly jealous. [646] The same is said of the New Caledonians and New Zealanders;[647] whilst, in the Pelew Islands, it is forbidden even to speak about another man's wife or mention her name.[648] In short, the South Sea Islanders are, as Mr. Macdonald remarks, generally jealous of the chastity of their wives.[649]

Among the Malays of Sumatra, the husband jealously guards his wife as long as his affection lasts;[650] and, concerning several other tribes of the Indian Archipelago, Riedel says that the men are very much addicted to the same passion.[651] Captain Arnesen observed the great jealousy of the Samoyedes. [652] Dr. A. O. Heikel informs me that a Tartar may repudiate his wife if he sees her shaking hands with a man. Among the nomadic Koriaks, many wives are killed by passionate husbands. Hence their women endeavour to be very ugly: they refrain from dressing their hair or washing, and walk about ragged, as the husbands take for granted that, if they dress themselves, they do so in order to attract admirers.[653]

Among the Beni-Mzab, a man who speaks in the street to a married woman of quality is punished with a fine of two hundred francs and banishment for four years.[654] In the Nile countries and many other parts of Africa, it is customary for the men to preserve the fidelity of their wives in a way not unlike a method used in the age of the Crusades.[655] With reference to the inhabitants of Fida, Bosman tells us that a rich negro will not suffer any man to enter the houses where his wives reside, and on the least suspicion will sell them to the Europeans;[656] whilst in Dahomey, if a wayfarer meets any of the royal wives on the road, a bell warns him "to turn off or stand against a wall while they pass."[657]

That jealousy is a powerful agent in the social life of civilized nations is a fact which it is unnecessary to dwell upon. In Mohammedan countries, a woman is not allowed to receive male visitors, or to go out unveiled,[658] it being unlawful for the Moslem to see the faces of any other women than those whom he is forbidden to marry and his own wives and female slaves.[659] A man who penetrates into the harem of another man may easily lose his life; and Dr. Polak states that, in Persia, a European physician cannot, without being considered indecent, even ask about the health of a Mohammedan's wife and daughter, though they are ill.[660] Again, in Japan, as I am told by a native of the country, it was customary for women when getting married, to have their eyebrows shaved off, because thick and beautiful eyebrows are considered one of a woman's greatest ornaments. At the same time, according to Mr. Balfour, their teeth are stained black, which can only have the effect of making the wife less attractive to the husband,—as well as to other men.[661] This reminds us of the wide-spread practice of depriving a woman of her ornaments as soon as she is married.

The prevalence of jealousy in the human race is best shown by the punishments inflicted for adultery; although it may be that the proprietary feeling here plays an important part. In a savage country a seducer may be thankful if he escapes by paying to the injured husband the value of the bride or some other fine, or if the penalty is reduced to a flogging, to his head being shaved, his ears cut off, one of his eyes destroyed, his legs speared, &c., &c. He must consider himself very lucky if he is merely paid in his own coin, or if the punishment falls on his wife, who, in that case, seems to be looked upon as the real cause of her husband's unfaithfulness.[662] Most commonly, among uncivilized nations, the seducer is killed, adultery on the woman's side being considered a heinous crime, for which nothing but the death of the offender can atone. Among the Waganda, it is, as a rule, punished even more severely than murder;[663] and, in parts of New Guinea, capital punishment is said to be almost unknown except for adultery.[664]

Mr. Reade remarks that, among savages generally, it is the seducer who suffers, not the victim.[665] Yet this holds good for certain peoples only,[666] the faithless wife being generally discarded, beaten, or ill-treated in some other way, and very frequently killed. Often, too, she is disfigured by her jealous husband, so that no man may fall in love with her in future. Thus, among several peoples of North America, India, and elsewhere, her nose is cut or bitten off,—a practice which also prevailed in ancient Egypt.[667] As late as the year 1120 the Council of Neapolis in Palestine decreed that an adulterer should be castrated, and the nose of an unfaithful wife cut off;[668] whilst, in the "Uplands-lag," an old Swedish provincial law, it is prescribed that an adulteress who cannot pay the fine of forty marks, shall lose her hair, ears, and nose.[669] The Creeks and some Chittagong Hill tribes likewise cut off the ears of a woman who has been guilty of infidelity;[670] and many other people are in the habit of shaving her head.[671]

Among a large number of peoples, a husband not only requires chastity from his wife, but demands that the woman whom he marries shall be a virgin. There can be little doubt, I think, that this requirement owes its origin to the same powerful feeling that keeps watch over marital faithfulness.

Among the Ahts, for example, "a girl who was known to have lost her virtue, lost with it one of her chances of a favourable marriage."[672] Among the Chippewas, according to Mr. Keating, no woman could expect to be taken as a wife by a warrior unless she had lived in strict chastity.[673] Statements to the same effect are made with reference to other Indian tribes.[674] Again, when one of the Chichimecs of Central Mexico marries, if the girl proves not to be a virgin, she may be returned to her parents.[675] A very similar custom prevailed among the Nicaraguans and Azteks,[676] and exist still among several tribes of the Indian Archipelago and in New Guinea;[677] whilst, in Samoa, valuable presents were given for a girl who had preserved her virtue, the bride's purity being proved in a way that will not bear the light of description.[678]

"In many parts of Africa," says Mr. Reade, "no marriage can be ratified till a jury of matrons have pronounced a verdict of purity on the bride;[679] it being customary to return a girl who is found not to have been entirely chaste, and to claim back the price paid for her.[680] Dr. Grade states that among the Negroes of Togoland, a much higher price is paid for a bride who is a virgin than for any other.[681] Among the Somals, a fallen girl cannot become a man's legitimate wife;[682] whilst, in the Soudan and other parts of Africa where girls are subjected to infibulation, that incontinence may be made impossible, no young woman who is not infibulated can get a husband.[683]

The Jewish custom of handing "the tokens of the damsel's virginity" to her parents, to be kept as evidence in case of a later accusation, is well-known.[684] A practice not very dissimilar to this prevails in China,[685] Arabia,[686] and

among the Chuvashes,[687] with whom the signum innocentiae is exhibited even coram populo. In Persia,[688] as also in Circassia,[689] a girl who is not a virgin when she marries, runs the risk of being put away after the first night. Among several nations belonging to the Russian Empire, according to Georgi, the bridegroom may claim a fine in case of the bride being found to have lost her virtue;[690] and, among the Chulims, if the Mosaic testimony of chastity is wanting, the husband goes away and does not return before the seducer has made peace with him.[691] As to the ancient Germans, Tacitus states that, by their laws, virgins only could marry.[692]

A husband's pretensions may reach even farther than this. He often demands that the woman he chooses for his wife shall belong to him, not during his lifetime only, but after his death.

The belief in another life is almost universal in the human race. As that life is supposed to resemble this, man having the same necessities there as here, part of his property is buried with him. And so strong is the idea of a wife being the exclusive property of her husband, that, among several peoples, she may not even survive him.

Thus, formerly, among the Comanches, when a man died, his favourite wife was killed at the same time.[693] In certain Californian tribes, widows were sacrificed on the pyre with their deceased husbands;[694] and Mackenzie was told that this practice sometimes occurred among the Crees.[695] In Darien and Panama, on the death of a chief, all his concubines were interred with him.[696] When one of the Incas died, says Acosta, the woman whom he had loved best, as well as his servants and officers, were put to death, "that they might serve him in the other life."[697] The same custom prevailed in the region of the Congo, as also in some other African countries.[698] "It is no longer possible to doubt," says Dr. Schrader, "that ancient Indo-Germanic custom ordained that the wife should die with her husband."[699] In India, as is well known, widows were sacrificed, until quite recently, on the funeral pile of their husbands;[700] whilst, among the Tartars, according to Navarette, on a man's death, one of his wives hanged herself "to bear him company in that journey." Among the Chinese, something of the same kind seems to have been done occasionally in olden times.[701]

Turning to other quarters of the world: in Polynesia, and especially in Melanesia, widows were very commonly killed.[702] In Fiji, for instance, they were either buried alive or strangled, often at their own desire, because they believed that in this way alone could they reach the realms of bliss, and that she who met her death with the greatest devotedness, would become the favourite wife in the abode of spirits. On the other hand, a widow who did not permit herself to be killed was considered an adulteress.[703] In the New Hebrides,

according to the missionary John Inglis, a wife is strangled, even when her husband is long absent from home.[704]

If the husband's demands are less severe, his widow is not on that account always exempted from every duty towards him after his death. Among the Tacullies, she is compelled by the kinsfolk of the deceased to lie on the funeral pile where the body of her husband is placed, whilst the fire is lighting, until the heat becomes unbearable. Then, after the body is consumed, she is obliged to collect the ashes and deposit them in a small basket, which she must always carry about with her for two or three years, during which time she is not at liberty to marry again.[705] Among the Kutchin Indians, the widow, or widows, are bound to remain near the body for a year to protect it from animals, &c.; and only when it is quite decayed and merely the bones remain, are they permitted to remarry, "to dress their hair, and put on beads and other ornaments to attract admirers."[706] Again, among the Minas on the Slave Coast, the widows are shut up for six months in the room where their husband is buried.[707] With the Kukis, according to Rennel, a widow was compelled to remain for a year beside the tomb of her deceased husband, her family bringing her food.[708] In the Mosquito tribe, "the widow was bound to supply the grave of her husband with provisions for a year, after which she took up the bones and carried them with her for another year, at last placing them upon the roof of her house, and then only was she allowed to marry again."[709]

In Rotuma and the Marquesas Islands,[710] as well as among the Tartars and Iroquois,[711] a widow was never allowed to enter a second time into the married state. Among the ancient Peruvians, says Garcilasso de la Vega, very few widows who had no children ever married again, and even widows who had children continued to live single; "for this virtue was much commended in their laws and ordinances."[712] Nor is it in China considered proper for a widow to contract a second marriage, and in genteel families such an event rarely, if ever, occurs. Indeed, a lady of rank, by contracting a second marriage, exposes herself to a penalty of eighty blows.[713] Again, the Arabs, according to Burckhardt, regard everything connected with the nuptials of a widow as ill-omened, and unworthy of the participation of generous and honourable men.[714]

Speaking of the Aryans, Dr. Schrader remarks that, when sentiments had become more humane, traces of the old state of things survived in the prohibitions issued against the second marriage of widows.[715] Even now, according to Dubois, the happiest lot that can befall a Hindu woman, particularly one of the Brahman caste, is to die in the married state. The bare mention of a second marriage for her would be considered the greatest of insults, and, if she married again, "she would be hunted out of society, and no decent person would venture at any time to have the slightest intercourse with her."[716] Again, among the

Bhills, when a widow marries, the newly-wedded pair, according to a long-established custom, are obliged to leave the house before daybreak and pass the next day in the fields, in a solitary place, some miles from the village, nor may they return till the dusk. The necessity of the couple passing the first day of their marriage in this way, like outcasts, is, writes Sir J. Malcolm, "to mark that sense of degradation which all the natives of Hindustan entertain against a woman marrying a second husband."[717] The South Slavonians, says Krauss, regard a widow's remarriage as an insult to her former consort;[718] and a similar view prevailed in ancient Greece, according to Pausanias,[719] and among the Romans.[720] The early Christians, also, strongly disapproved of second marriages by persons of either sex, although St. Paul had peremptorily urged that the younger widows should marry.[721] Indeed the practice of second nuptials was branded with the name of a legal adultery, and the persons who were guilty of so scandalous an offence against Christian purity were soon excluded from the honours and even from the alms of the Church.[722]

Much more commonly, however, the prohibition of a second marriage refers only to a certain period after the husband's death. Thus, among the Chickasaws, widows were obliged to live a chaste single life for three years at the risk of the law of adultery being executed against the recusants;[723] whilst, among the Creeks, a widow was looked upon as an adulteress if she spoke or made free with any man within four summers after the death of her husband.[724] Among the Old Kukis, widowers and widows could not marry within three years, and then only with the permission of the family of the deceased.[725] Among the Kunáma, too, the period of widowhood must not be shorter than three years, in Saraë not less than two.[726] The Arawaks, British Columbians, and Mandans required that the head of the widow should be shaved, and she was not permitted to marry again before her shorn locks regained their wonted length.[727] Among the Hovas, Ainos, Patagonians, &c., the widow has to live a single life for a year at least after her husband's death,[728] and among some other peoples for six months.[729]

It may perhaps be supposed that the object of these prohibitions is to remove all apprehensions as to pregnancy. But this cannot be the case when the time of mourning lasts for a year or more. In Saraë, where a widow is bound to celibacy for two years, a divorced wife is prevented from marrying within two months only, as Munzinger says, "in order to avoid all uncertainty as to pregnancy;"[730] and, among the Bedouins, a divorced woman has, for the same reason, to remain unmarried for no longer time than forty days.[731] Moreover, certain peoples, especially those among whom monogamy is the only recognized form of marriage, or among whom polygyny is practised as a rare exception, prohibit the speedy remarriage not only of widows but of widowers.[732]

The meaning of the interdict appears also from the common rule that a wife, after her husband's death, shall give up all her ornaments, and have her head shaved, her hair cut short, or her face blackened. Among certain Indians, the law compels the widow through the long term of her mourning to refrain from all public company and diversions, under pain of being considered an adulteress, and, likewise to go with flowing hair without the privilege of oil to anoint it;[733] whilst, in Greenland tales, it is said of a truly disconsolate widow, "She mourns so, that she cannot be recognised for dirt."[734]

Hence we see how deep-rooted is the idea that a woman belongs exclusively to one man. Savages believe that the soul of the deceased can return and become a tormentor of the living. Thus a husband, even after his death, may punish a wife who has proved unfaithful.

According to travellers' statements, there are, indeed, peoples almost devoid of the feeling of jealousy, and the practice of lending or prostituting wives is generally taken as evidence of this. But jealousy, as well as love, is far from being the same feeling in the mind of a savage as in that of a civilized man. A wife is often regarded as not very different from other property, and an adulterer as a thief.[735] In some parts of Africa, he is punished as such, having his hands, or one of them, cut off.[736] The fact that a man lends his wife to a visitor no more implies the absence of jealousy than other ways of showing hospitality imply that he is without the proprietary feeling. According to Wilkes, the aborigines of New South Wales "will frequently give one of their wives to a friend who may be in want of one; but notwithstanding this laxity they are extremely jealous, and are very prompt to resent any freedom taken with their wives."[737]

A married woman is never permitted to cohabit with any man but the husband, except with the husband's permission; and this permission is given only as an act of hospitality or friendship, or as a means of profit. When we are told that a negro husband uses his wife for entrapping other men and making them pay a heavy fine;[738] that, among the Crees, adultery is considered no crime "provided the husband receives a valuable consideration for his wife's prostitution;"[739] or that, in Nukahiva, husbands sometimes offer their wives to foreigners "from their ardent desire of possessing iron, or other European articles,"[740]—we must not infer from this profligacy that jealousy is unknown to man at early stages of civilization. On the contrary, such practices are due chiefly to contact with "higher culture," which often has the effect of misleading natural instincts. "Husbands, after the degradation of a pseudo-civilization," says Mr. Bonwick, "are sometimes found ready to barter the virtue of a wife for a piece of tobacco, a morsel of bread, or a silver sixpence."[741] Mr. Curr observes that, among the Australian natives, "husbands display much less jealousy of white men than of those of their own colour," and that they will

more commonly prostitute their wives to strangers visiting the tribe than to their own people.[742] "Under no circumstances," says Sir George Grey, "is a strange native allowed to approach the fire of a married man."[743] According to Bosman, the Negroes of Benin were very jealous of their wives with their own countrymen, though not in the least with European foreigners;[744] and Lisiansky states exactly the same as regards the Sandwich Islanders.[745] In California, says Mr. Powers, "since the advent of the Americans the husband often traffics in his wife's honour for gain, and even forces her to infamy when unwilling; though in early days he would have slain her without pity and without remorse for the same offence."[746] The like is true of the Columbians about Puget Sound;[747] and Georgi remarks that the nomadic Koriaks torment their wives by their jealousy, sometimes even killing them from this passion; whereas those Koriaks who lead a stationary life, being far more advanced in civilization, are so little addicted to it, that they even have a relish for seeing foreigners make love to their wives, whom they dress accordingly.[748]

If the hypothesis of an annual pairing time in the infancy of mankind holds good, jealousy must at that stage have been a passion of very great intensity.

It may, however, be supposed that this feeling, though belonging to human nature, has been restrained by certain conditions which have made it necessary, or desirable, for a man to share his wife with other men. Thus polyandry now prevails in several parts of the world. But I shall endeavour to show, later on, that this practice is due chiefly to scarcity of women, and commonly implies an act of fraternal benevolence, the eldest and first married brother in a family giving his younger brothers a share in his wife, if they would otherwise be obliged to live unmarried. Hence polyandry can by no means, as Mr. McLennan suggests, be regarded as "a modification of and advance from promiscuity." It owes its origin to causes, or a cause, which never would have produced general communism in women. Besides, it can be proved that polyandry is abhorrent to the rudest races of men.

It has been suggested, too, that man's gregarious way of living made promiscuity necessary. The men of a group, it is said, must either have quarrelled about their women and separated, splitting the horde into hostile sections, or indulged in promiscuous intercourse. But it is hard to understand why tribal organization in olden times should have prevented a man having his special wife, since it does not do so among savages still existing. Primitive law is the law of might; and it is impossible to believe that the stronger men, who generally succeeded in getting the most comely women, voluntarily gave their weaker rivals a share in their precious capture. Regarding the aborigines of Queensland, Lumholtz states that as a rule, it is difficult for men to marry before they are thirty years of age, the old men having the youngest and best-looking wives, while a young man must consider himself fortunate if he can get an old

woman.[749] It more commonly happens among savages, however, that almost every full-grown man is able to get a wife for himself; and when this is the case, there is still less reason for assuming communism in women.

It is not, of course, impossible that, among some peoples, intercourse between the sexes may have been almost promiscuous. But there is not a shred of genuine evidence for the notion that promiscuity ever formed a general stage in the social history of mankind. The hypothesis of promiscuity, instead of belonging, as Professor Giraud-Teulon thinks,[750] to the class of hypotheses which are scientifically permissible, has no real foundation, and is essentially unscientific.

Chapter VII — Marriage and Celibacy

With wild animals sexual desire is not less powerful as an incentive to strenuous exertion than hunger and thirst. In the rut-time, the males even of the most cowardly species engage in mortal combats; and abstinence, or at least voluntary abstinence, is almost unheard of in a state of nature.[751]

As regards savage and barbarous races of men, among whom the relations of the sexes under normal conditions take the form of marriage, nearly every individual strives to get married as soon as he, or she, reaches the age of puberty.[752] Hence there are far fewer bachelors and spinsters among them than among civilized peoples. Harmon found that among the Blackfeet, Crees, Chippewyans, and other aboriginal tribes on the eastern side of the Rocky Mountains, celibacy was a rare exception;[753] and Ashe noted the same fact among the Shawanese.[754] Prescott states of the Dacotahs, "I do not know of a bachelor among them. They have a little more respect for the women and themselves, than to live a single life."[755] Indeed, according to Adair, many Indian women thought virginity and widowhood the same as death.[756] Among the Eastern Greenlanders, visited by Lieutenant Holm, only one unmarried woman was met with.[757]

The Charruas, says Azara, "ne restent jamais dans le célibat, et ils se marient aussitôt qu'ils sentent le besoin de cette union."[758] As regards the Yahgans, Mr. Bridges writes that "none but mutes and imbeciles remained single, except some lads of vigour who did so from choice, influenced by licentiousness. But no woman remained unmarried; almost immediately on her husband's death the widow found another husband."

Among the wild nations of Southern Africa, according to Burchell, neither men nor women ever pass their lives in a state of celibacy;[759] and Bosman assures us that very few negroes of the Gold Coast died single, unless they were quite young.[760] Among the Mandingoes, Caillié met with no instance

of a young woman, pretty or plain, who had not a husband.[761] Barth reports that the Western Touaregs had no fault to find with him except that he lived in celibacy; they could not even understand how this was possible.[762]

Among the Sinhalese there are hardly any old bachelors and old maids;[763] and Mr. Marshall says of the Todas, "No unmarried class exists, to disturb society with its loves and broils; ... it is a 'very much married' people. Every man and every woman, every lad and every girl is somebody's husband or wife; tied at the earliest possible age.... With the exception of a cripple girl, and of those women who, past the child-bearing age, were widows, I did not meet with a single instance of unmarried adult females."[764] Among the Toungtha, it is unheard of for a man or woman to be unmarried after the age of thirty, and among the Chukmas, a bachelor twenty-five years old is rarely seen.[765] The Muásís consider it a father's duty to fix upon a bridegroom as soon as his daughter becomes marriageable.[766] Among the Burmese[767] and the Hill Dyaks of Borneo,[768] old maids and old bachelors are alike unknown. Among the Sumatrans, too, instances of persons of either sex passing their lives in a state of celibacy are extremely rare:—"In the districts under my charge," says Marsden, "are about eight thousand inhabitants, among whom I do not conceive it would be possible to find ten instances of men of the age of thirty years unmarried."[769] In Java, Mr. Crawfurd "never saw a woman of two-and-twenty that was not, or had not been, married."[770] In Tonga, according to Mariner, there were but few women who, from whim or some accidental cause, remained single for life.[771] In Australia, "nearly all the girls are betrothed at a very early age;" and Mr. Curr never heard of a woman, over sixteen years of age, who, prior to the breakdown of aboriginal customs after the coming of the Whites, had not a husband.[772] As to the natives of Herbert River, Northern Queensland, Herr Lumholtz says that though the majority of the young men have to wait a long time before they get wives, it is rare for a man to die unmarried.[773]

Indeed, so indispensable does marriage seem to uncivilized man, that a person who does not marry is looked upon almost as an unnatural being, or, at any rate, is disdained.[774] Among the Santals, if a man remains single, "he is at once despised by both sexes, and is classed next to a thief, or a witch: they term the unhappy wretch 'No man.'"[775] Among the Kafirs, a bachelor has no voice in the kraal.[776] The Tipperahs, as we are told by Mr. J. F. Browne, do not consider a man a person of any importance till he is married;[777] and, in the Tupi tribes, no man was suffered to partake of the drinking-feast while he remained single.[778] The Fijians even believed that he who died wifeless was stopped by the god Nangganangga on the road to Paradise, and smashed to atoms.[779]

It may also be said that savages, as a rule, marry earlier in life than civilized men. A Greenlander, says Dr. Nansen, often marries before there is any chance of the union being productive.[780] Among the Californians, Mandans, and most of the north-western tribes in North America, marriage frequently takes place at the age of twelve or fourteen.[781] In the wild tribes of Central Mexico, girls are seldom unmarried after the age of fourteen or fifteen.[782] Among the Talamanca Indians, a bride is generally from ten to fourteen years old, whilst a man seldom becomes a husband before fourteen.[783] In certain other Central American tribes, the parents try to get a wife for their son when he is nine or ten years old.[784]

Among the natives of Brazil, the man generally marries at the age of from fifteen to eighteen, the woman from ten to twelve.[785] According to Azara, the like was the case with the Guaranies of the Plata, whilst, among the Guanas, "celle qui se marie le plus tard, se marie à neuf ans."[786] In Tierra del Fuego, as we are informed by Lieutenant Bove, a girl looks about for a husband when twelve or thirteen years old, and a youth marries at the age of from fourteen to sixteen.[787]

Many African peoples, e.g., the Abyssinians,[788] the Beni-Amer, the Djour tribes on the White Nile,[789] the Arabs of the Sahara, the Wakamba, and the Ba-kwileh,[790] are likewise said to marry very young. Marriage usually takes place, among the Bongos when they are from fifteen to seventeen years old, but in many other tribes at an earlier age.[791]

Among the Sinhalese, when a young man has reached the age of eighteen or twenty, it is the duty of his father to provide him with a proper wife.[792] Among the Bodo and Dhimáls, "marriage takes place at maturity, the male being usually from twenty to twenty-five years of age, and the female from fifteen to twenty."[793] A Santal lad marries, as a rule, about the age of sixteen or seventeen, and a girl at that of fifteen;[794] whilst a Kandh boy marries when he reaches his tenth or twelfth year, his wife being usually about four years older.[795] The Khyoungtha,[796] Munda Kols,[797] Red Karens,[798] Siamese,[799] Burmese,[800] Mongols,[801] and other Asiatic peoples, are also known to marry early. Among the Ainos, the young women are considered marriageable at the age of sixteen or seventeen, and the men marry when about nineteen or twenty.[802] Again, among the Lake Dwellers of Lob-nor, girls enter into matrimony at the age of fourteen or fifteen, men at the same age, or a little later;[803] whilst, among the Malays, according to Mr. Bickmore, the boys usually marry for the first time when about sixteen, and the girls at the age of thirteen or fourteen, and occasionally still earlier.[804]

Passing to the Australian continent: among the natives of New South Wales, the parties are in most cases betrothed very early in life, the young man claiming his wife later on, as soon as he arrives at the proper age.[805] According to

Mr. Curr, "girls become wives at from eight to fourteen years of age."[806] At Port Moresby, New Guinea, "few men over twenty years of age remain single;" and the Maoris in New Zealand are stated to marry very young.[807]

Moreover, celibacy is comparatively rare not only among savage and barbarous, but among several civilized races.

Among the Azteks, no young man lived single till his twenty-second year, unless he intended to become a priest, and for girls the customary marrying-age was from eleven to eighteen. In Tlascala, according to Clavigero, the unmarried state was, indeed, so despised that a full-grown man who would not marry had his hair cut off for shame.[808] Again, among the ancient Peruvians, every year, or every two years, each governor in his district had to arrange for the marriage of all the young men at the age of twenty-four and upwards, and all the girls from eighteen to twenty.[809]

In Japan, as I am told by a Japanese friend, old maids and old bachelors are almost entirely unknown, and the same is the case in China.[810] "Almost all Chinese," says Dr. Gray, "robust or infirm, well-formed or deformed, are called upon by their parents to marry so soon as they have attained the age of puberty. Were a grown-up son or daughter to die unmarried, the parents would regard it as most deplorable." Hence a young man of marriageable age, whom consumption or any other lingering disease had marked for its own, would be called upon by his parents or guardians to marry at once.[811] Nay, so indispensable is marriage considered among this people, that even the dead are married. Thus the spirits of all males who die in infancy, or in boyhood, are in due time married to the spirits of females who have been cut off at a like early age.[812]

Marco Polo states the prevalence of the same practice among the Tartars.[813] In Corea, says the Rev. John Ross, "the male human being who is unmarried is never called a 'man,' whatever his age, but goes by the name of 'yatow;' a name given by the Chinese to unmarriageable young girls: and the 'man' of thirteen or fourteen has a perfect right to strike, abuse, order about the 'yatow' of thirty, who dares not as much as open his lips to complain."[814]

Mohammedan peoples generally consider marriage a duty both for men and women.[815] "Nothing," says Carsten Niebuhr, "is more rarely to be met with in the East, than a woman unmarried after a certain time of life." She will rather marry a poor man, or become second wife to a man already married, than remain in a state of celibacy.[816] Among the Persians, for instance, almost every girl of good repute is married before her twenty-first year, and old bachelors are unknown.[817] In Egypt, according to Mr. Lane, it is improper and even disreputable to abstain from marrying when a man has attained a sufficient age, and when there is no just impediment.[818]

Among the Hebrews, celibacy was nearly unheard of, as it is among the Jews of our day. They have a proverb that "he who has no wife is no man."[819] "To an ancient Israelite," Michaelis remarks, "it would indeed have appeared very strange to have seen, though but in a vision, a period in the future history of the world, when it would be counted sanctity and religion to live unmarried."[820] Marriage was by the Hebrews looked upon as a religious duty. According to the Talmud, the authorities can compel a man to marry, and he who lives single at the age of twenty is accursed by God almost as if he were a murderer.[821]

The ancient nations of the Aryan stock, as M. Fustel de Coulanges and others have pointed out, regarded celibacy as an impiety and a misfortune: "an impiety, because one who did not marry put the happiness of the Manes of the family in peril; a misfortune, because he himself would receive no worship after his death." A man's happiness in the next world depended upon his having a continuous line of male descendants, whose duty it would be to make the periodical offerings for the repose of his soul.[822]

Thus, according to the 'Laws of Manu,' marriage is the twelfth Sanskāra, and hence a religious duty incumbent upon all.[823] "Until he finds a wife, a man is only half of a whole," we read in the 'Brahmadharma';[824] and, among the Hindus of the present day, a man who is not married is considered to be almost a useless member of society, and is, indeed, looked upon as beyond the pale of nature. It is also an established national rule, that women are designed for no other end than to be subservient to the wants and pleasures of men; consequently, all women without exception are obliged to marry, when husbands can be found for them, and those who cannot find a husband commonly fall into the state of concubinage.[825] Among the ancient Iranians, too, it was considered a matter of course that a girl should be married on reaching the years of puberty.[826]

The ancient Greeks regarded marriage as a matter not merely of private, but also of public interest. This was particularly the case at Sparta, where criminal proceedings might be taken against those who married too late, and against those who did not marry at all. In Solon's legislation marriage was also placed under the inspection of the State, and, at Athens, persons who did not marry might be prosecuted, although the law seems to have grown obsolete in later times. But independently of public considerations, there were private reasons which made marriage an obligation.[827] Plato remarks that every individual is bound to provide for a continuance of representatives to succeed himself as ministers of the Divinity;[828] and Isaeus says, "All they who think their end approaching, look forward with a prudent care that their houses may not become desolate, but that there may be some person to attend to their funeral rites, and to perform the legal ceremonies at their tombs."[829]

To the Roman citizen, as Mommsen observes, a house of his own and the blessing of children appeared the end and essence of life;[830] and Cicero's treatise 'De Legibus'—a treatise which generally reproduces, in a philosophic form, the ancient laws of Rome—contains a law, according to which the Censors had to impose a tax upon unmarried men.[831] But in later periods, when sexual morality reached a very low ebb in Rome, celibacy—as to which grave complaints were made as early as 520 B.C.—naturally increased in proportion, especially among the well-off classes. Among these, marriage came to be regarded as a burden which people took upon themselves at the best in the public interest. Indeed, how it fared with marriage and the rearing of children, is shown by the Gracchan agrarian laws, which first placed a premium thereon; [832] whilst, later on, the Lex Julia et Papia Poppæa imposed various penalties on those who lived in a state of celibacy after a certain age,[833]—but with little or no result.[834]

Again, the Germans, as described by Cæsar, accounted it in the highest degree scandalous to have intercourse with the other sex before the twentieth year.[835] Tacitus also asserts that the young men married late, and the maidens did not hurry into marriage.[836] But it seems probable that at a later age celibacy was almost unknown among the Germans, except in the case of women who had once lost their reputation, for whom neither beauty, youth, nor riches could procure a husband.[837] As for the Slavs, it should be observed that, among the Russian peasantry celibacy is even now unheard of.[838] When a youth reaches the age of eighteen, he is informed by his parents that he ought to marry at once.[839]

There are, however, even in savage life, circumstances which compel certain persons to live unmarried for a longer or shorter time. When a wife has to be bought, a man must of course have some fortune before he is able to marry. Thus, as regards the Zulus, Mr. Eyles writes to me that "young men who are without cattle have often to wait many years before getting married."[840] When Major-General Campbell asked some of the Kandhs why they remained single, they replied that they did so because wives were too expensive.[841] Among the Munda Kols and Hos, in consequence of the high prices of brides, are to be found "what are probably not known to exist in other parts of India, respectable elderly maidens."[842] In the New Britain Group, too, according to Mr. Romilly, the purchase sum is never fixed at too low a price, hence "it constantly happens that the intended husband is middle-aged before he can marry."[843] Similar statements are made in a good many books of travels.[844]

Polygyny, in connection with slavery and the unequal distribution of property, acts in the same direction. In Makin, one of the Kingsmill Islands, a great number of young men were unmarried owing to the majority of the women being monopolized by the wealthy and powerful.[845] Among the Bakongo,

according to Mr. Ingham, as also among the Australians,[846] polygyny causes celibacy among the poorer and younger men; and Dr. Sims says the like of the Bateke, Mr. Cousins of the Kafirs, Mr. Radfield of the inhabitants of Lifu. Among the Kutchin Indians, according to Hardisty, there are but few young men who have wives—unless they can content themselves with some old cast-off widow—on account of all the chiefs, medicine men, and those who possess rank acquired by property having two, three, or more wives.[847] For the same reason many men of the lower classes of the Waganda are obliged to remain single, in spite of the large surplus of women.[848] In Micronesia, also, it is common for the poorer class and the slaves to be doomed to perpetual celibacy.[849] Among the Thlinkets, a slave cannot acquire property, nor marry, except by consent of his master, which is rarely given;[850] and in the Soudan the case seems to be the same.[851]

But we must not exaggerate the importance of these obstacles to marriage. When the man is not able to buy a wife for himself, he may, in many cases, acquire her by working for some time with her parents, or by eloping with her. Moreover, as Sir John Lubbock remarks, the price of a wife is generally regulated by the circumstances of the tribe, so that nearly every industrious young man is enabled to get one.[852] Speaking of the Sumatrans, Marsden observes that the necessity of purchasing does not prove such an obstacle to matrimony as is supposed, for there are few families who are not in possession of some small substance, and the purchase-money of the daughters serves also to provide wives for the sons.[853] Again, polygyny is, as we shall see further on, almost everywhere restricted to a small minority of the people, and is very often connected with the fact that there is a surplus of women. Thus, among the polygynous Waguha, as I am informed by Mr. Swann, unmarried grown-up men do not exist, the women being more numerous than the men. At any rate, we may conclude that at earlier stages of civilization, when polygyny was practised less extensively and women were less precious chattels than they afterwards became, celibacy was a much rarer exception than it is now among many of the lower races.

Passing to the peoples of Europe, we find, from the evidence adduced by statisticians, that modern civilization has proved very unfavourable to the number of marriages. In civilized Europe, in 1875, more than a third of the male and female population beyond the age of fifteen lived in a state of voluntary or involuntary celibacy. Excluding Russia, the number of celibates varied from 25·57 per cent. in Hungary to 44·93 per cent. in Belgium. And among them there are many who never marry.[854] In the middle of this century, Wappäus found that, in Saxony, 14·6 per cent. of the unmarried adult population died single; in Sweden, 14·9 per cent.; in the Netherlands, 17·2 per cent.; and in France, 20·6 per cent.[855] Of the rest, many marry comparatively late in life. Thus, in Denmark,

only 19·43 per cent. of the married men were under twenty-five, and in Bavaria (in 1870-1878), only 16.36, whilst the figures for England and Russia look more favourable, being respectively 51·90 per cent. (in 1872-1878), and 68·31 per cent. (in 1867-1875). Of the married women, on the other hand, only 5·09 per cent. are below the age of twenty in Sweden, 5·40 per cent. in Bavaria, 7·44 per cent. in Saxony, 14·86 per cent. in England, &c.; but in Hungary as many as 35·16 per cent., and in Russia even 57·27 per cent.[856] The mean age of the bachelors who enter into matrimony is 26 years in England and 28·48 in France, that of the spinsters respectively 24·07 and 25·3.[857]

As a rule, the proportion of unmarried people has been gradually increasing in Europe during this century,[858] and the age at which people marry has risen. In England we need not go further back than two decades, to find a greater tendency on the part of men to defer marriage to later age than was formerly the case.[859] Finally, it must be noted that in country districts single men and women are more seldom met with, and marriage is generally concluded earlier in life, than in towns.[860]

There are, indeed, several factors in modern civilization which account for the comparatively large number of celibates. In countries where polygyny is permitted, women have a better chance of getting married than men, but in Europe the case is reversed. Here, as in most parts of the world, the adult women outnumber the adult men. If we reckon the age for marriage from twenty to fifty years, a hundred men may, in Europe, choose amongst a hundred and three or four women, so that about three or four women per cent. are doomed to a single life on account of our obligatory monogamy.[861]

The chief cause, however, of increasing celibacy is the difficulty of supporting a family in modern society. The importance of this factor is distinctly proved by statistics. It has been observed that the frequency of marriages is a very sensible barometer of the hopes which the mass of people have for the future; hard times, wars, commercial crises, &c., regularly depressing the number of marriages, whilst comparative abundance has the opposite effect.[862]

In non-European countries into which a precocious civilization has not been introduced, the population is more nearly in proportion to the means of subsistence, and people adapt their mode of life more readily to their circumstances. In most cases a man can earn his living sooner;[863] and a wife far from being a burden to her husband, is rather a help to him, being his labourer or sometimes even his supporter. Moreover, children, instead of requiring an education that would absorb the father's earnings, become, on the contrary, a source of income. Thus Mr. Bickmore asserts that, among the Malays, difficulty in supporting a family is unknown.[864] Carsten Niebuhr states that, in the East, men are as disposed to marry as women, "because their wives, instead

of being expensive, are rather profitable to them."[865] And, speaking of the American Indians, Heriot says that children form the wealth of savage tribes. [866]

To a certain extent, the like is true of the agricultural classes of Europe. A peasant's wife helps her husband in the field, tends the cattle, and takes part in the fishing. She cooks and washes, sews, spins, and weaves. In a word, she does many useful things about which women of the well-off classes never think of troubling themselves. Hence in Russia, as we are informed by M. Pietro Semenow, the small agriculturists, who form an enormous proportion of the population, are in the habit of arranging for the marriage of their sons at as early an age as possible in order to secure an additional female labourer.[867]

Even in cities it is not among the poorest classes that celibacy is most frequent. A "gentleman," before marrying, thinks it necessary to have an income of which a mere fraction would suffice for a married workman. He has to offer his wife a home in accordance with her social position and his own; and unless she brings him some fortune, she contributes but little to the support of the family. Professor Vallis has made out that, in the nobility and higher bourgeoisie of Sweden, only 32 per cent. of the male population and 26 per cent. of the female population are married, whilst the averages for the whole population amount to 34 and 32 per cent. respectively.[868] Some such disproportion must always exist when the habits of life are luxurious, and the amount of income does not correspond to them. And it is obvious that women have to suffer from this trouble more than men, the life of many of them being comparatively so useless, and their pretensions, nevertheless, so high.

Another reason why the age for marriage has been raised by advancing civilization is, that a man requires more time to gain his living by intellectual than by material work. Thus, miners, tailors, shoemakers, artisans, &c., who earn in youth almost as much as in later life, marry, as a rule, earlier than men of the professional class.[869] In most European countries the decrease in the number of married people is also partly due to the drafting of young men into the army, and their retention in it in enforced bachelorhood during the years when nature most strongly urges to matrimony.

Of course these conditions affect directly the marriage age only of men, but indirectly they influence that of women also. Many fall in love with their future wives long before they are able to form a home, and those who marry late generally avoid very great disparity of age.[870]

In one respect the average age at which women marry may be said to depend directly upon the degree of civilization. Dr. Ploss has justly pointed out that the ruder a people is, and the more exclusively a woman is valued as an object of desire, or as a slave, the earlier in life is she generally chosen;[871] whereas, if

marriage becomes a union of souls as well as of bodies, the man claims a higher degree of mental maturity from the woman he wishes to be his wife.

At the lower stages of human development, the pleasures of life consist chiefly in the satisfaction of natural wants and instincts. Hence savages and barbarians scarcely ever dream of voluntarily denying themselves "domestic bliss." But, as a writer in 'The Nation' says, "by the general diffusion of education and culture, by the new inventions and discoveries of the age, by the increase of commerce and intercourse and wealth, the tastes of men and women have become widened, their desires multiplied, new gratifications and pleasures have been supplied to them. By this increase of the gratifications of existence the relative share of them which married life affords has become just so much less. The domestic circle does not fill so large a place in life as formerly. It is really less important to either man or woman. Married life has lost in some measure its advantage over a single life. There are so many more pleasures, now, that can be enjoyed as well or even better in celibacy."[872]

It has further been suggested that the development of the mental faculties has made the sexual impulse less powerful. That instinct is said to be most excessive in animals which least excel in intelligence, the beasts which are the most lascivious, as the ass, the boar, &c., being also the most stupid;[873] and M. Forel even believes that, among the ants, increase of mind-power may have led to the sterility of the workers.[874] Idiots, too, are known to display very gross sensuality.[875] Yet the suggestion that decrease of sexual desire is a necessary attendant upon mental evolution cannot, so far as I know, by any means be considered scientifically proved, though we may safely say that if, among primitive men, pairing was restricted to one season of the year, the sexual instinct became gradually less intense as it became less periodical. A higher degree of forethought and self-control has, moreover, to a certain extent put the drag on human passions.

Finally, there can be no doubt that the higher development of feeling has helped to increase the number of those who remain single. "By the diffusion of a finer culture throughout the community," says the above-mentioned writer in 'The Nation,' "men and women can less easily find any one whom they are willing to take as a partner for life; their requirements are more exacting; their standards of excellence higher; they are less able to find any who can satisfy their own ideal, and less able to satisfy anybody else's ideal. Men and women have, too, a livelier sense of the serious and sacred character of the marriage union, and of the high motives from which alone it should be formed. They are less willing to contract it from any lower motives."[876]

In what direction is the civilized world tending with regard to these matters? Will the number of celibates increase as hitherto, or will there be some backward movement in that respect? A definite answer cannot yet be given, since

much will depend on economical conditions which it is impossible at present to foresee.

* * * * *

Before this chapter is closed, it may be worth while to glance at the curious notion that there is something impure and sinful in marriage, as in sexual relations generally. The missionary Jellinghaus found this idea prevalent among the Munda Kols in Chota Nagpore. Once when he asked them, "May a dog sin?" the answer was, "If the dog did not sin how could he breed?"[877] In Efate, of the New Hebrides, according to Mr. Macdonald, sexual intercourse is regarded as something unclean;[878] and the Tahitians believed that, if a man refrained from all connection with women some months before death, he passed immediately into his eternal mansion without any purification.[879] It is perhaps for a similar reason that the Shawanese have a great respect for certain persons who observe celibacy,[880] and that, among the Californian Karok, a man who touches a woman within three days before going out hunting is believed to miss the quarry.[881] Among several peoples, as the Brazilian aborigines,[882] the Papuans of New Guinea,[883] certain tribes in Australia, [884] the Khyoungtha of the Chittagong Hills,[885] and the Khevsurs of the Caucasus,[886] continence is required from newly married people for some time after marriage. The same is the case with several peoples of Aryan origin; and Dr. v. Schroeder even believes that this custom can be traced back to the primitive times of the Indo-European race.[887] In ancient Mexico, the Mazatek bridegroom kept apart from the bride during the first fifteen days of his wedded life, both spending the time in fasting and penance.[888] In Greenland, according to Egede, if married couples had children before a year was past, or if they had large families, they were blamed, and compared to dogs.[889] In Fiji, husbands and wives do not usually spend the night together, except as it were by stealth; it is quite contrary to Fijian ideas of delicacy that they should sleep under the same roof. Thus a man spends the day with his family, but absents himself on the approach of night.[890] Speaking of certain American Indians, Lafitau remarks, "Ils n'osent aller dans les cabanes particulières où habitent leurs épouses, que durant l'obscurité de la nuit; ... ce seroit une action extraordinaire de s'y présenter de jour."[891] Moreover, in spite of the great licentiousness of many savage races, a veil of modesty, however transparent, is generally drawn over the relations of the sexes.[892]

The same notion of impurity doubtless explains the fact that certain persons devoted to religion have to live a single life. In the Marquesas Islands, no one could become a priest without having lived chastely for several years previously.[893] In Patagonia, according to Falkner, the male wizards were not allowed to marry,[894] and the same prohibition applied to the priests of the Mosquito Indians and the ancient Mexicans.[895] In Peru, there were virgins

dedicated to the Sun, who lived in seclusion to the end of their lives; and besides the virgins who professed perpetual virginity in the monasteries, there were other women, of the blood royal, who led the same life in their own houses, having taken a vow of chastity. "These women," says Garcilasso de la Vega, "were held in great veneration for their chastity and purity, and, as a mark of worship and respect, they were called 'Occlo,' which was a name held sacred in their idolatry."[896] In Mexico, also, certain religious women were bound to chastity, although their profession was but for one year. Speaking of these nuns, the pious Father Acosta remarks, "The devil hath desired to be served by them that observe Virginitie, not that chastitie is pleasing unto him, for he is an uncleane spirite, but for the desire he hath to take from the great God, as much as in him lieth, this glory to be served with cleanness and integrity."[897] Justinus tells us of Persian Sun priestesses, who, like the Roman vestals and certain Greek priestesses, were obliged to refrain from intercourse with men; [898] and according to Pomponius Mela, the nine priestesses of the oracle of a Gallic deity in Sena were devoted to perpetual virginity.[899]

The Buddhistic doctrine teaches that lust and ignorance are the two great causes of the misery of life, and that we should therefore suppress lust and remove ignorance. We read in the 'Dhammika-Sutta' that "a wise man should avoid married life as if it were a burning pit of live coals."[900] Sensuality is altogether incompatible with wisdom and holiness. According to the legend, Buddha's mother, who was the best and purest of the daughters of men, had no other sons, and her conception was due to supernatural causes.[901] And one of the fundamental duties of monastic life, by an infringement of which the guilty person brings about his inevitable expulsion from Buddha's Order, is, that "an ordained monk may not have sexual intercourse, not even with an animal. The monk who has sexual intercourse is no longer a monk."[902] Mr. Wilson, indeed, states that, in Tibet, some sects of the Lamas are allowed to marry; but those who do not are considered more holy. And in every sect the nuns must take a vow of absolute continence.[903] Again, the Chinese laws enjoin celibacy upon all priests, Buddhist or Taouist.[904]

In India, where, according to Sir Monier Williams, married life has been more universally honoured than in any other country of the world, celibacy has, nevertheless, in instances of extraordinary sanctity, always commanded respect.[905] "Those of their Sannyâsis," says Dubois, "who are known to lead their lives in perfect celibacy, receive, on that account, marks of distinguished honour and respect." But the single state, which is allowed to those who devote themselves to a life of contemplation, is not tolerated in any class of women. [906]

Among a small class of Hebrews, too, the idea that marriage is impure gradually took root. The Essenes, says Josephus, "reject pleasures as an evil,

but esteem continence and the conquest over our passions to be virtue. They neglect wedlock."[907] This doctrine exercised no influence upon Judaism, but probably much upon Christianity. St. Paul held celibacy to be preferable to marriage:—"He that giveth his virgin in marriage doeth well," he says; "but he that giveth her not in marriage doeth better."[908] Yet, as for most men continence is not possible, marriage is for them not only a right but a duty. "It is good for a man not to touch a woman; nevertheless, to avoid fornication, let each man have his own wife, and let each woman have her own husband.... If they (the unmarried and widows) cannot contain, let them marry: for it is better to marry than to burn."[909] A much stronger opinion as to the superiority of celibacy is expressed by most of the Fathers of the Church. Origen thought marriage profane and impure. Tertullian says that celibacy must be chosen, even if mankind should perish. According to St Augustine, the unmarried children will shine in heaven as beaming stars, whilst their parents will look like the dim ones.[910] Indeed, as Mr. Lecky observes, the cardinal virtue of the religious type became the absolute suppression of the whole sensual side of our nature, and theology made the indulgence of one passion almost the sole unchristian sin.[911] It was a favourite opinion among the Fathers that, if Adam had preserved his obedience to the Creator, he would have lived for ever in a state of virgin purity, and that some harmless mode of vegetation might have peopled paradise with a race of innocent and immortal beings. The use of marriage was in fact permitted to his fallen posterity only as a necessary expedient for the continuance of the human species, and as a restraint, however imperfect, on the natural licentiousness of desire.[912] But, though it may be marriage that fills the earth, says St. Jerome, it is virginity that replenishes heaven.[913]

These opinions led by degrees to the obligatory celibacy of the secular and regular clergy. The New Testament gives us no intimation that, during the lifetime of the apostles, monastic vows were taken by men of any age, or by unmarried women, and hardly any of the apostles themselves were celibates. [914] But gradually, as continence came to be regarded as a cardinal virtue, and celibacy as the nearest approach to the Divine perfection, a notion that the married state is not consistent with the functions of the clergy became general. As early as the end of the fourth century, the continence of the higher grades of ecclesiastics was insisted on by a Roman synod, but no definite punishment was ordered for its violation.[915] Gregory VII.—who "looked with abhorrence on the contamination of the holy sacerdotal character, even in its lowest degree, by any sexual connection"—was the first who prescribed with sufficient force the celibacy of the clergy. Yet, in many countries, it was so strenuously resisted, that it could not be carried through till late in the thirteenth century.[916]

As for the origin of this notion of sexual uncleanness, it may perhaps be connected with the instinctive feeling, to be dealt with later on, against intercourse between members of the same family or household. Experience, I think, tends to prove that there exists a close association between these two feelings, which shows itself in many ways. Sexual love is entirely banished from the sphere of domestic life, and it is reasonable to suppose, therefore, that when it appears in other relations, an association of ideas attaches a notion of impurity to the desire and a notion of shame to its gratification. Evidently, also, the religious enforcement of celibacy is intimately allied to the belief that sexual intercourse is the great transmitter of original sin, as well as to the abhorrence of every enjoyment which is considered to degrade the spiritual nature of man.

Chapter VIII — The Courtship of Man

Speaking of the male and female reproductive cells of plants, Professor Sachs remarks that, wherever we are able to observe an external difference between the two, the male cell behaves actively in the union, the female passively.[917] In this respect there is an analogy between plants and many of the lower animals. In the case of some lowly-organised animals, which are permanently affixed to the same spot, the male element is invariably brought to the female. There are other instances in which the females alone are fixed, and the males must be the seekers. Even when the males and females of a species are both free, it is almost always the males that first approach the females.[918]

As Mr. Darwin points out, we can see the reason why, in the first instance, the male plays the active part:—"Even if the ova were detached before fertilisation, and did not require subsequent nourishment or protection, there would yet be greater difficulty in transporting them than the male element because, being larger than the latter, they are produced in far smaller numbers."[919] He adds, however, that, with respect to forms of which the progenitors were primordially free, it is difficult to understand why the males should invariably have acquired the habit of approaching the females, instead of being approached by them. Perhaps the explanation may be that the seeker is more exposed to danger than the one sought after, and that the death of a male at the pairing time is less disadvantageous for the existence of the species than the death of a female. At any rate, we may say with Mr. Darwin that it is necessary that the males should be endowed with strong passions in order that they may be efficient seekers; and the acquirement of such passions would naturally follow from the more eager males leaving a larger number of offspring than the less eager.[920]

The rule holds good for the human race, the man generally playing a more active, the woman a more passive, part in courtship. The latter, as it has been said, "requires to be courted." Yet, curiously enough, there are a few peoples among whom the reverse seems to be the case, just as, among the lower animals also, there are some species of which the females are the courters.[921] Among the Moquis in New Mexico, according to Dr. Broeck, "instead of the swain asking the hand of the fair one, she selects the young man who is to her fancy, and then her father proposes the match to the sire of the lucky youth."[922] In Paraguay, we are told, the women were generally endowed with stronger passions than the men,[923] and were allowed to make proposals;[924] and among the Garos, according to Colonel Dalton, it is not only the privilege but even the duty of the girl to speak first, any infringement of this rule being summarily and severely punished. "If a male makes advances to a girl," he says, "and the latter, rejecting them, chooses also to tell her friends that such tenders of affection have been made to her, it is looked on as an insult to the whole 'mahári' (motherhood) to which the girl belongs, a stain only to be obliterated by the blood of pigs, and liberal libations of beer at the expense of the 'mahári' to which the man belongs."[925] According to Mr. Batchelor, it constantly occurs among the Ainos that the proposal of marriage comes in the first place from the girl;[926] and in Polynesia,[927] as also among the Kafirs of Natal[928] and certain tribes in Oregon,[929] the same is sometimes the case.

It often happens that the parents of both parties make up the match; and among several peoples the man pays his suit by proxy. But these instances are of no particular importance.

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In most animal species courtship takes place in nearly the same way. During the season of love, the males even of the most timid animals engage in desperate combats with each other for the possession of the female, and she, although comparatively passive, nevertheless often exercises a choice, selecting one of the rivals. This fighting for a female occurs even among insects,[930] and is of universal prevalence in the order of the Vertebrata. We may, with Haeckel, regard it as a modification and a special kind of the struggle for existence.[931]

There can be no doubt that our primeval human ancestors had, in the same way, to combat for their brides. Even now this kind of courtship is far from being unknown. Speaking of the Northern Indians, Hearne states that "it has ever been the custom among those people for the men to wrestle for any woman to whom they are attached; and, of course, the strongest party always carries off the prize. A weak man, unless he be a good hunter and well-beloved, is seldom permitted to keep a wife that a stronger man thinks worth his notice.... This custom prevails throughout all their tribes, and causes a great spirit of emulation among their youth, who are upon all occasions, from their

childhood, trying their strength and skill in wrestling.[932] Richardson also saw, more than once, a stronger man assert his right to take the wife of a weaker countryman. "Any one," he says, "may challenge another to wrestle, and, if he overcomes, may carry off his wife as the prize.... The bereaved husband meets his loss with the resignation which custom prescribes in such a case, and seeks his revenge by taking the wife of another man weaker than himself."[933] With reference to the Slave Indians, Mr. Hooper says, "If a man desire to despoil his neighbour of his wife, a trial of strength of a curious nature ensues: they seize each other by the hair, which is worn long and flowing, and thus strive for the mastery, until one or another cries peccavi. Should the victor be the envious man, he has to pay a certain number of skins for the husband-changing woman."[934]

Among the Californians also, conflicting claims sometimes arise between two or more men in regard to a woman; and, among the Patwin, it occasionally happened that men who had a quarrel about a woman fought a duel with bows and arrows at long distances.[935] In Mexico, a duel often decided the conflict between two competing suitors.[936] Among the Guanas, according to Azara, the men frequently do not marry till they are twenty years old or more, as before that age they cannot conquer their rivals.[937] Among the Muras, the wives are most commonly gained in a combat with fists between all the lovers of the girl; and the same is the case with the Passés.[938]

Among the Australian aborigines, quarrels are perhaps for the most part occasioned by "the fair sex."[939] Speaking of the natives near Herbert Vale, Northern Queensland, Herr Lumholtz says that, "if a woman is good-looking, all the men want her, and the one who is most influential, or who is the strongest, is accordingly generally the victor."[940] Hence, the majority of the young men must wait a long time before they get wives, as they have not the courage to fight the requisite duel for one with an older man.[941] In the tribes of Western Victoria, described by Mr. Dawson, a young chief who cannot get a wife, and falls in love with one belonging to a chief who has more than two, can, with her consent, challenge the husband to single combat, and, if the husband is defeated, the conqueror makes her his legal wife.[942] Narcisse Peltier, who, during seventeen years, was detained by a tribe of Queensland Australians, states that the men "not unfrequently fight with spears for the possession of a woman."[943]

In New Zealand, if a girl had two suitors with equal pretensions, a kind of "pulling match" was arranged in which the girl's arms were dragged by each of the suitors in opposite directions, the stronger man being the victor;[944] and, according to the Rev. R. Taylor, there is in the Maori language even a special term for denoting such a struggle.[945] In Samoa, as also in the Fiji Islands, women have always been one of the chief causes of fighting;[946] and

of the natives of Makin, of the Kingsmill Group, Mr. Wood assures us that "they have no wars, and very few arms, and seldom quarrel except about their women."[947]

Among the South African Bushmans, the "stronger man will sometimes take away the wife of the weaker."[948] The people of Wadaï are notorious for their desperate fights for women; and, among the young men of Baghirmi, bloody feuds between rivals are far from being of rare occurrence.[949]

In the islands outside Kamchatka there prevailed formerly a very curious custom, as reported by Steller. If a husband found that a rival had been with his wife, he would admit that the rival had at least an equal claim to her. "Let us try, then," he would say, "which of us has the greater right, and shall have her." After that they would take off their clothes and begin to beat each other's backs with sticks; and he who first fell to the ground, unable to bear any more blows, lost his right to the woman.[950]

Among the ancient Hindus, says Mr. Samuelson, "it was a custom in royal circles, when a princess became marriageable, for a tournament to be held, and the victor was chosen by the princess as her husband." This custom was known as the "Swayamvara," or "Maiden's Choice," and it is often mentioned in the ancient legends.[951]

In Greek legends and myths, we meet with several instances of fighting or emulation for women. Pausanias tells us that Danaus established a race for his daughters, and that "he that outran all the rest was to have the first choice, and take her whom he most approved; he that was next in order was to have the second choice, and so on to the last; and those who had no suitors were ordered to wait till new ones came to the course."[952] According to Pindar, Antæus, father of a fair-haired and greatly-praised daughter, who had many suitors, stationed the whole company of them at the end of the race-course, saying that he should have her for his bride who should prove foremost in the race and first touch her garments.[953] Icarus likewise proposed a race for the suitors of Penelope;[954] and, as Mr. Hamilton remarks, "the triumph of Odysseus over the Suitors is the real end of the Odyssey."[955]

According to Dr. Krauss, the South Slavonian youths on Palm Sunday, the day for presentiments of love, wrestle with each other, believing that he who proves the stronger will get the prettier wife.[956] Arthur Young informs us of the following strange custom which prevailed in the interior of Ireland in his time:—"There is a very ancient custom here," he says, "for a number of country neighbours among the poor people to fix upon some young woman that ought, as they think, to be married; they also agree upon a young fellow as a proper husband for her; this determined, they send to the fair one's cabin to inform her that on the Sunday following 'she is to be horsed,' that is, carried on men's backs. She must then provide whisky and cider for a treat, as all will pay her a

visit after mass for a hurling match. As soon as she is horsed the hurling begins, in which the young fellow appointed for her husband has the eyes of all the company fixed on him: if he comes off conqueror, he is certainly married to the girl; but if another is victorious, he as certainly loses her, for she is the prize of the victor.... Sometimes one barony hurls against another, but a marriageable girl is always the prize."[957]

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The sexual struggle in the animal kingdom is not always of a violent kind. As Mr. Darwin has pointed out, males often try by peaceful emulation to charm the female. In many species of birds the male seems to endeavour to gain his bride by displaying his colours and ornaments before her, or exciting her by his love-notes, songs, and antics. But among the lower Mammals he wins her, apparently, much more through the law of battle than through the display of his charms.[958] There can scarcely be any doubt that the same was the case with primitive men; but we need not mount many steps of human progress to find that courtship involves something more than a mere act of strength or courage on the part of the male. It is not only in civilized countries that it often means a prolonged making of love to the woman. Mariner's words with reference to the women of Tonga hold true for a great many, not to say all, savage and barbarous races now existing. "It must not be supposed," he says, "that these women are always easily won; the greatest attentions and most fervent solicitations are sometimes requisite, even though there be no other lover in the way. This happens sometimes from a spirit of coquetry, at other times from a dislike to the party, &c."[959]

Though generally playing the less active part in courtship, the woman does not by any means indulge in complete passivity. Mr. Hooper tells us that, among the Indians at James's Bay, "two young Indian women were observed some years ago in violent conflict.... After a lengthened and determined struggle the weakest succumbed to the superior prowess of her fortunate adversary. It appeared that these girls were in love with the same man, and had self-instituted this mode of deciding their claims."[960] Among the Wintun of California, according to Mr. Powers, when any man other than a chief attempts to introduce into his wigwam a second partner of his bosom, the two women dispute for the supremacy, often in a desperate pitched battle with sharp stones; "they maul each other's faces with savage violence, and if one is knocked down her friends assist her to regain her feet, and the brutal combat is renewed until one or the other is driven from the wigwam."[961] Peltier states that, in the Australian tribe already referred to, the women, of whom from two to five commonly belong to each man, fight among themselves about him, "their weapons being heavy staves, with which they beat one another about the head till the blood flows."[962] In the Kingsmill Islands, women sometimes, from

jealousy, carry a small weapon, watching an opportunity of making an attack upon their rivals, desperate fights being the consequence;[963] and, among the Kamchadales also, the females are said to have fought for the males.[964] But far more commonly women try to secure men's love by coquetry or the display of their charms. Finally, whilst the men are generally the courters, the women may in many, perhaps most cases, accept or refuse their proposals at pleasure.

The next chapter will be devoted to an account of some of the most common means by which the sexes endeavour, or formerly endeavoured, to make themselves attractive to one another, and to stimulate each other's passions. Then we shall see how far woman has the liberty of disposing of her own hand, and, at the same time, note cases in which the man also, with regard to his marriage, has to submit to some other's will.

Chapter IX — Means of Attraction

The desire for self-decoration, although a specifically human quality, is exceedingly old. There are peoples destitute of almost everything which we regard as necessaries of life, but there is no people so rude as not to take pleasure in ornaments. The ancient barbarians who inhabited the south of Europe at the same time as the reindeer and the mammoth, brought to their caves brilliant and ornamental objects.[965] The women of the utterly wretched Veddahs in Ceylon decorate themselves with necklaces of brass beads, and bangles cut from the chank shell.[966] The Fuegians "are content to be naked," but "ambitious to be fine."[967] The Australians, without taking the slightest pride in their appearance, so far as neatness or cleanliness is concerned, are yet very vain of their own rude decorations.[968] And of the rude Tasmanians, Cook tells us that they had no wish to obtain useful articles, but were eager to secure anything ornamental.

"Great as is the vanity of the civilized," says Mr. Spencer, "it is exceeded by that of the uncivilized."[969] The predilection of savages for ornaments has been sufficiently shown by travellers in almost every part of the world. Feathers and beads of different colours, flowers, rings, anklets, and bracelets, are common embellishments. A fully-equipped Santal belle, for instance, carries two anklets, and perhaps twelve bracelets, and a necklace weighing a pound, the total weight of ornaments on her person amounting to thirty-four pounds of bell metal,—"a greater weight," says Captain Sherwill, "than one of our drawing-room belles could well lift."[970] Besides this, the body is transformed in various ways. The lips, the sides of the nose, and the lobes of the ear are especially ill-treated. Hardly any woman in Eastern Central Africa is without a lip-ring; they say it makes them look pretty, and "the bigger the ring, the more

they value themselves!"[971] The Shulis bore a hole in the underlip and insert in it a piece of crystal three or four inches long, which sways about as they speak; [972] and similar customs are common among other African peoples,[973] as also in some parts of North and South America.[974] The Papuans perforate the septum of the nose and insert in the hole sticks, claws of birds, &c.[975] The most common practice is to pierce, enlarge, or somehow mutilate the ear-lobes. Certain North American Indians,[976] the Arecunas and Botocudos of South America,[977] and the East African Wa-taïta[978] pull them down almost to the shoulders. Among the Easter Islanders, says Beechey, "the lobe, deprived of its ear-ring, hangs dangling against the neck, and has a very disagreeable appearance, particularly when wet. It is sometimes so long as to be greatly in the way; to obviate which, they pass the lobe over the upper part of the ear, or more rarely, fasten one lobe to the other, at the back of the head."[979]

Scarcely less subject to mutilations are the teeth. In the Malay Archipelago, the filing and blackening of the teeth are thought to produce a most beautiful result, white teeth being in great disesteem.[980] The Australians often knock out one or two front teeth of the upper jaw, and several tribes in New Guinea file their teeth sharp.[981] Again, the Damaras file the middle teeth in the upper jaw into the form of a swallow's tail, and knock out four teeth in the lower jaw; whilst one of the Makalaka tribes, north of the Zambesi, and the Matongas, on its bank, "break out their top incisor-teeth from the sheerest vanity. Their women say that it is only horses that eat with all their teeth, and that men ought not to eat like horses."[982]

Many savage men take most pride in the hair of the head. Now it is painted in a showy manner, now decorated with beads and tinsel, now combed and arranged with the most exquisite care. The Kandhs have their hair, which is worn very long, drawn forward and rolled up till it looks like a horn projecting from between the eyes. Around this it is their delight to wear a piece of red cloth, and they insert the feathers of favourite birds, as also a pipe, comb, &c. [983] The men of Tana, of the New Hebrides, wear their hair "twelve and eighteen inches long, and have it divided into some six or seven hundred little locks or tresses;"[984] and, among the Latúka, a man requires a period of from eight to ten years to perfect his coiffure.[985] In North America, Hearne saw several men about six feet high, who had preserved "a single lock of their hair that, when let down, would trail on the ground as they walked."[986] Other Indians practise the custom of shaving the head and ornamenting it with the crest of deer's hairs; and wigs are used by several savage peoples.[987] The Indians of Guiana, the Fuegians, Chavantes, Uaupés,[988] and other tribes are in the habit of pulling out their eyebrows.

Scarcely anything has a greater attraction for the savage mind than showy colours. "No matter," says Dr. Holub, "how ill a traveller in the Marutse district

may be, and how many bearers he may require, if he only has a good stock of blue beads he may always be sure of commanding the best attention and of securing the amplest services; his beads will prove an attraction irresistible to sovereign and subject, to man, woman, and child, to freeman and bondman alike."[989] The practice of ornamenting one's self with gaudy baubles and painting the body with conspicuous colours is, indeed, extremely prevalent. Of Santal men at a feast, Sir W. Hunter says that, "if all the colours of the rainbow were not displayed by them, certainly the hedgehog, the peacock, and a variety of the feathered tribe had been laid under contribution in order to supply the young Santal beaux with plumes."[990] Especially does the savage man delight in paint. Red ochre is generally looked upon as the chief embellishment, whilst, of the other colours, black and white are probably most in use. The Naudowessies paint their faces red and black, "which they esteem as greatly ornamental."[991] Among the Guaycurûs, many men paint their bodies half red, half white.[992] Throughout the Australian continent the natives stain themselves with black, red, yellow, and white.[993] In Fiji, a small quantity of vermilion is esteemed "as the greatest possible acquisition."[994] In New Zealand, the lips of both sexes are generally dyed blue; and in Santa Cruz, or Egmont Island, Labillardière observed with surprise that "there was very much diffused a fondness for white hair, which formed a striking contrast to the colour of their skin."[995]

"Not one great country can be named," Mr. Darwin says, "from the Polar regions in the north to New Zealand in the south, in which the aborigines do not tattoo themselves."[996] This practice was followed by the ancient Assyrians, Britons, and Thracians,[997] as it is followed by most savages still. And it may be said without exaggeration that there is no visible part of the human body, except the eyeball, that has escaped from being disfigured in this way. Some of the Easter Islanders tattoo their foreheads in arched lines, as also the edges of their ears, and the fleshy part of their lips.[998] The Abyssinian women occasionally prick their gums entirely blue.[999] The Mundrucûs tattooed even their eyelids.[1000] And, speaking of the tattooing of the Sandwich Islanders, Freycinet remarks, "Aucune partie de leur corps n'en est exempte; le nez, les oreilles, les paupières, le sommet de la tête, le bout de la langue même dans quelques circonstances, en sont surchargés non moins que la poitrine, le dos, les jambes, les bras et la paume des mains."[1001]

Often cicatrices are made in the skin, without any colouring matter being used. Some tribes of Madagascar, for instance, are in the habit of making marks, "which are intended to be ornamental," by slight incisions in the skin.[1002] The natives of Tana ornament themselves by "cutting or burning some rude device of a leaf or a fish on the breast, or upper part of the arm."[1003] The Australians throughout the continent scar their persons, as Mr. Curr assures us,

only as a means of decoration.[1004] And, in Fiji, "rows of wart-like spots are burned along the arms and backs of the women, which they and their admirers call ornamental."[1005]

It has been suggested that many of these practices sprang from other motives than a desire for decoration; and some are said to have had a religious origin. The Australian Dieyerie, on being asked why he knocks out two front teeth of the upper jaw of his children, can answer only that, when they were created, the Muramura, a good spirit, thus disfigured the first child, and, pleased at the sight, commanded that the like should be done to every male or female child for ever after.[1006] The Pelew Islanders believe that the perforation of the septum of the nose is necessary for winning eternal bliss;[1007] and the Nicaraguans say that their ancestors were instructed by the gods to flatten the children's heads.[1008] Again, in Fiji, it is supposed that the custom of tattooing is in conformity with the appointment of the god Dengei, and that its neglect is punished after death.[1009] A similar idea prevails among the Kingsmill Islanders and Ainos;[1010] and the Greenlanders formerly believed that the heads of those girls who had not been deformed by long stitches made with a needle and black thread between the eyes, on the forehead, and upon the chin, would be turned into train tubs, and placed under the lamps in heaven, in the land of souls.[1011] But such tales are not of much importance, as any usage practised from time immemorial may easily be ascribed to the command of a god.

Mr. Frazer suggests that several of the practices here mentioned are fundamentally connected with totemism.[1012] In order to put himself more fully under the protection of the totem, the clansman, according to Mr. Frazer, is in the habit of assimilating himself to it by the arrangement of his hair and the mutilation of his body; and of representing the totem on his body by cicatrices, tattooing, or paint. Thus the Buffalo clans of the Iowa and Omahas wear two locks of hair in imitation of horns; whilst the Small Bird clan of the Omahas "leave a little hair in front, over the forehead, for a bill, and some at the back of the head, for the bird's tail, with much over each ear for the wings;" and the Turtle subclan cut off all the hair from a boy's head, except six locks which are arranged so as to imitate the legs, head, and tail of a turtle. The practice of knocking out the upper front teeth at puberty, Mr. Frazer continues, is, or was once, probably an imitation of the totem; and so also the bone, reed, or stick which some Australian tribes thrust through the nose. The Haidahs of Queen Charlotte Islands have always, and the Iroquois commonly, their totems tattooed on their persons, and certain other tribes have on their bodies tattooed figures of animals, which Mr. Frazer thinks likely to be totem marks. According to one authority, the raised cicatrices of the Australians are sometimes arranged

in patterns representing the totem; and, among a few peoples, the totem is painted on the person of the clansman.[1013]

Mr. Frazer's theory is supported by exceedingly few facts whereas there is an enormous mass of cases in which we have no right whatever to infer a connection with totemism. It is, indeed, impossible to see how most of the practices considered in this chapter could have originated in this way. How is it possible to explain the knocking out of the upper front teeth or the thrusting of a stick through the nose as imitations of totem animals? And how are we to connect the mutilations of the ears and other parts of the body, and the various modes of self-decoration, with totemism? Since all such practices are universally considered to improve the appearance, and, as will be shown presently, take place at the same period of life, we may justly infer that the cause to which they owe their origin is fundamentally one and the same. As for tattooing, Professor Gerland assumes that the tattooed marks were originally figures of totem animals, though they are no longer so;[1014] but an assumption of that kind is not permissible in a scientific investigation. And even in those rare cases, where a connection between tattooing and totemism undoubtedly exists, we cannot be sure whether this connection is not secondary. At present tattooing is everywhere regarded exclusively, or almost exclusively, as a means of decoration, and Cook states expressly that, in the South Sea Islands, at the time of their discovery, it was in no way connected with religion.[1015] Nor can I agree with Mr. Spencer that tattooing and other kinds of mutilation were practised originally as a means of expressing subordination to a dead ruler or a god.[1016] Equally without evidence is Mr. Colquhoun's opinion that the custom originated in the wish either to make a man more fearful in battle, or to render the body invulnerable by the tattooing of charms on it.[1017]

It is true, no doubt, that this practice subserves various ends. Mr. Keyser speaks of a chief in New Guinea who had sixty-three blue tattoo lines on his chest, which represented the number of enemies he had slain.[1018] Moreover, the tattooed marks make it possible for savages to distinguish their own clansmen from their enemies;[1019] though I cannot think, with Chenier,[1020] that this was their original object. Again, many ornaments are really nothing but trophy-badges, and many things used for ornaments were at first substitutes for trophies, having some resemblance to them;[1021] whilst others are carried as signs of opulence.[1022] I do not deny, either, that men may sometimes paint their bodies in order to inspire their enemies with fear in battle, or that the use of red ochre and fat is good as a defence against changes of weather, flies, and mosquitoes.[1023] Nevertheless, it seems to be beyond doubt that men and women began to ornament, mutilate, paint, and tattoo themselves chiefly in order to make themselves attractive to the opposite sex,—that they might court successfully, or be courted.

It is noteworthy that in all parts of the world the desire for self-decoration is strongest at the beginning of the age of puberty, all the above-named customs being practised most zealously at that period of life. Concerning the Dacotahs, Mr. Prescott states that both sexes adorn themselves at their courtships to make themselves more attractive, and that "the young only are addicted to dress."[1024] The Oráon, according to Colonel Dalton, is likewise particular about his personal appearance "only so long as he is unmarried."[1025] Among the Let-htas in Indo-China, it is the unmarried youths that are profusely bedecked with red and white bead necklaces, wild boars' tusks, brass armlets, and a broad band of black braid below the knee.[1026] Speaking of the Encounter Bay tribe of South Australia, the Rev. A. Meyer says that "the plucking out of the beard and anointing with grease and ochre (which belong to the initiatory ceremony) the men may continue if they please till about forty years of age, for they consider it ornamental, and fancy that it makes them look younger, and gives them an importance in the eyes of the women."[1027] In Fiji, says Mr. Anderson, the men, "who like to attract the attention of the opposite sex, don their best plumage;"[1028] and when Mr. Bulmer once asked an Australian native why he wore his adornments, the native answered "that he wore them in order to look well, and to make himself agreeable to the women."[1029]

It is when boys or girls approach puberty that, in the north-west part of North America, they have their lower lip perforated for the labret;[1030] that, among the American Eskimo, the African Masarwas, and certain Australian natives, the cartilage between the nostrils is pierced for the reception of a piece of bone, wood, or shell.[1031] At the same age, among the Chibchas and the aborigines of the Californian Peninsula, holes were made in the ears.[1032] It is at this period of life, also, that the Chaymas of New Andalusia, the Pelew Islanders, and the natives of New Britain have their teeth blackened, as black teeth, both for men and women, are considered an indispensable condition of beauty;[1033] and that, in several parts of Africa and Australia, they knock out some teeth, knowing that otherwise they would run the risk of being refused on account of ugliness.[1034] Among the Nicobarese, among whom the men blacken their teeth from the period of puberty, this disfigurement is indeed so favourably regarded by the fair sex that a woman "would scorn to accept the addresses of one possessing white teeth, like a dog or pig."[1035] Mr. Crawfurd tells us that, in the Malay Archipelago, the practice of filing and blackening the teeth, already referred to, is a necessary prelude to marriage, the common way of expressing the fact that a girl has arrived at puberty being that "she has had her teeth filed."[1036] And, with reference to some of the natives of the Congo countries, Tuckey states that the two upper front teeth are filed by the men, so as to make a large opening, and scars are raised on the skin, both

being intended by the men as ornamental, and "principally done with the idea of rendering themselves agreeable to the women."[1037]

The important part played by the hair of the head as a stimulant of sexual passion appears in a curious way from Mr. Sibree's account of King Radàma's attempt to introduce European customs among the Hovas of Madagascar. As soon as he had adopted the military tactics of the English, he ordered that all his officers and soldiers should have their hair cut; but this command produced so great a disturbance among the women of the capital that they assembled in great numbers to protest against the king's order, and could not be quieted till they were surrounded by troops and their leaders cruelly speared.[1038] Everywhere it is the young and unmarried people who are most anxious to dress their hair.[1039] Thus, among the Bunjogees, a Chittagong Hill tribe, the young men "stuff a large ball of black cotton into their topknot to make it look bigger."[1040] In the Tenimber Group, the lads decorate their long locks with leaves, flowers, and feathers, as Riedel says, "only in order to please the women."[1041] Among the Tacullies, "the elderly people neglect to ornament their heads, in the same manner as they do the rest of their persons, and generally wear their hair short. But the younger people of both sexes, who feel more solicitous to make themselves agreeable to each other, wash and paint their faces and let their hair grow long."[1042] And in the Admiralty Islands, according to Professor Moseley, "only the young men of apparently from eighteen to thirty, or so, wear the hair long and combed out into a mop or bush," whilst the boys or older men wear the hair short.[1043]

Passing to the practice of painting the body: Dr. Sparrman tells us that the two Hottentots whom he had in his service, when they expected to meet some girls of their own nation, painted their noses, cheeks, and the middle of the forehead with soot.[1044] On Flinders Island, whither the remnant of the Tasmanians were removed, a rebellion nearly burst out when orders were once issued forbidding the use of ochre and grease, for "the young men feared the loss of favour in the eyes of their countrywomen."[1045] Among the Guarayos, the suitor, when courting, keeps for some days close to the cabin of the mistress of his heart, he being painted from head to foot, and armed with his battle club.[1046] In certain parts of Australia, when a boy arrives at the age of puberty, his hair, body, and limbs are profusely smeared with red ochre and fat, this being one of the rites by which he is initiated into the privileges of manhood.[1047] Again, with reference to the Ahts, Mr. Sproat remarks that "some of the young men streak their faces with red, but grown-up men seldom now use paint, unless on particular occasions." The women cease to use it about the age of twenty-five.[1048]

The girls are generally painted when they arrive at the epoch of the first menstruation.[1049] Thus, among certain Equatorial Africans, they are rubbed

with black, red, and white paints in the course of a ceremony which, according to Mr. Reade, is essentially of a Phallic nature.[1050] If a young maiden of the Tapoyers of Brazil "be marriageable, and yet not courted by any, the mother paints her with some red colour about the eyes."[1051]

The act of tattooing, also, generally takes place at the age of puberty, in the case of men as well as in that of women. It is about that period that, in the underlip of all freeborn female Thlinkets, "a slit is made parallel with the mouth, and about half an inch below it;"[1052] that, among the Eskimo, pigments of various dye are pricked on the chin, at the angles of the mouth, and across the face over the cheek-bones;[1053] that, in some South American tribes, incisions are made from the shoulders of the girl to her waist, "when she is regarded as a delicious morsel for the arms of an ardent lover."[1054] At the same age, either or both sexes are subject to tattooing among the Guarayos,[1055] Abipones,[1056] Baris,[1057] Gonds,[1058] Dyaks,[1059] Negritos of the Philippines,[1060] South Sea Islanders,[1061] Australians,[1062] &c. Among the Nagas of Upper Assam, it was the custom "to allow matrimony to those only who made themselves as hideous as possible by having their faces elaborately tattooed."[1063] The Makalaka girls, before they could marry, had to submit to horrible torture, about four thousand stitches being made in the skin of the chest and stomach, and a black fluid being rubbed into the wounds.[1064] In New Zealand, according to the Rev. R. Taylor, it was the great ambition of the young to have fine tattooed faces, "both to render themselves attractive to the ladies, and conspicuous in war."[1065] In Samoa, until a young man was tattooed, he could not think of marriage, but as soon as this was done, he considered himself entitled to all the privileges of mature years.[1066] "When it is all over," says Mr. Pritchard, "and the youths thoroughly healed, a grand dance is got up on the first available pretext to display the tattooing, when the admiration of the fair sex is unsparingly bestowed. And this is the great reward, long and anxiously looked forward to by the youths as they smart under the hands of the 'matai.'"[1067] Often, however, the operation is accomplished not at once, but at different times, that the patients may be able to bear the inflammation and pain at every stage of the process; and not unfrequently it begins when the girls are quite young children, being constantly added to until they marry.[1068]

The real object of the custom is shown also by several other statements. When Mertens asked the natives of Lukunor what was the meaning of tattooing, one of them answered, "It has the same object as your clothes, that is, to please the women."[1069] Bancroft remarks that young Kadiak wives "secure the affectionate admiration of their husbands by tattooing the breast and adorning the face with black lines."[1070] The raised cuts of the Australians, according to Mr. Palmer, are "merely ornamental and convey no idea of tribal

connection," the women marking themselves in this manner "to add to their looks, and to make themselves attractive."[1071] Barrington assures us that, among the natives of Botany Bay, "scars are, by both sexes, deemed highly ornamental;"[1072] and, in the Eucla tribe, according to Mr. W. Williams, both sexes make horizontal scars on the chest and vertical scars on the upper arm "for the purpose of ornamentation."[1073] In Ponapé, as we are informed by von Kubary and Finsch, tattooing is practised only as a means of improving the appearance;[1074] and, in New Guinea, the women tattoo themselves "to please the men."[1075] Bock remarks, "As the Dyak women are tattooed to please their lovers, so the Laos men undergo the ordeal for the sake of the women."[1076]

In Samoa, great licentiousness was connected with the custom of tattooing; and, in Tahiti, the chiefs prohibited it altogether on account of the obscene practices by which it was invariably accompanied in that island.[1077] The Tahitians have also a very characteristic tale of its origin. Taaroa, their god, and Apouvaru had a daughter, who was called Hinaeree-remonoi. "As she grew up, in order to preserve her chastity, she was made 'pahio,' or kept in a kind of enclosure, and constantly attended by her mother. Intent on her seduction, the brothers invented tattooing, and marked each other with the figure called Taomaro. Thus ornamented, they appeared before their sister, who admired the figures, and, in order to be tattooed herself, eluding the care of her mother, broke the enclosure that had been erected for her preservation, was tattooed, and became also the victim to the designs of her brothers. Tattooing thus originated among the gods, and was first practised by the children of Taaroa, their principal deity. In imitation of their example, and for the accomplishment of the same purposes, it was practised among men.... The two sons of Taaroa and Apouvaru were the gods of tattooing. Their images were kept in the temples of those who practised the art professionally, and every application of their skill was preceded by a prayer addressed to them, that the operation might not occasion death, that the wounds might soon heal, that the figures might be handsome, attract admirers, and answer the ends of wickedness designed."[1078]

This legend is especially instructive because it shows how a custom which had originally nothing to do with religion may in time take a more or less religious character. Professor Wundt holds that, in most cases, religious ideas are the original sources from which customs flow;[1079] but it is far more probable that the connection between religion and custom is often secondary. Nearly every practice which for some reason or other has come into fashion and taken root among the people, is readily supposed to have a divine sanction; and this is one of the reasons why conservatism as to religion is so often accompanied by conservatism in other matters. This must especially be the case among savage

men who identify their ancestors with their gods, and consequently look upon ancient customs as divine institutions.

It is, indeed, difficult to believe that the motives which gave rise to tattooing can have been different from those which led to the painting of the body. The chief distinction between the two is, that the tattooed marks are indelible, being neither extinguished nor rendered fainter by lapse of time. Hence the prevalence of tattooing may be explained by a general desire among savages to make the decorations of the body permanent. Sometimes, too, the custom seems to be kept up as a test of courage.[1080]

Even to European tastes the incised lines and figures have in many cases a certain beauty. Thus, speaking of the Gambier Islanders, Beechey assures us that the tattooing undoubtedly improves their appearance; and Yate remarks that "nothing can exceed the beautiful regularity with which the faces and thighs of the New Zealanders are tattooed," the volutes being perfect specimens, and the regularity mechanically correct.[1081] Forster observed that, among the natives of Waitahoo (Marquesas Islands), the punctures were disposed with the utmost care, so that the marks on each leg, arm, and cheek and on the corresponding muscles were exactly similar.[1082] Among the Tahitians, according to Darwin, the ornaments follow the curvature of the body so gracefully, that they have a very pleasing and elegant effect; and, among the Easter Islanders, "all the lines were drawn with much taste, and carried in the direction of the muscle."[1083] The fact that the tattooed lines follow closely the natural forms of the body in order to render them more conspicuous, has been observed in the case of other peoples also,[1084] and it would be ridiculous to regard such marks as transformed images of gods.

The facts stated seem to show that the object of tattooing,[1085] as well as of other kinds of self-decoration or mutilation, was to stimulate the sexual desire of the opposite sex. To us it appears strange that such repugnant practices as that of perforating the septum of the nose or removing teeth should owe their origin to coquetry, but we must not judge of the taste of savages by our own. In this case the desire for self-decoration is to a great extent identical with the wish to attract attention, to excite by means of the charm of novelty.[1086] At all stages of civilization people like a slight variety, but deviations from what they are accustomed to see must not be too great, nor of such a kind as to provoke a disagreeable association of ideas. In Cochin China, where the women blacken their teeth, a man said of the wife of the English Ambassador contemptuously that "she had white teeth like a dog;"[1087] and the Abipones in South America, who carefully plucked out all the hairs with which our eyes are naturally protected, despised the Europeans for their thick eyebrows, and called them brothers to the ostriches, who have very thick brows.[1088] We,

on the other hand, would dislike to see a woman with a crystal or a piece of wood in her lip.

It is a common notion that women are by nature vainer and more addicted to dressing and decorating themselves than men. This certainly does not hold good for savage and barbarous peoples in general. It is true that, among many of them, tattooing is exclusively or predominantly limited to the women, and that the men sometimes wear fewer ornaments. But several travellers, as for instance Dr. Schweinfurth[1089] and Dr. Barth,[1090] who have a vast experience of African races, agree that the reverse is usually the case. The women of all the tribes of Indians Richardson saw on his route through the northern parts of the fur countries, adorned their persons less than the men of the same tribes; and the like is said of the Comanches.[1091] Among the Uaupés, Mr. Wallace observed "that the men and boys appropriated all the ornaments."[1092] The native women of Orangerie Bay of New Guinea, except that they are tattooed, adorn themselves less than the men, and none of them paint their faces and bodies, as the men frequently do.[1093] In the Admiralty Islands, young girls "sometimes have a necklace or two on, but they never are decorated to the extent to which the men are," it being evidently not considered good taste for them to adorn their persons.[1094] Among the aborigines of the New Hebrides, New Hanover, New Ireland,[1095] and Australia,[1096] adornments are almost entirely monopolised by the men, the "fair sex" being content with their natural charms.

It has been suggested that the plainer appearance of the women depends upon their oppressed and despised position, as well as upon the selfishness of the men.[1097] But it is doubtful whether this is the true explanation. Savage ornaments, generally speaking, are not costly things, and even where the state of women is most degraded a woman may, if she pleases, paint her body with red ochre or put a piece of wood through her lip or a feather through the cartilage of the nose. In Eastern Central Africa, for instance, the women are more decorated than the men, although they hold an inferior position, being viewed as beasts of burden, and doing all the harder work. "A woman," says Mr. Macdonald, "always kneels when she has occasion to talk to a man."[1098] Almost the same is said of the female Indians of Guiana;[1099] whereas in the Yule Island, on the Coast of New Guinea, and in New Hanover, the women are less given to personal adornment than the men, although they are held in respect, have influence in their families, and exercise, in some villages, much authority, or even supremacy.[1100]

Of all the various kinds of self-ornamentation tattooing is the most laborious. Yet, in Melanesia, it is chiefly women that are tattooed, though they are treated as slaves; whilst in Polynesia, where the status of women is comparatively good, this practice is mainly confined to the men.[1101] In Fiji, where

women were fearfully oppressed, genuine tattooing was found on them only.[1102]

It is expressly stated of the women of several savage peoples that they are less desirous of self-decoration than the men. Speaking of the Aleuts on the Fur-Seal Islands of Alaska, Mr. Elliott says, "In these lower races there is much more vanity displayed by the masculine element than the feminine, according to my observation; in other words, I have noticed a greater desire among the young men than among the young women of savage and semi-civilised people to be gaily dressed, and to look fine."[1103] Among the Gambier Islanders, according to Beechey, the women "have no ornaments of any kind, and appeared quite indifferent to the beads and trinkets which were offered them."[1104] In Tierra del Fuego, Lieutenant Bove found the men more desirous of ornaments than the women; and Proyart made a similar observation with regard to the people of Loango.[1105] Again, touching the Crees, Mackenzie remarks that "the women, though by no means inattentive to the decoration of their own persons, appear to have a still greater degree of pride attending to the appearance of the men, whose faces are painted with more care than those of the women."[1106]

It is difficult, then, to believe that the inferior position of the weaker sex accounts for the comparative scarcity of female ornaments. The fact may to some extent be explained by Mr. Spencer's suggestion, that ornaments have partly originated from trophy-badges, and Professor Wundt's, that they indicate rank and fortune: but these explanations apply only to a few cases. If it be true that man began to decorate himself chiefly in order to stimulate the passions of the opposite sex, we may conclude that the vanity of the men is, in the first place, due to the likings of the women, and that the plainer appearance of the women is a consequence of the men's greater indifference to their ornaments. Mr. Darwin has shown that, among our domesticated quadrupeds, individual antipathies and preferences are exhibited much more commonly by the female than by the male,[1107] and the same, as we shall see, is in some measure the case with man also. It is the women rather than the men that have to be courted. Thus, with reference to the natives of Gippsland, Mr. Brough Smyth, on the authority of Mr. Bulmer, states, "The ornaments worn by the females were not much regarded by the men. The woman did little to improve her appearance; ... if her physical aspect was such as to attract admirers she was content."[1108]

It should also be noted that among savages it is, as a rule, the man only that runs the risk of being obliged to lead a single life. Hence it is obvious that to the best of his ability he must endeavour to be taken into favour by making himself as attractive as possible. In civilized Europe, on the other hand, the opposite occurs. Here it is the woman that has the greatest difficulty in getting married —and she is also the vainer of the two.

The hypothesis as to the origin of the customs in question, set forth in this chapter, presupposes of course that savage girls enjoy great liberty in the choice of a mate. It will be seen subsequently that there can be no doubt as to the accuracy of that presumption.

At a higher stage of civilization the tendency of mankind is to give up savage ornaments, and no longer to regard mutilations of the body as improving the appearance. In Persia, women still wear the nose-ring through one side of the nostril,[1109] but to a European such a custom would be extremely displeasing. In the Western world the ear-ring is the last vanishing relic of savage taste.

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From the naked body the ornaments were transferred to clothing, partly because climate made clothes necessary, partly for another reason. "A savage begins," Professor Moseley says, "by painting or tattooing himself for ornament. Then he adopts a movable appendage, which he hangs on his body, and on which he puts the ornamentation which he formerly marked more or less indelibly on his skin. In this way he is able to gratify his taste for change."[1110]

It is usually said that man began to cover his body for two reasons: first, to protect himself from frost and damp; secondly, on account of a feeling of shame.

There can be no doubt that, when man emigrated from his warm native home and settled down in less hospitable zones, it became necessary for him to screen himself from the influences of a raw climate. The Eskimo wrap themselves up in furs, and the wretched natives of Tierra del Fuego throw a piece of sealskin over one of their shoulders, "on the side from which the wind blows."[1111]

The second motive, too, seems acceptable at first sight. The savage men of the tropics, though otherwise entirely naked, commonly wear a scanty dress which Europeans might readily suppose to be used for the sake of decency. Nothing of the sort is found in any other animal species; hence Professor Wundt concludes that shame is "a feeling specifically peculiar to man."[1112]

But why should man blush to expose one part of the body more than another? This is no matter of course, but a problem to be solved.

The feeling in question cannot be regarded as originally innate in mankind. There are many peoples, who, though devoid of any kind of dress, show no trace of shame, and others who, when they dress themselves, pay not the least regard to what we consider the first requirements of decency.

Thus, in the northern parts of the Californian Peninsula, both men and women have been found in a state of nudity.[1113] Among the Miwok, according to their own confession, persons of both sexes and of all ages were formerly absolutely naked.[1114] Lyman found the same to be the case with the Paiuches in northern Colorado, Columbus with the aborigines of Hispaniola, Pizarro with the Indians of Coca, v. Humboldt with the Chaymas, Wallace with

the Purupurús, v. Schütz-Holzhausen with the Catamixis, Prince Maximilian with the Puris at St. Fidelis, Azara with certain Indians in the neighbourhood of the river Paraguay.[1115] In some Indian tribes the men alone go naked,[1116] in others the women.[1117] Again, in North America, Mackenzie met a troop of natives, of whom the men wore many ornaments and much clothing, but had, apparently, not the slightest notion of bashfulness. And of the Fuegians we are told that, although they have the shoulder or the back protected by a sealskin, the rest of the body is perfectly naked.[1118]

The men of most Australian tribes, and in many cases the women, wear no clothes except in cold weather, when they throw a kangaroo skin about their shoulders. "They are as innocent of shame," says Mr. Palmer, "as the animals of the forests."[1119] In Tasmania, too, the aborigines were usually naked, or, when they covered themselves, they showed that the idea of decency had not occurred to them.[1120] The same is said of some tribes in Borneo[1121] and Sumatra,[1122] the people of Jarai, bordering upon the empire of Siam,[1123] the inhabitants of the Louisiade Archipelago,[1124] Solomon Islands,[1125] Penrhyn Island, and some other islands of the South Sea;[1126] whilst, in others, only the men generally go naked.[1127] The Papuans of the south-west coast of New Guinea "glory in their nudeness, and consider clothing to be fit only for women."[1128] In one part of Timor, on the other hand,[1129] as also in a tribe of the Andamanese,[1130] it is the women that are devoid of any kind of covering.

Passing to Africa, we meet with instances of the same kind. Concerning the Wa-taveita of the eastern equatorial region, Mr. Johnston remarks that "both sexes have little notion or conception of decency, the men especially seeming to be unconscious of any impropriety in nakedness. What clothing they have is worn as an adornment or for warmth at night and early morning."[1131] The Wa-chaga and Mashukulumbe generally go about naked,[1132] and so do the Bushmans, except when they use a piece of skin barely sufficient to cover the back.[1133] Again, among the Bubis of Fernando Po[1134] and the natives of Balonda[1135] and Loango,[1136] the women have no sort of covering, whilst, among the Negroes of the Egyptian Soudan,[1137] the Baris,[1138] Shilluk,[1139] Dinka,[1140] Watuta,[1141] and Masai,[1142] this is the case with the men only. Apud Masaios membrum virile celare turpe existimatur, honestum expromere, atque etiam ostentare.[1143] In Lancerote also, according to Bontier and Le Verrier, the men used no covering; and, in Teneriffe, "the inhabitants went naked, except some few who wore goatskins."[1144]

It might perhaps be supposed that the feeling of modesty, though not originally innate, appeared later on, at a certain stage of civilization, either spontaneously or from some unknown cause. This seems, indeed, to be the

opinion of Professor Wundt, who says that man began to cover himself from decency.[1145] But let us see what covering savages often use.

A fashionable young Wintun woman, says Mr. Powers, wears a girdle of deer-skin, the lower edge of which is slit into a long fringe with a polished pine-nut at the end of each strand, while the upper border and other portions are studded with brilliant bits of shell.[1146] The Botocudos use a covering which has little resemblance to a garment; and their neighbours, the Patachos and Machacaris, make this trifle still smaller, a thread being sufficient clothing, according to their notion of modesty.[1147] When a Carib girl attained the age of ten or twelve years, she assumed around the waist "a piece of cotton cloth worked and embroidered with minute grains of shells of different colours, decorated in the lower part with fringe."[1148] Similar ornamental skirts are in use among the Macusís, Arawaks, and other South American peoples.[1149] Among the Guaycurûs, the men had no covering, except a narrow bandage round the loins, which was of coloured cotton, and often adorned with glass beads.[1150] The Australians of Port Essington occasionally wear girdles of finely twisted human hair, and the men sometimes add a tassel of the hair of the opossum or flying squirrel, suspended in front.[1151] The women on the Lower Murray manufacture round mats of grass or reeds, which they fasten upon their backs, "tying them in front, so that they almost resemble the shell of a tortoise."[1152] In Tahiti, a "maro," composed of red and yellow feathers, was considered a present of very great value, and the women thought it "most ornamental" to enfold their loins with many windings of cloth.[1153] Dr. Seemann states that, in Fiji, the girls "wore nothing save a girdle of hibiscus-fibres, about six inches wide, dyed black, red, yellow, white, or brown, and put on in such a coquettish way, that one thought it must come off every moment."[1154] A similar practice is common in the islands of the Pacific, fringes made of cocoa-nut fibre or of leaves slit into narrow strips or filaments of bark, frequently dyed with gaudy colours, being, in most of these islands, the only garment of the natives. This costume, with its conspicuous tint and mobile fringe, has a most graceful appearance and a very pretty effect, but is far from being in harmony with our ideas of modesty. In the island of Yap, according to Cheyne, "the dress of the males, if such it may be called, is slovenly in the extreme. They wear the 'maro' next them, and, by way of improvement, a bunch of bark fibres dyed red, over it."[1155] In New Caledonia, in Forster's time, the natives only tied "a string round the middle and another round the neck;"[1156] whilst, in some other groups, the costume of the men consisted of nothing but a leaf,[1157] a mussel,[1158] or a shell.[1159]

In Sumatra, according to Marsden, young women, before they are of an age to be clothed, have a plate of silver in the shape of a heart hung in front by a chain of the same metal.[1160] Among the Garos of Bengal, the women wear

merely a very short piece of striped blue cotton round the waist. The men have a very narrow waist-cloth tied behind and then brought up between the legs; the portion hanging over in front is sometimes adorned with brass boss-like ornaments, and white long-shaped beads.[1161] In Lukungu, the entire covering of most of the women consists of a narrow string with some white china beads threaded on it.[1162] The Hottentot women, according to Barrow, bestowed their largest and most splendid ornaments upon the little apron, about seven or eight inches wide, that hung from the waist. "Great pains," he says, "seem to be taken by the women to attract notice towards this part of their persons. Large metal buttons, shells of the cypræa genus, with the apertures outwards, or anything that makes a great show, are fastened to the borders of this apron."[1163] The Bushman women of South Africa, met with by the same traveller, had as their only covering a belt of springbok's skin, the part which was intended to hang in front being cut into long threads. But the filaments, he says, "were so small and thin that they answered no sort of use as a covering; nor, indeed, did the females, either old or young, seem to feel any sense of shame in appearing before us naked."[1164] And among the Negroes of Benin, according to Bosman, the girls had no other garment than some strings of coral twisted about the middle.[1165]

It seems utterly improbable that such "garments" owe their origin to the feeling of shame. Their ornamental character being obvious, there can be but little doubt that men and women originally, at least in many cases, covered themselves not from modesty, but on the contrary, in order to make themselves more attractive—the men to women, and the women to men.

In a state where all go perfectly nude, nakedness must appear quite natural, for what we see day after day makes no special impression upon us. But when one or another—whether man or woman—began to put on a bright-coloured fringe, some gaudy feathers, a string with beads, a bundle of leaves, a piece of cloth, or a dazzling shell, this could not of course escape the attention of the others; and the scanty covering was found to act as the most powerful attainable sexual stimulus.[1166] Hence the popularity of such garments in the savage world.

Several travellers have noticed that there is nothing indecent in absolute nakedness when the eyes have got accustomed to it. "Where all men go naked, as for instance in New Holland," says Forster, "custom familiarizes them to each other's eyes, as much as if they went wholly muffled up in garments."[1167] Speaking of a Port Jackson woman who was entirely uncovered, Captain Hunter remarks, "There is such an air of innocence about her that clothing scarcely appears necessary."[1168] With reference to the Uupés, Mr. Wallace records his opinion that "there is far more immodesty in the transparent and flesh-coloured garments of our stage-dancers, than in the perfect nudity

of these daughters of the forest."[1169] In his 'Africa Unveiled' Mr. Rowley remarks, "When the sight becomes accustomed to the absence of raiment, your sense of propriety is far less offended than in England, where ample clothing is made the vehicle for asserting defiance, if not of actual law, yet of the wishes and feelings of the more virtuous part of the community."[1170] And, speaking of the Fuegians, Captain Snow says, "More harm, I think, is done by false modesty,—by covering and partly clothing, than by the truth in nature always appearing as it is. Intermingling with savages of wild lands who do not clothe, gives one, I believe, less impure and sensual feelings than the merely mixing with society of a higher kind."[1171]

The same view is taken by Dr. Zimmermann,[1172] and by Mr. Reade, who, with reference to the natives of Central Africa, remarks that there is nothing voluptuous in the excessive déshabillé of an equatorial girl, nothing being so moral and so unlikely to excite the passions as nakedness.[1173] Speaking of the Wa-chaga, Mr. Johnston observes, "We should be apt to call, from our point of view, their nakedness and almost unconsciousness of shame indelicate, but it is rather, when one gets used to it, a pleasing survival of the old innocent days when prurient thoughts were absent from the mind of man."[1174] As a careful observer remarks,[1175] true modesty lies in the entire absence of thought upon the subject. Among medical students and artists the nude causes no extraordinary emotion; indeed, Flaxman asserted that the students in entering the academy seem to hang up their passions along with their hats.

On the other hand, Forster says of the natives of Mallicollo, that "it is uncertain whether the scanty dress of their women owes its origin to a sense of shame, or to an artful endeavour to please;" and of the men of Tana, that "round their middle they tie a string, and below that they employ the leaves of a plant like ginger, for the same purpose and in the same manner as the natives of Mallicollo. Boys, as soon as they attain the age of six years, are provided with these leaves; which seems to confirm what I have observed in regard to the Mallicollese, viz., that they do not employ this covering from motives of decency. Indeed, it had so much the contrary appearance, that in the person of every native of Tana or Mallicollo, we thought we beheld a living representation of that terrible divinity who protected the orchard and gardens of the ancients."[1176] Speaking of the very simple dress worn by the male Hottentot, Barrow says, "If the real intent of it was the promotion of decency, it should seem that he has widely missed his aim, as it is certainly one of the most immodest objects, in such a situation as he places it, that could have been contrived."[1177] Among the Khyoungtha, there is a native tradition worth mentioning in this connection. "A certain queen," Captain Lewin tells us, "noticed with regret that the men of the nation were losing their love for the society of the women, and were resorting to vile and abominable practices, from which

the worst possible results might be expected. She therefore prevailed upon her husband to promulgate a rigorous order, prescribing the form of petticoat to be worn by all women in future, and directing that the male should be tattooed, in order that, by thus disfiguring the males, and adding piquancy to the beauty of the women, the former might once more return to the feet of their wives."[1178]

Moreover, we know that some tribes who go perfectly naked are ashamed to cover themselves, looking upon a garment as something indecent. The pious father Gumilla was greatly astonished to find that the Indians on the Orinoco did not blush at their nakedness. "Si les Missionnaires" he says, "qui ignorent leurs coutumes s'avisent de distribuer des mouchoirs, surtout aux femmes, pour qu'elles puissent se couvrir, elles les jettent dans la rivière, où elles vont les cacher, pour ne point être obligées de s'en servir; et lors qu'on leur dit de se couvrir, elles répondent: ... 'Nous ne couvrons point, parce que cela nous cause de la honte.'"[1179] That this is no "traveller's tale" merely, appears from the following statement made by v. Humboldt with reference to the New Andalusian Chaymas, who, like most savage peoples dwelling in regions excessively hot, have an insuperable aversion to clothing:—"Under the torrid zone," he asserts, " ... the natives are ashamed, as they say, to be clothed; and flee to the woods when they are too soon compelled to give up their nakedness."[1180] Again, in an Indian hut at Mucúra in Brazil, Mr. Wallace found the women entirely without covering, and apparently quite unconscious of the fact. One of them, however, possessed a "saía," or petticoat, which she sometimes put on, and seemed then, as Mr. Wallace says, "almost as much ashamed of herself as civilized people would be if they took theirs off."[1181]

There are several instances of peoples who, although they generally go perfectly naked, sometimes use a covering. This they always do under circumstances which plainly indicate that the covering is worn simply as a means of attraction. Thus Lohmann tells us that, among the Saliras, only harlots clothe themselves; and they do so in order to excite through the unknown.[1182] In many heathen tribes in the interior of Africa, according to Barth, the married women are entirely nude, whilst the young marriageable girls cover their nakedness,—a practice analogous to that of a married woman being deprived of her ornaments and her hair.[1183] Mr. Mathews states that, in many parts of Australia, "the females, and more especially young girls, wear a fringe suspended from a belt round the waist."[1184] Concerning the natives of Botany Bay (New South Wales), Barrington remarks that "the females at an early age wear a little apron, made from the skin of the opossum or kangaroo, cut into slips, and hanging a few inches from the waist; this they wear till they grow up and are taken by men, and then they are left off."[1185] Collins says the same of the girls at Port Jackson;[1186] Mr. Palmer of some other Australians;[1187] and Captain Snow of all those tribes among whom he had been for several

weeks.[1188] Again, on Moreton Island, according to Macgillivray, both men and women went about altogether unclothed, but the female children wore a small fringe in front. The same naturalist reports that, in almost all the tribes of Torris Strait, the women wear a petticoat of fine shreds of pandanus leaves, the ends worked into a waistband, upon the construction of which much labour is expended; but it is only "sometimes put on, especially by the young girls, and when about to engage in dancing." Under this, however, another covering is usually worn.[1189] Among the Tupi tribes of Brazil, as soon as a girl became marriageable "cotton cords were tied round her waist and round the fleshy part of both arms; they denoted a state of maidenhood, and, if any one but a maiden wore them, they were persuaded that the Anhanga would fetch her away.... It cannot," Mr. Southey adds, "have been invented for the purpose of keeping the women chaste till marriage, for these bands were broken without fear, and incontinence was not regarded as an offence."[1190] Among the Narrinyeri of Southern Australia, girls wear a sort of apron of fringe until they bear their first child, and, if they have no children, it is taken from them and burned by the husband while they are asleep.[1191] In the Koombokkaburra tribe also, the young women wear in front an apron of spun opossum fur, which is generally given up after the birth of the first or second child.[1192]

There are several cases in which only the married women are clothed, the unmarried going entirely naked.[1193] But such instances do not conflict with the hypothesis suggested. Through long-continued use covering loses its original character and becomes a sign of modesty, whilst perfect nakedness becomes a stimulus. Usually, where nudity is considered indecent, the garments of the girls of barbarous peoples are restricted as much as possible, whilst those of the older women are comparatively seemly. Thus, among the African Schulis, the married women wear a narrow fringe of string in front, the unmarried wearing nothing but bead ornaments.[1194] Among the natives of Tassai, New Guinea, the former use a larger and thicker kind of petticoat of pandanus leaf, divided into long grass-like shreds, reaching to the knee; while that worn by the latter consists merely of single lengths made fast to a string which ties round the waist.[1195] In Fiji, the liku—a kind of band made from hibiscus-bark—is before marriage worn very short, but after the birth of the first child is much lengthened;[1196] and a similar practice occurs in other islands of the South Sea.[1197]

The dances and festivals of many savage peoples are notoriously accompanied by the most hideous licentiousness. Then the young men and women endeavour to please each other in various ways, painting themselves with brilliant colours, and decorating themselves with all sorts of ornaments.[1198] On such occasions many tribes who go naked in everyday life put on a scanty covering. Mr. Bonwick states that, among the Tasmanians, a fur string or

band of emu feathers was used by some tribes, but only on great festivities; and the women wore in the dance a covering of leaves or feathers, which, as among the Australians on similar occasions, was removed directly afterwards. Tasmanian dances were performed "with the avowed intention of exciting the passions of the men, in whose presence one young woman had the dance to herself."[1199] Among the Australian Pegulloburras, who generally go entirely naked, the women on festive occasions wear round the middle small fringes. [1200] Speaking of the Brazilian Uaupés, Mr. Wallace asserts that, "while dancing in their festivals, the women wear a small 'tanga,' or apron, made of beads, prettily arranged. It is only about six inches square, but is never worn at any other time, and immediately the dance is over, it is taken off." Besides, their bodies are painted.[1201] The same was the case with the Tahitian Areois—a sort of privileged libertines, leading a most licentious life, and practising lewd dances and pantomimes,—who also sometimes, on public occasions, put on a girdle of the yellow "ti" leaves, which, in appearance, resembled the feather girdles of the Peruvians or other South American tribes.[1202] As to the South African Basutos, Mr. Casalis states that marriageable girls "frequently indulge in grotesque dances, and at those times wear, as a sort of petticoat, long bands composed of a series of rushes artistically strung together."[1203]

Very generally in the savage world, where climate does not put obstacles in the way, both sexes go naked till they reach manhood, covering being resorted to at the same period of life as other ornaments.[1204] A South Australian boy, for instance, when fourteen or sixteen years old, has to undergo the initiatory rites of manhood as follows:—he is smeared all over with red ochre and grease, the hair is plucked from his body, and all his friends gather green gum bushes, which they place under his armpits and over the os pubis, after which the boy is entitled to marry.[1205]

In conformity with other ornaments, what we consider decent covering is said to be more common with savage men than with women. "If dress were the result of a feeling of shame," Professor Waitz observes, "we should expect it to be more indispensable to woman than to man, which is not the case."[1206] In America, according to v. Humboldt—among the Caribs, for instance—the men are often more decently clothed than the women.[1207] The same is stated of the Nagas of Upper Assam;[1208] and Barth, who had a vast experience of African savages, remarks, "I have observed that many heathen tribes consider a covering, however poor and scanty it may be, more necessary for man than woman."[1209] Whether this is the rule among savage peoples is doubtful. At any rate, the egoism of the men cannot be blamed for the nakedness of the women. For a savage Eve may pluck her clothes from the trees.

In support of the psychological presumption which underlies the hypothesis here adduced, it may be added that some peoples are in the habit of covering

other parts of the body also, in order to "excite through the unknown." Thus, among the Tipperahs, the married women wear nothing but a short petticoat, while the unmarried girls cover the breast with a gaily-dyed cloth with fringed ends.[1210] Among the Toungtha, the bosoms of women are left uncovered after the birth of the first child, but the unmarried girls wear a narrow breast cloth.[1211] The Chinese consider small feet to be the chief charm of their women, and the girls have to undergo horrible torture while their feet are being compressed to the smallest possible size. It might be supposed that they would at least have the pleasure of fascinating the men by a beauty so painfully acquired. But Dr. Stricker assures us that, in China, a woman is considered immodest if she shows her artificially distorted foot to a man. It is even improper to speak of a woman's foot, and in decent pictures this part is always concealed under the dress.[1212] The women of Agades, according to Barth, generally go unveiled, and if they sometimes cover their heads, this is done rather from coquetry than from a feeling of shame.[1213] Mr. Man remarks that a Hindu woman who attempts to hide her face, while she wears a gauze which displays her whole form, in her simulated modesty always appears as if attempting to convey an arrière pensée.[1214] Among the Tacullies, it is customary for the girls to have over their eyes a kind of veil or fringe, made either of strung beads or of narrow strips of deer skin garnished with porcupine quills;[1215] and, among the Chawanons, according to Moore, those young women who have any pretensions to beauty, as soon as they become marriageable, "muffle themselves up so that when they go abroad it is impossible to see anything but their eyes. On these indications of beauty they are eagerly sought in marriage."[1216]

Finally, it is worth noting that this covering, or half covering, is only one of the means by which savage men and women endeavor to direct attention to that which civilized man conceals from a sense of shame. Among the Admiralty Islanders, the only covering is a shell, which shell is often tastefully engraved with the usual zigzag patterns, whilst its dazzling whiteness forms a very striking contrast with the blackness of the skin.[1217] On reaching puberty, the Tankhul Nagas assume, instead of a shell, a horn or ivory ring from an eighth to a quarter of an inch in breadth; being apparently of opinion that exposure, if so attended, is not a matter to be ashamed of.[1218] Some of the Brazilian Tupis, according to Castlenau, "mentulam inserunt in annulum ligneum, unde appellantur Porrudos, i.e. mentulati;"[1219] and, in several of the South Sea Islands, those parts of the body which civilized people are most anxious to conceal, are decorated with tattoos.[1220] De indigenis Tanembaris et Timorlaonis dum loquitur Reidel, adulescentes et puellas dicit saepe consulto abradere pilos pubis nulla alia mente, nisi ut illæ partes alteri sexui magis conspicuæ fiant.[1221]

Above all the practice of circumcision should be noticed in this connection, since, as I believe, it owes its origin to the same cause. It is by no means

a specifically Jewish custom, but is widely spread over the earth. It is in use among all the Mohammedan peoples, among most of the tribes inhabiting the African West Coast, among the Kafirs, among nearly all the peoples of Eastern Africa, among the Christian Abyssinians, Bogos, and Copts,[1222] throughout all the various tribes inhabiting Madagascar,[1223] and, in the heart of the Black Continent, among the Monbuttu and Akka. Moreover, it is practised very commonly in Australia, in many islands of Melanesia,[1224] and in Polynesia universally. It has also been met with in some parts of America: in Yucatan, [1225] on the Orinoco,[1226] and among certain tribes in the Rio Branco in Brazil.[1227] The Jews, Mohammedans,[1228] Abyssinians,[1229] and some other peoples being excepted, it is always performed when the boy attains manhood—i.e., at the same age as that at which he is tattooed or painted, or begins to dress or adorn himself. Indeed, through the operation of circumcision, the boy becomes a man, and, where it is wanting, some other operation or deformation of the body supplies its place.[1230] Thus, in Australia, some tribes practise circumcision, others knock out teeth, when the youth becomes virile. [1231] Where circumcision is in use it is generally considered an indispensable preliminary to marriage, "uncircumcised" being a bad word, and the women often refusing all intercourse with such a man.[1232]

Several different explanations of this custom have been suggested.[1233] Some authors believe that it is due to hygienic motives. But circumcised and uncircumcised peoples live under the same conditions in the same neighbourhood side by side, without any difference in their physical condition.[1234] Mr. Sturt remarks that, in Australia, "you would meet with a tribe with which that custom did not prevail, between two with which it did."[1235] Moreover, as Mr. Spencer observes, while the usage does not exist among the most cleanly races in the world, it is common among the most uncleanly.[1236] Among the Damaras and Bechuanas, the boys are circumcised, though these peoples are described as exceedingly filthy in their habits,[1237] and so also among the people of Madagascar and the Malays, who are far from being so cleanly as might be desired.[1238]

Again, according to Mr. Spencer, circumcision involves an offering to the gods. He suggests that in the first instance vanquished enemies were mutilated in order that a specially valuable trophy after a battle might be presented to the king Then, "in a highly militant society governed by a divinely-descended despot, ... we may expect that the presentation to the king of these trophies taken from enslaved enemies, will develop into the offering to the god of like trophies taken from each generation of male citizens in acknowledgment of their slavery to him."[1239] This conclusion Mr. Spencer draws from the single fact that, "among the Abyssinians, the trophy taken by circumcision from an enemy's dead body is presented by each warrior to his chief." But there is no

evidence whatever that this curious custom is of common occurrence. Circumcision is spread over a very large part of the earth, and prevails even in societies which are not "governed by a divinely-descended despot," who could require all his subjects to bear this badge of servitude. With regard to the Australian aborigines, many tribes of whom practise circumcision, Mr. Curr says, "On the subject of government (by which I mean the habitual exercise of authority, by one or a few individuals, over a community or a body of persons) I have made many inquiries and received written replies from the observers of about a hundred tribes to the effect that none exists. Indeed, no fact connected with our tribes seems better established."[1240] Since there is nothing to indicate that there ever was a different state of things in Australia, how are we to reconcile these facts with the interpretation offered by Mr. Spencer?

In the Book of Genesis the practice of circumcision is presented as a religious rite, deriving its origin from a command of God. But among most peoples it appears to have little, if any, religious significance.[1241] Sometimes, indeed, it is performed by a priest of the community, but, as Herr Andree justly remarks, this has no necessary relation to the question, the priests generally being the physicians of savage tribes.[1242] Moreover, as has already been pointed out, almost every ancestral custom may by degrees take a religious character. Thus, the ancient Peruvians' habit of enlarging the lobe of the ear, so as to enable it to carry ear-tubes of great size, is supposed to have been connected with sun-worship; for Spanish historians mention that elaborate religious ceremonies were held at the Temple of the Sun at Cuzco, on the occasion of the boring of the ears of young Peruvian nobles.[1243] But we should not be warranted in inferring that this custom had originally anything to do with religion. With regard to circumcision among the Jews, I agree with Herr Andree that its religious character was almost certainly of a comparatively late date.[1244]

The peoples among whom this practice prevails are themselves unable to give any adequate account of its origin. With reference to the circumcision of the Southern Africans, the Rev. H. H. Dugmore says that they do not know how it began and that they have no traditionary remembrances about it, except that it has prevailed as a national custom from generation to generation. "Our forefathers did so, and therefore we do the same," is all that the present generation can say about the matter.[1245]

That the practice of circumcision arose from the same desire as that which led to other kinds of mutilation, is rendered more probable by the fact that disfiguration is sometimes effected in quite a different way. Novae Zealandiae incolas Cook narrat non solum se non circumcidere, sed contra tam necessarium habere praeputium, ut anteriorem eius partem redimire soleant ligamento, quo glandem penis tegant.[1246] The same curious usage is met with in some other Islands of the South Sea;[1247] and in Brazil, according to Dr. Karl

von den Steinen, among the Trumaí.[1248] Indigenae Portus Lincoln pueros pubertatem ingressos mirum in modum secant: quarzi fragmento penem ex ore secundum inferiorem partem usque ad scrotum incidunt itaque totum longitudinis spatium detegunt.[1249] In defence of this practice, says Mr. Schürmann, the natives had nothing to suggest except that "it was observed by their forefathers, and must therefore be upheld by themselves."[1250] In Ponapé, boys are always subjected to semi-castration, as Dr. Finsch remarks, in order to prevent the possibility of orchitis, and, further, because the girls consider men thus disfigured handsomer and more attractive than others. According to Captain Wright, the same custom prevails in Niutabutabu, of the Tonga Islands.[1251]

Among many peoples of Africa, and in certain tribes of the Malay Archipelago and South America, the girls also undergo a sort of circumcision, and this is looked upon as an indispensable preliminary to marriage.[1252] Sunt autem gentes, quarum contrarius mos est, ut clitoris et labia minora non exsecentur, verum extendantur, et saepe longissime extendandur. Atque ista etiam deformatio insigne pulchritudinis existimatur.[1253] De indigenis Ponapéis haec adnotat Dr. Finsch; labia interna longius extenta et pendentia puellis et uxoribus singulare sunt incitamentum, quae res eodem modo se habet apud alias gentes, ut apud Hottentottas.[1254]

It certainly seems strange that such deformities should have been originally intended to improve the appearance. But we must remember the rough taste of savages, and the wish for variety so deeply rooted in human nature. These practices evidently began at a time when man went in a state of perfect nudity. The mutilations, as the eyes became accustomed to them, gradually ceased to be interesting, and continued to be inflicted merely through the force of habit, or from a religious motive. A new stimulus was then invented, parts of the body which had formerly been exposed being hidden by a scanty covering: as the Chinese women at first had their feet pressed in order to excite admiration, but afterwards began to conceal them from coquetry, or as the Tassai beauties, though entirely naked otherwise, wear two or three petticoats one over another.[1255]

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How, then, are we to explain the connection which undoubtedly exists between nakedness and the feeling of shame? The hypothesis here set forth cannot be regarded as fully established until this question is answered.

"The ideas of modesty," Forster truly says, "are different in every country, and change in different periods of time."[1256] As v. Humboldt remarks, "A woman in some parts of Asia is not permitted to show the ends of her fingers; while an Indian of the Caribbean race is far from considering herself naked, when she wears a 'guajuco' two inches broad. Even this band is regarded as a less essential part of dress than the pigment which covers the skin. To go out

of the hut without being painted with arnotta, is to transgress all the rules of Caribbean decency."[1257] In Tahiti, a person not properly tattooed would "be as much reproached and shunned, as if with us he should go about the streets naked;"[1258] and, in Tonga also, the men would think it very indecent not to be tattooed.[1259]

M. Letourneau reports that, at Basra on the Euphrates, it was the duty of a woman, if surprised when taking her bath, to turn her face; no further concealment was considered necessary.[1260] The same habit prevailed among the fellah women in Egypt;[1261] while, in Arabia, according to Ebers, a woman acts even more indecorously in uncovering the back of the head than in uncovering the face, though this also is carefully hidden.[1262]

The Tubori women in Central Africa wear only a narrow strap, to which is attached a twig hanging down behind; but they feel greatly ashamed if the twig happens to fall off.[1263] A Chinese woman, as previously stated, is not permitted by the law of modesty to show her feet; and the Samoans considered it most disgraceful to expose the navel.[1264] The savage tribes of Sumatra and Celebes have a like feeling about the exposure of the knee, which is always carefully covered.[1265] Speaking of the horrible mouth adornment worn by the women of Port des Français (Alaska), which makes the lower part of the mouth jut out two or three inches, La Pérouse remarks, "We sometimes prevailed on them to pull off this ornament, to which they with difficulty agreed; they then testified the same embarrassment, and made the same gestures, as a woman in Europe who discovers her bosom."[1266] Et Polynesios, quamquam eum tenent morem, nullam ut aliam corporis partem nisi glandem penis tegant, hanc tamen nudare vehementer pudet. Ita Lisiansky animadvertit indigenas Nukahivae, qui praeputium peni abductum habent et extremam eius partem lino constrictam, linum illud magni aestimare manifesto apparere. "Accidit enim," inquit, "ut frater regis, ubi navem meam ascendit, linum amitteret, qua occasione mala quam maxime angebatur. Qui cum constratum navis ingrederetur, illa re commotus partem non redimitam manibus velavit."[1267] Dr. Mosely asserts that the Admiralty Islanders, who wear nothing but a shell, always cover themselves hastily on removing the shell for barter, and evidently consider that they are exposing themselves either indecently or irreligiously, if they show themselves perfectly nude.[1268] The Kubus of Sumatra have a tradition that they are descendants of the youngest of three brothers, the first and second of whom were circumcised in the usual way, while it was found that no instruments would circumcise the third. This so ashamed him that he betook himself to the woods.[1269]

Ideas of modesty, therefore, are altogether relative and conventional. Peoples who are accustomed to tattoo themselves are ashamed to appear untattooed; peoples whose women are in the habit of covering their faces consider

such a covering indispensable for every respectable woman; peoples who for one reason or another have come to conceal the navel, the knee, the bosom, or other parts, blush to reveal what is hidden. It is not the feeling of shame that has provoked the covering, but the covering that has provoked the feeling of shame.

This feeling, Dr. Bain remarks, "is resolved by a reference to the dread of being condemned, or ill-thought of, by others."[1270] Such dread is undoubtedly one of the most powerful motives of human action. Speaking of the Greenlanders, Cranz says that the mainspring of all that they do is their fear of being blamed or mocked by other men.[1271] Among savages, custom is a tyrant as potent as law has ever been in civilized societies, every deviation from a usage which has taken root among the people being laughed to scorn, or regarded with disdain. The young ladies of Balonda, wholly unconscious of their own deficiency, could not maintain their gravity at the sight of the naked backs of Livingstone's men. "Much to the annoyance of my companions," he says, "the young girls laughed outright whenever their backs were turned to them, for the Balonda men wear a dress consisting of skins of small animals, hanging before and behind from a girdle round the loins."[1272] By degrees a custom is associated with religion, and then becomes even more powerful than before. Mr. Williams tells us of a Fijian priest, who, like all his countrymen, was satisfied with a "masi," or scanty hip-cloth, but on hearing a description of the naked inhabitants of New Caledonia and of their idols, exclaimed, contemptuously, "Not have a 'masi,' and yet pretend to have gods!"[1273] And, as Peschel remarks, "were a pious Mussulman of Ferghana to be present at our balls, and see the bare shoulders of our wives and daughters, and the semi-embraces of our round dances, he would silently wonder at the long-suffering of Allah, who had not long ago poured fire and brimstone on this sinful and shameless generation."[1274]

Covering the nakedness has, for the reason already pointed out, become a very common practice among savage peoples; among those of the tropics, no other sort of clothing is generally in use. Hence, through the power of custom, the feeling of shame aroused by the exposure of the nakedness. If this is the true explanation, some may be disposed to infer that savages who, for the sake of cold, cover almost the entire body, will feel ashamed to bare even such parts as may elsewhere be shown without compunction. But this would be to overlook the essential fact that the heat of their dwellings, where they spend most of the winter, and the warmth of the summer sun, in many cases make it necessary for them, as they think, to throw off all their clothes. When this is done, they seem to be devoid of any sense of shame. Thus, the Aleuts undress themselves completely in their warm jurts, and men and women have for ages been accustomed to bathe together in the sea; "they do not think of there being any

immodesty in it, yet, any immorality is exceedingly rare among them."[1275] The Tacullies, who usually take off their clothes in summer, though they are well clad in winter, manifest, according to Harmon, as little sense of shame in regard to uncovering "as the very brute creation."[1276] The Eskimo of Etah, who in the winter are enveloped to the face in furs, nevertheless, according to Kane's description, completely put aside their garments in their subterranean dwellings;[1277] and the demeanour of the wife of Hans the Eskimo on board Hayes's ship, plainly showed that she had no idea of decency.[1278]

On the other hand, we know that peoples living in warm climates who cover only the nakedness are utterly ashamed to expose it. The Andamanese, although they wear as little clothing as possible, exhibit a delicacy that amounts to prudishness, the women of the tribes of South Andaman being so modest that they will not remove their small apron of leaves, or put anything in its place, in the presence of any person, even of their own sex.[1279] Speaking of the Fijians, Wilkes asserts that, "though almost naked, these natives have a great idea of modesty, and consider it extremely indelicate to expose the whole person. If either a man or woman should be discovered without the 'maro,' or 'liku,' they would probably be killed."[1280] The female natives of Nukahiva have only one small covering, but are so tenacious of it that the most licentious will not consent to take it off.[1281] Among those Australian tribes, in which a covering is worn by the women, they will retire out of sight to bathe.[1282] In Lukunor and Radack, men and women never appear naked together;[1283] and among the Pelew Islanders, according to Semper, the women have an unlimited privilege of striking, fining, or, if it be done on the spot, killing any man who makes his way in to their bathing-places.[1284]

These facts appear to prove that the feeling of shame, far from being the original cause of man's covering his body, is, on the contrary, a result of this custom; and that the covering, if not used as a protection from the climate, owes its origin, at least in a great many cases, to the desire of men and women to make themselves mutually attractive.[1285] To some readers it may perhaps seem probable that the covering of the nakedness was originally due to the feeling which makes intimate relations between the sexes, even among savages, a more or less secret matter. But, whilst this feeling is universal in mankind, there are, as we have seen, a great many peoples who attach no idea of shame to the entire exposure of the body, and these peoples are otherwise not less modest than those who cover themselves. Their number is, indeed, so great that we cannot regard the absence of shame as a reversion or perversion; and it may be asserted with perfect confidence that the modesty which shows itself in covering is not an instinct in the same sense as that in which the aversion to incest, for example, is an instinct,—an aversion to which sexual bashfulness seems to be very closely related. Travellers have observed that,

among various naked tribes, women exhibit a strong sense of modesty through various attitudes. But these attitudes may, like concealment by clothing, have been originally due to coquetry. They imply a vivid consciousness of certain facts, and the exhibition of this consciousness is far from being a mark of modesty. It may, further, be supposed that decent covering was adopted for the protection of parts specially liable to injury. This may hold good for some cases; but the general prevalence of circumcision even among naked tribes shows that savages are not particularly anxious about the safety of their persons.

Chapter X — The Liberty of Choice.

It would be easy to adduce numerous instances of savage and barbarous tribes among whom a girl is far from having the entire disposal of her own hand. Being regarded as an object of property, she is treated accordingly.

Among many peoples the female children are usually "engaged" in their earliest youth. Concerning the Eskimo to the north of Churchill, Franklin states that, "as soon as a girl is born, the young lad who wishes to have her for a wife goes to her father's tent and proffers himself. If accepted, a promise is given which is considered binding, and the girl is delivered to her betrothed at the proper age."[1286] Early betrothals are among the established customs of the Chippewyans,[1287] Columbians,[1288] Botocudos,[1289] Patagonians,[1290] and other American peoples.[1291] Among the African Marutse, the children "are often affianced at an early age, and the marriage is consummated as soon as the girl arrives at maturity."[1292] The Negroes of the Gold Coast, according to Bosman, often arranged for the marriage of infants directly after birth;[1293] whilst, among the Bushmans, Bechuanas, and Ashantees, children are engaged when they are still in the womb, in the event of their proving to be girls.[1294]

In Australia, too, girls are frequently promised in early youth, and sometimes before they are born.[1295] The same is the case in New Guinea,[1296] New Zealand,[1297] Tahiti,[1298] and many other islands of the South Sea, as also among several of the tribes inhabiting the Malay Archipelago.[1299] Mariner supposed that, in Tonga, about one-third of the married women had been thus betrothed.[1300] In British India infant-marriage has hitherto been a common custom; and all peoples of the Turkish stock, according to Professor Vámbéry, are in the habit of betrothing babies.[1301] So also are the Samoyedes[1302] and Tuski;[1303] and among the Jews of Western Russia, parents betroth the children whom they hope to have.[1304]

Among some peoples, it is the mother,[1305] brother,[1306] or maternal uncle,[1307] who has the chief power of giving a girl in marriage. In Timorlaut, Mr. Forbes says, "nothing can be done of such import as the disposal of a

daughter without the advice, assistance, and witness of all the villagers, women and youths being admitted as freely to speak as the elder males;"[1308] and in West Australia, according to Mr. Oldfield, the consent of the whole tribe is necessary for a girl's marriage.[1309] Yet such cases are no doubt rare exceptions, and give us no right to conclude that there ever was a time when children were generally considered the property of the tribe, or of their maternal kinsfolk.

It would, however, be a mistake to suppose that, among the lower races, women are, as a rule, married without having any voice of their own in the matter. Their liberty of selection, on the contrary, is very considerable, and, however down-trodden, they well know how to make their influence felt. Thus, among the Indians of North America, numberless instances are given of woman's liberty to choose her husband. Schoolcraft asserts that their marriages are brought about "sometimes with, and sometimes against, the wishes of the graver and more prudent relatives of the parties," the marital rite consisting chiefly in the consent of the parties.[1310] Heckewelder quotes instances of Indians who committed suicide because they had been disappointed in love, the girls on whom they had fixed their choice, and to whom they were engaged, having changed their minds, and married other lovers.[1311] Among the Kaniagmuts, Thlinkets, and Nutkas, the suitor has to consult the wishes of the young lady.[1312] Among the Chippewas, according to Mr. Keating, the mothers generally settle the preliminaries to marriage without consulting the children: but the parties are not considered husband and wife till they have given their consent.[1313] The Atkha Aleuts occasionally betrothed their children to each other, but the marriage was held to be binding only after the birth of a child.[1314] Among the Creeks, if a man desires to make a woman his wife "conformably to the more ancient and serious custom of the country," he endeavours to gain her own consent by regular courtship.[1315] Among the Pueblos,[1316] &c.,[1317] "no girl is forced to marry against her will, however eligible her parents may consider the match."

As to the South American Guanas, Azara states, "Aucune femme ne consent à se marier, sans avoir fait ses stipulations préliminaires très-détaillées avec son prétendu, et avec son père et ses parents, à l'égard de leur genre de vie réciproque."[1318] In Tierra del Fuego, according to Lieutenant Bove, the eagerness with which the women seek for young husbands is surprising, but even more surprising is the fact that they nearly always attain their ends.[1319] Speaking of the same people, Mr. Bridges says, "It frequently happens that there is insuperable aversion on the girl's part to her husband, and she leaves him, and if she persists in hating him she is then given to one she likes."[1320] It is, indeed, common in America for a girl to run away from a bridegroom forced upon her by the parents;[1321] whilst, if they refuse to give their daughter to a suitor whom she loves, the couple elope.[1322] Thus, among the Dacotahs,

as we are told by Mr. Prescott, "there are many matches made by elopement, much to the chagrin of the parents."[1323]

In Australia it is the rule that a father alone can give away his daughter, and, according to Mr. Curr, the woman herself has no voice in the selection of her husband.[1324] But, with reference to the Narrinyeri, Mr. Taplin states that, "although the consent of a female is not considered a matter of the first importance, as, indeed, is the case in many uncivilized nations, yet it is always regarded as desirable."[1325] Among the Kurnai, according to Mr. Howitt, she decidedly enjoys the freedom of choice. Should the parents refuse their consent, she goes away with her lover, and if they can remain away till the girl is with child she may, it is said, expect to be forgiven. Otherwise it may become necessary for them to elope two or three times before they are pardoned, the family at length becoming tired of objecting.[1326] Mr. Mathew asserts that, with varying details, marriage by mutual consent will be found among other tribes also, though it is not completed except by means of a run-away match.[1327] Elopement undertaken with the consent of the woman is, indeed, and has been, a recognized institution among at least some of the aboriginal tribes in Australia. Among the Kurnai it is the rule.[1328]

The Maoris have a proverb, "As a kahawai (a fish which is very particular in selecting the hook that most resembles its food) selects the hook which pleases it best out of a great number, so also a woman chooses one man out of many."[1329] Mariner supposed that, in Tonga, perhaps two-thirds of the girls had married with their own free consent.[1330] Concerning the natives of Arorae, Mr. Turner says, "In choosing a husband the lady sat in the lower room of the house, and over her head were let down through the chinks of the floor of the upper room two or three cocoa-nut leaflets, the ends of which were held by her lovers. She pulled at one, and asked whose it was. If the reply was not in the voice of the young man she wished to have, she left it and pulled at another leaf, and another, until she found him, and then pulled it right down. The happy man whose leaf she pulled down sat still, while the others slunk away."[1331] In the Society Islands, the women of the middle and lower ranks had the power to choose husbands according to their own wishes; and that the women of the highest classes sometimes asserted the same right appears from the addresses a chief of Eimeo had to pay to the object of his attachment before she could be induced to accept his offer.[1332] In Radack, "marriages depend on a free convention," as seems to be generally the case in Micronesia.[1333] In the New Britain Group, according to Mr. Romilly, after the man has worked for years to pay for his wife, and is finally in a position to take her to his house, she may refuse to go, and he cannot claim back from the parents the large sums he has paid them in yams, cocoa-nuts, and sugar-canes.[1334] With reference to the New Caledonian girl, M. Moncelon remarks, "Elle est consultée quelquefois,

mais souvent est forcée d'obéir. Alors elle fuit à chaque instant pour rejoindre l'homme qu'elle préfère."[1335]

In the Indian Archipelago, according to Professor Wilken, most marriages are contracted by the mutual consent of the parties.[1336] Among the Dyaks, "the unmarried girls are at perfect liberty to choose their mates."[1337] In some parts of Java, much deference is paid to the bride's inclinations;[1338] and, among the Minahassers of Celebes, courtship or love-making "is always strictly an affair of the heart and not in any way dependent upon the consent or even wish of the parents."[1339] Similar statements are made by Riedel with reference to several of the smaller islands.[1340] Among the Rejangs of Sumatra, if a young man runs away with a virgin without the consent of her father, he does not act contrary to the laws of the country; and, if he is willing to make the usual payments afterwards, the woman cannot be reclaimed by her father or other kinsfolk.[1341]

In Burma, "the choice of marriageable girls is perfectly free," and marriages are occasionally contracted even in direct opposition to the parents.[1342] Among the Shans, mutual consent is required to constitute a valid union;[1343] and, regarding the Chittagong Hill tribes, Captain Lewin says that the women's "power of selecting their own husband is to the full as free as that enjoyed by our own English maidens."[1344] The same is the case with many, perhaps most, of the uncivilized tribes of India. The young couple often settle the affair entirely between themselves, even though marriages are ostensibly arranged by the parents;[1345] or the parents, before they give their children in marriage, consult them, and, as a rule, follow their likings.[1346] In case of parental objection, elopements frequently take place.[1347] Among the Kukis, a girl who runs away from a husband she does not like is not thought to act wrongly in doing so.[1348] Among the aboriginal tribes of China,[1349] the Ainos,[1350] Khamchadales,[1351] Jakuts,[1352] Ossetes,[1353] &c.,[1354] the daughter's inclinations are nearly always consulted. And, in Corea, mutual choice was the ancient custom of the country.[1355]

Turning to Africa we find that, among the Touaregs, a girl may select out of her suitors the one whom she herself prefers.[1356] As to the West African negroes, Mr. Reade informed Mr. Darwin that "the women, at least among the more intelligent Pagan tribes, have no difficulty in getting the husbands whom they may desire, although it is considered unwomanly to ask a man to marry them."[1357] The accuracy of this statement is confirmed by several travellers,[1358] and it seems to hold good for other parts of Africa. Among the Shulis, according to Dr. Felkin, the women have a voice in the selection of their husbands.[1359] The Mádi girls, says Emin Pasha, enjoy great freedom, and are able to choose companions to their liking.[1360] Among the Marutse, "free women who have not been given away or sold as slaves are allowed to

choose what husbands they please."[1361] The young Kafirs endeavour generally at first to gain the consent of the girls, for it is, as Mr. Leslie remarks, "a mistake to imagine that a girl is sold by her father in the same manner, and with the same authority, with which he would dispose of a cow."[1362] And, among the Hottentots[1363] and Bushmans,[1364] when a girl has grown up to womanhood without having previously been betrothed, her lover must gain her approbation, as well as that of the parents.

In works by ancient writers we find statements of the same kind. Among the Cathæi, according to Strabo, the girls chose their husbands, and the young men their wives;[1365] and the same is said by Herodotus of the women of Lydia.[1366] In Indian and old Scandinavian tales virgins are represented as having the power to dispose of themselves freely.[1367] Thus it was agreed that Skade should choose for herself a husband among the Asas, but she was to make her choice by the feet, the only part of their persons she was allowed to see.[1368]

In view of such facts it is impossible to agree with M. Letourneau that, during a very long period, woman was married without her wishes being at all consulted.[1369] There can be no doubt that, under more primitive conditions, she was even more free in that respect than she is now among most of the lower races. At present a daughter is very commonly an object of trade, and the more exclusively she is regarded from this point of view, the less, of course, are her own likings taken into account. Among the Bedouins of Mount Sinai, who have marriage by purpose, no father thinks it necessary to consult his daughter before selling her, whereas, among the Arabs of the eastern plain, the Aenezes, &c., according to Burckhardt, "the father never receives the price of the girl, and therefore some regard is paid to her inclinations."[1370] But it will be shown that marriage by purchase forms a comparatively late stage in the history of the family relations of mankind, owing its origin to the fact that daughters are valuable as labourers, and therefore not given away for nothing. Speaking of the Gippsland natives, Mr. Fison says, "The assertion that women 'eat and do not hunt' cannot apply to the lower savages. On the contrary, whether among the ruder agricultural tribes or those who are dependent on supplies gathered from the 'forest and the flood,' the women are food-providers, who supply to the full as much as they consume, and render valuable service into the bargain. In times of peace, as a general rule, they are the hardest workers and the most useful members of the community."[1371] Now, the Australians, although a very rude race, have advanced far beyond the original state of man. There is no reason to doubt that, among our earliest human ancestors, the possession of a woman was desired only for the gratification of the man's passions. It may be said generally that in a state of nature every grown-up individual earns his own living. Hence there is no slavery, as there is, properly speaking, no labour. A man in the earliest times had no reason, then, to retain his full-grown daughter;

she might go away, and marry at her pleasure. That she was not necessarily gained by the very first male, we may conclude from what we know about the lower animals. As Mr. Darwin remarks, the female generally, or at least often, exerts some choice. She can in most cases escape, if wooed by a male who does not please her, and when pursued, as commonly occurs, by several males, she seems often to have the opportunity, whilst they are fighting with one another, of going away with, or at least of temporarily paring with, some one male.[1372]

It might be supposed that at a later stage, when family ties grew stronger, and bride-stealing became a common way of concluding a marriage, the consent of the woman in the event of capture would be quite out of the question. Certainly it must generally have been so when she fell as a booty into the hands of an enemy. But women thus captured may in many cases have been able to escape from the husbands forced on them, and to return to their own, or some friendly neighbouring, tribe. Very frequently, however, bride-stealing seems to have taken place with the approval of the girl, there being no other way in which the match could be concluded if her parents were not willing to agree to it. It is a common mistake, as Mr. Howitt remarks, to confound marriage by capture and marriage by elopement. They are essentially different, the one being effected without, the other with, the woman's consent.[1373] Thus, among the Australians, many, perhaps most, cases of so-called bride-stealing come under the head of elopements.[1374]

Something remains to be said as to the position of sons among uncivilized peoples. When young they are everywhere as much dependent on the parents, or at least on the father, as are their sisters. A boy may be sold, bartered away, or even killed, if his father thinks proper. That the power of life and death, under certain circumstances, rests with the tribe is a matter of little importance in this connection. But as soon as the young man grows up, the father, as a rule, has no longer any authority over him, whereas a woman is always more or less in a state of dependence, marriage implying for her a change of owner only. Among the Australians, says Mr. Curr, "sons become independent when they have gone through the ceremonies by which they attain to the status of manhood."[1375] The full-grown man is his own master; he is strong enough not to be kept in check by his father, and, being able to shift for himself, he may marry quite independently of the old man's will.

It often happens, indeed, as we have seen, that parents betroth their children when they are young.[1376] But, if such an engagement is not always binding even for the woman, it is of course all the less so for the man. "The choice among the Kalmucks," Liadov says, "belongs entirely to the parents. Still, there is no constraint upon this point, and, if the son declares that the selection of his parents displease him, there is no further question about the matter."[1377]

Moreover, marriage contracts are concluded among certain peoples by the parents of the parties, even when these are full-grown.[1378] Among the Iroquois, according to Mr. Morgan, the mother, when she considered her son of a suitable age for marriage, looked about for a maiden whom she thought likely to accord with him in disposition and temperament, and remonstrance or objection on the part of the children was never attempted.[1379] Among the Basutos, the choice of "the great wife" is generally made by the father.[1380] And, in many of the uncivilized tribes of India, parents are in the habit of betrothing their sons.[1381] In certain cases, the parents merely go through a form of selection, the matter having already been really settled by the parties concerned;[1382] and usually a man who has been induced to marry a woman he does not like, may divorce her and choose another according to his taste. Yet, speaking of the Kisáns, Colonel Dalton says that "there is no instance on record of a youth or maiden objecting to the arrangement made for them."[1383] The paternal authority among these tribes of India implies, indeed, a family system of higher type than we are accustomed to find among wild races: it approaches the patria potestas of the ancient Aryan nations. Thus, among the Kandhs, in each family the absolute authority rests with the house-father; the sons have no property during the father's lifetime, and all the male children, with their wives and descendants, continue to share the father's meal, prepared by the common mother.[1384] The father chooses a full-grown woman as a wife for his young son. "In the superior age of the bride," says Colonel Macpherson, "is seen a proof of the supremacy of the paternal authority amongst this singular people. The parents obtain the wives of their sons during their boyhood, as very valuable domestic servants, and their selections are avowedly made with a view to utility in this character."[1385]

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Among savages the father's power depends exclusively, or chiefly, upon his superior strength. At a later stage, in connection with a more highly developed system of ancestor-worship, it becomes more ideal, and, at the same time, more extensive and more absolute. Obedience to the father is regarded as a sacred duty, the transgression of which will be punished as a crime against the gods. Indeed, so prevalent has this strengthened authority of the father been among peoples who have reached a relatively high degree of civilization, that it must be regarded as marking a stage in all human history.

The family system of the savage Indians differs widely, in this respect, from that which was established among the ancient inhabitants of Mexico and Peru. Concerning the Mexicans, Clavigero says that "their children were bred to stand so much in awe of their parents, that, even when grown up and married they hardly durst speak before them."[1386] The following was an exhortation of a Mexican to his son:—"Honour all persons, particularly thy parents, to

whom thou owest obedience, respect, and service. Guard against imitating the example of those wicked sons, who, like brutes that are deprived of reason, neither reverence their parents, listen to their instruction, nor submit to their correction; because whoever follows their steps will have an unhappy end, will die in a desperate or sudden manner, or will be killed and devoured by wild beasts."[1387] A youth was seldom allowed to choose a wife for himself; he was expected to abide by the selection of his parents. Hence it rarely happened that a marriage took place without the sanction of parents or other kinsfolk, and he who presumed to marry without such sanction had to undergo penance, being looked upon as ungrateful, ill-bred, and apostate.[1388] The belief was, according to Torquemada, that an act of that kind would be punished by some misfortune.[1389] In a province of the Mexican empire, it was even required that a bridegroom should be carried, that he might be supposed to marry against his inclinations.[1390] Touching the Guatemalans, Mr. Bancroft says, "It seems incredible that the young men should have quietly submitted to having their wives picked out for them without being allowed any voice or choice in the matter. Yet we are told that so great was their obedience and submission to their parents that there never was any scandal in these things."[1391] In the greater part of Nicaragua, matches were arranged by the parents; though there were certain independent towns in which the girls chose their husbands from among the young men, while the latter sat at a feast.[1392] Again, in Peru, Inca Pachacutec confirmed the law that sons should obey and serve their fathers until they reached the age of twenty-five, and that none should marry without the consent of the parents, and of the parents of the girl, a marriage without this consent being invalid and the children illegitimate.[1393]

Similar ideas formerly prevailed, and to some extent are still found, among the civilized nations of the Old World. The Chinese have a maxim that, as the Emperor should have a father's love for his people, so a father should have a sovereign's power over his family.[1394] From earliest youth the Chinese lad is imbued with such respect for his parents that it becomes at last a religious sentiment, and forms, as he gets older, the basis of his only creed—the worship of ancestors.[1395] Disobedience to parents is looked upon as a sin to be punished with death, whether the offender be an infant or a full-grown son or daughter. And in everything referring to the marriage of the children parents are omnipotent. "From all antiquity in China," Navarette says, "no son ever did, or hereafter will, marry without the consent of his parents."[1396] Indeed, according to Mr. Medhurst, it is a universally acknowledged principle in China that no person, of whatever age, can act for himself in matrimonial matters during the lifetime or in the neighbourhood of his parents or near senior kinsfolk. The power of these guardians is so great that they may contract a marriage for a junior who is absent from home, and he is bound to abide

by such engagement even though already affianced elsewhere without their privity or consent.[1397] The consequence of this system is that, in many cases, the betrothed couple scarcely know each other before marriage, the wedding being the first occasion on which the man catches a glimpse of his wife's face.[1398] In some parts of the Empire children are affianced in infancy.[1399]

In Japan, according to Professor Rein, a house-father enjoyed the same extensive rights as the Roman paterfamilias—an unlimited power over the person and property of his children.[1400] Filial piety is considered the highest duty of man, and not even death or the marriage relation weakens, to any great extent, the hold of a father on a child. "With affection on the one hand, and cunning on the other," says Mr. Griffis, "an unscrupulous father may do what he will.... The Japanese maiden, as pure as the purest Christian virgin, will, at the command of her father, enter the brothel to-morrow, and prostitute herself for life. Not a murmur escapes her lips as she thus filially obeys."[1401] Marriages are almost invariably arranged by the parents or nearest kinsfolk of the parties, or by the parties themselves with the aid of an agent or middleman known as the "nakōdo," it being considered highly improper for them to arrange it on their own account. Among the lower classes, such direct unions are not unfrequent; but they are held in contempt, and are known as "yagō," i.e., "meeting on a moor,"—a term of disrespect showing the low opinion entertained of them. The middleman's duty consists in acquainting each of the parties with the nature, habits, good and bad qualities, and bodily infirmities of the other, and in doing his utmost to bring the affair to a successful conclusion. It seldom happens that the parties immediately interested communicate directly with the middleman; if they have parents or guardians, it is done by these, and, if not, by the nearest relation. The middleman has to arrange for a meeting between the parties, which meeting is known as the "mi ai," literally "see meeting" and, if either party is dissatisfied with the other after this introduction, the matter proceeds no further. But, formerly, says Mr. Küchler, "this ante-nuptial meeting was dispensed with in the case of people of very exalted rank, who consequently never saw each other until the bride removed her veil on the marriage day."[1402]

Among the ancient Arabs[1403] and Hebrews, fathers exercised very great rights over their families. According to the old law of Jahveism, a father might sell his child to relieve his own distress, or offer it to a creditor as a pledge.[1404] Death was the penalty for a child who struck a parent, or even cursed one;[1405] though the father himself could not inflict this penalty on his children, but had to appeal to the whole community.[1406] How important were the duties of the child to the parents, is shown in the primitive typical relation of Isaac to Abraham, and may, as Ewald remarks, be at once learned from the placing of the law on the subject among the Ten Commandments, and from its position there in immediate proximity to the commands relating to the

duties of man towards God.[1407] According to Michaelis, there is nowhere the slightest trace of its having been the will of Moses that paternal authority and the subjection of sons should cease after a certain age.[1408] A Hebrew father not only disposed of his daughter's hand, but chose wives for his sons,—the selection, however, being sometimes made by the mother.[1409]

Judging from the marked severity of filial duties among the Egyptians, some of which are distinctly alluded to in the inscription of Thebes, we may conclude that, in Egypt, much more was expected from a son than in any European nation of the present day.[1410] And in the 'Precepts of Ptah-Hotep,' which have been called "the most ancient book in the world," we read that the father ought to command, the son to obey:—"The son who accepts the word of his father will attain old age on that account. God wishes us to obey; disobedience is abhorrent to Him."[1411]

Among the Romans, the house-father had, in the earlier time, the jus vitae necisque—the power of life and death—over his children. He could imprison, sell, or kill his children under an express law of the Twelve Tables;[1412] and Plutarch says Brutus condemned his sons to death, without judicial forms, not as consul, but as father.[1413] "All in the household," Mommsen remarks, "were destitute of legal rights—the wife and the child no less than the bullock or the slave."[1414] Even the full-grown son and his children were subject to the house-father's will,[1415] and in marriage without conventio in manum a daughter remained in the power of her father or tutor after marriage. The consent of the paterfamilias was indispensable to the marriage of children, sons and daughters alike;[1416] and so strict was this rule originally, that down to the reign of Marcus Aurelius the children of a mente captus could not contract a legal marriage while in the power of their father, the latter being incapable of giving his consent.[1417] The religious character of this unlimited paternal authority has been pointed out by M. Fustel de Coulanges. "In primitive antiquity," he says, "the father is not only the strong man, the protector who has power to command obedience; he is the priest, he is heir to the hearth, the continuator of the ancestors, the parent stock of the descendants, the depositary of the mysterious rites of worship, and of the sacred formulas of prayer. The whole religion resides in him."[1418]

It has been suggested by Sir Henry Maine and others that the patria potestas of the Romans was a survival of the paternal authority which existed among the primitive Aryans.[1419] But no clear evidence of the general prevalence of such unlimited authority among other Indo-European peoples has been adduced. Justinian justly observed, "The power which we have over our children is peculiar to Roman citizens; for there are no other men possessing such a power over their children as we have."[1420] That the father, among the Greeks, Germans, and Celts, had the power to expose his children when they

were very young and to sell his marriageable daughters, does not imply the possession of a sovereignty like that which the Roman house-father exercised over his descendants at all ages. As, however, the family institution seems to have had a religious basis among the early Aryans, the father probably had a higher authority than he has among any existing uncivilized people.

According to Sir Henry Maine, the fulness of the ancient Hindu patria potestas may be safely inferred from the veneration which even a living father must have inspired under a system of ancestor-worship.[1421] At a later date, the law-book of Manu declares that three persons—a wife, a son, and a slave—have in general no wealth exclusively their own; the wealth which they may earn being regularly acquired for the man to whom they belong.[1422] A more recent, but still ancient authority, Narada, says that a son is "of age and independent, in case his parents be dead; during their lifetime he is dependent, even though he be grown old."[1423] And, speaking of the South of India, Mr. Nelson observes, "It is an undoubted fact that, amongst the so-called Hindus of the Madras Province, the father is looked upon by all at the present day as the Rajah or absolute Sovereign of the family that depends upon him. He is entitled to reverence during his life, as he is to worship after his death. His word is law, to be obeyed without question or demur. He is emphatically the 'Master' of his family, of his wife, of his sons, of his slaves, and of his wealth."[1424] But, on the other hand, it appears from the 'Rig-Veda' that, among the ancient Hindus, the father was the head of the family only as long as he was able to be its protector and maintainer,[1425] decrepit parents being even allowed to die of starvation,—a custom which was prevalent among the ancient Teutons and Eranians.[1426] Moreover, according to the 'Laws of Manu,' a daughter might choose her husband in accordance with her own wish. This permission, however, seems to have been an innovation, as Manu himself disapproves of such a "voluntary union of a maiden and her lover, ... which springs from desire and has sexual intercourse for its purpose."[1427] The four marriages—Brâhma, Daiva, Ârsha, and Prâgâpatya—in which the father gives away his daughter, are blessed marriages, and from them spring sons radiant with knowledge of the Veda, honoured by good men, and destined to live a hundred years. But the remaining four marriages—those effected by purchase, voluntary union, forcible abduction, or stealth—are blamable marriages, from which spring sons who are cruel and untruthful, who hate the Veda and the sacred law.[1428] Among the ancient Persians also, marriage contracted with the woman's own consent, but against the will of her parents, was looked upon as the worst kind of marriage.[1429] In India,[1430] as well as in Persia,[1431] children were often affianced in earliest youth by their parents.

According to M. Fustel de Coulanges, the unlimited subjection of the son to the father existed amongst the ancient Greeks, but disappeared at an early

period at Athens, and somewhat later at Sparta.[1432] It seems very doubtful, however, whether this subjection ever was so unlimited as among the Romans. The relations of Ulysses and Laertes in the Odyssey indicate that, at least under certain circumstances, a father in the decrepitude of age could be deposed from the headship of the family. In the mature Greek jurisprudence, as Sir Henry Maine points out, the direct authority of the parent is restricted, as in European codes, to the nonage or minority of the children.[1433] At Athens, a son was in his father's power till twenty years of age; then he could marry without paternal sanction.[1434] Women, on the other hand, were in a state of nonage throughout life. A woman could not be a party to any act of importance without the consent of her guardians, whose rights, after her marriage, passed to the husband. As a rule, it was the lot of a Greek woman to be given in marriage to a man whom she did not know.[1435] "Les femmes, à Athènes," says M. Cauvet, "ne devaient jamais choisir elles-mêmes leur époux, toujours il leur était par le tuteur que la loi leur donnait."[1436] At Sparta, as well as at Athens, the betrothal of the bride by her father or guardian was requisite as an introduction to marriage.[1437]

Among the Teutons, the father certainly had the power to expose or sell his children under age, but an adult son could put his infirm and aged parents to death.[1438] "Quelle que soit la ressemblance des deux institutions," says M. Laboulaye, "on ne peut pas confondre la puissance paternelle (patria potestas) des Romains et la puissance paternelle des barbares, le mundium."[1439] Far from being, as in Rome, a power throughout life, the mundium over a son ceased as soon as he was able to shift for himself.[1440] M. Pardessus asserts that, at any rate in the fifth and sixth centuries, such paternal authority as a Roman father exerted did not exist among the Franks;[1441] and an old commentator states that, "by the law of the Langobardi, children are not under the 'power' of the father." Nevertheless, the mundium among these people was more severe than among any other of the Teutonic nations.[1442] The extent of the father's rights in earlier times, when the Teutons had no written laws, we do not definitely know; but, according to Tacitus, a house-father had not unlimited power even over his slaves;[1443] so it is impossible to believe in the prevalence of a patria potestas of the Roman type among them. In choosing a wife, however, the men had apparently in early days to take counsel with their kinsfolk.[1444] "The parents and relations of the parties," says Tacitus, "are consulted in cases of marriage, and determine the nature of the bridal gifts."[1445] Women always remained in a state of dependence. Girls, wives, or widows, they were under the guardianship of the father, husband, or nearest male relative. The father could freely dispose of his daughter's hand, and her own inclinations seem to have been very little taken into consideration.[1446]

According to ancient Russian laws, fathers had great power over the children;[1447] but Macieiowski thinks it improbable that a son could be sold as a slave.[1448] Baron von Haxthausen, who wrote before the Emancipation in 1861, says, "The patriarchal government, feelings, and organization are in full activity in the life, manners, and customs of the Great Russians. The same unlimited authority which the father exercises over all his children is possessed by the mother over her daughters.... The Russian addresses the same word to his real father, to the Starosta (a communal authority), to his proprietor, to the Emperor, and finally to God, viz., Father ('Batushka')."[1449] According to Sir Mackenzie Wallace, however, the head of the household was rather the administrator of a labour association than a house-father in the proper sense of the term. The house and nearly everything it contained were the joint-property of the family, and not even the head of it could sell or buy anything without the express or tacit consent of all the other grown-up men.[1450] In Poland, according to Nestor, a father used to select a bride for his son;[1451] and in Russia, previous to the Emancipation, it was a common custom for fathers to marry their young sons to full-grown women. According to Professor Bogišić, the power of the father is not so great among the South Slavonians as among the Russians.[1452] But Dr. Krauss asserts that a son is not permitted to make a proposal of marriage to a girl against the will of his parents; and, among the Croatians and Servians, it is quite exceptional for the young man himself to look about for his future wife.[1453] A daughter, of course, enjoys still less freedom of disposing of her own hand.[1454]

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The paternal authority of the archaic type here considered formed only a transitional stage in the history of human institutions. It declined gradually, according as the religious basis on which it rested became more unstable. The introduction of a new religion with higher conceptions of human rights particularly contributed to its fall. Paying special attention to its influence on the laws of marriage, I shall endeavour to trace the main features of this highly important process, which released children from paternal despotism.

Among the Hebrews, a modification of the patriarchal principle took place as early as the seventh century before the Christian era;[1455] and, according to the Talmudic law, a marriage, to be valid, must be contracted with the voluntary consent of both the parties concerned.[1456] In Arabia, Mohammed limited the paternal power.[1457] According to all the Mohammedan schools, a son is at liberty to contract a marriage without his father's consent, after he has completed his fifteenth year. The Hanafîs and Shiahs grant the same privilege to a daughter, whereas, according to other schools, a woman is emancipated from paternal control only through marriage.[1458] A Mohammedan father certainly has the right to impose the status of marriage on his children during

their minority, sons and daughters alike, but the law takes particular care that this right shall never be exercised to the prejudice of the infant. Any act of the father which is likely to injure the interest of the minor is considered illegal, and entitles the judge to interfere in order to prevent the completion of such act, or, if complete, to annul it.[1459]

In the mature Greek jurisprudence the paternal power was more restricted than during the Homeric age;[1460] and the Roman patria potestas gradually became a shadow of what it had been. Under the Republic the abuses of paternal authority were checked by the censors, and in later times the Emperors reduced the father's power within comparatively narrow limits. Alexander Severus ordained that severe punishments should be inflicted on members of a family only by the magistrate. Diocletian and Maximilian took away the power of selling freeborn children as slaves; and Constantine declared the father who killed his child guilty of murder.[1461] The father's privilege of dictating marriage for his sons declined into a conditional veto;[1462] and it seems as if daughters also, at length, gained a certain amount of freedom in the choice of a husband. At any rate, a daughter could protest, if the father wished to give her in marriage to a man with a bad reputation.[1463]

"La philosophie stoïcienne et le christianisme," says M. Koenigswarter, "qui hâtèrent le développement des principes d'égalité, furent surtout favorables aux fils de famille et aux femmes."[1464] The influence of Christianity shows itself in Teutonic legislation as well as in Roman. An edict of Clothaire I. in 560 prohibited the forcing of women to marry against their will;[1465] although a Council held at Paris three years earlier expressly required the consent of the parents also.[1466] According to the laws of Cnut, no woman or girl could be forced to marry a man whom she disliked.[1467] The Swedish 'Westgötalag' permitted a woman to dissolve a marriage which had been contracted without her consent;[1468] and similar privileges were granted to her in the 'Uplands-lag'[1469] and certain other Teutonic law-books.[1470] Later on, the 'Schwabenspiegel'—a faithful echo of canonical ideas—says, "When a young man has completed his fourteenth year, he can take a wife without the consent of his father.... At twelve years, a maiden is marriageable; and the marriage subsists, even if contracted in spite of her father, or other relatives."[1471] A similar privilege, during the Middle Ages, was granted to German women in general.[1472] But the feelings of the people seemed to have been opposed to it, and required the consent of the parents. Thus Ulrich von Lichtenstein says in his 'Frauenbuch,' "A girl who has no parents should follow the advice of her kinsfolk; if she gives herself to a man of her own accord, she may live with shame."[1473]

Paternal authority has declined more rapidly in some countries than in others. The process has been especially slow in France. In the literature of

the eleventh century, says M. Bernard, the paternal character is "everywhere honoured, and filial piety everywhere praised and rewarded. In the romances of chivalry fathers are never ridiculous; nor sons insolent and mocking.... Above the majesty of the feudal baron, that of the paternal power was held still more sacred and inviolable. However powerful the son might be, he would not have dared to outrage his father, whose authority was in his eyes always confounded with the sovereignty of command."[1474] This respect exercised a tyrannical dominion for centuries. Du Vair remarks, "Nous devons tenir nos pères comme des dieux en terre."[1475] Bodin wrote, in the later part of the sixteenth century, that, though the monarch commands his subjects, the master his disciples, the captain his soldiers, there is none to whom nature has given any command except the father, "who is the true image of the great sovereign God, universal father of all things."[1476] In the Duke of Sully's 'Memoirs' we read that, in his days in France, children were not permitted to sit in the presence of their parents without being commanded to do so.[1477] According to the edicts of Henry III. (1566), Louis XIII. (1639), and Louis XIV. (1697), sons could not marry before the age of thirty, nor daughters before that of twenty-five, without the consent of the father and mother, on pain of being disinherited.[1478] Speaking of the women among the nobility and upper classes in France during the eighteenth century, Messrs. de Goncourt remark, "Généralement le mariage de la jeune fille se faisait presque immédiatement au sortir du couvent, avec un mari accepté et agréé par la famille. Car le mariage était avant tout une affaire de famille, un arrangement au gré des parents, qui décidaient des considérations de position et d'argent, des convenances de rang et de fortune. Le choix était fait d'avance pour la jeune personne, qui n'était pas consultée."[1479]

Even now French law accords considerable power to parents. A child cannot quit the paternal residence without the permission of the father before the age of twenty-one except for enrolment in the army.[1480] For grave misconduct by his children the father has strong means of correction.[1481] A son under twenty-five and a daughter under twenty-one cannot marry without the consent of their parents;[1482] and, even when a man has attained his twenty-fifth year, and the woman her twenty-first, both are still bound to ask for it, by a formal notification.[1483] Parental restraints upon marriage exist to a very great extent in Germany and Holland also, the marriage of minors being absolutely void, if effected without the consent of the father, or of the mother if she be the survivor. According to American, Scotch, and Irish law, on the other hand, the consent of parents and guardians to the marriage of minors is not requisite to the validity of the union. The same was the case in England prior to the statute of 26 Geo. II. c. 33, which declared all marriages by license, when either of the parties was under the age of twenty-one years, if celebrated

without publication of banns, or without the consent of the father or unmarried mother, or guardian to be absolutely null and void.[1484]

There is thus a certain resemblance between the family institution of savage tribes and that of the most advanced races. Among both, the grown-up son, and frequently the grown-up daughter, enjoys a liberty unknown among peoples at an intermediate stage of civilization. There are, however, these vital differences:—that children in civilized countries are in no respect the property of their parents; that they are born with certain rights guaranteed to them by society; that the birth of children gives parents no rights over them other than those which conduce to the children's happiness. These ideas, essential as they are to true civilization, are not many centuries old. It is a purely modern conception the French Encyclopedist expresses when he says, "Le pouvoir paternel est plutôt un devoir qu'un pouvoir."[1485]

Chapter XI — Sexual Selection Among Animals

The expression, "Sexual Selection," was first used by Mr. Darwin. Besides natural selection, which depends on the success of both sexes, at all ages, in relation to the general conditions of life, he introduced another principle, sexual selection, which depends on the success of certain individuals over others of the same sex, in relation to the propagation of the species. According to the former principle, those individuals who are most successful in the struggle for existence survive the others, and characters useful to the species are thus inherited; according to the latter, those individuals who have the greatest success in the struggle for mates have the most numerous offspring, and the characters which gave them the preference pass on to the new generation, and are afterwards intensified by the operation of like causes. The sexual struggle is of two kinds. In both it is carried on by individuals of the same sex; but in one these individuals, generally the males, try to drive away or kill their rivals; in the other, they seek to excite or charm those of the opposite sex, generally the females, who select the most attractive males for their partners. Therefore, the characters acquired through sexual selection, and transmitted chiefly to offspring of the same sex, generally the males, are, on the one hand, weapons for battle, vigour and courage; on the other hand, certain colours, forms, ornaments, sounds, or odours, which are felt to be pleasant. The secondary sexual characters of the latter sort are thus due to the taste of the females. They have been acquired because they are beautiful or otherwise agreeable, whereas the characters resulting from natural selection have been acquired because they are useful. How are we to explain the origin of this wonderful æsthetic faculty? "The senses of man and of the lower animals," says Mr. Darwin, "seem to be

so constituted that brilliant colours and certain forms, as well as harmonious and rhythmical sounds, give pleasure and are called beautiful; but why this should be so we know not."[1486] According to Mr. Darwin, natural and sexual selection are two different sources from which animal characters have arisen. There is some truth in the statement of one of his critics, "Mr. Darwin, in fact, has so far abandoned his former belief in the efficacy of 'natural selection' as an agent in producing the differences which separate different species of animals, as to admit that some supplementary cause must, in some cases at any rate, be looked for; and this he thinks is to be found in the action, through long periods, of 'sexual selection.'"[1487]

Mr. Darwin, in his many works, has shown how immense is the influence exercised by natural selection on the organic world. A disciple, therefore, naturally feels perplexed when he is told of a series of facts, which, according to the explanation given by the master, are opposed to natural selection. When the contradiction between the theories of natural and sexual selection is distinctly realized, the question arises:—Can we be sure that the secondary sexual characters are so useless as Mr. Darwin suggests? May not they also be explained by the principle of the survival of the fittest? The larger size and greater strength of the males, and the weapons of offence or defence many of them possess, may easily be so accounted for, as, among the higher animals, the males generally fight with each other for the possession of the females. The point is whether the other secondary sexual characters can be due to the same cause.

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It is an established fact that the colours of flowers serve a definite end. Through them the flowers are recognized by insects in search of honey; and the insects, during their visits, involuntarily carry the pollen of one flower to the stigma of another, and thus effect cross-fertilization, which is proved to be of great importance for the vigour and fertility of the next generation of plants. Now it is extremely interesting to note that brilliant colours are found only in species of flowers to which they are useful as means of attracting insects; they never occur in plants which are fertilized by the wind.[1489] Mr. Wallace observes that plants rarely need to be concealed, because they obtain protection by their spines, or their hardness, or their hairy covering, or their poisonous secretions. Hence there are very few cases of what seems to be true protective colouring among them.[1490] In animals, on the contrary, colour is greatly influenced by their need of protection from, or warning to, their numerous enemies; colours of other kinds must always, to a certain extent, be dangerous for the species. Is it probable, then, that, whilst gay colours occur only in the flowers of those plants to which they are of real use, conspicuous colours should

occur in animals to which they are of real danger—merely because the females find them beautiful?

Mr. Wallace, whose well-known criticism of Mr. Darwin's theory of sexual selection[1491] seems, in many points, to be conclusive, suggests that the very frequent superiority of the male bird or insect in brightness or intensity of colour is due to the greater vigour and activity and the higher vitality of the male. This intensity of coloration is therefore most manifest in the male during the breeding season, when the vitality is at a maximum. It would be further developed by the combats of the males for the possession of the females; and the most vigorous and energetic usually leaving the most numerous and most healthy offspring, natural selection would indirectly become a preserver and intensifier of colour.[1492] Mr. Wallace has made it very probable that there is some connection between vigour and colour, but another question is whether this connection, depending on some unknown physiological law, is so necessary that it takes place even when colour is positively disadvantageous to the species. Nothing of the kind is found in the vegetable kingdom. We know, as Mr. Wallace himself remarks, that colours which rarely or never appear in the species in a state of nature, continually occur among cultivated plants and domesticated animals—a fact which shows that the capacity to develop colour is ever present.[1493] Among wild plants such colour variations are never preserved except when they are useful. Is it not most reasonable to suppose that the like is the case with animals?

The truth seems to be that colour subserves the same purpose in both of the great kingdoms of the organic world. Just as flowers are coloured that insects may recognize where honey is to be found, and thus may be led to promote fertilization, so the sexual colours of animals have been developed to make it easier for the sexes to find each other during the pairing time. Protective colours are useful so far as they conceal the animal from its enemies, but, at the same time, they conceal it from individuals of its own species. Sexual colours are therefore useful as well, because they make the animal more visible. It is quite in accordance with the theory of natural selection that, where such colours occur, the advantage from them should be greater than the disadvantage. We can see the reason for the brilliant colours of humming-birds, as these birds, on account of their great activity "are practically unmolested,"[1494] and for the bright hues of the rose chafers, who are saved from attack by a combination of protecting characters.[1495] But generally there is danger in sexual colours, so that nature has given them with the utmost cautiousness. Usually they occur in males only, because of the females' greater need of protection.[1496] They are not developed till the age of reproduction, and they appear, in a great many species, only during the pairing season. The greatest advantage is won with the least possible peril.

It is a fact of great importance that sexual colours occur exactly in those species whose habits make these colours most visible. Thus the nocturnal moths, taken as a body, are much less gaily decorated than butterflies, all of which are diurnal in their habits, although, according to Mr. Wallace, the general influence of solar light and heat is no adequate cause for the variety, intensity, and complexity of the colours. The females of the ghost moth are yellow with darker markings, whereas the males are white, that they may be more easily seen by the females whilst flying about in the dusk; and it is remarkable that, in the Shetland Islands, the male of this moth, instead of differing widely from the female, frequently resembles her closely in colour, —as Mr. Fraser suggests,[1497] because, at the season of the year when the ghost moth appears in these northern latitudes, the whiteness of the males is not needed to render them visible to the females in the twilight night. Both Mr. Darwin[1498] and Mr. Wallace[1499] think that, in this case, colour may be a means of recognition. Sexual colours occur chiefly in species which, because of their manner of living, are to be seen at a distance; they seldom occur in sedentary or slowly moving terrestrial animals.[1500] The members of the lowly organized order Thysanura are wingless and dull-coloured. The Hemiptera, which usually lurk about plants, and prey upon hapless insects, are not, as a rule, remarkable for conspicuous hues. The Orthoptera are all terrestrial in their habits, generally feeding upon plants, and, although some exotic locusts are beautifully ornamented, their bright tints, according to Mr. Darwin, do not seem to fall under the head of sexual coloration. On the other hand, the dragon-flies, which live in the open air, possess splendid green, blue, yellow, and vermilion metallic tints, and the sexes often differ in their coloration. Every one has admired the extreme beauty of many butterflies, especially of the males. Amongst the Fishes, living in a medium through which bright colours may be observed at a distance, we often find, besides protective colours, conspicuous hues which are especially intense and visible during the pairing time. Among the Reptiles, the little lizards of the genus Draco especially deserve attention; they glide through the air on their rib-supported parachutes, and the beauty of their colours baffles description. Mammals, on the other hand, do not generally present the splendid tints so common among male birds; and the brighter colours of certain arboreal mammals serve chiefly as means of concealment.

These phenomena seem to show that sexual colours have been evolved for the purpose of being seen. They can scarcely be due merely to the fact that coloration is connected with the degree of vitality, since the Mammals, for instance, are certainly not less vigorous than any of the other Vertebrate orders. It may perhaps be suggested that, as flying animals more easily escape their enemies than terrestrial, they may with less danger be decorated with conspicuous hues. But here we have to observe the most important fact, that

animals which do not possess sexual colours generally have some other means of making themselves discoverable.

Flowers which need the help of insects for fertilization attract them, in some cases, not by bright colours, but by peculiar odours. And as we do not find conspicuous colours in plants fertilized by the wind, so flowers have no perfume except where it is of real use. The most brilliant flowers, as a rule, are those which possess least odour, whilst many of them have no scent at all. White or very pale flowers are generally the most odoriferous. M. Mongredien gives a list of about 160 species of hardy trees and shrubs with showy flowers, and another list of sixty species with fragrant flowers; but only twenty of the latter are included among the showy species, and these are almost all white-flowered.[1501] Most of the white flowers are scented only at night, or their perfumes are most powerfully emitted at that time; the reason being that white flowers are fertilized chiefly by night-flying insects. We arrive thus at two conclusions: first, that powerful odours and conspicuous colours as guides to insect fertilizers are, as a rule, complementary to each other; secondly, that they occur alternately in the way most useful to the species.

In the animal kingdom various odours and sounds are closely connected with the reproduction of the species. During the season of love a musky odour is emitted by the submaxillary glands of the crocodile, and pervades its haunts. At the same period the anal scent-glands of snakes are in active function, and so are the corresponding glands of the lizards. Many mammals are odoriferous. In some cases the odour appears to serve as a defence or a protection, but in other species the glands are confined to the males, and almost always become more active during the rutting season. Again, a great many insects have the power of producing stridulous sounds. In two families of the Homoptera and in three of the Orthoptera, the males alone possess organs of sound in an efficient state, and these are used incessantly during the pairing season. Some male fishes have sound-producing instruments, and the fishermen of Rochelle assert that the males alone make the noise during the spawning-time. Of frogs and toads the males emit various sounds at the pairing time, as in the case of the croaking of our common frog. During the rutting season, and at no other time, the male of the huge tortoise of the Galapagos Islands utters a hoarse bellowing noise, which can be heard at a distance of more than a hundred yards. Professor Aughey states that on two occasions, being himself unseen, he watched from a little distance a rattle-snake coiled up with head erect, which continued to rattle at short intervals for half an hour; at last he saw another snake approach, and when they met they paired. Among Birds the power of song, or of giving forth strange cries, or even instrumental music, is exceedingly common, particularly in the males during the pairing season; and almost all male mammals use their voices much more during that period than at any other time. Some, as

the giraffe and porcupine, are stated to be completely mute except during the rutting season.

The colours, odours, and sounds of animals, like the colours and odours of plants—so far as they may be assumed to be in some way connected with the reproductive functions—are, as a rule, complementary to each other. Stridulating insects are generally not conspicuously coloured. Among the Homoptera, there do not seem to be any well-marked cases of ornamental differences between the sexes. Among crickets, the Locustidæ, and grasshoppers, some species are beautifully coloured; but Mr. Darwin says, "It is not probable that they owe their bright tints to sexual selection. Conspicuous colours may be of use to these insects by giving notice that they are unpalatable." Other species have directly protective colours. The bright hues of stridulating beetles seem to be of use chiefly for protective and warning purposes; whereas species belonging to the orders Neuroptera and Lepidoptera, often extremely conspicuously coloured, are not remarkable for any stridulous sounds. Frogs and toads, which have an interesting sexual character in the musical powers possessed by the males, are evidently coloured according to the principle of protection, or sometimes tinted with conspicuous hues in order to be more easily recognized by their enemies as a nauseous food. Of Reptiles, the Lacertilia excel mainly in bright tints; the Chelonia, Crocodilia, and Ophidia, in sounds and odours. Among Birds, in one instance at least, the male is remarkable for his scent. "During the pairing and breeding season," says Mr. Gould, with reference to the Australian musk-duck, " ... this bird emits a strong musky odour;" it is not ornamented with any conspicuous hues.[1502] Sexual colours and the power of song are generally complementary to each other among Birds. "As a general rule," Mr. Wood remarks, "it is found that the most brilliant songsters among the birds are attired in the plainest garb; and it may safely be predicted of any peculiarly gorgeous bird, that power, quality and sweetness of voice are in inverse ratio to its beauty of plumage."[1503] Thus, of the British birds, with the exception of the bullfinch and goldfinch, the best songsters are plain-coloured, and the brilliant birds of the tropics are hardly ever songsters. The wild camel in the desert of Kum-tagh has a reddish, sandy hue, and the males, "even during the rutting season, utter no sound, but find their consorts by scent."[1504] The musk-deer, well known for the intolerable perfume which the males emit at the pairing time, is also entirely silent.[1505]

Moreover, as appears from what has just been said, the sexual colours, the perceptible scents and sounds of animals are complementary to each other in the way that is best suited to make the animals easily discoverable. As bright colours would be of no advantage to flowers fertilized by night-flying insects, so they would be of comparatively little advantage to animals living among grass and plants, in woods and bushes; whereas sounds and scents make the animal

recognizable at a considerable distance. We have also seen that it is among flying and aquatic animals that sexual colours chiefly occur, whereas terrestrial animals excel in sound and scents. Thus most of the stridulating insects are terrestrial. Whilst brightly-coloured lizards, living on trees or running from stone to stone, must attract attention by the brilliance of their covering, crocodiles inhabiting rivers and jungles, and frogs crawling among the grass, allure their mates, the former by emitting musky odours, the latter by producing loud sounds. The odour of the Australian musk-duck, which depends for its food and for its preservation from danger upon its powers of diving rather than upon those of flying, is, as Mr. Gould observes, often perceptible long before the animal can be seen.[1506]

Mr. Darwin remarks, as regards birds, "Bright colours and the power of song seem to replace each other. We can perceive that, if the plumage did not vary in brightness, or if bright colours were dangerous to the species, other means would be employed to charm the females; and melody of voice offers one such means."[1507] But if we accept Mr. Darwin's theory of sexual selection, we are compelled to suppose that that inexplicable æsthetic sense of the females has been developed in the way most dangerous to the species. Conspicuous colours are admired by the females of those animals which, by means of such colours, are most easily discovered by their enemies, and sounds and odours are appreciated exactly in those species to which they are most perilous. If, on the contrary, we accept the explanation that, although sexual colours, odours, and sounds are in some ways hurtful to the species, they are upon the whole advantageous, inasmuch as they make it easier for the sexes to find each other, we have a theory in accordance with all known facts, as well as with the great principle of natural selection. It may be objected that it is not the females but the males that are the seekers, whilst the secondary sexual characters generally occur in the males only. But we have no reason to think that the females are entirely passive during the pairing season; and several of the statements collected by Mr. Darwin directly indicate that females are attracted by the sounds of their future partners. If Burdach is correct in saying that the male sex generally possesses more acute senses than the female,[1508] it is obvious that secondary sexual characters would be of less use to females than to males, as it certainly would be of greater danger.

In his work on 'Darwinism,' Mr. Wallace expresses the opinion that the various sounds and odours which are peculiar to the male serve as a call to the female, or as an indication of his presence; and, as he says, "the production, intensification, and differentiation of these sounds and odours are clearly within the power of natural selection."[1509] Mr. Wallace has also shown the immense importance of colour as a means of recognition. The theory here set forth thus, in fact, very nearly approaches his views. The only difference is that the sexual

colours have been classified under the head of "colour for recognition," though the positive cause by which they have been produced may be a surplus of vital energy.

We have still to consider certain secondary sexual characters which, according to Mr. Darwin, must be regarded as ornaments. With these he classes the great horns which rise from the head, thorax, and clypeus of many male beetles; the appendages with which some male fishes and reptiles are provided; the combs, plumes, crests, and protuberances of many male birds; and various crests, tufts, and mantles of hair which are found in certain mammals. But some of these characters may be of use to the males in their fights for females, or serve as means of recognition. Mr. Wallace suggests that crests and other erectile feathers may have been useful in making the bird more formidable in appearance, and in thus frightening away enemies; while long tail or wing feathers might serve to distract the aim of a bird of prey.[1510] Moreover, characters of which we cannot yet perceive the use may in the future be brought under the law of utility, as has been the case in so many other instances. According to Mr. Wallace, the ornamental appendages of birds and other animals are due to a surplus of vital energy, leading to abnormal growths in those parts of the integument where muscular and nervous action are greatest.[1511] And where these "ornaments" are of no positive disadvantage to the species, certainly no other explanation is needed.

For other arguments which may be advanced against Mr. Darwin's theory of sexual selection, reference may be made to Mr. Wallace's criticisms in 'Tropical Nature' and 'Darwinism.' We have sufficient evidence that females are pleased or excited by the males' display of their sexual colours,[1512] and are charmed by their songs. But Mr. Darwin's theory presupposes, amongst many other things, that almost all the females of a species, over a wide area and for many successive generations, prefer exactly the same modification of the colour, or ornament or sounds.[1513] Moreover, if the secondary sexual characters are due to female choice, how shall we explain the strange fact that the taste of the females varies so much that there are scarcely two species in which the standard of perfection is exactly the same? This difficulty did not escape Mr. Darwin. "It is a curious fact," he says, "that in the same class of animals sounds so different as the drumming of the snipe's tail, the tapping of the woodpecker's beak, the harsh trumpet-like cry of certain waterfowl, the cooing of the turtle-dove, and the song of the nightingale, should all be pleasing to the females of the several species." And further, "What shall we say about the harsh screams of, for instance, some kinds of macaws; have these birds as bad taste for musical sounds as they apparently have for colour, judging by the inharmonious contrast of their bright yellow and blue plumage?"[1514]

The theory now suggested accounts fully for this difference in taste. The immense variability of the secondary sexual characters is precisely what might be expected, if their object is to make it easier for the sexes to find and recognize each other. And it is natural that the females should be pleased by colours, odours, or sounds which, by the association of ideas, are to them the symbols of the most exciting period of their lives. On the other hand, we know that differently coloured races of the same species may be disinclined to pair together.[1515] And here, I think, we may draw an important conclusion. The great stability of the secondary sexual characters which we find in wild species, but certainly not in animals under domestication, seems to be due chiefly to the fact that those males which most typically represent the peculiarities of their species have the best chance of finding mates.

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The reader may have felt some surprise at this strange jump from the patria potestas to a discussion of merely zoological facts, which have nothing to do, directly, with the history of human marriage. But we have now to deal with the sexual selection of man, and, for the right understanding of this, it was necessary to show that the sexual selection of the lower animals is entirely subordinate to the great law of natural selection. Mr. Darwin discussed the origin of the secondary sexual characters as a preliminary to the statement of his theory regarding the origin of man, and of the different races of men. At the end of the next chapter we shall consider whether this theory appears to be in accordance with facts or not.

Chapter XII — The Sexual Selection of Man: Typical Beauty

By the "Sexual Selection of Man" is meant the choice made by men and women as regards relations with the opposite sex. Mr. Darwin has shown that such selection takes place among the lower Vertebrata, and, judging from what we know of domesticated animals, it is much more common in the case of females than in that of males. The male, indeed, as a rule, seems to be ready to pair with any female, provided she belongs to his own species.[1516] As this probably depends upon the great strength of his sexual impulse, we may infer that in primitive times, when man had a definite pairing season, he displayed a like tendency, and that the sexual instinct, in proportion as it has become less intense, has become more discriminating.

Even now woman is more particular in her choice than man, provided that the union takes place without reference to interest. A Maori proverb says, "Let a man be ever so good-looking, he will not be much sought after; but let

a woman be ever so plain, men will still eagerly seek after her."[1517] With regard to the Negroes of Sogno, Merolla da Sorrento states, "Women would have experience of their husbands before they married them, in like manner as the men were to have of them; and in this particular I can aver that they are commonly much more obstinate or fickle than men, for I have known many instances in which the men were willing to be married, while the women held back, and either fled away or made excuses."[1518] Among the Eastern Central Africans, according to Mr. Macdonald, many cases are known of slave wives running away from free husbands, but none of slave husbands running away from free wives.[1519] In the crossings between unequal human races, the father almost always belongs to the superior race. "In every case," says M. de Quatrefages, "and especially in transient amours, woman refuses to lower herself; man is less delicate."[1520] Thus, cases in which negresses form unions with the indigenous men of America are very rare;[1521] and Dr. Nott, who wrote in the middle of this century, never personally met any one who was the offspring of a negro man and a white woman, because of the extreme rarity of such half-breeds.[1522] In New Zealand it sometimes happens that a European man marries a Maori woman; but Mr. Kerry Nicholls never came across an instance where a European woman had married a Maori man.[1523] Even in civilized society men are less particular in their connections than women of corresponding education, no doubt, would be, even if the rules of everyday morality were the same for both sexes.

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In this and the following four chapters we shall deal with the instinctive feelings by which the sexes are guided in the act of selection. We have already observed that the sexual instinct is excited by artificial means, such as ornaments, mutilations, &c. Now we have to consider the intrinsic characters of a human being which affect the passions of a person of the opposite sex.

Mr. Darwin has shown that, among the lower Vertebrata, the female commonly gives the preference to "the most vigorous, defiant, and mettlesome male,"—a taste the origin of which is easily accounted for by the theory of natural selection. A similar instinctive appreciation of manly strength and courage is found in women, especially in the women of savage races. In a song, communicated by Mr. Schoolcraft, an Indian girl gives the following description of her ideal:— "My love is tall and graceful as the young pine waving on the hill —And as swift in his course as the noble stately deer—His hair is flowing, and dark as the blackbird that floats through the air—And his eyes, like the eagle's, both piercing and bright—His heart, it is fearless and great—And his arm, it is strong in the fight."[1524] A tale from Madagascar tells of a princess whose beauty fascinated all men. Many princes fought to obtain possession of her; but she refused them all, and chose a lover who was young, handsome, courageous,

and strong.[1525] The beautiful Atalanta gave herself to the best runner;[1526] and the hero suitors of the Finnish myths had to undergo difficult trials to prove their courage.[1527] "When a Dyak wants to marry," says Mr. Bock, "he must show himself a hero before he can gain favour with his intended." He has to secure a number of human heads by killing men of hostile tribes; and the more heads he cuts off, the greater the pride and admiration with which he is regarded by his bride.[1528] The demands of the Sàkalàva girls of Madagascar are less cruel. When a young man wishes to obtain a wife, his qualifications, according to Mr. Sibree, are tested thus:—"Placed at a certain distance from a clever caster of the spear, he is bidden to catch between his arm and side every spear thrown by the man opposite to him. If he displays fear or fails to catch the spear, he is ignominiously rejected; but if there be no flinching and the spears are caught, he is at once proclaimed an accepted 'lover.'" It is said that a similar custom prevailed among the Bétsiléo, another Madagascar tribe.[1529] Among the Dongolowees, as we are informed by Dr. Felkin, if two men are suitors for a girl, and there is a difficulty in deciding between the rivals, the following method is adopted. The fair lady has a knife tied to each forearm, so fixed that the blade of the knife projects below the elbow. She then takes up a position on a log of wood, the young men sitting on either side with their legs closely pressed against hers. Raising her arms, the girl leans forward, and slowly presses the knives into the thighs of her would-be husbands. The suitor who best undergoes this trial of endurance wins the bride, whose first duty after marriage is to dress the wounds she has herself inflicted.[1530] Speaking of the natives on the River Darling, Major T. L. Mitchell says that the possession of gins, or wives, appears to be associated with all their ideas of fighting; "while, on the other hand, the gins have it in their power on such occasions to evince that universal characteristic of the fair, a partiality for the brave. Thus it is, that, after a battle, they do not always follow their fugitive husbands from the field, but frequently go over as a matter of course, to the victors."[1531]

We may infer that women's instinctive inclination to strong and courageous men is due to natural selection in two ways. A strong man is not only father of strong children, but he is also better able than a weak man to protect his offspring. The female instinct is especially well marked at the lower stages of civilization, because bodily vigour is then of most importance in the struggle for existence. The same principle explains the attraction which health in a woman has for men. In civilized society, infirmity and sickliness are not always a serious hindrance to love, but in a savage state, says Alexander v. Humboldt, "nothing can induce a man to unite himself to a deformed woman, or one who is very unhealthy."[1532]

The ancient Greeks conceived Eros as an extremely handsome youth, and Aphrodite was the goddess of beauty as well as of love. So closely are these

two ideas—love and beauty—connected. This connection is not peculiar to the civilized mind. In Tahiti, Cook saw several instances where women preferred personal beauty to interest.[1533] The Negroes of the West African Coast, according to Mr. Winwood Reade, often discuss the beauty of their women; [1534] and, among the cannibal savages of Northern Queensland, described by Herr Lumholtz, the women take much notice of a man's face, especially of the part about the eyes.[1535] But, although in every country, in every race, beauty stimulates passion, the ideas of what constitutes beauty vary indefinitely. As Hume says, "Beauty is no quality in things themselves; it exists merely in the mind which contemplates them; and each mind perceives a different beauty."[1536]

A flat, retreating brow seems to white men to spoil what would otherwise be a pretty face; but "the Chinook ideal of facial beauty," says Mr. Bancroft, "is a straight line from the end of the nose to the crown of the head."[1537] A little snubnose may embitter the life of a European girl; but the Australian natives "laugh at the sharp noses of Europeans, and call them in their language 'tomahawk noses,' much preferring their own style of flat broad noses."[1538] The Tahitians frequently said to Mr. Williams, "What a pity it is that English mothers pull the children's noses so much, and make them so frightfully long!"[1539] We admire white teeth and rosy cheeks; but a servant of the king of Cochin China spoke with contempt of the wife of the English ambassador, because she had white teeth like a dog and a rosy colour like that of potato flowers.[1540] In the northern parts of the Chinese Empire, according to Pallas, those women are preferred who are of the Manchu type,—that is, who have a broad face, high cheek-bones, very broad noses, and enormous ears;[1541] and the South American Uaupés consider a swollen calf one of the chief attractions a young lady can possess, the result being that girls wear a tight garter below the knee from infancy.[1542]

Even among the Aryan peoples the standard of beauty varies. "To an honest Fleming, who has never studied design," says M. Bombet, "the forms of Rubens's women are the most beautiful in the world. Let not us, who admire slenderness of form above everything else, and to whom the figures even of Raphael's women appear rather massive, be too ready to laugh at him. If we were to consider the matter closely, it would appear that each individual, and, consequently, each nation, has a separate idea of beauty."[1543]

What human characteristics are considered beautiful, and how has beauty come to influence the sexual selection of man? In trying to answer these questions, we shall note only such characteristics as are held to be beautiful by considerable groups of men, apart from individual differences of taste; and we shall confine ourselves to physical beauty, as presenting itself in bodily forms and the colour of the skin. Mr. Spencer maintains that "mental and facial

perfection are fundamentally connected," and that "the aspects which please us are the outward correlatives of inward perfections, while the aspects which displease us are the outward correlatives of inward imperfections."[1544] But Mr. Spencer evidently looks upon beauty, or "facial perfection," as something real in the sense in which mental qualities are real,—an opinion with which it is difficult to agree. The lateral jutting-out of the cheek-bones, which seems to him an index of imperfection, is admired by many of the lower races.

The full development of those visible properties which are essential to the human organism is universally recognized as indispensable to perfect beauty, —natural deformity, the unsymmetrical shape of the body, apparent traces of disease, &c., being regarded by every race as unfavourable to personal appearance. We distinguish between masculine and feminine beauty, and, in spite of racial differences, the ideas of what constitute these forms of beauty are fundamentally the same throughout the world. To be really handsome a person must approach the ideal type of his or her sex. The male organism is remarkable for the development of the muscular system, the female for that of fatty elements; and conspicuous muscles are everywhere considered to improve the appearance of a man, rounded forms that of a woman. According to v. Humboldt, the natives of Guiana, to express the beauty of a woman, say that "she is fat and has a narrow forehead." A traveller found that a Kirghiz's estimate of female beauty was regulated by the amount of fat, "for even when dilating on the beauties of his favourite wife, he laid the greatest stress on her embonpoint."[1545] The Kafirs and Hottentots are charmed by their women's long and pendant breasts, which, in certain tribes, assume such monstrous dimensions, that the usual way of giving suck, when the child is carried on the back, is by throwing the breast over the shoulder.[1546] Mr. Reade tells us that, among the Mpongwé of Gaboon, even very young girls "strive to emulate the pendant beauties of their seniors."[1547] The Makololo women, according to Dr. Livingstone, make themselves fat and pretty by drinking a peculiar drink called "boyáloa";[1548] and, among the Trarsa, a Moorish tribe in the Western Sahara, the women take immense quantities of milk and butter to make themselves more attractive. [1549] Such exaggerations, however repugnant to a more refined taste, indicate a general tendency in men's notions of female beauty.

Among Europeans, men are on an average two or three inches taller than women,[1550] and have a greater breadth of shoulder. A high-built and broad-shouldered figure is also regarded as an ideal of manly beauty, whereas women who are very tall or broad are apt to be rather awkward. A woman's face is shorter, her mouth less broad, her nose less prominent, her neck longer, her pelvis wider, her waist narrower than a man's; and her fingers are more slender and pointed, her hands and feet smaller. The halving line of a woman's body is lower than that of a man's, so that her steps are shorter and lighter.[1551] As

a matter of fact, a long face, a broad mouth, and large hands and feet are much more objectionable in a woman than in a man. Women have a special liking for low-bodied dresses, which display the full length of the neck; and by means of a corset they make the waist narrower than it is by nature.

There is thus an ideal of beauty which, no doubt, may be said to be common to the whole human race. But this ideal is merely an abstraction which can never be realized. General similarities in taste are accompanied by specific differences. Though every one admits that a face without a nose is ugly, no particular form of the nose is universally admired; and races which regard a swelling bosom as essen— tial to feminine beauty differ widely from the Hottentots as to the charm of pendant breasts.

Every race has, indeed, its own standard of beauty. Alexander von Humboldt long ago observed, "Nations attach the idea of beauty to everything which particularly characterizes their own physical conformation, their natural physiognomy. Thence it results that, if nature have bestowed very little beard, a narrow forehead, or a brownish-red skin, every individual thinks himself beautiful in proportion as his body is destitute of hair, his head flattened, his skin more covered with 'annotto,' or 'chica,' or some other coppery-red colour."[1552] This view has been adopted by several later writers,[1553] but, as it has been disputed by others,[1554] it may be well to bring together some fresh evidence, as an addition to that collected by Mr. Darwin.

The Sinhalese, says Dr. Davy, who are great connoisseurs of the charms of the sex, and have books on the subject, and rules to aid the judgment, would not allow a woman to be perfectly beautiful unless she had the following characteristics:—"Her hair should be voluminous like the tail of the peacock, long, reaching to the knees, and terminating in graceful curls; her nose should be like the bill of the hawk, and lips bright and red, like coral on the young leaf of the iron-tree. Her neck should be large and round, her chest capacious, her breasts firm and conical, like the yellow cocoa-nut, and her waist small—almost small enough to be clasped by the hand. Her lips should be wide; her limbs tapering; the soles of her feet without any hollow, and the surface of her body in general, soft, delicate, smooth, and rounded, without the asperities of projecting bones and sinews." Dr. Davy adds, "The preceding is the most general external character that can be given of the Sinhalese."[1555]

The women of the Indo-European race are remarkable for the length of their hair. "Dans nos contrées," Isidore Geoffroy observes, "ces développements ajoutent à la beauté des femmes; dans d'autres pays, si on les y observait, ils passeraient presque pour de légers vices de conformation."[1556] "A small round face," says Castrén, "full rosy red cheeks and lips, white forehead, black tresses, and small dark eyes are marks of a Samoyede beauty. Thus in a Samoyedian song a girl is praised for her small eyes, her broad face, and

its rosy colour."[1557] These, as we know, are the typical characteristics of the Samoyedes.[1558] As to the Tartar women, who generally have far less prominent noses than we in Europe are accustomed to see, Father de Rubruquis states, "The less their noses the handsomer they are esteemed."[1559] In Fiji, the remarkably broad occiput, peculiar to its people, is looked upon as a mark of beauty.[1560] Among the Egyptians Mr. Lane scarcely ever saw corpulent persons, and, unlike many other African peoples, they do not admire very fat women:—"In his love-songs, the Egyptian commonly describes the object of his affections as of slender figure, and small waist."[1561] "The negroes," says v. Humboldt, "give the preference to the thickest and most prominent lips; the Kalmucks to turned-up noses; and the Greeks, in the statues of heroes, raised the facial line from 85° to 100° beyond nature. The Aztecs, who never disfigure the heads of their children, represent their principal divinities, as their hieroglyphical manuscripts prove, with a head much more flattened than any I have ever seen among the Caribs."[1562]

The fashion, prevalent among many peoples, of transforming parts of the body, affords a good illustration of their ideas about personal beauty. The Indians of North America, who have a low and flat forehead, often exaggerate this natural peculiarity by an artificial flattening of the forehead.[1563] In Tahiti, Samoa, and other islands of the Pacific Ocean, it has been customary from time immemorial to flatten the occiputs and to press the noses of the infants, as Professor Gerland observes, in order to increase a national characteristic which is considered beautiful.[1564] The same practice occurs in Sumatra, and Marsden could learn no other reason for it, but that it was an improvement of beauty in the estimation of the natives.[1565] Among the Ovambo of South Africa, the fashion is quite different:—"With the exception of the crown, which is always left untouched," says Andersson, "the men often shave the head, which has the effect of magnifying the natural prominence of the hinder parts of it."[1566] Among the Chinese, small feet are considered a woman's chief attraction; hence the feet of girls are pressed from early childhood. Now we know from the measurements made by Scherzer and Schwarz, that Chinese women have by nature unusually small feet—a peculiarity which has always distinguished them from their Tartar neighbours. And, as a matter of fact, the Manchu Tartars, who at present rule the Chinese Empire, never press the feet of their daughters.[1567]

Each race considers its own colour preferable to every other. The North American Indians admire "a tawny hide," and the Chinese dislike the white skin of the Europeans.[1568] Some young New Zealanders, who themselves were lightly copper-coloured, were greatly amused at the dark tint of an Australian, and laughed at him for being so ugly.[1569] Barrington tells us on the other hand, of an Australian woman, who, having had a child by a white man,

smoked it and rubbed it with oil to give it a darker colour.[1570] The Hovas, who are probably, as a rule, the lightest people in Madagascar, often put a spot of dark colour on the cheeks, in order to heighten the effect of their fair complexion, of which they are very proud.[1571] Among the Malays, according to Mr. Crawfurd, "the standard of perfection in colour is virgin gold, and, as a European lover compares the bosom of his mistress to the whiteness of snow, the East Insular lover compares that of his to the yellowness of the precious metal."[1572]

The object of the painting of the body, so commonly practised among savages, seems sometimes to be to exaggerate the natural colour of the skin. Von Humboldt believes that this is the reason why the American Indians paint themselves with red ochre and earth.[1573] The natives of Tana, who have the colour of an old copper coin, usually dye their bodies a few shades darker;[1574] whilst the Bornabi Islanders, who have a light copper-coloured complexion, "anoint their bodies with turmeric, in order to give themselves a whiter appearance."[1575] The Javanese, when in full dress, smear themselves with a yellow cosmetic.[1576] And, speaking of the people of a place in Maabar (Coromandel Coast), Marco Polo says, "The children that are born here are black enough, but the blacker they be the more they are thought of; wherefore from the day of their birth their parents do rub them every week with oil of sesamé, so that they become as black as devils. Moreover, they make their gods black and their devils white, and the images of their saints they do paint black all over."[1577]

The question,—What characteristics of the human form are deemed beautiful? may now be answered. Men find beauty in the full development of the visible characteristics belonging to the human organism in general; of those peculiar to the sex; of those peculiar to the race. We have next to consider the connection of love and beauty.

That this connection does not depend upon the æsthetic pleasure excited by beauty is obvious from the fact that the intrinsic character of an æsthetic feeling is disinterestedness, whereas the intrinsic character of love is the very reverse. So far as beauty implies the full development of characteristics essential to the human organism, or to either of the sexes, the preference given to it follows from the instinctive inclination to healthiness, already mentioned, and needs no further discussion. The question is to explain the stimulating influence of racial perfection.

"In barbarous nations," says v. Humboldt, "there is a physiognomy peculiar to the tribe or horde rather than to any individual. When we compare our domestic animals with those which inhabit our forests, we make the same observation."[1578] The accuracy of this statement has been confirmed by later writers;[1579] and we may say with M. Godron, "C'est —aujourd'hui un fait

parfaitement acquis à la science, que plus un peuple se rapproche de l'état de nature, plus les hommes qui le composent se ressemblent entre eux."[1580] This likeness does not refer to the physiognomy only, but to the body as a whole. The variations of stature, for instance, are known to be least considerable among the peoples least advanced in civilization.[1581]

It cannot be doubted that this greater similarity is due partly to the greater uniformity of the conditions of life to which uncivilized peoples are subject. According to Villermé and Quetelet, an inequality of stature is observed not only between the inhabitants of towns on the one hand and those of the country on the other, but also, in the interior of towns, between individuals of different professions.[1582] There is, however, another factor, which is, I think, of still greater importance.

The deviations from the national type, which occur sporadically, have been considered the result of disease, and can, as Professor Waitz observes, "but rarely become permanent, as the national type is always that which harmonizes with the soil and the climate, and the external relations in which the respective peoples live."[1583] We must assume that a certain kind of constitution is best suited for certain conditions of life, and that every considerable deviation from this must perish in the struggle for existence in a state in which natural selection is constantly at work and physical qualities are of the first importance. We know from Isidore Geoffroy's investigations that persons who deviate much, with regard to the length of body, from the common standard—they may be dwarfs or giants—are, as a rule, abnormal in other respects also, being deficient in intelligence as well as in the power of reproduction, and being especially liable to premature death.[1584] Sir W. Lawrence, too, remarks that the strength of men who have considerably exceeded the ordinary standard has by no means corresponded to their size, and that "there are very few instances of what we can deem healthy, well-made men, with all the proper attributes of the race, much below the general standard."[1585] If, among civilized peoples, such deviations indicate some disturbance of the vital functions, and, as a consequence, are unfavourable to existence, this must be even more the case with savage tribes, all the members of which are subject to nearly the same conditions of life. Abnormal characteristics may sometimes flourish in a highly civilized society, but they are doomed to perish in communities among whom the struggle for existence is far more severe.

It may at first sight seem strange that all the characteristics, however slight, in which the various races of men differ from each other, should harmonize with particular conditions of life to the exclusion of others. But it must be remembered that, if we had fuller knowledge, characteristics which seem to us useless, or even hurtful, might be seen to be useful. We know the utility of some special characteristics, and that of others may, at least provisionally,

be assumed. It is certain that the physiological functions of most persons who quit their native land and settle in a wholly different region, must undergo a considerable change if the new conditions are not to have injurious effects. Moreover, many bodily structures are so intimately related, that when one part varies others vary also, though, in most instances, we are quite unable to assign any reason why this should be the case.

Savage men are generally distinguished for relatively large jaws, which, no doubt, are of use in a state of nature, where food is often hard and tough, where the jaws have to perform the functions of knife and fork, and where the teeth occasionally serve as implements. This racial peculiarity, being in fact only a mark of low civilization, is thus easily accounted for by the law of natural selection. The less man, with advancing civilization, was in want of large and strong jaws, the greater was the chance for individuals born with smaller jaws to survive; hence a race with comparatively small jaws gradually arose. Indeed, Professor Virchow has shown that the prognathous type of face is inconsistent with the full development of the brain.[1586]

Another peculiarity which characterizes the lower races of men is the lateral jutting-out of the cheek-bones. But, as Mr. Spencer observes, this excessive size of the cheek-bones is only an accompaniment of large jaws. Other peculiarities of feature—depression of the bridge of the nose, forward opening of the nostrils, wide-spread alæ, and a long and large mouth—constantly coexist with large and protuberant jaws and great cheek-bones, alike in uncivilized races and in the young of civilized races;[1587] hence we cannot believe that the connection is merely accidental.

Professor Schaaffhausen has noticed that many peculiarities of the skull are coincident with arrested cerebral development and correlated to each other: —"The characters observed in the skulls of the lower races, namely, a narrow and low frontal bone, a short sagittal suture, a low temporal squama, a short occipital squama, the upper margin of which forms a flat arch, are therefore to be considered as approximations to the animal form, and they stand to each other in organic connection."[1588] It seems as if stature and muscular force were in some way connected with the dolichocephalic and the brachycephalic forms of the skull, for Welcker found that short men and short races incline more to the latter, tall men and tall races to the former. Again, according to Fick, the muscles exercise a remarkable influence on the form of the bones in general, and particularly upon some cranial bones.[1589]

The process of acclimatization affords opportunities for the study of the connection between organic structures and functions on the one hand, and surrounding nature on the other. At present, however, our knowledge of the subject is exceedingly scanty. It has been asserted that the curly hair of the European becomes straight in America,—like the hair of an Indian; that in

North America, as in New South Wales, children of European parents are apt to become tall and lean, whilst there is a tendency among European colonists at the Cape to grow fat,—which reminds us of the steatopygy of the native women.[1590] Almost all that we know with certainty is that, in the process of acclimatization, man has to undergo a change, and that this change is often too great to be endurable. As Dr. Felkin observes, Europeans are almost incapable of forming colonies in the tropics;[1591] and, with few exceptions, they have been unable to rear a sound progeny there in marriage with white women.[1592] Colonel Hadden, who has spent sixteen years in India, informs me that it is a prevalent opinion among British officers in that country that an English regiment of a thousand men would, within thirteen years, from climate, disease, or other casualties, almost wholly die out. This statement well agrees with Professor Sprenger's, that a regiment consisting of eight hundred men loses within ten years more than seven hundred.[1593] It is also, according to Colonel Hadden, a common report that, of a third generation of pure Europeans in India, children only are, occasionally, met with, and that they never reach the age of puberty.[1594] English parents, as a rule, send their children to Europe when five or six years old, as otherwise they would succumb.[1595] According to Mr. Squier, it is the concurrent testimony of all intelligent and observing men in Central America that the pure whites are there not only relatively but absolutely decreasing in numbers, whilst the pure Indians are rapidly increasing, and the Ladinos more and more approximating to the aboriginal type.[1596]

The colour of the skin is justly considered one of the chief characteristics of race. Now it is quite impossible to assign any definite reason why one race is white, another black, brown, or yellow. Nobody has yet been able to prove that the colour of the skin is of any direct use to man, and it certainly is not the immediate result of long exposure to a certain climate. But we know that there exists an intimate connection between the colour of the skin and bodily constitution. "Les colorations diverses," says M. Godron, "qui distinguent les différentes variétés de l'espèce humaine, tiennent beaucoup moins aux agents physiques, qu'aux phénomènes les plus intimes de l'organisation qui dans l'état actuel de la science, nous échappent et resteront peut-être toujours couverts d'un voile impénétrable."[1597] Thus the alteration in the customary physiological functions called acclimatization, seems often to be connected with some change of colour not directly depending upon the influence of the sun. Dr. Mayer observed that a European at the tropics loses his rosy complexion, the difference in colour between arterial and venous blood being strikingly diminished on account of the smaller absorption of oxygen, which results from the feebler process of combustion.[1598] According to Dr. Tylor, it is asserted that the pure negro in the United States has undergone a change which has left him

a shade lighter in complexion;[1599] whilst a long medical experience at New Orleans showed Dr. Visinié that the blood of the American negro has lost the excess of plasticity which it possessed in Africa.[1600] A negro boy brought to Germany by Gerhard Rohlfs, changed his colour after a residence of two years, from deep black to light brown.[1601] Klinkosch mentions the case of a negro who lost his blackness and became yellow; and Caldani declares that a negro, who was a shoemaker at Venice, was black when brought, during infancy, to that city, but became gradually lighter, and had the hue of a person suffering from a slight jaundice.[1602] In the 'Philosophical Transactions,' there is even a record of a negro who became as white as a European.[1603] On the other hand, we are told of an English gentleman Macnaughten by name, who long lived the life of a native in the jungle of Southern India, and acquired, even on the clothed portions of his body, a skin as brown as that of a Brahman.[1604] These statements, if true, certainly refer to exceedingly exceptional cases, but their accuracy cannot be à priori denied. We know that certain organisms are much better able than others to undergo the change which constitutes acclimatization, and we have no positive reason to doubt that this power may, in abnormal cases, be extraordinarily great. At any rate, it is beyond doubt that a close connection exists between the colour of the skin and the physiological functions of the body, on the one hand, and between these and the conditions of life on the other. Disease is commonly accompanied by a change of colour. Mr. Wallace observes that, in many islands of the Malay Archipelago, species of widely different genera of butterflies differ in precisely the same way as to colour or form from allied species in other islands.[1605] The same thing occurs to a less degree in other parts of the world also. And Agassiz has pointed out that, in Asia and Africa, the large apes and the human races have the same colour of the skin.[1606]

We may thus take for granted that racial peculiarities stand in some connection with the external circumstances in which the various races live. It may perhaps be objected that we meet with native tribes of various types on the same degree of latitude, and under the same climatic conditions.[1607] But we must remember that it is often impossible to decide whether the conditions of life are exactly the same; that intermixture of blood has caused a great confusion of racial types; and that all peoples have arrived at their present localities after more or less extensive migrations. We may be sure that some characters have been preserved from earlier times when the race lived in other circumstances, and that the higher its degree of civilization the less likely it would be to lose the stamp impressed upon it.[1608]

It is, however, exceedingly doubtful whether racial differences are so directly the result of external influences as anthropologists generally believe,—that is, whether they are the inherited effects of conditions of life to which previous

generations have been subject. Professor Weismann, as is well known, thinks that acquired characters are not transmitted from parent to offspring. "It has never been proved," he says, "that acquired characters are transmitted, and it has never been demonstrated that, without the aid of such transmission, the evolution of the organic world becomes unintelligible."[1609] Man has from time immemorial mutilated his body in various ways, and there is not a single well-founded case of these mutilations having been inherited by the offspring.[1610] The children of accomplished pianists do not inherit the art of playing the piano. Facts show that children of highly civilized nations have no trace of a language, when they have grown up in a wild condition and in complete isolation.[1611] Change in colour influenced by sun and air is obviously temporary. The children of the husbandman, or of the sailor, are just as fair as those of the most delicate and pale inhabitant of a city; and, although the Moors, who have lived in Africa since the seventh century, are generally in mature life very sunburnt, their children are as white as those born in Europe, and "restent blancs toute leur vie, quand leurs travaux ne les exposent pas aux ardeurs du soleil."[1612]

Such facts are certainly not in favour of the prevalent theory that the differences of race are due to direct adaptation. Whether Professor Weismann's theory proves to be well founded or not, we manifestly cannot assume that the heredity of acquired characters suffices to explain the origin of the human races. It seems most probable that, at the very earliest stages of human evolution, mankind was restricted to a comparatively small area, and was then homogeneous, as every animal and vegetable species is under similar conditions. In the struggle for existence the intellectual faculties of man were developed, and before the breaking away of isolated groups he may have invented the art of making fire, and of fabricating the simplest implements and weapons. This mental superiority made it possible for man to disperse, enabling him to exist even under conditions somewhat different from those to which he was originally adapted. His organism had to undergo certain changes, but we are not aware that these modifications were transmitted to descendants. All that we know is, that the children born were not exactly like each other, and that those who happened to vary most in accordance with the new conditions of life as a rule survived, and became the ancestors of following generations. The congenital characters which enabled them to survive were of course transmitted to their offspring, and thus, through natural selection,[1613] races would gradually arise, the members of each of which would have as hereditary dispositions the same peculiarities as those which, to a certain extent, may be acquired through acclimatization, but then only for the individual himself, not for his descendants. We can thus understand how the children of a negro are black[1614]—even if they are born in Europe[1615]—as the black colour

is the correlative of certain physiological processes favourable to existence in the country of their race. They survive, whilst the children of Europeans who have emigrated to the tropics are carried off in great numbers, even though their parents have succeeded in undergoing the functional modifications which accompanied the change of abode.

This explanation of racial differences seems the more acceptable, when we take into consideration the immense period which has elapsed since man began to spread over the earth, and the slow and gradual change of abodes. He was not at once moved from the tropics to the polar zones, or from the polar zones to the tropics, but had to undergo an indefinitely long chain of adaptive processes. Thus were gradually established such radical differences as those which distinguish a European from a negro, an Australian from a Red-skin.

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We have now found an answer to our question, why man, in the choice of mate, gives the preference to the best representatives of his race. The full development of racial characters indicates health, a deviation from them indicates disease. Physical beauty is thus in every respect the outward manifestation of physical perfection, or healthiness, and the development of the instinct which prefers beauty to ugliness is evidently within the power of natural selection.

This explanation of the connection between love and beauty, as also of the origin of the races of men, is very different from that given by Mr. Darwin. "The men of each race," he says, "prefer what they are accustomed to; they cannot endure any great change; but they like variety, and admire each characteristic carried to a moderate extreme.... As the great anatomist Bichat long ago said, if every one were cast in the same mould, there would be no such thing as beauty. If all our women were to become as beautiful as the Venus de' Medici, we should for a time be charmed; but we should soon wish for variety, and as soon as we had obtained variety, we should wish to see certain characters a little exaggerated beyond the then existing common standard."[1616]

In the fashions of our own dress, says Mr. Darwin, we see exactly the same principle and the same desire to carry every point to an extreme.[1617] Man prefers, to a certain extent, what he is accustomed to see. Thus the Maoris, who are in the habit of dyeing their lips blue, consider it "a reproach to a woman to have red lips;"[1618] and we ourselves dislike, on the whole, any great deviation from the leading fashions. But, on the other hand, man wants variety. Now in one, now in another way, he changes his dress in order to attract attention, or to charm. The fashions of savages are certainly more permanent than ours;[1619] but the extreme diversity of ornaments with which many uncivilized peoples bedeck themselves, shows their emulation to make themselves attractive by means of new enticements. "Each of the Outanatas (New Guinea)," says Mr. Earl, "seemed desirous of ornamenting himself in some way different from his

neighbour;"[1620] and, with regard to the Pacific Islanders, Mr. John Williams remarks that "the inhabitants of almost every group ... have their peculiar ideas as to what constitutes an addition to beauty."[1621] But it is impossible to believe that the different races' ideal of personal beauty are in any way connected with this capriciousness of taste. Were this the case, as Mr. Darwin suggests, the men of each race would admire variations and piquant peculiarities in the appearance of their women, and not only each characteristic point "carried to a moderate extreme."

According to Mr. Darwin, racial differences are due to the different standards of beauty, whereas, according to the theory here indicated, the different standards of beauty are due to racial differences. "Let us suppose," says Mr. Darwin, "the members of a tribe, practising some form of marriage, to spread over an unoccupied continent, they would soon split up into distinct hordes, separated from each other by various barriers, and still more effectually by the incessant wars between all barbarous nations. The hordes would thus be exposed to slightly different conditions and habits of life, and would sooner or later come to differ in some small degree. As soon as this occurred, each isolated tribe would form for itself a slightly different standard of beauty; and then unconscious selection would come into action through the more powerful and leading men preferring certain women to others. Thus the differences between the tribes, at first very slight, would gradually and inevitably be more or less increased."[1622] This theory—that racial differences are due to sexual selection—obviously presupposes either that the human organism is alike well fitted to any climate and natural conditions; or that no correlation exists between the visible parts of the body and its functions. Otherwise, of course, little effect could be produced through the preference given to certain individuals; for in a savage state, where celibacy is an exception, those men and women whose constitution was best suited to the conditions of life would, in any case, in the end, determine the racial type. It is also difficult to see how those slight variations from the original human type, which, according to Mr. Darwin, characterized the distinct hordes or tribes into which mankind was split up, could have developed into such enormous differences as we find in the colour of the skin of, for example, a negro and a European—only through the selection of the best representatives of these tribal peculiarities, these slight variations. Finally, it seems doubtful whether Mr. Darwin would have ascribed racial differences in colour to the influence of sexual selection, had he considered the important fact, already mentioned, that the larger apes have the same colour of the skin as the human races living in the same country.

Mr. Darwin also thinks that the differences in external appearance between man and the lower animals are, to a certain extent, due to sexual selection. The chief character of the human race which he proposes to account for in this

way is the general hairlessness of the body. "No one supposes," he says, "that the nakedness of the skin is any direct advantage to man; his body therefore cannot have been divested of hair through natural selection."[1623] It is curious that the hairlessness of man has puzzled so many anthropologists,[1624] as it may very easily be explained by the law of variation. When man had invented the art of making fire, and the idea of covering himself to secure protection from cold had occurred to his mind, hairlessness was no serious disadvantage in the struggle for existence. Hence natural selection ceased to operate in the matter, and a hairless race gradually arose. We find the same principle at work in various other ways. Civilized man does not need such keen vision as savages;[1625] consequently many of us are short-sighted and few Europeans could match a Red Indian in his power of detecting the symptoms of a trail. For the same reason we are generally inferior to savages in the capacity for discriminating odours, and our teeth are apt to be very much less sound and vigorous than theirs.

That sexual selection has had some influence on the physical aspect of mankind is probable. Accurate observers in different parts of the world have remarked that personal deformities are very rare in savage races unaffected by European influence.[1626] This chiefly depends upon the fact that deformed individuals seldom survive the hardships of early life, but, as Sir W. Lawrence says, if they do survive, they are prevented by the kind of aversion they inspire from propagating their deformities.[1627] It is not unlikely that the selection of the best representatives of the race contributes to keep the racial type pure. Sexual selection, too, may be the cause why, among savages, the men are so often handsomer than the women—that is, better specimens of their sex and their race;[1628] whilst, in civilized society, the reverse is true. We have seen that savage women have great liberty of disposing of their own hand, and that, at lower stages of civilization, celibacy occurs almost exclusively among the men. Among us, on the contrary, the unmarried women outnumber the unmarried men, and, whilst a man's ability to marry depends only to a small extent upon his personal appearance, the like may certainly not be said of women.

Chapter XIII — The Law of Similarity

A powerful instinct keeps animals from pairing with individuals belonging to another species than their own. "L'animal," says M. Duvernoy, "a l'instinct de se rapprocher de son espèce et de s'éloigner des autres, comme il a celui de choisir ses aliments et d'éviter les poisons."[1629] Among Birds, there are found a small number of wild hybrids, nearly all of which are in the order of Gallinae,

and most of which belong to the genus Tetrao.[1630] But among Insects, Fishes, and Mammals, living in a state of nature, hybridism is unknown or almost so.[1631] And, even among domesticated mammals, some tricks are often required to deceive the male, and so to conquer its aversion to a female of a different species. The stallion, for instance, who is to cover a she-ass, is frequently first excited by the presence of a mare, for which, at the proper moment, the she-ass is substituted.[1632]

We may be sure that, were it not for this instinctive feeling, many more animal hybrids would be naturally produced than is the case. In the vegetable kingdom, where the play of instincts is altogether out of the question, bastards occur much more frequently;[1633] and in captivity a considerable number of animal hybrid forms are produced that are never met with in a state of nature.[1634] Yet, according to Mr. Darwin, there are good grounds for the doctrine of Pallas, that the conditions to which domesticated animals and cultivated plants have been subjected, generally eliminate the tendency towards mutual sterility, so that the domesticated descendants of species which in their natural state would have been in some degree sterile when crossed, become perfectly fertile.[1635]

The origin of this instinct, which helps to keep even closely allied species in a state of nature distinct, seems to be sufficiently clear. The number of species which have proved fertile together are very limited, and the fertility of the hybrid offspring is almost constantly diminished, often even to a very great extent. Of course, no one now talks of the sterility of hybrids as a moral necessity—hybrids being animalia adulterina,—or as the result of a special divine decree, that new species should not be multiplied indefinitely.[1636] M. Isidore Geoffroy has shown not only that hybrids may be fertile, but that "infertile" hybrids are, properly speaking, merely the hybrids which are most rarely fertile, their sterility never being absolute.[1637] Moreover, as has been pointed out by Mr. Wallace, in almost all the experiments that have hitherto been made in crossing distinct species, no care has been taken to avoid close interbreeding; hence these experiments cannot be held to prove that hybrids are in all cases infertile inter se.[1638] But looking to all the ascertained facts on the intercrossing of plants and animals, we may with Mr. Darwin conclude that some degree of sterility in hybrids is an extremely general result.[1639] This being the case with the hybrids of our domesticated animals, it must be so all the more with animals in a state of nature, which generally live under conditions less favourable to mutual fertility. It is easy to understand, then, that instincts leading to intercrossing of different species, even if appearing occasionally, never could be long-lived, as only those animals which preferred pairing with individuals of their own species, gave birth to an offspring

endowed with a normal power of reproduction, and thus became the founders of numerous generations that inherited their instincts.

With regard to the instinct in question, man follows the general rule in the animal kingdom. Our notions of morality are closely connected with the instinctive feelings engraved in our nature; and bestiality is commonly looked upon as one of the most heinous crimes of which man can make himself guilty. Several passages both in ancient[1643] and modern writers[1644] prove the occasional occurrence of this crime, but always under circumstances analogous to those under which single birds sometimes form connections against nature, [1645] i.e., either because of isolation, or on account of vitiated instincts.[1646]

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Supporters of the hypothesis that the several races of man are distinct species of the genus Homo, assert that an instinctive aversion similar to that which keeps different animal species from intermingling, exists also between the various human races.[1647] It may be noted by the way that, even if this were true, the idea that mankind consists of various species might be controverted; for certain races of domestic or semi-domesticated animals seem to prefer breeding with their own kind and refuse to mingle with others. Thus Mr. Bennett states that the dark and pale coloured herds of fallow deer, which have long been kept together in the Forest of Dean and two other places, have never been known to mingle. On one of the Faroe Islands, the half-wild native black sheep are said not to have readily mixed with the imported white sheep. And in Circassia, where six sub-races of the horse are known and have received distinct names, horses of three of these races, whilst living a free life, almost always refuse to mingle and cross, and will even attack each other.[1648] As for man, there are many races who dislike marrying persons of another race, but the motives are various. The different ideas of beauty no doubt play an important part. Mr. Winwoode Reade does not think it probable that negroes would prefer even the most beautiful European woman, on the mere grounds of physical admiration, to a good-looking negress.[1649] A civilized race does not readily intermingle with one less advanced in civilization, from the same motives as those which prevent a lord from marrying a peasant girl. And more than anything else, I think, the enmity, or at least, want of sympathy, due to difference of interests, ideas, and habits, which so often exist between distinct peoples or tribes, helps to keep races separate. But such reasons as these have nothing in common with the instinctive feeling which deters animals of distinct species from pairing with each other. Hence, when two races come into very close mutual contact, especially if they are at about the same stage of civilization, their dislike to intermarriage commonly disappears.

Mongrels form, indeed, a large proportion of the inhabitants of the world. It is doubtful whether there are any pure races in Europe; not even the Basques

can pretend to purity of blood.[1650] M. Broca found, when investigating the subject of stature, that nineteen-twentieths of the whole population of France presented, in various degrees, the characters of mixed races.[1651] In North America, different races intermingle more and more every day. In Greenland, according to Dr. Nansen, in the course of a century and a half there has been such an intermixture of races that it would now be extremely difficult, if not impossible, to find a true Eskimo throughout the whole of the west coast; and the Europeans, far from being disliked by the native women have succeeded in inspiring them with so much respect that the "simplest European sailor is preferred to the best Eskimo seal catcher."[1652] In Mexico, the Spanish mixed breeds constitute two-thirds or three-fourths of the whole population;[1653] and South America, to quote a French writer, is "le grand laboratoire des nations hybrides ou métisses modernes."[1654] Of twelve millions of mongrels, which is the estimated number of mongrels on the face of the globe, no fewer than eleven millions are found there.[1655] Even in remote Tierra del Fuego, according to Mr. Bridges, some mongrels of European fathers and indigenous mothers have appeared during the last few years.

In Asia there are numberless instances of intermixture of breed between the Tartars, Mongols, and Tunguses, and the Russians and Chinese, &c.[1656] In India there are many Eurasians; in the Indian Archipelago Chinese and Malays intermarry;[1657] and, in the Islands of the South Sea, the mongrels of European fathers amount to a considerable number. In Africa, the eastern Soudan is a great centre of mixed breeds between races much removed from one another. And, in Southern Africa, the Griquas—the offspring of Dutch colonists and Hottentot women—form a very distinct race.

As far as we know, there are no human races who, when intermingled, are entirely sterile. But as regards the degree of fertility of first crosses and of mongrels, the opinions of different anthropologists vary considerably. Those who do not believe in the unity of the human race have been especially solicitous to prove that crosses are almost inevitably followed by bad results in that respect. Thus Dr. Knox thinks that the half-breeds, if they were abandoned to themselves and no longer had access to pure races, would rapidly disappear, the "hybrid" being rejected by nature as a degradation of humanity.[1658] Dr. Nott asserts that, when two proximate species of mankind, two races bearing a general resemblance to each other in type, are bred together, they produce offspring perfectly prolific; but that, when species the most widely separated, such as the Anglo-Saxon and the negro, are crossed, the mulatto offspring are but partially prolific, and acquire an inherent tendency to run out, and become eventually extinct, when kept apart from the parent stocks.[1659] The same opinion is entertained by M. Broca, and by M. Pouchet, who thinks that the

crossed race will exist only if it continues to be supported by the two creating types remaining in the midst of it.[1660]

On the other hand, Dr. Prichard believes it may be asserted, without the least chance of valid contradiction, that mankind, of all races and varieties, are equally capable of having offspring by intermarriage, and that such connections are equally prolific whether contracted between individuals of the same variety or of the most dissimilar varieties. "If there is any difference," he says, "it is probably in favour of the latter."[1661] According to M. Godron, the mongrels have generally shown a higher degree of fertility than their parent races;[1662] and M. Quatrefages asserts that mulattoes are as fruitful as pure breeds.[1663]

It is to be regretted that so little attention has for some time been paid to this most important question. The result is that the effects of the intermixture of races are not much better known now, than they were twenty or thirty years ago. The only thing which may be considered certain is, that the hypothesis of the depressing influence of crossing upon fertility, as the theory has generally been propounded, involves a great deal of exaggeration. It is chiefly owing to M. Broca's celebrated essay, 'Sur l'hybridité,' that this doctrine has been so widely accepted. He asserts that the connections of Europeans with Australian women have proved very slightly prolific, and that the mongrels resulting from them are almost sterile. "No statistical writer," he says, "nor any historian, enumerates cross-breeds among the Australian population."[1664] Yet, this land has for a considerable time been inhabited by European colonists, many of whom have not had opportunities of marrying wives of their own race. It has also been shown that the cohabitation of whites and native women is very common in Australia. But the number of mongrels there is, nevertheless, exceedingly small, so small that in the native dialects there does not exist a single word to designate them.[1665]

Supposing that these remarkable statements referred chiefly to the eastern and southern parts of the Australian continent, I asked Bishop R. Salvado and the Rev. Joseph Johnston, living in West Australia, to inform me whether, in that country, any mixed race exists, and, if so, whether it is fruitful or not. From the former, who has lived among the West Australian aborigines for more than forty years, and through an excellent work on their life and customs has gained the reputation of a first-rate authority, I had the pleasure of receiving the following answer, dated New Norcia, October 17, 1888:—"With regard to the sterility of the half-caste natives, of which I had no experience when I wrote my book, I am able now to deny it altogether, except in cases similar to those among the Europeans. I know several cases of husband and wife, half-caste natives, having at present six and seven and even eight children, and they may in time have more; and I know a good many Europeans who, having married native women, have several children. In fact, in the case of one of those

marriages there were six children, and in another seven, and I could give the name of each of them." The Rev. J. Johnston writes, "There is a school for half-caste boys and girls at Perth, and they seem bright and intelligent children, not unlike Polynesian children. As they grow up, they go out to service, and some of the youths are employed as post and telegraph messengers.... At the New Norcia mission, there are several half-caste families, as well as blacks, and they all have children." The following statement of Mr. Taplin referring to the aborigines of the Lower Murray, goes in the same direction:—"The pure blacks," he says, "are not so healthy as the half-castes. Always the children of two half-castes will be healthier and stronger than either the children of blacks or the children of a black and a half-caste. When a half-caste man and woman marry, they generally have a large and vigorous family. I could point to half a dozen such."[1666]

These statements of highly competent persons are, I think, quite sufficient to disprove M. Broca's hypothesis. They show that, if a mixed race is almost wanting in certain parts of Australia, this does not depend upon physiological conditions of the kind suggested. It should be remembered that the sexual intercourse of Europeans with savage women is most commonly transitory and accidental, and frequently takes place with prostitutes or licentious women, who are generally known to be sterile. And, even when the white settler takes a native's daughter to live with him under his own roof as a wife or a concubine, and accustoms her to a half-civilized manner of living, her unfruitfulness[1667] may be owing to quite another cause than the mixture of blood. Mr. Darwin has shown that changed conditions of life have an especial power of acting injuriously on the reproductive system. Thus animals, as also plants, when removed from their natural conditions, are often rendered in some degree infertile or completely barren, even when the conditions have not been greatly changed. And this failure of animals to breed under confinement cannot, at least to any considerable extent, depend upon a failure in their sexual instincts. "Numerous cases," says Mr. Darwin, "have been given of various animals which couple freely under confinement, but never conceive; or, if they conceive and produce young, these are fewer in number than is natural to the species."[1668] It is reasonable to suppose that savage man, when he moves into more civilized conditions, is subject to the same law. Indeed, statements have been reported to me, which tend to show that the indigenous women at the Polynesian missionary stations have become less fruitful than they were in their native state. As to the alleged sterility of crosses between the European and Australian races, it should be observed that the rarity of mongrels in certain parts of Australia is more or less owing to the natives themselves habitually destroying the half-castes.[1669] The Rev. A. Meyer states that, in the Encounter Bay tribe, "nearly all the children of European fathers used to be put to death;"[1670] whilst,

among the Narrinyeri, about one-half of the half-caste infants fell victims to the jealousy of their mothers' husbands.[1671] But with regard to the West Australian aborigines in the neighbourhood of Fremantle, the Rev. J. Johnston writes that he does not think it has been the custom there to destroy the half-caste illegitimate offspring of black women, as he never heard of such a thing, —a fact which may account for the comparatively large number of mongrels in that part of the continent.

Other statements also, adduced as evidence for the hypothesis of M. Broca, have proved more or less untrustworthy. Thus the alleged sterility of the mulattoes of Jamaica[1672] has been disputed by other writers.[1673] So also v. Görtz's statement that the children of the Dutch and Malay women in Java (Lipplapps) are only productive to the third generation,[1674] has been called in question.[1675]

Yet, although we may consider it certain that the diversities even between the races which least resemble each other are not so great but that, under favourable conditions, a mixed race may easily be produced, I do not deny the possibility of crossing being, to a certain extent, unfavourable to fertility. The statements as to the rapid increase of some mixed races do not prove the reverse. For the bad result of crossing would not necessarily appear at once; and a drop of pure blood would be sufficient to increase fertility, just as, when a hybrid is crossed with either pure parent species, sterility is usually much lessened.[1676] It is a remarkable fact that mixed marriages between Jews and persons of other races are comparatively infertile. In Prussia, these marriages have been separately registered since 1875, and between that year and 1881 there was an average of 1·63 to a marriage, whereas, during the same period, pure Jewish marriages resulted in an average of 4·41 children or very nearly three times as many. In Bavaria, between 1876 and 1880, the numbers were only 1·1 per marriage against 4·7 children to purely Jewish marriages. And this conspicuous infertility implies greater sterility. Among fifty-six such marriages, with regard to which Mr. Jacobs ascertained the results, no fewer than nine were sterile, i.e., 18 per cent.,—a striking contrast to the number of sterile marriages which he found in seventy-one marriages between Jewish cousins, where the percentage of sterility was only 5·4 per cent.[1677] Mr. Jacobs, however, informs me that it has been suggested that this infertility may be due rather to the higher age at which such marriages are likely to take place. There is still a strong feeling against them among Jews, which is only likely to be overcome after independence of thought and position has been reached. At the same time Mr. Jacobs does not consider this sufficient to account for the very great discrepancy. But we must not, of course, take for granted that the crossing of any two races has the same effects as the crossing of Jewish and non-Jewish Europeans seems to have.

Even if it could be proved, however, that mixture of races produces lessened fertility of first crosses and of mongrels, this would not make it necessary for us to reject the doctrine of the unity of mankind. It is true that the domesticated varieties both of animals and of plants, when crossed, are as a general rule prolific, in some cases even more so than the purely bred parent varieties; whereas species, when crossed, and their hybrid offspring, are almost invariably in some degree sterile. But this rule is not altogether without exceptions. Even Agassiz condemned the employment of fertility of union as a limiting principle. He considered this a fallacy, "or at least a petitio principii, not admissible in a philosophical discussion of what truly constitutes the characteristics of species."[1678] Thus the red and yellow varieties of maize are in some degree infertile when crossed, and the blue-and the red-flowered forms of the pimpernel, considered by most botanists to be the same species, as they present no differences of form or structure, are, according to Gärtner, mutually sterile. Moreover, Mr. Darwin's investigations on dimorphic and trimorphic plants have shown that the physiological test of lessened fertility, both in first crosses and in hybrids, is no safe criterion of specific distinction.[1679] As for animals, Professor Vogt asserts that, in the opinion of experienced breeders, certain races can with difficulty be made to pair, and the fertility of the mongrels soon diminishes, whilst other races pair readily and are prolific.[1680] Sir J. Sebright says, "Although I believe the occasional intermixture of different families to be necessary, I do not, by any means, approve of mixing two distinct breeds, with the view of uniting the valuable properties of both: this experiment has been frequently tried by others as well as by myself, but has, I believe, never succeeded. The first cross frequently produces a tolerable animal, but it is a breed that cannot be continued."[1681]

Chapter XIV — Prohibition of Marriage Between Kindred

The horror of incest is an almost universal characteristic of mankind, the cases which seem to indicate a perfect absence of this feeling being so exceedingly rare that they must be regarded merely as anomalous aberrations from a general rule.

Yet the degrees of kinship within which intercourse is forbidden, are by no means everywhere the same. It is most, and almost universally, abominated between parents and children, especially mother and son. As an exception to this rule, v. Langsdorf states that, among the Kaniagmuts, not only do brothers and sisters cohabit with each other, but even parents and children.[1682] The Eastern Tinneh, or Chippewyans, occasionally marry their mothers, sisters, or daughters, but such alliances are not considered correct by general opinion.

[1683] In the Indian Archipelago, according to Schwaner, Wilken, and Riedel, marriages between brothers and sisters, and parents and children, are permitted among certain tribes;[1684] and similar unions, it is said, took place among the ancient Persians.[1685] Again, in Nukahiva, as we are told by Lisiansky, although near kinsfolk are forbidden to intermarry, it sometimes happens that a father lives with his daughter, and a brother with his sister; but on one occasion it was looked upon as a horrible crime when a mother cohabited with her son. [1686] Among the Kukis, as described by Rennel, marriages were generally contracted without regard to blood-relationship; only a mother might not wed her child.[1687] Among the Karens of Tenasserim, "matrimonial alliances between brother and sister, or father and daughter, are not uncommon."[1688] Speaking of the King of the Warua, Mr. Cameron states that in his harem are to be found his stepmothers, aunts, sisters, nieces, cousins, as also his own daughters.[1689] Among the Wanyoro, brothers may marry their sisters, and even fathers their daughters; but a son does not marry his own mother, although the other widows of his father become his property.[1690]

Unions between brothers and sisters, who are children of the same mother as well as the same father, are likewise held in general abhorrence. The primitive feeling against such connections is strongly expressed in the Finnish Kullervo Myth. The unfortunate Kullervo, after discovering that he had committed incest with his sister, wails—

"Woe is me, my life hard-fated! I have slain my virgin-sister, Shamed the daughter of my mother; Woe to thee my ancient father! Woe to thee, my gray-haired mother! Wherefore was I born and nurtured, Why this hapless child's existence?"[1691]

The dishonoured sister threw herself into the river, and Kullervo fell by his own sword.

The Californian Nishinam believe that, for the prevention of incest, at the beginning of the world, not one but two pairs were created from whom sprang all the Nishinam.[1692] When the missionary Jellinghaus once asked some Munda Kols whether animals knew what is right and wrong, the answer was, "No, because they do not know mother, sister, and daughter."[1693] Yet, as we have seen, there are exceptions to the rule; and certain peoples who consider intercourse between parents and children incestuous, allow unions between brothers and sisters. Among the Kamchadales, says Krasheninnikoff, "marriage is forbidden only between father and daughter, mother and son."[1694] Not long ago, the wild Veddahs of Ceylon regarded the marriage of a man with his younger sister as not only proper and natural, but, in fact, as the proper marriage, though marriage with an elder sister or aunt would have been as incestuous and revolting to them as to us.[1695] Among the Annamese, according to a missionary who has lived among them for forty years, no girl

who is twelve years old and has a brother is a virgin.[1696] Liebich tells us that the Gypsies allow a brother to marry his sister, though such marriages are generally avoided by them.[1697] Among the Wa-taïta, says Mr. Thomson, "very few of the young men are able to marry for want of the proper number of cows—a state of affairs which not unfrequently leads to marriage with sisters, though this practice is highly reprobated."[1698] Among the aborigines of Brazil, union with a sister, or a brother's daughter, is almost universally held to be infamous. Such practices are not uncommon in small isolated hordes; "but the ancient Tupinambases (ancestors of the Tupis) allowed nothing of the kind openly."[1699] In a song of the 'Rig-Veda,' Yamí appears in support of the marriage of brother and sister, while the opposition is personified in Yama.[1700] Buddhist legends mention various cases of such unions;[1701] and it is stated in the 'Ynglinga Saga' that "while Niord was with the Vans he had taken his own sister in marriage, for that he was allowed by their law."[1702] But we have no evidence whatever that such unions were commonly allowed by the ancient Scandinavians. "Among the Asas," the 'Ynglinga Saga' adds, "it was forbidden for such near relatives to come together."[1703] In Scandinavia, according to Nordström, as also among the ancient Germans, according to Grimm, marriages between parents and children, brothers and sisters, were prohibited.[1704]

Unions with sisters, or probably, in most cases, half-sisters, occur in the royal families of Baghirmi,[1705] Siam,[1706] Burma,[1707] Ceylon,[1708] and Polynesia.[1709] In the Sandwich Islands, brothers and sisters of the reigning family intermarried, but this incestuous intercourse was in other cases contrary to the customs, habits, and feelings of the people.[1710] And, in Iboína of Madagascar, where the kings were occasionally united with their sisters, such marriages were preceded by a ceremony in which the woman was sprinkled with consecrated water, and prayers were recited asking for her happiness and fecundity, as if there was a fear that the union might call down divine anger upon the parties.[1711] Cambyses and other Persian kings married their sisters,[1712] and so did the Ptolemies of Egypt.[1713] According to Sir Gardner Wilkinson, it is not only noticed by Diodorus, but is fully authenticated by the inscriptions both of Upper and Lower Egypt, that the same custom was in force among the Egyptians, from the earliest times;[1714] but, except in the case of the Ptolemies, I have seen no clear evidence that marriage took place between brothers and sisters who had both the same father and the same mother. Garcilasso de la Vega states that the Incas of Peru, from the first, established it as a very stringent law that the heir to the kingdom should marry his eldest sister, legitimate both on the side of the father and on that of the mother;[1715] whereas, according to Acosta and Ondegardo, it had always been held unlawful by the Peruvians to contract marriage in the first degree, until Tupac

Inca Yupanqui, at the close of the fifteenth century, married his sister on the fathers side, and decreed "that the Incas might marry with their sisters by the father's side, and no other."[1716]

It has been asserted that, where the system of exogamy prevails, a man is allowed to marry his sister either on the father's or on the mother's side, according as descent is reckoned in the female or in the male line.[1717] But it will be shown directly that, besides the rules relating to exogamy, there are commonly others prohibiting intermarriage of near relations belonging to different tribes or clans. Yet the marriage of half-brother and half-sister is not rare. Among the Ostyaks, for instance, union with a half-sister bearing another family name is in great repute;[1718] and the South Slavonian Mohammedans allow marriages between half-brothers and half-sisters who have different mothers, though seducing a sister is regarded in their songs as a crime punishable with death, or rather as something which cannot occur.[1719] From the Book of Genesis we know that Abraham married his half-sister, and looked upon the union as lawful, because she had not the same mother.[1720] Among the Phœnicians at Tyre, down to the time of Achilles Tatius, a man might marry his father's daughter: and the same thing appears at Mecca.[1721] Marriage with half-sisters on the father's side, not on the mother's, was also allowed among the Assyrians[1722] and the Athenians.[1723] In Guatemala and Yucatan, on the other hand, no relationship on the mother's side was a bar to marriage: hence a man could marry his sister, provided she was by another father.[1724]

Among certain peoples the relationships of uncle and niece, and of aunt and nephew, are the remotest degrees of consanguinity which are a hindrance to intermarriage. This is the case, for instance, with some of the Dyak tribes;[1725] and among the Copper Indians, according to Franklin, there is no prohibition of the intermarriage of cousins, but a man is forbidden to marry his niece.[1726] On the whole, we may say that marriage within these degrees of relationship is even more commonly prohibited than intermarriage of cousins, and that, probably in most cases, the prohibitions refer to persons so related either on the father's or mother's side.[1727] Yet there are many instances to the contrary.[1728] The Ossetes consider a marriage with a mother's sister quite a proper thing, though a marriage with a father's sister would be punished as highly incestuous.[1729] Among the Reddies of the South of India, a man marries his sister's daughter, but a nephew must not marry his aunt;[1730] and, among the Brazilian Tupis, an uncle had even a right to his niece's hand.[1731] By the Prussian law, marriage between uncle and niece is permitted; whilst, in France, such marriages may be sanctioned by the Government, in Italy by the King.[1732]

In Europe, first cousins are not restricted from intermarriage, except in Spain, where the old canonical prohibitions are still in force; and in Russia,

where third cousins are allowed to marry, but no parties more nearly related. [1733] Among the Mohammedans[1734] and several uncivilized peoples, marriages between cousins, both on the paternal and maternal side, are permitted. So, apparently, among the Aleuts,[1735] Eskimo at Igloolik,[1736] Apalachites, [1737] Maoris, Bushmans[1738] and Ainos,[1739]—besides the people just referred to. More commonly, however, the permission is one-sided, referring either to the kinsfolk on the father's, or to those on the mother's side. Among the Arabs, a man has even a right to the hand of his paternal cousin, who cannot without his consent, become the wife of any other person.[1740] Concerning the Moors of Ceylon, Mr. Ahamadu Bawa states that in all cases where eligible sons of mothers' brothers or fathers' sisters were available for the girls, preference was accorded to them, "almost as a matter of right."[1741] Among the savage Miao of China, the girls are obliged to marry the mother's brothers' sons.[1742] The Gonds consider it correct for the brother's daughter to marry the sister's son, whilst not so much stress is laid on the marriage of the cousins, if the sister's child happens to be a girl and the brother's a boy.[1743] Among the Yerkalas of Southern India, "the first two daughters of a family may be claimed by the maternal uncle as wives for his sons."[1744]

As a rule, among peoples unaffected by modern civilization the prohibited degrees are more numerous than in advanced communities, the prohibitions in a great many cases referring even to all the members of the tribe or clan.

The Greenlanders, according to Egede, refrained from marrying their nearest kin, even in the third degree, considering such matches to be "unwarrantable and quite unnatural;"[1745] whilst Dr. Rink asserts that "the Eskimo disapproves of marriages between cousins."[1746] The same is the case with the Ingaliks,[1747] the Chippewas,[1748] and, as a rule, the Indians of Oregon. [1749] The Californian Gualala account it "poison," as they say, for a person to marry a cousin or an avuncular relation, and strictly observe in marriage the Mosaic table of prohibited affinities.[1750] "By the old custom of the Aht tribes," Mr. Sproat remarks, "no marriage was permitted within the degree of second cousin;"[1751] and among the Mahlemuts, "cousins, however remote, do not marry."[1752] Commonly a man and woman belonging to the same clan are prohibited from intermarrying. The Algonquins tell of cases where men, for breaking this rule, have been put to death by their nearest kinsfolk; [1753] and, among the Loucheux Indians, if a man marries within the clan, he is said to have married his sister, though there be not the slightest connection by blood between the two.[1754] In some tribes, as Mr. Frazer points out, the marriage prohibition only extends to a man's own clan: he may marry a woman of any clan but his own. But oftener the prohibition includes several clans, in none of which is a man allowed to marry.[1755] Thus, for instance, the Seneca tribe of the Iroquois was divided into two "phratries," or divisions intermediate

between the tribe and the clan, each including four clans; the Bear, Wolf, Beaver, and Turtle clans forming one phratry, and the Deer, Snipe, Heron, and Hawk clans forming the other. Originally marriage was prohibited within the phratry, but was permitted with any of the clans of the other phratry; but the prohibition was long since removed, and a Seneca may marry a woman of any clan but his own.[1756] A like exogamous division existed among the other four tribes of the Iroquois,[1757] as also among the Creeks, Moquis, Choctaws, Chickasaws, Thlinkets, &c.[1758]

Among the Pipiles of Salvador, an ancestral tree, with seven main branches, denoting degrees of kindred, was painted upon cloth, and within these seven branches or degrees, no one was allowed to marry, except as a recompense for some great public or warlike service rendered. But within four degrees of consanguinity none, under any pretext, might marry.[1759] In Yucatan, there was a strong prejudice against a man wedding a woman who bore the same name as his own, and so far was this fancy carried, that he who broke the rule was looked upon as a renegade and an outcast. Nor could a man marry his mother's sister.[1760] Among the Azteks, too, marriages between blood-relations or those descended from a common ancestor were not allowed.[1761]

Among the tribes of Guiana, according to Mr. Im Thurn, marriage is now almost always, as formerly it was always, contracted between members of different families, and, descent being traced through females, no intermarriage with relations on the mother's side is permitted.[1762] The Mundrucûs are divided into clans, the members of which are strictly prohibited from forming alliances with others of the same clan. "A Mundrucû Indian," says Professor Agassiz, "treats a woman of the same order (clan) with himself as a sister, any nearer relation between them is impossible."[1763] The Indians of Peru are restricted from marriage within the first four degrees.[1764] The Guaranies and Abipones abhor alliances with even the remotest relations.[1765] And as to the Yahgans of Tierra del Fuego, Mr. Bridges writes to me that "no marriage, no intercourse ever takes place among blood-relations even to second cousins." Such intercourse is held in utter abomination and is never heard of. Also between half-brothers and half-sisters marriages do not occur.

Nowhere is marriage bound by more severe laws than among the Australian aborigines. Their tribes are, as a rule—and probably as a rule without exceptions[1766]—grouped in exogamous subdivisions, the number of which varies considerably. There are tribes in which members of any clan are free to marry members of any clan but their own; but such tribes are exceptional.[1767] "Often," says Mr. Frazer, "an Australian tribe is divided into two (exogamous) phratries, each of which includes under it a number of totem clans; and oftener still there are sub-phratries interposed between the phratry and the clans, each phratry including two sub-phratries, and the sub-phratries including totem

clans."[1768] Most of Mr. Curr's very numerous correspondents who have touched on this question have, however, given the number of subdivisions in their neighbourhood as four only.[1769] Before the occupation of the country by the whites, which quickly breaks down aboriginal customs, any departure from the marriage system founded on this division was looked on with absolute horror, and even spoken of with reluctance. Indeed, when marriage or sexual intercourse with a person of a forbidden clan did occur, the regular penalty inflicted on the parties implicated was death.[1770] And it is a noteworthy fact, generally overlooked by anthropologists, that besides these prohibitions arising from the clan-system and, naturally, applying only to the father's or, more generally, only to the mother's relations, there is, as it seems everywhere, a law which forbids the marriage of persons near of kin.[1771] "A man," says Mr. Curr, "may not marry his mother, sister, half-sister, daughter, granddaughter, aunt, niece, first or second cousin."[1772] Among the Kurnai of Gippsland, according to Mr. Bulmer, even third cousins are within the prohibited degrees of relationship.[1773] Moreover, certain tribes, besides having the clan-system, are entirely exogamous;[1774] and, among the tribes of Western Victoria described by Mr. Dawson, the laws also forbid a man to marry into his mother's tribe, or his grandmother's tribe or into an adjoining tribe, or one that speaks his own dialect.[1775]

In Tasmania, a man was not permitted to marry a woman of his own tribe (clan?);[1776] and in Polynesia, marriages with blood-relations were everywhere avoided except in royal families.[1777] Thus in Samoa, according to Mr. Turner, so much care was taken to prevent incest that a list of what they deemed improper marriages would almost compare with the 'Table of Kindred and Affinity.' They say that, of old, custom and the gods frowned upon the union of those in whom consanguinity could be closely traced.[1778]

Speaking of the aborigines of the Melanesian islands, Dr. Codrington observes, "In the native view of mankind, almost everywhere in the islands which are here under consideration, nothing seems more fundamental than the division of the people into two or more classes, which are exogamous, and in which descent is counted through the mother." Yet "the blood connection with the father and the father's near relations is never out of sight. Consequently the marriage of those who are near in blood, though they are not 'sogoi' (i.e., kindred), and may lawfully marry, is discountenanced."[1779] In New Britain, if a man were accused of adultery or fornication with a woman, he would at once be acquitted by the public voice if he could say, "She is one of us," i.e., she belongs to my totem, which in itself precludes the possibility of any sexual intercourse between us.[1780] In Efate, of the New Hebrides, it would be a crime punishable with death for a man or woman to marry a person belonging to his or her mother's clan, "though they may have no recent relation of consan-

guinity to each other, and though neither they nor their parents may have even seen each other before."[1781] In Lifu, as I am informed by Mr. Radfield, who is a resident of this island, marriages are forbidden between first, but not second cousins, both on the mother's and father's side, as well as between uncles and nieces, aunts and nephews. Matrimonial alliances between first cousins are also prohibited in the Caroline Islands;[1782] whilst, in the Pelew Group, intermarriage between any relations on the mother's side is unlawful.[1783]

Among the Sea Dyaks, it is contrary to custom for a man to wed a first cousin, who is looked upon as a sister, and no marriage is allowed with aunt or niece. The Land Dyaks permit marriage between second cousins only after the payment of a fine of two jars, one being given by the woman to the relations of her lover, the other by the lover to her relation.[1784] In other tribes of the Malay Archipelago, according to Mr. Crawfurd, the union of near relatives is prohibited by the native laws, and, when such a marriage does take place, the parties are fined if within the third degree of consanguinity collaterally. In the ascending and descending line marriage is strictly forbidden.[1785] Among the Minahassers of Celebes, marriage was not permitted between ascendants and descendants, brothers and sisters, uncles and nieces, aunts and nephews, and cousins, or between kinsfolk connected by combinations of these relationships. [1786] The Malays of the uplands of Padang are forbidden to marry within the mother's tribe; the Bataks of Sumatra, Alfura of Ceram and Buru, Niasians, and Timorese, within the father's.[1787] Among the Italones of the Philippines, marriage between blood-relations is not allowed.[1788] The Bugis[1789] and Watubela Islanders[1790] prohibit the intermarriage of cousins, paternal and maternal; whilst, among the Orang-Banûwa of Malacca,[1791] the Macassars, [1792] and the natives of Aru, near New Guinea,[1793] children of brothers cannot intermarry, though children of sisters, or of brothers and sisters, can. Again, among the Lettis of the Serwatty Islands, marriage may take place between brothers' children, and between brothers' and sisters' children, but not between children of two sisters;[1794] and, among the Bataks, Rejangs, and natives of Amboina, a sister's son is allowed to marry a brother's daughter, whereas a brother's son must not marry a sister's daughter.[1795] The penalty inflicted on incest is generally very severe in the Archipelago. Submersion is a common punishment;[1796] and, among the Bataka, the parties were killed and eaten.[1797]

With reference to the Karens of Burma, Dr. Bunker informs me that, though they never marry outside their own tribe, they avoid marrying with near relations, their prohibited degrees being nearly the same as those of the ancient Hebrews. Among the Kukis, according to Lieutenant Stewart, "the most strict rules exist forbidding too close intermarriage in families; cousins cannot be so allied."[1798] The Nagas never permit marriage within the same family;

[1799] and, among the Chukmas, if near relatives, within certain prohibited degrees, fall in love with each other, it is usual for both of them to pay a fine of fifty rupees, corporal punishment being also administered.[1800] Among the Kandhs, "intermarriage between persons of the same tribe, however large or scattered, is considered incestuous and punishable with death."[1801] The Santals make it a rule not to intermarry into the same tribe;[1802] and, among the Sakais, a man goes to a considerable distance for a wife, generally to a tribe speaking quite a different dialect.[1803] The Juángs, Hos, Mundas, and other peoples in India are divided into clans, and a man is not allowed to marry a girl of his own clan.[1804] Among the Garos, no one may take to wife a woman of the same "mahári," or motherhood.[1805]

According to Lieutenant-Colonel Tod, no Rajput can marry in his own clan.[1806] "In all pure Hindu society," Sir Alfred Lyall states, "the law which regulates the degrees within which marriage is interdicted, proceeds upon the theory that between agnatic relatives connubium is impossible."[1807] Hence it is unlawful for a Brahman to wed a woman whose clan-name is the same as his own, a prohibition which bars marriage among relatives in the male line indefinitely. But besides this, connections on the female side are also forbidden to take place within certain wide limits.[1808] In the 'Laws of Manu' we read that a damsel "who is neither a Sapindâ[1809] on the mother's side, nor belongs to the same family on the father's side, is recommended to twice-born men for wedlock and conjugal union."[1810] Yet in the older literature marriage with the daughters of the mother's brother, and sons of the father's sister, is permitted.[1811] This still holds good among the Reddies of Southern India, and, as it seems, among other tribes belonging to the Hindu stock; whereas children of fathers' brothers and mothers' sisters are considered equal to brothers and sisters, and marriage with them is looked upon as highly incestuous.[1812]

Speaking of the Andamanese, Mr. Man says that "their customs do not permit of the union of any who are known to be even distantly related; the fact of our allowing first cousins to marry seems to them highly objectionable and immoral."[1813] The Sinhalese consider a marriage between the father's sister's son and the mother's brother's daughter the most proper that they can contract; but they would regard a marriage with the father's brother's daughter as incestuous, first cousins so related being considered sisters.[1814]

As regards the prohibited degrees of the Chinese Penal Code, a very minute account is given by Mr. Medhurst in his interesting paper on 'Marriage, Affinity, and Inheritance in China.'[1815] Large bodies of persons in that country bear the same surname; among the entire Chinese population of the Empire, indeed, there are hardly more than 530 surnames. A penalty of sixty blows is inflicted on any one who marries a person with the same surname.[1816] The punishment attached to the intermarriage of nearer relations on the father's side is

much more severe. Thus, marriage or incestuous intercourse with a grand-uncle, a father's first cousin, a brother, or a nephew, is punishable by death. [1817] Besides these prohibitions there are others applying within a narrower range to relatives on the female side. A man who marries his mother's sister or his sister's daughter is strangled. Less severe punishment is inflicted on a person who marries a uterine half-sister, and still less severe—eighty blows—on any one who marries his father's sister's daughter, mother's brother's daughter, or mother's sister's daughter. An after-clause abrogates this prohibition, and permits intermarriage between children of brothers and sisters, or of sisters, but intermarriage between those of brothers is of course inadmissible.[1818] The Chinese Code also interdicts occasional intercourse with any of those relatives with whom marriage is prohibited, the punishment in both cases being the same.[1819]

Among the Kalmucks, no man can marry a relation on the father's side; and so deeply rooted is this custom among them, that a Kalmuck proverb says, "The great folk and dogs know no relationship,"—alluding to the fact that only a prince may marry a relative.[1820] The Yakuts,[1821] Samoyedes, [1822] Cheremises,[1823] &c., also avoid marriage within the paternal clan, and the ancient Finns did not marry kinsfolk.[1824] Among the Ostyaks[1825] and Ossetes,[1826] marriage with a person of one's own family name, however distant the relationship, is entirely prohibited. And in Circassia, according to Bell, not only are cousins, or the members of the same fraternity restricted from intermarrying, but even their serfs must wed with the serfs of another fraternity.[1827]

Among the Bogos of Eastern Africa, persons related within the seventh degree may not intermarry, whether the relationship be on the paternal or maternal side.[1828] Some of the clans of the Somals, as we are informed by Sir R. F. Burton, refuse maidens of the same or even a consanguineous family. [1829] In Western Equatorial Africa and Uganda, marriages cannot take place within the clans, however remote the relationship may be.[1830] Among the Mpongwé, "every care is taken to avoid marriages of consanguinity."[1831] With the Bateke, as Dr. Sims writes from Stanley Pool, marriages are prohibited between brothers and sisters of the same mother or father; between first cousins; between uncle and niece, or aunt and nephew. The Bakongo also, according to Mr. Ingham, hold all unions between near relatives, either on the father's or mother's side, in utter abomination.

Mr. Cousins, to whom I am indebted for a valuable paper on the Cis-Natalian Kafirs, writes that, among them, marriages often take place within the tribe and village. But this is avoided, if possible; like their chiefs they generally endeavour to marry out of their own tribe. Among this people, however, there is some kind of class (clan?) division, which Mr. Cousins is not fully acquainted with, and

members of the same class (clan?) do not seem to intermarry. At any rate, near relations, paternal and maternal, avoid marriage with each other. No penalty is attached to such a marriage, but custom is so strong on the point that the general rule is seldom broken.[1832] According to Mr. Shooter[1833] and Mr. Dugmore,[1834] a marriage is considered incestuous if the man and woman are of any known or remembered degree of relationship by common descent; and, if a man were to take a wife within the degrees prohibited by custom, he would be denounced as an "evildoer."[1835] According to Mr. Brownlee, intercourse in such cases is punished, whether it be by marriage or without marriage.[1836] Again, with regard to the Zulus, Mr. Eyles states that there is no intermarriage between the inhabitants of the village, the members of which are, as a rule, related. All intermarrying with relations is prohibited by custom, and such a thing is neither heard of nor thought of. Even if the relationship is only traditional, the custom holds good.

A somewhat different account of the Bantu race is given by Mr. McCall Theal. "A native of the coast region," he says, "will not marry a girl whose relationship by blood to himself can be traced, no matter how distantly connected they may be. So scrupulous is he in this respect that he will not marry even a girl who belongs to another tribe, if she has the same family name as himself, though the relationship cannot be traced. He regards himself as the protector of those females whom he would term his cousins and second cousins, but for whom he has only the same name as for the daughters of his own parents, the endearing name of sister. In his opinion, union with one of them would be incestuous, something horrible, something unutterably disgraceful. The native of the mountains, almost as a rule, marries the daughter of his father's brother."[1837]

Mr. Conder states that, among the Bechuanas, marrying out of their own tribe seems to be the common practice;[1838] whereas, according to Mr. Casalis, the Basutos frequently marry cousins. Yet, among them also, there are some tribes who consider such marriages incestuous.[1839] The Hottentots are said by Kolben to punish alliances between first and second cousins with death.[1840] In Madagascar, though marriage between brothers' children is looked upon as the most proper kind of connection, and brothers' and sisters' children can marry on the performance of a slight but prescribed ceremony, supposed to remove any impediment or disqualification arising out of consanguinity, the descendants of sisters are not allowed to intermarry down to the fifth or seventh generation, and a marriage of sisters' children, when the sisters have the same mother, is regarded with horror.[1841]

Among the Romans, alliances between persons under the same patria potestas—i.e., cognati related within the sixth degree—were nefariæ et incestuæ nuptiæ; but these prohibitions were gradually relaxed. From the time of

the Second Punic War, according to Livy, even first cousins were allowed to intermarry; and in 49 A.D. the Emperor Claudius, wishing to marry his niece Agrippina, obtained from the Senate a decree that marriage with a brother's daughter should be legal, though marriage with a sister's daughter remained illegal.[1842] In the fourth century, however, Constantius again forbade such unions, on pain of death.[1843] Afterwards, under the influence of the ascetic ideas prevalent in the Church, the prohibited degrees were gradually extended. Theodosius the Great forbade under the severest penalties the union of first cousins, paternal and maternal; and at the end of the sixth century the prohibition was extended even to the seventh degree. This prohibition continued in force until in the Western Church it was once more reduced to the fourth degree by the Lateran Council under Innocent III. in the year 1215; that is, marriage was permitted beyond the degree of third cousins.[1844] Such is the nominal law at the present time wherever the canon law prevails.[1845]

Besides the prohibitions relating to actual kinship, there are, among several peoples, others applying to marriage between relatives by alliance. Among the Andamanese, a man or woman may not marry into the family of a brother-in-law or sister-in-law.[1846] The Eastern Greenlanders and the Eskimo of the north-east coast of America forbid or disapprove of marriage with two sisters; [1847] and, according to Dr. Daniell, the same rule prevails among the natives of Accra at the Gold Coast, who even prohibit a man from marrying two cousins of the same parentage.[1848] Again, several tribes in Western Victoria do not permit marriage with a deceased wife's daughter by a former husband.[1849] But prohibitions of this sort do not seem to be very common among savage and barbarous races. In many of the Indian tribes of North America, all the daughters of a family are, as a rule, married to the same man. A brother very frequently marries his deceased brother's widow; and, in Africa, a son often weds all his father's widows except his own mother.

Among civilized peoples, on the other hand, relations by affinity are frequently regarded in the same light as relations by blood. In Yucatan, a man was not allowed to marry his sister-in-law.[1850] According to the Chinese Code, marriage with a deceased brother's widow is punished with strangulation, whilst marriage with a deceased wife's sister is exceedingly common, and has always been regarded as particularly honourable.[1851] In Japan, intercourse with a father's or a grandfather's concubine, or a son's or grandson's wife, involves the same punishment as intercourse with a paternal aunt or a sister. [1852] The 'Institutes of Vishnu' declare that "sexual connection with one's mother, or daughter, or daughter-in-law, are crimes in the highest degree," there being no other way to atone for these crimes than to proceed into the flames. [1853] According to the laws of Moses[1854] and Mohammed[1855] and the Roman Law[1856] marriage was prohibited with mother-in-law, step-mother,

daughter-in-law, and step-daughter—according to Mohammed, however, so far as the step-daughter was concerned, only if she were under the guardianship of her mother's husband. Moses also forbade marriage with the sister of a wife who was still living,[1857] and with a brother's wife, if she were widowed and had children by the brother; and Mohammed prohibited marriage with two sisters at the same time.

* * * * *

From very early times thinkers have tried to account for the prohibition of marriage between near kin. Some, says Mr. Huth, ascribe them to a fear lest relationship may become too involved; others to a fear lest affection may become concentrated within too narrow a circle; because marriage would take place too early; because people would be induced to marry each other in order that property might be kept in the family; because such marriages are prohibited by "God's law"; because they outrage "natural modesty"; and, only in modern times, because they are supposed to prove injurious to the offspring.[1858]

Comparative ethnography has changed the aspect of the question. The horror of incest has been found to prevail among peoples who neither know anything of "God's law," nor possess property to keep in the family. New hypotheses have therefore been suggested more worthy of consideration, as being founded on a much firmer basis of facts.

The late Mr. McLennan was the first to call attention to the general prevalence of the rule which forbids the members of a tribe (or clan) to intermarry with members of their own tribe (or clan). This rule he called "exogamy," in contradistinction to "endogamy," or the rule which forbids the members of a tribe to intermarry with members of other tribes. In his celebrated essay on 'Primitive Marriage' he made an attempt to show that exogamy had arisen from female infanticide, "common among savages everywhere." He assumes that to tribes surrounded by enemies, and unaided by art, contending with the difficulties of subsistence, sons were a source of strength, both for defence and in the quest for food, whilst daughters were a source of weakness. Hence the cruel custom which left the primitive human hordes with very few young women, thus seriously disturbing the balance of the sexes within the hordes, and forcing them to prey upon one another for wives. Usage, induced by necessity, would then in time establish a prejudice among the tribes observing it—a prejudice strong as a principle of religion, as every prejudice relating to marriage is apt to be—against marrying women of their own tribe.[1859]

Mr. Herbert Spencer has subjected this hypothesis to a searching criticism,[1860] and from an article in the 'Fortnightly Review' it appears as if Mr. McLennan himself had in the end some doubts as to its correctness.[1861] To Mr. Spencer's objections others might be added.

A minute investigation of the extent to which female infanticide is practised has convinced me that Mr. McLennan has much exaggerated the importance of this custom. It certainly prevails in many parts of the world; and it is true that, as a rule, female children are killed rather than male. But there is nothing to indicate that infanticide has ever been so nearly universal, or has anywhere been practised on so large a scale as Mr. McLennan's hypothesis presupposes. Among a great many existing savage peoples it is almost unheard of—as, for instance, among the Tuski,[1862] Ahts,[1863] Western Eskimo,[1864] Botocudos, [1865] and in certain tribes of California.[1866] Among some of these peoples new-born children are killed now and then—in case of the birth of twins, if the children are weak and deformed, or for some other reason—but always, it is said, without distinction of sex. Among the Dacotahs and Crees, female infanticide is only occasionally committed.[1867] The Blackfeet, according to Richardson, believe that women who have been guilty of this crime will never reach the happy mountain after death, but are compelled to hover round the seats of their crimes, with branches of trees tied to their legs;[1868] and the Aleuts think that a child-murder brings misfortune on the whole village.[1869] Among the Abipones, the women often practised infanticide, but it was the boy who was generally thus sacrificed, for when a son grew up it was necessary to buy a wife for him, while a grown-up daughter would always command her price.[1870]

In Africa I do not know of a single district where the people are in the habit of destroying new-born children. Herr Valdau tells us of a Bakundu woman who, accused of such a deed, was condemned to death.[1871]

Until the introduction of Christianity, the South Sea Islanders practised infanticide probably to a greater extent than any other people with whose history we are acquainted. But as the motive was often want of food for the infant, or interference with the personal charms of the wife, or the disagreeableness of baby life, boys as well as girls were killed. Moreover, in Samoa, in the Mitchell's and Hervey Groups, and in part of New Guinea, infanticide was quite unheard of;[1872] whilst, in most of the islands belonging to the Solomon Group, it occurs only in extreme cases, such as that of the child being a bastard.[1873] In the Caroline Islands, according to Chamisso, "the prince would have the unnatural mother punished with death."[1874] And even in Australia, where, according to Mr. Curr's belief, the women reared as a rule, only two boys and one girl, the rest being destroyed,[1875] there seem to be tribes in which the killing of children rarely happens.[1876]

There are other reasons, besides those just given, for doubting whether infanticide can ever have been so common as Mr. McLennan suggests. It may be assumed, as Mr. Darwin remarks, that during the earliest period of human development man did not partially lose one of the strongest of instincts,

common to all the lower animals, namely the love of their young, and consequently did not practise infanticide.[1877] Later on, the women, far from being useless to the savage tribe, rendered valuable services as food-providers. Mr. Fison, who has lived among uncivilized races for many years, thinks it will be found that female infanticide is far less common among the lower savages than it is among the more advanced tribes.[1878] And, speaking of one of the very rudest, the Yahgans of Tierra del Fuego, Mr. Bridges states that it occurred only occasionally among them, and then was almost always the deed of the mother, who acted from "jealousy, or hatred of her husband, or because of desertion and wretchedness."[1879] Moreover, it is very generally asserted that certain Californians never committed infanticide before the arrival of the whites;[1880] whilst Ellis thinks that there is every reason to suppose that this custom was practised less extensively by the Polynesians during the early periods of their history than it was afterwards.[1881]

But even if Mr. McLennan were right in his assumption that savages everywhere used to kill female infants, this would not explain the origin of exogamy. "In time," he says, "it came to be considered improper, because it was unusual, for a man to marry a woman of his own group."[1882] But why should such a marriage ever have become unusual? Why should the men have refrained from marrying those women of their own tribe who were not killed? Why should they have made these beings whom they considered so useless, even more useless than they naturally were, by preventing them from becoming mothers of sons who would have increased the strength of the tribe? That the men may have endeavoured to make up the deficiency of women by capturing wives from foreign tribes is conceivable enough; but it is hard to see why intercourse with women of their own tribe should on this account have been prohibited, sometimes even on pain of death.

That the horror of incest is innate in the human race seems as improbable to Mr. Herbert Spencer as to Mr. McLennan. According to Mr. Spencer, this feeling is a result of evolution gradually acquired. Primitive groups of men, he says, are habitually hostile. In all times and places victory is followed by pillage; whatever portable things of worth the conquerors find they take. And of course they take women as they take other booty, because women are prized as wives, as concubines, or as drudges. A captured woman, besides her intrinsic value, has an extrinsic value: "like a native wife she serves as a slave, but unlike a native wife, she serves also as a trophy." Hence members of the tribe thus married to foreign women are held to be more honourably married than those married to native women. If the tribe, becoming successful in war, robs adjacent tribes of their women more frequently, there will then grow up the idea that the now considerable class having foreign wives form the honourable class, and non-possession of a foreign wife will come to be regarded as a proof of

cowardice. "An increasing ambition to get foreign wives will therefore arise; and as the number of those who are without them decreases, the brand of disgrace attaching to them will grow more decided; until in the most warlike tribes, it becomes an imperative requirement that a wife shall be obtained from another tribe—if not in open war, then by private abduction."[1883]

This interpretation is open to an objection similar to that which may be brought against Mr. McLennan's hypothesis. Even if it became customary for a tribe to rob foreign tribes of their women, we have no reason to believe that it therefore became customary not to marry native women. Plurality of wives is for savage man a source of wealth and reputation; even the wretched Fuegian endeavours to procure as many as possible in order to obtain rowers for his canoe. Hence it could scarcely be considered disgraceful to have some native wives besides those of foreign birth. If Mr. Spencer's explanation is the correct one, what a deplorable lot it must have been for a woman to belong to a tribe always successful in war! She had of course to live unmarried till she was fortunate enough to fall into the hands of some hostile suitor. But this would seldom happen, if the adjacent weaker tribes were habitually worsted in war. In such tribes, according to Mr. Spencer, "marrying within the tribe will not only be habitual, but there will arise a prejudice, and eventually a law, against taking wives from other tribes."[1884]

Least of all can Mr. Spencer's hypothesis explain the origin of prohibitions of marriage between the nearest kin. It presupposes that the tribe has been frequently successful in war during so long a period that usage has had time to grow into law. But since such prohibitions are practically common to all mankind, they cannot have originated in the way suggested, because when there is a vanquisher there must also be a vanquished. Moreover, it is impossible to suppose that that powerful feeling which restrains parents from marrying their children, brothers from marrying their sisters, can have been due to man's vain desire to have a trophy in his wife.[1885]

Sir John Lubbock explains the origin of exogamy in a quite different way. Believing that in man's primitive state all the men of a tribe were married to all the women, and that no one could appropriate one of them to himself without infringing on the general rights of the tribe, he suggests that women taken in war from a foreign tribe were in a different position. The tribe, as a tribe, had no right to these women, and they would become wives in our sense of the term.[1886]

It is unnecessary to say much about this hypothesis, as it stands or falls with Sir J. Lubbock's theory of "communal marriage." Why should women taken in war have been the men's personal property, if the women of the tribe were not so? As Mr. McLennan justly remarks, war-captives are usually obtained by group-acts, or quasi group-acts; hence capture would be recognized as a

regular mode of adding women to the group, subject to the customary rights of its male members; and every man in the group would claim the communal right to women taken by others.[1887]

Again, Professor Kohler has expressed his belief in the explanation that exogamy was an early method of political self-preservation.[1888] That intermarriage is valuable from a political point of view, and has often taken place in order to increase intertribal or international friendship, is beyond doubt.[1889] But it is another question whether the strictly prohibitive exogamous rules, the infringement of which is considered a most heinous crime, can be accounted for in this way. It is worth noticing that not only marriage, but also less regular connections between members of the same exogamous group are held in horror. The Australians, for instance, consider cohabitation between individuals belonging to clans that cannot intermarry not less criminal than marriage, often punishing such unions with death.[1890] Among the Melanesians, says Dr. Codrington, "intercourse within the limit which restrains from marriage, where two members of the same division are concerned, is a crime, is incest."[1891] Holm makes a similar observation on the prohibited degrees among the Eastern Greenlanders.[1892] Speaking of the Samoans, Mr. Prichard remarks, "Of all their customs, the most strictly observed, perhaps, was that which forbade the remotest reference to anything, even by way of a joke, that conveyed the slightest indelicacy in thought or word or gesture, when brothers and sisters were together. In presence of his sister, the wildest rake was always modest and moral. In presence of her brother, the most accommodating coquette was always chaste and reserved. This custom remains intact to the present day."[1893] Dr. Tylor remarks that anthropologists have long had before them the problem of determining how far clan-exogamy may have been the origin of the prohibited degrees in matrimony.[1894] But we have seen that it is practically impossible to trace any distinct limit between these two sets of rules; hence they seem to be fundamentally identical—a conclusion in which most anthropologists agree. And the prohibitions of close intermarriage certainly cannot be explained as a "method of political self-preservation."

Other writers—and among them Mr. Morgan—have suggested that prohibitions of the marriage of near kin have arisen from observation of the injurious results of such unions.[1895] But most investigators who have considered the subject believe that this knowledge could be gained only by lengthened observation, and, to quote Dr. Peschel, is "unattainable by unsettled and childishly heedless races," among whom, nevertheless, a horror of incest is developed most strongly.[1896] Sir Henry Maine, on the other hand, thinks that the men who discovered the use of fire and selected the wild forms of certain animals for domestication and of vegetables for cultivation, might also have been able to find out that children of unsound constitution were born of nearly related

parents.[1897] In the next chapter, I shall have occasion to mention some instances which possibly may point in this direction, but in no case does such knowledge appear to be generally diffused among backward races. Mr. Curr has been unable to discover on what ground consanguineous marriages are held to be objectionable by the Australians, their replies to questions on this head invariably being, "Our tribe always did as we do in this matter." Yet they are well aware, he says, that the aim of the exogamous restrictions is to prevent the union of nearly related individuals.[1898] Dr. Sims writes that no other reason for the avoidance of marriage between near relations has been stated to him by the indigenous Bateke than that of "shame." Mr. Bridges informs me that the Yahgans point simply to the fact of relationship as the reason; and, when Azara asked the Charruas why a brother and sister never intermarried, they replied that they did not know why.[1899] It is conceivable that the experience of the injurious results of such marriages, once acquired, might afterwards have fallen into oblivion, although the prohibition continued to exist. But Azara expressly states that the Charruas have no law forbidding incestuous alliances, yet he has never seen nor heard of any among them.

Whatever observations may have been made, the prohibition of incest is in no case founded on experience. Had the savage man discerned that children born of marriage between closely related persons are not so sound and vigorous as others, he would scarcely have allowed this knowledge to check his passions. Considering how seldom a civilised man who has any disease, or tendency to disease, which is likely to be transmitted to his descendants, hesitates to marry an equally unhealthy woman, it would surely be unreasonable to suppose that savages have greater forethought and self-command.[1900] But even if we admit that man originally avoided marriage with near kin from sagacious calculation, and that he did this during so long a period that usage grew into law, we do not advance a step further. All the writers whose hypotheses have been considered in this chapter, assume that men avoid incestuous marriages only because they are taught to do so. "It is probable," says Mr. Huth, "that, if brothers and sisters were allowed to marry, they would do so while yet too young."[1901] But though law and custom may prevent passion from passing into action, they cannot wholly destroy its inward power. Law may forbid a son to marry his mother, a brother his sister, but it could not prevent him from desiring such a union if the desire were natural. Where does that appetite exist? The home is kept pure from incestuous defilement neither by laws, nor by customs, nor by education, but by an instinct which under normal circumstances makes sexual love between the nearest kin a psychical impossibility. An unwritten law, says Plato, defends "as sufficiently as possible," parents from incestuous intercourse with their children, brothers from intercourse with their sisters: "ἀλλ' οὐδ'

ἐπιθυμία ταύτης τῆς συνουσίας τὸ παρ ‘παν εἰσέρχεται τοὺς πολλοὺς”—“nor does even the desire for this intercourse come at all upon the masses.”[1902]

Chapter XV — Prohibition of Marriage Between Kindred

(Concluded)

It has been asserted that, if there be really an innate horror of incest, it ought to show itself intuitively when persons are ignorant of any relationship. But ancient writers state that, in Rome, incestuous unions often resulted from the exposure of infants who were reared by slave-dealers. Not long ago Selim Pasha unwittingly married his sister, who, like himself, had been a Circassian slave. The story told in the ‘Heptameron’ of a double incest was probably true, and became widely spread; and so on. Man has thus no horror of marriage with even the nearest kindred if he is unaware of their consanguinity; consequently, Mr. Huth concludes, there is no innate feeling against incest.[1903]

Of course I agree with Mr. Huth in thinking that there is no innate aversion to marriage with near relations. What I maintain is, that there is an innate aversion to sexual intercourse between persons living very closely together from early youth, and that, as such persons are in most cases related, this feeling displays itself chiefly as a horror of intercourse between near kin.

The existence of an innate aversion of this kind has been taken by various writers as a psychological fact proved by common experience;[1904] and it seems impossible otherwise to explain the feeling which makes the relationships between parents and children, and brothers and sisters, so free from all sexual excitement. But the chief evidence is afforded by an abundance of ethnographical facts which prove that it is not, in the first place, by the degrees of consanguinity, but by the close living together that prohibitory laws against intermarriage are determined.

Egede asserts that, among the Greenlanders, it would be reckoned uncouth and blamable, if a lad and a girl who had served and been educated in one family, desired to be married to one another;[1905] and, according to Dr. Nansen, it is preferred that the contracting parties should belong to different settlements.[1906] Colonel Macpherson states that, among the Kandhs, marriage cannot take place even with strangers who have been long adopted into, or domesticated with, a tribe.[1907] And Mr. Cousins writes to me that the Cis-Natalian Kafirs dislike marriage between persons who live very closely together, whether related or not. In the Northern New Hebrides, a girl betrothed in childhood is sometimes taken to her future father-in-law’s house and brought up there. Dr. Codrington says that “the boy often thinks she is

his sister, and is much ashamed when he comes to know the relation in which he stands."[1908]

Many peoples have a rule of exogamy that does not depend on kinship at all. Piedrahita relates of the Panches of Bogota that the men and women of one town did not intermarry, as they held themselves to be brothers and sisters, and the impediment of kinship was sacred to them; but such was their ignorance that, if a sister were born in a different town from her brother, he was not prevented from marrying her.[1909] The Yaméos, on the river Amazons, will not suffer an intermarriage between members of the same community, "as being friends in blood, though no real affinity between them can be proved."[1910] The Uaupés, according to Mr. Wallace, "do not often marry with relations, or even neighbours, preferring those from a distance, or even from other tribes."[1911] The Australian tribe, as Mr. Howitt points out, is organized in two ways. On the one hand, it is divided socially into phratries and clans; and, on the other hand, it is divided geographically into hordes. The two organizations are co-existent, but the divisions of the one do not correspond with those of the other. For while all the people who belong to any given local group are found in one locality alone, those who belong to any given social group are to be found distributed among many, if not among all, of the local groups. Now, in many tribes, local proximity by birth is quite an insuperable obstacle to marriage, a man being absolutely forbidden to marry, or have sexual intercourse with, a woman of the same horde or sub-horde. "However eligible she may be in other respects," says Mr. Howitt, "the fact that both parties belong to the same locality is held by certain tribes, the Kurnai, for example, to make them 'too near each other.'" It is chiefly in tribes where the clan-system has been weakened, or has become almost extinct, that the local organization has assumed such overwhelming preponderance, but even in some of the tribes which have a vigorous clan-system, local restraints upon marriage are strictly enforced.[1912] In Sumatra, according to Mr. Forbes, the country was originally divided into native districts called "margas," each marga, as a rule, having its several villages. Each of these village communities is a collection of families, either related or not to each other by the ties of blood;[1913] and we know that, at least among certain tribes, marriage between members of the same village or village cluster, and in some districts even between those of the same marga, is prohibited.[1914] The Kotars of the Neilgherries,[1915] Galela,[1916] Fijians,[1917] Zulus,[1918] Wakamba,[1919] and Kamchadales[1920] avoid, as a rule, marriage with members of the same village. So also do the Nogai, who consider it most honest for a man to marry a woman whom he has never seen before.[1921] In various of the smaller islands belonging to the Indian Archipelago, according to Riedel, women prefer marriage with strangers.[1922] The Assamese have a national festival named the "Baisakh Bihu," which is as gay

as a carnival, the women, and especially the maidens, enjoying unusual liberty as long as it lasts. "For many days before the actual festival," says Colonel Dalton, "the young people in the villages may be seen moving about in groups gaily dressed or forming circles, in the midst of which the prettiest girls dance with their long hair loose on their shoulders." But on these occasions the girls "do not like to dance before the men of their own village."[1923] Professor Kovalevsky observes that, in some parts of Russia, the bride is always taken from another village than the bridegroom's; and, even in provinces in which no similar custom is known to exist, "the bridegroom is constantly spoken of as a foreigner ('choujoy,' 'choujaninin'), and his friends and attendants are represented as coming with him from a distant country, in order to take away the future spouse."[1924] Sir Richard Burton says, "As a general rule Somali women prefer amourettes with strangers, following the well-known Arab proverb, 'The new comer filleth the eye.'"[1925]

We have seen how variously defined the prohibited degrees are in the laws of nations. Facts show that the extent to which relatives are not allowed to intermarry is nearly connected with their close living together. Generally speaking, the prohibited degrees are extended much farther among savage and barbarous peoples than in civilized societies. As a rule, the former, if they have not remained in the most primitive social condition of man, live, not in separate families, but in large households or communities, all the members of which dwell in very close contact with each other.

The communism in the family life of the exogamous Indians of North America has been exhaustively illustrated by Mr. Morgan in his work on 'Houses and House-Life of the American Aborigines.' "The household of the Mandans," he says, "consisting of from twenty to forty persons, the households of the Columbian tribes of about the same number, the Soshonee household of seven families, the households of the Sauks, of the Iroquois, and of the Creeks, each composed of several families, are fair types of the households of the Northern Indians at the epoch of their discovery. The fact is also established that these tribes constructed, as a rule, large joint tenement houses, each of which was occupied by a large household composed of several families, among whom provisions were in common, and who practised communism in living in the household."[1926] Among the Iroquois, each household was made up on the principle of kinship through females, so that the married women, usually sisters, own or collateral, being of the same gens or clan, together with their children made a family circle, within which, as we have seen, intermarriage was entirely prohibited.[1927] The Senel in California live sometimes from twenty to thirty together in the same immense dome-shaped or oblong lodge of willow-poles, including all who are blood relations.[1928] According to Egede, the Greenlanders, who prohibit marriage between cousins, continue

after marriage to live in their parents' house together with other kindred; and what they get they all enjoy in common.[1929] The Chippewas, who consider cousins german in the same light as brothers and sisters, but do not recognize relationship beyond this degree, are divided into small bands consisting of but few families each.[1930] Among the exogamous Uaupés, the houses are the abode of numerous families, and sometimes of a whole horde.[1931] Among the Yahgans, who regard marriage between first and second cousins as incestuous, "occasionally as many as five families are to be found living in a wigwam, but generally two families."[1932]

The Australian aborigines live mostly in small hordes, often consisting of from thirty to fifty men, women, and children. Such a horde, according to Mr. Brough Smyth, "is in fact but an enlargement of a family circle, and none within it can intermarry."[1933] Among the Efatese, in whose clan-system the prohibition of incest is a fundamental law, each clan is regarded as one family. "A child of a," says Mr. Macdonald, "calls her own mother mother, and all her mother's tribe (clan) sisters mother; and calls by the name of father not only her own father but all his tribe (clan) brothers; and they all call the child their child."[1934] The Malays, according to Professor Wilken, live, as a rule, in large houses containing a great number of differently related persons.[1935] "In Nanusa," Dr. Hickson remarks, "I understood that marriage was not permitted between members of the same household. The enormous households of the Nanusa archipelago are probably the remnants of a much more complete system of intra-tribal clanships, which has become almost obliterated in the more highly developed races of Sangir and Siauw."[1936] Among the Nairs, a household, the members of which are strictly prohibited from sexual relation with each other, includes, as a rule, many allied men, women, and children, who not only live together in large common houses, but possess everything in common.[1937] Among the Kafirs, the dimensions of a kraal are determined by the number of a man's family and dependants, the family consisting of the father together with his children, including married sons.[1938]

The South Slavonians live in house-communities, each consisting of a body of from fifteen to sixty members or even more, who are blood-relations to the second or third degree, of course only on the male side.[1939] These related families associate in a common dwelling or group of dwellings, governed by a common chief. "At the present moment," Sir Henry Maine remarks, "the common residence of so many persons of both sexes in the same household may be said to be only possible through their belief that any union of kinsmen and kinswomen would be incestuous. The South Slavonian table of prohibited degrees is extremely wide."[1940] Again, Professor Kohler points out the connection between the extensive prohibitions of the Hindus and their large households.[1941] In Wales there existed, as a national institution,

a joint-family called "trev," consisting of four generations. Marriage, says Mr. Lewis, was to be "outside the trev, or kindred who lived together within one enclosure."[1942]

Montesquieu, indeed, observed long ago that marriage between cousins was prohibited by peoples among whom brothers and their children used to live in the same house. "Chez ces peuples," he says, "le mariage entre cousins germains doit être regardé comme contraire à la nature; chez les autres, non." According to him, this prohibition has the same origin as the aversion to sexual relations between brothers and sisters, i.e., "les pères et les mères ayent voulu conserver les mœurs de leurs enfans et leurs maisons pures."[1943] Holding a similar opinion, Dr. Bertillon maintains that, properly speaking, it was not consanguinity, but the purity of home, that the ancient legislators were thinking of when they forbade close intermarriage.[1944] It is scarcely necessary to say how far I am from thinking that these prohibitions are, in the first place, due to the providence of parents or legislators.

On the other hand, where the families live more separately such extensive prohibitions to close intermarrying do not generally exist. Among the Isánna Indians of Brazil, who prefer marriage with relations, cousins with cousins, uncles with nieces, and nephews with aunts, each family has a separate house.[1945] The endogamous Maoris, who frequently marry near relations, have their villages generally scattered over a large plot of ground, the personal rights of possession being held most sacred.[1946] "There is no national bond of union amongst them," says Mr. Yate; "each one is jealous of the authority and power of his neighbour; the hand of each individual is against every man, and every man's hand against him."[1947] Among the Todas, who live in strict endogamy, families reside in permanent villages having each a certain tract of grazing ground around it, and containing from two to three huts. Most of these huts consist of only one room or cabin, and each room holds one entire subdivision of a family.[1948] The Bushmans, among whom no degree of consanguinity prevents a matrimonial connection, except between brothers and sisters, parents and children,[1949] live a solitary life in small family huts, not high enough to admit even of a Bushman standing upright within it.[1950] As regards the Wanyoro, whose table of prohibited degrees is unusually small, Emin Pasha states, "Brother, sister, brother-in-law, and son-in-law, are the recognized grades of relationship. I have never noticed any intimate connection between more distant relations."[1951]

The Sinhalese, who frequently marry their cousins on the paternal side, have from time immemorial lived either in very small villages, consisting of a few houses, or in detached habitations, separated from each other. Each dwelling is a little establishment in itself, and each little village, so far as its wants are concerned, may be considered independent. "They seldom visit each

other, except it be to beg or borrow something. Even near relations manifest no affection to each other in their visits, but sit with the gravity of strangers."[1952]

It is easy to explain, says Ewald, why, among the Hebrews, marriage between brothers and sisters in the widest sense was forbidden, while that between cousins was permitted:—"The latter did not form one united household, and the more each house stood strictly by itself in the ancient fashion, the wider seemed the separation between cousins."[1953] Tacitus states that the ancient Germans, whose prohibitions against incest seem to have included only the nearest relations, lived in scattered families at some distance from each other.[1954] And a comparison between the forbidden degrees of the Greeks and Romans clearly shows where we have to seek the real cause of the prohibitions. Among the former, even very close relationship was no hindrance to intermarriage, whereas, among the latter, it was not allowed between rather distantly related persons. This difference, as Rossbach justly points out, was due to the fact that the family feeling of the Greeks was much weaker than that of the Romans, among whom, in early times, a son used to remain in his father's house even after marriage, so that cousins on the father's side were brought up as brothers and sisters. Later on, the several families separated from the common household, and the prohibited degrees were considerably retrenched.[1955]

The reader may perhaps be disposed to reproach me for selecting only such instances as are in favour of my theory; but statistical data will show that such an imputation would be groundless. In speaking of the "classificatory system of relationship," I pointed out that this system springs, to a great extent, from the close living together of considerable numbers of kinsfolk. Now it is most interesting to note that Dr. Tylor, by his method of adhesions, has found the two institutions, exogamy and classificatory relationship, to be in fact two sides of one institution. "In reckoning," he says, "from the present schedules the number of peoples who use relationship names more or less corresponding to the classificatory systems here considered, they are found to be fifty-three, and the estimated number of these which might coincide accidentally with exogamy, were there no close connection between them, would be about twelve. But in fact the number of peoples who have both exogamy and classification is thirty-three, this strong coincidence being the measure of the close casual connection subsisting between the two institutions. The adherence is even stronger as to cross-cousin marriage (i.e., that the children of two brothers may not marry, nor the children of two sisters, though the child of the brother may marry the child of the sister), of which twenty-one cases appear in the schedules, no less than fifteen of the peoples practising it being also known as exogamous."[1956] Among the Reddies, a father's elder brother and a mother's elder sister are called, respectively, "great-father" and "great mother," and a father's younger brother and a mother's younger sister, respectively, "lesser-father" and "lesser

mother"; whereas the father's sisters and the mother's brothers are denoted by quite different terms. Mr. Kearns remarks that they consider the difference as well as the distance of relationship between these two groups of relations to be so great that they think it unlawful and incestuous to marry the daughter of a father's brother or of a mother's sister, she being equal to a sister, whilst it is perfectly legal to marry the daughter of a father's sister or of a mother's brother.[1957]

We have seen that the prohibitions against incest are very often more or less one-sided, applying more extensively either to the relations on the father's side or to those on the mother's, according as descent is reckoned through men or women. We have also seen that the line of descent is intimately connected with local relationships; and we may now fairly infer that the same local relationships exercise a considerable influence on the table of prohibited degrees. Among the Rejangs of Sumatra, says Marsden, a marriage must not take place between relations within the third degree; "but there are exceptions for the descendants of females who, passing into other families, become as strangers."[1958] A Chinese woman, on marriage, alienates herself from her own family to be incorporated into that of her husband; hence, as Mr. Medhurst observes, children of brothers and sisters may marry at pleasure, while those of brothers cannot be united on pain of death.[1959]

In a large number of cases, prohibitions of intermarriage are only indirectly influenced by the close living together. Aversion to the intermarriage of persons who live in intimate connection with each other has provoked prohibitions of the intermarriage of relations; and, as kinship is traced by means of a system of names, the name comes to be considered identical with relationship. This system, as Dr. Tylor remarks,[1960] is necessarily one-sided. Though it will keep up the record of descent either on the male or female side, it cannot do both at once. The other line, not having been kept up by such means of record, even where it is recognized as a line of relationship, is more or less neglected, and is soon forgotten; hence the prohibited degrees often extend very far on the one side, but not on the other. We have seen many instances of a common surname being a bar to intermarriage. This is especially the case with peoples among whom the clannish feeling is highly developed. Thus even the commonest Chinese are often able to trace their descent through lines of ancestry more remote than any that England's most ancient families can claim.[1961] And, among the Ossetes, a man is bound to take blood-revenge for a cousin a hundred times removed who bears his name, whereas relationship on the mother's side is not recognized.[1962]

Generally speaking, the feeling that two persons are intimately connected in some way or other may, through an association of ideas, give rise to the notion that marriage or intercourse between them is incestuous. Hence the

prohibitions of marriage between relations by alliance and by adoption. Hence, too, the prohibitions on the ground of what is called "spiritual relationship." The Emperor Justinian passed a law forbidding any man to marry a woman for whom he had stood as godfather in baptism, the tie of the godfather and godchild being so analogous to that of the father and child as to make such a marriage appear improper.[1963] In the Roman Church sponsorship creates a bar to the marriage even of co-sponsors, and the restriction can be removed only by a dispensation.[1964] In Eastern Europe, the groomsman at a wedding comes under a set of rules which forbids intermarriage with the family of the bride to exactly the same extent as if he were naturally the brother of the bridegroom.[1965] A similar cognatio spiritualis, according to the old law-books of India, occurs between a pupil and his "guru," that is, the teacher who instructs him in the Veda. The pupil lived in his guru's house for several years, and regarded him almost as a father.[1966] Hence adultery with a guru's wife was considered a mortal sin.[1967]

But how, then, are we to explain the exceptions, apparent or real, to the rule that close living together inspires an aversion to intermarriage? How are we to explain the fact that, besides tribes that are exogamous, there are others that are endogamous, and that, besides peoples with very extensive laws against intermarriage, there are others among whom unions take place between very near relations, such as brothers and sisters, and even parents and children.

In the next chapter we shall examine the psychological principle which underlies the endogamous marriage. For the present it is sufficient to say that endogamy never, except in cases of extreme isolation, seems to occur among peoples living in very small communities with close connections between their members. Concerning the Australians, Mr. Curr expressly states that those tribes which are endogamous are, as a rule, stronger in numbers than those in which exogamous marriage obtains.[1968]

The marriage of brother and sister means, as we have seen, in most cases, marriage between a half-brother and a half-sister, having the same father but different mothers. Such marriages are not necessarily contrary to the principle here laid down. Polygyny breaks up the one family into as many sub-families as there are wives who have children, and it is not possible for the father of these sub-families to be a member of each of them in the same sense as the father is a member of the monogamous family. Nor are the children of the different mothers brought into such close contact as the children of one mother, every wife with her own family forming a little separate group, and generally living in a separate hut.[1969] On the contrary, hatred and rivalry are of no rare occurrence among the members of the various sub-families. In the Pelew Islands, according to Herr Kubary, it very seldom happens that the several wives of the same man even see each other.[1970] After speaking of the marriage of half-

brother and half-sister allowed among the ancient Arabs, Professor Robertson Smith remarks, "Whatever is the origin of bars to marriage, they certainly are early associated with the feeling that it is indecent for housemates to intermarry."[1971]

Most of the recorded instances of intermarriage of brother and sister refer to royal families, to the exclusion of others; and there is no difficulty in accounting for incestuous unions of this sort. Among lower races, as well as in Europe, it is considered improper for royal persons to contract marriage with persons of less exalted birth. But whilst European princes may go to some friendly Court for their consorts, a similar course is not open to African or Asiatic potentates.

Incestuous unions may also take place on account of necessity, as among the Wa-taïta, or on account of extreme isolation, as among the Karens of the Tenasserim Provinces,[1972] several of the small tribes of Brazil, and especially the Veddahs of Ceylon. Among the wild Veddahs, the different families are separated from each other by great distances, and it is only accidentally or occasionally that any others besides the members of one family are brought together.[1973] The reason for the practice of marrying a sister, says Professor Virchow, "was probably the same everywhere, in the royal families as with the naked Veddahs, the lack of suitable women or of women altogether."[1974]

Certain instances of incestuous connection are evidently the results of vitiated instincts, the origin of which we are not able to trace. It is a remarkable fact that several of the peoples among whom incestuous intercourse is said to be practised are, at the same time, expressly stated to indulge in bestiality or other unnatural vices.[1975] This shows that their sexual feelings are altogether in a perverted state.

Much stress has been laid by anthropologists on the few instances of peoples who habitually or occasionally contract unions which we should consider criminal. They have been taken for surviving types of the primitive condition of man, proving that "sentiments such as those which among ourselves restrain the sexual instincts are not innate."[1976] But it is obvious that they prove nothing of the kind. Students of early history have often paid too much regard to exceptions, and too little to rules, overlooking the fact that there is no rule which has no exceptions.

It may be objected that no feeling of incest exists among the lower animals.[1977] According to Mr. Huth, incest "is constantly practised by animals, and habitually by those which are polygamous."[1978] But, as we have previously seen, among species that live in families, the young, without exception, leave the family as soon as they are able to shift for themselves; and Mr. Huth has adduced not the slightest evidence for his statement that "polygamy among animals means the closest incest."[1979]

The hypothesis here advocated can, I think, account for all the facts given in the last chapter. It explains how the horror of incest may be independent of experience as well as of education; why the horror of incest refers not only to relations by blood, but very frequently to persons not at all so related; why the prohibitions of consanguineous marriages vary so considerably with regard to the prohibited degrees, applying, however, almost universally to persons who live in the closest contact with each other; and why these prohibitions are so commonly extended much farther on the one side, the paternal or the maternal, than on the other. The question now arises:—How has this instinctive aversion to marriage between persons living closely together originated?

* * * * *

We have seen that a certain degree of similarity as regards the reproductive system of two individuals is required to make their union fertile and the progeny resulting from this union fully capable of propagation. It might, then, be supposed that the highest degree of similarity must be the most beneficial; but in all probability this is not the case. It seems to be necessary not only that the sexual elements which unite shall be somewhat like, but that they shall be in some way different. The similarity must not be too great.

As for the animal kingdom, Mr. Darwin remarks that almost all who have bred many kinds of animals, and have written on the subject, have expressed the strongest conviction on the evil effects of close interbreeding. [1983] "Indeed," says Sir J. Sebright, "I have no doubt but that, by this practice being continued, animals would, in course of time, degenerate to such a degree as to become incapable of breeding at all.... I have tried many experiments by breeding in-and-in upon dogs, fowls, and pigeons; the dogs became, from strong spaniels, weak and diminutive lap-dogs, the fowls became long in the legs, small in the body, and bad breeders."[1984] Mr. Huth, on the other hand, denies that breeding in-and-in, however close, has proved to be in itself hurtful, and quotes the evidence of numerous breeders whose choicest stocks have always been so bred. But in these cases, as Mr. Wallace remarks, "there has been rigid selection by which the weak or the infertile have been eliminated, and with such selection there is no doubt that the ill effects of close interbreeding can be prevented for a long time; but this by no means proves that no ill effects are produced."[1985] The consensus of opinion on this point among eminent breeders is indeed overwhelming, and cannot be reasoned away. According to Crampe's experiment with the brown rat (Mus decumanus), thirty-nine animals out of 153 born by related parents, i.e., 25·5 per cent., died soon after birth, whereas of 299 animals of parents not related this was the case with twenty-eight only, i.e., 8·4 per cent. The animals of incestuous broods were much smaller and lighter than others, and their fecundity was diminished.[1986] Mr. Huth himself observed, when breeding rabbits in-and-in, that "after the fourth

generation there was a diminution of fecundity analogous to the disgust that the stomach would feel at the same diet long continued," though he found no evil effect in any other way. On the contrary, the in-and-in bred offspring were somewhat heavier than the non-related parent animals.[1987] Professor Preyer has made a similar observation with regard to guinea-pigs: breeding in-and-in produced a considerable loss of fertility, but was accompanied with an increase of weight.[1988] This seems to indicate that the effects of close interbreeding are not always the same.

There are certainly breeders who prefer connecting together the animals nearest allied in blood to one another. But, as Dr. Mitchell observes, "when breeding in-and-in has been practised with so-called good results, the issue is nothing but the development of a saleable defect, which, from the animal's point of view, must be regarded as wholly unnatural and artificial, and not calculated to promote its well-being or natural usefulness."[1989]

Many writers suppose that all the evils from close interbreeding depend upon the combination and consequent increase of morbid tendencies common to both parents, the state of whose health decides whether union would be favourable or not to the offspring. "If the parents are perfectly healthy," says M. Pouchet, "and exempt from all commencing degeneracy, they can only give birth to children at least as healthy as themselves.... But if the same degeneracy has already tainted both the parents, the offspring will show it in a greater degree, and will tend towards entire disappearance."[1990] The same opinion is held by Sir John Sebright. But being, as an experienced breeder, well aware of the injurious results which almost always follow from interbreeding animals too closely, he adds that, according to his belief, there never did exist an animal without some defect, in constitution, in form, or in some other essential quality, or that at least a tendency to the same imperfection generally prevails in the same family.[1991]

Mr. Darwin, however, has shown it to be highly probable that, though the injury has often partly resulted from the combination of morbid tendencies, the general cause is different. Considering the number of self-fertilized plants that were tried, he thinks it is nothing less than absurd to suppose that in all these cases the mother-plants, though not appearing in any way diseased, were weak or unhealthy in so peculiar a manner that their self-fertilized seedlings, many hundreds in number, were rendered inferior in height, weight, constitutional vigour, and fertility to their crossed offspring.[1992] Moreover, self-fertilization and close interbreeding induce sterility, and this indicates something quite different from the augmentation of morbid tendencies common to both parents.[1993] Hence it seems to be almost beyond doubt that, just as the sterility of distinct species when first crossed, and of their hybrid offspring, depends on their sexual elements having been differentiated in too great a degree, the

evils of close interbreeding, or self-fertilization in plants, result chiefly from their sexual elements not having been sufficiently differentiated. But we do not know why a certain amount of differentiation is necessary or favourable for the fertilization or union of two organisms, any more than for the chemical affinity or union of two substances.[1994] It must, however, be observed that no case of complete sterility is met with in self-fertilized seedlings, as is so common with hybrids,[1995] and that interbreeding even of the nearest relations may sometimes, under very favourable circumstances, be continued through several generations without any evil results making their appearance.

It is impossible to believe that a law which holds good for the rest of the animal kingdom, as well as for plants, does not apply to man also. But it is difficult to adduce direct evidence for the evil effects of consanguineous marriages. We cannot expect very conspicuous results from other alliances than those between the nearest relations—between brothers and sisters, parents and children. And the injurious results even of such unions would not necessarily appear at once. Sir J. Sebright remarks that there may be families of domestic animals which go through several generations without sustaining much injury from having been bred in-and-in,[1996] and the offspring of self-fertilized plants do not always show any loss of vigour in the first generations. Man cannot, in this respect, be subjected to experiments like those tried in the case of other animals, and habitual intermarriage of the very nearest relations is, as we have seen, exceedingly rare. Mr. Adam argues that there is no proof of the physical deterioration of those divisions of mankind amongst whom incestuous unions are known more or less to have prevailed—as the Egyptians and Persians.[1997] But among these nations marriage certainly did not always take place between closely related persons; and breeders of domestic animals inform us that the mixing-in even of a drop of unrelated blood is sufficient almost to neutralize the injurious effects of long continued close interbreeding. Again, Mr. Huth asserts that, though the Ptolemies habitually married their sisters, nieces, and cousins, they were neither sterile nor particularly short-lived.[1998] Mr. Galton, on the contrary, sees in Ptolemaic experience a proof that close intermarriage is followed by sterility.[1999] In ten marriages between brothers and sisters, uncles and nieces, or between first-cousins, the average number of children was not quite two, and three of the unions were entirely sterile.[2000]

The Veddahs of Ceylon are probably the most in-and-in bred people that ever existed. Among them, the practice of a man marrying his younger sister did not occur only occasionally; according to Mr. Bailey, it was the proper marriage. Among the Bintenne Veddahs, it may be said to have been, for perhaps two generations or so, extinct, whilst among those of Nilgala, it is at most only disappearing. Mr. Bailey believes that this practice is quite sufficient to account

for the short stature as well as the weak and vacant expression of this people. He did not find many traces of insanity, idiocy, and epilepsy—maladies which such marriages, according to a common belief, might be supposed to produce. "But in other respects," he says, "the injurious effects of this custom would seem to be plainly discernible. The race is rapidly becoming extinct; large families are all but unknown, and longevity is very rare. I have been at some pains to obtain reliable data to elucidate these points. Out of seventy-two Veddahs in Nilgala, fifty were adults, and twenty-two children. In one small sept, or family, there were nine adults and one child; in another, one child and eight adults; and so on. In Bintenne, out of three hundred and eight Veddahs, a hundred and seventy-five were adults and a hundred and thirty-three children. Here the disproportion is not so marked; but in one of the smaller tribes, more isolated than the rest, there were twenty adults, and but four children. The paucity of children, I think, must be ascribed to the degeneracy produced by such close intermarriages, for I have never heard a suspicion of infanticide existing among them. Out of fifty adults in Nilgala, only one appeared to have numbered seventy years, and but eight to have exceeded fifty. In Bintenne, of a hundred and seventy-five adults, two only seemed to have reached their seventieth, and but fourteen to have exceeded their fiftieth year. Such statistics seem to show the practical results of such connections. The Nilgala Veddahs, who still maintain an almost total isolation from other people, are rapidly disappearing. The Veddahs of Bintenne, who have abandoned the pernicious custom which I have described, and still intermarry among themselves, are becoming extinct, though more gradually."[2001]

With the exception of this case, the closest kind of intermarriage which we have opportunities of studying is that between first cousins. Unfortunately, the observations hitherto made on the subject are far from decisive. Several writers, as M. Périer, Dr. Voisin, and Mr. Huth, believe that there are no injurious results at all from those marriages, unless the parents are afflicted with the same hereditary morbid tendencies,[2002] whilst others, as M. Devay and M. Boudin, express the most alarming opinions as to the bad effects of consanguineous marriages. Such alliances are supposed to bring evils of many different kinds upon a population, as sterility, idiocy, epilepsy, insanity, deaf-muteism, congenital malformations in the offspring, cretinism, albinoism, [2003] &c. But how little the statements of the various writers agree with each other appears, for instance, from the fact that M. Boudin found the proportion of deaf-mutes born in consanguineous marriages, in the Imperial Institution of Deaf-Mutes at Paris, to be 28·35 per cent., whereas, according to Dr. Mitchell, it amounts to 5·17 per cent. in Scotch and English institutions.[2004]

As it is impossible to dwell here upon the investigations of the several writers, of which Mr. Huth has given so complete an account, I shall confine

myself to a statement of the general results attained by those investigators who have founded their inquiries on a more trustworthy statistical basis.

Adopting a method different from that of his predecessors, Professor G. H. Darwin has endeavoured first to discover the proportion of consanguineous marriages in the whole population, and then to find out whether the offspring of those marriages exhibit a greater percentage of individuals, defective in one way or another, than the offspring of non-consanguineous marriages. His investigations tend decidedly to invalidate the exaggerated conclusions of many previous writers, but he thinks that "there are nevertheless grounds for asserting that various maladies take an easy hold of the offspring of consanguineous marriages."[2005] He did not find evidence that the marriage of first cousins had any effect in the production of infertility, deaf-muteism, insanity, or idiocy, but he observed a slightly lowered vitality amongst the offspring of first cousins, and a somewhat higher death-rate than amongst the families of non-consanguineous marriages.[2006] Moreover, the numbers of boating men belonging to the twenty boats at Oxford and thirty at Cambridge, in the first and second division, and those of selected athletes from some schools in England, justified, to some extent, the belief "that offspring of first cousins are deficient physically, whilst at the same time they negative the views of alarmist writers on the subject."[2007] It is curious that, in spite of such unambiguous statements, Mr. Darwin's paper has generally been quoted as an evidence of the perfect harmlessness of first cousin marriages.

M. Stieda has found that, in the departments of France, the number of bodily or mentally infirm people increases almost constantly in proportion to the number of consanguineous marriages, as will be seen from the following table:—

Number of Number of consanguineous Number of Group. departments. marriages in infirm people in each thousand each thousand marriages. inhabitants.

The Danish physician, Dr. Mygge, published in 1879 a book on 'Marriage between Blood-Relations,' which unfortunately has received much less attention than it deserves.[2009] Thanks to the trustworthiness of the method, the number of cases considered, and the author's impartiality, it is probably the most important statistical contribution hitherto issued on this subject. Dr. Mygge found, from the information he received from various parts of Denmark, that in that country, or at least in the parishes of it which came under his observation, there occur, among the children of related persons, comparatively more idiots, lunatics, epileptics, and deaf-mutes than among others. He considers it probable, too, though not proved, that such children die in a higher ratio and are more liable to certain diseases. But, on the other hand, he did not notice

any perceptible difference in fertility between consanguineous and crossed marriages.[2010]

In these inquiries, Dr. Mygge followed the method applied by the Norwegian physician Ludvig Dahl twenty years earlier. Through careful investigation of 246 marriages, eighty-five of which were between first cousins and four between still nearer relations, this inquirer was led to the conclusions that consanguineous marriages are somewhat less fertile than crossed marriages; that they produce comparatively many more still-born and sickly children; and that insanity, idiocy, deaf-dumbness, and epilepsy occur about eleven times as often among the offspring of relations, as among the offspring of unrelated parents. But he admitted that the numbers compared were too small to make his conclusions decisive.[2011]

These results are of course to a great extent conjectural. But it is noteworthy that, of all the writers who have discussed the subject, the majority, and certainly not the least able of them, have expressed their belief in marriages between first cousins being more or less unfavourable to the offspring.[2012] And no evidence which can stand the test of scientific investigation has hitherto been adduced against this view.

Some writers have, indeed, cited instances of communities where consanguineous marriages have occurred constantly without any evil effects having appeared. Thus the Pitcairn Island, uninhabited till the year 1790, was at that time peopled by nine white men, and six men and twelve women of Tahiti. In 1800 the population consisted of one man, five women, and nineteen children; and the descendants of these persons are stated by later travellers to be strong and healthy without any traces of degeneration. Omitting whatever else may be said against this case as evidence for the harmlessness of consanguineous marriages, I need only call attention to the facts that, since the colonization of this island, a few strangers have joined the little colony; that it was once removed to Norfolk Island, and that, of those who returned, one was a Norfolk Islander who had married a Pitcairn girl; that the island has frequently been visited by ships with their crews;[2013] and that, as Beechey expressly states, the same restrictions with regard to intermarriage of relations exist here as in England.[2014]

There are several isolated communities—in Java, Peru, Great Britain, France, Scandinavia, &c.—which intermarry solely among themselves without any evil effects being discernible. An often-quoted case is the community of Batz (3,300 persons), situated near Croisic on a peninsula. The inhabitants of this community have been in the habit of closely intermarrying among themselves from time immemorial. Nevertheless, they are almost all very well in health without any hereditary affection. But Dr. Voisin observes, "Les conditions climatériques de la commune de Batz, son voisinage de la mer, l'hygiène et les habitudes

de ses habitants, semblent s'accorder pour empêcher la dégénérescence de l'espèce et paraissent expliquer l'innocuité des mariages entre consanguins qui s'y pratiquent depuis plusieurs siècles."[2015] In other isolated communities the population is not so numerous, and the sanitary conditions are not perhaps so favourable: but in any case we may say that this local endogamy is generally something quite different from marriage with near relations. Dr. Mitchell found that, in almost all the isolated communities along the coasts of Scotland, which had been given as instances of close interbreeding, such marriages were comparatively rare. According to Dr. Mygge, the like is true of the population of Lyø and Strynø in Denmark.[2016] And Dr. Andrew Wood states, of the fisherfolk of Newhaven, that, though they keep themselves much segregated, they are very careful regarding intermarriage, and look upon the union of relatives as an infringement of the laws of morality.[2017]

Moreover, even if it could be proved that, in particular cases, close intermarrying, though continued for a long time, has been followed by no bad consequences, this would be no evidence that consanguineous marriages are as a rule innocuous. In some parishes of Denmark Dr. Mygge found no evil effects of such marriages, whilst in others they were very conspicuous.[2018] And from the investigations of Mr. Darwin it appears that, notwithstanding the injury which most plants suffer from self-fertilization, a few have almost certainly been propagated in a state of nature for thousands of generations without having been once intercrossed. It is impossible to understand, he says, why some individuals even of the same species are sterile, whilst others are quite fertile, with their own pollen.[2019]

There is evidence that the bad consequences of self-fertilization and close interbreeding may almost fail to appear under favourable conditions of life. In-and-in bred plants, when allowed enough space and good soil, frequently show little or no deterioration: whereas, when placed in competition with another plant, they often perish or are much stunted.[2020] Crampe's experiments with brown rats proved that the breeding in-and-in was much less injurious, if the offspring of the related parents were well fed and taken care of, than if it was otherwise.[2021] And this is in striking accordance with Dr. Mitchell's observations as to consanguineous marriages in Scotland. The results there appear to be least grave, and are frequently almost nil, if the parents and children live in tolerable comfort, without anxiety or much thought for the morrow, and easily earning enough to procure good food and clothing—in short, when they work, but do not struggle for existence. On the other hand, when they are "poor, pinched for food, scrimp of clothing, badly housed, and exposed to misery; when they have to toil and struggle for the bare necessaries of life—never having enough for to-day and being always fearful of to-morrow,"—the evil may become very marked.[2022]

If this is the case, we must expect to find that consanguineous marriages are much more injurious in savage regions, where the struggle for existence is often very severe, than they have proved to be in civilized society, especially as it is among the well-off classes that such marriages occur most frequently. [2023] In England, according to Mr. G. H. Darwin, cousin-marriages among the aristocracy are probably 4½ per cent.; among the middle and upper middle class, or among the landed gentry, 3½ per cent.; but in London, comprising all classes, they are probably only 1½ per cent.[2024] He thinks that the slightness of the evils which he found to result from first-cousin marriages perhaps depends upon the fact that a large majority of Englishmen live under what are on the whole very favourable circumstances.[2025] We must also, however, remember that there has been a great mixture of races in Europe, and that this necessarily makes marriage of kinsfolk less injurious, so far as the evil results of such unions depend upon too great a likeness between the sexual elements.

The conclusion that closely related marriages produce more destructive effects among savage than civilized peoples, derives perhaps, some additional probability from certain ethnological facts. These facts may, at least, serve to show that such marriages, and the experience of isolated communities, are not everywhere in favour of Mr. Huth's conclusions. Several statements on the subject have, indeed, scarcely any value as direct evidence for the harmfulness of consanguineous marriages, but to two or three considerable weight must be attached.

According to v. Martius, who is a great authority on Brazilian ethnography, it is a well-established fact, observed everywhere, that the smaller and more isolated of the Indian communities, scarcely any members of which marry members of other communities, are much more liable to every kind of deterioration than the larger groups.[2026] "It is probable," Mr. Bates, another most capable judge, remarks with reference to the savage tribes on the Upper Amazons, "that the strange inflexibility of the Indian organization, both bodily and mental, is owing to the isolation in which each small tribe has lived, and to the narrow round of life and thought, and close intermarriages for countless generations, which are the necessary results. Their fecundity is of a low degree, for it is very rare to find an Indian family having so many as four children, and we have seen how great is their liability to sickness and death on removal from place to place."[2027] Touching the Isánna Indians, Mr. Wallace asserts that they are said not to be nearly so numerous, nor to increase so rapidly, as the Uaupés; which may perhaps be owing to their marrying with relations, while the latter prefer strangers.[2028] And v. Tschudi supposes that the low fecundity of the Botocudos is caused by their endogamous habits; for when their women marry out of their own horde, especially with whites or negroes, they are generally very fertile.[2029]

The Calidonian Indians of the Isthmus of Darien, according to Mr. Gisborne, are bound never to cross the breed with foreigners; hence intermarriage is very constant, and, as he remarks, the race degenerates.[2030] The Pueblos in New Mexico, too, are said to deteriorate because of their constant intermarriage in the same village.[2031] As regards the Hottentots, Barrow remarks, "The impolitic custom of hording together in families, and of not marrying out of their own kraals, has no doubt tended to enervate this race of men, and reduced them to their present degenerated condition, which is that of a languid, listless phlegmatic people, in whom the prolific powers of nature seem to be almost exhausted." Few of the women have more than two or three children, and many of them are barren. But this is not the case when a Hottentot woman is connected with a white man. "The fruit of such an alliance," says Barrow, "is not only in general numerous, but they are beings of a very different nature from the Hottentot."[2032]

In too early marriages, the licentious habits of both sexes, and the intermarriage of near relatives, the Rev. J. Sibree finds the causes of the infertility of the women of Madagascar.[2033] Among the Garos, the chiefs have, in comparison with the lower classes, degenerated physically, and Colonel Dalton is inclined to think that this degeneration is a result of close interbreeding.[2034] The Lundu Sea Dyaks, according to Sir Spenser St. John, have decreased greatly in numbers—from a thousand families to ten. "They complain bitterly," he says, "that they have no families, that their women are not fertile; indeed, there were but three or four children in the whole place. The men were fine-looking and the women well-favoured and healthy—remarkably clean and free from disease. We could only account for their decreasing numbers by their constant intermarriages."[2035] Mr. Foreman thinks that the low intellect and mental debility perceptible in many families among the domesticated natives of the Philippines are due to consanguineous marriages.[2036] Mr. Bachelor connects the rapid decrease of the Ainos with their endogamous habits.[2037] And Mr. Meade remarks, with regard to the Maoris, that one of the principal causes of the diminishing population is said to be their intermarriages, which cause barrenness among the women.[2038]

Of no little interest to us are the Todas of the Neilgherry Hills. Mr. Marshall remarks that, among them, relationship is intimate far beyond that witnessed in any country approaching civilization—"intimate to such a degree, that the whole tribe, where not parents and children, brothers and sisters, are all first cousins, descended from lines of first cousins prolonged for centuries."[2039] As regards the general appearance of the people, a large proportion of both sexes and of all ages are doubtless in excellent health, and their fecundity, according to Dr. Shortt, is by no means of a low degree.[2040] Nevertheless, the Todas are dying out. In infancy the mortality is so great that, as a rule,

there is in each family only a small number of children.[2041] "It is rarely that there are more than two or three children," says the missionary Metz, "and it is not at all an uncommon thing to find only a single child, while many families have none at all." The numbers of the Todas have, consequently, for years past been gradually declining, and probably the time is not far distant when they will have passed away.[2042] Of course, we do not know whether this depends upon their close intermarriages, but there is, at any rate, some reason to suspect that this is the case. That the intermarrying has not produced more evil effects on the population, may possibly be owing to the wealth for which the Neilgherry Hills are remarkable, and to their climate, which, for mildly invigorating properties and equable seasonal changes throughout the year, is perhaps unrivalled anywhere within the tropics.[2043]

Another very much in-and-in bred people are the Persians. Among them, husband and wife are generally of the same family, and very often cousins. Yet Dr. Polak who has lived in Persia for nine years, partly as a teacher in the medical school of Teheran, partly as physician to the Shah, and during this residence has had excellent opportunities of acquainting himself with the conditions of the people, has not observed that the diseases which are supposed to result from consanguineous marriages prevail more frequently there than elsewhere. Nor has he found that the Persian women are generally less fertile than others. Yet the families are exceedingly small, as the mortality among children is enormous. Of six, perhaps two as a rule survive, but very often none at all, most of them dying in their second year. Dr. Polak believes, indeed, that, on an average, scarcely more than one living child comes to each woman. A princess in Teheran was looked upon quite as a wonder because she had eight children alive, and the European physician was asked if he ever before, in his own country, had seen a similar case.[2044]

More important than any of these statements is the following testimony concerning the Karens of Burma, for which I am indebted to the Rev. Dr. Alonzo Bunker, who has been a resident among that people during more than twenty years. He says that, in some of their villages, exogamy prevails, in others endogamy, but marriages between parents and children, brothers and sisters, are prohibited everywhere, and even first cousins very seldom marry, though there is no law against such connections. There is a striking difference with regard to stature, health, strength and fecundity, between the inhabitants of the exogamous and those of the endogamous villages, the latter being much inferior in all these respects. Dr. Bunker has no doubt that this inferiority is owing to the intermarriage of kinsfolk, and he asserts that even the natives themselves ascribe it to this cause, though they obstinately keep up the old custom, regarding marriages out of their own village as highly unbecoming. In cases in which missionaries have been able to persuade young men to choose

wives from another village, Dr. Bunker assures me that the good effects of a cross appeared at once.[2045]

There are some other peoples who ascribe evil results to close intermarriage. Mr. Cousins informs me that the Cis-Natalian Kafirs believe "that their offspring would be of a more sickly nature if such were allowed"; and Mr. Eyles writes that the Zulus, on the border of Pondoland, regard sterility and deformity as consequences of consanguineous unions. The Australian Dieyerie, according to Mr. Gason, have a tradition that, after the creation, fathers, mothers, sisters, brothers, and others of the closest kin intermarried promiscuously, until the bad effects of these marriages became manifest. A council of the chiefs was then assembled to consider in what way the evil might be averted, and the result of their deliberations was a petition to the Muramura, or Good Spirit. In answer to this he ordered that the tribe should be divided into branches, and distinguished one from the other by different names, after objects animate and inanimate, such as dogs, mice, emu, rain, and so forth, and that the members of any such branch should be forbidden to marry other members of the same branch.[2046] Again, touching the Kenai, in the north-western part of North America, Richardson states, "It was the custom that the men of one stock should choose their wives from another, and the offspring belonged to the race of the mother. This custom has fallen into disuse, and marriages in the same tribe occur; but the old people say that mortality among the Kenai has arisen from the neglect of the ancient usage."[2047]

In a Greenland Eskimo tale, the father of Kakamak, finding that all his grandchildren have died before reaching the age of puberty, suggests to his son-in-law, "Perhaps we are too near akin."[2048] Two Mohammedan travellers of the ninth century tell us that the Hindus never married a relation, because they thought alliances between unrelated persons improved the offspring.[2049] In Hadîth, the collection of Mohammedan traditions, it is said, "Marry among strangers; thus you will not have feeble posterity." "This view," says Goldziher, "coincides with the opinion of the ancient Arabs that the children of endogamous marriages are weakly and lean. To this class also belongs the proverb of Al-Meydânî, ' ... Marry the distant, marry not the near' (in relationship)." A poet, praising a hero, says, "He is a hero, not borne by the cousin (of his father), he is not weakly; for the seed of relations brings forth feeble fruit."[2050]

In opposition to the view that these opinions are the results of experience, it may be urged that any infraction of the customs or laws of ancestors is commonly thought to call down divine vengeance. Father Veniaminof tells us that, among the early Aleuts, incest, which was considered the gravest crime, was believed to be always followed by the birth of monsters with walrus-tusks, beard, and other disfiguration;[2051] and among the Kafirs, according to Mr. Fynn, it is a general belief that the offspring of an incestuous union will be a

monster—"a punishment inflicted by the ancestral spirit."[2052] But whatever may be said of the other cases referred to, no such explanation can possibly hold good for the Arabs. Among them, marriage with a near relation involved no infringement of their marriage regulations. On the contrary, in spite of the opinions in favour of exogamy, the preference for marriage with a cousin was dominant among them, and a man had even a right to the hand of his "bint 'amm," the daughter of a paternal uncle.[2053]

Taking all these facts into consideration, I cannot but believe that consanguineous marriages, in some way or other, are more or less detrimental to the species. And here, I think, we may find a quite sufficient explanation of the horror of incest; not because man at an early stage recognized the injurious influence of close intermarriage, but because the law of natural selection must inevitably have operated. Among the ancestors of man, as among other animals, there was no doubt a time when blood-relationship was no bar to sexual intercourse. But variations, here as elsewhere, would naturally present themselves; and those of our ancestors who avoided in-and-in breeding would survive, while the others would gradually decay and ultimately perish. Thus an instinct would be developed which would be powerful enough, as a rule, to prevent injurious unions. Of course it would display itself simply as an aversion on the part of individuals to union with others with whom they lived; but these, as a matter of fact, would be blood-relations, so that the result would be the survival of the fittest.

Whether man inherited the feeling from the predecessors from whom he sprang, or whether it was developed after the evolution of distinctly human qualities, we do not know. It must necessarily have arisen at a stage when family ties became comparatively strong, and children remained with their parents until the age of puberty, or even longer. Exogamy, as a natural extension of this instinct, would arise when single families united in small hordes. It could not but grow up if the idea of union between persons intimately associated with one another was an object of innate repugnance. There is no real reason why we should assume, as so many anthropologists have done,[2054] that primitive men lived in small endogamous communities, practising incest in every degree. The theory does not accord with what is known of the customs of existing savages; and it accounts for no facts which may not be otherwise far more satisfactorily explained.

The objection will perhaps be made that the aversion to sexual intercourse between persons living very closely together from early youth is too complicated a mental phenomenon to be a true instinct, acquired through spontaneous variations intensified by natural selection. But there are instincts just as complicated as this feeling, which, in fact, only implies that disgust is associated with the idea of sexual intercourse between persons who have lived

in a long-continued, intimate relationship from a period of life at which the action of desire is naturally out of the question. This association is no matter of course, and certainly cannot be explained by the mere liking for novelty. It has all the characteristics of a real, powerful instinct, and bears evidently a close resemblance to the aversion to sexual intercourse with individuals belonging to another species.

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Besides the horror of incest, there is another feeling to which reference may here be made. "L'amour," says Bernardin de Saint-Pierre, " ... ne résulte que des contrastes; et plus ils sont grands, plus il a d'énergie. C'est ce que je pourrois prouver par mille traits d'histoire.... L'influence des contrastes en amour est si certaine, qu'en voyant l'amant on peut faire le portrait de l'objet aimé sans l'avoir vu, pourvu qu'on sache seulement qu'il est affecté d'une forte passion."[2055] Schopenhauer likewise observes that every person requires from the individual of the opposite sex a one-sidedness which is the opposite of his or her own. The most manly man will seek the most womanly woman, and vice versa. Weak or little men have a decided inclination for strong or big women, and strong or big women for weak or little men. Blondes prefer dark persons, or brunettes; snub-nosed persons, hook-nosed; persons with excessively slim, long bodies and limbs, those who are stumpy and short; and so on.[2056] A similar view is held by M. Prosper Lucas, Mr. Alexander Walker, Professor Mantegazza, Mr. Grant Allen, and other writers.[2057] "In the love of the sexes," says Professor Bain, "the charm of disparity goes beyond the standing differences of sex; as in contrasts of complexion, and of stature."[2058]

Some writers have suggested that love thus excited by differences is favourable to fecundity, those marriages in which it exists being more prolific than others.[2059] Thus Mr. Andrew Knight, a most experienced breeder, remarks, "I am disposed to think that the most powerful human minds will be found offspring of parents of different hereditary constitutions. I prefer a male of a different colour from the breed of the female, where that can be obtained, and I think that I have seen fine children produced in more than one instance, where one family has been dark and the other fair. I am sure that I have witnessed the bad effects of marriages between two individuals very similar to each other in character and colour, and springing from ancestry of similar character. Such have appeared to me to be like marriages between brothers and sisters."[2060]

These statements, of course, prove nothing, but they may perhaps derive some value from the fact that they are made by so many different observers. The statistical investigation of Professor Alphonse de Candolle, bearing upon the same question, rests on firmer ground. He has found, from facts collected in Switzerland, North Germany, and Belgium, that marriages are most commonly

contracted between persons with different colours of the eye, except in the case of brown-eyed women, who are generally considered more attractive than others.[2061] He has noted, further, that the number of children is considerably smaller in families where the parents have the same colour of the eye than where the reverse is the case.[2062] But Professor Wittrock could not, in Sweden, find any such difference in fecundity between the two categories of marriages;[2063] and Mr. Galton observes, "Whatever may be the sexual preferences for similarity or for contrast, I find little indication in the average results obtained from a fairly large number of cases, of any single measurable personal peculiarity, whether it be stature, temper, eye-colour or artistic tastes, influencing marriage selection to a notable degree."[2064]

If contrasts instinctively seek each other, this may partly account for the readiness with which love awakens love. Every one knows some unhappy lover who has never been able to win the heart of the person he adores; but in most cases, I should say, love is mutual. And this, perhaps, is owing not only to the contagiousness of the passion, but also to the attractive power of contrasts, which acts equally upon both parties. Thus we might explain, to some extent, the extreme variation of tastes, and the fact that, besides the general standard of beauty common to the whole race, there exists a more detailed ideal special to each individual.

Chapter XVI

SEXUAL SELECTION AS INFLUENCED BY AFFECTION AND SYMPATHY, AND BY CALCULATION

In the lower stages of human development sexual affection is much inferior in intensity to the tender feelings with which parents embrace their children; and among several peoples it seems to be almost unknown. Thus, speaking of the Hovas in Madagascar, Mr. Sibree says that, among them, until the spread of Christianity, there was "no lack of strong affection between blood-relations —parents and children, brothers and sisters, grandparents and grandchildren;" but the idea of love between husband and wife was hardly thought of.[2067] On the Gold Coast, says Major Ellis, "love, as understood by the people of Europe, has no existence."[2068] At Winnebah, according to Mr. Duncan, "not even the appearance of affection exists between husband and wife;" and almost the same is asserted by M. Sabatier with reference to the Kabyles, by Signor Bonfanti with reference to the Bantu race.[2069] Munzinger says that, among the Beni-Amer, it is considered even disgraceful for a wife to show any affection for her husband.[2070] The Chittagong Hill tribes, according to Captain Lewin, have "no idea of tenderness, nor of chivalrous devotion." Marriage is among them

regarded as merely a convenient and animal connection.[2071] In the Island of Ponapé, according to Dr. Finsch, love in our sense of the term is entirely unknown.[2072] As regards the Eskimo of Newfoundland, Heriot asserts, "Like all other men in the savage state, they treat their wives with great coldness and neglect, but their affection towards their offspring is lively and tender."[2073] In Greenland, a man thought nothing of beating his wife, but it was an heinous offence for a mother to chastise her children.[2074] Almost the same is said of the Kutchin by Mr. Jones, and of the Eskimo of Norton Sound by Mr. Dall.[2075] According to Mr. Morgan, the refined passion of love is unknown to the North American Indians in general.[2076]

Such statements, however, may easily be misleading. The love of a savage is certainly very different from the love of a civilized man; nevertheless, we may discover in it traces of the same ingredients. There are facts which tend to show that even very rude savages may have conjugal affection; nay, that among certain uncivilized peoples it has reached a remarkably high degree of development.

Among the wretched Bushmans, according to Mr. Chapman, there is love in all their marriages.[2077] Among the races of the Upper Congo, love is ennobled by a certain poetry;[2078] and with the Touaregs, there is a touch of almost chivalrous sentiment in the relations between men and women.[2079] Regarding the man-eating Niam-Niam, Dr. Schweinfurth asserts that they display an affection for their wives which is unparalleled among other natives of an equally low grade.[2080]

The Hos are good husbands and wives, and although they have no terms in their own language to express the higher emotions, "they feel them all the same."[2081] The missionary Jellinghaus found tokens of affectionate love between married people among the Munda Kols, Mr. Fawcett among the Savaras, Sir Spenser St. John among the Sea Dyaks, Mr. Man among the Andamanese.[2082] In New Caledonia, says M. Moncelon, "l'amour existe, et j'ai vu des suicides par amour."[2083] In Samoa, stories of affectionate love between husband and wife are preserved in song.[2084] In Tonga, according to Mariner, most of the women were much attached to their husbands;[2085] and in Fiji, says Dr. Seemann, "even widowers, in the depth of their grief, have frequently terminated their existence, when deprived of a dearly beloved wife."[2086] In several of the Australian tribes, married people are often much attached to each other, and continue to be so even when they grow old.[2087] Concerning the aborigines of Victoria, Daniel Bunce says it is an error to suppose that there exists no settled love or lasting affection between the sexes; among the Narrinyeri, Mr. Taplin has known as well-matched and loving couples as he has among Europeans; and, according to Mr. Bonney, husband and wife among

the natives of the River Darling, rarely quarrel, and "they show much affection for each other in their own way."[2088]

Among the Eskimo of the north-east coast of North America, visited by Lyon, "young couples are frequently seen rubbing noses, their favourite mark of affection, with an air of tenderness."[2089] The Tacullies, as Harman informs us, are remarkably fond of their wives.[2090] And Mr. Catlin goes even so far as to deny that the North American Indians are "in the least behind us in conjugal, in filial, and in paternal affection,"[2091]—a statement with which Mr. Morgan does not agree. Mr. Brett asserts that, among the natives of Guiana, instances of conjugal attachment are very frequent.[2092] Azara and Mantegazza found tokens of it among some other South American tribes;[2093] and the rude Fuegians are said to "show a good deal of affection for their wives."[2094]

It is, indeed, impossible to believe that there ever was a time when conjugal affection was entirely wanting in the human race. Though originally of far less intensity than parental love, especially on the mother's side, as being of less importance for the existence of the species, yet it seems, in its most primitive form, to have been as old as marriage itself. It must be a certain degree of affection that induces the male to defend the female during her period of pregnancy; but often it is the joint care of the offspring, more than anything else, that makes the married couple attached to each other. With reference to the Dacotahs, Mr. Prescott remarks that "as children increase, the parents appear to be more affectionate."[2095]

Of course it is impossible to suppose that mutual love can generally be the motive which leads to marriage when the wife is captured or purchased from a foreign tribe. In the main, Mr. Hall's assertion as to the Eskimo visited by him, that "love—if it come at all—comes after the marriage,"[2096] holds good for many savage peoples. Among the Australians, for instance, according to Mr. Brough Smyth, love has often no part in the preparations for marriage. "The bride is dragged from her home—she is unwilling to leave it; and if fears are entertained that she will endeavour to escape, a spear is thrust through her foot or her leg. A kind husband will, however, ultimately evoke affection, and fidelity and true love are not rare in Australian families."[2097]

The affection accompanying the union of the sexes has gradually developed in proportion as altruism in general has increased. Thus love has only slowly become the refined feeling it is in the heart of a highly civilized European. In Eastern countries with their ancient civilization there exists even now but little of that tenderness towards the woman which is the principal charm of our own family life. In China, up to recent times, it was considered "good form" for a man to beat his wife, and, if the Chinaman of humble rank spared her a little, he did so only in order not to come under the necessity of buying a successor.[2098] In Hindu families, according to Dubois, sincere mutual friendship is

rarely met with. "It is in vain," he says, "to expect, between husband and wife, that reciprocal confidence and kindness which constitute the happiness of a family. The object for which a Hindu marries is not to gain a companion to aid him in enduring the evils of life, but a slave to bear children and be subservient to his rule."[2099] The love of which the Persian poets sing has either a symbolic or a very profane meaning.[2100] Among the Arabs, says Burckhardt, "the passion of love is, indeed, much talked of by the inhabitants of towns; but I doubt whether anything is meant by them more than the grossest animal desire."[2101] Mr. Finck remarks that in the whole of the Bible there is not a single reference to romantic love.[2102] And even in Greece, according to some authorities, the love of the sexes was little more than sexual instinct.[2103]

It is also obvious that marriage cannot be contracted from affection where the young women before marriage are kept quite apart from the men, as is done in Eastern countries. In China it often happens that the parties have not even seen each other till the wedding-day; and, in Greece, custom was scarcely less rigorous in this respect.[2104] In vain Plato urged that young men and women should be more frequently permitted to meet one another, so that there should be less enmity and indifference in the married life.[2105] Plutarch hopes that love will come after marriage.[2106]

The feeling which makes husband and wife true companions for better and worse can grow up only in societies where the altruistic sentiments of man are strong enough to make him recognize woman as his equal, and where she is not shut up as an exotic plant in a green-house, but is allowed to associate freely with men. In this direction European civilization has been advancing for centuries, and there can be no reason to fear that it will ever be permanently diverted from the path by which alone some of the most important of its ends can be attained.

When affection came to play a more prominent part in human sexual selection, higher regard was paid to intellectual, emotional, and moral qualities, through which the feeling is chiefly provoked. Later on, we shall see how great are the consequences which spring from this fact. For the present it may be enough to say that the preference given to higher qualities by civilized men contributes much to the mental improvement of the race. Dr. Stark observes that the intemperate, profligate, and criminal classes do not commonly marry; and the like is to a large extent true of persons who are very inferior in intellect, emotions, and will.[2107]

Affection depends in a very high degree upon sympathy. Though distinct aptitudes, these two classes of emotions are most intimately connected: affection is strengthened by sympathy, and sympathy is strengthened by affection. Community of interests, opinions, sentiments, culture, and mode of life, as being essential to close sympathy,[2108] is therefore favourable to warm affec-

tion. If love is excited by contrast, it is so only within certain limits. The contrast must not be so great as to exclude sympathy.

Great difference of age is fatal to close sympathy. Wieland noted that most people who fall in love do so with persons of about their own age;[2109] and statistics prove the observation to be correct. Men who marry comparatively late in life usually avoid too great difference in age.[2110] The foundation of this admiration and preference, modified by age, says Mr. Walker, "appears to be the similarity of objects and interests which are inseparable from similar periods of life, the association of these with a similar intensity of sexual desire, the consequent production of similar sympathy, and the resolve that it shall be permanent."[2111]

A very important factor is similarity in the degree of cultivation. It seldom happens that a "gentleman" falls in love with a peasant-girl, or an artizan with a "lady." This does more than almost anything else to maintain the separation of the different classes, and to preserve the existing distribution of wealth among the various groups of society.

Want of sympathy prevents great divisions of human beings—such as different races or nations, hereditary castes, classes, and adherents of different religions—from intermarrying, even where personal affection plays no part in the choice of the mate. Thus many uncivilized peoples carefully avoid marrying out of their own tribe, the chief reason being, I think, the strong dislike which distinct savage and barbarous nations have for one another. Mr. McLennan called such peoples "endogamous," in contradistinction to peoples who are "exogamous," i.e., do not marry within their own tribe or clan. But this classification has caused much confusion, "exogamy" and "endogamy" not being real contraries. For there exists among every people an outer circle—to use Sir Henry Maine's very appropriate terminology—out of which marriage is either prohibited, or generally avoided; as well as an inner circle, including the clan, or, at any rate, the very nearest kinsfolk, within which no marriage is allowed.

Like the inner circle, the outer circle varies considerably in extent. Rengger states that many of the Indian races of Paraguay are too proud to intermarry with any race of a different colour, or even of a different stock.[2112] In Guiana and elsewhere, Indians do not readily intermix with negroes, whom they despise.[2113] Among the Isthmians of Central America, "marriage was not contracted with strangers or people speaking a different language";[2114] and in San Salvador, according to Palacio, a man who had intercourse with a foreign woman was killed.[2115] Mr. Powers informs us of a Californian tribe who would put to death a woman for committing adultery with or marrying a white man;[2116] and among the Barolongs, a Bechuana tribe, the same punishment was formerly inflicted on any one who had intercourse with a

European.[2117] Among the Kabyles, "le mariage avec une négresse n'est pas défendu en principe; mais la famille s'opposerait à une pareille union."[2118]

The Chinese, according to Mr. Jamieson, refuse marriage with the surrounding barbarous tribes, with whom, as a rule, they have no dealings, either friendly or hostile.[2119] The black and fairer people of the Philippines have from time immemorial dwelt in the same country without producing an intermediate race;[2120] the Bugis of Perak have kept themselves very distinct from the people among whom they live;[2121] and, in Sumatra, it is a rare thing for a Malay man to marry a Kubu woman.[2122] The Munda Kols severely punish a girl who is seduced by a Hindu, whereas intercourse with a man of their own people is regarded by most of them as quite a matter of course.[2123] And, in Ceylon, even those Veddahs who live in settlements, although they have long associated with their neighbours, the Sinhalese, have not yet intermarried with them.[2124]

Count de Gobineau remarks that not even a common religion and country can extinguish the hereditary aversion of the Arab to the Turk, of the Kurd to the Nestorian of Syria, of the Magyar to the Slav.[2125] Indeed, so strong, among the Arabs, is the instinct of ethnical isolation, that, as a traveller relates, at Djidda, where sexual morality is held in little respect, a Bedouin woman may yield herself for money to a Turk or European, but would think herself for ever dishonoured if she were joined to him in lawful wedlock.[2126]

Marriages between Lapps and Swedes very rarely occur, being looked upon as dishonourable by both peoples. They are equally uncommon between Lapps and Norwegians, and it hardly ever happens that a Lapp marries a Russian.[2127] At various times, Spaniards in Central America, Englishmen in Mauritius, Frenchmen in Réunion and the Antilles, and Danish traders in Greenland, have been prevented by law from marrying natives.[2128] Among the Hebrews, during the early days of their power and dominion, marriages with aliens seem to have been rare exceptions.[2129] The Romans were prohibited from marrying barbarians; Valentinian inflicted the penalty of death for such unions.[2130] Tacitus was of opinion that the Germans refused marriage with foreign nations,[2131] and the like seems to have been the case with the Slavs.[2132]

Among several peoples marriage very seldom, or never, takes place even outside the territory of the tribe or community. This is the case with many tribes of Guatemala,[2133] the Ahts,[2134] Navajos,[2135] and Pueblos.[2136] In the village of Schawill, in Southern Mexico, according to Mr. Stephens, "every member must marry within the rancho, and no such thing as a marriage out of it had ever occurred. They said it was impossible, it could not happen.... This was a thing so little apprehended that the punishment for it was not defined in their penal code; but being questioned, after some consultations, they said that the offender, whether man or woman, would be expelled."[2137]

Speaking of the Chaymas in New Andalusia, among whom marriages are contracted between the inhabitants of the same hamlet only,[2138] v. Humboldt says, "Savage nations are subdivided into an infinity of tribes, which, bearing a cruel hatred toward each other, form no intermarriages, even when their languages spring from the same root, and when only a small arm of a river, or a group of hills, separates their habitations."[2139] This holds good especially for several of the Brazilian tribes.[2140] In ancient Peru it was not lawful for the natives of one province or village to marry those of another.[2141]

In Equatorial Africa, according to Mr. Du Chaillu, the non-cannibal tribes do not intermarry with their cannibal neighbours, whose peculiar practices are held in abhorrence.[2142] Barrow states that the Hottentots always marry within their own kraal;[2143] and a Bushman woman would regard intercourse with any one out of the tribe, no matter how superior, as a degradation.[2144] Among the Hovas, the different tribes, clans, and even families as a rule do not intermarry, as Mr. Sibree says, "in order to keep landed property together, as well as from a strong clannish feeling."[2145] Mr. Swann informs me that, among the Waguha, of West Tanganyika, marriages out of the tribe are avoided, though not prohibited; and Archdeacon Hodgson writes that this is very often the case in Eastern Central Africa.

In India there are several instances of tribe-or clan-endogamy.[2146] The Tipperahs and Abors, for example, view with abhorrence the idea of their girls marrying out of their own clan,[2147] and Colonel Dalton was gravely assured that, "when one of the daughters of Pádam so demeans herself, the sun and the moon refuse to shine, and there is such a strife in the elements that all labour is necessarily suspended, till by sacrifice and oblation the stain is washed away."[2148] The Ainos not only despise the Japanese as much as the Japanese despise them, but are not very sociable even among themselves: one village does not like to marry into another.[2149] The same may be said of the Sermatta Islanders;[2150] whilst the Minahassers,[2151] the Dyaks,[2152] and the natives of New Guinea[2153] and New Britain,[2154] as a general rule, marry within their own tribe. Among the New Zealanders, according to Mr. Yate, "great opposition is made to any one taking, except for some political purpose, a wife from another tribe," and marriage generally takes place between relatives.[2155] In Australia there are groups of tribes, so-called associated tribes, generally speaking the same dialect, who are in the habit of uniting for common defence and other purposes. Marriage between the members of associated tribes is the rule,[2156] but many tribes are mostly endogamous. [2157]

In ancient Wales, according to Mr. Lewis, marriage was to be within the clan. [2158] At Athens, at least in its later history, if an alien lived as a husband with an Athenian woman, he was liable to be sold as a slave, and to have his property

confiscated; and, if an Athenian lived with a foreign woman, she was liable to like consequences, and he to a penalty of a thousand drachmæ.[2159] Marriage with foreign women was unlawful for all Spartans, and was made unlawful for the Heraclidæ by a separate rhetra.[2160] At Rome, any marriage of a citizen with a woman who was not herself a Roman citizen, or did not belong to a community possessing the privilege of connubium with Rome—which was always expressly conferred—was invalid; no legitimate children could be born of such a marriage.[2161] In early times it was even customary for a father to seek, for his daughter, a husband from his own gens, marriage out of it being mentioned as an extraordinary thing.[2162]

Prohibitions of intermarriage do not refer only to persons belonging to different nations or tribes; very often they relate also to persons belonging to different classes or castes of the same community. Yet in many, perhaps most, cases these prohibitions originally coincided. Castes are frequently, if not always, the consequences of foreign conquest and subjugation, the conquerors becoming the nobility, and the subjugated the commonalty or slaves. Thus, before the Norman conquest, the English aristocracy was Saxon; after it, Norman. The descendants of the German conquerors of Gaul were, for a thousand years, the dominant race in France; and until the fifteenth century all the higher nobility were of Frankish or Burgundian origin.[2163] The Sanskrit word for caste is "varna," i.e., colour, which shows how the distinction of high and low caste arose in India. That country was inhabited by dark races before the fairer Aryans took possession of it; and the bitter contempt of the Aryans for foreign tribes, their domineering spirit, and their strong antipathies of race and of religion, found vent in the pride of class and caste distinctions. Even to this day a careful observer can distinguish the descendants of conquerors and conquered. "No sojourner in India," says Dr. Stevenson, "can have paid any attention to the physiognomy of the higher and lower orders of natives without being struck with the remarkable difference that exists in the shape of the head, the build of the body, and the colour of the skin between the higher and the lower castes into which the Hindu population is divided."[2164] This explanation of the origin of Indian castes is supported by the fact that it is in some of the latest Vedic hymns that we find the earliest references to those four classes—the Brahmans, the Kshatriyas, the Vaiśyas, and the Śudras—to which all the later castes have been traced back.[2165] The Incas of Peru were known as a conquering race; and the ancient Mexicans represented the culture-heroes of the Toltecs as white.[2166] Among the Beni-Amer, the nobles are mostly light coloured, while the commoners are blackish.[2167] The Polynesian nobility have a comparatively fair complexion,[2168] and seem to be the descendants of a conquering or superior race. "The chiefs, and persons of hereditary rank and influence in the islands," says Ellis, "are, almost without exception, as much

superior to the peasantry or common people, in stateliness, dignified deportment, and physical strength, as they are in rank and circumstances; although they are not elected to their station on account of their personal endowments, but derive their rank and elevation from their ancestry. This is the case with most of the groups of the Pacific, but particularly so in Tahiti and the adjacent islands."[2169] Among the Shans, according to Dr. Anderson, "the majority of the higher classes seemed to be distinguished from the common people by more elongated oval faces and a decidedly Tartar type of countenance."[2170] In America, at the time of the earliest European immigration, a kind of caste distinction arose, white blood being synonymous with nobility; and, in La Plata, Spaniards, Mestizoes, and Indians were separated from each other even in church.[2171]

As descendants of different ancestors, members of noble families keep up their separate position, and remain almost as foreigners to the people among whom they live. Speculating on the want of sympathy among the various classes in societies in which such distinctions are recognized, Count de Tocqueville says, "Each caste has its own opinions, feelings, rights, manners, and modes of living. Thus the men of whom each caste is composed do not resemble the mass of their fellow-citizens; they do not think or feel in the same manner, and they scarcely believe that they belong to the same human race.... When the chroniclers of the Middle Ages, who all belonged to the aristocracy by birth or education, relate the tragical end of a noble, their grief flows apace; whereas they tell you at a breath, and without wincing, of massacres and tortures inflicted on the common sort of people. Not that these writers felt habitual hatred or systematic disdain for the people; war between the several classes of the community was not yet declared. They were impelled by an instinct rather than by a passion; as they had formed no clear notion of a poor man's sufferings, they cared but little for his fate." Then, in proof of this, the writer gives extracts from Madame de Sévigné's letters, displaying a cruel jocularity which, in our day, "the harshest man writing to the most insensible person of his acquaintance" would not venture wantonly to indulge in; and yet Madame de Sévigné was not selfish or cruel: she was passionately attached to her children, and ever ready to sympathize with her friends, and she treated her servants and vassals with kindness and indulgence.[2172]

It is to this want of affection and sympathy between the different layers of society, together with the vain desire of keeping the blood pure, that the prohibition of marriage out of the class, or the general avoidance of such marriages, owes its origin. Among the Ahts, for instance, who take great pride in honourable birth, a patrician loses caste unless he marries a woman of corresponding rank, in his own or another tribe.[2173] Among the Isthmians of Central America, the lords married only the daughters of noble blood; and,

in Guatemala, marriage with a slave reduced the freeman to a slave's condition.[2174] The tribes of Brazil also consider such alliances highly disgraceful.[2175]

Nowhere are the different orders of society more distinctly separated from each other than in the South Sea Islands. In the Marianne group, it was the common belief that only the nobles were endowed with an immortal soul; and a nobleman who married a girl of the people was punished with death.[2176] In Polynesia also, the commoners were looked upon by the nobility almost as a different species of beings.[2177] Hence in the higher ranks marriage was concluded only between persons of corresponding position; and if, in Tahiti, a woman of condition chose an inferior person as a husband, the children he had by her were killed.[2178] In the Indian Archipelago, marriages between persons of different rank are, as a rule, disapproved, and in some places they are prohibited.[2179] Among the Hovas of Madagascar, the three great divisions —the nobles, the commoners, and the slaves,—with few exceptions, cannot intermarry; neither do the three different classes of slaves marry each other.[2180] Almost the same rule holds good for the different orders of the Beni-Amer and Marea;[2181] whilst, among the Tedâ, the smiths form an hereditary and utterly despised caste by themselves, being obliged to marry solely with members of their own caste.[2182] By several African peoples, however, slaves and freemen are allowed to intermarry.[2183]

The Aenezes of Arabia never intermarry with the "szona," handicraftsmen or artizans; nor do they ever marry their daughters to Fellahs, or to inhabitants of towns.[2184] In India, intermarriage between different castes was in Manu's time permissible, but is now altogether prohibited. Of the original four castes, the Brahmans alone have retained their purity to any extent, but there is an almost endless number of trade-castes, resulting chiefly from associations of men engaged in the same occupation.[2185] Moreover, as Sir Monier Williams remarks, "we find castes within castes, so that even the Brahmans are broken up and divided into numerous races, which again are subdivided into numerous tribes, families, or sub-castes ... which do not intermarry."[2186] Class-endogamy prevails in Ceylon,[2187] Siam,[2188] and Corea;[2189] and in the Chittagong district, when a slave marries, the person chosen must be a slave.[2190] In China, play-actors, policemen, boatmen, and slaves are not allowed to marry women of any other class than that to which they respectively belong.[2191] And in Japan, before the year 1868, when a new order of things was introduced, the different classes of nobles were not permitted to intermarry with each other or with common people.[2192]

In Europe there have been similar prohibitions. In Rome, plebeians and patricians could not intermarry till the year 455 B.C., nor were marriages allowed between patricians and clients. Cicero himself disapproved of intermarriages of ingenui and freedmen, and, though such alliances were generally

permitted under the Emperors, yet a senator could not marry a freed-woman, nor a patroness her liberated slave. Between freemen and slaves contubernium could take place, but not marriage.[2193] Among the Teutonic peoples, in ancient times, any freeman who had intercourse with a slave was punished with slavery, and a woman guilty of such a crime might be killed. In the Scandinavian countries, slavery came to an end at a comparatively early period, but in Germany it was succeeded by serfdom; and equality of birth continued to be regarded as an indispensable condition of lawful marriage. As late as the thirteenth century any German woman who had intercourse with a serf lost her liberty.[2194] From the class of freemen, both in Germany and in Scandinavia, the nobility gradually emerged as a distinct order, and marriages between persons of noble birth and persons who, although free, were not noble, came to be considered misalliances.[2195] In Sweden, in the seventeenth century, such marriages were punished.[2196]

Modern civilization tends to pull down the barriers which separate the various classes of society, just as it tends to diminish the differences in interests, habits, sentiments, and knowledge. Birth no longer determines to the same extent as before a man's social position, and nobility has become a shadow of what it was. Thus there survive but few traces of the former class-endogamy. According to German Civil Law, the marriage of a man belonging to the high nobility with a woman of inferior birth is still regarded as a disparagium; and the woman is not entitled to the rank of her husband, nor is the full right of inheritance possessed by her or by her children.[2197] Although in no way prevented by law, marriages out of the class are generally avoided by custom. "The outer or endogamous limit, within which a man or woman must marry," says Sir Henry Maine, "has been mostly taken under the shelter of fashion or prejudice. It is but faintly traced in England, though not wholly obscured. It is (or perhaps was) rather more distinctly marked in the United States, through prejudices against the blending of white and coloured blood. But in Germany certain hereditary dignities are still forfeited by a marriage beyond the forbidden limits; and in France, in spite of all formal institutions, marriages between a person belonging to the noblesse and a person belonging to the bourgeoisie (distinguished roughly from one another by the particle 'de') are wonderfully rare, though they are not unknown.[2198]

Different nations, like the different classes of society, have been gradually drawing nearer to each other. National prejudices have diminished, and international sympathy has increased. During the Middle Ages a foreigner was called in Germany "ein Elender," because he stood outside the law;[2199] today he enjoys the protection of the law in all civilized countries, and is not as a foreigner an object of prejudice. This widening of sympathy, and improved

means of communication, have of course made intermarriages between the several nations much more common than they used to be.

Religion, finally, has formed a great bar to intermarriage. In British India, the descendants of all the Mohammedan races—Arab, Iranian, Turanian, Mongol, and Hindu converts—intermarry, but there are few unions between Christian men and Mohammedan women.[2200] Indeed, according to Mr. Lane, such a marriage is not permitted under any circumstances, and cannot take place otherwise than by force. On the other hand, it is held lawful for a Mohammedan to marry a Christian or a Jewish woman, if induced to do so by excessive love of her, or if he cannot obtain a wife of his own religion. In this case, however, the offspring must follow the father's faith, and the wife does not inherit when the husband dies.[2201] Marriage with a heathen woman is never permitted to a Mussulman.[2202]

It is mainly religion that has kept the Jews a relatively pure race. "The Jew," says Dr. Neubauer, "has no preference for, or any aversion from, one race or another, provided he can marry a woman of his religion, and vice versa."[2203] Indeed, the Jewish law does not recognize marriage with a person of another belief,[2204] though there are instances of such marriages in the early days of Israel.[2205] During the Middle Ages, marriage between Jews and Christians was prohibited by the Christians also, and universally avoided.[2206] "The folk-lore of Europe," Mr. Jacobs remarks, "regarded the Jews as something infra-human, and it would require an almost impossible amount of large toleration for a Christian maiden of the Middle Ages to regard union with a Jew as anything other than unnatural." Mr. Jacobs thinks it may be doubted whether even at the present day there is one mixed marriage to five hundred pure Jewish marriages.[2207]

St. Paul indicates that a Christian was not allowed to marry a heathen, [2208] and Tertullian calls such an alliance fornication.[2209] In early times, the Church often encouraged marriages of this sort as a means of propagating Christianity, and it was only when its success was beyond doubt that it actually prohibited them.[2210] The Council of Elvira expressly forbade Christian parents to give their daughters in marriage to heathens, ordering that those who did so should be excommunicated.[2211]

Even the adherents of different Christian confessions have been prohibited from intermarrying. In the Roman Church the prohibition of marriage with heathens and Jews (impedimentum cultus disparitatis) was soon followed by the prohibition of "mixed marriages" (impedimentum mixtae religionis); and the Protestants also originally forbade such unions. The Greek Church, on the other hand, made in this respect a distinction between schismatici, or those who dissent from the Church in non-essential points only, and haeretici, or those who dissent from its fundamental doctrines.[2212] Mixed marriages are

not now contrary to the civil law either in Roman Catholic or in Protestant countries; but in countries belonging to the Orthodox Greek Church the ecclesiastical restrictions have been adopted by the State. In Russia, Greece, and Servia, Roman Catholics and Protestants are regarded as schismatici but in the Turkish countries as haeretici.[2213] It is noteworthy that, in countries which are partly Roman Catholic, partly Protestant, mixed marriages form only a comparatively small percentage of the whole number of marriages.[2214]

In no respect has modern civilization acted more beneficently than as a promoter of religious toleration. In our time difference of faith discourages sympathy to a much less extent than it did in former ages. Hence the number of mixed marriages everywhere tends to increase. In Bavaria, for instance, they amounted in 1835-1850 to 2·8 per cent. of the whole number of marriages, in 1850-1860 to 3·6 per cent., in 1860-1870 to 4·4 per cent., in 1870-1875 to 5·6 per cent., and in 1876-1877 to 6·6 per cent.[2215]

While, therefore, civilization has narrowed the inner limit, within which a man or woman must not marry, it has widened the outer limit within which a man or woman may marry, and generally marries. The latter of these processes has been one of vast importance in man's history. Originating in race-or caste-pride, or in religious intolerance, the endogamous rules have, in their turn, helped to keep up and strengthen these feelings. Law is by nature conservative, maintaining sentiments developed under past conditions. It is only by slow degrees that the ideas of a new time become strong enough to release mankind from ancient prejudices.

* * * * *

We have hitherto dealt only with the poetry of sexual selection—love; now something is to be said of its prose—dry calculation. And we may conveniently begin with man's appreciation of woman's fertility, as this has some of the characteristics of an instinct. Desire for offspring is universal in mankind. Abortion, indeed, is practised now and then, and infanticide frequently takes place among many savage peoples; but these facts do not disprove the general rule.

Speaking of the Crees, Chippewyans, and other Indians on the eastern side of the Rocky Mountains, Harmon says that "all Indians are very desirous of having a numerous offspring."[2216] Among the Ingaliks, "children are anxiously desired, even when women have no husbands."[2217] Among the Mayas, disappointed couples prayed earnestly, and brought many offerings to propitiate the god whose anger was supposed to have deferred their hopes.[2218] "Be numerous in offspring and descendants," is a frequent marriage benediction or salutation in Madagascar; for to die without posterity is looked upon as a great calamity, and is termed "dead as regards the eye."[2219] A negro considers childlessness the greatest disaster which can happen to him;[2220]

Bosman once asked one of the king's captains in Fida how many children he had, and he answered, sighing, that he was so unhappy as not to have many—he could not pretend to have had above seventy, including those who were dead. Among the Waganda and Wanyoro, great rejoicings take place in the case of the birth of twins.[2221] The Shaman heathens of Siberia regarded an abundance of children and cattle as the most essential condition of a man's happiness. [2222] "Honest people have many children," a Japanese proverb says;[2223] the Chinese regard a large family of sons as a mark of the divine favour;[2224] and to become the father of a son is described in Indian poems as the greatest happiness which may fall to the share of a mortal.[2225] In Persia, childlessness is considered the most horrible calamity.[2226] One of the chief blessings that Moses in the name of God promised the Israelites was a numerous progeny; and the ancient Romans regarded the procreation of legitimate children as the real end of marriage.[2227] "He who has no children, has no happiness either," the South Slavonians say;[2228] and German folk-lore compares a marriage without offspring with a world without sun.[2229]

A woman therefore is valued not only as a wife but as a mother. Nowhere has greater stress been laid on this idea than in ancient Lacedaemon. A husband, if he considered that the unfruitfulness of the marriage was owing to himself, gave his matrimonial rights to a younger man, whose child then belonged to the husband's family; and to the wives of men who, for example, fell in battle before having children, other men, probably slaves, were assigned, that there might be heirs and successors to the deceased husband.[2230] Among many peoples the respect in which a woman is held is proportionate to her fecundity,[2231] and a barren wife is frequently despised as an unnatural and useless being. [2232] In Angola, according to Livingstone, in the native dances, "when any one may wish to deride another, in the accompanying song a line is introduced, 'So and so has no children, and never will get any.'" The offended woman feels the insult so keenly that it is not uncommon for her to rush away and commit suicide.[2233] Among the Creeks, a man always calls his wife his son's mother; [2234] and, among the Todas, in addressing a man with the casual question, "Are you married?" the ordinary way of putting it would be to say, "Is there a son?"[2235]

It is obvious, then, that fecundity must be one of the qualities which a man most eagerly requires from his bride. Mr. Reade tells us that, in certain parts of Africa, especially in malarious localities, where women are so frequently sterile, no one cares to marry a girl till she has borne a child; and among the Votyaks, according to Dr. Buch, a girl gets married sooner if she is a mother. [2236]

We have seen several instances of husband and wife not living together as married people before the birth of a child. Among the Creeks, marriages were

contracted for a year, but if they proved fruitful, they were, as a rule, renewed.[2237] Again, with regard to an order of the Essenes, Josephus states that, considering succession to be the principal part of human life, they tried their spouses for three years, and then married them only if there was a prospect of the union being fruitful.[2238] Among many peoples it is the practice for a man to repudiate a barren wife.

The desire for offspring, with its consequence, the appreciation of female fecundity, is due to various causes. First, there is in man an instinct for reproduction. Mr. Marshall remarks, "Of this desire for progeny I have seen many examples amongst the Todas, so strongly marked, but to all appearances apart from the sense of personal ambition, and separate from any demands of religion or requirements for support in old age, as to give the impression that it was the primitive faculty of Philoprogenitiveness, acting so insensibly, naturally, as to have the character more of a plain instinct, than of an intelligent human feeling."[2239] With this instinct a feeling of parental pride is associated. "Children," says Hobbes, "are a man's power and his honour."[2240]

Among the Hebrews and the ancient Aryan nations, the desire for offspring, particularly sons, had its root chiefly in religious belief, being a natural outcome of the idea that the spirits of the dead were made happy by homage received at the hands of their male posterity. The same is the case with the Chinese[2241] and Japanese,[2242] and perhaps, to a certain extent, with some peoples at a lower stage of civilization. The savage believes that the life which goes on after death, differs in nothing from this life, that wants and pursuits remain as before, that consequently the dead man's spirit eats and drinks, and needs fire for warmth and cooking. It is, of course, his surviving descendants who have to see that he is well provided for in these respects. Hence the offerings to deceased ancestors for various periods after death and the feasts for the dead.[2243] Among the Thlinkets according to Holmberg, it sometimes happens that a man spends his whole fortune as well as his wife's marriage portion on such a feast, and has to live as a poor man for the rest of his life.[2244]

But no doubt children are most eagerly longed for by savage men because they are of use to him in his lifetime. They are easily supported when young, and in times of want they may be left to die or be sold. When a few years old, the sons become able to hunt, fish, and paddle, and later on they are their father's companions in war. The daughters help their mother to provide food, and, when grown up, they are lucrative objects of trade. Finally, when old, the parents would often suffer want had they not their children to support them.[2245] Hence, in a savage condition of life, children are the chief wealth of the family. And the same is the case at somewhat higher stages of social development. Mr. Lane remarks that, in Egypt, "at the age of five or six years, the children become of use to tend the flocks and herds; and at a more advanced

age, until they marry, they assist their fathers in the operations of agriculture. The poor in Egypt have often to depend entirely upon their sons for support in their old age; but many parents are deprived of these aids, and consequently reduced to beggary, or almost to starvation."[2246] To a certain extent, this holds good for the uneducated classes in Europe also.

With the progress of civilization the desire for offspring has become less intense. The religious motive has of course died out in the Christian world, and, in proportion as social life becomes more complicated, and a professional education becomes more necessary for success in the struggle for existence, children, at least in "the upper classes" and among towns-people, put their parents to expense instead of being a source of wealth. A childless couple may indeed, deplore the absence of children; but a woman is no longer held in respect only, or principally, as a mother; and marriage, according to modern ideas, is something more than an institution for the procreation of legitimate offspring. Yet it is remarkable that, in Switzerland, although barrenness is no sufficient reason for a man to repudiate his wife, two-fifths of the total number of divorces take place between married people who have no children whilst the sterile marriages amount only to one-fifth of the number of marriages.[2247]

A wife is of use to her husband not merely because she gives him labourers, but also because she herself is a labourer. Drying and preparing fish and meat, lighting and attending to the fire, transporting baggage, picking berries, dressing hides and making clothes, cooking food and taking care of the children —these are, in the savage state, the chief pursuits of a wife. Among agricultural and cattle-farming peoples, she has besides, to cultivate the soil and to tend the cattle. A wife, therefore, is chosen partly because of her ability to perform such duties. Thus, among the Greenlanders, cleverness in sewing and skill in the management of household affairs are the most attractive qualities of a woman.[2248] Among other Eskimo tribes and in Tierra del Fuego, middle-aged men will connect themselves with old women who are best able to take care of their common comforts.[2249] The Inland Columbians, according to Mr. Bancroft, make "capacity for work the standard of female excellence;"[2250] and, among the Turkomans, young widows fetch double the price of spinsters, because they are more accustomed to hard labour, and more experienced in household concerns.[2251]

A husband's function is to protect his family from enemies and to prevent them falling into distress. A woman, as we have already seen, even instinctively prefers a courageous and strong man to one who is cowardly and feeble. But reflection also makes her choose a man who is well able to defend her and to provide food. Among the Comanches, says Mr. Parker, "young girls are not averse to marry very old men, particularly if they are chiefs, as they are always sure of something to eat."[2252]

At more advanced stages of civilization, money and inherited property often take the place of skill, strength, and working ability. Thus, wife-purchase and husband-purchase, still persist in modern society, though in disguised forms.

Chapter XVII — Marriage By Capture and Marriage By Purchase

The practice of capturing wives prevails in various parts of the world, and traces of it are met with in the marriage ceremonies of several peoples, indicating that it occurred much more frequently in past ages.

Speaking of the inhabitants of Unimak, Coxe says that they invaded the other Aleutian islands, and carried off women—the chief object of their incursions.[2253] Among the Ahts, a man occasionally steals a wife from the women of his own tribe;[2254] whilst the Bonaks of California usually take women in battle from other tribes, and the Macas Indians of Ecuador acquire wives by purchase, if the woman belongs to the same tribe, but otherwise by force.[2255] All the Carib tribes used to capture women from different peoples and tribes, so that the men and women nowhere spoke the same tongue;[2256] and v. Martius states that, in Brazil, "some tribes habitually steal their neighbours' daughters."[2257]

Among the Mosquito Indians, after the wedding is all arranged and the presents paid, the bridegroom seizes his bride and carries her off, followed by her female relatives, who pretend to try to rescue her.[2258] The Araucanians considered the carrying off of the bride by pretended violence an essential prerequisite to the nuptials, and, according to Mr. E. R. Smith, it is even "a point of honour with the bride to resist and struggle, however willing she may be."[2259] The Uaupés "have no particular ceremony at their marriages, except that of always carrying away the girl by force, or making a show of doing so, even when she and her parents are quite willing."[2260] Almost the same is said of the Fuegians, though among them the capture is sometimes more than a ceremony.[2261]

Andersson remarks that, among the Bushmans, woman is only too often belli teterrima causa.[2262] Speaking of the Bechuanas, Mr. Conder says, "As regards wedding ceremonies, there is one of casting an arrow into the hut by the bridegroom, which is worthy of notice as symbolic."[2263] Among the Wakamba, marriage is an affair of purchase, but the bridegroom "must then carry off the bride by force or stratagem."[2264] The Wa-taïta and Wa-chaga of Eastern Equatorial Africa have also a marriage ceremony of capture;[2265] and the like is the case with the Inland Negroes mentioned by Lord Kames,[2266] and the Abyssinians.[2267] Among the tribes of Eastern Central Africa

described by Mr. Macdonald, marriage by capture occurs not as a symbol only.[2268]

According to a common belief, the Australian method of obtaining wives is capture in its most brutal form.[2269] But contrary to Mr. Howitt,[2270] Mr. Curr informs us that only on rare occasions is a wife captured from another tribe, and carried off.[2271] The possession of a stolen woman would lead to constant attacks, hence the tribes set themselves very generally against the practice.[2272] Even elopements, according to Mr. Mathew, are now usually more fictitious than real;[2273] but there are strong reasons for believing that formerly, when the continent was only partially occupied, elopements from within the tribe frequently occurred.[2274]

In Tasmania the capture of women for wives from hostile and alien tribes was generally prevalent.[2275] Among the Maoris, the ancient and most general way of obtaining a wife was for the man to get together a party of his friends and carry off the woman by force, apparent or actual.[2276] A similar practice occurs on the larger islands of the Fiji Group,[2277] in Samoa,[2278] Tukopia,[2279] New Guinea,[2280] and extremely frequently in the Indian Archipelago,[2281] and among the wild tribes of India.[2282] Among the Arabs,[2283] Tartars,[2284] and other peoples of Central Asia, as also in European Russia,[2285] traces of capture occur in the marriage ceremony, whilst the Tangutans,[2286] Samoyedes,[2287] Votyaks,[2288] &c.,[2289] are still in the habit of stealing wives, or elope with their sweethearts, if the bridegroom cannot afford to pay the fixed purchase-sum. Among the Laplanders,[2290] Esthonians,[2291] and Finns,[2292] marriage by capture occurred in former days, and in some parts of Finland symbolical traces of it in the marriage ceremony have been found in modern times.[2293]

The same practice prevailed among the peoples of the Aryan race. According to the 'Laws of Manu,' one of the eight legal forms of the marriage ceremony was the Râkshasa rite, i.e., "the forcible abduction of a maiden from her home, while she cries out and weeps, after her kinsmen have been slain or wounded, and their houses broken open." This rite was permitted for the Kshatriyas by the sacred tradition.[2294] According to Dionysius of Halicarnassus, marriage by capture was at one time customary throughout ancient Greece;[2295] and, as Plutarch informs us, it was retained by the Spartans as an important symbol in the marriage ceremony.[2296] Even now, according to Sakellarios, capture of wives occasionally occurs in Greece.[2297] Among the Romans, the bride fled to the lap of her mother, and was carried off by force by the bridegroom and his friends.[2298] In the historical age this was a ceremony only, but at an earlier time the capture seems to have been a reality. "Les premiers Romains," says M. Ortolan, "d'après leurs traditions héroïques, ont été obligés de recourir à la surprise et à la force pour enlever leurs premières femmes."[2299] The ancient

Teutons frequently captured women for wives.[2300] Speaking of the Scandinavian nations, Olaus Magnus says that they were continually at war with one another, "propter raptas virgines aut arripiendas."[2301] Among the Welsh, on the morning of the wedding-day, the bridegroom, accompanied by his friends on horseback, carried off the bride.[2302] The Slavs in early times, according to Nestor, practised marriage by capture;[2303] and in the marriage ceremonies of the Russians and other Slavonian nations, reminiscences of this custom still survive.[2304] Indeed, among the South Slavonians, capture de facto was in full force no longer ago than the beginning of the present century.[2305] According to Olaus Magnus, it prevailed in Muscovy, Lithuania, and Livonia;[2306] and, according to Seignior de Gaya, the symbol of it occurred in his time in Poland, Prussia, and Samogithia.[2307]

The list of peoples among whom marriage by capture occurs, either as a reality or as a symbol, might easily be enlarged.[2308] There are peoples, however, who seem to have nothing of the kind. As regards the Chinese, Mr. Jamieson says, "Of the capture of wives there is, as far as I am aware, historically no trace, nor is the form to be found among any of the ceremonies of marriage with which I am acquainted."[2309] Moreover, it is doubtful whether the ceremonies given as instances of symbolical capture are, in every case, survivals of capture de facto, in the real sense of the term, that is, taking the woman against not only her own will, but that of her parents. Mr. Spencer suggests that one origin of the form of capture may be the resistance of the pursued woman, due to coyness, partly real and partly assumed;[2310] and, though this suggestion has been much attacked, it can scarcely be disproved. On the East Coast of Greenland, according to Dr. Nansen, the only method of contracting a marriage is still for the man to go to the girl's tent, catch her by the hair or anything else which offers a hold, and drag her off to his dwelling without further ado. Violent scenes are often the result, as single women always affect the utmost bashfulness and aversion to any proposal of marriage, lest they should lose their reputation for modesty. But "the woman's relations meanwhile stand quietly looking on, as the struggle is considered a purely private affair, and the natural desire of the Greenlander to stand on a good footing with his neighbour prevents him from attempting any interference with another's business."[2311] Again, according to Mr. Abercromby, marriage with capture—by which he understands capture of a bride, associated with some other form of marriage, such as that by purchase—may be regarded rather as a result of the innate universal desire to display courage, than as a survival of a still older practice of taking women captive in time of war.[2312]

Mr. McLennan thinks that marriage by capture arose from the rule of exogamy. But there are peoples—the Maoris, Ahts, &c.—among whom this practice occurs or has remained as a symbol, who are, nevertheless, what Mr.

McLennan would call endogamous. We are not entitled to say that, "wherever exogamy can be found, we may confidently expect to find, after due investigation, at least traces of a system of capture."[2313] On reckoning up the peoples among whom the combination of capture and exogamy is met with, Dr. Tylor observes that the number, "though enough to show that they coexist freely, falls short of what would justify the inference that they are cause and effect."[2314]

It seems to me extremely probable that the practice of capturing women for wives is due chiefly to the aversion to close intermarriage—existing, as we have seen, among endogamous tribes also,—together with the difficulty a savage man has in procuring a wife in a friendly manner, without giving compensation for the loss he inflicts on her father. Being something quite different from the wrestling for wives, already mentioned as the most primitive method of courtship, marriage by capture flourished at that stage of social growth when family ties had become stronger, and man lived in small groups of nearly related persons, but when the idea of barter had scarcely occurred to his mind.[2315] From the universality of the horror of incest, and from the fact that primitive hordes were in a chronic state of warfare with one another, the general prevalence of this custom may be easily explained. But as it is impossible to believe that there ever was a time when friendly negotiations between families who could intermarry were altogether unknown, we cannot suppose that capture was at any period the exclusive form of contracting marriage, although it may have been the normal form. In Australia, where marriage by capture takes place between members of hostile communities only,[2316] we are aware of no tribe —exogamous or endogamous—living in a state of absolute isolation. On the contrary, every tribe entertains constant relations, for the most part amicable, with one, two, or more tribes; and marriages between their members are the rule.[2317] Moreover, the custom, prevalent among many savage tribes, of a husband taking up his abode in his wife's family seems to have arisen very early in man's history. And Dr. Tylor's schedules show that there are in different parts of the world even twelve or thirteen well-marked exogamous peoples among whom this habit occurs.[2318]

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As appears from the instances quoted, the practice of capturing wives is, in the main, a thing of the past. Among most existing uncivilized peoples a man has, in some way or other, to give compensation for his bride.[2319] Marriage by capture has been succeeded by marriage by purchase.

The simplest way of purchasing a wife is no doubt to give a kinswoman in exchange for her. "The Australian male," says Mr. Curr, "almost invariably obtains his wife or wives, either as a survivor of a married brother, or in exchange for his sisters, or later on in life for his daughters."[2320] A similar exchange is sometimes effected in Sumatra.[2321]

Much more common is the custom of obtaining a wife by services rendered to her father. The man goes to live with the family of the girl for a certain time, during which he works as a servant. This practice, with which Hebrew tradition has familiarized us, is widely diffused among the uncivilized races of America,[2322] Africa,[2323] Asia,[2324] and the Indian Archipelago.[2325] Often it is only those men who are too poor to pay cash that serve in the father-in-law's house till they have given an equivalent in labour; but sometimes not even money can save the bridegroom from this sort of servitude.[2326] In some cases he has to serve his time before he is allowed to marry the girl; in others he gets her in advance. Again, among several peoples, already mentioned, the man goes over to the woman's family or tribe to live there for ever; but Dr. Starcke suggests that this custom has a different origin from the other, being an expression of the strong clan sentiment, and not a question of gain.[2327]

According to Mr. Spencer, the obtaining of wives by services rendered, instead of by property paid, constitutes a higher form of marriage, and is developed along with the industrial type of society. "This modification," he says, "practicable with difficulty among rude predatory tribes becomes more practicable as there arise established industries affording spheres in which services may be rendered."[2328] But it should be noticed that, even at a very low stage of civilization, a man may help his father-in-law in fishing and hunting, whilst industrial work promotes accumulation of property, and consequently makes it easier for the man to acquire his wife by real purchase. We find also the practice of serving for wives prevalent among such rude races as the Fuegians and the Bushmans; and, in the 'Eyrbyggja Saga,' Vîgstyr says to the berserk Halli, who asked for the hand of his daughter Âsdî, "As you are a poor man, I shall do as the ancients did and let you deserve your marriage by hard work."[2329] It seems then, almost probable that marriage by services is a more archaic form than marriage by purchase; but generally they occur simultaneously.

The most common compensation for a bride is property paid to her owner. Her price varies indefinitely. A pretty, healthy, and able-bodied girl commands of course a better price than one who is ugly and weak;[2330] a girl of rank, a better price than one who is mean and poor;[2331] a virgin, generally a better than a widow or a repudiated wife.[2332] Among the Californian Karok, for instance, a wife is seldom purchased for less than half a string of dentalium shell, but "when she belongs to an aristocratic family, is pretty, and skillful in making acorn-bread and weaving baskets, she sometimes costs as high as two strings."[2333] The bride-price however, varies most according to the circumstances of the parties, and according to the value set on female labour. In British Columbia and Vancouver Island, the value of the articles given for the bride ranges from £20 to £40 sterling.[2334] The Indians of Oregon buy their wives for horses, blankets, or buffalo robes.[2335] Among the Shastika in

California, "a wife is purchased of her father for shell-money or horses, ten or twelve cayuse ponies being paid for a maid of great attractions."[2336] Again, the Navajos of New Mexico consider twelve horses so exorbitant a price for a wife, that it is paid only for "one possessing unusual qualifications, such as beauty, industry, and skill in their necessary employments";[2337] and the Patagonians give mares, horses, or silver ornaments for the bride.[2338]

In Africa, not horses but cattle are considered the most proper equivalent for a good wife. Among the Kaffirs, three, five, or ten cows are a low price, twenty or thirty a rather high; but, according to Barrow, a man frequently obtained a wife for an ox or a couple of cows.[2339] The Damaras are so poor a people that they are often glad to take one cow for a daughter.[2340] Among the Banyai, many heads of cattle or goats are given to induce the parents of the girl "to give her up," as it is termed, i.e., to forgo all claim on her offspring, for if nothing is given, the family from which she comes can claim the children as part of itself.[2341] In Uganda, the ordinary price of a wife is either three or four bullocks, six sewing needles, or a small box of percussion caps, but Mr. Wilson was often offered one in exchange for a coat or a pair of shoes.[2342] In the Mangoni country, two skins of a buck are considered a fair price,[2343] and among the Negroes of Bondo, a goat;[2344] whereas, among the Mandingoes, as we are told by Caillié, no wife is to be had otherwise than by the presentation of slaves to the parents of the mistress.[2345]

The Chulims paid from five to fifty roubles for a wife, the Turalinzes usually from five to ten.[2346] Rich Bashkirs pay sometimes even 3,000 roubles, but the poorest may buy a wife for a cart-load of wood or hay.[2347] In Tartary, parents sell a daughter for some horses, oxen, sheep, or pounds of butter; among the Samoyedes and Ostyaks, for a certain number of reindeer.[2348] Among the Indian Kisáns, "two baskets of rice and a rupee in cash constitute the compensatory offering given to the parents of the girl."[2349] Among the Mishmis, a rich man gives for a wife twenty mithuns (a kind of oxen), but a poor man can get a wife for a pig.[2350] In Timor-laut, according to Mr. Forbes, "no wife can be purchased without elephants' tusks."[2351] In the Caroline Islands, "the man makes a present to the father of the girl whom he marries, consisting of fruits, fish, and similar things!"[2352] In Samoa, the bride-price included canoes, pigs, and foreign property of any kind which might fall into their hands;[2353] and, among the Fijians, "the usual price is a whale's tooth, or a musket."[2354]

Among some peoples marriage may take place on credit, though, generally, the wife and her children cannot leave the parental home until the price is paid in full.[2355] In Unyoro, according to Emin Pasha, when a poor man is unable to procure the cattle required for his marriage at once, he may, by agreement with the bride's father, pay them by instalments; the children, however, born in

the meantime belong to the wife's father, and each of them must be redeemed with a cow.[2356]

Marriage by exchange or purchase is not only generally prevalent among existing lower races; it occurs, or formerly occurred, among civilized nations as well. In Central America and Peru, a man had to serve for his bride.[2357] In China, a present is given by the father of the suitor, the amount of which is not left to the goodwill of the parties, as the term "present" would suggest, but is exactly stipulated for by the negotiators of the marriage; hence, as Mr. Jamieson remarks, it is no doubt a survival of the time when the transaction was one of ordinary bargain.[2358] In Japan, the proposed husband sends certain prescribed presents to his future bride, and this sending of presents forms one of the most important parts of the marriage ceremony. In fact, when once the presents have been sent and accepted, the contract is completed, and neither party can retract. Mr. Küchler says he has been unable to find out the exact meaning of these presents: the native books on marriage are silent on the subject, and the Japanese themselves have no other explanation to give than that the custom has been handed down from ancient times.[2359] But from the facts recorded in the next chapter it is evident that the sending of presents is a relic of a previous custom of marrying by purchase.

In all branches of the Semitic race men had to buy or serve for their wives, the "mohar" or "mahr" being originally the same as a purchase-sum.[2360] In the Books of Ruth and Hosea, the bridegroom actually says that he has bought the bride;[2361] and the modern Jews, according to Michaelis, have a sham purchase among their marriage ceremonies, which is called "marrying by the penny."[2362] In Mohammedan countries marriage differs but little from a real purchase.[2363] The same custom prevailed among the Chaldeans, Babylonians,[2364] and Assyrians.[2365]

Speaking of the ancient Finns, the Finnish philologist and traveller, Castrén, remarks, "There are many reasons for believing that a cap full of silver and gold was one of the best proxies in wooing among our ancestors."[2366] Evident traces of marriage by purchase are, indeed, found in the 'Kalevala' and the 'Kanteletar';[2367] and, in parts of Finland, symbols of it are still left in the marriage ceremony.[2368] Among the East Finnish peoples, marriage by purchase exists even now, or did so till quite lately.[2369]

Wife purchase, as Dr. Winternitz remarks, was the basis of Indo-European marriage before the separation of peoples took place.[2370] The Hindu bride, in Vedic times, had to be won by rich presents to the future father-in-law;[2371] and one of the eight forms of marriage mentioned, though disapproved of, by Manu—the Âsura form—was marriage by purchase. According to Dubois, to marry and to buy a wife are in India synonymous terms.[2372] Aristotle tells us that the ancient Greeks were in the habit of purchasing wives,[2373] and in the

Homeric age a maid was called "ἀλφεσίβοια," i.e., one "who yields her parents many oxen as presents from her suitor." Among the Thracians, according to Herodotus, marriage was contracted by purchase.[2374] So also throughout Teutonic antiquity.[2375] The ancient Scandinavians believed that even the gods had bought their wives.[2376] In Germany, the expression "to purchase a wife" was in use till the end of the Middle Ages, and we find the same term in Christian IV.'s Norwegian Law of 1604.[2377] As late as the middle of the sixteenth century the English preserved in their marriage ritual traces of this ancient legal procedure;[2378] whilst in Thuringia, according to Franz Schmidt, the betrothal ceremony even to this day indicates its former occurrence.[2379]

Purchase, as Dr. Schrader remarks, cannot with equal certainty be established as the oldest form of marriage on Roman soil.[2380] But the symbolical process of coemptio—the form of marriage among the plebeians—preserved a reminiscence of the original custom in force if not at Rome, at least among the ancestors of the Romans.[2381] In Ireland and Wales, in ancient times, the bride-price consisted usually of articles of gold, silver, and bronze, sometimes even of land.[2382] The Slavs, also, used to buy their wives;[2383] and, among the South Slavonians, the custom of purchasing the bride still partially prevails, or recently did so. In Servia, at the beginning of the present century, the price of girls reached such a height that Black George limited it to one ducat.[2384]

In spite of this general prevalence of marriage by purchase, we have no evidence that it is a stage through which every race has passed. It must be observed, first, that in sundry tribes the presents given by the bridegroom are intended not exactly to compensate the parents for the bride, but rather to dispose them favourably to the match. Colonel Dalton says, for example, that, among the Pádams, one of the lowest peoples of India, it is customary for a lover to show his inclinations whilst courting by presenting his sweetheart and her parents with small delicacies, such as field mice and squirrels, though the parents seldom interfere with the young couple's designs, and it would be regarded as an indelible disgrace to barter a child's happiness for money.[2385] The Ainos of Yesso, says Mr. Bickmore, "do not buy their wives, but make presents to the parents of saki, tobacco, and fish;"[2386] and the amount of these gifts is never settled beforehand.[2387] The game and fruits given by the bridegroom immediately before marriage, among the Puris, Coroados, and Coropos, seem to v. Martius to be rather a proof of his ability to keep a wife than a means of exchange; whereas the more civilized tribes of the Brazilian aborigines carry on an actual trade in women.[2388]

Speaking of the Yukonikhotana, a tribe of Alaska, Petroff states that the custom of purchasing wives does not exist among them.[2389] The Californian Wintun, who rank among the lower types of the race, generally pay nothing for their brides.[2390] The Niam-Niam and some other African peoples,[2391]

most of the Chittagong Hill tribes,[2392] the aboriginal inhabitants of Kola and Kobroor, of the Aru Archipelago, who live in trees or caves,[2393] and apparently also the Andamanese are in the habit of marrying without making any payment for the bride. Among the Veddahs, according to M. Le Mesurier, no marriage presents are given on either side,[2394] but Mr. Hartshorne states that "a marriage is attended with no ceremony beyond the presentation of some food to the parents of the bride."[2395]

In Ponapé, says Dr. Finsch, marriage is not based on purchase;[2396] but this is contrary to the general custom in the Carolines,[2397] as also in the adjacent Pelew Islands,[2398] where women are bought as wives by means of presents to the father. In the Kingsmill Group, according to Wilkes, "a wife is never bought, but it is generally supposed that each party will contribute something towards the household stock."[2399] With regard to the Hawaiians, Ellis remarks, "We are not aware that the parents of the woman received anything from the husband, or gave any dowry with the wife."[2400] And Mr. Angas even asserts that the practice of purchasing wives is not generally adopted in Polynesia.[2401] But the statement is doubtful, as, at least in Samoa,[2402] Tahiti,[2403] and Nukahiva,[2404] the bridegroom gains the bride by presents to her father. And in Melanesia marriage by purchase is certainly universal.[2405] Among the South Australian Kurnai, according to Mr. Howitt, marriages were brought about "most frequently by elopement, less frequently by capture, and least frequently by exchange or by gift."[2406]

Purchase of wives may, with even more reason than marriage by capture, be said to form a general stage in the social history of man. Although the two practices often occur simultaneously, the former has, as a rule, succeeded the latter, as barter in general has followed upon robbery. The more recent character of marriage by purchase appears clearly from the fact that marriage by capture very frequently occurs as a symbol where marriage by purchase occurs as a reality. Moreover, there can be little doubt that barter and commerce are comparatively late inventions of man.

Dr. Peschel, indeed, contends that barter existed in those ages in which we find the earliest signs of our race. But we have no evidence that it was in this way that the cave-dwellers of Périgord, of the reindeer period, obtained the rock crystals, the Atlantic shells, and the horns of the Polish Saiga antelope, which have been found in their settlements; and we may not in any case, conclude that "commerce has existed in all ages, and among all inhabitants of the world."[2407] There are even in modern times instances of savage peoples who seem to have a very vague idea of barter, or perhaps none at all. Concerning certain Solomon Islanders, Labillardière states, "We could not learn whether these people are in the habit of making exchanges; but it is very certain that it was impossible for us to obtain anything from them in this way; ... yet they

were very eager to receive everything that we gave them."[2408] For some time after Captain Weddell began to associate with the Fuegians, they gave him any small article he expressed a wish for, without asking any return; but afterwards they "acquired an idea of barter."[2409] Nor did the Australians whom Cook saw, and the Patagonians visited by Captain Wallis in 1766, understand traffic, though they now understand it.[2410] Again, with regard to the Andamanese Mr. Man remarks, "They set no fixed value on their various properties, and rarely make or procure anything with the express object of disposing of it in barter. Apparently they prefer to regard their transactions as presentations, for their mode of negotiating is to give such objects as are desired by another in the hope of receiving in return something for which they have expressed a wish, it being tacitly understood that unless otherwise mentioned beforehand, no 'present' is to be accepted without an equivalent being rendered. The natural consequence of this system is that most of the quarrels which so frequently occur among them originate in failure on the part of the recipient in making such a return as had been confidently expected."[2411] It must also be noted that those uncivilized peoples among whom marriage by purchase does not occur are, for the most part, exceedingly rude races.

As M. Koenigswarter[2412] and Mr. Spencer[2413] have suggested, the transition from marriage by capture to marriage by purchase was probably brought about in the following way: abduction, in spite of parents, was the primary form; then there came the offering of compensation to escape vengeance; and this grew eventually into the making of presents beforehand. Thus, among the Ahts, according to Mr. Sproat, when a man steals a wife, a purchase follows, "as the friends of the woman must be pacified with presents."[2414] In New Guinea[2415] and Bali,[2416] as also among the Chukmas[2417] and Araucanians,[2418] it often happens that the bridegroom carries off, or elopes with, his bride, and afterwards pays a compensation-price to her parents. Among the Bodo and Mech, who still preserve the form of forcible abduction in their marriage ceremony, the successful lover, after having captured the girl, gives a feast to the bride's friends and with a present conciliates the father, who is supposed to be incensed.[2419] The same is reported of the Maoris,[2420] whilst among the Tangutans, according to Prejevalsky, the ravisher who has stolen his neighbour's wife pays the husband a good sum as compensation, but keeps the wife.[2421]

It is a matter of no importance in this connection that among certain peoples, the price of the bride is paid not to the father, but to some other nearly related person, especially an uncle,[2422] or to some other relatives as well as to the father.[2423] In any case the price is to be regarded as a compensation for the loss sustained in the giving up of the girl, and as a remuneration for the expenses incurred in her maintenance till the time of her marriage.

[2424] Sometimes, as among several negro peoples, daughters are trained for the purpose of being disposed of at a profit; but this is a modern invention, irreconcilable with savage ideas. Thus, among the Kafirs, the practice of making an express bargain about women hardly prevailed in the first quarter of this century, and the verb applied to the act of giving cattle for a girl, according to Mr. Shooter, involves not the idea of an actual trade, but rather that of reward for her birth and nurture.[2425]

To most savages there seems nothing objectionable in marriage by purchase. On the contrary, Mr. Bancroft states that the Indians in Columbia consider it in the highest degree disgraceful to the girl's family, if she is given away without a price;[2426] and, in certain tribes of California, "the children of a woman for whom no money was paid are accounted no better than bastards, and the whole family are contemned."[2427] It was left for a higher civilization to raise women from this state of debasement. In the next chapter we shall consider the process by which marriage ceased to be a purchase contract, and woman an object of trade.

Chapter XVIII — The Decay of Marriage By Purchase. The Marriage Portion

It has often been said that the position of women is the surest gauge of a people's civilization. This assertion, though not absolutely, is approximately true. The evolution of altruism is one of the chief elements in human progress, and consideration for the weaker sex is one of the chief elements in the evolution of altruism.

According as more elevated ideas regarding women grew up among the so-called civilized peoples, the practice of purchasing wives was gradually abandoned, and came to be looked upon as infamous. The wealthier classes took the first step, and poorer and ruder persons followed their example. It is of no little interest to follow the course of this process.

In India, in ancient times, the Âsura form, or marriage by purchase, was lawful for all the four castes. Afterwards it fell into disrepute, and was prohibited among the Brahmans and Kshatriyas, but it was approved of in the case of a Vaiśya and of a Śudra. Manu forbade it altogether.[2428] "No father who knows the law," he says, "must take even the smallest gratuity for his daughter; for a man who, through avarice, takes a gratuity, is a seller of his offspring."[2429] Purchase survived as a symbol only in the Ârsha form, according to which the bridegroom sent a cow and a bull or two pairs to the bride's father.[2430] Manu expressly condemns those who call this gift a gratuity;[2431] hence the Ârsha form was counted by Manu and other lawgivers as one of the legitimate

modes of marriage.[2432] The Greeks of the historical age had ceased to buy their wives; and in Rome, confarreatio, which suggested no idea of purchase, was in the very earliest known time the form of marriage in force among the patricians. Among clients and plebeians also, the purchase of wives came to an end in remote antiquity, surviving as a mere symbol in their coemptio.[2433] Among the Germans, according to Grimm, it was only Christianity that abolished marriage by purchase.[2434] Laferrière and Koenigswarter think it prevailed among the Saxons as late as the reign of Charles the Great, and that in England it was prohibited by Cnut.[2435] In Lex Alamannorum, Lex Ripuariorum, 'Grâgâs,' and the Norwegian laws, real purchase money is not spoken of; and there is reason to believe that the "mundr," mentioned in the elder 'Gulalag' had gradually lost its original meaning of price for a bride.[2436]

In the Talmudic law, the purchase of wives appears as merely symbolic, the bride-price being fixed at a nominal amount.[2437] The Mohammedan "mahr" is also frequently merely nominal.[2438] Among the Finns, the purchase of wives had disappeared in the remote times when their popular songs originated.[2439] Though it still was usual for a bridegroom to give presents to his bride and her parents, passages in the songs indicate that not even the memory of a real purchase survived.[2440] In China, although marriage presents correspond exactly to purchase-money in a contract of sale, the people will not hear of their being called a "price";[2441] which shows that, among them also, some feeling of shame is attached to the idea of selling a daughter.

We may discern two different ways in which this gradual disappearance of marriage by purchase has taken place. It has been suggested that the sum with which the bridegroom bought the bride became a payment for the guardianship of her.[2442] However this may be, the purchase-money became in time smaller and smaller, and took in many cases the form of more or less arbitrary presents. Only a relic of the ancient custom, as we have seen, was left, often appearing as a sham sale in the marriage ceremonies. Another mode of preserving the symbol of sale was the receipt of a gift of real value, which was immediately returned to the giver. This arrangement is said by Âpastamba to have been prescribed by the Vedas "in order to fulfil the law"—that is, the ancient law by which the binding form of marriage was a sale.[2443] Generally, however, not the same but another gift is presented in return. Thus, at Athens, at some time which cannot be determined, but which was undoubtedly earlier than the age of Solon, the dower in the modern sense arose; and, as has been suggested,[2444] this portioning of the bride by her father or guardian very probably implied originally a return of the price paid. Again, in China, exchange of presents takes place between the guardians of the bridegroom and the guardians of the bride; and this exchange forms the subject of a long section in the penal code, for, "the marriage articles and betrothal presents once exchanged, the parties are

considered irrevocably engaged."[2445] In Japan, the bride gives certain conventional presents to her future husband and his parents and relatives, and, as to the value of these presents, she should always be guided by the value of those brought by the bridegroom.[2446] Among the ancient Germans, according to Tacitus, the wife in her turn presented the husband with some kind of arms, and this mutual exchange of gifts formed the principal bond of their union. [2447] Grimm also suggests that the meaning of the Teutonic dowry was partly that of a return gift.[2448]

On the other hand, the purchase-sum was transformed into the morning gift and the dotal portion. A part—afterwards the whole—was given to the bride either directly by the bridegroom or by her father. Manu says, "When the relatives do not appropriate for their use the gratuity given, it is not a sale; in that case the gift is only a token of respect and of kindness towards the maidens."[2449] This gift was called "çulka," or her fee; but its close connection with a previous purchase appears from the fact that it passed in a course of devolution to the woman's brothers, and one rendering of the text of Gautama which regulates this succession, even allowed the fee to go to her brothers during her life.[2450] In modern India, according to Dubois, men of distinction do not appropriate the money acquired by giving a daughter in marriage, but lay it out in jewels, which they present to the lady on the wedding-day. [2451] Among the Greeks of the Homeric age, the father did not always keep the wedding-presents for his own use, but bestowed them, wholly or in part, on the daughter as her marriage portion. At a later period, the bridegroom himself gave the presents to his wife, when he saw her unveiled for the first time, or after the νὺξ μυστική.[2452] Among the Teutons the same process of development took place. Originally, the purchase-sum went to the guardian of the bride, partly, perhaps, to her whole family; but by-and-by it came to be considered her own property,[2453] as Tacitus says, "Dotem non uxor marito sed uxori maritus offert."[2454] This was the case among the Scandinavians at the date of the inditing of their laws, and among the Langobardi from the seventh century.[2455] "La dot," says M. Ginoulhiac, "n'est autre chose que le prix de la coemption en usage dans la loi salique; elle fut donnée à la femme au lieu de l'être à ses parents, qui ne reçurent plus que le solidum et denarium, ou le prix fictif, et après la mort de l'épouse, une partie de la dot."[2456] In Lex Alamannorum and Lex Ripuariorum, only a dos which the wife receives directly from her husband is spoken of.[2457] And it seems probable that the morning gift, which has survived very long in Europe,[2458] originated in the purchase-sum, or formed a part of it,[2459] though it has often been considered a pretium virginitatis.[2460] According to ancient Irish law, a part of the "coibche," or bridal gift, went to the bride's father, or, if he was dead, to the head of her tribe;[2461] but another part was given by the bridegroom to the bride

herself after marriage. The same was the case with the Welsh "cowyll";[2462] and the Slavonic word for bride-price, "věno," came to be frequently used for dos.[2463]

Speaking of the ancient Babylonians, Herodotus says that "the marriage portions were furnished by the money paid for the beautiful damsels."[2464] Among the Hebrews, as it seems the "mohar," or a part of it, was given to the bride herself.[2465] We read in the Book of Genesis that Abraham's servant "brought forth jewels of silver, and jewels of gold, and raiment, and gave them to Rebecca: he gave also to her brother and to her mother precious things."[2466] Professor Robertson Smith is inclined to believe that, in Arabia, before Mohammed, a custom had established itself by which the husband ordinarily made a gift—under the name of "sadâc"—to his wife upon marriage, or by which a part of the "mahr" was customarily set aside for her use.[2467] But under Islam the difference between "mahr" and "sadâc" disappeared, the price paid to the father becoming the property of the woman.[2468]

But it is not only in the history of the great civilized nations that we find marriage by purchase falling into decay. Among several peoples who are still in a savage or semi-civilized state, the custom of purchasing the wife has been modified, and of a few it is expressly stated that they consider such a traffic disgraceful.[2469] The change has taken place in exactly the same way as we have seen to be the case with higher races.

On the one hand, the purchase has become more or less a symbol. In some cases the gift no longer represents the actual value of the girl, in others it is followed by a return gift. Thus, in Oregon, "the wife's relations always raise as many horses (or other property) for her dower, as the bridegroom has sent the parents, but scrupulously take care not to turn over the same horses or the same articles."[2470] The Ahts consider it a point of honour that the purchase-money given for a woman of rank shall, some time or other, be returned in a present of equal value.[2471] Similar statements are made with reference to the Patagonians,[2472] Mishmis,[2473] and certain tribes in the Indian Archipelago.[2474] Among the Bagobos of the Philippines, if the newly-married couple are satisfied with each other, the father of the wife gives the half of the purchase-sum back to the husband;[2475] whilst, in Saraë, the girl's father, at the wedding, has to return even five times the price which he received from the bridegroom's father at the espousals, the return gift, however, becoming the common property of the married couple.[2476] Among the Badagas of the Neilgherries also, the return gift is generally greater in value than the sum which has been paid for her.[2477] Several other peoples contract marriages by an exchange of presents.[2478]

On the other hand there are peoples among whom the purchase-sum, or a part of it, is given to the bride either by her father or by the bridegroom

himself. But, as this may be an indirect way of compensating the bridegroom for the price he has paid, it is in many cases almost impossible to distinguish between this custom and the one last mentioned. It is equally hard to distinguish between the cases in which the bride receives a part of the price from her father, and those in which she receives a gift from the bridegroom directly. But perhaps the greatest difficulty of all is to make out whether the presents obtained from the bridegroom formed originally a part of the bride-price or were only a means of gaining her own consent. Among the Eskimo, the lover presents clothes to the lady, who puts them on, and is thenceforth his wife.[2479] Among the Dacotahs, men ask for consent to marriage by sending the price of the girl, and in addition often give presents to the object of their esteem.[2480] Speaking of the South American Guanas, Azary says, "Toutes les cérémonies du mariage se réduisent à un petit présent que le mari fait à sa prétendue."[2481] Again, among the Javanese,[2482] Kalmucks,[2483] and Ahl el Shemál, a Bedouin tribe of Syria,[2484] the money or articles which the father receives for his daughter are generally looked upon as a settlement or provision for the wife; and among the Pelew Islanders,[2485] Mishmis,[2486] Bashkirs,[2487] Votyaks,[2488] &c.,[2489] she receives a larger or smaller part of the bride-price.

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From marriage by purchase we have thus reached the practice of dower, which is apparently the very reverse of it. But, as we have seen, the marriage portion derives its origin partly from the purchase of wives. Where, as among the Marea,[2490] the endowment becomes the exclusive property of the husband, it is, no doubt, intended to be a compensation for the bride-price; whilst, among other peoples, money or goods for which the man has bought his wife are handed over to her by the father as a marriage portion which, in a certain way, belongs to her. Yet, as we shall see directly, the dowry does not in every case spring from a previous purchase.

The marriage portion serves different ends, often indissolubly mixed up together. It may have the meaning of a return gift. It may imply that the wife as well as the husband is expected to contribute to the expenses of the joint household. It is also very often intended to be a settlement for the wife in case the marriage be dissolved through the husband's death or otherwise. But as, in such instances, the husband generally has the usufruct of the portion, as long as the union lasts, it is in many cases impossible to discern whether the original meaning was that of a return gift to the man or of a settlement for the woman.

We read in the 'Laws of Manu,' "What was given before the nuptial fire, what was given on the bridal procession, what was given in token of love, and what was received from her brother, mother, or father, that is called the sixfold property of a woman. Such property, as well as a gift subsequent and what

was given to her by her affectionate husband, shall go to her offspring, even if she dies in the lifetime of her husband."[2491] The Hindu law recognizes the dominion of a married woman over this property (her "strîdhan"),[2492] but the husband has nevertheless power to use and consume it in case of distress.[2493] At Athens, the administration of the dower certainly belonged to the husband, who might defray with it the expenses of the marriage, and even had a right to alienate the movable objects forming a part of the marriage portion.[2494] But it did not become his property. If the marriage tie was dissolved through divorce or through the husband's death, the dower had to be restored to the woman, who, as a security for this restitution, had a mortgage, consisting generally of a piece of real property;[2495] or if, in case of divorce, the husband did not restore the dower, he paid, whilst it was retained, nine oboli every month as interest.[2496] The Roman dos was intended to be the wife's contribution towards the expenses of the marriage state.[2497] It became the husband's property, as if it were a patrimony which he had a right not only to administer, but even to dispose of independently of the will of his wife.[2498] This confusion of the dower with the patrimony was tolerable as long as marriage was contracted for life, but became very disastrous during the period when divorces were frequent. At the end of the Republican era, therefore, the husband's right to dispose of his wife's marriage portion was limited. It had to be restored in case of divorce, as also in case of the marriage being dissolved through the husband's death. The Lex Julia de adulteriis prevented him from alienating dotal land without the wife's consent, or mortgaging it even with her consent; and the legislation of Justinian prevented alienation with the wife's consent, and declared the law on the subject applicable to provincial land.[2499] The general tradition of the Roman dos was carried on by the Church, the practical object being to secure for the wife a provision of which the husband could not wantonly deprive her, and which would remain to her after his death.[2500] The Roman dotal right, more or less modified in the laws of the different countries, underlies modern European legislation; the husband generally administers and has the use of his wife's dotation, but it remains her property.[2501]

Among the Germans of early times, the bride-price which was handed over to the woman as her marriage portion became her exclusive property, of which the husband could not dispose.[2502] Besides this dos, she received from her parents an endowment, as a sort of compensation for her inheritance, or as an advance on it. This also was her private property, at least so far that it went to her if the marriage was dissolved.[2503] Among the Slavs, the dower seems originally to have been given to the wife as a security in the event of her needing independent support; and, among the Poles and Bohemians, the husband could make no use of it, unless he left his own goods as a deposit.[2504] In Wales, a woman received not only a part of the bride-price, "cowyll," but also

a marriage portion from her father, called "agweddi" (representing the "tincur" of the Irish), which, during cohabitation, belonged to husband and wife jointly. In case they separated before the end of seven years, the wife was to receive this portion back; and in any case, even if she left her husband for no reason before the seventh year, she had her "cowyll." If the separation took place after this period, the property which the wife brought with her was divided.[2505]

The Hebrews, in early times, generally gave daughters as a dowry only a part of the "mohar." Afterwards a woman who married was endowed with a portion called "nedunia," of which the husband had the usufruct as long as the marriage lasted.[2506] The Mohammedans, as a rule, settle very large dowers on their wives; and it is generally stipulated that two-thirds of the dowry shall be paid immediately before the marriage contract is made, whilst the remaining third is held in reserve, to be paid to the wife in case of her being divorced against her own consent, or in case of the husband's death.[2507] And whatever property the wife receives from her parents or any other person on the occasion of her marriage, or otherwise, is entirely at her own disposal, and not subject to any claim of her husband or his creditors.[2508] Speaking of newly-married people among the Mexicans, Acosta says, "When they went to house they made an inventory of all the man and wife brought together, of provisions for the house, of land, of iewells and ornaments, which inventories every father kept, for if it chanced they made any devorce (as it was common amongest them when they agree not), they divided their goods according to the portion that every one brought."[2509]

Among races at a lower stage of civilization[2510] the dowry commonly subserves a similar end—that is, in case of separation or divorce, the wife gets back her marriage portion, though the husband, as it seems in most cases, has the usufruct of it as long as marriage lasts. But, in savage life, the dowry plays no important part. Often nothing of the kind exists,[2511] and, where it does, the portion generally consists of some food, clothes, household goods, or other trifles,[2512] and occasionally of cattle.[2513] Ultimately, as we have seen, the dowry is due to a feeling of respect and sympathy for the weaker sex, which, on the whole, is characteristic of a higher civilization.[2514] And, as we have spoken of a stage of marriage by capture and another stage of marriage by purchase, we may now speak of a third, where fathers are bound by law or custom to portion their daughters.

Thus the Hebrews[2515] and Mahommedans[2516] consider it a religious duty for a man to give a dower to his daughter. In Greece the dowry came to be thought almost necessary to make the distinction between a wife and a concubine παλλακή;[2517] and Isaeus says that no decent man would give his legitimate daughter less than a tenth of his property.[2518] Indeed, so great were the dowers given that, in the time of Aristotle, nearly two-fifths of the

whole territory of Sparta were supposed to belong to women.[2519] In Rome, even more than in Greece, the marriage portion became a mark of distinction for a legitimate wife.[2520] It was the duty of the wife to provide her husband with dos, and a woman herself had a legal claim to be provided with a dower by her father or other paternal ascendants.[2521] And, though later on, Justinian in several of his constitutions declares that dos is obligatory for persons of high rank only,[2522] the old custom did not fall into desuetude.[2523] The Prussian 'Landrecht' still prescribes that the father, or eventually the mother, shall arrange about the wedding and fit up the house of the newly-married couple.[2524] According to the 'Code Napoléon,' on the other hand, parents are not bound to give a dower to their daughters,[2525] and the same principle is generally adopted by modern legislation. Yet there is still a strong feeling, especially in the so-called Latin countries, in favour of dotation. This feeling, as Sir Henry Maine remarks, is the principal source of those habits of saving and hoarding, which characterize the French people, and is probably descended, by a long chain of succession, from the obligatory provisions of the marriage law of the Emperor Augustus.[2526]

In this course of development, the marriage portion has often become something quite different from what it was originally. It has in many cases become a purchase-sum by means of which a father buys a husband for his daughter, as formerly a man bought a wife from her father. Euripides, transferring to the heroic age the practice of his own time, makes Medea complain that her sex had to purchase husbands with great sums of money.[2527] "Pars minima est ipsa puella sui," the Latin poet sings. And, in our days, a woman without a marriage portion, unless she has some great natural attractions, runs the risk of being a spinster for ever. This state of things naturally grows up in a society where monogamy is prescribed by law, where the adult women outnumber the adult men, where many men never marry, and where married women too often lead an indolent life.

Chapter XIX — Marriage Ceremonies and Rites

Among primitive men marriage was, of course, contracted without any ceremony whatever; and this is still the case with many uncivilized peoples. Among the Eskimo, visited by Captain Hall, "there is no wedding ceremony at all, nor are there any rejoicings or festivities. The parties simply come together, and live in their own tupic or igloo."[2528] The Bonaks of California, according to Mr. Johnston, have no marriage ceremony. The man simply speaks to the girl's parents, and to the girl herself; and, if the couple live together for some time harmoniously, they are considered husband and wife.[2529] Among the

Comanches, too, "there is no marriage ceremony of any description;"[2530] and the same is said of several other aboriginal tribes of America,[2531] as also of the Outanatas of New Guinea,[2532] the Solomon Islanders,[2533] and the Tasmanians.[2534] In Australia, wedding ceremonies are unknown in most tribes, but it is said that in some there are a few unimportant ones.[2535] In the Hill Tribes of North Aracan, marriage "is a simple contract unaccompanied by ceremony."[2536] So also among the Khasias,[2537] Chalikata Mishmis,[2538] Aino,[2539] Negroes of Bondo,[2540] &c.

Marriage ceremonies arose by degrees and in various ways. When the mode of contracting a marriage altered, the earlier mode, from having been a reality, survived as a ceremony. Thus, as we have seen, the custom of capture was transformed into a mere symbol, after purchase was introduced as the legal form of contracting a marriage. In other instances the custom of purchase has survived as a ceremony, after it has ceased to be a reality.

According as marriage was recognized as a matter of some importance, the entering into it came, like many other significant events in human life, to be celebrated with certain ceremonies. Very commonly it is accompanied by a wedding feast. Among the Nufi people, for example, the nuptials consist of the payment of the bride-price followed by eating and drinking.[2541] Among the Wanyoro, the wedding is celebrated by a great deal of feasting, and the bride is taken by a procession of friends to her new lord.[2542] Often the feast continues for several days, a week, or even longer.[2543] In Mykonos, of the Cyclades, according to Mr. Bent, ten or fifteen days of festivity usually accompany a marriage.[2544] Among some peoples, the expenses are defrayed by the bridegroom,[2545] in others by the father of the bride.[2546] Probably, in the former cases, the feast is considered almost a part of the purchase sum, whilst in the latter it is, perhaps, occasionally regarded as a compensation for the bride-price.

The marriage ceremony often indicates in some way the new relation into which the man and woman enter to each other. Sometimes it symbolizes sexual intercourse,[2547] but far more frequently the living together, or the wife's subjection to her husband. Among the Navajos, the ceremony merely consisted in eating maize pudding from the same platter;[2548] and among the Santals, says Colonel Dalton, "the social meal that the boy and girl eat together is the most important part of the ceremony, as by the act the girl ceases to belong to her father's tribe, and becomes a member of her husband's family."[2549] Eating together is, in the Malay Archipelago, the chief and most wide-spread marriage ceremony.[2550] The same custom occurs among the Hovas, Hindus, Esthonians, in Ermland in Prussia, and in Sardinia.[2551] Again in some Brazilian tribes, marriage is contracted by the husband and wife drinking brandy together.[2552]

In Japan, where the ceremony seems to be regarded as the least important part of the whole proceeding, it consists in the drinking by both parties, after a prescribed fashion, of a fixed number of cups of wine.[2553] In Scandinavia, the couple used to drink the contents of a single beaker—a custom which also occurs in Russia.[2554] The joining of hands, or the bridegroom's taking the bride by the hand, is, as Dr. Winternitz remarks, one of the most important marriage ceremonies among all Indo-European peoples.[2555] The same custom occurs among the Orang-Banûwa of Malacca;[2556] whilst, among the Orang-Sakai, "the little finger of the right hand of the man is joined to that of the left hand of the woman."[2557] At Khasia weddings, "the couple about to be married merely sit together in one seat, and receive their friends, to whom they give a dinner or feast."[2558] Among the Veddahs of Ceylon, the bride ties a thin cord of her own twisting round the bridegroom's waist, and they are then husband and wife. This string is emblematic of the marriage tie, and, "as he never parts with it, so he clings to his wife through life."[2559] The Hindu bride and bridegroom, again, have their hands bound together with grass.[2560] Among the Gonds and Korkús, the actual marriage ceremonies consist, in part, of "eating together, tying the garments together, dancing together round a pole, being half drowned together by a douche of water, and the interchange of rings,—all of which may be supposed to symbolize the union of the parties."[2561] In many parts of India, bride and bridegroom are, for the same reason, marked with one another's blood,[2562] and Colonel Dalton believes this to be the origin of the custom, now so common, of marking with red-lead. Thus, the Parkheyas use a red powder called "sindúr," the bridegroom sealing the compact by touching and marking with it the forehead of his bride.[2563]

Among the Australian Narrinyeri, on the other hand, a woman is supposed to signify her consent to the marriage by carrying fire to her husband's hut, and making his fire for him.[2564] The Negroes of Loango contract their marriages by the bridegroom's eating from two dishes, which the bride has cooked for him in his own hut.[2565] In Dahomey, according to Mr. Forbes, there is no ceremony in marriage, except where the king confers the wife, "in which instance the maiden presents her future lord with a glass of rum."[2566] In Croatia, the bridegroom boxes the bride's ears in order to indicate that henceforth he is her master.[2567] And in ancient Russia, as part of the marriage ceremony, the father took a new whip, and after striking his daughter gently with it, told her that he did so for the last time, and then presented the whip to the bridegroom.[2568]

Many of the ceremonies observed at our own weddings belong to the classes here noticed. The "best man" seems originally to have been the chief abettor of the bridegroom in the act of capture; the nuptials are generally celebrated with a feast in the house of the bride's father, and the wedding-ring is a symbol of the

close union which exists between husband and wife.[2569] Even the religious part of the ceremony has its counterpart among many Pagan nations.

It was natural that a religious character should be given to nuptials, as well as to other events of importance, by the invoking of divine help for the future union. In Hudson's Island, says Turner, "hardly anything could be done without first making it known to the gods and begging a blessing, protection, or whatever the case might require."[2570] Among the Dyaks, one of the eldest male members of the assembled party smears at the wedding the hands of the bridegroom and bride with the blood of a pig and a fowl, implores the protection of the male spirit, Baak, and the female spirit, Hiroeh Bakak, and recommends the married couple to their care, wishing them all sorts of earthly blessings. [2571] Among the Gonds, sacrifice to the gods, and unlimited gorging and spirit drinking are usually the wind-up of the wedding.[2572] In Patagonia, the husband, after having brought the bride into his hut, makes a sacrifice to the foul spirit; and the Macatecas, a tribe subject to the Mexican empire "fasted, prayed, and sacrificed to their gods for the space of twenty days after their marriage."[2573]

Most commonly a priest is called to perform the religious rite. "The marriages of the Fijians," Wilkes says, "are sanctioned by religious ceremonies.... The Ambati, or priest, takes a seat, having the bridegroom on his right and the bride on the left hand. He then invokes the protection of the god or spirit upon the bride, after which he leads her to the bridegroom, and joins their hands with injunctions to love, honour, and obey, to be faithful and die with each other."[2574] This, however, happens principally among the chiefs; among the common people, the marriage rites are less ceremonious, the priest of the tribe only coming to the house and invoking happiness upon the union.[2575] The Tahitians, too, considered the sanction of the gods essential to the marriage contract. The preliminaries being adjusted, the parties repaired to the temple, where the priest addressed the bridegroom usually in the following terms: —"Will you not cast away your wife?" to which the bridegroom answered, "No." Turning to the bride, he proposed to her a like question, and received a similar answer. The priest then addressed them both, saying, "Happy will it be if thus with you two." He then offered a prayer to the gods on their behalf, imploring that they might live in affection, and realize the happiness marriage was designed to secure.[2576] In the Kingsmill Islands, the priest presses the foreheads of the young couple together, and pours on their heads a little cocoa-nut oil; then he takes a branch of a tree, dips it in water, and sprinkles their faces, at the same time praying for their future happiness and prosperity.[2577] Among the Kukis, the young couple are led before the Thémpoo, or priest, "who presents them with a stoup of liquor out of which they both drink, while he continues muttering some words in his unknown language;"[2578] and, among

the Khyoungtha[2579] and Garos,[2580] a priest beseeches the gods to bless the union. Among the Igorrotes of Luzon it is a priestess that performs the marriage ceremony, praying to the spirits of the deceased in the presence of all the kinsfolk of the couple.[2581] The Jakuts require the shaman's assistance for their nuptials,[2582] and so did formerly the Kalmucks.[2583]

The religious ceremonies connected with marriage are not limited to prayers, sacrifices, and other means of pleasing the gods; efforts are also made to ascertain their will beforehand. In Siam, the parents of the parties solicit the opinion of some fortune-teller on the point whether the year, month, and day of the week when the couple were born, will allow of their living happily together as husband and wife.[2584] Among the Chukmas, "omens are carefully observed, and many a promising match has been put a stop to by unfavourable auguries."[2585] The same is the case with other peoples of India,[2586] the Mongols,[2587] some Turkish nations,[2588] &c. In several countries it is considered a thing of the utmost importance to find out the right day for the wedding, by consulting the stars or otherwise.[2589]

Among civilized nations marriage is almost universally contracted with religious ceremonies either with or without the assistance of a priest. The ancient Mexicans were married by their priests,[2590] and so were the Chibchas[2591] and Mayas.[2592] In Nicaragua, the priest, in performing the ceremony of marriage, took the parties by the little finger, and led them to a fire which was kindled for the occasion. He instructed them in their duty, and, when the fire became extinguished, the parties were looked upon as husband and wife.[2593]

By Buddhist monks marriage is regarded only as a concession to human frailty, and, in Buddhistic countries, it is therefore a simple civil contract;[2594] nevertheless, it is commonly contracted with some religious ceremony, and often with the assistance of a lama.[2595] In China, the bridal pair are conducted to the ancestral hall, where they prostrate themselves before the altar, on which the ancestral tablets are arranged.[2596] Among the Hebrews, marriage was no religious contract, and there is no trace of a priestly consecration of it either in the Scriptures or in the Talmud. Yet, according to Ewald, it may be taken for granted that a consecration took place on the day of betrothal or wedding, though the particulars have not been preserved in any ancient description.[2597] Among the Mohammedans also, marriage, though a mere civil contract, is concluded with a prayer to Allah.[2598]

"Les lois des peuples de l'antiquité," M. Glasson says, "avaient un caractère à la fois religieux et civil; il n'est donc pas étonnant qu'elles aient le plus souvent fait du mariage un acte à la fois religieux et civil."[2599] In Egypt, at least during the Ptolemaic period, the wedding is supposed to have been accompanied by a religious ceremony.[2600] Among the ancient Persians, the betrothal was performed by a priest, who joined the hands of the couple whilst reading some

prayers.[2601] The Hindus used by prayers and sacrifices to invoke the help of the gods at their weddings.[2602] According to Sir W. H. Macnaghten, marriage is among them "not merely a civil contract, but a sacrament, forming the last of the ceremonies prescribed to the three regenerate classes, and the only one for Śudras; and an unmarried man has been declared to be incapacitated from the performance of religious duties."[2603] In Greece, marriages were generally, though not always, contracted at the divine altars and confirmed by oaths, the assistance of a priest, however, not being requisite. Before the marriage was solemnized, the gods were consulted and their assistance implored by prayers and sacrifices, which were usually offered to some of the deities that superintended the union of the sexes, by the parents or other relations of the persons to be married. For marriage, as Musonius says, "stands under the protection of great and powerful gods;" and Plato teaches us that a man shall cohabit only with a woman who has come into his house with holy ceremonies.[2604] From the Homeric age we have no instances of marriages being contracted with sacrifices and religious rites, but we must not therefore take for granted that they were entirely wanting.[2605] The Teutons, according to Weinhold, looked upon marriage as an important and holy undertaking, about which it was necessary that the gods should be consulted; and offerings were probably in use among all peoples of this branch of the Aryan race.[2606] The Romans, at their nuptials, made a sacrifice, named libum farreum, to the gods, and the couple were united with prayer.[2607] In the mode of marriage called confarreatio, the Pontifex Maximus seems to have instructed them in the formulas, and some modern authorities even believe that he performed the marriage ceremony. But Rossbach thinks that this was scarcely the case in early times, when every house-father himself was a priest.[2608] Besides sacrifices and prayers, auspices formed a very important part of a Roman wedding; and, if the gods were found to be opposed to the match, the nuptials were put off or the match was abandoned. Even Cicero considered it wicked to marry without auspices.[2609]

It has been suggested that, among primitive Aryans, religious ceremonies were requisite for the validity of marriage.[2610] This was certainly not the case in historical times either among the Greeks or among the Teutons; and at Rome such ceremonies were obligatory only in confarreatio.[2611] But this form of marriage peculiar to the patricians, derived its origin from a very early period, and Rossbach remarks that the farther back we go in antiquity, the more strictly we find the religious ceremonies attended to.[2612] In confarreatio they were essential even in the eye of the law, whilst in coemptio and usus sacrifices and auspices were merely of secondary importance.[2613] Later on, when indifference to the old faith increased, they became more and more uncommon, till

at the end of the period of the Pagan Emperors, they were almost exceptional, being regarded as a matter of no significance.[2614]

Christianity gave back to marriage its religious character. The founder of the Christian Church had not prescribed any ceremonies in connection with it, but in the earliest times the Christians, of their own accord, asked for their pastors' benediction. This was not, indeed, a necessity, and for widows sacerdotal nuptials were not even allowed.[2615] Yet from St. Paul's words, "Τὸ μυστήριον τοῦτο μέγα ἐστίν"[2616]—in the Vulgate translated, "Sacramentum hoc magnum est,"—the dogma that marriage is a sacrament was gradually developed. Though this dogma was fully recognized in the twelfth century,[2617] marriage was, nevertheless, considered valid without ecclesiastical benediction till the year 1563, when the Council of Trent made it an essentially religious ceremony.

Luther's opinion that all matrimonial affairs belong not to the Church, but to the jurists, was not accepted by the legislators of the Protestant countries. Marriage certainly ceased to be thought of as a sacrament, but continued to be regarded by the Protestants as a Divine institution; hence sacerdotal nuptials remained as indispensable as ever.

It was the French Revolution that first gave rise to an alteration in this respect. The constitution of the 3rd September, 1791, declares in its seventh article, title ii., "La loi ne considère le mariage que comme contrat civil. Le pouvoir législatif établira pour tous les habitants, sans distinction, le mode par lequel les naissances, mariages et décès seront constatés et il désignera les officiers publics qui en recevront les actes."[2618] To this obligatory civil act a sacerdotal benediction may be added, if the parties think proper.

Since then civil marriage has gradually obtained a footing in the legislation of most European countries, in proportion as liberty of conscience has been recognized. The French system has lately been adopted in Germany and Switzerland; whilst other nations have been less radical. "Tantôt," says M. Glasson, "on a le choix entre le mariage civil ou le mariage religieux, en ce sens que l'union bénie à l'église vaut en même temps, d'après la loi, comme mariage civil: c'est ce qui a lieu en Angleterre et en Espagne. Tantôt le mariage religieux est une condition de la validité du mariage civil, comme en Roumanie. En Italie, on peut indifféremment célébrer l'une ou l'autre des deux unions la première. Enfin, il y a des pays où le mariage civil joue un rôle purement secondaire: en Autriche, en Portugal, en Suède, en Norwége, il est subsidiaire; en Russie il n'a été établi que pour les sectaires."[2619]

Civil marriage, implying the necessity of the union being sanctioned by secular authority, is not a merely European institution. Among the ancient Peruvians, the king convoked annually, or every two years, at Cuzco all the marriageable young men and maidens of his family. After calling them by name,

he joined their hands, and delivered them to their parents. Such marriages among that class were alone denominated lawful; and the governors and chiefs were, by their offices, obliged to marry, after the same formalities, the young men and women of the provinces over which they presided.[2620] In Nicaragua also, marriage was "a civil rite, performed by the cacique."[2621] And among the savage Pomo of California, who have two chiefs, a "war-chief" and a "peace-chief," the latter, as being a kind of censor morum, has to perform the marriage ceremonies, so far as they extend, i.e., he causes the parties to enter into a simple covenant in presence of their parents and friends.[2622] Again, among certain tribes no marriage is permitted without the chief's approval. But such cases seem to be exceptions among non-European peoples, especially those of a lower culture, marriage being generally considered a private matter, with which the authorities or the community have nothing to do, if only it takes place between persons who, by law or custom, are permitted to intermarry.

In this chapter reference has often been made to the validity of marriage. A lawful marriage is, indeed, quite a different thing from a marriage in the natural history sense of the term. The former, which is contracted under the formalities and in accordance with the stipulations prescribed by the written or unwritten laws of the country, implies the recognition by society both of the validity of the union and the legitimacy of the children. Every people is not so happy as the Nukahivans, among whom, according to Lisiansky, no such thing as illegitimacy is known.[2623] The Greeks regarded a union into which the woman entered without dowry as concubinage, rather than as marriage. Among other peoples purchase is the only way of contracting a valid marriage. So it was with the ancient Germans and Scandinavians.[2624] So it is with the Californian Karok, among whom the children of a woman who is not purchased are accounted no better than bastards and constitute a class of social outcasts who can intermarry only among themselves.[2625] Often certain ceremonies are required for a marriage to be legal. Thus the Romans considered an alliance made without sponsalia, nuptiæ, and dos, concubinage.[2626] Among the Nez Percés in Oregon, the consent of the parents is all that is necessary for a marriage to be valid; sometimes, when the parents refuse their consent, a run-away match occurs, "but it is not regarded as a legal marriage, and the woman thereafter is considered a prostitute, and is treated accordingly."[2627]

Chapter XX — The Forms of Human Marriage

Most of the lower animal species are by instinct either monogamous or polygynous. With man, every possible form of marriage occurs. There are marriages of one man with one woman (monogamy), of one man with many women

(polygyny), of many men with one woman (polyandry), and, in a few exceptional cases, of many men with many women.

Polygyny was permitted by most of the ancient peoples with whom history acquaints us, and is, in our day, permitted by several civilized nations and the bulk of savage tribes.

The ancient Chibchas practised polygyny to a large extent.[2628] Among the Mexicans[2629] and the Peruvian Incas,[2630] a married man might have, besides his legitimate wife, less legitimate wives or concubines. The same is the case in China and Japan, where the children of a concubine have the same legal rights as the children of a wife.[2631] In Corea, the mandarins are even bound by custom, besides having several wives, to retain several concubines in their "yamen."[2632]

Tradition shows polygyny and concubinage to have been customary among the Hebrews during the patriarchal age. Esau married Judith and Basemath, Jacob married Leah and Rachel.[2633] Later on, we read of Solomon, who had "seven hundred wives, princesses, and three hundred concubines;"[2634] and of Rehoboam, who "took eighteen wives and threescore concubines."[2635] Indeed, polygyny was so much a matter of course that the law did not even criticize it.[2636] According to the Talmudic right also, it was permitted, though the number of legitimate wives was restricted to four.[2637] Among European Jews, it was still practised during the Middle Ages, and, among Jews living in Mohammedan countries, it occurs even to this day.[2638] The Korân allows a man to take four legitimate wives,[2639] and he may take as many concubines as he likes. Between a wife and a concubine the difference is, indeed, not great: the former has her father as her protector, whilst the latter is defenceless against the husband.[2640] A slave, on the other hand, is not permitted to have more than two wives at the same time.[2641]

Diodorus Siculus informs us that the Egyptians were not restricted to any number of wives, but that everyone married as many as he chose, with the exception of the priesthood, who were by law confined to one consort.[2642] The Egyptians had concubines also, most of whom appear to have been foreign women—war-captives or slaves; and these were members of the family, ranking next to the wives and children of their lord, and probably enjoying a share of the property after his death.[2643] With regard to the Assyrians, Professor Rawlinson states that, so far as we have any real evidence, their kings appear as monogamists; but he thinks it is probable that they had a certain number of concubines.[2644] In Media, on the other hand, polygyny was commonly practised among the more wealthy classes;[2645] and the Persian kings, particularly in later times, had a considerable number of wives and concubines.[2646]

None of the Hindu law-books restricts the number of wives whom a man is permitted to marry.[2647] We find undoubted cases of polygyny in the hymns

of the 'Rig-Veda,'[2648] and several passages in the 'Laws of Manu' provide for a plurality of wives without any restriction.[2649] Speaking of the modern Hindus, Mr. Balfour says, "By the law a Hindu may marry as many wives, and by custom keep as many concubines, as he may choose."[2650]

The Greeks of the Homeric age frequently had concubines, who lived in the same house as the man's family, and were regarded half as wives.[2651] Polygyny, in the fullest sense of the term, appears to be ascribed to Priam, but to no one else.[2652] At a later period a kind of concubinage seems to have been recognized in Greece by law, and scarcely proscribed by public opinion;[2653] and bigamy was practised by the tyrants in some of the Greek colonies.[2654] The Romans were more strictly monogamous. Among them, concubinage was always well distinguished from legal marriage, and, according to Rossbach, was much less common in early times than subsequently.[2655]

Among the Teutons, at the beginning of their history, we come across plurality of wives in the West,[2656] and especially in the North. The Scandinavian kings indulged in polygyny,[2657] and it does not seem to have been restricted to them only.[2658] Nor was it unknown to the pagan Russians.[2659] In the Finnish poems, though polygyny is not mentioned, there are passages which seem to indicate that it was not entirely unheard of among the Finns of early times.[2660]

Even in the Christian world open polygyny has occasionally been permitted, or at least tolerated. It was frequently practised by the Merovingian kings, and one law of Charles the Great seems to imply that it was not unknown even among priests.[2661] Soon after the Peace of Westphalia, bigamy was allowed in some German States where the population had been largely reduced during the Thirty Years' War. And in modern Europe polygyny, as Mr. Spencer remarks, long survived in the custom which permitted princes to have many mistresses; "polygyny in this qualified form remaining a tolerated privilege of royalty down to late times."[2662] Moreover, St. Augustin said expressly that he did not condemn polygyny;[2663] and Luther allowed Philip the Magnanimous of Hessen, for political reasons, to marry two women. Indeed, he openly declared that, as Christ is silent about polygyny, he could not forbid the taking of more than one wife.[2664] The Mormons, as all the world knows, regard polygyny as a divine institution.

Among many savage peoples polygyny is developed to an extraordinary extent. In Unyoro, according to Emin Pasha, it would be absolutely improper for even a small chief to have fewer than ten or fifteen wives, and poor men have three or four each.[2665] Serpa Pinto tells us of a minister in the Barôze, who at the time of his visit to that country had more than seventy wives.[2666] In Fiji, the chiefs had from twenty to a hundred wives;[2667] and, among all of the North American tribes visited by Mr. Catlin, "it is no uncommon thing to

find a chief with six, eight, or ten, and some with twelve or fourteen wives in his lodge."[2668] The King of Loango is said to have seven thousand wives.[2669]

It is a more noteworthy fact that among not a few uncivilized peoples, polygyny is almost unknown, or even prohibited. The Wyandots, according to Heriot, restricted themselves to one wife;[2670] and, among the Iroquois, polygyny was not permitted, nor did it ever become a practice.[2671] It is said that, among the Californian Kinkla and Yurok, no man has more than one wife.[2672] The Karok do not allow bigamy even to the chief; and, though a man may own as many women for slaves as he can purchase, he brings obloquy upon himself if he cohabits with more than one.[2673] Nor does polygyny occur among the Simas, the Coco-Maricopas, and several other tribes on the banks of the Gila and the Colorado;[2674] nor among the Moquis in New Mexico, and certain nations who inhabit the Isthmus of Tehuantepec.[2675] And, in several tribes of South America, the men are stated to have but one wife.[2676]

The Guanches of the Canary Islands, except the inhabitants of Lancerote, lived in monogamy;[2677] and the same is the case with the Quissama tribe in Angola, the Touaregs, and the Beni-Mzab.[2678] Among all the Moorish tribes in the Western Sahara, Vincent did not meet a single man who had a plurality of wives.[2679]

In Asia we find many instances of strictly monogamous peoples. The Veddahs in Ceylon are so rigorous in this respect that infidelity never seems to occur among them.[2680] In the Andaman Islands, according to Mr. E. H. Man, "bigamy, polygamy, polyandry, and divorce are unknown;"[2681] and the Nicobar Islanders—at least those on the most northern island, Car Nicobar—"have but one wife, and look upon unchastity as a very deadly sin."[2682] Among the Koch and Old Kukis, polygyny and concubinage are forbidden;[2683] whilst, among the Pádams, Mikris, and Munda Kols, a man, though not expressly forbidden to have many wives, is blamed if he has more than one.[2684] The Badagas of the Neilgherry Hills, the Nagas of Upper Assam, the Kisáns, and Meches confine themselves to one consort at the same time;[2685] and so do the Mrús and Toungtha, who do not consider it right for a master to take advantage of his position even with regard to the female slaves in his house.[2686] Among the Santals, says Mr. E. G. Man, a woman reigns alone in her husband's wigwam, "as there is seldom, if ever, a second wife or concubine to divide his affections—polygamy, although not exactly prohibited, being not very popular with the tribe."[2687] Among the Karens of Burma,[2688] and certain tribes of Indo-China, the Malay Peninsula, and the Indian Archipelago, polygyny is said either to be forbidden[2689] or unknown.[2690] The Igorrotes of Luzon are so strictly monogamous, that, in case of adultery, the guilty party can be compelled to leave the hut and the family for ever.[2691] The Hill Dyaks marry but one wife, and a chief who once broke through this custom lost all

his influence; adultery is entirely unknown among them.[2692] The Alfura of Minahassa were formerly monogamists, and the occasional occurrence of polygyny in later times, according to Dr. Hickson, was a degeneration from the old customs, brought about perhaps by Mohammedan influence.[2693]

In Santa Christina or Tauata (Marquesas Islands), monogamy is said to be the exclusive form of marriage.[2694] Among the Papuans of Dorey, not only is polygyny forbidden, but concubinage and adultery are unknown.[2695] In Australia, Mr. Curr has discovered some truly monogamous tribes. In the Eucla tribe, "none of the men have more than one wife;"[2696] among the Karawalla and Tunberri tribes, dwelling on the Lower Diamantina, polygyny is not allowed;[2697] and in the Birria tribe, "the possession of more than one wife is absolutely forbidden, or was so before the coming of the whites."[2698]

In certain American tribes the chiefs alone are permitted to have a plurality of wives.[2699] A similar exclusive privilege seems to have been granted to the nobility in ancient Peru.[2700] Among the Ainos of Yessy, according to v. Siebold only the chief of the village, and, in some places, the wealthier men are allowed to have more than one wife.[2701]

Even where polygyny is permitted by custom or law, it is by no means so generally practised as is often supposed. Almost everywhere it is confined to the smaller part of the people, the vast majority being monogamous. We are told that, in the New Hebrides, "all the men are polygamists, generally having three or four wives apiece;"[2702] that among certain Kafir tribes, "the average number of wives to each married man amongst the common people is about three;"[2703] that, among the Masai, a poor man has generally two wives.[2704] But there is sufficient evidence that such peoples form exceptions to an almost universal rule.

In a 'Sociological Study' on the Lower Congo, Mr. Phillips remarks, "It is a mistaken opinion that in a polygamous society most men have more than one wife: the relative numbers of the sexes forbid the arrangement being extended to the whole population; really only the wealthier can indulge in a plurality of wives, the poorer having to be content with one or often with none."[2705] Proyart says the same of the people of Loango, adding that the rich, who can use the privilege of having many wives, are far from being numerous;[2706] and like statements are made with reference to several other negro peoples.[2707] Among many Kafir tribes,[2708] the Bechuanas,[2709] Hottentots,[2710] and Eastern Central Africans,[2711] monogamy is the rule; whilst, amongst the Touaregs,[2712] Tedâ,[2713] Marea,[2714] Beni-Amer,[2715] &c.,[2716] polygyny is expressly stated to be confined to a few men only. "La plupart des Kabyles," say Messrs. Honateau and Letournex, "n'ont ... qu'une femme;"[2717] and in Egypt, according to Mr. Lane, not more than one husband in twenty

has two wives.[2718] We may, indeed, say with Munzinger[2719] that even in Africa, the chief centre of polygynous habits, polygyny is an exception.

It is so among all Mohammedan peoples, in Asia and Europe, as well as in Africa.[2720] "In India," says Syed Amír' Alí, "more than ninety-five per cent. of Mohammedans are at the present moment, either by conviction or necessity, monogamists. Among the educated classes versed in the history of their ancestors, and able to compare it with the records of other nations, the custom is regarded with disapprobation amounting almost to disgust. In Persia, according to Colonel Macgregor's statement, only two per cent. of the population enjoy the questionable luxury of a plurality of wives.[2721] Moreover, although polygyny is sanctioned by custom among the Cochin Chinese, the Siamese, the Hindus, and many other races of India, the mass of these peoples are in practice monogamous.[2722] In China, among the labouring classes, it is rare to find more than one woman to one man, and Dr. Gray thinks that, in the earliest ages, concubinage was a privilege of the wealthy classes only.[2723] Among the peoples of Central and Northern Asia and, generally, among all the uncivilized or semi-civilized peoples belonging to the Russian Empire, polygyny is, or, before the introduction of Christianity, was, an exception.[2724]

In the Indian Archipelago, says Mr. Crawfurd, polygyny and concubinage exist only among a few of the higher ranks, and may be looked upon as a kind of vicious luxury of the great, for it would be absurd to regard either one or the other as an institution affecting the whole mass of society.[2725] The truth of this assertion is fully confirmed by Raffles, as regards the Javanese; by Low and Boyle, as regards the Malays of Sarawak; by Marsden, Wilken, and Forbes as regards the Sumatrans; by Schadenberg, as regards the Aëtas of the Philippines; and so on.[2726]

In various parts of the Australian continent monogamy is said to be the rule.[2727] In the Larrakía tribe (Port Darwin), for instance, only about ten per cent. of those who are married have two wives.[2728] In Tasmania, polygyny, if not unknown, was quite exceptional.[2729] Among the Maoris, according to Dieffenbach, it is "very uncommon."[2730] In the Sandwich Islands, it was practised only by the chiefs, whose means enabled them to maintain a plurality of wives.[2731] Indeed, in almost every group of the Pacific Islands polygyny is expressly stated to be an exception.[2732]

The same is the case with the American aborigines.[2733] Dalager states that, on the west coast of Greenland, in his time, hardly one man in twenty had two wives, and it was still more uncommon for one man to have three or four.[2734] Among the Thlinkets, as a rule, a man had but one wife.[2735] The aborigines of Hispaniola, with the exception of the king or chief, seemed to Columbus to live in monogamy.[2736] And Mr. Bridges writes that, in Tierra

del Fuego, polygyny is practised "in some districts very rarely, in others more frequently, but in no part generally."

All the statements we have from the ancient world seem to indicate that polygyny was an exception. Speaking of the Hebrews, Dr. Scheppig says that, although our information about the marital affairs of common Hebrews is too scanty to entitle us to conclude, from the scarcity of cases of polygyny recorded, that such cases were actually rare, we may assume that keeping up several establishments was too expensive for any but the rich.[2737] In Egypt, as we may infer from the numerous ancient paintings illustrative of domestic life in that country, polygyny was of rare occurrence; and Herodotus expressly affirms that it was customary for the Egyptians to marry only one wife."[2738] Spiegel thinks that the ancient Persians were as a rule monogamous,[2739] and Sir Henry Maine and Dr. Schrader make a similar suggestion as to the early Indo-Europeans in general.[2740] Among the West Germans, according to Tacitus, only a few persons of noble birth had a plurality of wives;[2741] and, in India, polygyny as a rule was confined to kings and wealthy lords.[2742] In a hymn of the 'Rig-Veda,' which dwells upon the duality of the two Aświns, the pairs of deities are compared with pairs of almost everything that runs in couples, including a husband and wife, and two lips uttering sweet sounds. [2743]

Where polygyny occurs, it is modified, as a rule, in ways that tend towards monogamy: first, through the higher position granted to one of the wives, generally the first married; secondly, through the preference given by the husband to his favourite wife as regards sexual intercourse.

Among the Greenlanders,[2744] Thlinkets,[2745] Kaniagmuts,[2746] Crees, [2747] and probably most of the North American tribes who practise polygyny, [2748] the first married wife is the mistress of the house. The Aleuts distinguish the first or real wife from the subsequent wives by a special name.[2749] Among the Ahts, the children of a chief's extra wives have not the father's rank.[2750] The Algonquins, says Heriot, permit two wives to one husband, but "the one is considered of a rank superior to the other, and her children alone are accounted legitimate."[2751] Among the Mexicans,[2752] Mayas, [2753] Chibchas,[2754] and Peruvians,[2755] the first wife took precedence of the subsequent wives, or, strictly speaking, they had only one "true and lawful wife," though as many concubines as they liked. In Nicaragua, bigamy, in the juridical sense of the term, was punished by exile and confiscation of property;[2756] and, in Mexico, neither the wives of "second rank" nor their children could inherit property.[2757] Among the Mosquitoes, Tamanacs, Uaupés, Mundrucûs,[2758] and other South American peoples,[2759] the first wife generally has superiority in domestic affairs. Among the Brazilian aborig-

ines, however, no difference in rights exist between the children of different wives.[2760]

The first wife is superior in authority to the others among the Western Victorians, Narrinyeri, Maoris,[2761] &c.[2762] In Samoa, a chief had, besides his wife, one, two, or three concubines;[2763] and in Tahiti, according to Ellis, it was rather a system of concubinage than a plurality of wives, that prevailed among the higher chiefs, the woman to whom the chief was first united in marriage, or whose rank was nearest his own, being generally considered his wife in the proper sense of the term, while the others held an inferior position.[2764]

In the Indian Archipelago, according to Mr. Crawfurd, the wife of the first marriage is always the real mistress of the family; the rest are often little better than her hand-maids.[2765] The same holds good for the Burmese, according to Lieutenant-General Fytche; for the Santals, according to Colonel Dalton.[2766] In Siam, "the wife who has been the object of the marriage ceremony 'khan mak' takes precedence of all the rest, and she and her descendants are the only legal heirs to the husband's possessions."[2767] Among the Khamtis, Samoyedes,[2768] and other Asiatic peoples,[2769] the first wife is always the mistress of the household and the most respected in the family; whilst, among the Ainos,[2770] Mongols, and Tangutans,[2771] one man can take only one lawful wife, though as many concubines as he pleases. But, except among the Ainos, the children of concubines are illegitimate and have no share in the inheritance.

The polygyny of China is a legalized concubinage, and the law actually prohibits the taking of a second wife during the lifetime of the first.[2772] The wife is invested with a certain amount of power over the concubines, who may not even sit in her presence without special permission.[2773] She addresses her partner with a term corresponding to our "husband," whilst the concubines call him "master."[2774] These are generally women with large feet and of low origin, not unfrequently slaves or prostitutes; whereas the wife is almost invariably, except of course in the case of Tartar ladies, a woman with small feet.[2775] A wife cannot be degraded to the position of a concubine, nor can a concubine be raised to the position of a wife so long as the wife is alive, under a penalty in the one case of a hundred, in the other of ninety blows.[2776] But the question upon which the legitimacy of the offspring depends, is not whether the woman is wife or concubine, but whether she has been received into the house of the man or not.[2777] In Mohammedan countries, in households where two or more wives belong to one man, the first married generally enjoys the highest rank; she is called "the great lady," and is commonly united with her husband for life. But all the children of the man are considered equally legitimate, even those born of female slaves.[2778]

Among the negro peoples, the principal wife, to whom the housekeeping and command over all the rest are intrusted, is in most cases the one first married. She has certain privileges, and in many cases can be repudiated only if she has been unfaithful to her husband.[2779] Among the Edeeyahs of Fernando Po, it was for the first wife alone that a man had to serve several years with his father-in-law.[2780] Speaking of the Eastern Central African tribes, Mr. Macdonald says, "As a rule, a man has one wife that is free, while the other three or four are slaves.... The chief wife is generally the woman that was married first.... The chief wife has the superintendence of the domestic and agricultural establishment. She keeps the others at their work, and has power to exercise discipline upon them." Generally, it is only by inheriting the possessions of an elder brother that a man procures more than one free wife.[2781] Among the Damaras and other South African tribes, the eldest son of the principal or first wife inherits his father's property.[2782] Speaking of the Basutos, Mr. Casalis observes, "A very marked distinction exists between the first wife and those who succeed her. The choice of the 'great' wife (as she is always called) is generally made by the father, and is an event in which all the relations are interested. The others, who are designated by the name of 'serete' (heels), because they must on all occasions hold an inferior position to the mistress of the house, are articles of luxury, to which the parents are not obliged to contribute." The chief of the Basutos, when asked by foreigners how many children he has, alludes in his answer only to those of his first wife; and, if he says he is a widower, this means that he has lost his real wife, and has not raised any of his concubines to the rank she occupied.[2783] Among the Zulus, the chief wife is the one first married,[2784] and this is often, but not always, the case among the Kafirs.[2785] According to Rochon, polygyny in Madagascar is, in fact, a sort of concubinage.[2786]

Eber suggests that the kings of ancient Egypt, although they might have many concubines, had only one real wife, as there is no instance of two consorts given in the inscriptions.[2787] Professor Rawlinson makes a similar remark as to the polygyny of the Persian kings.[2788] Regarding the Hindus, Mr. Mayne says, "A peculiar sanctity ... seems to have been attributed to the first marriage, as being that which was contracted from a sense of duty, and not merely for personal gratification. The first married wife had precedence over the others, and her first-born son over his half-brothers. It is probable that originally the secondary wives were considered as merely a superior class of concubines, like the hand-maids of the Jewish patriarchs."[2789] It was necessary that the first married wife should be of the same caste as her husband.[2790] She sat by him at marriages and other religious ceremonies, was head of the family, and entitled to adopt a son if she had no sons at the time of her husband's death.[2791] The modified polygyny of the ancient Assyrians and Greeks has

been already noted. The ancient Scandinavians had almost always only one legitimate wife, though as many concubines as they chose.[2792] Touching the Pagan Russians, Ewers says that of the wives of a prince one probably had precedence.[2793] Among the Mormons, Sir R. F. Burton observes, "the first wife, as among polygamists generally, is the wife and assumes the husband's name and title."[2794]

The difference in the position held by the several wives belonging to one man, shows itself also in the demand of various peoples that the first wife shall be of the husband's rank, whilst the succeeding wives may be of lower birth.[2795]

As just mentioned, there is another way in which polygyny is modified. Among certain peoples the husband is bound by custom or law to cohabit with his wives in turn. The Caribs, when they married several sisters at the same time, lived a month with each in her separate hut.[2796] Among the wild Indians of Chili, according to Mr. Darwin, the cazique lives a week in turn with each of his wives.[2797] The Kafirs have an old traditional law requiring a husband who has many wives to devote three succeeding days and nights to each of them.[2798] A Mohammedan is obliged to visit his four legal wives by turns;[2799] and the same custom prevails, according to Krasheninnikoff, in Kamchatka.[2800] The negroes often follow a like rule in order to keep peace in the family.[2801] And, in Samoa, the system adopted when a person has several wives, "is to allow each wife to enjoy three days' supremacy in rotation."[2802] But such arrangements are, no doubt, exceptions, and it is doubtful whether, in these cases, theory and practice coincide.[2803] A marriage may, in fact, be monogamous, though, from a juridical point of view, it is polygynous.

"It is not uncommon for an Indian," says Carver, "although he takes to himself so many wives, to live in a state of continence with many of them for several years," and those who do not succeed in pleasing the husband may "continue in their virgin state during the whole of their lives."[2804] Among the Apaches, the chiefs "can have any number of wives they choose, but one only is the favourite."[2805] In Bokhara, a rich man generally has two, three, or four wives; yet, according to Georgi, one of them, as a rule, holds precedence in the husband's love.[2806] Speaking of the modern Egyptians, Mr. Lane says, "In general, the most beautiful of a man's wives or slaves is, of course, for a time his greatest favourite; but in many—if not most—cases, the lasting favourite is not the most handsome."[2807] Sometimes the wife who has proved most fruitful and given birth to the healthiest children is most favoured by the husband;[2808] and, among the Indians of Western Washington and North-Western Oregon, according to Dr. Gibbs, the man usually lives with his first wife, at least after his interest in subsequent wives has cooled down.[2809] But it is generally the youngest wife who is the favourite. An Arabian Sheik said to Sir

S. W. Baker, "I have four wives; as one has become old, I have replaced her with a young one; here they all are (he now marked four strokes upon the sand with his stick). This one carries water; that grinds the corn; this makes the bread; the last does not do much, as she is the youngest, and my favourite."[2810] In Guiana, "an Indian is never seen with two young wives; the only case in which he takes a second is when the first has become old." The first wife certainly retains the management of domestic affairs, but she no longer possesses the husband's love.[2811] Statements to a similar effect are made regarding the Arabs of the Sahara, Tahitians, Central Asiatic Turks, Mormons, &c.[2812]

Bigamy is the most common form of polygyny, and a multitude of wives is the luxury of a few despotic rulers or very wealthy men. The Eskimo, for example, have rarely more than two wives, and a Greenlander who took a third or fourth was blamed by his countrymen, as we are told by Cranz.[2813] The tribes of Oregon generally confine themselves to a couple of wives.[2814] Bishop Salvado never knew a West Australian native with more than two—"à moins peut-être que par générosité un homme ne prenne sous sa protection la femme de son ami ou parent absent; ou bien que par voie d'hérédité il n'adopte les veuves de son frère."[2815] Rich Kafirs are stated to have commonly two or three wives;[2816] and Colonel Dalton does not recollect that, among the Khamtis, he ever met with a case in which more than two women were married to one husband.[2817] The Hebrews who indulged in polygyny were generally bigamists.[2818]

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Polyandry is a much rarer form of marriage than polygyny. In Oonalashka, one of the Aleutian Islands, according to v. Langsdorf, a woman sometimes lived with two husbands who agreed between themselves upon the conditions on which they were to share her.[2819] Among the Kaniagmuts, two or three men occasionally had a wife in common;[2820] and Veniaminoff tells us that in ancient times a Thlinket woman, besides her real husband, could have a legal paramour, who usually was the brother of the husband.[2821] Among the Eskimo also, "two men sometimes marry the same woman."[2822] Father Lafitau writes, "Par une suite de la Gynécocratie, la polygamie, qui n'est pas permise aux hommes, l'est pourtant aux femmes chez les Iroquois Tsonnontouans, où il en est, lesquelles ont deux maris, qu'on regarde comme légitimes."[2823] Among the Avanos and Maypurs, along the Orinoco, v. Humboldt found that brothers often had but one wife;[2824] according to Mr. Brett, the Warraus do not consider the practice of one woman having two husbands to be bad; and he mentions an instance of a woman amongst them having even three.[2825]

In Nukahiva, as we are told by Lisiansky, in rich families every woman had two husbands, of whom one might be called the assistant husband.[2826] In New Caledonia, according to M. Moncelon, polyandry does not seem to have

been entirely unknown;[2827] and Mr. Radfield writes to me from Lifu that an old man knew of three cases of polyandrous marriage having occurred in that island, but the husbands were despised by the rest of the natives. In two of these cases the husbands were brothers, in the third they were unrelated. It is said that, among the Tasmanians, "polyandry, or something very like it, existed;"[2828] but this statement, if correct, refers to altogether exceptional cases.

Bontier and Le Verrier assert that, in the island of Lancerote, of the Canaries, most women had three husbands.[2829] Thunberg observes that, among the Hottentots, there were women who married two men.[2830] Dr. Fritsch mentions the existence of polyandry among the Damaras, and Mr. Theal among the mountain tribes of the Bantu race.[2831] The Hovas of Madagascar have a word to express the leave given to a wife to have intercourse with another man during a husband's prolonged absence from home.[2832]

Until prohibited by the governor, Sir Henry Ward, about the year 1860, polyandry prevailed among the Sinhalese throughout the interior of Ceylon, one woman having in many cases three or four husbands, and in others five or six or even seven. It is recorded that the same practice was at one time universal throughout the island, except among the Veddahs,[2833] and even now it occurs in spite of government interdict.[2834] The husbands are usually members of the same family, and most frequently brothers.

Among the Todas, all brothers of one family, be they many or few, live in mixed cohabitation with one or more wives. "If there be four or five brothers," says Dr. Shortt, "and one of them, being old enough, gets married, his wife claims all the other brothers as her husbands, and, as they successively attain manhood, she consorts with them; or, if the wife has one or more younger sisters, they in turn, on attaining a marriageable age, become the wives of their sister's husband or husbands.... Owing, however, to the great scarcity of women in this tribe, it more frequently happens that a single woman is wife to several husbands, sometimes as many as six."[2835] The same practice occurs among the Kurgs of Mysore.[2836] Among the Nairs of Malabar, it is the custom for one woman "to have attached to her two males, or four, or perhaps more, and they cohabit according to rules."[2837] Polyandry is also found among the Miris, Dophlas, Butlas,[2838] Sissee Abors,[2839] Khasias,[2840] and Santals.[2841] It prevails in the Siwalik mountains, Sirmore,[2842] Ladakh,[2843] the Jounsar and Bawar hill districts attached to the Doon,[2844] Kunawar,[2845] Kotegarh, [2846] and, especially, in Tibet. This custom exists, as Mr. Wilson asserts, "all over the country of the Tibetan-speaking people; that is to say, from China to the dependencies of Kashmir and Afghanistan, with the exception of Sikkim, and some other of the provinces on the Indian side of the Himalaya, where, though the Tibetan language may in part prevail, yet the people are either

Aryan in race, or have been much influenced by Aryan ideas."[2847] Polyandry is said to occur among the Saporogian Cossacks;[2848] and Mr. Ravenstein quotes a statement of a Japanese traveller that it prevails among the Smerenkur Gilyaks in Eastern Siberia.[2849]

With the exception of the Nairs, Khasias, and Saporogian Cossacks, the husbands in almost every one of these cases are stated to be brothers. A colonel who lived among the Kulus of Kotegarh for twenty-five years assures us that, among that people, the husbands are always brothers;[2850] and, so far as Mr. Wilson could learn, the polyandry of Central Asia must be limited to the marriage of one woman to two or more brothers, no other form being found there.[2851]

A very curious kind of polyandry prevails, according to Dr. Shortt, among the Reddies. It often happens that a young woman of sixteen or twenty years of age is married to a boy of five or six years, or even of a tenderer age. After marriage the wife lives with some other man, a near relation on the maternal side, frequently an uncle, and sometimes with her boy-husband's own father, the progeny so begotten being affiliated to the boy-husband. When he comes of age he finds his wife an old woman, and perhaps past child-bearing. So he, in his turn, takes possession of the wife of some other boy, who will nominally be the father of her children.[2852] A similar custom is said to exist among the Vellalah caste in the Coimbore district,[2853] and prevailed, till the emancipation of the serfs, among the Russian peasants, the father being in the habit of cohabiting with the wife of his son during the son's minority.[2854] Ahlqvist mentions the occurrence of the same practice among the Ostyaks,[2855] v. Haxthausen among the Ossetes.[2856]

Passing to ancient nations, we find indications of polyandry in a hymn in the 'Rig-Veda,' which is addressed to the two Aświns,[2857], and in the Mahâbhârata, where Draupadi is represented as won at an archery match by the eldest of the five Pandava princes, and as then becoming the wife of all. According to Strabo, polyandry occurred in Media, and in Arabia Felix, where all male members of the same family married one woman.[2858] Ma-touan-lin states that, among the Massagetæ, the brothers had one wife in common, and when a man had no brothers he associated with other men, as otherwise he was obliged to live single through the whole of his life.[2859] We have in the Irish Nennius direct evidence of the existence of polyandry among the Picts,[2860] and of the ancient Britons Cæsar says that "by tens and by twelves husbands possessed their wives in common, and especially brothers with brothers, and parents with children."[2861] Among the ancient Scandinavians we possibly find a trace of this custom in the mythic statement that the goddess Frigg, during the absence of her husband Odin, was married to his brothers Vili and Ve.[2862]

Among the peoples of America, Africa, and the Pacific Islands, just referred to, polyandry, in almost every case, is confined to a very small part of the population; and among the polyandrous nations of India and Central Asia it is by no means the exclusive form of marriage. Sir Emerson Tennent says that, in Ceylon, polyandry prevails chiefly among the wealthier classes, whilst, according to Dr. Davy, it is "more or less general among the high and low, the rich and poor," other forms of marriage, however, being by no means excluded.[2863] Among the Todas, "any degree of complication in perfectly lawful wedded life may be met with, from the sample of the single man living with the single wife, to that of the group of relatives married to a group of wives."[2864] Mr. Balfour says that "the practice of polyandry does not seem to have ever prevailed generally amongst the Nairs and many of the Teeyer of North Malabar, from Kurumbranad to Mangalore."[2865] Among the Miris there are only a few instances of this custom.[2866] Of the Dophlas those who can afford it are polygynists.[2867] Among the Khasias, polyandry "can be said to prevail only among the poorer sort, with whom, too, it would often seem to mean rather facility of divorce than the simultaneous admission of a plurality of husbands."[2868] Among the Santals, the wife of the eldest brother may be at the same time a wife for the younger brothers also.[2869] The Sissee Abors have often as many wives as they can afford to buy;[2870] and in the Kunawar valley, polyandry is common only in the upper part of the valley, whilst polygyny prevails in the lower part.[2871] In the Kotegarh valley, according to Dr. Stulpnagel, the practice of polyandry is not universal; it can scarcely be said to be even very common. "If diligently searched for," he observes, "single cases of polyandry will be found in the Kôtgadh parganâ, in Kulu, in the territory of the Rânâs of Komarsen and Kaneti, and in Bussahir.... Though common enough in Kunawar at the present day, it exists side by side with polygamy and monogamy. In one house there may be three brothers with one wife; in the next three brothers with four wives, all alike in common; in the next house there may be a man with three wives to himself; in the next a man with only one wife."[2872] Among the Butias, or Botis, of Ladakh, according to Sir Alexander Cunningham, polyandry prevails "only among the poorer classes, for the rich, as in all Eastern countries, generally have two or three wives, according to their circumstances."[2873] In the Jounsar and Bawah pargannahs, polyandry is almost universal, but it is apparently unknown in the hills of Garhwal on the east, or those of the Simla superintendency on the west.[2874] Nowhere, except perhaps in the Neilgherry Hills, has polyandry prevailed more extensively than in Tibet; but it is not the only form of marriage. According to Captain J. D. Cunningham, "even among the Lamaic Tibetans any casual influx of wealth, as from trade or other sources, immediately leads to the formation of separate establishments by the several members of a house."[2875] We may thus take

for granted that polyandry, although frequently practised in certain parts of India and Central Asia,[2876] nowhere excludes the simultaneous occurrence of other forms of marriage. The instances of ancient Aryan polyandry in India evidently form exceptions to the general rule among the people of the Vedic period. The father of Draupadi is represented by the compilers of the epic as shocked at the proposal of the princes to marry his daughter:—"You who know the law," he says, "must not commit an unlawful act which is contrary to usage and the Vedas." In the Râmâyana, the giant Virâdha attacks the two divine brothers Râma and Lakshmana and their wife Sítâ, saying, "Why do you two devotees remain with one woman? Why are you, O profligate wretches, corrupting the devout sages?"[2877] And in the 'Aitareya Brâhmana' we read that "one man has many wives, but one wife has not many husbands at the same time."[2878] Indeed, with the exception of the Massagetæ, the account of whom cannot be critically checked, there is no people among whom polyandry is stated to be the only recognized form of marriage.

Like polygyny, polandry is modified in directions tending towards monogamy. As one, usually the first married, wife in polygynous families is the chief wife, one, usually the first, husband in polyandrous families is the chief husband. This was the case with the Aleuts, among whom, according to Erman, the secondary husband was generally a hunter or wandering trader; and with the Kaniagmuts, among whom, as we have already seen, he acted as husband and master of the house during the absence of the true lord. Upon the latter's return, the deputy not only yielded to him his place, but became in the meantime his servant.[2879] In Nukahiva, the subordinate partner sometimes was chosen after marriage, "but in general," says Lisiansky, "two men present themselves to the same woman, who, if she approves their addresses, appoints one for the real husband, and the other as his auxiliary; the auxiliary is generally poor, but handsome and well-made."[2880]

In Ladakh, according to Moorcraft and Trebeck, should there be several brothers in a family, the juniors, if they agree to the arrangement, become inferior husbands to the wife of the elder; all the children, however, are supposed to belong to the head of the family. The younger brothers have, indeed, no authority; they wait upon the elder as his servants, and can be turned out of doors at his pleasure, without its being incumbent upon him to provide for them. On the death of the eldest brother, his property, authority, and widow devolve upon his next brother.[2881] In Kamaon, too, where the brothers of a family all marry one wife, the children are attributed to the eldest brother. [2882] The same is the case in the Jounsar district, as it was formerly with the Massagetæ.[2883] Touching the polyandrous tribes of Arabia Felix, Strabo tells us that the eldest brother was the ruler of the family, and that the common wife spent the nights with him.[2884] Among the ancient Britons, as described

by Cæsar, the children were regarded as belonging to him who had first taken the virgin to wife.[2885] In Tibet, the choice of a wife is the right of the elder brother, and the contract he makes is understood to involve a marital contract with all the other brothers, if they choose to avail themselves of it. The children call the eldest husband father, the younger husbands uncles.[2886] Among the Todas also, the eldest brother seems to be the real husband. "If the husband has brothers or very near relatives, all living together," says Mr. Marshall, "they may each, if both she and he consent, participate in the right to be considered her husband also, on making up a share of the dowry that has been paid."[2887] Again, in Spiti, where polyandry no longer prevails, the same object is attained by the custom of primogeniture, by which only the eldest son marries, while the younger sons become monks.[2888] Speaking of the Khyoungtha, a Chittagong Hill tribe, Captain Lewin observes, "After marriage a younger brother is allowed to touch the hand, to speak and laugh with his elder brother's wife; but it is thought improper for an elder even to look at the wife of his younger brother. This is a custom more or less among all hill tribes; it is found carried to even a preposterous extent among the Santals."[2889] In this custom there is perhaps a trace of ancient polyandry.

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Summing up the results reached in this chapter, we may safely say that, although polygyny occurs among most existing peoples, and polyandry among some, monogamy is by far the most common form of human marriage. It was so also among the ancient peoples of whom we have any direct knowledge. Monogamy is the form which is generally recognized as legal and permitted. The great majority of peoples are, as a rule, monogamous, and the other forms of marriage are usually modified in a monogamous direction.

We have still to inquire how the matter stood in early times, and to trace the general development of the forms of human marriage. But, in accordance with our method of investigation, we must first examine the causes by which these forms have been influenced.

Chapter XXI — The Forms of Human Marriage

(Continued)

It has also been asserted that monogamy is the natural form of human marriage because there is an almost equal number of men and women. But this is by no means the case. The numerical proportion between the sexes varies, and in some cases varies greatly, among different peoples.

In the whole district of Nutka, it seemed to Meares that there were not so many women as men, whereas, further north, the women decidedly preponder-

ated.[2890] Among the Kutchin, according to Kirby, women form the minority; [2891] and they seem to hold the same position among the Upper Californians and Western Eskimo.[2892] But as a rule, among the North American aborigines, the opposite is apparently the case. Thus there are more women than men among certain Eskimo tribes, according to Dr. King; among the natives of the Sitka Islands, according to Lisiansky; among the Californian Shastika, according to Mr. Powers.[2893] The census of the Creeks taken in the year 1832 showed 6,555 men and 7,142 women; that of the Indian population around Lakes Superior, Huron, Michigan, the Upper Mississippi, &c., in the same year, 3,144 men and 3,571 women, excluding children, that of the Nez Percés in Oregon, taken in 1851 by Dr. Dart, 698 men and 1,182 women.[2894] Among the Blackfeet and Shiyann, according to Mr. Morgan—among the Puncahs and some other tribes, according to Mr. Catlin—the number of women is said to be twice as large as that of men, and in some cases even three times as large.[2895]

In Yucatan, according to Stephens, there are two women to one man; among the Guaranies, according to Azara, fourteen women to thirteen men; in Cochabamba, according to Gibbon, even five to one.[2896] Among the Zapotecs and other nations of the Isthmus of Tehuantepec, the women are greatly in excess of the men;[2897] whereas, among the Tarumas,[2898] Avanos, Maypurs, [2899] and Guanas,[2900] the men are stated to be more numerous than the women. Von Martius says that among the Indians of Brazil, the number varied in some villages in favour of the male sex, in others in favour of the female. [2901]

In Australia the men seem generally to be in the majority.[2902] Speaking of the Australian natives, the Rev. L. Fison says, "I think we may suppose that the number of males generally exceeds that of females among the lower savages; at least, quite a number of observers declare that such is the fact."[2903] Among the Western Australians, according to Mr. Oldfield, at all times the males are in excess of the other sex."[2904] Wilhelmi makes a similar statement with regard to several other tribes;[2905] but this rule does not apply to all the Australians. "On Herbert River," says Herr Lumholtz, "the women are more numerous than the men; this is also the case among the tribes south-west of the Carpentarian Gulf and elsewhere. But, according to accurate observations, the opposite is the case in a large part of Australia."[2906] In some tribes of the interior, Mr. Sturt found that among children there were about two girls to one boy.[2907]

In Tasmania, according to Breton, the men greatly exceeded the women in number.[2908] So also in Tahiti, where, at the time of Mr. Ellis's arrival, there were probably four or five men to one woman;[2909] in Maupiti, where the disproportion between the sexes among adults was at the rate of three men to two women;[2910] and in Easter Island, where, according to the estimates of Cook and La Pérouse, the men were twice as numerous as the women.[2911] In

the Sandwich Islands, Nukahiva, and some islands belonging to the Solomon Group, the male sex predominated;[2912] and among the Maoris, according to a census taken in the year 1881, there were 24,370 men and 19,729 women.[2913] In Makin Island, of the Kingsmill Group, on the other hand, Wood represented the women as outnumbering the men.[2914] The same was to a very great extent the case in Tukopia;[2915] and d'Albertis says that in Naiabui, a village in New Guinea with 300 inhabitants, "there are more women than men by about a third."[2916] Both sexes are nearly equally represented at Port Moresby,[2917] and according to Marsden, in Sumatra.[2918] In Sarawak the women are less numerous than the men.[2919]

In Ceylon a considerable disparity is exhibited by the returns. According to Pridham, it is found in the greatest degree among the Sinhalese, among whom the surplus of men averages twelve per cent., but it is also observable in the case of the Malabar population in the northern province, where the surplus of men averages six per cent.[2920] Robert Orme states that, in India, the number of women exceeds that of men;[2921] but this is certainly not the case in every part of the country. In a census of the North-West Provinces, taken during the year 1866, the proportions between the sexes were found to be 100 men to 86·6 women, and, in the Panjab, even 100 to 81·8.[2922] In some districts of the Himalayas there is a surplus of males, in others of females.[2923] In Kashmir, the proportion of men to women is as three to one.[2924] In the Buddhist country of Ladakh, says Sir A. Cunningham, "it will be observed that the females outnumber the males, while the reverse is the case in the Mussulman districts along the Indus."[2925] In Malwa, in Central India, the number of women surpasses the number of men,[2926] and the same, according to Sir John Bowring, is to a great extent the case in China.[2927] The Todas of the Neilgherry Hills, on the other hand, amounted in the year 1867, according to Mr. Breeks, to 455 males and 249 females of all ages, whilst Mr. Marshall some few years ago found the Toda males of all ages bear the proportion to females of all ages of 100 to 75.[2928] Among the Mongols, as we are informed by Prejevalsky, "the women are far less numerous than the men;"[2929] and the same is said to have been the case with the Massagetæ, and to be the case still in Kamchatka.[2930]

As for the peoples of Africa, I have found two cases only of an excess of men, the one among the population of Galega, to the north-east of Madagascar, the other among the Quissama tribe in Angola.[2931] The reverse seems decidedly to be the rule. Thus, from Morocco Dr. Churcher writes to me that "there appears to be a striking disproportion, though there is no such thing as statistics in this land." In Ma Bung, in the Timannee country, Major Laing counted three women to one man.[2932] A census taken in Lagos in 1872 showed among the population of African origin, 27,774 men and 32,353 women.[2933] Among the

Negroes of the Gold Coast, according to Bosman; in Latúka, according to Emin Pasha; among the Waguha of West Tanganyika, according to Mr. A. J. Swann; among the Wa-taïta, according to Mr. Joseph Thomson, women predominate. [2934] Mr. Cousins is inclined to think that the same is the case with the Cis-Natalian Kafirs, "as there are few bachelors, and the majority of men have more than one wife."[2935] In Uganda, says the Rev. C. T. Wilson, "the female population is largely in excess of the male, the proportion being about three and a half to one."[2936]

In European countries, the number of men and of women from fifteen to twenty years of age is generally almost the same; but in an earlier period of life there are more men than women, and, in a later, more women than men.[2937]

This disparity in the numbers of the sexes is due to various causes. The preponderance of women depends to a great extent upon the higher mortality of men. Dr. Sutherland found that the average age of 109 Eskimo was nearly 22 years—that of the females 24·5, that of the males 19·3 years.[2938] The men pass most of their time at sea, in snow and rain, heat and cold, and many of them are drowned. The result of this troublesome and dangerous life is that few of them attain the age of fifty, whereas many women reach the age of seventy or even eighty. This, according to Dr. King, is the reason why, among this people, there are generally fewer men than women.[2939] Mr. Bancroft states that, among the Ingaliks near the mouth of the Yukon, some of the women reach sixty, while the men rarely attain more than forty-five years.[2940] In Europe, the death-rate is higher among men than among women, partly because of the greater dangers they are exposed to. Among many savage and barbarous peoples, however, the greater mortality of the male population depends chiefly upon the destructive influence of war.[2941] "As all nations of Indians in their natural condition," says Mr. Catlin, "are unceasingly at war with the tribes that are about them, ... their warriors are killed off to that extent, that in many instances two, or sometimes three women to a man are found in a tribe."[2942] According to Ellis, it is supposed by the Missionaries in Madagascar that, in consequence of the destructive ravages of war, in some of the provinces there are among the free portion of the inhabitants five, and in other three, women to one man, whilst the proportion of the sexes seems to be equal at birth.[2943] But I am inclined to think that this cause operates principally at tolerably advanced stages of civilization, and only in a smaller degree among the rudest savages, who, devoid of any definite tribal organization, live a wandering life, scattered in families or hordes consisting of a few persons. Thus, with regard to the Yahgans of Tierra del Fuego, Mr. Bridges writes to me, "On several occasions when some hundreds of natives have been gathered together, I have taken censuses of them, and have always found the sexes equal or nearly so.... War was unknown, though fightings were frequent, but women took part in

them as energetically as the men, and suffered equally with them—if anything, more." Among the Australians also, as we have seen, wars do not cause any disproportion between the sexes.

The surplus of males is often due to female infanticide;[2944] and among certain peoples there is another cause which must be taken into account. Captain Lewin states that, among the Toungtha, women die at a comparatively early age because of the constant labour which their sex entails upon them, whereas the men live very long.[2945] And the same is said by Mr. Kirby with regard to the Kutchin.[2946]

Moreover, there is a disproportion between the sexes at birth. Among some peoples more boys are born, among others more girls; and the surplus is often considerable. Mr. Ross thinks that, among the Eastern Tinneh, "the proportion of births is rather in favour of females," whilst the Aht women seem to have more boys than girls.[2947] Von Humboldt found by examining baptismal registers, that more boys than girls were born in some communities of New Spain.[2948] The same, according to M. Belly, is the case among the Indians of Guatemala and Nicaragua.[2949]

In the interior of Australia, Mr. Sturt met with several smaller tribes in which the number of girls was considerably greater than the number of boys, though in other tribes the proportion of births is in favour of males.[2950] Sir. G. Grey drew up a list of 222 births, and of these 93 were females, 129 males.[2951] In Tasmania, where the men were more numerous than the women, female infanticide was very rare.[2952] The same is the case with the Sinhalese. They hold in abhorrence the crime of exposing children, says Dr. Davy; and it is never committed except in some of the wildest parts of the country, and even there only when the parents themselves are on the brink of starvation, and must either sacrifice a part of the family or die.[2953] Haeckel assures us that among this people there is a permanent disproportion between male and female births, ten boys being born, on the average, to eight or nine girls.[2954] Among the Todas, as we are informed by Mr. Marshall, the male children under fourteen years of age bear to the female children of the same period—ages estimated from their personal appearance—the ratio of 100 to 80·0,[2955] though female infanticide is never practised, having long since become extinct through the action of the British Government.[2956] Mr. Man's inquiries tended to show that, among the Andamanese, there is a slight predominance of female over male births.[2957]

Bruce observes, "From a diligent inquiry into the South and Scripture-part of Mesopotamia, Armenia, and Syria, from Mousul (or Nineveh) to Aleppo and Antioch, I find the proportion to be fully two women born to one man. There is indeed, a fraction over, but not a considerable one. From Latikea, Laodicea ad mare, down the coast of Syria to Sidon, the number is very nearly three,

or two and three-fourths to one man. Through the Holy Land, the country called Horan, in the Isthmus of Suez, and the parts of the Delta, unfrequented by strangers, it is something less than three. But from Suez to the Straits of Babelmandeb, which contains the three Arabias, the portion is fully four women to one man, which, I have reason to believe, holds as far as the Line, and 30° beyond it." The manner in which Bruce came to these conclusions he describes as follows:—"Whenever I went into a town, village, or inhabited place, dwelt long in a mountain, or travelled journeys with any set of people, I always made it my business to inquire how many children they had, or their fathers, their next neighbours, or acquaintance. This not being a captious question, or what any one would scruple to answer, there was no interest to deceive.... I say, therefore, that a medium of both sexes arising from three or four hundred families indiscriminately taken, shall be the proportion in which one differs from the other."[2958]

This statement has been contradicted, but, so far as I know, it has not been proved to be wholly without foundation. It is to some extent made credible by what Dr. Churcher informs me regarding the disproportion of the sexes among the Moors of Morocco. As the result of his own observation, and that of a Mohammedan friend of his, he writes, "There is certainly a disproportion also at birth.... It would be safe to say that the female births are in the proportion of three females to one male; this partly accounts for the great rejoicing when a son is born. It reacts, however, in this way, that the people say, 'Allah has given us more women than men, hence it is evident that polygamy is of God.'" In the Monbuttu country, according to Emin Pasha, "far more female children are born than males."[2959] And, regarding the disproportion between the sexes in Uganda, Mr. Wilson says, "Careful observation has established the fact that there are a good many more female births than male, and, on taking the groups of children playing by the roadside, there will always be found to be more girls than boys."[2960] Confronted by these definite statements, and by the fact that, in many African countries, there is a striking excess of women, we cannot with Süssmilch and Chervin[2961] dismiss as wholly groundless Montesquieu's well-known assertion that in the hot regions of the Old World more girls are born than boys,[2962] although such disproportion certainly does not exist in every tropical country.

In Europe, the average male births outnumber the female by about five per cent., the still-born being excluded. But the rate varies in the different countries. Thus, in Russian Poland, only 101 boys are born to 100 girls, whilst, in Roumania and Greece, the proportion is 111 to 100.[2963] The excess of male over female births is less when they are illegitimate than when legitimate.[2964]

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Ever since Aristotle's days inquirers have sought to discover the causes which determine the sex of the offspring; but no conclusion commanding general assent has yet been arrived at. The law of Hofacker and Sadler, according to which more boys are born if the husband is older than the wife, more girls if the wife is older than the husband, has attracted the greatest number of adherents. [2965] But Noirot and Breslau have lately come to the opposite result, and, from the data of Norwegian statistics, Berner has shown that the law is untenable. [2966] Dr. Goehlert has modified it so far that he holds the sex to be influenced, not by the relative, but by the absolute ages of the parents.[2967] But W. Stieda has found from the registers of births in Alsace-Lorraine, that neither the relative nor the absolute ages of the parents exercise this sort of influence. [2968] Again, Platter, in a paper in 'Statistische Monatsschrift' (Vienna) for 1875, concludes from the examination of thirty million births that the less the difference in the age of the parents the greater is the probability of boys being born.[2969]

It has, further, been suggested that polygyny leads to the birth of a greater proportion of female infants.[2970] Dr. J. Campbell, however, who carefully attended to this subject in the harems of Siam, concludes that the proportion of male to female births is the same as from monogamous unions.[2971] It has also been maintained, in a paper read before the "Anthropological Institute of Great Britain and Ireland" by Mr. John Sanderson, that, among the Kafirs resident in Natal and the adjoining countries, there was no surplus of female births in polygynous families.[2972] The mass of facts collected by Mr. Sanderson is, however, too small to warrant any positive general deductions, and the like must be said of the information on the subject which Mr. Cousins and Mr. Eyles have sent me from the same part of South Africa. According to M. Remy and Mr. Hyde, on the other hand, the censuses of the Mormons show a great excess of female births.[2973] But it is impossible to believe that polygynous intercourse per se can cause such an excess. Hardly any animal, as Mr. Darwin remarks, has been rendered so highly polygynous as English race-horses; nevertheless, their male and female offspring are almost exactly equal in number.[2974]

Of all the theories relating to this subject, the one set forth by Dr. Düsing[2975] is by far the most important. According to him, the characters of animals and plants which influence the formation of sex are due to natural selection. In every species, the proportion between the sexes has a tendency to keep constant, but the organisms are so well adapted to the conditions of life that, under anomalous circumstances, they produce more individuals of that sex of which there is the greatest need. When nourishment is abundant, strengthened reproduction is an advantage to the species, whereas the reverse is the case when nourishment is scarce. Hence—the power of multiplication depending chiefly upon the number of females—organisms, when unusually

well nourished, produce comparatively more female offspring; in the opposite case, more male. Dr. Düsing and, before him, Dr. Ploss,[2976] have adduced several remarkable facts which seem to indicate that such a connection between abundance and the production of females, and between scarcity and the production of males, actually exists. It is, for example, a common opinion among furriers that rich regions give more female furs, poor regions more male. [2977] It is an established fact that male births are in greater excess in country districts, the population of which is often badly fed, than in towns, where the conditions of life are shown to be, as a rule, more luxurious.[2978] A similar excess is found among poor people as compared with the well-off classes.[2979] Especially remarkable is Dr. Ploss's statement that in highlands comparatively more boys are born than in lowlands. He found that, in Saxony, in the years 1847-1849, the proportion between male and female births was 105·9 to 100 in the region not exceeding 500 Paris feet above the level of the sea; 107·3 to 100, at a height of between 1,001 and 1,500 feet; and 107·8 to 100, at a height of between 1,501 and 2,000.[2980]

The evidence adduced by Dr. Ploss and Dr. Düsing is certainly not strong enough to permit us to regard their inference otherwise than as an hypothesis. But it is an hypothesis in which there seems to be some truth. There are ethnological facts which fully harmonize with it.

According to the census made by the collectors of districts in 1814, the whole population of the old English possessions in Ceylon formed a grand total of 475,883 souls, the males outnumbering the females by 27,193. Above the age of puberty there were 156,447 males, and 142,453 females; below that age, 95,091 males, and 81,892 females. Davy, who thinks that the census is not far from the truth, remarks, "The disproportion appears to be greatest in the poorest parts of the country, where the population is thinnest, and it is most difficult to support life; and smallest where there is least want. Indeed, in some of the fishing villages, where there is abundance of food, the number of females rather exceeds that of the males. May it not be a wise provision of provident Nature to promote, by extreme poverty, the generation of males rather than of females?"[2981]

Very remarkable is the striking coincidence of polyandry with the great poverty of the countries in which it prevails. It seems to be beyond doubt that this practice, as a rule, is due to scarcity of women. This is the view taken by most of the authorities to whom we owe our knowledge of polyandrous peoples.[2982] And this disproportion between the sexes cannot, at least in many instances, be explained as a result of female infanticide. It was formerly said that the excess of men among the Todas was owing to the fact that all the girls beyond a certain number were destroyed in the cradle; but later investigations, as we have seen, show that the excess depends upon a striking

disproportion between male and female births. Dr. Seemann states that, among those Eskimo tribes who practise polyandry, and among whom men are more numerous than women, female infanticide seems to be unknown.[2983] With regard to the inhabitants of the Jounsar district of the Himalayas, Mr. Dunlop says, "Wherever the practice of polyandry exists, there is a striking discrepance in the proportions of the sexes among young children as well as adults; thus, in a village where I have found upwards of four hundred boys, there were only one hundred and twenty girls, yet the temptations to female infanticide, owing to expensive marriages and extravagant dowers which exist among the Rajputs of the plains, are not found in the hills where the marriages are comparatively inexpensive, and where the wife, instead of bringing a large dowry, is usually purchased for a considerable sum from her parents. In the Garhwal Hills, moreover, where polygamy is prevalent, there is a surplus of female children.... I am inclined to give more weight to Nature's adaptability to national habit, than to the possibility of infanticide being the cause of the discrepance found in Jounsar."[2984] Female infants are killed only where they are a burden to the family or community to which they belong. But it will be shown subsequently that this is by no means the case with the inhabitants of the Himalayas. Hence it seems almost probable that, among the polyandrous peoples of these regions, as among the Todas and Sinhalese, more boys are born than girls.

It has been said that Tibetan polyandry depends upon the scarcity of women in a marriageable state, and that this scarcity is due to the Lama nunneries absorbing so many of the girls.[2985] But Koeppen clears the religion of Tibet of any responsibility for polyandry, showing that the practice existed in the country before the introduction of Buddhism.[2986] Mr. Baber states the very remarkable fact that "polygamy obtains in valleys, while polyandry prevails in the uplands."[2987] According to Mr. Rockhill, "female infanticide is not practised in Tibet, except among the women married to Chinese;"[2988] and Grosier and Du Halde expressly assert that more males than females are born there.[2989]

Much stress must be laid on the fact that polyandry prevails chiefly in poor countries. "Polyandry," says Lieutenant Cunningham, "appears to be essential in a country in which the quantity of cultivable land is limited, and in which pastures are not extensive, in which there are but few facilities for carrying on commerce, and in which there is no mineral wealth readily made available."[2990] "Il est connu," says M. Vinson, "que sur la côte de Malabar la polyandrie a été établie pour obvier à la pénurie des subsistances."[2991] The Santals live in a country a great part of which is poor and sterile.[2992] Regarding the Kunawari, Miss Gordon Cumming remarks, "There is a curious distinction in the social customs of the people in the upper and lower part of this valley. Below Wangtu it is said that polygamy prevails, as elsewhere; every

man buying his wives from their parents for a given number of rupees.... Farther up the valley, however, where the people are very poor, and the tiny ridges of cultivation will not support large families, polyandry is common."[2993] Speaking of the Botis of Ladakh, Sir A. Cunningham asserts that polyandry "was a most politic measure for a poor country which does not produce sufficient food for its inhabitants."[2994] Mr. Bellew holds the same view with regard to polyandry in Lammayru in Ladakh:—"The population is kept down to a proportion which the country is capable of supporting. For the only parts of it which are habitable are the narrow valleys through which its rivers flow, and the little nooks in the mountains which are watered by their torrent tributaries."[2995] According to Mr. Wilson, even one of the Moravian missionaries defended the polyandry of the Tibetans "as good for the heathen of so sterile a country," since superabundant population in an unfertile country, would be a great calamity and produce "eternal warfare or eternal want."[2996] A similar opinion is pronounced by Koeppen, Turner, de Ujfalvy, and Wilson.[2997]

It is commonly asserted that this coincidence of polyandry with poverty of material resources depends upon the intention of the people to check an increase of population, or upon the fact that the men are not rich enough to support or buy wives for themselves. But the accuracy of these assumptions is very doubtful. Among no polyandrous people, except the Tibetans with their nunneries do we know of a class of unmarried women. Moreover, even if a woman is sometimes a burden to her husband in a tribe that lives by hunting, her position is very different among a pastoral or agricultural people. In the Himalayas, as Mr. Fraser remarks, women are useful in the fields and in domestic labours, and fully earn their own subsistence.[2998] Again, Turner, who had many opportunities of seeing Western Tibet, asserts that polyandry there is not confined to the lower ranks alone, but is frequently found in the most opulent families,—a statement with which Mr. Wilson agrees.[2999] In Ceylon, as we have seen, it prevails chiefly among the wealthier classes.[3000] And in the villages of the Kotegarh district in the Himalayas, according to Dr. Stulpnagel, most of the cases of polyandry are found among well-to-do peoples. "It is the poor," he says, "who prefer polygamy, on account of the value of the women as household drudges."[3001] All these facts are certainly in favour of Dr. Düsing's theory; and Dr. Floss's statement as to the excess of male births in the highlands of Saxony becomes very important when we consider that polyandry chiefly occurs among mountaineers—in South Africa, as we have seen, as well as in Asia.

Dr. Düsing has, moreover, inferred that incest is less common in proportion as the number of males is great. The more males, he says, the farther off they have to go from their birthplace to find mates. Incest is injurious to the species; hence incestuous unions have a tendency to produce an excess of male

offspring.[3002] Thus, according to Dr. Nagel, certain plants, when self-fertilized, produce an excess of male flowers. According to Dr. Goehlert's statistical investigation, in the case of horses, the more the parent animals differ in colour, the more the female foals outnumber the male.[3003] Among the Jews, many of whom marry cousins, there is a remarkable excess of male births. In country districts where, as we have seen, comparatively more boys are born than in towns, marriage more frequently takes place between kinsfolk. It is for a similar reason, says Dr. Düsing, that illegitimate unions show a tendency to produce female births.[3004]

The evidence given by Dr. Düsing for the correctness of his deduction is, then, exceedingly scanty—if, indeed, it can be called evidence. Nevertheless, I think his main conclusion holds good. Independently of his reasoning, I had come to exactly the same result in a purely inductive way. There is some ground for believing that mixture of race produces an excess of female births. In his work on the 'Tribes of California,' Mr. Powers observes, "It is a curious fact, which has frequently come under my observation, and has been abundantly confirmed by the pioneers, that among half-breed children a decided majority are girls.... Often I have seen whole families of half-breed girls, but never one composed entirely of boys, and seldom one wherein they were more numerous."[3005] When I mentioned this statement to a gentleman who had spent many years in British Columbia and other parts of North America, he replied that he himself had made exactly the same observation. Mr. Starkweather has found that, according to the United States statistical tables of the sex of mulattoes born in the Southern States, there is an excess of from 12 to 15 per cent. of female mulatto children, whilst, taking the whole population together, the male births show an excess of 5 per cent.[3006] In Central America, according to Colonel Galindo, "an extraordinary excess is observable in the births of white and Ladino females over those of the males, the former being in proportion to the latter as six, or at least as five, to four: among the Indians the births of males and females are about equal."[3007] Mr. Stephens asserts that, among the Ladinos of Yucatan, the proportion is even as two to one.[3008] Taken in connection with the fact mentioned by Mr. Squier, that the whites in Central America are as one to eight in comparison with the mixed population,[3009] these statements accord well with the following observation of M. Belly as regards Nicaragua:—"Ce qui me paraît être le fait général," he says, "c'est que dans les villes où l'élément blanc domine, il se procrée en effet plus de filles que de garçons.... Mais dans les campagnes et partout où la race Indienne l'emporte, c'est le contraire qui se produit, et dès lors la prépondérance du sexe masculin se maintient par la prépondérance de l'élément indigène. Le même phénomène avait déjà été observé au Mexique."[3010]

Concerning the proportion of the sexes at birth among the mixed races of South America, I have unfortunately no definite statements at my disposal. But Mr. J. S. Roberton informs me, from Chañaral in Chili, that in that country, with its numerous mongrels, more females are born than males. According to the list of the population of the capitaina of São Paulo, in the year 1815, given by v. Spix and v. Martius—a list which includes more than 200,000 persons,—the proportion between women and men is, among the mulattoes, 114·65 to 100; among the whites, 109·3 to 100; among the blacks, 100 to 129.[3011] But this last proportion is of no consequence, as we have no account of the number of negro slaves annually imported into the capitaina. Sir R. F. Burton found, from the census returns of 1859 for the town of São João d'El Rei, where there is a large intermixture of the white race with the coloured women, an excess of nearly 50 per cent. of women as compared with men.[3012] A census of the population in the Province of Rio, taken in the year 1844, also shows a considerable excess of women, not only, however, among the mixed population, but among the Indian and negro creoles as well;[3013] and M. de Castelnau was astonished at the disproportionately large number of females in Goyaz.[3014]

In the northern parts of the United States, according to Kohl, female children predominate in the families of the cross-breeds arising from the intercourse of Frenchmen with Indian women.[3015] This statement is very much like Graf v. Görtz's, that the families of the offspring of Dutchmen and Malay women in Java (Lipplapps) consist chiefly of daughters.[3016] A census taken in the eighteenth century, given by Süssmilch, proves also that among these mongrels there is a great excess of women over men.[3017] From Stanley Pool in Congo, Dr. Sims writes to me, "It is the subject of general remark here, that the half-caste children are generally girls; out of ten I can count, two only are boys." At the same time he states that, among the native Bateke people, no disproportion between the sexes is observable. Mr. Cousins informs me that, in the western province of Cis-Natalian Kafirland, in the "Karoo" district from Caledon up to Mossel Bay, there is a half-caste or mixed race called "Bruin Menschen," generally known as bastards, among whom more females than males are born. Dr. Felkin found that, among the foreign women imported to Uganda, the excess of females in the first births was enormous, viz., 510 females to 100 males, as compared with 102 females to 100 males in first births from pure Waganda women; whilst in subsequent pregnancies of these imported women the ratio was 137 females to 100 males. As a matter of fact, in the families of the poorer classes of Uganda, who "do all in their power to marry pure Waganda women," the sexes are as evenly balanced as in Europe, whereas this is certainly not the case among the children of chiefs and wealthy men who have large harems supplied mainly with foreign wives. "I found," says Dr. Felkin, "that of the women captured by the slave-raiders in Central Africa, and brought down to

the East Coast, either near Zanzibar or through the Soudan to the Red Sea, those who had been impregnated on the way usually produced female children. Hence the Soudan slave-dealers, instead of having only one slave to sell, have a woman and a female child."[3018] Dr. Felkin suggests, as an explanation of this excess of female births, that the temporarily superior parent produces the opposite sex; but the facts stated seem strongly to corroborate the theory that intermixture of race is in favour of female births. Very remarkable are two statements in the Talmud, that mixed marriages produce only girls.[3019] Mr. Jacobs informs me that his collection of Jewish statistics includes details of 118 mixed marriages; of these 28 are sterile, and in the remainder there are 145 female children and 122 male—that is, 118·82 to 100 males.

We must not, of course, take for granted that what applies to certain races of men holds good for all of them; but it should be observed that the cases mentioned refer to mongrels of very different kinds. It is indeed scarcely probable that anything else than the crossing can be the cause of this excess of females, as facts tend to show that unions between related individuals or, generally, between individuals who are very like each other, produce a comparatively great number of male offspring.

In all the in-and-in bred stocks of the Bates herd at Kirklevington, according to Mr. Bell, the number of bull calves was constantly very far in excess of the heifers.[3020] Of the in-and-in bred Warlaby branch of short-horns, Mr. Carr says that it "appears to have a most destructive propensity to breed bulls."[3021] Dr. Goehlert's statement as regards horses, just referred to, is corroborated by Crampe's investigations, which included more than two thousand different cases, all tending to prove that female foals predominate in proportion as the parent animals differ in colour.[3022]

We have seen that the Todas of the Neilgherry Hills are probably the most in-and-in bred people of whom anything is known, and we have also seen how, among them, the disproportion between male and female births is strikingly in favour of the males. Among the Badagas, a neighbouring people, who, like the Todas, have numerous subdivisions of caste, each of which differs in some social or ceremonial custom,[3023] and all of which, probably, are endogamous, there is also a considerable surplus of men.[3024] Now it is very remarkable that in another tribe inhabiting the same hill ranges, the Kotars, who do not intermarry with the inhabitants of their own village, but always seek a wife from another "kotagiri," women are not so scarce as among the Todas and the Badagas.[3025] Among the endogamous Maoris, the men outnumber the women. So also among the Sinhalese, who consider marriage between the father's sister's son and the mother's brother's daughter the most proper union. Among the polyandrous Arabs mentioned by Strabo, marriage between cousins was the rule. The polyandrous mountaineer of South Africa, in almost

every case, marries a daughter of his father's brother.[3026] And with the Jews, among whom cousin marriages occur perhaps three times as often as among the surrounding populations,[3027] the proportion of births is probably more in favour of the males than among the non-Jewish population of Europe.[3028] All these facts, taken together, seem to render it probable that the degree of differentiation in the sexual elements of the parents exercises some influence upon the sex of the offspring, so that, when the differentiation is unusually great, the births are in favour of females; when it is unusually small, in favour of males.

We certainly cannot, from the numerical proportion of the sexes, especially at birth, draw any inference as to the form of marriage characteristic of the species. Among birds living in a state of nature, polyandry is almost unheard of, though, according to Dr. Brehm, the males are generally more numerous than the females.[3029] As for man, there are several non-polyandrous peoples among whom the men are considerably in excess of the women; whilst among other peoples polygyny is forbidden, though the women are in excess of the men. Nevertheless, the form of marriage depends to a great extent upon the proportion between the male and female population. Polyandry, as already said, is due chiefly to a surplus of men, though it prevails only where the circumstances are otherwise in favour of it. And, as regards polygyny, I cannot agree with M. Chervin that it is quite independent of the proportion between the sexes.[3030] It has been observed that, in India, polyandry occurs in those parts of the country where the males outnumber the females, polygyny in those where the reverse is the case.[3031] Indeed, in countries unaffected by European civilization, polygyny seems to prevail wherever women form the majority.

Thus the causes which determine the proportion of the sexes exercise some influence also upon the form of marriage. Among the Eskimo, for instance, who, according to Armstrong, take more than one wife when the women are sufficiently numerous,[3032] polygyny results chiefly from the dangerous life the men have to lead in order to gain their subsistence. Among the Indians of North America, it is, to a large extent, due to the wars which destroy many of the male population. In certain countries it seems to be furthered by physiological conditions leading to an excess of female births. As for polyandry, we have some reason to believe that it is due, on the one hand, to poor conditions of life, on the other to close intermarrying. As a matter of fact, the chief polyandrous peoples either live in sterile mountain regions, or are endogamous in a very high degree.

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There are several reasons why a man may desire to possess more than one wife. First, monogamy requires from him periodical continence. He has to live

apart from his wife, not only for a certain time every month,[3033] but, among many peoples, during her pregnancy also.[3034] Among the Shawanese, for instance, "as soon as a wife is announced to be in a state of pregnancy, the matrimonial rights are suspended, and continency preserved with a religious and mystical scrupulosity."[3035] This suspension of matrimonial rights is usually continued till a considerable time after child-birth. Among the Northern Indians, a mother has to remain in a small tent placed at a little distance from the others during a month or five weeks;[3036] and similar customs are found among many other peoples.[3037] Very commonly, in a state of savage and barbarous life, the husband must not cohabit with his wife till the child is weaned.[3038] And this prohibition is all the more severe, as the suckling-time generally lasts for two, three, four years, or even more. In Sierra Leone, it was looked upon as a crime of the most heinous nature if a wife cohabited with her husband before the child was able to run alone.[3039] Among the Makonde, in Eastern Africa, says Mr. Joseph Thomson, "when a woman bears a child, she lives completely apart from her husband till the child is able to speak, as otherwise it is believed that harm, if not death, would come to the infant."[3040] In Fiji, "the relatives of a woman take it as a public insult if any child should be born before the customary three or four years have elapsed."[3041] This long suckling-time is due chiefly to want of soft food and animal milk.[3042] But when milk can be obtained,[3043] and even when the people have domesticated animals able to supply them with it,[3044] this kind of food is often avoided. The Chinese, who are a Tartar people, and must have descended at one time from the "Land of Grass," entirely eschew the use of milk.[3045]

Professor Bastian suggests that it is on hygienic grounds, though almost instinctively, that a man abstains from cohabitation with his wife during her pregnancy, and as long as she suckles her child.[3046] But the reason seems rather to be of a religious character. Diseases are generally attributed by savages to the influence of some evil spirit.[3047] Among many peoples the attainment of the age of puberty is marked by most superstitious ceremonies.[3048] A woman, during the time of menstruation, is looked upon with a mystic detestation.[3049] It is therefore quite in accordance with primitive ideas that the appearance of a new being should be connected in some way with supernatural agencies. Among the Ashantees, according to Mr. Reade, "when conception becomes apparent, the girl goes through a ceremony of abuse, and is pelted down to the sea, where she is cleansed. She is then set aside; charms are bound on her wrists, spells are muttered over her, and, by a wise sanitary regulation, her husband is not allowed to cohabit with her from that time until she has finished nursing her child."[3050] A woman in child-bed is very commonly considered unclean.[3051] In China, a man of the upper classes does not speak to his wife within the first month after the birth of a child, and no

visitor will enter the house where she lives.[3052] According to early Aryan traditions, as v. Żmigrodzki remarks, a witch and a woman in child-bed are persons so intimately connected, that it is impossible to make any distinction between them.[3053]

One of the chief causes of polygyny is the attraction which female youth and beauty exercise upon man. Several instances have already been mentioned of a fresh wife being taken when the first wife grows old. Indeed, when a man, soon after he has attained manhood, marries a woman of similar age—not to speak of such countries as China and Corea, where the first wife is generally a woman from three to eight years older than her husband[3054]—he will still be a man in the prime of life, when the youthful beauty of his wife has passed away for ever. This is especially the case among peoples at the lower stages of civilization, among whom, as a rule, women get old much sooner than in more advanced communities.

Thus in California, according to Mr. Powers, women are rather handsome in their free and untoiling youth, but after twenty-five or thirty they break down under their heavy burdens and become ugly.[3055] Among the Mandans, the beauty of the women vanishes soon after marriage.[3056] The Kutchin women get "coarse and ugly as they grow old, owing to hard labour and bad treatment."[3057] Patagonian women are said to lose their youth at a very early age, "from exposure and hard work;" and among the Warraus, according to Schomburgk, "when the woman has reached her twentieth year, the flower of her life is gone."[3058] In New Zealand, Tahiti, Hawaii, and other islands of the South Sea, the beauty of women soon decays—"the result," says Mr. Angas, "of hard labour in some cases, and in others of early intercourse with the opposite sex, combined with their mode of living, which rapidly destroys their youthful appearance."[3059]

"Women of fifty in Europe," Stavorinus observes, "look younger and fresher than those of thirty in Batavia."[3060] At two and twenty, Dyak beauty "has already begun to fade, and the subsequent decay is rapid."[3061] Among the Manipuris and Garos, the women, pretty when young, soon become "hags";[3062] and this is true also of the Aino women in Yesso, partly, it is said, because of the exposed life they lead as children, partly because of the early age at which they marry and become mothers, and partly because of the hard life they continue to lead afterwards.[3063]

In Africa female beauty fades quickly. The Egyptian women, from the age of about fourteen to that of eighteen or twenty, are generally models of loveliness in body and limbs, but, when they reach maturity, their attractions do not long survive.[3064] In Eastern Africa, according to Sir R. F. Burton, the beauty of women is less perishable than in India and Arabia; but even there charms are on the wane at thirty, and, when old age comes on, the women are no exceptions

to "the hideous decrepitude of the East."[3065] Arab girls in the Sahara preserve only till about their sixteenth year that youthful freshness which the women of the north still possess in the late spring of their life;[3066] and, among the Ba-kwileh, women have no trace of beauty after twenty-five.[3067] Speaking of the Wolofs, Mr. Reade remarks that the girls are very pretty with their soft and glossy black skin, but, "when the first jet of youth is passed, the skin turns to a dirty yellow and creases like old leather; their eyes sink into the skull, and the breasts hang down like the udder of a cow, or shrivel up like a bladder that has burst."[3068] Among the Damaras, Ovambo, and Kafirs, women, soon after maturity, begin to wither, as we are told, on account of hard labour;[3069] and the Bushman women, it is said, soon become sterile from the same cause.[3070] Among the Fulah, it is rare for a woman older than twenty to become a mother; and in Unyoro Emin Pasha never saw a woman above twenty-five with babies.[3071]

Early intercourse with the opposite sex is adduced by several writers as the cause of the short prime of savage women. But I am disposed to think that physical exertion has a much greater influence. Even from a physiological point of view hard labour seems to shorten female youth. Statistics show that, among the poorer women of Berlin, menstruation ceases at a rather earlier age than among the well-off classes.[3072] It has been suggested that in hot countries women lose their beauty much sooner than in colder regions,[3073] whereas men are not affected in the same way by climate. But, so far as I know, we are still in want of exact information on this point.

A further cause of polygyny is man's taste for variety. Merolla da Sorrento asserts that the Negroes of Angola, who used to exchange their wives with each other for a certain time, excused themselves, when reproved, on the ground that "they were not able to eat always of the same dish."[3074] And in Egypt, according to Mr. Lane, "fickle passion is the most evident and common motive both to polygamy and repeated divorces."[3075]

Motives due to man's passions are not, however, the only causes of polygyny. We must also take into account his desire for offspring, wealth, and authority.

The barrenness of a wife is a very common reason for the choice of another partner. Among the Greenlanders, for instance, who considered it a great disgrace for a man to have no children, particularly no sons, a husband generally took a second wife, if the first one could not satisfy his desire for offspring.[3076] Among the Botis of Ladakh, says Lieutenant Cunningham, "should a wife prove barren, a second can be chosen, or should she have daughters only, a second can be chosen similarly."[3077] In the Mutsa tribe of Indo-China, polygyny is allowed only if the wife is sterile;[3078] and, among the Patuah or Juanga, the Eskimo at Prince Regent's Bay, and several other peoples, already

referred to, a man scarcely ever takes a second wife if the first wife gives him children.[3079] Among the Tuski, "if a man's wife bears only girls, he takes another until he obtains a boy, but no more."[3080] In China and Tonquin, and among the Munda Kols of Chota Nagpore, it sometimes happens that the barren wife herself advises her husband to take a fresh partner,[3081] as Rachel gave Jacob Bilhah.[3082]

The polygyny of the ancient Hindus seems to have been due chiefly to the fact that men dreaded the idea of dying childless, and M. Le Play observes that even now in the East the desire for offspring is one of the principal causes of polygyny.[3083] Dr. Gray makes the same remark as to the Chinese,[3084] Herr Andree as to the Jews.[3085] In Egypt, says Mr. Lane, "a man having a wife who has the misfortune to be barren, and being too much attached to her to divorce her, is sometimes induced to take a second wife, merely in the hope of obtaining offspring."[3086]

The more wives, the more children; and the more children, the greater power. Man in a savage and barbarous state is proud of a large progeny, and he who has most kinsfolk is most honoured and feared.[3087] Regarding certain Indians of North America, among whom the dignity of chief was elective, Heriot remarks that "the choice usually fell upon him who had the most numerous offspring, and who was therefore considered as the person most deeply interested in the welfare of the tribe."[3088] Among the Chippewas, says Mr. Keating, "the pride and honour of parents depend upon the extent of their family."[3089] Speaking of African polygyny, Sir R. F. Burton observes that the "culture of the marriage tie is necessary among savages and barbarians, where, unlike Europe, a man's relations and connections are his only friends; besides which, a multitude of wives ministers to his pride and influence, state and pleasure."[3090] Bosman tells us of a viceroy tributary to the negro king of Fida, who, assisted only by his sons and grandsons with their slaves, repulsed a powerful enemy who came against him. This viceroy, with his sons and grandsons, could make out the number of two thousand descendants, not reckoning daughters or any that were dead.[3091] Moreover, in a state of nature, next to a man's wives, the real servant, the only one to be counted upon, is the child.[3092]

A husband's desire for children often leads to polygyny in countries where the fecundity of women is at a low rate. More than a hundred years ago, Dr. Hewit observed that women are naturally less prolific among rude than among polished nations.[3093] This assertion, though not true universally,[3094] is probably true in the main. "It is a very rare occurrence for an Indian woman," says Mr. Catlin, "to be 'blessed' with more than four or five children during her life; and, generally speaking, they seem contented with two or three."[3095] This statement is confirmed by the evidence of several other authorities;[3096]

and it holds good not only for the North American Indians, but, upon the whole, for a great many uncivilized peoples.[3097] Some writers ascribe this slight degree of prolificness to hard labour,[3098] or to unfavourable conditions of life in general.[3099] That it is partly due to the long period of suckling is highly probable, not only because a woman less easily becomes pregnant during the time of lactation, but also on account of the continence in which she often has to live during that period. The mortality of children is very great among savages,[3100] and this, co-operating with other causes to keep the family small, makes polygyny seem to many peoples absolutely necessary. Speaking of the Equatorial Africans, Mr. Reade says, "Propagation is a perfect struggle; polygamy becomes a law of nature; and even with the aid of this institution, so favourable to reproduction, there are fewer children than wives."[3101]

A man's fortune is increased by a multitude of wives not only through their children, but through their labour. An Eastern Central African, says Mr. Macdonald, finds no difficulty in supporting even hundreds of wives. "The more wives he has, the richer he is. It is his wives that maintain him. They do all his ploughing, milling, cooking, &c. They may be viewed as superior servants who combine all the capacities of male servants and female servants in Britain—who do all his work and ask no wages."[3102] Manual labour among savages is undertaken chiefly by women; and, as there are no day-labourers or persons who will work for hire, it becomes necessary for any one who requires many servants to have many wives. Mr. Wood remarks that, when an Indian can purchase four or five wives, their labour in the field is worth even more to the household than his exertions in hunting.[3103] "The object of the Kutchin," says Mr. Kirby, "is to have a greater number of poor creatures whom he can use as beasts of burden for hauling his wood, carrying his meat, and performing the drudgery of his camp."[3104] A Modok defends his having several wives on the plea that he requires one to keep house, another to hunt, another to dig roots.[3105] In the Solomon Islands in New Guinea, at the Gold Coast, and in other places where the women cultivate the ground, a plurality of wives implies a rich supply of food;[3106] whilst, among the Tartars, according to Marco Polo, wives were of use to their husbands as traders.[3107]

A multitude of wives increases a man's authority, not only because it increases his fortune and the number of his children, or because it makes him able to be liberal and keep open doors for foreigners and guests,[3108] but also because it presupposes a certain superiority in personal capabilities, wealth, or rank. Statements such as "a man's greatness is ever proportionate to the number of his wives," or "polygamy is held to be the test of his wealth and consequence," are very frequently met with in books of travels. Thus the Apache "who can support or keep, or attract by his power to keep, the greatest

number of women, is the man who is deemed entitled to the greatest amount of honour and respect."[3109]

However desirable polygyny may be from man's point of view, it is, as we have seen, altogether prohibited among many peoples, and, in countries where it is an established institution, it is practised, as a rule to which there are few exceptions, only by a comparatively small class. The proportion between the sexes partly accounts for this. But there are other causes of no less importance.

In ethnographical descriptions it is very often stated that a man takes as many wives as he is able to maintain. Where the amount of female labour is limited, where life is supported by hunting, where agriculture is unknown, and no accumulated property worth mentioning exists, it may be extremely difficult for a man to keep a plurality of wives. Among the Patagonians, for instance, it is chiefly those who possess some property who take more than one wife.[3110] Regarding the Tuski, Mr. Hooper states that "each man has as many wives as he can afford to keep, the question of food being the greatest consideration."[3111] In Oonalashka, according to v. Langsdorf, a man who had many wives, if his means decreased, sent first one, then another back to their parents.[3112]

Again, where female labour is of considerable value, the necessity of paying the purchase-sum for a wife very often makes the poorer people content with monogamy. Thus among the Zulus, Mr. Eyles writes, many men have but one wife because cattle have to be paid for women. Among the Gonds and Korkús, according to Mr. Forsyth, "polygamy is not forbidden, but, women being costly chattels, it is rarely practised."[3113] Among the Bechuanas, says Andersson, there is no limit, but his means of purchase, to the number of wives a man may possess.[3114] And the same is observed with reference to a great many other peoples, especially in Africa, where the woman-trade is at its height. Polygyny is, moreover, checked to some extent by the man's obligation to serve for his wife for a certain number of years, and even more by his having to settle down with his father-in-law for the whole of his life.

So far as the woman is allowed to choose, she prefers, other things being equal, the man who is best able to support her, or the man of the greatest wealth or highest position. Naturally, therefore, wherever polygyny prevails, it is the principal men—whether they owe their position to birth, skill, or acquired wealth—who have the largest number of wives; or it may be that they alone have more than one wife. Speaking of the Ainos of Yesso, Commander H. C. St. John says that a successful or expert hunter or fisher sometimes keeps two wives; and, if a woman finds her husband an unsuccessful Nimrod, she abandons him.[3115] Among the Aleuts, "the number of wives was not limited, except that the best hunters had the greatest number."[3116] Among the Kutchin, "polygamy is practised generally in proportion to the rank and wealth of the man;"[3117] and, among the Brazilian aborigines and the Arau-

canians, polygyny occurs only or chiefly among rich men and chiefs.[3118] Touching the Equatorial Africans, Mr. Reade remarks, "The bush-man can generally afford but one wife, who must find him his daily bread.... But the rich man can indulge in the institutions of polygamy and domestic slavery."[3119] In Dahomey, as we are told, "the king has thousands of wives, the nobles hundreds, others tens; while the soldier is unable to support one."[3120] In the New Hebrides, polygyny prevails especially among the chiefs; in Naiabui of New Guinea, "the head men only have more than two or three wives;" and, in South Australia, "the old men secure the greatest number."[3121]

Thus polygyny has come to be associated with greatness, and is therefore, as Mr. Spencer remarks, thought praiseworthy, while monogamy, as associated with poverty, is thought mean.[3122] Indeed, plurality of wives has everywhere tended to become a more or less definite class distinction, the luxury being permitted, among some peoples, only to chiefs or nobles.

One of the most important of the influences which determine the form of marriage is the position of women, or rather the respect in which they are held by men. For polygyny implies a violation of woman's feelings.

Several statements tend to show that jealousy and rivalry do not always disturb the peace in polygynous families. It sometimes happens that the first wife herself brings her husband a fresh wife or a concubine, or advises him to take one, when she becomes old herself, or if she proves barren, or has a suckling child, or for some other reason.[3123] In Equatorial Africa, according to Mr. Reade, the women are the stoutest supporters of polygyny:—"If a man marries," he says, "and his wife thinks that he can afford another spouse, she pesters him to marry again, and calls him 'a stingy fellow' if he declines to do so."[3124] Speaking of the Makalolo women, Livingstone observes, "On hearing that a man in England could marry but one wife, several ladies exclaimed that they would not like to live in such a country: they could not imagine how English ladies could relish our custom, for, in their way of thinking, every man of respectability should have a number of wives, as a proof of his wealth. Similar ideas prevail all down the Zambesi."[3125] Among the Californian Modok also, according to the Hon. A. B. Meacham, the women are opposed to any change in the polygynous habits of the men.[3126] But such statements may easily be misinterpreted. Often the wives live peacefully together only in consequence of the strict discipline of the husband.[3127] They put up with polygyny, thanks to long custom; they even approve of it where it procures them advantages. The consideration of the whole family, and especially of the first wife, is increased by every new marriage the husband concludes.[3128] Where the wife is her husband's slave, polygyny implies a greater division of labour. This is the reason why, among the Apaches, the women do not object to it; why, among the Bagobos of the Philippines, they rejoice at the arrival

of a new wife; why, in the Mohammedan East, they themselves encourage the husband to marry more wives.[3129] Among the Arabs of Upper Egypt, says Baker, one of the conditions of accepting a suitor is, that a female slave is to be provided for the special use of the wife, although the slaves of the establishment occupy, at the same time, the position of concubines.[3130] Von Weber tells us of a Kafir woman who, on account of her heavy labour, passionately urged her husband to take another wife.[3131] Nevertheless, polygyny is an offence against the feelings of women, not only among highly civilized peoples, but even among the rudest savages. For jealousy is not exclusively a masculine passion, although it is generally more powerful in men than in women.[3132]

The Greenlanders have a saying that "whales, musk-oxen, and reindeer deserted the country because the women were jealous at the conduct of their husbands."[3133] Regarding the Northern Indians, Hearne says, "The men are in general very jealous of their wives, and I make no doubt but the same spirit reigns among the women, but they are kept so much in awe of their husbands, that the liberty of thinking is the greatest privilege they enjoy."[3134] Franklin tells us of an Indian woman who committed suicide by hanging herself, in a fit of jealousy; and another woman threw herself into the Mississippi with her child, when her husband took a new wife.[3135] As regards the Dacotahs, Mr. Prescott says that "polygamy is the cause of a great deal of their miseries and troubles. The women, most of them, abhor the practice, but are overruled by the men. Some of the women commit suicide on this account."[3136] The natives of Guiana, according to the Rev. W. H. Brett, live in comfort, as long as the man is content with one wife, but, when he takes another, "the natural feelings of woman rebel at such cruel treatment, and jealousy and unhappiness have, in repeated instances, led to suicide."[3137] Among the Tamanacs, says v. Humboldt, "the husband calls the second and third wife the 'companions' of the first; and the first treats these 'companions' as rivals and 'enemies' ('ipucjatoje')."[3138] Among the Charruas, it often happens that a woman abandons her husband if he has a plurality of wives, as soon as she is able to find another man who will take her as his only wife.[3139] And, when a Fuegian has as many as four women, his hut is every day transformed into a field of battle, and many a young and pretty wife must even atone with her life for the precedence given her by the common husband.[3140]

In the islands of the Pacific similar scenes occur. The missionary Williams's wife once asked a Fiji woman who was minus her nose, "How is it that so many of your women are without a nose?" "It is due to a plurality of wives," was the answer; "jealousy causes hatred, and then the stronger tries to cut or bite off the nose of the one she hates."[3141] In Tukopia, many a wife who believed another woman to be preferred by the husband committed suicide. [3142] Among the Australian aborigines, the old wives are extremely jealous

of their younger rivals, so that "a new woman would always be beaten by the other wife, and a good deal would depend on the fighting powers of the former whether she kept her position or not."[3143] Among the Narrinyeri, according to the Rev. A. Meyer, the several wives of one man very seldom agree well with each other; they are continually quarrelling, each endeavouring to be the favourite.[3144] "The black women," says Herr Lumholtz, "are also capable of being jealous."[3145]

Among the Sea Dyaks, according to Sir Spenser St. John, the wife is much more jealous of her husband than he is of her.[3146] In China, many women dislike the idea of getting married, as they fear that, should their husbands become polygynists, there would remain for them a life of unhappiness. Hence, some become Buddhist or Taouist nuns, and others prefer death by suicide to marriage.[3147] Mr. Balfour asserts that, among the Mohammedans and ruling Hindu races who permit and practise polygyny, it causes much intriguing and disquiet in homes.[3148] According to Mr. Tod, it "is the fertile source of evil, moral as well as physical, in the East."[3149] The same view is taken by Pischon and d'Escayrac de Lauture with regard to the polygyny of the Mohammedans.[3150] In Persia, says Dr. Polak, a married woman cannot feel a greater pain than if her husband takes a fresh wife, whom he prefers to her; then she is quite disconsolate.[3151] In Egypt, quarrels between the various women belonging to the same man are very frequent, and often the wife will not even allow her female slave or slaves to appear unveiled in the presence of her husband.[3152] In the description, in the Book of Proverbs, of domestic happiness, it is assumed that the husband has only one wife;[3153] and, in the latter part of the 'Rig-Veda,' there are hymns in which wives curse their fellow-wives.[3154]

The Abyssinian women are described as very jealous; and in the polygynous families of the Eastern Africans, Zulus, Basutos, &c., quarrels frequently arise.[3155] The Hova word for polygyny is derived from the root "ràfy," which means "an adversary." "So invariably," says the Rev. J. Sibree, "has the taking of more wives than one shown itself to be a fruitful cause of enmity and strife in a household, that this word, which means 'the making an adversary,' is the term always applied to it.... The different wives are always trying to get an advantage over each other, and to wheedle their husband out of his property; constant quarrels and jealousy are the result, and polygamy becomes inevitably the causing of strife, 'the making an adversary.'"[3156] Statements of this kind cannot but shake our confidence in the optimistic assertions of Dr. Le Bon and other defenders of polygyny.[3157]

In order to prevent quarrels and fights between the wives, the husband frequently gives each of them a separate house. It is probably in part for the same reason that, among several peoples, wives are usually chosen from one family. In general, says Domenech, when an Indian wishes to have many wives,

he chooses before all others, if he can, sisters, because he thinks he can thus secure more domestic peace.[3158] This is true of many of the North American aborigines;[3159] a man who marries the eldest daughter of a family secures in many cases the right to marry all her sisters as soon as they are old enough to become his wives.[3160] The same practice is said to prevail in Madagascar, [3161] and, combined with polyandry, among certain peoples of India. But it is obvious that the evils of polygyny are not removed by such arrangements.

Where women have succeeded in obtaining some power over their husbands, or where the altruistic feelings of men have become refined enough to lead them to respect the feelings of those weaker than themselves, monogamy is generally considered the only proper form of marriage. Among monogamous savage or barbarous races the position of women is comparatively good; and the one phenomenon must be regarded as partly the cause, partly the effect of the other. The purely monogamous Iroquois, to quote Schoolcraft, are "the only tribes in America, north and south, so far as we have any accounts, who gave to woman a conservative power in their political deliberations. The Iroquois matrons had their representative in the public councils; and they exercised a negative, or what we call a veto power, in the important question of the declaration of war. They had the right also to interpose in bringing about a peace."[3162] Moreover, they had considerable privileges in the family.[3163] Among the Nicaraguans—a people almost wholly monogamous,—the husbands are said to have been so much under the control of their wives that they were obliged to do the housework, while the women attended to the trading.[3164] Among the Zapotecs and other nations inhabiting the Isthmus of Tehuantepec, who do not permit polygyny, "gentleness, affection, and frugality characterize the marital relations."[3165] In New Hanover[3166] and among the Dyaks, [3167] the wife seems to have a kind of authority; and among the Minahassers, according to Dr. Hickson, "the woman is, and probably has been for many generations, on a footing of equality with her husband."[3168] Mr. Man states that, in the Andaman Islands, "the consideration and respect with which women are treated might with advantage be emulated by certain classes in our own land."[3169] The Pádam wives are treated by their husbands with a regard that seems singular in so rude a race. "But I have seen," says Colonel Dalton, "other races as rude who in this respect are an example to more civilized people. It is because with these rude people the inclination of the persons most interested in the marriage is consulted, and polygamy is not practised."[3170] The Munda Kols of Chota Nagpore call a wife "the mistress of the house," and she takes up a position similar to that of a married woman in Europe.[3171] The Santal women, who enjoy the advantage of reigning alone in the husband's wigwam, according to Mr. E. G. Man, hold a much higher status in the family circle than their less fortunate sisters in most Eastern countries.[3172] The Kandhs, Bodo,

and Dhimáls treat their wives and daughters with confidence and kindness, and consult them in all domestic concerns.[3173] Among the monogamous Moors of the Western Soudan, the women exercise a considerable influence on the men, who take the greatest pains to pay them homage.[3174] The Touareg wives' authority is so great that, although Islam permits polygyny, the men are forced to live in monogamy.[3175] Among the monogamous Tedâ, the women hold a very high position in the family.[3176] As for European monogamy, there can be no doubt that it owes its origin chiefly to the consideration of men for the feelings of women.

The form of marriage is, further, influenced by the quality of the passions which unites the sexes. When love depends entirely on external attractions, it is necessarily fickle; but when it implies sympathy arising from mental qualities, there is a tie between husband and wife which lasts long after youth and beauty are gone.

It remains for us to note the true monogamous instinct, the absorbing passion for one, as a powerful obstacle to polygyny. "The sociable interest," Professor Bain remarks, "is by its nature diffused: even the maternal feeling admits of plurality of objects; revenge does not desire to have but one victim; the love of domination needs many subjects; but the greatest intensity of love limits the regards to one."[3177] The beloved person acquires, in the imagination of the lover, an immeasurable superiority over all others. "The beginnings of a special affection," the same psychologist says, "turn upon a small difference of liking; but such differences are easily exaggerated; the feeling and the estimate acting and re-acting, till the distinction becomes altogether transcendent."[3178] This absorbing passion for one is not confined to the members of civilized societies. It is found also among savage peoples, and even among some of the lower animals. Hermann Müller, Brehm, and other good observers have proved that it is experienced by birds; and Mr. Darwin found it among certain domesticated mammals.[3179] The love-bird rarely survives the death of its companion, even when supplied with a fresh and suitable mate.[3180] M. Houzeau states, on the authority of Frédéric Cuvier, "Lorsque l'un des ouistitis (Harpale jacchus) du Jardin des Plantes de Paris vint à mourir l'époux survivant fut inconsolable. Il caressa longtemps le cadavre de sa compagne; et quand à la fin il fut convaincu de la triste réalité, il se mit les mains sur les yeux, et resta sans bouger et sans prendre de nourriture, jusqu'à ce qu'il eût lui-même succombé."[3181]

Among the Indians of Western Washington and North-Western Oregon, says Dr. Gibbs, "a strong sensual attachment undoubtedly often exists, which leads to marriage, as instances are not rare of young women destroying themselves on the death of a lover."[3182] The like is said of other Indian tribes, in which suicide from unsuccessful love has sometimes occurred even among men.[3183] Colonel Dalton represents the Pahária lads and lasses as forming

very romantic attachments; "if separated only for an hour," he says, "they are miserable."[3184] Davis tells us of a negro who, after vain attempts to redeem his sweetheart from slavery, became a slave himself rather than be separated from her.[3185] In Tahiti, unsuccessful suitors have been known to commit suicide;[3186] and even the rude Australian girl sings in a strain of romantic affliction—

"I never shall see my darling again."[3187]

As a man, under certain circumstances, desires many wives, so a woman may have several reasons for desiring a plurality of husbands. But the jealousy of man does not readily suffer any rivals, and, as he is the stronger, his will is decisive. Hence, where polyandry occurs, it is only exceptionally a result of the woman's wishes.

Various causes have been adduced for this revolting practice. The difficulty of raising the sum for a wife, and the expense of maintaining women may perhaps in part account for it.[3188] Regarding polyandry in Kunawar, the Rev. W. Rebsch says that the cause assigned is not poverty, but a desire to keep the common patrimony from being distributed among a number of brothers.[3189] Some writers believe that polyandry subserves the useful end of preventing the woman from being exposed to danger and difficulty, when she is left alone in her remote home during the prolonged absences of her lord.[3190] According to the Sinhalese, the practice originated in the so-called feudal times, when the enforced attendance of the people on the king and the higher chiefs would have led to the ruin of the rice lands, had not some interested party been left to look after the tillage. But Sir Emerson Tennent remarks that polyandry is much more ancient than the system thus indicated: it is shown to have existed at a period long antecedent to "feudalism."[3191] To whatever other causes the practice may be attributed, the chief immediate cause is, no doubt, a numerical disproportion between the sexes.

Chapter XXII — The Forms of Human Marriage

(Concluded)

As to the history of the forms of human marriage, two inferences regarding monogamy and polygyny may be made with absolute certainty: monogamy, always the predominant form of marriage, has been more prevalent at the lowest stages of civilization than at somewhat higher stages; whilst, at a still higher stage, polygyny has again, to a great extent, yielded to monogamy.

As already said, wars, often greatly disturbing the proportion of the sexes among peoples with a highly developed tribal organization, exercise a much smaller influence in that respect in societies of a ruder type. As in such societies

all men are nearly equal, and, to quote Mr. Wallace, "each man scrupulously respects the rights of his fellow, and any infraction of those rights rarely or never takes place,"[3192] no great scope is left for polygynous habits.

Plurality of wives has comparatively few attractions for the men of rude communities, where life is supported chiefly by hunting, and female labour is of slight value. In societies of a higher kind, the case is different. True, in such societies a man has to buy his wife, and women are often costly chattels; but this obstacle to polygyny is more than counterbalanced by the accumulation of wealth and the distinction of classes.

Nothing, indeed, is more favourable to polygyny than social differentiation. "In its highest and regulated form," Mr. Morgan justly observes, "it presupposes a considerable advance of society, together with the development of superior and inferior classes, and of some kinds of wealth."[3193] Speaking of the Iroquois, Colden long ago remarked that, "in any nation where all are on a par as to riches and power, plurality of wives cannot well be introduced."[3194] According to Waitz, the reason why polygyny is very rare among the Hottentots is, that they do not know of any disparity in rank and wealth.[3195] The Rock Veddahs have no class distinction, and, though each party among them has a headman—the most energetic senior of the tribe,—he exercises scarcely any authority.[3196] Almost the same may be said of most of the monogamous savage peoples whom we have mentioned. Thus, among the Pádams, all, except slaves, are equal in rank;[3197] and of the Kukis it is said that all eat and drink together, and that "one man is as good as another."[3198] This is true of the Chittagong Hill tribes in general, who enjoy a perfect social equality, their nomadic life precluding any great accumulation of wealth.[3199] Among the Hill Dyaks, as Mr. Spencer observes, chiefs are unable to enforce genuine subordination; the headman of each Bodo and Dhimál village has but nominal authority; and the governor of a Pueblo town is annually elected.[3200] In Tana, where the authority of a chief does not seem to extend a gunshot beyond his own dwelling, few chiefs have more than three wives, and most of them have only one or two.[3201] On the other hand, throughout Africa, polygyny and great class distinctions occur simultaneously. We may therefore safely conclude that polygyny became more prevalent in proportion as differentiation increased with the progress of civilization.

It is a notable fact that the higher savages and barbarians indulge in this practice to a greater extent than the very lowest races. These, with few exceptions, are either strictly monogamous, or but little addicted to polygyny. The lowest forest tribes in Brazil and the interior of Borneo are monogamous. Among the Veddahs and Andamanese, monogamy is as rigidly insisted upon as anywhere in Europe. According to Captain Lewin, the monogamous Toungtha are "unamenable to the lures of civilization," and he thinks it will be found

difficult, if not impossible, to wean them from their savage life.[3202] The Mrús are despised as wild men by the polygynous Khyoungtha;[3203] and the Californians, who, according to Mr. Powers, were far less addicted to polygyny than the Atlantic Indians, are "a humble and a lowly race, ... one of the lowest on earth."[3204]

Certain peoples who were originally monogamous are known to have adopted polygyny under the influence of a higher civilization. Thus, according to Professor Vámbéry, there is not a single indication that polygyny was an institution of the primitive Turco-Tartars, and even now it is almost unknown among the nomadic peoples of that race.[3205] Dr. Mason and Mr. Smeaton state that, among the Karens, it is occasionally practised only by those who are brought much in contact with the Burmese.[3206] Among the Hindus, according to Mr. Dutt, polygyny seems to have grown in the latter part of the Vedic age, as there are scarcely any allusions to it in the earlier hymns.[3207] Goguet observes that "fables which can be traced back to the earliest times give us no instance of any man's having more than one lawful wife."[3208] Although the majority of the heroes in the writings of Kalidasa are described as polygynists,[3209] the principal divinities whom the Hindus acknowledge are represented as married to but one legitimate wife.[3210] The higher position so generally granted to the first married wife in polygynous families seems to indicate in most cases a transition from monogamous to polygynous habits, and not vice versa, as has often been suggested.[3211]

Monogamy is the more likely to have prevailed almost exclusively among our earliest human ancestors, since it does so among the man-like apes. Mr. Darwin certainly mentions the Gorilla as a polygamist;[3212] but the majority of statements we have regarding this animal are to the opposite effect. Relying on the most trustworthy authorities, Professor Hartmann says, "The Gorilla lives in a society consisting of male and female and their young of varying ages."[3213]

We may thus take for granted that civilization up to a certain point is favourable to polygyny; but it is equally certain that in its higher forms it leads to monogamy.

One of the chief advantages of civilization is the decrease of wars. The death-rate of men has consequently become less, and the considerable disproportion between the sexes which, among many warlike peoples, makes polygyny almost a law of nature, no longer exists among the most advanced nations. No superstitious belief keeps the civilized man apart from his wife during her pregnancy and whilst she suckles her child; and the suckling time has become much shorter since the introduction of domesticated animals and the use of milk. To a cultivated mind youth and beauty are by no means the only attractions of a woman; and civilization has made female beauty more durable. The

desire for offspring as we have seen, has become less intense. A large family, instead of being a help in the struggle for existence, is often considered an insufferable burden. A man's kinsfolk are not now his only friends, and his wealth and power do not depend upon the number of his wives and children. A wife has ceased to be a mere labourer, and for manual labour we have to a great extent substituted the work of domesticated animals and the use of implements and machines.[3214] Polygyny has thus, in many ways, become less desirable for the civilized man than it was for his barbarian and savage ancestors. And other causes have co-operated to produce the same result.

When the feelings of women are held in due respect, monogamy will necessarily be the only recognized form of marriage. In no way does the progress of mankind show itself more clearly than in the increased acknowledgment of women's rights, and the causes which, at lower stages of development, may make polygyny desired by women themselves, do not exist in highly civilized societies. The refined feeling of love, depending chiefly upon mutual sympathy and upon appreciation of mental qualities, is scarcely compatible with polygynous habits; and the passion for one has gradually become more absorbing.

Will monogamy be the only recognized form of marriage in the future? This question has been answered in different ways. According to Mr. Spencer, "the monogamic form of the sexual relation is manifestly the ultimate form; and any changes to be anticipated must be in the direction of completion and extension of it."[3215] Dr. Le Bon, on the other hand, thinks that European laws will, in the future, legalize polygyny;[3216] and M. Letourneau remarks that, although we may now look upon monogamy as superior to any other form of marriage yet known, "we need not consider it the Ultima Thule in the evolution of connubial ceremonies."[3217] But we may without hesitation assert that, if mankind advance in the same direction as hitherto; if, consequently, the causes to which monogamy in the most progressive societies owes its origin continue to operate with constantly growing force; if, especially, altruism increases, and the feeling of love becomes more refined, and more exclusively directed to one, —the laws of monogamy can never be changed, but must be followed much more strictly than they are now.

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Mr. McLennan suggests that, in early times, polyandry was the rule and monogamy and polygyny exceptions. According to his view, the only marriage law in which female kinship could have originated was polyandry—polyandry of "the ruder sort," in which the husbands are not kinsmen. And it is, he says, impossible not to believe that the Levirate—that is, the practice of marrying a dead brother's widow—is derived from polyandry.[3218] The fallacy of the first inference, which assumes the system of "kinship through females only"

to depend upon uncertainty as to fathers, has already been shown. The second inference will be found to be equally erroneous.

The Levirate is undoubtedly a wide-spread custom;[3219] and, if it could be proved to be a survival of polyandry, we should be compelled to conclude that this form of marriage was at one time very common. Where women are regarded as property, they are, of course, inherited like other possessions.[3220] In many cases the brother, or, in default of a brother, the nearest male relation, is expressly stated to be entitled to have the widow; and, if he does not marry her, he has nevertheless, the guardianship over her, and may give her away or sell her to some other man.[3221] But there are several peoples who consider the Levirate a duty rather than a right.[3222] Among the Thlinkets, for example, when a husband dies, his brother or his sister's son must marry the widow, and the neglect of this obligation has occasioned bloody feuds.[3223] The law requiring a man to take care of a sister-in-law is analogous to other duties devolving on kinsfolk, such as the vendetta, &c. Mr. McLennan lays stress on the fact that it is the deceased husband's brother who inherits his widow. "How came the right of succession," he says, "to open, as in the ruder cases, to the brother in preference to the son of the deceased? We repeat that the only explanation that can be given of this is, that the law of succession was derived from polyandry."[3224] But among many of the peoples who have the custom of the Levirate, sons either inherit nothing or are preceded by brothers in succession.[3225] Among the Santals, for instance, "when the elder brother dies, the next younger inherits the widow, children, and all the property."[3226] Among a few peoples, the widow together with the other property of the dead man goes either to his brother or to his sister's son.[3227] But it is more natural, where succession runs in the female line, that the widow should be married by the brother than by the nephew, because, as a rule, she is much older than the nephew, and he, in many cases, is too young to marry and to maintain her properly.

Even when a son inherits the other property of his father, it is easy to understand why he does not inherit the widow. To inherit her is, generally speaking, to marry her. But nowhere is a son allowed to marry his own mother; hence it is natural, at least where monogamy prevails, that the right of succession in this case should belong to the brother. In polygynous families, on the other hand, it often happens that the eldest son, or all the sons, inherit the father's widows, the mother being in each case excepted.[3228] Among the Bakalai, a tribe in Equatorial Africa, widows are permitted to marry the son of their deceased husband, and, if there be no son, they may live with the deceased husband's brother.[3229] As regards the Negroes of Benin, Bosman states that, if the mother of the eldest son, the only heir, be alive, he allows her a proper maintenance, but his father's other widows, especially those who have not had

children, the son takes home, if he likes them, and uses as his own; but if the deceased leaves no children, the brother inherits all his property.[3230] Among the Mishmis, the heir obtains the wives, with the exception of his own mother, who goes to the next male relation.[3231] Concerning the Kafirs of Natal, Mr. Shooter observes that, "when a man dies, those wives who have not left the kraal remain with the eldest son. If they wish to marry again, they must go to one of their late husband's brothers."[3232] The rules of succession are thus modified according to circumstances, and they are not uniform even among the same people. It frequently happens that the brother succeeds to the chieftainship, whilst the son inherits the property of the dead man[3233]—no doubt because the brother, being older and more experienced, is generally better fitted for command than the son.[3234]

Mr. McLennan calls attention to the fact that, among certain peoples, the children begotten by the brother are accounted the children of the brother deceased.[3235] "It is obvious," he says, "that it could more easily be feigned that the children belonged to the brother deceased, if already, at a prior stage, the children of the brotherhood had been accounted the children of the eldest brother, i.e., if we suppose the obligation to be a relic of polyandry."[3236] But this explanation is very far-fetched. As Dr. Starcke justly observes, a man may, from a juridical point of view, be the father of a child, though he is not so in fact.[3237] In New Guinea, says M. Bink, "à la mort du père, c'est l'oncle (frère du père) qui se charge de la tutelle; si l'enfant devient orphelin, il reconnaît son oncle comme son père."[3238] In Samoa, the brother of a deceased husband considered himself entitled to have his brother's wife, and to be regarded by the orphan children as their father.[3239] And, among the Kafirs of Natal, the children of a deceased man's widow born in marriage with his brother, belong to his son.[3240] Quite in accordance with these facts, the children of a widow may be considered to belong to her former husband. Indeed, where death without posterity is looked upon as a horrible calamity, the ownership of the children is a thing of the utmost importance for the dead man. It is only when the deceased has no offspring that the Jewish, Hindu, and Malagasy laws prescribe that the brother shall "raise up seed" to him.

Mr. McLennan has thus failed in his attempt to prove that polyandry has formed a general stage in the development of marriage institutions; and we may almost with certainty infer that it has always been exceptional. We have already pointed out the groundlessness of Mr. McLennan's suggestion that in all, or nearly all, the primitive hordes there was a want of balance between the sexes, the men being in the majority on account of female infanticide.[3241] Moreover, though polyandry is due to an excess of men, it would be a mistake to conclude that an excess of men always causes polyandry. This practice presupposes an abnormally feeble disposition to jealousy—a peculiarity of all

peoples among whom polyandry occurs. The Eskimo are described as a race with extraordinarily weak passions.[3242] Among the Sinhalese, says Dr. Davy, jealousy is not very troublesome among the men, and the infidelity of a woman is generally easily forgiven.[3243] The people of Ladakh are a mild, timid, and indolent race.[3244] The Kulu husbands "sont très peu jaloux."[3245] The same is said by Mr. Fraser with regard to the people of Sirmore. The women are "entirely at the service of such as will pay for their favours, without feeling the slightest sense of shame or crime in a practice from which they are not discouraged by early education, example, or even the dread of their lords, who only require a part of the profit."[3246] The Tibetans are represented as very little addicted to jealousy,[3247] being, as Mr. Wilson remarks, a race of a peculiarly placid and unpassionate temperament.[3248] But such a lack of jealousy, as we have seen, is a rare exception in the human race, and utterly unlikely to have been universal at any time.

Polyandry seems, indeed, to presuppose a certain amount of civilization. We have no trustworthy account of its occurrence among the lowest savage races. Mr. Bridges writes that the Yahgans of Tierra del Fuego consider it utterly abominable. With regard to the Veddahs, Mr. Bailey states, "Polyandry is unknown among them. The practice is alluded to with genuine disgust. I asked a Veddah once what the consequence would be if one of their women were to live with two husbands, and the unaffected vehemence with which he raised his axe, and said, 'A blow would settle it,' showed conclusively to my mind the natural repugnance with which they regard the national custom of their Kandyan neighbours."[3249] These neighbours are much superior to the Veddahs in civilization; and the other peoples practising polyandry have left the lowest stages of development far behind them. The Eskimo are a rather advanced race, and so are the polyandrous nations of the Asiatic continent. Speaking of the people of Sirmore, Mr. Fraser observes, "It is remarkable that a people so degraded in morals, and many of whose customs are of so revolting a nature, should in other respects evince a much higher advancement in civilization than we discover among other nations, whose manners are more engaging, and whose moral character ranks infinitely higher. Their persons are better clad and more decent; their approach more polite and unembarrassed; and their address is better than that of most of the inhabitants of the remote Highlands of Scotland; ... and their houses, in point of construction, comfort and internal cleanliness, are beyond comparison superior to Scottish Highland dwellings."[3250] On the arrival of the Spaniards, the polyandrous inhabitants of Lancerote were distinguished from the other Canarians, who were strictly monogamous, by marks of greater civilization.[3251]

We have seen that in polyandrous families the husbands are generally brothers, and that the eldest brother, at least in many cases, has the superiority,

the younger husbands having almost the position, if the term may be used, of male concubines. It is a fair conclusion that, in such instances, polyandry was originally an expression of fraternal benevolence on the part of the eldest brother, who gave his younger brothers a share in his wife, if, on account of the scarcity of women, they would otherwise have had to live unmarried. If additional wives were afterwards acquired, they would naturally be considered the common property of all the brothers. In this way the group-marriage of the Toda type seems to have been evolved.

Chapter XXIII — The Duration of Human Marriage

The time during which marriage lasts, varies very considerably among different species. According to Dr. Brehm, most birds pair for life,[3252] while among the mammals, with the exception of man and perhaps the anthropomorphous apes, the same male and female scarcely ever live together longer than a year.[3253] In human marriage every degree of duration is met with—from unions which, though legally recognized as marriages, do not endure long enough to deserve to be so called, to others which are dissolved only by death.

There are a few remarkable instances of peoples among whom separation is said to be entirely unknown. In the Andaman Islands, according to Mr. Man, "no incompatibility of temper or other cause is allowed to dissolve the union."[3254] The same is said of certain Papuans of New Guinea,[3255] and of several tribes of the Indian Archipelago who have remained in their native state, and continue to follow ancient custom.[3256] The Veddahs of Ceylon have a proverb that "death alone separates husband and wife;" and Mr. Bailey assures us that they faithfully act on this principle.[3257]

As a general rule, however, human marriage is not necessarily contracted for life. The Indians of North America dissolve their unions as readily as they enter into them. The Wyandots had, it is said, marriages upon trial, which were binding for a few days only.[3258] In Greenland, husband and wife sometimes separate after living together for half a year.[3259] Among the Creeks, "marriage is considered only as a temporary convenience, not binding on the parties more than one year," the consequence being that "a large portion of the old and middle-aged men, by frequently changing, have had many different wives, and their children, scattered around the country, are unknown to them."[3260] Speaking of the Botocudos, Mr. Keane remarks that their marriages "are all of a purely temporary nature, contracted without formalities of any sort, dissolved on the slightest pretext, or without any pretext, merely through love of change or caprice."[3261] In Ruk, it frequently happens that newly married husbands repudiate their wives;[3262] and, in the Pelew and Kingsmill Groups,

and among the aborigines of Northern Queensland, divorces are of common occurrence.[3263] "Tasmanian lords," says Dr. Milligan, "had no difficulty, and made no scruple, about a succession of wives."[3264] Again, in Samoa, "if the marriage had been contracted merely for the sake of the property and festivities of the occasion, the wife was not likely to be more than a few days, or weeks, with her husband."[3265] In several of the Islands of the Indian Archipelago, "in the regular marriages the parties are always betrothed to each other for a longer or shorter time, sometimes not for more than a month and at others for a period of years."[3266] Among the Dyaks, there are few middle-aged men who have not had several wives, and instances have been known of young women of seventeen or eighteen who had already lived with three or four husbands.[3267] Among the Yendalines in Indo-China, it is rare for any woman to arrive at middle age without having a family by two or more husbands. [3268] The Maldivians, as we are informed by Mr. Rosset, are so fond of change that many a man marries and divorces the same woman three or four times in the course of his life.[3269] Among the Sinhalese, according to Knox, "both men and women have frequently to marry four or five times before they can settle down contented;"[3270] and Father Bourien says of the Mantras of the interior of the Malay Peninsula, that it is not uncommon to meet individuals who have married even forty or fifty different times.[3271] Among the Munda Kols, Khasias, Tartars,[3272] and most Mohammedan peoples,[3273] divorces are very frequent. According to Dr. van der Berg, an even more fatal influence is exercised on family life in the East by this laxity of the marriage tie than by polygyny.[3274] Burckhardt knew Bedouins forty-five years old who had had more than fifty wives.[3275] A "Sighe" wife in Persia is taken in marriage for a certain legally stipulated period, which may vary from one hour to ninety-nine years.[3276] In Cairo, according to Mr. Lane, there are not many persons who have not divorced one wife, if they have been married for a long time; and many men in Egypt have in the course of two years married as many as twenty, thirty, or more wives; whilst there are women, not far advanced in age, who have been wives to a dozen or more men successively. Mr. Lane has even heard of men who have been in the habit of marrying a new wife almost every month.[3277] In Morocco, Dr. Churcher writes to me, a terrible state of things springs from the ease with which divorce is obtained; a man repudiates his wife on the slightest provocation and marries again. "One of the servants here," he continues, "is reported to have had nineteen wives already, though he is still only middle-aged." Indeed, among the Moors of the Sahara, according to Mr. Reade, it is considered "low" for a couple to live too long together, and "the leaders of fashion are those who have been the oftenest divorced."[3278] Lobo tells us that, in Abyssinia, marriage was usually entered upon for a term of years;[3279] and, among the Somals, separation is exceedingly common.[3280]

Many negro peoples marry upon trial or for a fixed time.[3281] Among the Negroes of Bondo, a man may so often send away his wife and take a new one that it is difficult to know who is the father of the children born.[3282] Regarding the ancient Persians, Professor Rawlinson observes that the easiness of divorce among the Magians was in accordance with Eranian notions on the subject of marriage—"notions far less strict than those which have commonly prevailed among civilized nations."[3283] Among the Greeks, especially the Athenians,[3284] and among the Teutons,[3285] divorce often occurred; and in Rome, at the close of the Republic and the commencement of the Empire, it prevailed to a frightful extent.[3286]

Among uncivilized races, as a rule, and among many advanced peoples, a man may divorce his wife whenever he likes. The Aleuts used to exchange their wives for food and clothes.[3287] In Tonga, a husband divorces his wife by simply telling her that she may go.[3288] Among the Hovas of Madagascar, until the spread of Christianity, marriage was compared to a knot so lightly tied that it could be undone with the slightest possible touch.[3289] In Yucatan, a man might divorce his wife for the merest trifle, even though he had children by her.[3290] Among the ancient Hebrews,[3291] Greeks,[3292] Romans,[3293] and Germans,[3294] dislike was considered a sufficient reason for divorce, which was regarded as merely a private act.

Nevertheless, among a great many peoples, although a husband may divorce his wife, he does so only under certain exceptional conditions, marriage, as a rule, being concluded for life.[3295] The Greenlanders seldom repudiate wives who have had children.[3296] Among the Californian Wintun, according to Mr. Powers, it is very uncommon for a man to expel his wife. "In a moment of passion he may strike her dead, or ... ignominiously slink away with another, but the idea of divorcing and sending away a wife does not occur to him."[3297] Among the Naudowessies, divorce is so rare that Carver had no opportunity of learning how it is accomplished.[3298] Speaking of several tribes on the eastern side of the Rocky Mountains, Harmon remarks that separation between husband and wife is seldom permanent, the parties, after a few days' absence from one another, generally having an inclination to come together again.[3299] The Iroquois, in ancient times, regarded separation as discreditable to both man and woman, hence it was not frequently practised.[3300] If an Uaupé takes a new wife, the elder one is never turned away, but remains the mistress of the house.[3301] Among the Charruas and Patagonians, marriage lasts, as a rule, during the whole of life, if there are children.[3302] And, concerning the Yahgans, Mr. Bridges writes that there have been many instances amongst them of husband and wife living together until separated by death. The same is the case in Lifu, as I am informed by Mr. Radfield. In Tonga, according to Mariner, more than half of the number of married women were parted from

their husbands only by death.[3303] Among the Maoris[3304] and the Solomon Islanders,[3305] and in New Guinea,[3306] divorce is exceptional; and, even in Tahiti, the birth of children generally prevented the dissolution of marriage. [3307] In many of the islands of the Indian Archipelago, divorce may, by law or custom, be readily obtained, but Mr. Crawfurd says that it is very rarely sued for.[3308] The Garos, according to Colonel Dalton, "will not hastily make engagements, because, when they do make them, they intend to keep them."[3309] Among the Karens, Dr. Bunker writes, separations, save by death, are rare. Mr. Ingham informs me that, among the Bakongo, there are plenty of instances of husband and wife living together till death. Archdeacon Hodgson states the same regarding the Eastern Central Africans, Mr. Swann regarding the Waguha, Mr. Eyles regarding the Zulus. Among the Cis-Natalian Kafirs, according to Mr. Cousins, marriage, in the majority of instances, is contracted for life.[3310] In the early days of Hebrew history, says Ewald, it was only in exceptional cases that husbands made an evil use of the right to divorce a wife.[3311] Among the Greeks of the Homeric age, divorce seems to have been almost unknown, though it afterwards became an everyday event in Greece; [3312] and in Rome, in the earliest times, it was probably very little used.[3313]

Among many peoples custom or law has limited the husband's power to dispose of his wife, permitting divorce only under certain conditions. Thus, among the Kukis, "if a woman has a son by her husband, the marriage is indissoluble," though, if they do not agree, and have no son, the husband can cast off his wife and take another.[3314] The Red Karens in Indo-China allow divorce if there are no children; "but should there be one child, the parents are not permitted to separate."[3315] In the tribes of Western Victoria, described by Mr. Dawson, a man can divorce a childless wife for serious misconduct, but in every case the charge against her must first be laid before the chiefs of his own and his wife's tribes, and their consent to her punishment obtained. If the wife has children, she cannot be divorced.[3316] Among the Santals and the Tipperahs, divorce can be effected only with the consent of the husband's clansmen, or a jury of village elders.[3317] Several tribes of the Indian Archipelago do not allow a man to repudiate his wife, except in case of adultery;[3318] and certain negro peoples have a similar rule, so far as the chief or first wife is concerned. [3319] Among the Hottentots, according to Kolben, a man may divorce his wife only "upon showing such cause as shall be satisfactory to the men of the kraal where they live."[3320] Mr. Casalis states that, among the Basutos, "sterility is the only cause of divorce which is not subject to litigation;"[3321] and, according to Toda custom, the separation of married couples does not seem to be lightly tolerated.[3322] Among certain lower races the consent of the wife appears generally to be necessary for separation.[3323]

Civilized nations, more commonly than savages, consider marriage a union which must not be dissolved by the husband except for certain reasons stipulated by law. Among the Aztecs, it was looked upon as a tie binding for life, and divorce was always discouraged both by the magistrates and the community. The husband could repudiate even his concubines only for just cause and with the sanction of the courts, and the chief wife only for malevolence, dirtiness, or sterility.[3324] In Nicaragua, the sole offence for which a wife could be divorced was adultery.[3325] The Chinese code enumerates seven just causes of divorce —barrenness, lasciviousness, inattention to parents-in-law, loquacity, thievishness, ill-temper, and inveterate infirmity,—and a husband, except for one of these reasons, may not put away his wife on pain of receiving eighty blows.[3326] But these pretexts for divorce are very elastic. In one of the old Chinese books we read, "When a woman has any quality that is not good, it is but just and reasonable to turn her out of doors.... Among the ancients a wife was turned away if she allowed the house to be full of smoke, or if she frightened the dog with her disagreeable noise."[3327] Nevertheless, according to Mr. Medhurst, divorce is rare in China.[3328] In Japan a man might repudiate his wife for the same reasons as in China. But Professor Rein remarks that the Japanese seldom made use of this privilege, especially if there were children, as education and custom required that, in such cases, the wife should be treated with kindness and consideration.[3329] In Arabia, Mohammed regulated the law of divorce. "In the absence of serious reasons," says Ibrâhîm Halebî, "no Mussulman can justify divorce in the eyes either of religion or the law. If he abandon his wife or put her away from simple caprice, he draws down upon himself the divine anger, for 'the curse of God,' said the Prophet, 'rests on him who repudiates his wife capriciously.'"[3330] Practically, however, a Mohammedan may, whenever he pleases, without assigning any reason, say to his wife, "Thou art divorced," and she must return to her parents or friends.[3331]

According to the 'Laws of Manu,' a wife "who drinks spirituous liquor, is of bad conduct, rebellious, diseased, mischievous, or wasteful, may at any time be superseded by another wife. A barren wife may be superseded in the eighth year; one whose children all die, in the tenth; one who bears only daughters, in the eleventh; but one who is quarrelsome, without delay."[3332] At present, in Southern India, divorce is common among many of the lower castes; but it is not practised at all among the Brahmans and Kshatriyas, or among the higher classes of Śudras.[3333] In Rome under the Christian Emperors, the husband's right to put away his wife was restricted by imperial constitutions, which pointed out what were considered just causes of divorce.[3334] The dogma of the indissoluble nature of marriage, early vindicated by many Fathers in accordance with the injunction, "What God hath joined together, let not man put asunder," came into full force only by degrees. The Council of Trent

definitely suppressed the last traces of divorce as a legal practice[3335]—a decree which has exercised a powerful influence on the legislation of Roman Catholic nations. In Spain, Portugal, and Italy, a husband can demand a judicial separation, a divorce a mensâ et thoro, but the marriage contract cannot be dissolved; in France divorce was reintroduced by the law of 27th July, 1884. In all Protestant countries divorce is allowed. In every one of them a man may be divorced from a wife who has committed adultery, but the other legal grounds on which a divorce, in most of them, may be obtained, vary in different States. According to the Prussian 'Landrecht,' the list includes, among other causes, drunkenness and a disorderly life, insanity lasting longer than a year, and the mutual consent of the husband and wife, if they have no children;[3336] in Norway and Denmark, mutual consent, if the parties have been judicially separated for three years previously;[3337] in Austria, aversion proved to be invincible through several preceding divorces from bed and board.[3338] The French law recognizes as causes of divorce, besides adultery, "excès, sévices, injures graves," as also "condamnation à une peine afflictive et infamante."[3339]

Marriage may be dissolved not only by the man but by the woman. In Madagascar, says Mr. Sibree, although "the power of divorce is legally in the husband's hand, a wife can practically divorce herself in several cases.[3340] The like holds true for many of the lower races;[3341] whilst, among others, custom or law seems to permit a wife to separate at least under certain conditions.[3342] Among the Inland Columbians, according to Mr. Bancroft, "either party may dissolve the marriage at will."[3343] If a Bonak wife gets up and leaves the man, he has no claim ever after on her.[3344] Among the Navajos, when a woman marries, "she becomes free, and may leave her husband for sufficient cause."[3345] Regarding the Guanas, Azara states, "Le divorce est libre aux deux sexes, comme tout le reste, et les femmes y sont très-portées."[3346] In the Sandwich Islands, "a man and woman live together as long as they please, and may, at any time, separate, and make choice of other partners."[3347] In Tahiti, parts of New Guinea, and in the Marianne Group, the marriage tie may, it is said, be dissolved whenever either of the parties desires it.[3348] In some of the smaller islands of the Indian Archipelago, a wife can sue for divorce if her husband ill-treats her, if he is unfaithful, or for other reasons.[3349] Among the Shans, "should the husband take to drinking, or otherwise misconducting himself, the woman has the right to turn him adrift, and to retain all the goods and money of the partnership."[3350] In Burma, if one of the parties is unwilling to separate, "the other is free to go, provided all property except the clothes in wear is left behind;" and a wife can demand a divorce for ill-treatment, or if her husband cannot properly maintain her.[3351] Among the Irulas of the Neilgherries, the option of remaining in union, or of separating, rests principally with the woman.[3352] According to Kandh custom, a wife can return to

her father's house within six months after the marriage, on the articles which had been paid for her being restored; and, if childless, she can at any time quit her husband. "In no case," says Sir W. W. Hunter, "can the husband forcibly reclaim her, but a wife separated on any grounds whatsoever from her husband cannot marry again."[3353] In Eastern Central Africa, divorce may be effected if the husband neglects to sew his wife's clothes, or if the partners do not please each other.[3354] And, among the Garenganze, according to Mr. Arnot, a wife "may leave her husband at any time, if she cares to do so."[3355]

Passing to more advanced nations, we find that, among the ancient Mexicans, the wife, as well as the husband, might sue for separation.[3356] In Guatemala, she could leave him on grounds as slight as those on which he could leave her.[3357] In China, on the other hand, a woman cannot obtain legal separation; and the same was the case in Japan till the year 1873.[3358] According to the Talmudic Law, the wife is authorized to demand a divorce if the husband refuses to perform his conjugal duty, if he continues to lead a disorderly life after marriage, if he proves impotent during ten years, if he suffers from an insupportable disease, or if he leaves the country for ever.[3359] According to Mohammedan legislation, divorce may, in certain cases, take place at the instance of the wife, and, if cruelly treated or neglected by her husband, she has the right of demanding a divorce by authority of justice.[3360] The ancient Hindus[3361] and Teutons[3362] allowed a wife to separate from her husband only in certain exceptional cases. According to Gallic laws, a wife could quit her husband without losing her dos, "si leprosus sit vir; si habeat fetidum anhelatum, et si cum ea concumbere non possit."[3363] Among the Saxons and Danes in England, marriage might be dissolved at the pleasure of either party, the wife, however, being obliged to return the price paid for her, if she deserted the husband without his consent.[3364] At Athens, a woman could demand a divorce if she was ill-treated by her husband, in which case she had merely to announce her wish before the ἄρχων.[3365] Rossbach thinks that, in Rome, a marriage with manus could be dissolved by the husband only, a marriage without manus by the wife's father also.[3366] But Lord Mackenzie observes that, whatever effect conventio in manum may have had in ancient times, it did not, in the age of Gaius, limit the wife's freedom to seek divorce.[3367] In those Christian States of Europe where absolute divorce is permitted, the grounds on which it may be sued for are nearly the same for the man and the woman—except in England, where the husband must be accused of one or other of several offences besides adultery. In Italy, Spain, and Portugal, a judicial separation may always be decreed on the ground of the adultery of the wife, but, on the ground of the adultery of the husband, only if it has been committed under certain aggravating circumstances.[3368]

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The causes by which duration of human marriage is influenced are, on the whole, the same as those which determine the form of marriage.

Man's appetite for youth and beauty often induces him to repudiate a wife who has grown old and ugly. According to Cook, it was much more common for a Tahitian to cast off the first wife and take a more youthful partner than to live with both.[3369] Among the Aleuts, when a wife "ceases to possess attractions or value in the eyes of her proprietor, she is sent back to her friends."[3370] A Malay, in many cases, turns away his wife as soon as she becomes ugly from hard work and maternal cares.[3371] In Switzerland, marriage is much oftener dissolved through divorce when the wife is the husband's senior, than when the reverse is the case.[3372]

Dr. Béringer-Féraud observes that the Moors in the region of the Senegal "divorcent avec une facilité extrême, non seulement sous le prétexte le plus futile, mais souvent, et même uniquement, pour le plaisir de changer."[3373] According to v. Oettingen, the statistics of divorce and remarriage in Europe prove that the taste for variety is often the chief cause of the dissolution of marriage.[3374]

As the desire for offspring is a frequent cause of divorce,[3375] so the birth of children is generally the best guarantee for the continuance of the marriage tie. Speaking of some Indian tribes of North America, Schoolcraft says, "The best protection to married females arises from the ties of children, which, by bringing into play the strong natural affections of the heart, appeal at once to that principle in man's original organization which is the strongest."[3376]

Where women are regarded almost as beasts of burden, it often happens that a wife who is a bad worker is divorced. The Dyak husbands "coolly dismiss their helpmates when too lazy or too weak to work, and select partners better qualified to undergo the toils of life."[3377] Among the Sinhalese, according to Mr. Bailey, sickness is perhaps the most common reason why a husband repudiates his wife. The heartless desertion of a sick wife, he says, is "the worst trait in the Kandyan character, and the cool and unconcerned manner in which they themselves allude to it, shows that it is as common as it is cruel."[3378]

However desirable separation, in many cases, may be for the husband, there are various circumstances which tend to prevent him from recklessly repudiating his wife. In many instances divorce implies for the man a loss of fortune. Though not, as a rule,[3379] obliged to provide the divorced wife with the full means of subsistence, he must, as already mentioned, usually give her what she brought with her into the house, and, among several peoples, a certain proportion—often the half—of the common wealth.[3380] Among the Karens, if a man leaves his wife, the rule is that the house and all the property belong to her, nothing being his but what he takes with him.[3381] Among the Manipuris, according to Colonel Dalton, a wife who is put away without fault on her part,

takes all the personal property of the husband, except one drinking cup and the cloth round his loins.[3382] Similar rules prevail among the Galela, and in the Marianne Group.[3383] As to the ancient Teutons, M. Glasson observes, "Les lois barbares voulaient d'ailleurs que, sauf le cas d'adultère, la femme répudiée eût son existence assurée. Le mari devait lui laisser la maison et tout ce qu'elle contenait; il était même obligé de lui abandonner l'équivalent du mundium et de payer une amende au fisc s'il répudiait sa femme sans aucun motif sérieux."[3384]

The practice of purchasing wives forms a very important obstacle to frequent repudiation.[3385] If the wife proves barren, or is unfaithful, or otherwise affords sufficient cause of divorce, the husband generally receives back what he has paid for her;[3386] but, if he repudiates her without satisfactory grounds, the purchase sum is usually forfeited.[3387] "Cases of divorce are very frequent," says Mr. Casalis, "where the price of the wife is of small value. Among the Basutos, where it is of considerable amount, the dissolution of marriage is attended with much difficulty."[3388] And Dr. Finsch ascribes the frequency of divorce in Ponapé to the fact that wife-purchase does not exist there.[3389]

Moreover, when he divorces his wife, a man very often loses his children at the same time. Among several peoples they remain the property of the father.[3390] Among others, they are taken in some cases by the man, in others by the woman.[3391] In Samoa, the young children followed the mother, the more advanced the father;[3392] whilst, among the Sinhalese, boys are taken by the latter, girls by the former.[3393] But among many uncivilized peoples, all the children, if young, follow the mother,[3394] as Colden says, "according to the natural course of all animals."[3395]

Another factor which has much influence upon the stability of marriage, is the position held by women. When some regard is paid to their feelings, a husband does not, of course, put his wife away for trivial reasons, divorce meaning for her, in many cases, misery and distress. Dr. Churcher informs me from Morocco that "the divorced woman too often goes to swell the ranks of the prostitutes." And the same is the case in China and among the Arabs of the Sahara.[3396]

When a man and woman unite with one another from love, there is, of course, more security that the marriage contract will be lasting. The Mantras, says Father Bourien, "frequently marry without previously knowing one another, and live together without loving. Is it, then, astonishing that they part without regret, and that divorce is frequent among them?"[3397] The facility of Mohammedan divorce, as Mr. Bosworth Smith remarks, is the necessary consequence of the separation of the sexes. "A man would never embark in the hazardous lottery of Eastern marriage, if he had not the escape of divorce from the woman whom he has never seen, and who may be in every way

uncongenial to him."[3398] A union with a first cousin, among Mohammedans, is generally lasting, because early associations may have led to an attachment at a tender age.[3399] Separation is especially rare when the uniting passion is not merely of a sensual nature, but involves mutual sympathy depending upon mental qualities.

Many of the factors which influence the duration of marriage, so far as it depends upon the will of the husband, operate also in cases where marriage may be dissolved by the wife. But the woman's subordinate position and her inability to support herself, makes separation more difficult for her than for the man.[3400] Moreover, if the woman claims a divorce, the purchase-sum paid for her has to be returned,[3401] and she may even, in certain cases, forfeit her dowry and whatever property she brought with her at marriage.[3402] If she must lose her children also, she will naturally shrink from the idea of separation.

Since the causes which influence the duration of marriage are, to so great an extent, the same as those which influence the form of marriage, so far as monogamy and polygyny are concerned, we might expect strict monogamy to be associated with stability of marriage, and extensive polygyny with instability. But this is only partly the case. When monogamy is chiefly due to the man's inability to support many wives, or when he secures no economical advantage by a plurality of wives, he tries in many cases to make up for the inconveniences of monogamy by a frequent change of mate. Mr. Bickmore thinks that the reason why polygyny is not more generally practised by the Mohammedan Malays is to be found in the facility with which divorce is obtained and a new marriage contracted.[3403] And the Arabs of Asia and the Moors of the Western Sahara, according to Burckhardt and Chavanne, indemnify themselves through a succession of wives for their monogamous habits.[3404] Considering, further, that the proportion between the sexes, and the monogamous instinct which man in early times probably shared with others of the higher primates, have affected the forms of human marriage, but scarcely at all its duration, we may infer that the development of the latter, at least at the lower stages of civilization, has been somewhat different from that of the former.

As has already been pointed out, it is extremely probable that, among primitive men, the union of the sexes lasted till after the birth of the offspring. We have also perhaps some reason to believe that the connection lasted for years. Lieutenant de Crespigny met Orang-utan families consisting of male, female, and two young ones, and v. Koppenfels saw similar groups of the Gorilla; but whether the male was the father of both the young ones, it is of course impossible to decide. In any case, there is abundant evidence that marriage has, upon the whole, become more durable in proportion as the human race has

risen to higher degrees of cultivation, and that a certain amount of civilization is an essential condition of the formation of life-long unions.

It is evident that, at the early stage of development at which women first became valuable as labourers, a wife was united with her husband by a new bond more lasting than youth and beauty. The tie was strengthened by the bride-price and the marriage portion. And greater consideration for women, a higher development of the paternal feeling, better forethought for the children's welfare, and a more refined love-passion have gradually made it stronger, until it has become, in many cases, almost indissoluble. A husband in the most advanced societies is no longer permitted to repudiate his wife whenever he likes; a wife cannot, without more ado, divorce herself from her husband. Marriage has become a contract the keeping of which is superintended by the State, and which may be dissolved only under certain stipulated conditions.

Although there can be no doubt that the psychical causes which have strengthened the marriage tie tend to become more potent, we must not conclude that divorce will in future be less frequent and more restricted by the laws than it is now in European countries. It must be remembered that the laws of divorce in Christian Europe owe their origin to an idealistic religious commandment which, interpreted in its literal sense, gave rise to legal prescriptions far from harmonizing with the mental and social life of the mass of the people. The powerful authority of the Roman Church was necessary to enforce the dogma that marriage is indissoluble. The Reformation introduced somewhat greater liberty in this respect, and modern legislation has gone further in the same direction.

Chapter XXIV — Summary

Our investigation has now come to an end. The development of human marriage in all its aspects has been examined, according to the method suggested in the introductory chapter. Many of the conclusions are more or less hypothetical, but not a few, I think, are necessary deductions from trustworthy evidence. As they are based on a great accumulation of facts, it may be well to present a general view of the argument as a whole.

We defined marriage as a more or less durable connection between male and female, lasting beyond the mere act of propagation till after the birth of the offspring. It is found among many of the lower animals, it occurs as a rule among the anthropomorphous apes, and it is universal among mankind. It is closely connected with parental duties: the immediate care of the children belongs chiefly to the mother, whilst the father is the protector and guardian of

the family. Being a necessary requirement for the existence of certain species, it obviously owes its origin to an instinct developed through the powerful influence of natural selection. If, as seems probable, there was a human pairing season in early times, the continued excitement of the sexual instinct cannot have played a part in the origin of human marriage—assuming that the institution existed among primitive men. And it is highly probable that it did exist, as the marriage of the Primates seems to be due to the small number of young and the long period of infancy. Later on, when mankind became chiefly carnivorous, the assistance of an adult male became still more necessary for the subsistence of the children, as the chase everywhere devolves on the man. The suggestion that, in olden times, the natural guardian of the children was not the father, but the maternal uncle, has no foundation in fact; neither has the hypothesis that all the males of the tribe indiscriminately were their guardians. All the evidence we possess tends to show that among our earliest human ancestors the family, not the tribe, formed the nucleus of every social group, and, in many cases, was itself perhaps the only social group. The man-like apes are not gregarious, and the solitary life they generally lead is almost certainly due chiefly to the difficulty they experience in getting sufficient quantities of food. We may infer that our fruit-eating human or half-human ancestors were not more gregarious than they. Afterwards, when man passed beyond his frugivorous stage, he continued, as a rule, this solitary kind of life, as gregariousness is a disadvantage to all large animals who live chiefly on flesh. Even now there are savage peoples of the lowest type who live rather in separate families than in tribes, and facts indicate that the chief reason for this is want of sufficient food. The sociability of man, therefore, sprang in the main from progressive intellectual and material civilization, whilst the tie that kept together husband and wife, parents and children, was, if not the only, at least the principal factor in the earliest forms of man's social life. Human marriage, in all probability, is an inheritance from some ape-like progenitor.

Most anthropologists who have written on prehistoric customs believe, indeed, that man lived originally in a state of promiscuity or "communal marriage"; but we have found that this hypothesis is essentially unscientific. The evidence given for it consists of notices of some savage nations said to live promiscuously, and of some curious customs which are assumed to be survivals from a time when marriage did not exist. Many of the assertions made as to peoples living in promiscuous intercourse have, however, been shown to be erroneous, and the accuracy of the others is at least open to question. But even if some of the statements were true, it would be a mistake to infer that these quite exceptional cases represent a stage of development through which all mankind have passed; and it is certainly not among the lowest peoples that sexual relations most nearly approach to promiscuity. Equally unwarranted is

the inference of a primitive condition of "communal marriage" from the fact that in some parts of the world the sexes may cohabit freely before marriage. There are numerous savage and barbarous peoples among whom sexual intercourse out of wedlock is of rare occurrence, unchastity on the part of the woman being looked upon as a disgrace or a crime. Contact with a "higher culture" has proved pernicious to the morality of savage peoples; and we have some reason to believe that irregular connections between the sexes have, on the whole, exhibited a tendency to increase along with the progress of civilization. Moreover, free sexual intercourse previous to marriage is quite different from promiscuity, which involves a suppression of individual inclinations. The most general form of it is prostitution, which is rare among peoples living in a state of nature, untouched by foreign influence. Customs which have been interpreted as acts of expiation for individual marriage—a sort of religious prostitution found in the East; the jus primae noctis granted to the friends of the bridegroom, or to all the guests at a marriage, or to a particular person, a chief or a priest; and the practice of lending wives to visitors—may be far more satisfactorily explained otherwise. This is true also of the fact that, among certain peoples, courtesans are held in greater estimation than women married to a single husband. Mr. Morgan's view—that the former prevalence of "marriage in a group" and promiscuity are proved by the "classificatory system of relationship" in force among many peoples—presupposes that the nomenclature was founded on blood-relationship, as near as the parentage of individuals could be known. But it can scarcely be doubted that the terms for relationships were originally mere terms of address, given chiefly with reference to sex and age, as also to the external, or social, relationship in which the speaker stood to the person whom he or she addressed. It has been suggested that the system of "kinship through females only"— implying, chiefly, that children are named after their mothers, not after their fathers, and that property and rank succeed exclusively in the female line—is due to the uncertain paternity which resulted from early promiscuity. But the ties of blood have exercised a far less direct influence on this system than is generally assumed. We have seen that there may be several reasons for naming children after the mother rather than after the father, apart from any consideration of relationship. The custom in accordance with which, among many peoples, a man, on marrying, goes to live with his wife in the house of her father deserves special notice in this connection. It is probable that the causes which make children take their mother's name have also directly influenced the rules of succession, but the power of the name itself seems to have been of even higher importance. Moreover, so far as we know, there is no general coincidence of what we consider moral and immoral habits with the prevalence of the male and female line among existing savages; and among various peoples the male line prevails, although paternity

is often actually uncertain on account of their polyandrous marriage customs. Avowed recognition of kinship in the female line only, by no means implies an unconsciousness of male kinship. Finally, there are many rude peoples who exhibit no traces at all of a system of "kinship through females only." Thus the facts put forward in support of the hypothesis of promiscuity do not entitle us to assume that promiscuity has ever been the prevailing form of sexual relations even among a single people, whilst the hypothesis is opposed to all the correct ideas we are able to form with regard to the early state of man. Promiscuous intercourse between the sexes tends to a pathological condition very unfavourable to fecundity; and the almost universal prevalence of jealousy among peoples unaffected by foreign influence, as well as among the lower mammals, makes it most unlikely that promiscuity ever prevailed at any stage of human development. As we have seen, the idea that a woman belongs exclusively to one man is so deeply rooted among various peoples that it has led to several revolting practices.

In the chapter on 'Marriage and Celibacy' we noted that the single state is comparatively rare among savage and barbarous races, who, as a rule, marry earlier than civilized men. A celibate is, indeed, looked upon almost as an unnatural being. Very much the same was the case with the ancient civilized nations both of the Old World and the New, as is still the case in the East. In modern civilization, on the other hand, there are several factors—partly economical, partly psychical—unfavourable to marriage. As a consequence, the proportion of unmarried people has been gradually increasing in Europe, and the age at which people marry has risen. A curious kind of celibacy, met with among various peoples at different stages, is the enforced celibacy of persons devoted to religion. This evidently depends upon the notion that sexual intercourse is impure—a notion which seems to have grown up originally from the instinctive feeling against intercourse between members of the same family or household.

In the courtship of almost all animal species the male plays the most active part, and has generally to fight with other males for the possession of the female. The same was no doubt the case with our early human ancestors, and this mode of courtship survives even now among some of the lower races. Much more commonly, however, courtship means on the part of the man a prolonged making of love; and the woman is far from being completely passive. We have seen how savage men and women in various ways endeavour to make themselves attractive to the opposite sex:—by ornamenting, mutilating, painting, and tattooing themselves. That these practices essentially subserve this end appears chiefly from the fact that the time selected for them is the age of puberty. It seems also probable that clothing, at least in a great many cases, was originally adopted for a similar reason, and that the feeling of shame,

far from being the original cause of man's covering his nakedness, is, on the contrary, a result of this custom.

Whilst the men are generally the courters, the women may in many, perhaps most, cases accept or refuse their proposals at pleasure. Though a daughter among the lower races is regarded as an object of property, and is in many instances betrothed in her earliest youth, women are not, as a rule, married without having any voice of their own in the matter. Among existing savages their liberty of selection is very considerable, and under more primitive conditions—when every grown-up individual earned his or her own living, when there was, strictly speaking, no labour, and when a daughter consequently was neither a slave nor an object of trade—woman was doubtless even more free in that respect than she is now among most of the lower races. At a latter stage the case was different. Among peoples who have reached a relatively high degree of civilization the father's power, in connection with a more fully developed system of ancestor-worship, has invariably become more extensive, more absolute. Not only the full-grown daughter, but the full-grown son, who among savages enjoys perfect independence, stands so much in awe of the father that, among many of these peoples, no marriage is concluded without his consent. We have given some account of this strengthened paternal authority among various nations; we have found that it has formed only a transitional stage in the history of human institutions; and we have indicated the stages of its gradual decline.

The important subject of sexual selection has necessarily claimed a good deal of attention. In an introductory chapter we pointed out the contradiction between Mr. Darwin's theories of natural and sexual selection, and endeavoured to show that the sexual selection of the lower animals is entirely subordinate to the great law of the survival of the fittest. From the way in which the sexual colours, odours, and sounds of animals are distributed among different species, we drew the conclusion that, though they are always to a certain extent hurtful to the species, they are upon the whole advantageous, inasmuch as they make it easier for the sexes to find each other; whereas if we accept Mr. Darwin's theory, we are compelled to suppose that the inexplicable æsthetic sense on which his hypothesis is founded, has been developed in the way most dangerous to the species. We also found that there are facts incompatible with Mr. Darwin's explanation of the connection between love and beauty in mankind, and of the origin of the different human races. There is an ideal of beauty common to the whole human race; but this ideal is a mere abstraction, as general similarities in taste are accompanied by specific differences. Men and women find beauty in the full development of the visible characteristics belonging to the human organism in general; of those peculiar to the sex; of those peculiar to the race. As a certain kind of constitution is best suited for

certain conditions of life, and the racial type is on the whole that which best harmonizes with the external relations in which the respective peoples live, we may infer that the full development of racial characters indicates health, that a deviation from them indicates disease. Physical beauty is therefore in every respect the outward manifestation of physical perfection, and the development of the instinct which prefers beauty to ugliness, healthiness to disease, is evidently within the power of natural selection. According to Mr. Darwin, racial differences are due to the different standards of beauty, whereas, according to the theory indicated in this book, the different standards of beauty are due to racial differences. We have seen that the racial peculiarities stand in some connection with the external circumstances in which the various races live. But, as we do not know that acquired characters are transmitted from parent to offspring, it is exceedingly doubtful whether the differences are the inherited effects of conditions of life to which previous generations have been subject. It seems most probable that they are due to natural selection, which has preserved and intensified such congenital variations as were most in accordance with the conditions under which the various races lived.

Under the head of the 'Law of Similarity' we dealt with the powerful instinct which, as a rule, keeps animals from pairing with individuals belonging to another species, and found the origin of this aversion in the infertility of first crosses and hybrids. No such instinct can be said to keep the various human races apart from one another; and it is not known that the diversities even between the races which least resemble each other are not so great but that, under favourable conditions, a mixed race may be produced. Closely akin to the horror of bestiality is the horror of incest, which, almost without exception, is a characteristic of the races of men, though the degrees within which intercourse is forbidden vary in an extraordinary degree. It is nearly universally abominated between parents and children, generally between brothers and sisters, often between cousins, and, among a great many peoples uninfluenced by modern civilization, between all the members of the tribe or clan. We criticized the theories set forth by various writers as to the origin of such prohibitions. To each of these theories there are special objections; and all of them presuppose that men avoid incestuous marriages only because they are taught to do so. As a matter of fact, the home is kept pure from incestuous intercourse neither by laws, nor by customs, nor by education, but by an instinct which under normal circumstances makes sexual love between the nearest kin a psychical impossibility. Of course there is no innate aversion to marriage with near relations; but there is an innate aversion to marriage between persons living very closely together from early youth, and, as such persons are in most cases related, this feeling displays itself chiefly as a horror of intercourse between near kin. The existence of an innate aversion of this kind is proved, not only

by common experience, but by an abundance of ethnographical facts which show that it is not in the first place by degrees of consanguinity, but by close living together, that prohibitory laws against intermarriage are determined. Thus many peoples have a rule of local exogamy, which is quite independent of kinship. The extent to which, among various nations, relatives are not allowed to intermarry, is obviously nearly connected with their close living together. There is so strong a coincidence (as statistical data prove) between exogamy and the "classificatory system of relationship"—which system springs, to a great extent, from the close living together of considerable numbers of kinsfolk—that they must, in fact, be regarded as two sides of one institution. Prohibitions of incest are very often more or less one-sided, applying more extensively either to the kinsfolk on the father's side or to those on the mother's, according as descent is reckoned through men or women; and we have seen that the line of descent is intimately connected with local relationships. In a large number of cases, however, prohibitions of intermarriage are only indirectly influenced by the close living together. Aversion to the intermarriage of persons who live in intimate connection with each other has provoked prohibitions of the intermarriage of relations; and, as kinship is traced by means of a system of names, the name comes to be considered identical with relationship. Generally speaking, the feeling that two persons are intimately connected in some way or other may, through an association of ideas, give rise to the notion that intercourse between them is incestuous. There are exceptions to the rule that close living together inspires an aversion to intermarriage. But most of the recorded instances of intermarriage of brother and sister refer to royal families, and are brought about simply by pride of birth. Incestuous unions may also take place on account of extreme isolation, and certain instances of such connection are evidently the results of vitiated instincts. Marriage between a half-brother and a half-sister, however, is not necessarily contrary to the principle here laid down, as polygyny breaks up each family into as many sub-families as there are wives who have children. The question arose:—Why is a feeling of disgust associated with the idea of marriage between persons who have lived in a long-continued, intimate relationship from a period of life at which the action of desire is naturally out of the question? We found an answer in the evil effects resulting from consanguineous marriages. It seems to be necessary for the welfare of the species that the sexual elements which unite shall be somewhat different from, as it is necessary that they shall be in some way similar to, one another. The injurious results of self-fertilization among plants and of close interbreeding among animals appear to prove the existence of such a law, and it is impossible to believe that it does not apply to man also. We stated several facts pointing in this direction, and found reason to believe that consanguineous marriages are much more injurious in savage regions, where the struggle for existence

is often very severe, than they have proved to be in civilized society. We also observed that no evidence which can stand the test of scientific investigation has hitherto been adduced against the view that consanguineous marriages, in some way or other, are more or less detrimental to the species. Through natural selection an instinct must have been developed, powerful enough, as a rule, to prevent injurious unions. This instinct displays itself simply as an aversion on the part of individuals to union with others with whom they have lived, but as these are for the most part blood-relations, the result is the survival of the fittest.

We proceeded to consider sexual selection as influenced by affection, sympathy, and calculation. We found that love has only slowly become the refined feeling it is in the minds of cultivated persons in modern times, although conjugal affection is far from being unknown, even among very rude savages. The endogamous rules which prevent different races, nations, or tribes, hereditary castes, classes, and adherents of different religions from intermarrying are due to want of sympathy, and have gradually lost their importance according as altruism and religious toleration have increased, and civilization has diminished the barriers which separate different nations and the various classes of society.

As regards the mode of contracting marriage, we inferred—from the universality of the horror of incest, and from the difficulty a savage man has in procuring a wife in a friendly manner without making up for the loss he inflicts on her father—that marriage by capture must have been very common at that stage of social development when family ties had become stronger, and man lived in small groups of nearly related persons, but when the idea of barter had scarcely presented itself to his mind. We saw that marriage by capture was succeeded by marriage by purchase, as barter in general has followed upon robbery. Again, at a later stage, some feeling of shame was attached to the idea of selling a daughter, and marriage by purchase was abandoned. Its gradual disappearance took place in two different ways. On the one hand, the purchase became a symbol, appearing as a sham sale in the marriage ceremonies or as an exchange of presents; on the other hand, the purchase-sum was transformed into the morning gift and the dotal portion, a part—afterwards the whole—being given to the bride either directly by the bridegroom or by her father. These transformations of marriage by purchase have taken place, not only in the history of the great civilized nations, but among several peoples who are still in a savage or semi-civilized state. As a rule, however, the marriage portion plays no important part in savage life, being chiefly due to a feeling of respect and sympathy for the weaker sex, which, on the whole, is characteristic of a higher civilization. Very often it is intended to be a settlement for the wife in case the marriage be dissolved through the husband's death or otherwise,

although it may have the meaning of a return gift, or it may imply that the wife as well as the husband is expected to contribute to the expenses of the joint household.

Having noted the growth of marriage ceremonies and religious rites, we passed to the forms of human marriage. Polygyny was permitted by most of the ancient peoples within the historic period, and is at present permitted by several civilized nations and by the majority of savage tribes. Yet, among not a few savage and barbarous races it is almost unknown, or even prohibited; and almost everywhere it is confined to the smaller part of the people, the vast majority being monogamous. Moreover, where polygyny occurs, it is modified, as a rule, in two ways that tend towards monogamy: through the higher position granted to one of the wives, generally the first married, and through the favour constantly shown by the husband to the wife he likes best. Among certain peoples polyandry occurs, and, like polygyny, is modified in a monogamous direction, the first husband usually being the chief husband. Among the causes by which the forms of marriage are influenced, the numerical proportion between the sexes plays an important part. In some countries there are more men than women, in others more women than men. This disproportion is due to various causes, such as female infanticide, war, and disparity in the number of the sexes at birth. There are facts which seem to show that in rough mountainous countries more boys are born than girls, and that consanguineous marriages produce a considerable excess of male births. If this be so, it can hardly be a mere coincidence that polyandry occurs chiefly among mountaineers and peoples who are endogamous in a very high degree. As for polygyny, there are several reasons why a man may desire to possess more than one wife. Among many peoples the husband has to live apart from his wife during her pregnancy, and as long as she suckles her child. Female youth and beauty have for men a powerful attraction, and among peoples at the lower stages of civilization women generally become old much sooner than in more advanced communities. The liking of men for variety is also a potent factor; and to have many wives is to have many labourers. The barrenness of a wife is another very common reason for the choice of a new partner, as desire for offspring, for various reasons, is universal in mankind. In a savage and barbarous state a man's power and wealth are proportionate to the number of his offspring. Nevertheless, however desirable polygyny may be from the man's point of view, it is prohibited among many peoples, and among most of the others it is exceptional. Where the amount of female labour is limited, and no accumulated property exists, it may be very difficult for a man to keep a plurality of wives. Again, where female labour is of considerable value, the necessity of paying the purchase-sum for a wife is a hindrance to polygyny, which can be overcome only by the wealthier men. Polygyny implies a violation of

the feelings of women; hence, where due respect is paid to these, monogamy is considered the only proper form of marriage. The refined passion of love, which depends not only on external attractions, but on sympathy arising from mental qualities, forms a tie between husband and wife which lasts for life; and the true monogamous instinct, the absorbing passion for one, is a powerful obstacle to polygynous habits. It is certain that polygyny has been less prevalent at the lowest stages of civilization—where wars do not seriously disturb the proportion of the sexes; where life is chiefly supported by hunting, and female labour is consequently of slight value; where there is no accumulation of wealth and no distinction of class—than it is at somewhat higher stages; and it seems probable that monogamy prevailed almost exclusively among our earliest human ancestors. But, though civilization up to a certain point is favourable to polygyny, its higher forms invariably and necessarily lead to monogamy. We have noted that polygyny has, in many ways, become less desirable for the civilized man than it was for his barbarian and savage ancestors, and that other causes have co-operated to produce the same result. Again, polyandry, being due to an excess of men and presupposing an abnormally feeble disposition to jealousy, must at all times have been exceptional; there is no solid evidence for the theory that in early times it was the rule. On the contrary, this form of marriage seems to require a certain degree of civilization. It was probably, in most cases, an expression of fraternal benevolence on the part of the eldest brother, and, if additional wives were afterwards acquired, it led to group marriages of the Toda type.

As a general rule, human marriage is not necessarily contracted for life, and among most uncivilized and many advanced peoples, a man may divorce his wife whenever he likes. Nevertheless, divorce is an exception among a great many races, even among races of the lowest type; and numerous nations consider, or have considered, marriage a union which must not be dissolved by the husband, except for certain reasons stipulated by custom or law. We also noted instances in which the wife may separate from her husband. The causes by which the duration of human marriage is influenced are, on the whole, but not exactly the same as those which determine the form of marriage; and, though monogamy frequently coexists with great stability of marriage, this is scarcely the case in the rudest condition of man. Marriage, generally speaking, has become more durable in proportion as the human race has advanced.

Marriage has thus been subject to evolution in various ways, though the course of evolution has not been always the same. The dominant tendency of this process at its later stages has been the extension of the wife's rights. A wife is no longer the husband's property; and, according to modern ideas, marriage is, or should be, a contract on the footing of perfect equality between the sexes. The history of human marriage is the history of a relation in which

women have been gradually triumphing over the passions, the prejudices, and the selfish interests of men.

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History of Human Marriage

BY

Edward Westermarck — Lecturer On Sociology At the University of Helsingfors

With Preface By Dr. A. R. Wallace

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Footnotes:

[1] McLennan, 'Studies in Ancient History,' p. 1.

[2] Post, 'Die Geschlechtsgenossenschaft der Urzeit,' p. 17. In his later works, however, Dr. Post has changed his opinion (see, especially, 'Studien zur Entwickelungsgeschichte des Familienrechts,' p. 58).

[3] Morgan, 'Systems of Consanguinity and Affinity,' p. 479.

[4] Ibid., p. 480.

[5] McLennan, loc. cit. p. 5.

[6] 'Journal of the Anthropological Institute of Great Britain and Ireland,' vol. xviii. pp. 245-269.

[7] Lubbock, 'The Origin of Civilisation,' p. 487.

[8] Muir, 'Original Sanskrit Texts,' vol. ii. p. 327.

[9] Goguet, 'The Origin of Laws, Arts, and Sciences,' vol. iii. pp. 311, 313.

[10] Ibid., vol. i. p. 22.

[11] Goguet, loc. cit. vol. ii. p. 19.

[12] v. Düben, 'Lappland och Lapparne,' p. 330.

[13] Brehm, 'Thierleben,' vol. ix. p. 16.

[14] Günther, 'Introduction to the Study of Fishes,' p. 163.

[15] Wood, 'Illustrated Natural History,' vol. iii. p. 3.

[16] Espinas, 'Des sociétés animales,' p. 416.

[17] Milne Edwards, 'Leçons sur la physiologie et l'anatomie comparée,' vol. viii. p. 496.

[18] Espinas, p. 417.

[19] The ostrich forms, however, a curious exception. The male sits on the eggs, and brings up the young birds, the female never troubling herself about either of these duties (Brehm, 'Bird-Life,' p. 324).

[20] Ibid., p. 285. These statements concerning birds are taken from Brehm's 'Thierleben,' vol. iv., the same author's 'Bird-Life,' and Hermann Müller's 'Am Neste.'

[21] Brehm, 'Thierleben,' vol. iii. p. 679.

[22] Ibid., vol. iii. pp. 593, 594, 599.

[23] Ibid., vol. iii. p. 578.

[24] Rengger,'Naturgeschichte der Säugethiere von Paraguay,' p. 354.

[25] Brehm, vol. iii. p. 206.

[26] Ibid., vol. iii. p. 256. Espinas, p. 447.

[27] Brehm, vol. iii. p. 124.

[28] Rengger, p. 240.

[29] Brehm, vol. ii. p. 270.

[30] Ibid., vol. ii. p. 263.

[31] Ibid., vol. ii. p. 39.

[32] Ibid., vol. i., p. 347.

[33] Ibid., vol. i. p. 387.

[34] Rengger, pp. 147, et seq.

[35] Brehm, vol i. p. 535.

[36] Ibid., vol. i. p. 224.

[37] Rengger, p. 62.

[38] Ibid., pp. 20, 38.

[39] Schomburgk, 'Reisen in Britisch-Guiana,' vol. iii. p. 767.

[40] Brehm, vol. i. p. 228.

[41] Brehm, 'Thierleben,' vol. i. p. 97.

[42] 'Proceedings of the Royal Geographical Society,' vol. xvi. p. 177.

[43] Mohnike, 'Die Affen auf den indischen Inseln,' in 'Das Ausland,' 1872, p. 850. See also Hartmann, 'Die menschenähnlichen Affen,' p. 230.

[44] Wallace, 'The Malay Archipelago,' vol. i. p. 93.

[45] Savage, 'Description of Troglodytes Gorilla,' pp. 9, et seq.

[46] Du Chaillu, 'Explorations and Adventures in Equatorial Africa, p. 349.

[47] Reade, 'Savage Africa,' p. 214.

[48] Ibid., pp. 218, 214.

[49] v. Koppenfells, 'Meine Jagden auf Gorillas,' in 'Die Gartenlaube,' 1877, pp. 418, et seq.

[50] Savage, 'On Troglodytes Niger,' in 'Boston Journal of Natural History,' vol. iv. p. 385.

[51] 'Die Gartenlaube,' 1877, p. 418.

[52] Waitz, 'Anthropologie der Naturvölker,' vol. iii. p. 109. Carver, 'Travels through the Interior Parts of North America,' p. 367.

[53] Powers, 'Tribes of California,' p. 222.

[54] Heriot, 'Travels through the Canadas,' p. 338.

[55] Azara, 'Voyages dans l'Amérique méridionale,' vol. ii. p. 22.

[56] King and Fitzroy, 'Voyages of the Adventure and Beagle,' vol. ii. p. 182.

[57] v. Tschudi, 'Reisen durch Südamerika,' vol. ii. p. 283.

[58] Lumholtz, 'Among Cannibals,' p. 161.

[59] Fison and Howitt, 'Kamilaroi and Kurnai,' p. 206.

[60] Meyer, 'Manners and Customs of the Encounter Bay Tribe,' in Wood's, 'The Native Tribes of South Australia,' p. 186.

[61] Angas, 'Polynesia,' p. 373.

[62] Martin, 'Account of the Natives of the Tonga Islands,' vol. ii. p. 167.

[63] Pritchard, 'Polynesian Reminiscences,' p. 134.

[64] Johnston, 'Maoria,' pp. 28, et seq.

[65] Kotzebue, 'Voyage of Discovery into the South Sea,' vol. iii. p. 173.

[66] Macdonald, 'Africana,' vol. i. p. 14.

[67] Ibid., vol. i. p. 139.

[68] Letourneau, 'Sociology,' p. 386.

[69] Wilson and Felkin, 'Uganda and the Egyptian Soudan,' vol. ii. p. 90.

[70] Chavanne, 'Die Sahara,' p. 209.

[71] Emerson Tennent, 'Ceylon,' vol. ii. p. 441.

[72] Rosset, 'On the Maldive Islands,' in 'Journal of the Anthropological Institute,' vol. xvi. pp. 168, et seq.

[73] Stewart, 'Notes on Northern Cachar,' in 'Journal of the Asiatic Society of Bengal,' vol. xxiv. p. 614.

[74] Emerson Tennent, vol. ii. pp. 458, et seq. note 1.

[75] Schwaner, 'Borneo,' vol. i. p. 199.

[76] Fytche, 'Burma,' vol. ii. p. 73.

[77] 'Das Ausland,' 1875, p. 958.

[78] Rossbach, 'Untersuchungen über die römische Ehe,' p. 32, &c.

[79] Dall, 'Alaska and its Resources,' p. 196.

[80] Buchanan, 'Sketches of the History, Manners, and Customs of the North American Indians,' p. 323.

[81] Im Thurn, 'Among the Indians of Guiana,' p. 221. Cf. v. Martius, 'Beiträge zur Ethnographie Amerika's,' vol. i. pp. 247, 645, 688.

[82] Wilkes, 'United States Exploring Expedition,' vol. v. p. 363. Bock, 'The Head-Hunters of Borneo,' pp. 216, 221, &c.

[83] Dalton, 'Descriptive Ethnology of Bengal,' p. 40.

[84] Bickmore, 'Travels in the East Indian Archipelago,' p. 205.

[85] Strabo, 'Γεωγραφικά,' book xv. p. 727.

[86] Waitz, loc. cit. vol. ii. p. 515.

[87] Livingstone, 'Missionary Travels and Researches in South Africa,' p. 147.

[88] Freycinet, 'Voyage autour du monde,' vol. ii. pp. 227, et seq.

[89] Baker, 'The Nile Tributaries of Abyssinia,' p. 125.

[90] Hooper, 'Ten Months among the Tents of the Tuski,' p. 100.

[91] Endemann, 'Mittheilungen über die Sotho-Neger,' in 'Zeitschrift für Ethnologie,' vol. vi. p. 40.

[92] Jellinghaus, 'Sagen, Sitten und Gebräuche der Munda-Kolhs in Chota Nagpore,' ibid., vol. iii. p. 370.

[93] 'Union d'un homme et d'une femme, faite dans les formes légales' (Larousse, 'Grand dictionnaire universel de XIXe siècle,' vol. x. p. 1174).

[94] 'Die Verbindung zweyer Personen verschiedenen Geschlechts zum lebenswierigen wechselseitigen Besitz ihrer Geschlechtseigenschaften' (Kant, 'Die Metaphysik der Sitten,' vol. i. p. 107).

[95] Schäffner, 'Geschichte der Rechtsverfassung Frankreichs,' vol. iii. p. 186.

[96] Brehm, 'Thierleben,' vol. iii. p. 649.

[97] Ibid., vol. iii. p. 479.

[98] Ibid., vol. iii. p. 400.

[99] Ibid., vol. i. p. 299.

[100] The Orang-utan is said to be not full-grown till fifteen years of age (Mohnike, in 'Das Ausland,' 1872, p. 850). Cf. Fiske, 'Outlines of Cosmic Philosophy,' vol. ii. pp. 342, et seq.

[101] 'Das Ausland,' 1872, p. 894.

[102] 'Science,' vol. vii. p. 172.

[103] Hyades, in 'Mission Scientifique du Cap Horn,' vol. vii. pp. 377, et seq.

[104] Moore, 'Marriage Customs, Modes of Courtship,' &c., p. 292.

[105] Klemm, 'Allgemeine Cultur-Geschichte der Menschheit,' vol. ii. p. 75.

[106] Rowney, 'The Wild Tribes of India,' pp. 203, et seq. v. Siebold, 'Die Aino auf Yesso,' p. 31. Gray, 'China,' vol. ii. p. 304.

[107] Lubbock, loc. cit. p. 80.

[108] Burckhardt, 'Notes on the Bedouins and Wahábys,' p. 153.

[109] Nachtigal, 'Sahara und Sudan,' vol. ii., p. 177.

[110] Bock, 'Temples and Elephants,' p. 186.

[111] Erman, 'Ethnographische Wahmehmungen an den Küsden des Berings-Meeres,' in 'Zeitschrift für Ethnologie,' vol. iii. p. 162.

[112] Harkness, 'The Neilgherry Hills,' p. 116.

[113] Bérenger-Féraud, 'Le mariage chez les Nègres Sénégambiens,' in 'Revue d'Anthropologie,' 1883, pp. 286, et seq.

[114] Blumentritt, 'Versuch einer Ethnographic der Philippinen,' pp. 27, et seq.

[115] 'Emin Pasha in Central Africa,' p. 103.

[116] Ibid., p. 103.

[117] St. John, 'Wild Tribes of the North-West Coast of Borneo,' in 'Transactions of the Ethnological Society,' new series, vol. ii. p.237. Low, 'Sarawak,' p. 195. Wilken, 'Plechtigheden en gebruiken bij verlovingen en huwelijken bij de volken van den Indischen Archipel,' in 'Bijdragen tot de taal-, land-en volkenkunde van Nederlandsch-Indië,' ser. v. vol. iv. p. 442.

[118] Cook, 'Voyage to the Pacific Ocean,' vol. ii. p. 157.

[119] Lewin, 'Wild Races of South-Eastern India,' p. 202.

[120] v. Zmigrodzki, 'Die Mutter bei den Völkern des arischen Stammes,' pp. 246-248. Cf. Man, 'On the Aboriginal Inhabitants of the Andaman Islands,' in 'Jour. Anthr. Inst.,' vol. xii. p.81 (Andamanese).

[121] Powers, loc. cit. p. 239.

[122] Schoolcraft,'Archives of Aboriginal Knowledge,' vol. v. p. 272.

[123] Wagner, 'Handwörterbuch der Physiologie,' vol. iv. p. 862. Gruenhagen, 'Lehrbuch der Physiologie,' vol. iii. p. 528. Cf. Haycraft, 'Some Physiological Results of Temperature Variations,' in 'Transactions of the Royal Society of Edinburgh,' vol. xxix. p. 130.

[124] Janke, 'Die willkürliche Hervorbringung des Geschlechts,' pp. 220-222.

[125] Gruenhagen, vol. iii. p. 528.

[126] Thus, the bat pairs in January and February (Brehm, 'Thierleben,' vol. i. p. 299); the wild camel in the desert to the east of Lake Lob-nor from the middle of January nearly to the end of February (Prejevalsky 'From Kulja to Lob-nor,' p. 91); the Canis Azarae and the Indian bison in winter (Rengger, loc. cit. p. 147). (Forsyth, 'The Highlands of Central India,' p. 108); the wild-cat and the fox, in February (Brehm, 'Thierleben,' vol. i. pp. 453, 662); the weasel, in March (ibid., vol. ii. p. 84); the kulan, from May to July (ibid., vol. iii. p. 19); the musk-ox, at the end of August (ibid., vol. iii. p. 377); the elk, in the Baltic provinces, at the

end of August, and, in Asiatic Russia, in September or October (ibid., vol. iii. p. 111); the wild yak in Tibet, in September (Prejevalsky, 'Mongolia,' vol. ii. p. 192); the reindeer in Norway, at the end of September (Brehm, vol. iii. p. 123); the badger, in October (ibid., vol. ii. p. 149); the Capra pyrenaica, in November (ibid., vol. iii. p. 311); the chamois, the musk-deer, and the orongo-antelope, in November and December (ibid., vol. iii. pp. 274, 95. Prejevalsky, 'Mongolia,' vol. ii. p. 205); the wolf, from the end of December to the middle of February (Brehm, vol. i. p. 534).

[127] Brehm, vol. iii. pp. 275, 302. Prejevalsky, 'Mongolia,' vol. ii. pp. 199, 206.

[128] Brehm, vol. i. pp. 370, 404, 431; vol. ii. pp. 6, 325, 420; vol. iii. pp. 111, 158, 159, 578, 599.

[129] Brehm, 'Thierleben,' vol. ii. p. 313.

[130] Ibid., vol. iii. pp. 699, 723.

[131] Ibid., vol. iii. p. 482.

[132] Ibid., vol. ii. p. 440.

[133] Ibid., vol. i. pp. 119, 147, 182, 228. Schomburgk, loc. cit. vol. ii. p. 767.

[134] Brehm, vol. iii. pp. 480. It is also remarkable that the birds on the Galapagos Islands, which are situated almost on the equator, seem to have no definite breeding season (Markham, 'Visit to the Galapagos Islands,' in 'Proceed. Roy. Geo. Soc.,' N. S. vol. ii. p. 753).

[135] Reade, loc. cit. p. 214.

[136] 'Das Ausland,' 1872, p. 850. Hartmann, loc. cit. p. 230. Huxley, 'Evidence as to Man's Place in Nature,' p. 33.

[137] Burton, 'Gorilla Land,' vol i. p. 248.

[138] Schoolcraft, loc. cit. vol. iv. p. 224.

[139] Powers, loc. cit. p. 206.

[140] Foreman, 'The Philippine Islands,' p. 212.

[141] This statement, however, seems to be an exaggeration (cf. Curr, 'The Australian Race,' vol. i. pp. 310, et seq.).

[142] Oldfield, 'The Aborigines of Australia,' in 'Trans. Ethn. Soc.,' N. S. vol. iii. p. 230.

[143] Bonwick, 'Daily Life and Origin of the Tasmanians,' p. 198.

[144] Dalton, loc. cit., pp. 196, et seq.

[145] Ibid., p. 300.

[146] Watson and Kaye, 'The People of India,' vol. i. no. 2. Rowney, loc. cit. p. 76.

[147] Shortt, 'Contribution to the Ethnology of Jeypore,' in 'Trans. Ethn. Soc.,' N. S. vol. vi. p. 269.

[148] Idem, 'Account of the Hill Tribes of the Neilgherries,' in 'Trans. Ethn. Soc.,' N. S. vol. vii. p. 282.

[149] Bancroft, 'Native Races of the Pacific States,' vol. i. pp. 551, et seq.

[150] Fritsch, 'Die Eingeborenen Süd-Afrika's,' p. 328.

[151] Rowley, 'Africa Unveiled,' p. 165.

[152] Kovalevsky, 'Modern Customs and Ancient Laws of Russia,' pp. 10, et seq.

[153] Westropp and Wake, 'Ancient Symbol Worship,' p. 26.

[154] Mannhardt, 'Wald-und Feldkulte,' vol. i. ch. v. §§ 8-11, especially pp. 449, 450, 469, 480, et seq. See also Kulischer, 'Die geschlechtliche Zuchtwahl bei den Menschen in der Urzeit,' in 'Zeitschrift für Ethnologie,' vol. viii. pp. 152-156.

[155] Wargentin, 'Uti hvilka Månader flera Människor årligen födas och dö i Sverige,' in 'Kongl. Vetenskaps-academiens Handlingar,' vol. xxviii. pp. 249-258.

[156] Wappäus, 'Allgemeine Bevölkerungsstatistik,' vol. i. p. 237.

[157] Sormani, 'La fecondità e la mortalità umana in rapporto alle stagioni ed ai clima d'Italia;' quoted by Mayr, 'Die Gesetzmässigkeit im Gesellschaftsleben,' p. 242.

[158] Mayr, p. 240. Beukemann, 'Ein Beitrag zur Untersuchung über die Vertheilung der Geburten nach Monaten,' pp. 15-22.

[159] Haycraft, in 'Trans. Roy. Soc. Edinburgh,' vol. xxix. pp. 119, et seq.

[160] Mayr, loc. cit., p. 241.

[161] Beukemann, loc. cit. p. 26.

[162] Wargentin, in 'Kongl. Vet.-acad. Handl.,' vol. xxviii. p. 252. Wappäus, loc. cit. vol. i. p. 237.

[163] Wappäus, vol. i. pp. 250, 237.

[164] Hill, 'The Life Statistics of an Indian Province,' in 'Nature,' vol. xxxviii., p. 250.

[165] See, for instance, Ploss, 'Das Weib,' vol. i. p. 414; Wappäus, vol. i. pp. 239, 247.

[166] Rousselet, 'India and its Native Princes,' p. 173.

[167] Reclus, 'Nouvelle géographie universelle,' vol. viii. p. 70.

[168] Tod, 'Annals and Antiquities of Rajast'han,' vol. i. p. 495.

[169] Villermé. quoted by Quetelet, 'Treatise on Man,' p. 21.

[170] Beukemann, loc. cit. pp. 18, 28.

[171] Powers, loc. cit. p. 206.

[172] Ante, p. 27.

[173] Cf. Darwin, 'The Descent of Man,' vol. i. p. 354.

[174] Brehm, 'Thierleben,' vol. ii. p. 149.

[175] Ibid., vol. iii. p. 124.

[176] Wappäus, loc. cit. vol. i. p. 241.

[177] Wargentin, in 'Kongl. Vet.-acad. Handl.,' vol. xxviii. p. 254.

[178] Wappäus, loc. cit. vol. i. p. 242. Bertillon, 'Natalité (démographie),' in 'Dictionnaire encyclopédique des sciences médicales,' ser. ii. vol. xi. p. 479.

[179] Beukemann, loc. cit. p. 59.

[180] Hill, in 'Nature,' vol. xxxviii. p. 250.

[181] Professor Nicholson says ('Sexual Selection in Man,' p. 9) that Darwinism fails to assign any adequate cause for this.

[182] Waitz, 'Introduction to Anthropology,' p. 113.

[183] Oldfield, in 'Trans. Ethn. Soc.,' N. S. vol. iii. pp. 269, et seq.

[184] Darwin, 'The Variation of Animals and Plants under Domestication,' vol. ii. p. 255.

[185] Wappäus, loc. cit. vol. i. p. 247.

[186] Ibid., vol. i. p. 246. Quetelet, loc. cit. p. 20. Bertillon, in 'Dictionnaire encyclopédique des sciences médicales,' ser. ii. vol. xi. p. 480.

[187] Wappäus, vol. i. p. 343.

[188] Brehm, 'Thierleben,' vol. iii. p. 333.

[189] Ibid., vol. iii. p. 43.

[190] Ibid., vol. iii. pp. 549, 557.

[191] Müller, loc. cit. pp. 2, 86, 104. I myself know of a canary that laid eggs as early as March.

[192] Peschel, 'The Races of Man,' pp. 229, et seq.

[193] Giraud-Teulon, 'Les origines du mariage et de la famille,' p. 148. Lippert, 'Kulturgeschichte der Menschheit,' vol. ii. pp. 54, et seq. Von Hellwald, 'Die menschliche Familie,' p. 207: 'Was später der Vater, das ist der Oheim zur Zeit des Mutterrechtes und des Matriarchats.' Kovalevsky, 'Tableau des origines et de l'évolution de la famille et de la propriété,' pp. 15, 16, 21.

[194] Giraud-Teulon, loc. cit. pp. 199, et seq.

[195] Kovalevsky, 'Tableau des origines de la famille,' pp. 21, et seq.

[196] Bastian, 'Die Rechtsverhältnisse bei verschiedenen Völkern der Erde,' p. 181.

[197] 'Das Ausland,' 1881, p. 1026.

[198] Munzinger, 'Ostafrikanische Studien,' p. 528.

[199] Cain, 'The Bhadrachellam and Rekapalli Taluqas,' in 'The Indian Antiquary,' vol. viii. p. 34.

[200] Dalton, loc. cit. p. 150.

[201] Schoolcraft, loc. cit. vol. v. p. 268. Cf. Bartram, 'The Creek and Cherokee Indians,' in 'Trans. American Ethn. Soc.,' vol. iii. pt. i. p. 65.

[202] Codrington, 'The Melanesians,' p. 34. Cf. Curr, loc. cit. vol. i. pp. 60, 62, 69.

[203] Kautsky, 'Die Entstehung der Ehe und Familie,' in 'Kosmos' vol. xii. p. 198.

[204] Cf. Tylor, 'Primitive Society,' in 'The Contemporary Review,' vol. xxi. pp. 711, et seq.

[205] Darwin, 'The Descent of Man,' vol. i. p. 166.

[206] Savage, 'Description of Troglodytes Gorilla,' p. 9.

[207] Reade, loc. cit. p. 220.

[208] Du Chaillu, loc. cit. p. 349.

[209] 'Die Gartenlaube,' 1877, p. 418.

[210] Savage, in 'Boston Journal of Natural History,' vol. iv. pp. 384, et seq.

[211] Du Chaillu, p. 358.

[212] Hartmann, loc. cit. p. 221: 'Dieses Thier lebt in einzelnen Familien oder in kleinern Gruppen von solchen beieinander.'

[213] Spencer, 'The Principles of Psychology,' vol. ii. pp. 558, et seq.

[214] Savage, in 'Boston Journal of Natural History,' vol. iv. p. 384. Cf. v. Koppenfels, in 'Die Gartenlaube,' 1877, p. 419.

[215] Spencer, vol. ii. p. 558.

[216] Herr Kautsky is certainly mistaken when he says ('Kosmos,' vol. xii. p. 193), 'Nicht Familien, sondern Stämme sind es, denen wir bei den Völkern begegnen, die sich ihre ursprünglichen Einrichtungen noch bewahrt haben.'

[217] Pridham, 'Account of Ceylon,' vol. i. p. 454. Cf. Hartshorne, 'The Weddas,' in 'The Indian Antiquary,' vol. viii. p. 320.

[218] Bailey, 'The Wild Tribes of the Veddahs of Ceylon,' in 'Trans. Ethn. Soc.,' N. S. vol. ii. p. 281.

[219] Stirling, 'Residence in Tierra del Fuego,' in 'The South American Missionary Magazine,' vol. iv. p. 11.

[220] Wilkes, loc. cit. vol. i. p. 124.

[221] Hyades, 'Ethnographie des Fuégiens,' in 'Bulletins de la Société d'Anthropologie de Paris,' ser. iii. vol. x. p. 333.

[222] Bove, 'Patagonia, Terra del Fuoco,' p. 134. Lovisato, 'Appunti etnografici sulla Terra del Fuoco,' in Guido Cora's 'Cosmos,' vol. viii. p. 150.

[223] Bridges, 'Manners and Customs of the Firelanders,' in 'A Voice for South America,' vol. xiii. p. 204.

[224] Salvado, 'Mémoires historiques sur l'Australie,' pp. 265, et seq. Idem, 'Voyage en Australie,' p. 178.

[225] Stanbridge, 'The Tribes in the Central Part of Victoria,' in 'Trans. Ethn. Soc.,' N. S. vol. i. pp. 286, et seq.

[226] Fison and Howitt, loc. cit. p. 278.

[227] Fritsch, loc. cit. pp. 443, et seq.

[228] Thulié, 'Instructions sur les Bochimans,' in 'Bull. Soc. d'Anthr.,' ser. iii. vol. iv. pp. 409, et seq. Lichtenstein, 'Travels in Southern Africa,' vol. i. p. 48.

[229] Lichtenstein, loc. cit. vol. ii. p. 194.

[230] v. Martius, 'Civil and Natural Rights among the Aboriginal Inhabitants of Brazil,' in 'Jour. Roy. Geog. Soc.,' vol. ii. p. 192.

[231] v. Tschudi, loc. cit. vol. ii. p. 283.

[232] v. Martius, 'Beiträge zur Ethnographic Amerika's,' vol. i. pp. 244, 400, 247.

[233] Bates, 'The Naturalist on the River Amazons,' vol. ii. p. 376.

[234] Ibid., vol. ii. pp. 381, 377, et seq.; vol. i. p. 328.

[235] Southey, 'History of Brazil,' vol. ii. p. 373.

[236] v. Spix and v. Martius, 'Travels in Brazil,' vol. ii. p. 244.

[237] Petroff, 'The Population, Industries, and Resources of Alaska,' p. 135.

[238] Ahlqvist, 'Die Kulturwörter der westfinnischen Sprachen,' p. 220.

[239] Lichtenstein, loc. cit. vol. ii. pp. 49, 194.

[240] King and Fitzroy, loc. cit. vol. ii. pp. 177, et seq.

[241] Hunter, 'Historical Journal of the Transactions at Port Jackson and Norfolk Island,' p. 62.

[242] Meyer, loc. cit. p. 191.

[243] Brough Smyth, 'The Aborigines of Victoria,' vol. i. pp. 146, et seq.

[244] Schoolcraft, loc. cit. vol. i. pp. 207, et seq.

[245] Cf. Spencer, 'The Principles of Sociology,' vol. i. §§ 24, 27.

[246] Darwin, 'The Descent of Man,' vol. i. p. 72.

[247] Lubbock, 'The Development of Relationships,' in 'Jour. Anthr. Inst.,' vol. i. p. 2.

[248] Bachofen, 'Das Mutterrecht,' pp. xxi., xx., 10. Idem, 'Antiquarische Briefe,' pp. 20, et seq. McLennan, loc. cit. pp. 92, 95. Morgan, loc. cit. pp. 480, 487, et seq. Idem, 'Ancient Society,' pp. 418, 500-502. Lubbock loc. cit. pp. 86, 98, 104. Bastian, loc. cit. p. xviii. Giraud-Teulon, loc. cit. p. 70. Lippert, loc. cit. vol. ii. p. 7. Post, 'Die Geschlechtsgenossenschaft der Urzeit,' pp. 16, et seq. Idem, 'Die Grundlagen des Rechts,' pp. 183, et seq. Idem, 'Studien zur Entwickelungsgeschichte des Familienrechts,' pp. 54, et seq. Wilken, 'Over de primitieve vormen van het huwelijk en den oorsprong van het gezin,' in 'De Indische Gids,' 1880, vol ii. p. 611. Kohler, in 'Zeitschrift für vergleichende Rechtswissenschaft,' vol. iv. p. 267. Engels, 'Der Ursprung der Familie, des Privateigenthums und des Staats,' p. 17. Mr. Herbert Spencer, though inferring ('The Principles of Sociology,' vol. i. p. 635) that even in prehistoric times promiscuity was checked by the establishment of individual connections, thinks that in the earliest stages it was but in a small degree thus qualified.

[249] Fiske, loc. cit. vol. ii. p. 345. Kulischer, in 'Zeitschrift für Ethnologie,' vol. viii. pp. 140, et seq. Gomplowicz, 'Grundriss der Sociologie,' p. 107. Bevel, 'Woman in the Past, Present, and Future,' p. 9.

[250] Herodotus, 'Ἱστορία,' book i. ch. 216. Strabo, loc. cit. book xi. p. 513.

[251] Herodotus, book iv. ch. 180.

[252] Solinus, 'Collectanea Rerum Memorabilium,' ch. xxx. § 2.

[253] Nicolaus Damascenus, 'Ἐθῶν συναγωγή,' §§ 3, 14.

[254] Wolkov, 'Rites et usages nuptiaux en Ukraine,' in 'L'Anthropologie,' vol. ii. p. 164.

[255] Garcilasso de la Vega, 'The Royal Commentaries of the Yncas,' vol. ii. p. 443.

[256] Lubbock, loc. cit. pp. 86-95.

[257] Belcher, 'The Andaman Islands,' in 'Trans. Ethn. Soc.,' N. S. vol. v. p. 45.

[258] Poole, 'Queen Charlotte Islands,' p. 312.

[259] Baegert, 'The Aboriginal Inhabitants of the Californian Peninsula,' in 'Smithsonian Report,' 1863, p. 368.

[260] Lubbock, loc. cit. pp. 87, et seq.

[261] Buchanan, 'Journey from Madras,' in Pinkerton, 'Collection of Voyages and Travels,' vol. viii. p. 736. Lubbock, p. 87.

[262] Watson and Kaye, loc. cit. vol. ii. no. 85.

[263] Dubois, 'Description of the People of India,' p. 3.

[264] Shortt, in 'Trans. Ethn. Soc.,' N. S. vol. vii. p. 240.

[265] Fison and Howitt, loc. cit. pp. 36, 51, 53. Ridley, 'Kámilarói,' pp. 161, et seq.

[266] Schürmann, 'The Aboriginal Tribes of Port Lincoln,' in Wood's 'The Native Tribes of South Australia,' p. 223.

[267] King and Fitzroy, loc. cit. vol. ii. p. 182.

[268] Wilken, in 'De Indische Gids,' 1880, vol. ii. pp. 610, et seq. Idem, 'Over de verwantschap en het huwelijks-en erfrecht bij de volken van het maleische ras,' pp. 20; 82 note.

[269] Bastian, 'Ueber die Eheverhältnisse,' in 'Zeitschrift für Ethnologie,' vol. vi. p. 406.

[270] Idem, 'Rechtsverhältnisse,' p. lxi., note 36.

[271] Idem, 'Die Culturländer des Alten America,' vol. ii. p. 654, note 4.

[272] Quoted by Giraud-Teulon, loc. cit. p. 72.

[273] Baegert, in 'Smith Rep.,' 1863, p. 368.

[274] Ellis, 'Polynesian Researches,' vol. i. p. 239.

[275] Lubbock, loc. cit. pp. 104, et seq. Morgan in his 'Introduction' to Fison and Howitt's 'Kamilaroi and Kurnai,' p. 10. Kohler, 'Ueber das Recht der Australneger,' in 'Zeitschr. f. vgl. Rechtswiss.,' vol. vii. p. 344. Kovalevsky, 'Tableau des origines de la famille,' pp. 13, et seq.

[276] Fison and Howitt, p. 60.

[277] Ibid., pp. 159, et seq.

[278] Howitt, 'Australian Group Relations,' in 'Smith. Rep.,' 1883, p. 817.

[279] As regards the Melanesians, Dr. Codrington remarks (loc. cit. pp. 22, et seq.): 'Speaking generally, it may be said that to a Melanesian man all women, of his own generation at least, are either sisters or wives, to the Melanesian woman all men are either brothers or husbands.... It must not be understood that a Melanesian regards all women who are not of his own division as, in fact, his wives, or conceives himself to have rights which he may exercise in

regard to those women of them who are unmarried; but the women who may be his wives by marriage and those who cannot possibly be so, stand in a widely different relation to him.'

[280] Curr, loc. cit. vol. i. p. 126.

[281] Ibid., vol. i. p. 142.

[282] Mathew, in 'Jour. Roy. Soc. N. S. Wales,' vol. xxiii. p. 404.

[283] Man, in 'Jour. Anthr. Inst.,' vol. xii. p. 135.

[284] Burchell, 'Travels into the Interior of Southern Africa,' vol. ii. p. 60.

[285] Barrow, 'Travels in the Interior of Southern Africa,' vol. i. p. 276.

[286] Woldt, 'Capitain Jacobsen's Reise an der Nordwestküste Amerikas,' pp. 20, 21, 28, et seq.

[287] Ratzel, 'Völkerkunde,' vol. ii. p. 430.

[288] Schwaner, loc. cit. vol. i. p. 231, note: 'De Koeteinezen verhalen, dat hunne Ot geene huwelijken sluiten, geen woningen hebben, en als de dieren des wouds door hen gejaagd worden.'

[289] Ibid., vol. i. p. 230.

[290] Richardson, 'Arctic Searching Expedition,' vol. i. p. 383. Kirby, 'Journey to the Youcan,' in 'Smith. Rep.,' 1864, p. 419. Bancroft, loc. cit. vol. i. p. 131.

[291] v. Martius, loc. cit. vol. i. p. 693.

[292] Schomburgk, loc. cit. vol. ii. pp. 459, et seq. Brett, 'The Indian Tribes of Guiana,' p. 98.

[293] Waitz, loc. cit. vol. iii. p. 472.

[294] Dalton, 'The "Kols" of Chota Nagpore,' in 'Trans. Ethn. Soc.,' N. S. vol. vi. p. 25.

[295] Lubbock, loc. cit. p. 81.

[296] Post, 'Afrikanische Jurisprudenz,' vol. i. p. 304.

[297] With reference to the Tahitians, Forster says ('Voyage round the World,' vol. ii. p. 132), 'We have been told a wanton tale of promiscuous embraces, where every woman is common to every man: but when we inquired for a confirmation of this story from the natives, we were soon convinced that it must, like many others, be considered as a groundless invention of a traveller's gay fancy.' Regarding the Peruvian natives alleged to live in a state of promiscuity, Garcilasso de la Vega assures us (loc. cit. vol. ii. p. 443) that he saw them with his own eyes when on his way to Spain, for the ship stopped on their coast for three days.

[298] Pliny, 'Historia Naturalis,' book v. ch. 8: 'Garamantes, matrimoniorum exsortes, passim cum foeminis degunt.... Blemmyis traduntur capita abesse, ore et oculis pectori affixis.'

[299] Rowney, loc. cit. pp. 140, 142, 143.

[300] Bailey, in 'Trans. Ethn. Soc.,' N. S. vol. ii. p. 293.

[301] Brough Smyth, loc. cit. vol. i. pp. 85, et seq.

[302] Post, 'Die Grundlagen des Rechts,' p. 187. Cf. Wilken, in 'De Indische Gids,' 1880, vol. ii. p. 1195.

[303] Barrow, loc. cit. vol. i. p. 206.

[304] Proyart, 'History of Loango,' in Pinkerton, 'Collection of Voyages,' vol. xvi. p. 568.

[305] Reade, loc. cit. p. 261.

[306] Forbes, 'Dahomey and the Dahomans,' vol. i. p. 26.

[307] Barth, 'Reisen in Nord-und Central-Afrika,' vol. ii. p. 18.

[308] Chavanne, loc. cit. p. 315.

[309] Munzinger, loc. cit. p. 326.

[310] Baker, loc. cit. p. 124.

[311] Munzinger, p. 243. For certain other African peoples, see Moore, loc. cit. p. 221; Munzinger, pp. 145, 146, 208; d'Escayrac de Lauture, 'Die Afrikanische Wüste,' p. 132.

[312] Hanoteau and Letourneux, 'La Kabylie et les coutumes Kabyles,' vol. ii. pp. 148, 187.

[313] Vámbéry, 'Das Türkenvolk,' p. 240.

[314] Klemm, loc. cit. vol. iii. p. 166.

[315] Liebich, 'Die Zigeuner,' p. 50, note 1.

[316] Georgi, 'Beschreibung aller Nationen des russischen Reichs,' p. 311.

[317] Klemm, loc. cit. vol. iv. p. 26.

[318] Prejevalsky, 'From Kulja to Lob-nor,' p. 112.

[319] Fytche, loc. cit. vol. i. p. 343.

[320] Wilken, in 'Bijdragen tot de taal-, land-en volkenkunde van Nederlandsch-Indië,' ser. v. vol. iv. p. 444.

[321] Low, loc. cit. pp. 300, 247.

[322] St. John, 'Life in the Forests of the Far East,' vol. i. pp. 52, et seq.

[323] Kotzebue, loc. cit. vol. iii. p. 66.

[324] Meyer, 'Die Igorrotes von Luzon,' in 'Verhandlungen der Berliner Gesellschaft für Anthropologie, Ethnologie und Urgeschichte,' 1883, pp. 384, et seq. Blumentritt, loc. cit. p. 27. For other tribes of the Indian Archipelago, see Marsden, 'The History of Sumatra,' p. 261; and Matthes, 'Bijdragen tot de Ethnologie van Zuid-Celebes,' p. 6.

[325] Earl, 'Papuans,' p. 81. Waitz-Gerland, loc. cit. vol. vi. p. 629. Finsch, 'Neu-Guinea,' pp. 77, 82, 92, 101.

[326] Bonwick, loc. cit. p. 60.

[327] Finsch, p. 101.

[328] Bonwick, pp. 59, 11.

[329] Erskine, 'The Islands of the Western Pacific,' p. 341.

[330] Ibid., p. 255.

[331] Codrington, loc. cit. p. 235.

[332] Wilkes, loc. cit. vol. ii. p. 138.

[333] Turner, 'Nineteen Years in Polynesia,' p. 184.

[334] Quoted by Brough Smyth, loc. cit. vol. ii. p. 318.

[335] Dawson, 'Australian Aborigines,' pp. 33, 28.

[336] Quoted by Petroff, loc. cit. p. 155.

[337] Egede, 'Description of Greenland,' p. 141.

[338] Cranz, 'The History of Greenland,' vol. i. p. 145.

[339] Hearne, 'Journey to the Northern Ocean,' p. 311.

[340] Catlin, 'Illustrations of the Manners, Customs, and Condition of the North American Indians,' vol. i. p. 121.

[341] Schoolcraft, loc. cit. vol. v. p. 654.

[342] Bancroft, loc. cit. vol. i. p. 514.

[343] See Meares, 'Voyages,' p. 251; Waitz, loc. cit. vol. iii. p. 112.

[344] Dobrizhoffer, 'Account of the Abipones,' vol. ii. p. 153.

[345] Nansen, 'The First Crossing of Greenland,' vol. ii. p. 329.

[346] Powers, loc. cit. p. 381.

[347] Lord, 'The Naturalist in Vancouver Island,' vol. ii. p. 233.

[348] Woldt, loc. cit. p. 28.

[349] King and Fitzroy, loc. cit. vol. ii. p. 173.

[350] Musters, 'At Home with the Patagonians,' p. 197.

[351] Vancouver, 'Voyage of Discovery,' vol. i. pp. 171, et seq.

[352] Waitz-Gerland, loc. cit. vol. v. pt. ii. p. 108. Brenchley, 'Jottings during the Cruise of H.M.S. Curaçoa among the South Sea Islands,' p. 208. Cf. Meade, 'A Ride through the Disturbed Districts of New Zealand,' p. 163 (Maoris).

[353] Ellis, loc. cit. vol. i. p. 270.

[354] Stephens, 'The Aborigines of Australia,' in 'Jour. Roy. Soc. N. S. Wales,' vol. xxiii. p. 480.

[355] Sibree, 'The Great African Island,' p. 252.

[356] Krauss, 'Sitte und Brauch der Südslaven,' ch. xii. pp. 197-227.

[357] Ahlqvist, loc. cit. p. 214.

[358] Vámbéry, 'Die primitive Cultur des turko-tatarischen Volkes,' p. 72.

[359] Fritsch, loc. cit. p. 444.

[360] Drury, 'Adventures during Fifteen Years' Captivity on the Island of Madagascar,' p. 323.

[361] Wappäus, loc. cit. vol. ii. p. 484.

[362] v. Oettingen, 'Moralstatistik,' p. 317.

[363] v. Oettingen, loc. cit. p. 199.

[364] Ibid., pp. 199, 216.

[365] Ibid., p. 327.

[366] Cf. Barth, loc. cit. vol. ii. p. 18; v. Holten, 'Das Land der Yurakarer,' in 'Zeitschrift für Ethnologie,' vol. ix. p. 109; Hunter, 'The Annals of Rural Bengal,' vol. i. p. 205.

[367] Cf. Waitz, loc. cit. vol. ii. p. 114; vol. iii. pp. 111, 343; vol. vi. pp. 125, 774; Powers, loc. cit. p. 415; Lewin, loc. cit. p. 348; Martin, loc. cit. vol ii. p. 175; Riedel, 'De sluik-en kroesharige rassen tusschen Selebes en Papua,' pp. 5, 42; Marsden, loc. cit. p. 261.

[368] Lewin, p. 193.

[369] Ibid., p. 203.

[370] Dalton, loc. cit. p. 248.

[371] Watt, 'The Aboriginal Tribes of Manipur,' in 'Jour. Anthr. Inst.,' vol. xvi. p. 358.

[372] St. John, loc. cit. vol. i. p. 53.

[373] Rogers, 'Scotland Social and Domestic,' p. 109.

[374] Lubbock, loc. cit. p. 536.

[375] Herodotus, loc. cit. book i. ch. 199.

[376] Strabo, loc. cit. book xi. p. 532.

[377] Lubbock, pp. 535-537.

[378] McLennan, loc. cit. p. 341.

[379] Herodotus, book iv. ch. 172. Pomponius Mela, 'De Situ Orbis,' book i. ch. 8.

[380] Garcilasso de la Vega, loc. cit. vol. ii. p. 442.

[381] Diodorus Siculus, 'Βιβλιοθήκη ἱστορική,' book v. ch. 1.

[382] v. Langsdorf, 'Voyages and Travels,' vol. i. p. 153.

[383] McLennan, loc. cit. p. 341. The case stated by Garcilasso de la Vega must, however, be excepted.

[384] Lubbock, loc. cit. p. 132. Post, 'Die Geschlechtsgenossenschaft der Urzeit,' pp. 34, et seq. Le Bon, 'L'homme et les sociétés,' vol. ii. p. 292. Lippert, loc. cit. vol. ii. p. 17. Kohler, in 'Zeitschr. f. vgl. Rechtswiss,' vol. vii. p. 327.

[385] It occurs among the Kafirs (v. Weber, 'Vier Jahre in Afrika,' vol. ii. p. 218), several Central African peoples (Reade, loc. cit. p. 262. Du Chaillu, loc. cit. p. 47. Merolla da Sorrento, 'Voyage to Congo,' in Pinkerton, 'Collection of Voyages,' vol. xvi. p. 272. Waitz, loc. cit. vol. ii. p. 114), the Aleuts (Dall, loc. cit. p. 399. Bancroft, loc. cit. vol. i. pp. 92, et seq. Georgi, loc. cit. p. 372), Eskimo (Bancroft, vol. i. p. 65), Crees (Mackenzie, 'Voyages to the Frozen and Pacific Oceans,' p. xcvi.), Comanches (Schoolcraft, loc. cit. vol. v. p. 684), Apaches (Bancroft, vol. i. p. 514), some Californians (Powers, loc. cit. p. 153), the aborigines of Surinam (Moore, loc. cit. p. 267), and Brazil (v. Martius, loc. cit. vol. i. p. 118), Sinhalese (Pridham, loc. cit. vol. i. p. 250), Dyaks of Sidin (Western Borneo) and Orang-Saki (Wilken, in 'Bijdragen tot de taal-, land-en volkenkunde van Nederlandsch-Indië,' ser. v. vol. iv. p. 451), the Australians

(Angas, 'Savage Life,' vol. i. p. 93. Wilkes, loc. cit. vol. ii. p. 195. Kohler, in 'Zeitschr. f. vgl. Rechtswiss,' vol. vii. pp. 326, et seq. Curr, loc. cit. vol. i. p. 110), Tasmanians (Bonwick, loc. cit. p. 75), Papuans (Zimmermann, 'Die Inseln des indischen und stillen Meeres,' vol. ii. p. 183), Caroline Islanders (Kotzebue, loc. cit. vol. iii. p. 212), and some other Pacific Islanders (Macdonald, 'Oceania,' p. 194. Post, 'Die Geschlechtsgenossenschaft,' p. 35), as also the Votyaks and certain Siberian peoples (Buch, 'Die Wotjäken,' p. 48). This list might easily be enlarged.

[386] Waitz, loc. cit. vol. iii. p. 111. Regnard, 'Journey to Lapland,' in Pinkerton, 'Collection of Voyages,' vol. i. pp. 166, et seq. Moore, loc. cit. p. 267. Marco Polo, 'The Kingdoms and Marvels of the East,' vol. ii. p. 34. Post, 'Die Geschlechtsgenossenschaft,' pp. 34, et seq. Coxe, 'The Russian Discoveries between Asia and America,' p. 245.

[387] Rochon, 'Voyage to Madagascar,' in Pinkerton, 'Collection of Voyages,' vol. xvi. p. 747.

[388] Sauer, 'Expedition to the Northern Parts of Russia,' p. 49.

[389] Sproat, 'Scenes and Studies of Savage Life,' p. 95.

[390] Richardson, loc. cit. vol. i. p. 356.

[391] Du Chaillu, loc. cit. p. 47.

[392] Lyon, 'The Private Journal,' &c., p. 354. Hearne, loc. cit. p. 129. Bancroft, loc. cit. vol. i. p. 92. Steller, 'Beschreibung von Kamtschatka,' p. 347. Waitz, loc. cit. vol. iii. p. 308; vol. vi. pp. 130, 131, 622. Kotzebue, loc. cit. vol. iii. p. 172. Zimmermann, loc. cit. vol. i. p. 247.

[393] Egede, loc. cit. p. 140.

[394] Marco Polo, loc. cit. vol. ii. p. 34.

[395] Brough Smyth, loc. cit. vol ii. p. 316. Cf. Mathew, in 'Jour. Roy. Soc. N. S. Wales,' vol. xxiii. p. 404.

[396] Johnston, 'The Kilima-njaro Expedition,' p. 431.

[397] McLennan, loc. cit. p. 337, note. Cf. Mathew, in 'Jour. Roy. Soc. N. S. Wales,' vol. xxiii. p. 404.

[398] 'Das Ausland,' 1881, p. 698. 'Revue des deux Mondes,' 1883, June 1, p. 688.

[399] Waitz, loc. cit. vol. iii. p. 382.

[400] v. Martius, loc. cit. vol. i. pp. 113, 428, 485.

[401] Bancroft, loc. cit. vol. ii. p. 671.

[402] Ibid., vol. i. pp. 584, et seq. Bastian, in 'Zeitschrift für Ethnologie,' vol. vi. p. 408, note.

[403] Bontier and Le Verrier, 'The Canarian,' Introduction, p. xxxv. Cf. Glas, 'The History of the Discovery and Conquest of the Canary Islands,' in Pinkerton, 'Collection of Voyages,' vol. xvi. p. 819.

[404] Barth, loc. cit. vol. ii. p. 571, note *.

[405] Herodotus, loc. cit. book iv. ch. 168.

[406] Navarette, 'The Great Empire of China,' in Awnsham and Churchill's 'Collection of Voyages and Travels,' vol. i. p. 320.

[407] Hamilton, 'New Account of the East Indies,' in Pinkerton, 'Collection of Voyages,' vol. viii. p. 374.

[408] Sugenheim, 'Geschichte der Aufhebung der Leibeigenschaft und Hörigkeit in Europa,' p. 104. Philip VI. and Charles VI. could not, in the fourteenth century, induce the Bishops of Amiens to give up the old custom, "dass jedes neuvremählte Paar ihrer Stadt und Diöcese die Erlaubniss zur ehelichen Beiwohnung in den drei ersten Nächten nach der Trauung von ihnen mittelst einer bedeutenden Abgabe erkaufen musste."

[409] Schmidt, 'Jus primae noctis,' pp. 379, &c.

[410] See Professor Kohler's criticism in 'Zeitschr. f. vgl. Rechtswiss.,' vol. iv. pp. 279-287.

[411] Kulischer, 'Die communale "Zeitehe,"' in 'Archiv. für Anthropologie,' vol. xi. pp. 228, et seq.

[412] Bachofen, 'Das Mutterrecht,' pp. 12, 13, 17, 18, &c. Giraud-Teulon, loc. cit. pp. 32, &c. Kulischer, in 'Archiv für Anthropologie,' vol. xi. p. 223. Post, 'Die Geschlechtsgenossenschaft,' p. 37. Lubbock, loc. cit. p. 537. Wilken, in 'De Indische Gids,' 1880, vol. ii. p. 1196. See Schmidt, 'Das Streit über das jus primae noctis,' in 'Zeitschrift für Ethnologie,' vol. xvi. pp. 44, et seq.

[413] Holub, 'Seven Years in South Africa,' vol. ii. pp. 160, et seq.

[414] Bastian, 'Der Mensch in der Geschichte,' vol. iii. p. 302. Burton, 'Mission to Gelele, King of Dahome,' vol. ii. p. 67.

[415] Bosman, 'Description of the Coast of Guinea,' in Pinkerton, 'Collection of Voyages,' vol. xvi. p. 480.

[416] Moore, loc. cit. p. 161.

[417] Dalton, loc. cit. p. 45.

[418] Moore, p. 182.

[419] Marco Polo, loc. cit. vol. ii. p. 213.

[420] Zimmermann, loc. cit. vol. i. p. 29.

[421] Yate, 'Account of New Zealand,' p. 96.

[422] Waitz-Gerland, loc. cit. vol. vi. p. 184.

[423] Reade, loc. cit. p. 359.

[424] 'Залнск? сељскаго св?ще?н?ка,' in 'Русская Старина,' vol. xxvii. pp. 63, 77.

[425] Egede, loc. cit. p. 140.

[426] v. Martius, loc. cit. vol. i. pp. 113, et seq.

[427] Hamilton, loc. cit. p. 374.

[428] Lubbock, loc. cit. pp. 133, 537-539. Giraud-Teulon, loc. cit. pp. 43-53.

[429] Lubbock, loc. cit. p. 539.

[430] See Giraud-Teulon, loc. cit. p. 44.

[431] McLennan, loc. cit. p. 343.

[432] Juan and Ulloa, 'Voyage to South America,' in Pinkerton, 'Collection of Voyages,' vol. xiv. p. 521.

[433] Regnard, loc. cit. p. 166.

[434] St. Andrew St. John, 'The Hill Tribes of North Aracan,' in 'Jour. Anthr. Inst.,' vol. ii. p. 239.

[435] Morgan, 'Systems of Consanguinity and Affinity of the Human Family,' p. 12.

[436] 'Malayan,' as Mr. Wallace remarks, is a bad term, as this system does not occur among true Malays.

[437] Morgan, pp. 450, et seq.

[438] Idem, 'Ancient Society,' pp. 403, et seq. Idem, 'Systems of Consanguinity and Affinity,' pp. 482, et seq.

[439] Lubbock, loc. cit. p. 184.

[440] Ibid., p. 196.

[441] Morgan, 'Systems,' &c., p. 488.

[442] As the second form he assumes the 'Punaluan family,' which was founded upon intermarriage of several sisters and female cousins with each other's husbands (or several brothers and male cousins with each other's wives) in a group, the joint husbands (or wives) not being necessarily akin to each other, although often so ('Ancient Society,' p. 384).

[443] Ibid., p. 502. Cf. Morgan, 'Systems,' &c., pp. 487, et seq.

[444] Buschmann, 'Ueber den Naturlaut,' in 'Philologische und historische Abhandlungen der Königl. Akademie der Wissenschaften zu Berlin,' 1852, pp. 391-423. Independently of him Sir J. Lubbock has compiled a similar table in 'The Origin of Civilization,' pp. 427-432.

[445] v. Martius, loc. cit. vol. ii. pp. 10, 9.

[446] Ibid., vol. ii. p. 18.

[447] Hunter, 'Comparative Dictionary of the Languages of India and High Asia,' p. 122.

[448] von der Gabelentz, 'Die melanesischen Sprachen,' vol. ii. p. 139.

[449] Hunter, pp. 122, 143.

[450] von der Gabelentz, vol. ii. p. 52.

[451] Ibid., vol. i. p. 215.

[452] Ibid., vol. i. p. 172.

[453] Klaproth, 'Asia Polyglotta,' p. 281.

[454] Barth, 'Central-afrikanische Vokabularien,' p. 212.

[455] v. Martius, loc. cit. vol. ii. p. 293.

[456] von den Steinen, 'Durch Central-Brasilien,' p. 341.

[457] von der Gabelentz, vol. i. p. 71.

[458] Barth, p. 214.

[459] von der Gabelentz, vol. ii. p. 52.

[460] Preyer, 'Die Seele des Kindes,' p. 321.

[461] Lubbock, loc. cit. p. 431.

[462] von den Steinen, loc. cit. p. 341.

[463] Schomburgk, loc. cit. vol. ii. p. 318. Macdonald, 'Oceania,' pp. 126, 186.

[464] Morgan, 'Systems,' &c., pp. 295, 313, 339, 348, 358, 362, 368, 374.

[465] Moncelon, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. ix. p. 366.

[466] Robertson Smith, 'Kinship and Marriage in Early Arabia,' p. 117.

[467] Vámbéry, 'Die primitive Cultur des turko-tatarischen Volkes,' p. 65.

[468] Müller, 'Comparative Mythology,' in 'Oxford Essays,' 1856, pp. 14, et seq. Idem, 'Biographies of Words,' p. xvi.

[469] Lubbock, loc. cit. p. 433. Cf. Sayce, 'Principles of Comparative Philology,' p. 211.

[470] Cf. McLennan, loc. cit. p. 259; Macdonald, 'Oceania,' p. 188.

[471] Morgan, 'Systems,' &c., p. 132.

[472] Davy, 'Account of the Interior of Ceylon,' p. 117.

[473] Morgan, 'Systems,' &c., p. 453, note.

[474] Man, in 'Jour. Anthr. Inst.,' vol. xii. p. 127.

[475] Barth, 'Central-afrikanische Vocabularien,' p. 216. Vámbéry, 'Die primitive Cultur,' &c., p. 69.

[476] Barth, p. 216.

[477] Sibree, loc. cit. pp. 244, et seq.

[478] Reade, loc. cit. p. 258.

[479] Casalis, 'The Basutos,' p. 207.

[480] Ahlqvist, loc. cit. p. 209.

[481] Lubbock, loc. cit. p. 431. Nordqvist, 'Tschuktschisk ordlista,' in Nordenskiöld, 'Vega-expeditionens vetenskapliga iakttagelser,' vol. i. pp. 386, 390.

[482] v. Martius, loc. cit. vol. ii. pp. 247, et seq.

[483] Salvado, 'Mémoires,' p. 277. Cf. Collins, 'New South Wales,' vol. i. p. 544.

[484] Nicolaus Damascenus, loc. cit. § 3.

[485] Deecke, 'Die deutschen Verwandtschaftsnamen,' p. 79.

[486] Waitz, loc. cit. vol. iii. p. 116.

[487] Ahlqvist, p. 209.

[488] Dixon, 'The Tsuishikari Ainos,' in 'Trans. As. Soc. Japan,' vol. xi. pt. i. p. 43.

[489] Vámbéry, 'Die primitive Cultur,' &c., p. 65.

[490] Ahlqvist, p. 212.

[491] Ahlqvist, loc. cit. p. 211.

[492] von den Steinen, loc. cit. p. 341.

[493] Ahlqvist, p. 210. von der Gabelentz, loc. cit. vol. i. p. 172.

[494] Morgan, 'Systems,' p. 452, note. Cf. the German 'Junge.'

[495] Brough Smyth, loc. cit. vol. i. pp. 91, et seq.

[496] Eyre, 'Journals of Expeditions of Discovery into Central Australia,' vol. ii. p. 214.

[497] Macdonald, 'Africana,' vol. i. p. 143.

[498] Sibree, loc. cit. p. 247.

[499] Bridges, in 'A Voice for South America,' vol. xiii. p. 212.

[500] Mr. A. J. Swann, in a letter dated Kavala Island, Lake Tanganyika, December 14th, 1888.

[501] Hartshorne, in 'The Indian Antiquary,' vol. viii. p. 320. According to M. Le Mesurier ('The Veddás of Ceylon,' in Jour. Roy. As. Soc. Ceylon Branch,' vol. ix. p. 347), the Rock or Hill Veddahs use the word for brother, 'aluwa,' when they speak of or to any person with whom they are in friendship.

[502] Mr. Bridges, in a letter dated Downeast, Tierra del Fuego, August 28th, 1888.

[503] In dealing with the pretended group-marriages of the Australians, we have noted the distortion of facts to which Mr. Morgan's hypothesis has given rise. Nowhere has this distortion appeared in an odder way than in Professor Bernhöft's pamphlet, entitled 'Verwandtschaftsnamen und Eheformen der nordamerikanischen Volksstämme.' The author, misled by the systems of nomenclature, asserts that even now group-marriages are extremely common (have 'eine ungeheure Verbreitung') not only among the Australians, but also throughout America and Africa, and in many parts of Asia (pp. 8, 16). In a paper of more recent date ('Altindische Familien-Organisation,' in 'Zeitschr. f. vgl. Rechtswiss.,' vol. ix. p. 7), however, Professor Bernhöft admits that the actual practice has mostly become different from that which the terms indicate, and that the progress to individual marriage has already often taken place.

[504] Lubbock, loc. cit. pp. 196, et seq. Morgan, 'Systems,' p. 35 note.

[505] Morgan, 'Systems,' p. 36, note.

[506] 'Das Mutterrecht.'

[507] McLennan, loc. cit. p. 88.

[508] See, besides the works of Bachofen and McLennan, Lubbock, loc. cit. pp. 151-156; Giraud-Teulon, loc. cit. ch. vii.-x.; Idem, 'La Mère chez certains peuples de l'antiquité;' Bastian, 'Rechtsverhältnisse,' pp. 183, et seq.; Lippert, 'Die Geschichte der Familie,' sec. i.; Idem, 'Kulturgeschichte,' vol. ii. ch. ii.; Dargun, 'Mutterrecht und Raubehe,' pp. 2-9; Post, 'Geschlechtsgenossenschaft,' pp. 93, et seq.; Idem, 'Der Ursprung des Rechts,' pp. 37, et seq.; Idem, 'Baustiene,' vol. i. pp. 77, et seq.; Starcke, 'The Primitive Family,' sec. i. ch. i.-v.; Wilken, in 'De Indische Gids,' 1881, vol. li. pp. 244-254; Friedrichs, 'Ueber den Ursprung des Matriarchats,' in 'Zeitschr. f. vgl. Rechtswiss.,' vol. viii. pp. 382, et seq.; Frazer,

'Totemism,' pp. 70-72; Letourneau, 'L'évolution du mariage et de la famille,' ch. xvi.-xviii.; Wake, 'The Development of Marriage and Kinship,' ch. viii., et seq.

[509] Cf. Hale, in 'Science,' vol. xix. p. 30.

[510] Cranz, loc. cit. vol. i. p. 176.

[511] Heriot, loc. cit. pp. 343, et seq.

[512] Powers, loc. cit. p. 371 (Yokuts). Waitz, loc. cit. vol. iv. p. 242.

[513] Schoolcraft, loc. cit. vol. ii. pp. 182, 194.

[514] Ibid., vol. iii. p. 234.

[515] Sproat, loc. cit. pp. 98, 116.

[516] Frazer, loc. cit. p. 71.

[517] Spencer, 'Descriptive Sociology,' Ancient Mexicans, &c., pp. 5, et seq.

[518] v. Humboldt, 'Travels to the Equinoctial Regions of the New Continent,' vol. vi. p. 41. Waitz, loc. cit. vol. iii. p. 383.

[519] Buckley, in 'Jour. Anthr. Inst.,' vol. iii. p. 31.

[520] Waitz, vol. iii. pp. 471, et seq. Spencer, 'Descriptive Sociology,' American Races, p. 10.

[521] v. Martius, loc. cit. vol. i. pp. 352, et seq. Wallace, 'Travels on the Amazon,' p. 499.

[522] Hyades, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. x. p. 334.

[523] Cook, loc. cit. vol. i. p. 412.

[524] Morgan, 'Systems,' &c., pp. 579, 583.

[525] Ellis, loc. cit. vol. i. p. 260.

[526] Cook, loc. cit. vol. ii. p. 172.

[527] Ellis, 'Tour through Hawaii,' pp. 391, et seq.

[528] Kotzebue, loc. cit. vol. iii. p. 247. Waitz-Gerland, loc. cit. vol. vi. p. 203.

[529] Gill, 'Myths and Songs from the South Pacific,' p. 36.

[530] Moncelon, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. ix. p. 366.

[531] Kotzebue, loc. cit. vol. iii. pp. 209, et seq. Cheyne, 'Islands in the Western Pacific Ocean,' p. 109. Waitz-Gerland, loc. cit. vol. v. pt. ii. p. 119.

[532] Marsden, loc. cit. p. 244.

[533] Hickson, 'A Naturalist in North Celebes,' pp. 285, et seq. Wilken, 'Over de verwantschap, etc., bij de volken van het maleische ras,' p. 21.

[534] Wilken, p. 21.

[535] Kohler, 'Das Recht der Papuas auf Neu-Guinea,' in 'Zeitschr. f. vgl. Rechtswiss.,' vol. vii. pp. 373, 375. Bink, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. xi. p. 395. Chalmers, 'Pioneering in New Guinea,' p. 188.

[536] Wilkes, loc. cit. vol. v. p. 85.

[537] Taylor, 'Te Ika a Maui,' p. 326. Waitz-Gerland, loc. cit. vol. vi. p. 210.

[538] According to Mr. Frazer (loc. cit. p. 70), the proportion of tribes with female to those with male descent is as four to one.

[539] Fison and Howitt, loc. cit. pp. 276, 285. Waitz-Gerland, vol. vi. p. 777. Eyre, loc. cit. vol. ii. p. 328. Frazer, p. 70.

[540] Taplin, 'The Narrinyeri,' in Wood's, 'The Native Tribes of South Australia,' pp. 12, 51.

[541] Gason, in 'Jour. Anthr. Inst.,' vol. xvii. p. 186.

[542] Grey, 'Journals of Two Expeditions of Discovery in North-West and Western Australia,' vol. ii. pp. 226, 236.

[543] Marshall, 'A Phrenologist amongst the Todas,' p. 206.

[544] Spencer, 'Descriptive Sociology,' Asiatic Races, pp. 10, et seq.

[545] Dalton, loc. cit. p. 274.

[546] Rowney, loc. cit. p. 167.

[547] Hunter, 'The Annals of Rural Bengal,' vol. i. p. 202.

[548] Spencer, 'Descriptive Sociology,' Asiatic Races, p. 11.

[549] Burckhardt, 'Notes on the Bedouins and Wahábys,' p. 75. Wilken's 'Das Matriarchat bei den alten Arabern' and Professor Robertson Smith's (loc. cit. p. 151) suggestion that the maternal system alone prevailed among the ancient Arabs, must be regarded as a mere hypothesis. Cf. Redhouse, 'Notes on Prof. E. B. Tylor's "Arabian Matriarchate."'

[550] Wake, loc. cit. p. 271.

[551] Cf. Dargun, loc. cit. p. 5.

[552] Batchelor, in 'Trans. As. Soc. Japan,' vol. x. p. 212.

[553] Emerson Tennent, loc. cit. vol. ii. p. 458. Dalton, loc. cit. pp. 54, 57, 63 (Jyntias, Khasias, Garos). Dargun, p. 5, note.

[554] Waitz, loc. cit. vol. ii. p. 522. Cf. Burton, 'First Footsteps in East Africa,' p. 123.

[555] 'Ymer,' vol. v. p. 169.

[556] Waitz, vol. ii. p. 469.

[557] Bosman, loc. cit. p. 421.

[558] 'Emin Pasha in Central Africa,' p. 230.

[559] Andersson, 'Lake Ngami,' p. 228. Chapman, 'Travels in the Interior of South Africa,' vol. i. p. 341.

[560] Conder, 'The Native Tribes in Bechuana-Land,' in 'Jour. Anthr. Inst.,' vol. xvi. p. 85. Livingstone, loc. cit. p. 185.

[561] In a letter dated Imbizane River, Natal, October 10th, 1888.

[562] In a letter dated Port Elizabeth, Cape Colony, October 1st, 1888.

[563] Maclean, 'Compendium of Kafir Laws and Customs,' pp. 71, 116. v. Weber, loc. cit. vol. ii. p. 220. Cf. Waitz, loc. cit. vol. ii. p. 391. Fritsch, loc. cit. p. 92.

[564] Starcke, loc. cit. p. 75. Spencer, 'Descriptive Sociology,' African Races, p. 7.

[565] Andersson, p. 333.

[566] Spencer, 'Descriptive Sociology,' Types of Lowest Races, &c., p. 10. For other instances of male descent in Africa, see Post, 'Afrikanische Jurisprudenz,' vol. i. pp. 26-28.

[567] Maine, 'Dissertations on Early Law and Custom,' p. 149.

[568] Bachofen, 'Das Mutterrecht,' and 'Antiquarische Briefe.' McLennan, loc. cit. pp. 118-120, 195-246. Idem, 'The Patriarchal Theory.' Giraud-Teulon, 'Les origines du mariage,' ch. xiv., xvi.

[569] Tacitus, 'Germania,' ch. xx.

[570] Schrader, 'Prehistoric Antiquities of the Aryan Peoples,' p. 395.

[571] Müller, 'Biographies of Words,' p. xvii.

[572] Mr. Horatio Hale thinks ('Science,' vol. xix. p. 30) that in North America the paternal and maternal systems are both primitive.

[573] Cf. Friedrichs, in 'Zeitschr. f. vgl. Rechtswiss.,' vol. viii. pp. 371, &c.

[574] Maine, loc. cit. p. 202.

[575] Cf. Lippert, 'Die Geschichte der Familie,' pp. 5, 8, 9, &c.

[576] Carver, loc. cit. p. 378.

[577] Cameron, 'Notes on some Tribes of New South Wales,' in 'Jour. Anthr. Inst.,' vol. xiv., p. 352.

[578] Howitt, in 'Smithsonian Report,' 1883, p. 813.

[579] Wilkinson, 'The Manners and Customs of the Ancient Egyptians,' vol. i. p. 320.

[580] Ribot, 'L'hérédité psychologique,' p. 362.

[581] Maine, loc. cit. p. 203.

[582] Cf. Tylor, 'Researches into the Early History of Mankind,' pp. 295, et seq.; Kohler, in 'Kritische Vierteljahrschrift für Gesetzgebung und Rechtswissenschaft,' N. S. vol. iv. pp. 182, et seq.

[583] Cf. Lubbock, loc. cit. pp. 150, et seq.

[584] Belt, 'The Naturalist in Nicaragua' p. 322.

[585] Schoolcraft, loc. cit. vol. v. p. 273.

[586] Hooker, 'Himalayan Journals,' vol. ii. p. 276.

[587] Quoted by Starcke, loc. cit. p. 69, note 4.

[588] Ibid., pp. 27, 28, 35, 36, 40, 41, &c.

[589] Macdonald, 'Oceania,' pp. 184, 192, et seq. It is remarkable, he says (p. 187), that while all children, among the Efatese, belonged, by the family name, to the mother's family, each child had its own name, and any one bearing the name at once knew the father's family thereby.

[590] Casalis, loc. cit. p. 181.

[591] Moore, loc. cit. p. 298. Powers, loc. cit. p. 382. Schoolcraft, 'The Indian and his Wigwam,' p. 72.

[592] Waitz, loc. cit. vol. iii. p. 383.

[593] Macdonald, 'Africana,' vol. i. p. 136. Cf. Livingstone, loc. cit. pp. 622, et seq.

[594] Hickson, 'Notes on the Sengirese,' in 'Jour. Anthr. Inst.,' vol. xvi. p. 138.

[595] Hooker, loc. cit. vol. ii. p. 276.

[596] Marsden, loc. cit. p. 262.

[597] Starcke, loc. cit. p. 80.

[598] Tylor, in 'Jour. Anthr. Inst.,' vol. xviii. p. 258.

[599] Early Arabians (Robertson Smith, loc. cit. pp. 74, et seq.), Sumatrans (Marsden, loc. cit. p. 225), Sinhalese (McLennan, 'Studies in Ancient History,' pp. 101, et seq.).

[600] Küchler, 'Marriage in Japan,' in 'Trans. As. Soc. Japan,' vol. xiii. p 115.

[601] Starcke, loc. cit. p. 36.

[602] Grey, loc. cit. vol. ii. pp. 226, 231. Lubbock, loc. cit. pp. 136, et seq.

[603] v. Haxthausen, 'Transcaucasia,' p. 406.

[604] McCall Theal, 'History of the Emigrant Boers,' p. 16.

[605] Medhurst, 'Marriage, Affinity, and Inheritance in China,' in 'Trans. Roy. As. Soc. China Branch,' vol. iv. p. 29.

[606] Munzinger, loc. cit. pp. 484, 490. Proyart, loc. cit. p. 571.

[607] Marshall, loc. cit. pp. 206, et seq.

[608] Kearns, 'The Tribes of South India,' p. 35.

[609] Wake, loc. cit. p. 271.

[610] Spencer, 'The Principles of Sociology,' vol. i. p. 637, note.

[611] Cf. Bosman, loc. cit. p. 421. Phillips, 'The Lower Congo,' in 'Jour. Anth. Inst.,' vol. xvii. p. 229. Grade, in 'Aus allen Welttheilen,' vol. xx. p. 5. Powell, 'Wanderings in a Wild Country,' p. 60.

[612] Maine, loc. cit. pp. 204, et seq.

[613] Ibid., pp. 204, et seq. note.

[614] Mantegazza, 'Die Hygieine der Liebe,' p. 405.

[615] Quoted by Witkowski, 'La génération humaine,' p. 218.

[616] 'Narratives of the Mission of George Bogle to Tibet,' &c., note to p. 74.

[617] Wilson, 'The Abode of Snow,' p. 215.

[618] Bancroft, loc. cit. vol. i. p. 82. Cf. Erman, in 'Zeitschrift für Ethnologie,' vol. iii. p. 163.

[619] Lisiansky, 'Voyage Round the World,' p. 83.

[620] Bontier and Le Verrier, loc. cit. p. 139.

[621] Harkness, loc. cit. pp. 122, et seq.

[622] de Ujfalvy, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. v. p. 227.

[623] Hamilton, loc. cit. pp. 374, et seq.

[624] Darwin, 'The Descent of Man,' vol. ii. p. 395.

[625] Ibid., vol. ii. p. 394.

[626] Le Bon, loc. cit. vol. ii. pp. 289, et seq. Kautsky, in 'Kosmos,' vol. xii. p. 262.

[627] Giraud-Teulon, 'Les origines de la famille,' p' 79, note.

[628] Le Bon, vol. ii. p. 293.

[629] Wilkes, loc. cit. vol. i. p. 125.

[630] Breton, 'Excursions in New South Wales,' &c., p. 231. Wilkes, vol. ii. p. 195. Waitz-Gerland, loc. cit. vol. vi. p. 774. Schürmann, loc. cit. p. 223. Salvado, 'Mémoires,' p. 280.

[631] Grey, loc. cit. vol. ii. p. 252.

[632] Curr, loc. cit. vol. i. pp. 100, 109.

[633] Bailey, in 'Trans. Ethn, Soc.,' N. S. vol. ii. p. 292.

[634] Holmberg, 'Ethnographische Skizzen über die Völker des russischen Amerika,' in 'Acta Societatis Scientiarum Fennicæ,' vol. iv. pp. 332, et seq. Dali, loc. cit. p. 421.

[635] Petroff, loc. cit. p. 158. Richardson, loc. cit. vol. i. p. 383. Hardisty, 'The Loucheux Indians,' in 'Smithsonian Report,' 1866, p. 312. Dixon, 'Voyage round the World,' pp. 225, et seq. Harmon, 'Journal of Voyages and Travels,' p. 293. Franklin, 'Journey to the Shores of the Polar Sea,' p. 67. Cf. Waitz, vol. iii. p. 328; Hearne, loc. cit. p. 310; Mackenzie, loc. cit. p. 147; Hooper, loc. cit. p. 390.

[636] Harmon, loc. cit. p. 343.

[637] Powers, loc. cit. p. 412.

[638] Adair, loc. cit. p. 143.

[639] Waitz, loc. cit. vol. iv. p. 209.

[640] v. Martius, loc. cit. vol. i. p. 693.

[641] v. Schütz-Holzhausen, 'Der Amazonas,' p. 70.

[642] v. Martius, vol i. p. 322. Keane, 'On the Botocudos,' in 'Jour. Anthr. Inst.,' vol. xiii. p. 206.

[643] v. Spix and v. Martius, loc. cit. vol. ii. p. 241.

[644] Lisiansky, loc. cit. p. 128.

[645] Ibid., i. p. 82.

[646] Ellis, 'Polynesian Researches,' vol. i. p. 239.

[647] Moncelon, in 'Bull Soc. d'Anthr.,' ser. iii. vol. ix. p. 368. Waitz-Gerland, vol. vi. p. 115.

[648] 'Ymer,' vol. iv. p. 329.

[649] Macdonald, 'Oceania,' p. 194.

[650] Bock, 'The Head-Hunters of Borneo,' p. 315.

[651] Riedel, loc. cit. pp. 5, 335, 448. Cf. Modigliani, 'Un viaggio a Nías,' p. 471 (Nias).

[652] 'Ymer,' vol. iii. p. 144.

[653] Georgi, loc. cit. pp. 348, et seq.

[654] Chavanne, loc. cit. p. 315.

[655] Bastian, 'Rechtsverhältnisse,' p. xx. Waitz, loc. cit. vol. ii. p. 516.

[656] Bosman, loc. cit. p. 479.

[657] Forbes, 'Dahomey and the Dahomans,' vol. i. p. 25. Cf. Barth, 'Reisen,' vol. iv. p. 498; 'Globus,' vol. xli. p. 237; Bosman, p. 480.

[658] Le Bon, 'La civilisation des Arabes,' p. 434. This rule is not, however, strictly observed among the lower classes in Arabia (Palgrave, 'Journey through Central and Eastern Arabia,' vol. i. pp. 271, et seq.), nor by the Mohammedans of Africa (d'Escayrac de Lauture, loc. cit. p. 63. Munzinger, loc. cit. p. 511. Chavanne, p. 349).

[659] Lane, 'The Manners and Customs of the Modern Egyptians,' vol. i. p. 138.

[660] Polak, 'Persien,' vol. i. p. 224.

[661] Balfour, 'The Cyclopædia of India,' vol. iii. p. 252.

[662] Moncelon, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. viii. p. 361 (New Caledonians).

[663] Wilson and Felkin, loc. cit. vol. i. p. 201.

[664] Waitz-Gerland, loc. cit. vol. vi. p. 661.

[665] Reade, loc. cit. p. 61.

[666] Some Californian tribes (Powers, loc. cit. pp. 75, 246, 270), the Comanches (Schoolcraft, loc. cit. vol. ii. p. 132), Guanas (Azara, loc. cit. vol. ii. p. 95), Patagonians (Falkner, 'Description of Patagonia,'p. 126), Kaupuis in Manipur (Watt, in 'Jour. Anthr. Inst.,' vol. xvi. p. 355), Ladrone Islanders (Moore, loc. cit. p. 187), the ancient people of Honduras (de Herrera, 'The General History of the West Indies,' vol. iv. p. 140).

[667] North American Indians (Schoolcraft, vol. i. p. 236; vol. ii. p. 132; vol. v. pp. 683, 684, 686. Carver, loc. cit. p. 375. Adair, loc. cit. p. 145. Bancroft, loc. cit. vol. i. p. 514), Africans (Wake, 'The Evolution of Morality,' vol. ii. p. 128, note 2. Waitz, vol. ii. p. 115), Gonds and Korkús (Forsyth, loc. cit. p. 149), Kolyas (Watt, in 'Jour. Anthr. Inst.,' vol. xvi. p. 358), inhabitants of Nepaul (Smith, 'Five Years' Residence at Nepaul,' vol. i. p. 153), South Slavonians (Krauss, loc. cit. pp. 569, et seq.), Egyptians (Wilkinson, loc. cit. vol. i. p. 304).

[668] Liebich, loc. cit. p. 50, note 3.

[669] 'Uplands-Lagen,' Aerfdæ Balkær, ch. vi.

[670] Adair, pp. 144, et seq. Lewin, loc. cit. p. 245.

[671] Crees (Schoolcraft, vol. v. p. 167), Chibchas (Waitz, vol. iv. p. 367), Abyssinians (Lobo, 'Voyage to Abyssinia,' in Pinkerton, 'Collection of Voyages,' vol. xv. pp. 25, et seq.), Kolyas (Watt, in 'Jour. Anthr. Inst,' vol. xvi. p. 358), &c.

[672] Sproat, loc. cit. p. 95.

[673] Keating, 'Expedition to the Source of St. Peter's River,' vol. ii. pp. 169, et seq.

[674] Heriot, loc. cit. p. 339. Waitz, loc. cit. vol. iii. p. 505.

[675] Bancroft, loc. cit. vol. i. p. 632.

[676] Squier, 'The Archæology and Ethnology of Nicaragua,' in 'Trans. Am. Ethn. Soc.,' vol. iii. pt. i. p. 127. Acosta, 'The Natural and Moral History of the Indies,' vol. ii. p. 370.

[677] Wilken, in 'Bijdragen tot te taal-, land-en volkenkunde van Nederlandsch-Indië,' ser. v. vol. iv. pp. 446-448. Bink, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. xi. p. 397.

[678] Turner, 'Samoa,' p. 95. Wilkes, loc. cit. vol. ii. p. 80. Waitz-Gerland, vol. vi. p. 127.

[679] Reade, loc. cit. p. 547. Cf. Waitz, vol. ii. p. 389; Nachtigal, loc. cit. vol. i. p. 740; Park, 'Travels in the Interior of Africa,' p. 221 (Mandingoes); Burckhardt, loc. cit. p. 151, note * (Arabs of Upper Egypt).

[680] Waitz, loc. cit. vol. ii. p. 113. Post, 'Afrikanische Jurisprudenz,' vol. i. pp. 396, et seq. Johnston, 'The People of Eastern Equatorial Africa,' in 'Jour. Anthr. Inst.,' vol. xv. p. 11. Cf. Reade, loc. cit. p. 45.

[681] Grade, in 'Aus. allen Welttheilen,' vol. xx. p. 5.

[682] Waitz, vol. ii. p. 522.

[683] d'Escayrac de Lauture, loc. cit. p. 192.

[684] 'Deuteronomy,' ch. xxii. vv. 15-17.

[685] Gray, loc. cit. vol. i. p. 209.

[686] Manzoni, quoted by Janke, loc. cit. p. 555. Cf. Burckhardt, loc. cit. p. 63.

[687] Vámbéry, 'Das Türkenvolk,' p. 461

[688] Polak, loc. cit. vol. i. p. 213.

[689] Klemm, loc. cit. vol. iv. p. 26.

[690] Georgi, loc. cit. pp. 79, 104, 237, 238, 283.

[691] Ibid., p. 232.

[692] Tacitus, loc. cit. ch. xix.

[693] Schoolcraft, loc. cit. vol. ii. p. 133.

[694] Ibid., vol. iv. p. 226; vol. v. p. 217.

[695] Mackenzie, loc. cit. p. xcviii.

[696] Seemann, 'The Voyage of Herald,' vol. i. p. 316.

[697] Acosta, loc. cit. vol. ii. p. 313.

[698] Reade, loc. cit. p. 359. Waitz, loc. cit. vol. ii. pp. 192, 193, 419.

[699] Schrader, loc. cit. p. 391.

[700] In Bali this practice was carried to the utmost excess (Crawfurd 'History of the Indian Archipelago,' vol. ii., p. 241. Zimmermann, loc. cit. vol. i. p. 19).

[701] Navarette, loc. cit. p. 77.

[702] Waitz-Gerland, vol. vi. pp. 130, 640, et seq.

[703] Wilkes, loc. cit. vol. iii. p. 96. Zimmermann, loc. cit. vol. i. pp. 359, 377. Seemann, 'Viti,' pp. 192, 398. Williams, 'Missionary Enterprises in the South Sea Islands,' p. 557. Pritchard, loc. cit. p. 372.

[704] Inglis, 'Missionary Tour in the New Hebrides,' in 'Journal of the Ethnological Society of London,' vol. iii. p. 63.

[705] Wilkes, loc. cit. vol. iv. p. 435. Cf. Richardson, loc. cit. vol. ii. p. 31.

[706] Hardisty, in 'Smithsonian Report,' 1866, p. 319.

[707] Bouche, 'La Côte des Esclaves,' p. 218.

[708] Lewin, loc. cit. p. 280.

[709] Bancroft, loc. cit. p. 173.

[710] Waitz-Gerland, loc. cit. vol. v. pt. ii. p. 191; vol. vi. p. 130.

[711] de Rubruquis, 'Travels into Tartary and China,' in Pinkerton, 'Collection of Voyages,' vol. vii. p. 33. Schoolcraft, loc. cit. vol. vi. p. 57.

[712] Garcilasso de la Vega, loc. cit. vol. i. p. 305.

[713] Gray, loc. cit. vol. i. p. 215.

[714] Burckhardt, loc. cit. p. 152.

[715] Schrader, loc. cit. p. 391.

[716] Dubois, loc. cit. pp. 99, 164.

[717] Malcolm, 'Essay on the Bhills,' in 'Trans. Roy. Asiatic Soc. Gr. Britain and Ireland,' vol. i. p. 86.

[718] Krauss, loc. cit. p. 578.

[719] Pausanias, 'Ἑλλάδος περιήγησις,' book ii. ch. 21.

[720] Rossbach, loc. cit. p. 262.

[721] Fulton, 'The Laws of Marriage,' pp. 204, et seq. St. Paul, '1 Timothy,' ch. v. vv. 11, 12, 14, et seq.

[722] Gibbon, 'The History of the Decline and Fall of the Roman Empire,' vol. i. p. 319.

[723] Adair, loc. cit. p. 186.

[724] Schoolcraft, loc. cit. vol. v. p. 269.

[725] Stewart, in 'Jour. As. Soc. Bengal,' vol. xxiv. p. 621.

[726] Munzinger, loc. cit. pp. 488, 387.

[727] Schomburgk, loc. cit. vol. i. p. 227. Lord, loc. cit. vol. ii. p. 235. Catlin, loc. cit. vol. i. p. 95.

[728] Sibree, loc. cit. p. 255. v. Siebold, loc. cit. p. 34. Falkner, loc. cit. p. 119. Schoolcraft, loc. cit. vol. iii. p. 238 (Dacotahs). Powers, loc. cit. p. 383 (Yokuts). Munzinger, loc. cit. pp. 208, 241 (Takue, Marea). Finsch, loc. cit. p. 82 (certain Papuans).

[729] Heriot, loc. cit. p. 325 (Californians). Ashe, 'Travels in America,' p. 250 (Shawanese). Lyon, loc. cit. p. 369 (Eskimo at Igloolik).

[730] Munzinger, p. 387.

[731] Burckhardt, loc. cit. p. 63.

[732] Greenlanders (Cranz, loc. cit. vol. i. p. 148), Eskimo at Igloolik (Lyon, loc. cit. 369), Aleuts (Bancroft, loc. cit. vol. i. p. 93, note 133, Petroff, loc. cit. p. 159), Indians of Oregon (Schoolcraft, loc. cit. vol. v. p. 655), Dacotahs (ibid., vol. iii. p. 238), Yokuts (Powers, loc. cit. p. 383), Shawanese (Ashe, loc. cit. p. 250), Chibchas (Waitz, loc. cit. vol. iv. p. 367), Macusís (v. Martius, loc. cit. vol. i. p. 649), Ainos (Dall, loc. cit. p. 524. Bickmore, 'Notes on the Ainos,' in 'Trans. Ethn. Soc.,' N. S. vol. vii. p. 20. v. Siebold, loc. cit. p. 34), Igorrotes of Luzon (Meyer, in 'Verhandl. Berl. Ges. Anthr.,' 1883, p. 385. Blumentritt, loc. cit. p. 28), Old Kukis (Stewart, in 'Jour. As. Soc. Bengal,' vol. xxiv. p. 620).

[733] Adair, loc. cit. pp. 186, et seq.

[734] Fries, 'Grönland,' p. 76.

[735] Cf. Casalis, loc. cit. p. 225 (Basutos); Rochon, loc. cit. p. 747 (people of Madagascar); Lumholtz, loc. cit. p. 126 (natives of Northern Queensland); Letourneau, 'L'évolution du mariage et de la famille,' pp. 258, et seq.

[736] In Fernando Po (Reade, loc. cit. p. 61) and among the Fulah (Waitz, loc. cit. vol. ii. p. 472).

[737] Wilkes, loc. cit. vol. ii. p. 195.

[738] Reade, loc. cit. p. 44. 'Das Ausland,' 1881, p. 1028.

[739] Franklin, loc. cit. pp. 67, et seq.

[740] Lisiansky, loc. cit. p. 82.

[741] Bonwick, 'The Last of the Tasmanians,' p. 308.

[742] Curr, loc. cit. vol. i. p. 110. Cf. Lumholtz, loc. cit. pp. 345, et seq.

[743] Grey, loc. cit. vol. ii. pp. 252, et seq.

[744] Bosman, loc. cit. p. 525.

[745] Lisiansky, p. 128.

[746] Powers, loc. cit. p. 413.

[747] Bancroft, loc. cit. vol. i. p. 218.

[748] Georgi, loc. cit. p. 349.

[749] Lumholtz, loc. cit. p. 163.

[750] Giraud-Teulon, 'Les origines du mariage et de la famille,' p. 70.

[751] As a curious exception to this rule, Dr. Brehm ('Bird-Life,' p. 289) mentions a bereaved hen sparrow, who, though she had eggs to hatch and young to rear, would not take a second mate.

[752] Among the Kaniagmuts and Aleuts (Dall, loc. cit. p. 402), as also occasionally among other North American tribes, certain men were dressed and brought up like women, and never married; whereas, among the Eastern Eskimo, there are some women who refuse to accept husbands, preferring to adopt masculine manners, following the deer on the mountains, trapping and fishing for themselves (ibid., p. 139).

[753] Harmon, loc. cit. p. 339.

[754] Ashe, loc. cit. p. 250.

[755] Schoolcraft, loc. cit. vol. iii. p. 238.

[756] Adair, loc. cit. p. 187.

[757] 'Science,' vol. vii. p. 172.

[758] Azara, loc. cit. vol. ii. p. 21.

[759] Burchell, loc. cit. vol. ii. p. 58. Cf. ibid., vol. ii. p. 565.

[760] Bosman, loc. cit. p. 424.

[761] Caillié, 'Travels through Central Africa,' vol. i. p. 348.

[762] Barth, 'Reisen,' vol. i. p. 489.

[763] Davy, loc. cit. p. 284.

[764] Marshall, loc. cit. pp. 220, et seq.

[765] Lewin, loc. cit. pp. 193, 175.

[766] Dalton, loc. cit. p. 233.

[767] Fytche, loc. cit. vol. ii. p. 69, note.

[768] Wallace, 'The Malay Archipelago,' vol. i. p. 141.

[769] Marsden, loc. cit. pp. 256, et seq. Cf. Schellong, 'Familienleben und Gebräuche der Papuas,' in 'Zeitschrift für Ethnologie,' vol. xxi. p. 17 (Papuans of Finschhafen, Kaiser Wilhelm Land).

[770] Crawfurd, loc. cit. vol. i. p. 86.

[771] Martin, loc. cit. vol. ii. p. 168.

[772] Brough Smyth, loc. cit. vol. i. p. xxiv. Curr, loc. cit. vol. i. p. 110.

[773] Lumholtz, loc. cit. p. 184.

[774] Cf. Lansdell, 'Through Siberia,' vol. ii. p. 226 (Gilyaks); Armstrong, 'The Discovery of the North-West Passage,' p. 192 (Eskimo); Wilken, in 'De Indische Gids,' 1880, vol. ii. p. 633, note 2 (natives of the Indian Archipelago).

[775] Man, 'Sonthalia and the Sonthals,' p. 101.

[776] v. Weber, loc. cit. vol. ii. p. 215.

[777] Dalton, loc. cit. p. 110.

[778] Southey, loc. cit. vol. i. p. 240.

[779] Pritchard, loc. cit. pp. 368, 372. Seemann, 'Viti,' pp. 399, et seq.

[780] Nansen, loc. cit. vol. ii. p. 320.

[781] Powers, loc. cit. p. 413. Catlin, loc. cit. vol i. p. 121. Cf. Ross, 'The Eastern Tinneh,' in 'Smithsonian Report,' 1866, p. 305 (Chippewyans); Schoolcraft, loc. cit. vol. ii. p. 132 (Comanches); vol. iii. p. 238 (Dacotahs).

[782] Bancroft, loc. cit. vol. i. p. 632.

[783] Bovallius, 'Resa i Central-Amerika,' vol i. p. 248.

[784] Morelet, 'Reisen in Central-Amerika,' p. 257.

[785] v. Spix and v. Martius, loc. cit. vol. ii. p. 248.

[786] Azara, loc. cit. vol. ii. pp. 60, 61, 94.

[787] Bove, loc. cit. p. 132.

[788] Parkyns, 'Life in Abyssinia,' vol. ii. p. 41.

[789] Munzinger, loc. cit. p. 324. Petherick, 'Egypt, the Soudan and Central Africa,' p. 396.

[790] Chavanne, loc. cit. p. 401. Krapf, 'Travels in East Africa,' p. 354. 'Ymer,' vol. v. p. 168.

[791] Wilson and Felkin, loc. cit. vol. ii. pp. 145, et seq.

[792] Davy, loc. cit. p. 284.

[793] Hodgson, 'The Kócch, Bodo and Dhimál People,' in 'Jour. As. Soc. Bengal,' vol. xviii. pt. ii. p. 734.

[794] Hunter, 'Rural Bengal,' vol. i. p. 205. Cf. Man, loc. cit. p. 20.

[795] Hunter, vol. iii. p. 82.

[796] Lewin, loc. cit. p. 125.

[797] Jellinghaus, in 'Zeitschr. f. Ethnol.,' vol. iii. pp. 366, et seq.

[798] Colquhoun, 'Amongst the Shans,' p. 64.

[799] Neale, 'Residence in Siam,' p. 155.

[800] Fytche, loc. cit. vol. ii. p. 69.

[801] Huc, 'Travels in Tartary,' vol. i. p. 184.

[802] Batchelor, 'The Ainu of Japan,' p. 141.

[803] Prejevalsky, 'From Kulja to Lob-nor,' pp. 111, et seq.

[804] Bickmore, loc. cit. p. 278. Cf. Wilken, in 'Bijdragen,' &c., ser. v. vol. i. p. 143.

[805] Wilkes, loc. cit. vol. ii. p. 195.

[806] Curr, loc. cit. vol. i. p. 107.

[807] Stone, 'Port Moresby and Neighbourhood,' in 'Jour. Roy. Geo. Soc.,' vol. xlvi. p. 55. Ploss, loc. cit. vol. i. p. 392.

[808] Klemm, loc. cit. vol. v. pp. 46, et seq. Bancroft, loc. cit. vol. ii. pp. 251, et seq.

[809] Garcilasso de la Vega, loc. cit. vol. i. pp. 306, et seq.

[810] Balfour, loc. cit. vol. ii. p. 882.

[811] Gray, loc. cit. vol. i. p. 186.

[812] Ibid., vol. i. pp. 216, et seq.

[813] Marco Polo, loc. cit. vol. i. pp. 234, et seq.

[814] Ross, 'History of Corea,' p. 313.

[815] d'Escayrac de Lauture, loc. cit. p. 67.

[816] Niebuhr, 'Travels in Arabia,' in Pinkerton, 'Collection of Voyages,' vol. x. p. 151. Cf. Burckhardt, loc. cit. p. 64 (Arabs).

[817] Polak, loc. cit. vol. i. p. 205.

[818] Lane, loc. cit. vol. i. p. 213.

[819] Andree, 'Zur Volkskunde der Juden,' pp. 140, et seq.

[820] Michaelis, 'Commentaries on the Laws of Moses,' vol. i. p. 471.

[821] Mayer, 'Die Rechte der Israeliten, Athener und Römer,' pp. 286, 353. Lichtschein, 'Die Ehe nach mosaisch-talmudischer Auffassung,' p. 6.

[822] Fustel de Coulanges, 'The Ancient City,' p. 63. Hearn, 'The Aryan Household,' pp. 69, 71. Mayne, 'Treatise on Hindu Law and Usage,' pp. 68, et seq.

[823] 'The Laws of Manu,' ch. ii. vv. 66, et seq. Monier Williams, 'Indian Wisdom,' p. 246. Cf. Mayne, p. 69.

[824] Muir, 'Religious and Moral Sentiments,' p. 110.

[825] Dubois, loc. cit. pp. 99-101.

[826] Geiger, 'Civilization of the Eastern Irānians,' vol. i. p. 60.

[827] Müller, 'The History and Antiquities of the Doric Race,' vol. ii. pp. 300, et seq. Smith, 'Dictionary of Greek and Roman Antiquities,' p. 735. Fustel de Coulanges, loc. cit. pp. 63, et seq. Hearn, loc. cit. p. 72.

[828] Plato, 'Νόμοι,' book vi. p. 773.

[829] Isaeus, 'Περὶ τοῦ Ἀπολλοδώρου κλήρου,' p. 66.

[830] Mommsen, 'The History of Rome,' vol. i. p. 62.

[831] Cicero, 'De Legibus,' book iii. ch. 3. Fustel de Coulanges, loc cit. p. 63.

[832] Mommsen, loc. cit. vol. ii. p. 432; vol. iii. p. 440; vol. iv. p. 547.

[833] Rossbach, loc. cit. p. 418.

[834] Mackenzie, 'Studies in Roman Law,' p. 104.

[835] Cæsar, 'De Bello Gallico,' book vi. ch. 21.

[836] Tacitus, loc. cit. ch. xx.

[837] Ibid., ch. xix.

[838] Cf. Klemm, loc. cit. vol. x. p. 79.

[839] Mackenzie Wallace, 'Russia,' vol. i. p. 138.

[840] Cf. v. Weber, loc. cit. vol. ii. p. 216 (Kafirs).

[841] Campbell, 'The Wild Tribes of Khondistan,' p. 143.

[842] Watson and Kaye, loc. cit. vol. i. no. 18. Dalton, loc. cit. p. 192.

[843] Romilly, in 'Proceed. Roy. Geo. Soc.,' N. S. vol. ix. p. 8.

[844] Richardson, loc. cit. vol. i. p. 383 (Kutchin). Waitz-Gerland, loc. cit. vol. vi. p. 126 (Tahitians). Chavanne, 'Reisen im Kongostaate,' p. 399 (Bafióte tribes). Ross, loc. cit. p. 313 (Coreans). Ahlqvist, loc. cit. pp. 203, et seq. (Tartars). Idem, 'Unter Wogulen und Ostjaken,' in 'Acta. Soc. Sci. Fennicæ,' vol. xiv. p. 291 (Ostyaks).

[845] Wilkes, loc. cit. vol. v. p. 102.

[846] Brough Smyth, loc. cit. vol. ii. p. 291. Palmer, in 'Jour. Anthr. Inst.,' vol. xiii. p. 281. Dawson, loc. cit. p. 35. Mr. Curr states (loc. cit. vol. i. p. 110) that, as a rule, wives are not obtained by the Australian men until they are at least thirty years of age.

[847] Hardisty, in 'Smith. Rep.,' 1866, p. 312.

[848] Wilson and Felkin, loc. cit. vol. i. p. 224.

[849] Waitz-Gerland, vol. v. pt. ii. p. 125. Wilkes, vol. v. p. 74. Romilly, 'The Western Pacific,' pp. 69, et seq.

[850] Dall, loc. cit. p. 420.

[851] Barth, 'Reisen,' vol. ii. pp. 171, et seq.

[852] Lubbock, loc. cit. p. 131. Cf. Bosman, loc. cit. pp. 419, 424 (Negroes of the Gold Coast).

[853] Marsden, loc. cit. pp. 256, et seq.

[854] v. Oettingen, loc. cit. p. 140, note.

[855] Wappäus, loc. cit. vol. ii. p. 267.

[856] Haushofer, 'Lehr-und Handbuch der Statistik,' pp. 404-406.

[857] Wilkens, in 'Nationaloekonomisk Tidsskrift,' vol. xvi. p. 90.

[858] Haushofer, p. 396. Wappäus, vol. ii. p. 229. v. Oettingen, loc. cit. p. 120.

[859] 'Forty-sixth Annual Report of the Registrar-General,' pp. viii. et seq.

[860] v. Oettingen, pp. 125, et seq. Block, 'Statistique de la France,' vol. i., p. 69.

[861] v. Oettingen, loc. cit. p. 60.

[862] Haushofer, loc. cit. pp. 400, et seq. 'Forty-seventh Ann. Rep. Reg.-Gen., p. viii. Cf. Wappäus, loc. cit. vol. ii. p. 216.

[863] Speaking of the Santals, Sir W. W. Hunter remarks ('Rural Bengal,' vol i. p. 205), 'In the tropical forest, a youth of sixteen or seventeen is as able to provide for a family as ever he will be; and a leaf hut, with a few earthen or brazen pots, is all the establishment a Santal young lady expects.' This holds good not only for the savages of the tropics.

[864] Bickmore, loc. cit. p. 278.

[865] Niebuhr, loc. cit. p. 151.

[866] Heriot, loc. cit. p. 337.

[867] 'Forty-sixth Ann. Rep. Reg.-Gen.,' p. ix.

[868] A report, in 'Nya Pressen,' 1887, no. 339, of a lecture delivered by Professor Vallis at Helsingfors.

[869] 'Forty-ninth Ann. Rep. Reg.-Gen.,' p. viii.

[870] Haushofer, loc. cit. pp. 404, et seq.

[871] Ploss, loc. cit. vol. i. p. 384.

[872] 'Why is Single Life becoming more General?' in 'The Nation,' vol. vi. p. 190.

[873] Walker, 'Beauty,' pp. 34, et seq.

[874] Forel, 'Les Fourmis de la Suisse,' quoted in Darwin's 'Life and Letters,' vol. iii. p. 191.

[875] Ribot, loc. cit. p. 150.

[876] 'The Nation,' vol. vi. p. 191.

[877] Jellinghaus, in 'Zeitschr. f. Ethnol.,' vol. iii. p. 367.

[878] Macdonald, 'Oceania,' p. 181.

[879] Cook, loc. cit. vol. ii. p. 164.

[880] Ashe, loc. cit. p. 250.

[881] Powers, loc. cit. p. 31.

[882] v. Martius, loc. cit. vol. i. p. 113.

[883] Guillemard, 'The Cruise of the Marchesa,' p. 389. Kohler, in 'Zeitschr. f. vgl. Rechtswiss.,' vol. vii. p. 372.

[884] Dawson, loc. cit. p. 32. Curr, loc. cit. vol. ii. p. 245.

[885] Lewin, loc. cit. p. 130.

[886] Kohler, in 'Zeitschr. f. vgl. Reichtswiss.,' vol. v. p. 343.

[887] v. Schroeder, 'Die Hochzeitsgebräuche der Esten,' pp. 192-194.

[888] Bancroft, loc. cit. vol. ii. p. 261.

[889] Egede, loc. cit. p. 143, note.

[890] Seemann, 'Mission to Viti,' p. 191.

[891] Lafitau, loc. cit. vol. i. p. 576.

[892] Cf. Carver, loc. cit. p. 241 (Naudowessies); Lumholtz, loc. cit. p. 345 (natives of Queensland); Kotzebue, loc. cit. vol. iii. p. 172 (people of Radack); Schellong, in 'Zeitschr. f. Ethnol.,' vol. xxi. p. 18 (Papuans of Finschhafen); Riedel, loc. cit. p. 96 (Alfura of Ceram); Man, in 'Jour. Anthr. Inst.,' vol. xii. p. 94 (Andamanese).

[893] Waitz-Gerland, loc. cit. vol. vi. p. 387.

[894] Falkner, loc. cit. p. 117.

[895] Bancroft, loc. cit. vol. i. p. 734. Waitz, vol. iv. p. 152.

[896] Garcilasso de la Vega, loc. cit. vol. i. pp. 291-299, 305.

[897] Acosta, loc. cit. vol. ii. pp. 333, et seq.

[898] 'Das Ausland,' 1875, p. 307.

[899] Pomponius Mela, loc. cit. book iii. ch. 6.

[900] Monier Williams, 'Buddhism,' pp. 88, 99.

[901] Rhys Davids, 'Lectures on the Origin and Growth of Religion,' p. 148.

[902] Oldenberg, 'Buddha,' pp. 350, et seq.

[903] Wilson, loc. cit. p. 213.

[904] Medhurst, in 'Trans. Roy. As. Soc. China Branch,' vol. iv. p. 18.

[905] Monier Williams, 'Buddhism,' p. 88.

[906] Dubois, loc. cit. pp. 99, et seq.

[907] Josephus, 'Ἰουδαϊκή ἅλωσις,' book ii. ch. 8, § 2. Solinus, loc. cit. ch. xxxv. §§ 9, et seq.

[908] St. Paul, '1 Corinthians,' ch. vii. v. 38.

[909] Ibid., ch. vii. vv. 1, 2, 9.

[910] Mayer, loc. cit. vol. ii. pp. 289, et seq.

[911] Lecky, 'History of European Morals,' vol. ii. p. 122. Milman, 'History of Latin Christianity,' vol. i. p. 152.

[912] Gibbon, loc. cit. vol. i. pp. 318, et seq.

[913] Draper, 'History of the Intellectual Development of Europe,' vol. i. p. 415.

[914] Fulton, loc. cit. pp. 140, 142.

[915] Lea, 'Sacerdotal Celibacy in the Christian Church,' p. 66.

[916] Gieseler, 'Text-Book of Ecclesiastical History,' vol. ii. p. 275.

[917] Sachs, 'Text-Book of Botany,' p. 897.

[918] Darwin, 'The Descent of Man,' vol. i. pp. 343, et seq.

[919] Ibid., vol. i. p. 343.

[920] Darwin, 'The Descent of Man,' vol. i. p. 344.

[921] 'Sir R. Heron states that with pea-fowl, the first advances are always made by the female; something of the same kind takes place, according to Audubon, with the older females of the wild turkey' (ibid., vol. ii. p. 134).

[922] Schoolcraft, loc. cit. vol. iv. p. 86.

[923] Rengger, loc. cit. p. 11.

[924] Moore, loc. cit. p. 261.

[925] Dalton, loc. cit. p. 64. Cf. ibid., pp. 142, 233 (Bhúiyas, Muásís).

[926] Batchelor, loc. cit. p. 324.

[927] Waitz-Gerland, loc. cit. vol. vi. p. 127.

[928] Shooter, 'The Kafirs of Natal,' p. 52.

[929] Wilkes, loc. cit. vol. iv. p. 457.

[930] Darwin, 'The Descent of Man,' vol. i. pp. 459, 501.

[931] Haeckel, 'Generelle Morphologie,' vol. ii. p. 244.

[932] Hearne, loc. cit. pp. 104, et seq.

[933] Richardson, loc. cit. v. ii. pp. 24, et seq. Cf. Mackenzie, loc. cit. p. 145; Ross, in 'Smith. Rep.,' 1866, p. 310.

[934] Hooper, loc. cit. p. 303. Cf. Nansen, loc. cit. vol. ii. p. 319 (Greenlanders).

[935] Schoolcraft, loc. cit. vol. iv. p. 224. Powers, loc. cit. pp. 221, et seq.

[936] Waitz, loc. cit. vol. iv. p. 132.

[937] Azara, loc. cit. vol. ii. p. 94.

[938] v. Martius, loc. cit. vol. i. pp. 412, 509.

[939] Wilkes, loc. cit. vol. ii. p. 195. Bastian, 'Rechtsverhältnisse,' p. 176, note 1. Salvado, 'Mémoires,' p. 279.

[940] Lumholtz, loc. cit. p. 213.

[941] Lumholtz, loc. cit. p. 184.

[942] Dawson, loc. cit. p. 36. Cf. Ridley, 'The Aborigines of Australia,' p. 6.

[943] Spencer, 'The Principles of Sociology,' vol. i. p. 601.

[944] Dieffenbach, 'Travels in New Zealand,' vol. ii. pp. 36, et seq.

[945] Taylor, loc. cit. p. 337.

[946] Pritchard, loc. cit. pp. 55, 269.

[947] Wilkes, loc. cit. vol. v. p. 72.

[948] Lichtenstein, loc. cit. vol. ii. p. 48.

[949] Barth, 'Reisen,' vol. iii. p. 352.

[950] Steller, loc. cit. p. 348. Cf. 'Das Ausland,' 1875, p. 738 (Tanguts).

[951] Samuelson, 'India, Past and Present,' p. 48.

[952] Pausanias, loc. cit. book iii. ch. 12.

[953] Pindar, 'Πύθια,' ode ix. v. 117.

[954] Pausanias, book iii. ch. 12.

[955] Homer's 'Odyssey,' Books xxi.-xxiv. (edited by Hamilton), Preface, p. 5.

[956] Krauss, loc. cit. pp. 163, et seq.

[957] Young, 'Tour in Ireland,' in Pinkerton, 'Collection of Voyages,' vol. iii. p. 860.

[958] Darwin, 'The Descent of Man,' vol. ii. p. 257.

[959] Martin, loc. cit. vol. ii. p. 174. Cf. Fritsch, loc. cit. p. 445 (Bushmans).

[960] Hooper, loc. cit. p. 390.

[961] Powers, loc. cit. pp. 238, et seq.

[962] Spencer, 'The Principles of Sociology,' vol. i. pp. 601, et seq.

[963] Wilkes, loc. cit. vol. v. p. 90.

[964] Klemm, loc. cit. vol. ii. p. 207.

[965] Spencer, 'The Principles of Sociology,' vol. i. p. 64.

[966] Emerson Tennent, loc. cit. vol. ii. p. 443.

[967] Hawkesworth, 'Voyages,' vol. ii. p. 55.

[968] Eyre, loc. cit. vol. ii. p. 209.

[969] Spencer, vol. i. p. 64.

[970] Sherwill, 'Tour through the Rájmahal Hills,' in 'Jour. As. Soc. Bengal,' vol. xx. p. 584.

[971] Macdonald, 'Africana,' vol. i. p. 17.

[972] Wilson and Felkin, loc. cit. vol. ii. p. 62.

[973] Barth, 'Reisen,' vol. ii. p. 514. Livingstone, loc. cit. p. 577.

[974] v. Langsdorf, loc. cit. vol. ii. p. 115. v. Martius, loc. cit. vol. i. p. 351. Wallace, 'Travels on the Amazon,' p. 514.

[975] Finsch, loc. cit. p. 39. 'Das Ausland,' 1881, p. 26. Waitz-Gerland, loc. cit. vol. vi. pp. 569, et seq.

[976] Carver, loc. cit. p. 227.

[977] v. Martius, vol. i. pp. 319, 620.

[978] Johnston, loc. cit. pp. 429, et seq.

[979] Beechey, 'Voyage to the Pacific,' vol. i. p. 38. For the artificial enlargement of the ear-lobe, see also Park Harrison, in 'Jour. Anthr. Inst.,' vol. ii. pp. 190-198.

[980] Crawford, loc. cit. vol. i. pp. 216, et seq.

[981] Sturt, 'Expedition into Central Australia,' vol. ii. pp. 9, 61. Waitz-Gerland, loc. cit. vol. vi. p. 570.

[982] Holub, loc. cit. vol. ii. p. 259.

[983] Dalton, loc. cit. p. 301.

[984] Turner, 'Samoa,' p. 308.

[985] Baker, 'The Albert N'yanza,' vol. i. p. 198.

[986] Hearne, loc. cit. p. 306, note.

[987] Catlin, loc. cit. vol. ii. p. 23.

[988] Brett, loc. cit. p. 343. King and Fitzroy, loc. cit. vol. ii. p. 138. v. Martius, loc. cit. vol. i. p. 271. Wallace, 'Travels on the Amazon,' p. 483.

[989] Holub, loc. cit. vol. ii. p. 351.

[990] Hunter, 'Rural Bengal,' vol. i. p. 185.

[991] Carver, loc. cit. p. 227.

[992] v. Martius, loc. cit. vol. i. p. 230.

[993] Waitz-Gerland, loc. cit. vol. vi. p. 738.

[994] Wilkes, loc. cit. vol. iii. p. 356.

[995] Angas, 'Savage Life,' vol. i. p. 316. Labillardière, 'Voyage in Search of La Pérouse,' vol. ii. p. 266.

[996] Darwin, 'The Descent of Man,' vol. ii. p. 369.

[997] Lacassagne, 'Les tatouages,' p. 9. Cæsar, loc. cit. book v. ch. 14. Herodotus, loc. cit. book v. ch. 6.

[998] Beechey, loc. cit. vol. i. p. 39.

[999] Parkyns, loc. cit. vol. ii. p. 29.

[1000] Agassiz, 'Journey in Brazil,' p. 320.

[1001] Freycinet, loc. cit. vol. ii. p. 580. Cf. Beechey, vol. i. p. 140.

[1002] Sibree, loc. cit. p. 210.

[1003] Turner, 'Samoa,' p. 310.

[1004] Curr, loc. cit. vol. ii. p. 475.

[1005] Williams and Calvert, 'Fiji and the Fijians,' p. 137.

[1006] Gason, 'The Manners and Customs of the Dieyerie Tribe,' in Wood's, 'The Native Tribes of South Australia,' p. 267.

[1007] 'Ymer,' vol. iv. pp. 317, et seq.

[1008] Squier, in 'Trans. American Ethn. Soc.,' vol. iii. pt. i. p. 129.

[1009] Williams and Calvert, loc. cit. p. 138. Pritchard, loc. cit. p. 391. Seeman, 'Viti,' p. 113. Wilkes, loc. cit. vol. iii. p. 355.

[1010] Wilkes, vol. v. p. 88. v. Siebold, loc. cit. p. 15.

[1011] Egede, loc. cit. p. 132, et seq. Nordenskiöld, 'Grönland,' p. 468.

[1012] 'A totem is a class of material objects which a savage regards with superstitious respect, believing that there exists between him and every member of the class an intimate and altogether special relation' (Frazer, loc. cit. p. 1).

[1013] Frazer, loc. cit. pp. 26-30.

[1014] Waitz-Gerland, loc. cit. vol. vi. pp. 36-39.

[1015] Waitz-Gerland, loc. cit. vol. vi. p. 38.

[1016] Spencer, 'The Principles of Sociology,' vol. ii. p. 72.

[1017] Colquhoun, loc. cit. p. 213.

[1018] Keyser, 'Our Cruise to New Guinea,' pp. 44, et seq.

[1019] Mackenzie, loc. cit. p. cxx. Powers, loc. cit. p. 109. Beechey, loc. cit. vol. ii. p. 401. Agassiz, loc. cit. p. 318. v. Martius, loc. cit. vol. i. pp. 484, 501, &c. 'Das Ausland,' 1875, p. 434. Waitz-Gerland, vol. vi. p. 38.

[1020] Quoted by Heriot, loc. cit. p. 293, note.

[1021] Spencer, vol. ii. pp. 183-186.

[1022] Cf. v. Barth, 'Ostafrika,' p. 32.

[1023] v. Martius, vol. i. pp. 321, 738. 'Ymer,' vol. iii. p. 89. Bonwick, 'Daily Life of the Tasmanians,' p. 24. Bancroft, loc. cit. vol. i. p. 159. Heriot, p. 305.

[1024] Schoolcraft, loc. cit. vol. iii. pp. 237, et seq.

[1025] Dalton, loc. cit. pp. 249, et seq.

[1026] Colquhoun, loc. cit. p. 76.

[1027] Meyer, loc. cit. p. 189.

[1028] Anderson, 'Notes of Travel in Fiji and New Caledonia,' p. 136.

[1029] Brough Smyth, loc. cit. vol. i. p. 275.

[1030] Armstrong, loc. cit. p. 194. Lisiansky, loc. cit. p. 243. Holmberg, in 'Acta Soc. Sci. Fennicæ,' vol. iv. p. 301. Dixon, loc. cit. p. 187. v. Langsdorf, loc. cit. vol. ii. p. 115. Holmberg says expressly that the men undergo this operation to make themselves agreeable to the young women.

[1031] Franklin, 'Second Expedition,' p. 118. Holub, loc. cit. vol. i. p. 35. Angas, 'Savage Life,' vol. ii. p. 225.

[1032] Waitz, loc. cit. vol. iv. pp. 250, 365.

[1033] v. Humboldt, loc. cit. vol. iii. p. 224. 'Ymer,' vol. iv. p. 317. Powell, 'Wanderings in a Wild Country,' p. 254.

[1034] Livingstone, loc. cit. p. 533. Chapman, loc. cit. vol. ii. p. 285. Holub, loc. cit. vol. i. p. 328. Wilson and Felkin, loc. cit. vol. ii. p. 62. 'Emin Pasha in Central Africa,' p. 16. Andersson, loc. cit. p. 226. Ploss, 'Das Kind,' vol. ii. p. 264. Breton, loc. cit. p. 233. Waitz-Gerland, vol. vi. pp. 786, et seq.

[1035] Man, 'Account of the Nicobar Islanders,' in 'Jour. Anthr. Inst.,' vol. xv. p. 441.

[1036] Crawfurd, loc. cit. vol. i. pp. 215, et seq.

[1037] Tuckey, 'Expedition to Explore the River Zaire,' pp. 80, et seq.

[1038] Sibree, loc. cit. p. 211.

[1039] Cf. Wallace, 'Travels on the Amazon,' p. 493; v. Weber, loc. cit. vol. ii. p. 197.

[1040] Lewin, loc. cit. p. 240.

[1041] Riedel, loc. cit. p. 292.

[1042] Harmon, loc. cit. p. 288.

[1043] Moseley, 'On the Inhabitants of the Admiralty Islands,' in 'Jour. Anthr. Inst.,' vol. vi. p. 400. Short hair is often regarded as a symbol of chastity. Every Buddhist 'novice'—that is, a person admitted to the first degree of monkhood—has to cut off his hair, in order to prove that 'he is ready to give up the most

beautiful and highly-prized of all his ornaments for the sake of a religious life' (Monier Williams, 'Buddhism,' p. 306); and, in Mexico, the religious virgins, as also men who decided upon a life of chastity, had their hair cut (Acosta, loc. cit. vol. ii. p. 333; Bancroft, loc. cit. vol. ii. pp. 251, et seq.). A similar idea probably underlies the custom which requires that women, when they marry, shall be deprived of their hair, the husband trying in this way to preserve the fidelity of his wife (see Wilkes, loc. cit. vol. iii. p. 354; Waitz-Gerland, loc. cit. vol. vi. p. 567; Palmer, in 'Jour. Anthr. Inst.,' vol. xiii. p. 286; de Rubruquis, loc. cit. p. 32; Heriot, loc. cit. p. 335); whilst many men in New Guinea and Bornu deprive their wives of all ornaments ('Ymer,' vol. vi. p. 154; Barth, 'Reisen,' vol. iii. p. 31, note). Even at Sparta and Athens, as well as among the Anglo-Saxons, the bride or newly-married wife had her hair cut short (Rossbach, loc. cit. p. 290). Mr. Wright suggests ('Womankind in Western Europe,' p. 68) that, among the people last mentioned, this was done in order to show that she had accepted a position of servitude towards her husband, as the cutting of hair in either sex indicated slavery. But that this explanation cannot be applied to every case of hair-cutting appears from the fact, reported by Heriot (loc. cit. p. 333), that, among the Tlascalans, it was customary to shave the head of a newly-married couple, both man and woman, 'to denote that all youthful sports ought in that state to be abandoned.'

[1044] Sparrman, 'Voyage to the Cape of Good Hope,' vol. ii. p. 80.

[1045] Bonwick, 'Daily Life of the Tasmanians,' pp. 25, et seq.

[1046] v. Martius, loc. cit. vol. i. p. 217.

[1047] Angas, 'South Australia Illustrated,' no. 22.

[1048] Sproat, loc. cit. p. 28.

[1049] Azara, loc. cit. vol. ii. pp. 10, 127, et seq. (Charruas and Payaguas). Ploss, 'Das Kind,' vol. ii. p. 259 (Manáos and Tamayos). 'Das Ausland,' 1881, p. 45 (Zulus); &c.

[1050] Reade, loc. cit. p. 246.

[1051] Nieuhoff, 'Voyages and Travels into Brazil,' in Pinkerton, 'Collection of Voyages,' vol. xiv. p. 878.

[1052] Bancroft, loc. cit. vol. i. p. 98.

[1053] Armstrong, loc. cit. p. 195. Bancroft, vol. i. p. 47.

[1054] Moore, loc. cit. p. 276.

[1055] v. Martius, loc. cit. vol. i. p. 217.

[1056] Dobrizhoffer, loc. cit. vol. ii. p. 20.

[1057] Wilson and Felkin, loc. cit. vol. ii. p. 97.

[1058] Forsyth, loc. cit. p. 148.

[1059] Bock, 'The Head-Hunters of Borneo,' p. 189.

[1060] Schadenberg, 'Die Negritos der Philippinen,' in 'Zeitschr. f. Ethnol.,' vol. xii. p. 136.

[1061] Fijians (Wilkes, loc. cit. vol. iii. p. 355), Samoans (ibid., vol. ii. p. 141), Kingsmill Islanders (ibid., vol. v. p. 103), Tahitians (Ellis, 'Polynesian Researches,' vol. i. p. 262), natives of Eimeo (Montgomery, 'Journal of Voyages and Travels,' vol. i. p. 127), Tongans (Pritchard, loc. cit. p. 393), Nukahivans (v. Langsdorf, loc. cit. vol. i. p. 118), Gambier Islanders (Beechey, loc. cit. vol. i. p. 139).

[1062] Waitz-Gerland, loc. cit. vol. vi. pp. 739, 785, 787.

[1063] Dalton, loc. cit. p. 39. Cf. Angas, 'Savage Life,' vol. i. p. 314 (New Zealanders).

[1064] Mauch, 'Reisen im Inneren von Süd-Afrika,' in Petermann's 'Mittheilungen,' Ergänzungsband viii. no. 37, pp. 38, et seq.

[1065] Taylor, loc. cit. p. 321.

[1066] Turner, 'Samoa,' p. 88.

[1067] Pritchard, loc. cit. pp. 144, et seq.

[1068] Ellis, 'Polynesian Researches,' vol. i. p. 262 (Tahiti). Montgomery, loc. cit. vol i. p. 127 (Eimeo). Angas, 'Polynesia,' p. 328 (Marquesas Islands). Idem, 'Savage Life,' vol. i. p. 314 (New Zealand). Fytche, loc. cit. vol. ii. p. 61 (Burma). Man, in 'Jour. Anthr. Inst.,' vol. xii. p. 331 (Andaman Islands). St. John, 'The Ainos,' ibid., vol. ii. p. 249 (Ainos of Yesso).

[1069] Waitz-Gerland, loc. cit. vol. v. pt. ii. p. 67.

[1070] Bancroft, loc. cit. vol i. p. 72.

[1071] Palmer, in 'Jour. Anthr. Inst.,' vol. xiii. p. 286.

[1072] Barrington, 'The History of New South Wales,' p. 11.

[1073] Curr, loc. cit. vol. i. p. 402.

[1074] Finsch, in 'Zeitschr. f. Ethnol.,' vol. xii. pp. 308, et seq.

[1075] Chalmers, loc. cit. p. 166.

[1076] Bock, 'Temples and Elephants,' p. 170.

[1077] Turner, 'Samoa,' p. 90. Ellis, 'Polynesian Researches,' vol. i. p. 266.

[1078] Ellis, loc. cit. vol. i. pp. 262, et seq.

[1079] Wundt, 'Ethik,' p. 93.

[1080] Cf. Franklin, 'Journey,' p. 71; Bock, 'Temples and Elephants,' p. 170; Dalton, loc. cit. p. 251; Man, in 'Jour. Anthr. Inst.,' vol. xii. p. 331.

[1081] Beechey, loc. cit. vol. i. p. 139. Yate, loc. cit. pp. 147, et seq.

[1082] Forster, loc. cit. vol. ii. pp. 14, et seq.

[1083] Darwin, 'Journal of Researches,' pp. 481, et seq. Beechey, vol. i. p. 39.

[1084] Waitz-Gerland, loc. cit. vol. vi. p. 573. Jones, 'The Grammar of Ornament,' p. 13, note. Cf. the tattooed circle round the mouth of the Jurís (Wallace, 'Travels on the Amazon,' p. 510) and the female Arecunas (Brett, loc. cit. p. 268); the rings round the eyes of the women in the Admiralty Islands (Moseley, in 'Jour. Anthr. Inst.,' vol. vi. p. 401), of the Australians (Angas, 'South Australia Illustrated'), and the Patagonians (King and Fitzroy, loc. cit. vol. ii. p.

135); the cicatrices like parallel ridges upon the chest, thighs, and shoulders of the Tasmanians (Bonwick, 'Daily Life,' p. 24); and the tattoos on the hands and feet of Egyptian women (Lane, loc. cit. vol. i. pp. 54, 57).

[1085] After this chapter had been prepared for the press, I became acquainted with Herr Joest's magnificent work on tattooing ('Tätowiren, Narbenzeichnen und Körperbemalen'). Herr Joest, who is an experienced ethnographer, has come to the same conclusion as myself regarding the origin of this practice. He says that 'der hauptsächliche Trieb, welcher beide Geschlechter bewegt, sich zu tätowiren, der ist, ihre Reize in den Augen des andern Geschlechts zu erhöhen' (p. 56). He also observes:—'Je weniger sich ein Mensch bekleidet, desto mehr tätowirt er sich, und je mehr er sich bekleidet, desto weniger thut er letzteres' (pp. 56, et seq.).

[1086] Mr. Walker observes ('Beauty,' p. 41) that 'an essential condition of all excitement and action in animal bodies, is a greater or less degree of novelty in the objects impressing them.'

[1087] Waitz, 'Introduction to Anthropology,' p. 305.

[1088] Dobrizhoffer, loc. cit. vol. ii. p. 15.

[1089] Schweinfurth, 'Im Herzen von Afrika,' vol. ii. pp. 7, et seq.

[1090] Barth, 'Reisen,' vol. ii. p. 475.

[1091] Franklin, 'Second Expedition,' p. 197 (cf. Mackenzie, loc. cit. p. 126). Schoolcraft, loc. cit. vol. i. p. 235.

[1092] Wallace, 'Travels on the Amazon,' p. 281. Cf. v. Martius, loc. cit. vol. i. p. 597.

[1093] d'Albertis, 'New Guinea,' vol. i. p. 200. Cf. Waitz-Gerland, loc. cit. vol. vi. p. 570.

[1094] Moseley, 'Notes by a Naturalist on the Challenger,' p. 461. Idem, in 'Jour. Anthr. Inst.,' vol. vi. p. 399. Romilly, loc. cit. p. 115.

[1095] Campbell, 'A Year in the New Hebrides,' p. 145. Strauch, 'Bemerkungen über Neu-Guinea,' &c., in 'Zeitschr. f. Ethnol.,' vol. ix. p. 43. Zimmermann, loc. cit. vol. ii. p. 105.

[1096] Waitz-Gerland, vol. vi. p. 735. Bonwick, in 'Jour. Anthr. Inst.,' vol. xvi. p. 204. Breton, loc. cit. pp. 210, et seq.

[1097] Darwin, 'The Descent of Man,' vol. ii. pp. 372, et seq. Lubbock, loc. cit. p. 54. Forster, loc. cit. vol. ii. p. 219. Mackenzie, loc. cit. pp. 126, et seq.

[1098] Macdonald, 'Africana,' vol. i. p. 35.

[1099] Brett, loc. cit. p. 411.

[1100] d'Albertis, loc. cit. vol. i. pp. 415, 418. Strauch, in 'Zeitschr. f. Ethnol.,' vol. ix. pp. 43, 62.

[1101] Waitz-Gerland, loc. cit. vol. vi. pp. 120, 575, 626.

[1102] Martin, loc. cit. vol. ii. p. 267. Williams and Calvert, loc. cit. p. 145. Wilkes, loc. cit. vol. iii. p. 332.

[1103] Elliott, 'Report on the Seal Islands of Alaska,' pp. 21, et seq.

[1104] Beechey, loc. cit. vol. i. p. 138.

[1105] Bove, loc. cit. p. 129. Proyart, loc. cit. p. 575.

[1106] Mackenzie, loc. cit. p. xciv. Cf. Harmon, loc. cit. pp. 319, et seq.

[1107] Darwin, 'The Descent of Man,' vol. ii. pp. 290-295.

[1108] Brough Smyth, loc. cit. vol. i. p. 275.

[1109] Tylor, 'Anthropology,' p. 243.

[1110] Moseley, loc. cit. p. 412.

[1111] Wilkes, loc. cit. vol. i. p. 121.

[1112] Wundt, loc. cit. p. 127.

[1113] Baegert, in 'Smith. Rep.,' 1863, p. 361.

[1114] Powers, loc. cit. p. 348.

[1115] Waitz, loc. cit. vol. iv. p. 210. Ling Roth, in 'Jour. Anthr. Inst.,' vol. xvi. p. 275. Waitz, vol. iv. p. 193, note. v. Humboldt, loc. cit. vol. iii. p. 230. Wallace, 'Travels on the Amazon,' p. 513. v. Schütz-Holzhausen, loc. cit. p. 179. Maximilian zu Wied-Neuwied, 'Travels in Brazil,' p. 59. Azara, loc. cit. vol. ii. p. 83.

[1116] Charruas, Pampas, Tupis, Payaguas (Azara, vol. ii. pp. 12, 42, 74, 126), and often the Nutkas (Bancroft, loc. cit. vol. i. p. 182) and Patwin (Powers, p. 220).

[1117] Aborigines of Trinidad (Columbus, 'The History of the Life and Actions of Christopher Colon,' in Pinkerton, 'Collection of Voyages,' vol. xii. p. 101), Mundrucüs, Maurauás, Jurís (v. Martius, loc. cit. vol. i. pp. 388, 427, 504), Uaupés, and Curetús (Wallace, 'Travels on the Amazon,' pp. 492, 509).

[1118] Forster, loc. cit. vol. ii. p. 499. King and Fitzroy, loc. cit. vol. i. p. 23. Wilkes, loc. cit. vol. i. p. 121. Bove, loc. cit. p. 129. Armstrong, loc. cit. p. 33. Darwin, 'Journal of Researches,' p. 228.

[1119] Mathew, in 'Jour. Roy. Soc. N. S. Wales,' vol. xxiii. pp. 391, et seq. Breton, loc. cit. pp. 211, et seq. Labillardière, loc. cit. vol. ii. pp. 27, et seq. Bonwick, 'Daily Life,' &c., pp. 104, et seq. Waitz-Gerland, loc. cit. vol. vi. p. 737. Palmer, in 'Jour. Anthr. Inst.,' vol. xiii. p. 281, note. Sir G. Grey remarks that he never saw a cloak or covering worn north of lat. 29° (Curr, loc. cit. vol. i. p. 93).

[1120] Bonwick, 'Daily Life,' pp. 24, 104. Breton, p. 398. Waitz-Gerland, vol. vi. p. 812.

[1121] Bock, 'The Head-Hunters of Borneo,' p. 183.

[1122] Forbes, 'The Kubus of Sumatra,' in 'Jour. Anthr. Inst.,' vol. xiv. p. 122.

[1123] Crawfurd, loc. cit. vol. iii. p. 5.

[1124] Labillardière, vol. ii. pp. 287, 289.

[1125] Ibid., vol. ii. p. 274.

[1126] Wilkes, loc. cit. vol. iv. p. 277; vol. v. p. 46 (Drummond's Island). Kotzebue, loc. cit. vol. iii. p. 215, note (Pelew Islands).

[1127] Nukahiva (Lisiansky, loc. cit. p. 85), Pelli of the Caroline Group (Kotzebue, vol. iii. p. 191), New Britain (Powell, loc. cit. p. 250. d'Albertis, loc. cit. vol. i. p. 255), the Duke of York Group (Powell, pp. 74, et seq.), many parts of New Guinea and neighbouring islands (d'Albertis, vol. ii. p. 380. Earl, loc. cit. p. 48. Gill, 'Life in the Southern Isles,' p. 203. Waitz-Gerland, vol. vi. p. 568).

[1128] Gill, p. 230.

[1129] Forbes, 'Tribes of Timor,' in 'Jour. Anthr. Inst.,' vol. xiii. p. 406.

[1130] Man, ibid., vol. xii. p. 330.

[1131] Johnston, loc. cit. p. 433.

[1132] Ibid., p. 437. Holub, loc. cit. vol. ii. p. 299.

[1133] Kretzschmar, 'Südafrikanische Skizzen,' p. 225. Chapman, loc. cit. vol. i. p. 78. Barrow, loc. cit. vol. i. p. 276.

[1134] Möller, Pagels, and Gleerup, 'Tre år i Kongo,' vol. i. p. 15.

[1135] Livingstone, loc. cit. p. 305.

[1136] Wilson and Felkin, loc. cit. vol. ii. p. 53.

[1137] 'Ymer,' vol. v. p. 36.

[1138] Wilson and Felkin, vol. ii. p. 96.

[1139] Schweinfurth, loc. cit. vol. i. p. 322.

[1140] Ibid., vol. i. p. 163.

[1141] Cameron, 'Across Africa,' vol. i. pp. 285, et seq.

[1142] Last, in 'Proceed. Royal Geo. Soc.,' N. S. vol. v. p. 530.

[1143] Johnston, p. 413, note.

[1144] Bontier and Le Verrier, loc. cit. pp. 138, 139, xxxv.

[1145] Wundt, loc. cit. p. 127.

[1146] Powers, loc. cit. p. 233.

[1147] Waitz, loc. cit. vol. iii. p. 446.

[1148] Heriot, loc. cit. pp. 306, et seq.

[1149] v. Martius, loc. cit. vol. i. pp. 642; 702, 703, note; 579.

[1150] v. Spix and v. Martius, loc. cit. vol. ii. p. 76.

[1151] Macgillivray, 'The Voyage of Rattlesnake,' vol. i. p. 146.

[1152] Angas, 'Savage Life,' vol. i. p. 85.

[1153] Cook, 'Voyage to the Pacific Ocean,' vol. ii. pp. 16, et seq. Idem, 'Journal of a Voyage round the World,' p. 44.

[1154] Seemann, 'Viti,' p. 168.

[1155] Cheyne, loc. cit. p. 144.

[1156] Forster, loc. cit. vol. ii. p. 383.

[1157] New Caledonia, New Hebrides, Ulaua (Waitz-Gerland, loc. cit. vol. vi. pp. 561, 565).

[1158] Torres Islands, New Guinea (Waitz-Gerland, vol. vi. p. 567).

[1159] Admiralty Islands (Labillardière, loc. cit. vol. i. pp. 279, et seq. Moseley, in 'Jour. Anthr. Inst.,' vol. vi. pp. 397, et seq.).

[1160] Marsden, loc. cit. p. 52.

[1161] Godwin-Austen, 'Gāro Hill Tribes,' in 'Jour. Anthr. Inst.,' vol. ii. p. 394.

[1162] Möller, Pagels, and Gleerup, loc. cit. vol. i. p. 169.

[1163] Barrow, loc. cit. vol. i. p. 155.

[1164] Barrow, loc. cit. vol. i. pp. 276, et seq.

[1165] Bosman, loc. cit. p. 524.

[1166] 'Nur das Verborgene reizt,' says Dr. Zimmermann (loc. cit. vol. ii. p. 84), 'und Diejenigen welche auf den Gesellschafts-Inseln die verhüllende Kleidung und den heimlichen Genuss und das Verbergen der natürlichen Gefühle einführten, haben gewiss die Sitten nicht verbessert.'

[1167] Forster, loc. cit. vol. ii. p. 383.

[1168] Hunter, 'Historical Journal,' &c., p. 477.

[1169] Wallace, 'Travels on the Amazon,' p. 296.

[1170] Rowley, loc. cit. p. 146.

[1171] Snow, 'Two Years' Cruise off Tierra del Fuego,' vol. ii. p. 51.

[1172] Speaking of the naked women of New Ireland, he says (loc. cit. vol. ii. pp. 103, et seq.), 'In der That muss ich auch sagen, dass nach kurzer Zeit, nach einer durchaus nicht lange dauernden Gewöhnung an diese Sache, man gar nichts anstössiges mehr in diesem gänzlichen Mangel an Kleidung findet.... Ich habe sehr häufig bemerkt, dass ein Kleid irgend einer Dame, welches nicht nach der allgemeinen Mode geschnitten war, mir stärker auffiel als mir der gänzliche Mangel an Bekleidung der Eingeborenen der tropischen Inseln aufgefallen ist; dazu kommt noch, dass die Leute dem Beobachter durchaus keine Veranlassung geben, an etwas unschickliches zu denken. Eine Europaërin, wenn sie auf eine so glückliche Insel verschlagen und ihrer Kleidung beraubt wäre, würde selbst nach jahrelangem Aufenthalt in solchen Regionen sich die Hände vor die Brust oder irgend einen anderen Theil halten und gerade durch dies Verbergenwollen würde sie die Aufmerksamkeit gegen das zu Verbergende lenken.'

[1173] Reade, loc. cit. p. 546.

[1174] Johnston, loc. cit. p. 437.

[1175] Lewin, loc. cit. p. 349.

[1176] Forster, loc. cit. vol. ii. pp. 230, 276, et seq.

[1177] Barrow, loc. cit. vol. i. p. 154.

[1178] Lewin, loc. cit. pp. 116, et seq.

[1179] Gumilla, 'Histoire naturelle, civile et géographique de l'Orenoque,' vol. i. pp. 188, et seq.

[1180] v. Humboldt, loc. cit. vol. iii. p. 230.

[1181] Wallace, 'Travels on the Amazon,' p. 357.

[1182] Quoted by Bastian, 'Rechtsverhältnisse,' p. 174.

[1183] Barth, 'Reisen,' vol. ii. pp. 467, et seq.

[1184] Mathew, in 'Jour. Roy. Soc. N. S. Wales,' vol. xxiii. p. 392.

[1185] Barrington, loc. cit. pp. 23, et seq.

[1186] Freycinet, loc. cit. vol. ii. p. 748.

[1187] Palmer, in 'Jour. Anthr. Inst.,' vol. xiii. pp. 286; 281, note.

[1188] Snow, loc. cit. vol. ii. p. 46.

[1189] Macgillivray, loc. cit. vol. i. p. 49; vol. ii. pp. 19, et seq.

[1190] Southey, loc. cit. vol. i. pp. 240, et seq. Cf v. Martius, loc. cit. vol. i. p. 111.

[1191] Taplin, loc. cit. p. 15. Cf. Brough Smyth, loc. cit. vol. i. p. 275.

[1192] Curr, loc. cit. vol. iii. p. 19.

[1193] Wanyoro (Wilson and Felkin, loc. cit. vol. ii. p. 49; 'Emin Pasha in Central Africa,' p. 82), New Caledonians (Turner, 'Samoa,' p. 342), Papuans of Dorey (Finsch, loc. cit. p. 96), aborigines of Hayti (Ling Roth, in 'Jour. Anthr. Inst.,' vol. xvi. p. 275), Fuegians (Snow, loc. cit. vol. ii. p. 46).

[1194] Wilson and Felkin, vol. ii. p. 62. Cf. ibid., vol. ii. p. 97 (Baris); Shooter, loc. cit. p. 6 (Kafirs).

[1195] Macgillivray, loc. cit. vol. i. p. 263.

[1196] Wilkes, loc. cit. vol. iii. p. 355. Seemann, 'Viti,' p. 351.

[1197] Forster, loc. cit. vol. ii. p. 280. Waitz-Gerland, loc. cit. vol. vi. p. 562. Cf. Dalton, loc. cit. p. 27 (Abors).

[1198] Tacullies (Harmon, loc. cit. p. 305), Uaupés (Wallace, 'Travels on the Amazon,' p. 281), Oráons (Dalton, loc. cit. p. 250), Ysabel Islanders (Waitz-Gerland, loc. cit. vol. vi. p. 604), Samoans (Turner, 'Samoa,' p. 121), Papuans of Humboldt Bay (Finsch, loc. cit. p. 139). As to the indecent character of savage dances, see, for instance, Waitz-Gerland, vol. vi. p. 754 (Australians); Turner, p. 95 (Samoans); Ehrenreich, 'Ueber die Botocudos,' in 'Zeitschr. f. Ethnol.,' vol. xix. p. 33 (Botocudos); Powers, loc. cit. p. 57 (Californians).

[1199] Bonwick, 'Daily Life,' pp. 27, 38.

[1200] Curr, loc. cit. vol. ii. p. 472.

[1201] Wallace, pp. 281, 493. v. Martius, loc. cit. vol. i. p. 597.

[1202] Ellis, 'Polynesian Researches,' vol. i. p. 235.

[1203] Casalis, loc. cit. p. 269.

[1204] Waitz-Gerland, loc. cit. vol. vi. p. 42. Riedel, loc. cit. p. 463. Burton, 'First Footsteps,' p. 123. Möller, Pagels, and Gleerup, loc. cit. vol. i. p. 128. Reade, loc. cit. pp. 45, 245, et seq. Nachtigal, loc. cit. vol. i. p. 221. Chapman, loc. cit. vol. i. p. 36. Caillié, loc. cit. vol. i. p. 351. 'Globus,' vol. xli. p. 237.

[1205] Angas, 'Savage Life,' vol. i. pp. 98, et seq. Cf. Bonney, 'The Aborigines of the River Darling,' in 'Jour. Anthr. Inst.,' vol. xiii. p. 127; Cameron, ibid., vol. xiv. p. 358; Bonwick, 'The Australian Natives,' ibid., vol. xvi. p. 209.

[1206] Waitz, 'Introduction to Anthropology,' p. 300.

[1207] v. Humboldt, loc. cit. vol. vi. p. 10.

[1208] Dalton, loc. cit. p. 41.

[1209] Barth, 'Reisen,' vol. ii. p. 473. Cf. Möller, Pagels, and Gleerup, vol. i. p. 269.

[1210] Lewin, loc. cit. p. 207.

[1211] Ibid., p. 192.

[1212] Stricker, 'Der Fuss der Chinesinnen,' in 'Archiv für Anthropologie,' vol. iv. p. 243.

[1213] Chavanne, 'Die Sahara,' pp. 477, et seq.

[1214] Man, loc. cit. pp. 80, et seq.

[1215] Harmon, loc. cit. p. 289. Cf. Hearne, loc. cit. pp. 314, et seq.

[1216] Moore, loc. cit. pp. 259, et seq. Cf. Buchanan, loc. cit. p. 323.

[1217] Moseley, in 'Jour. Anthr. Inst.,' vol. vi. pp. 397, et seq. Labillardière, loc. cit. vol. i. pp. 279, et seq.

[1218] Watt, in 'Jour. Anthr. Inst.,' vol. xvi. p. 365. Dr. Brown, however, thinks that this custom serves another end.

[1219] v. Martius, loc. cit. vol. i. p. 211.

[1220] Atooi (Cook, 'Voyage to the Pacific Ocean,' vol. ii. pp. 192, 232), Tonga (Martin, loc. cit. vol. ii. p. 266), Samoa (Waitz-Gerland, loc. cit. vol. vi. p. 34), Vaitupu (ibid., vol. v. pt ii. p. 188), Fiji (Wilkes, loc. cit. vol iii. p. 355). The natives of Ponapé have their lower extremities most richly tattooed, and, to quote Dr. Finsch ('Die Bewohner von Ponapé,' in 'Zeitschr. f. Ethnol.,' vol. xii. pp. 311, 314), 'als Bassis und Mittelpunkt der Zeichnung dieser Partien ist ein viereckiges Feld zu betrachten, welches die Gegend des Venusberges bedeckt und von der Behaarung unmittelbar beginnend, etwas über denselben hinausreicht.'

[1221] Riedel, loc. cit. p. 293. Cf. Zimmermann, loc. cit. vol. ii. pp. 189, et seq. (Papuans).

[1222] Andree, 'Die Beschneidung,' in 'Archiv für Anthropologie,' vol. xiii. p. 74. The following statements, when other references are not given, are borrowed from this paper.

[1223] Sibree, loc. cit. p. 217.

[1224] Waitz-Gerland, loc. cit. vol. vi. pp. 560, et seq.

[1225] Lafitau, loc. cit. vol. i. p. 412.

[1226] v. Martius, loc. cit. vol. i. p. 582, note.

[1227] Wallace, 'Travels on the Amazon,' p. 517.

[1228] 'Das Ausland,' 1875, p. 958.

[1229] Parkyns, loc. cit. vol. ii. p. 38.

[1230] Andree, in 'Archiv f. Anthr.,' vol. xiii. p. 58.

[1231] Angas, 'Savage Life,' vol. ii. p. 216.

[1232] Andree, in 'Archiv f. Anthr.,' vol. xiii. p. 75. Bastian, 'Rechtsverhältnisse,' p. xx.

[1233] See, for instance, Burton, 'Notes on the Dahoman,' in 'Memoirs Read before the Anthr. Soc. of London,' vol. i. p. 318; Waitz-Gerland, vol. vi. pp. 41,

784; Müller,'Allgemeine Ethnographie,' pp. 337, et seq.; Reade, loc. cit. pp. 539, et seq.; Modigliani, loc. cit. p. 702.

[1234] Andree, in 'Archiv f. Anthr.,' vol. xiii. p. 78.

[1235] Sturt, loc. cit. vol ii. p. 140.

[1236] Spencer, 'Sociology,' vol. ii. p. 67.

[1237] Galton, 'The Narrative of an Explorer in Tropical South Africa,' pp. 192, et seq. Andersson, loc. cit. p. 465.

[1238] Sibree, loc. cit. p. 160. Crawfurd, loc. cit. vol. i. p. 39.

[1239] Spencer, vol. ii. p. 67.

[1240] Curr, loc. cit. vol. i. p. 60. Cf. Eyre, loc. cit. vol. ii. p. 315; Oldfield, in 'Trans. Ethn. Soc.,' N. S. vol. iii. p. 256.

[1241] Cf. Lane, loc. cit. vol. ii. p. 320 (Copts); Sibree, loc. cit. p. 217 (people of Madagascar); Maclean, loc. cit. p. 157 (Kafirs).

[1242] Andree, in 'Archiv f. Anthr.,' vol. xiii. p. 75.

[1243] Fytche, loc. cit. vol. ii. p. 65, note.

[1244] Andree, in 'Archiv f. Anthr.,' vol. xiii. p. 77.

[1245] Maclean, loc. cit. p. 157.

[1246] Cook, 'Journal of a Voyage,' p. 106.

[1247] Atooi, of the Sandwich Islands (idem, 'Voyage to the Pacific Ocean,' vol. ii. p. 233), Nukahiva (Lisiansky, loc. cit. pp. 85, et seq.), &c. (Waitz-Gerland, loc. cit. vol. vi. pp. 28, 565, 576).

[1248] 'Verhandl. Berl. Ges. Anthr.,' 1885, p. 96.

[1249] The same kind of mutilation, spoken of by Mr. Curr as 'the terrible rite,' occurs among several other Australian tribes (Curr, loc. cit. vol. i. p. 75; Mathew, in 'Jour. Roy. Soc. N. S. Wales,' vol. xxiii. p. 411).

[1250] Schürmann, loc. cit. p. 231.

[1251] Finsch, in 'Zeitschr. f. Ethnol.,' vol. xii. p. 316.

[1252] Abyssinians (Waitz, loc. cit. vol. ii. p. 504), Barea (Munzinger, loc. cit. p. 528), Negroes of Benin and Sierra Leone (Bosman, loc. cit. p. 526. Griffith, in 'Jour. Anthr. Inst.,' vol. xvi. p. 308, et seq.), Mandingoes (Waitz, vol. ii. p. 111), Bechuanas (Holub, loc. cit. vol. i. p. 398), Kafirs (v. Weber, loc. cit. vol. ii. p. 218), Malays of Java (Ploss, 'Das Weib,' vol. i. p. 146), Indians of Peru (ibid., vol. i. p. 146).

[1253] Ploss, vol. i. p. 143.

[1254] Finsch, in 'Zeitschr. f. Ethnol.,' vol. xii. p. 316.

[1255] Macgillivray, loc. cit. vol. i. p. 263.

[1256] Forster, loc. cit. vol. ii. p. 383.

[1257] v. Humboldt, loc. cit. vol. vi. pp. 12, et seq.

[1258] Lubbock, 'Prehistoric Times,' p. 477.

[1259] Martin, loc. cit. vol. ii. p. 267.

[1260] Letourneau, 'Sociology,' p. 59.

[1261] Waitz, 'Introduction to Anthropology,' p. 301.

[1262] Ebers, 'Durch Gosen zum Sinai,' p. 45.

[1263] 'Dr. E. Vogel's Reise nach Central-Afrika,' in Petermann's 'Mittheilungen aus Justus Perthes' geographischer Anstalt,' 1857, p. 138.

[1264] Peschel, loc. cit. p. 172.

[1265] Crawfurd, loc. cit. vol. i. p. 209.

[1266] La Pérouse, 'Voyage round the World,' vol ii. p. 142.

[1267] Lisiansky, loc. cit. pp. 85, et seq.

[1268] Moseley, in 'Jour. Anthr. Inst.,' vol. vi. p. 398. Cf. Labillardière, loc. cit. vol. i. pp. 279, et seq.

[1269] Forbes, in 'Jour. Anthr. Inst.,' vol. xiv. pp. 125, et seq.

[1270] Bain, 'The Emotions and the Will,' p. 211.

[1271] Fries, loc. cit. p. 109.

[1272] Livingstone, loc. cit. p. 305.

[1273] Peschel, loc. cit. p. 171.

[1274] Ibid., p. 171.

[1275] Georgi, loc. cit. pp. 364, et seq. Dall, loc. cit. pp. 139, 397.

[1276] Harmon, loc. cit. p. 286.

[1277] Kane, 'Arctic Explorations,' vol ii. p. 114. On the East Coast of Greenland, according to Dr. Nansen (loc. cit. vol. i. p. 338; vol. ii. p. 277), the Eskimo, men and women alike, when indoors, are completely naked with the exception of the 'nâtit,' a narrow band about the loins, of dimensions 'so extremely small as to make it practically invisible to the stranger's inexperienced eye.' Many, indeed, assume some covering when Europeans enter their dwellings, but Dr. Nansen thinks this must be rather from affectation, and a desire to please their visitors, than from any real feeling of modesty (ibid., vol. ii. pp. 277, et seq.).

[1278] Peschel, loc. cit. p. 175.

[1279] Man, in 'Jour. Anthr. Inst.,' vol. xii. pp. 330, et seq.

[1280] Wilkes, loc. cit. vol. iii. p. 356.

[1281] Lisiansky, loc. cit. p. 86.

[1282] Curr, loc. cit. vol. i. p. 99.

[1283] Waitz-Gerland, loc. cit. vol. v. pt. ii. p. 105.

[1284] Semper, 'Die Palau-Inseln,' p. 68.

[1285] Since the appearance of the first edition of this work I have become acquainted with Mr. Johnston's book on 'The River Congo,' where he says (p. 418), 'Clothing was first adopted as a means of decoration rather than from motives of decency. The private parts were first adorned with the appendages that were afterwards used by a dawning sense of modesty to conceal them.'

[1286] Franklin, 'Journey,' p. 263. For early engagements among other Eskimo tribes, see Hall, 'Arctic Researches,' p. 567; 'Das Ausland,' 1881, p. 698; Cranz, loc. cit. vol. i. p. 146; Waitz, loc. cit. vol. iii. p. 308.

[1287] Richardson, loc. cit. vol. ii. p. 23. Mackenzie, loc. cit. p. cxxiii.

[1288] Bancroft, loc. cit. vol. i. pp. 276, et seq. (Inland Columbians). Mayne, 'Four Years in British Columbia and Vancouver Island,' p. 276 (Nutkas).

[1289] v. Martius, loc. cit. vol. i. p. 322.

[1290] Falkner, loc. cit. p. 124. King and Fitzroy, loc. cit. vol. ii. pp. 152, et seq.

[1291] Shoshones (Lewis and Clarke, 'Travels to the Source of the Missouri River,' p. 307), Arawaks (Schomburgk, loc. cit. vol. ii. p. 460. Brett, loc. cit. pp. 99, et seq.), Macusís (v. Martius, vol. i. p. 645).

[1292] Holub, loc. cit. vol. ii. p. 314.

[1293] Bosman, loc. cit. p. 424.

[1294] Burchell, loc. cit. vol. ii. pp. 58, 564. Beecham, 'Ashantee and the Gold Coast,' p. 126.

[1295] Waitz-Gerland, loc. cit. vol vi. p. 772. Wilkes, loc. cit. vol. ii. p. 195. Sturt, loc. cit. vol. ii. pp. 284, et seq. Bonney, in 'Jour. Anthr. Inst.,' vol. xiii. pp. 129, 301. Cameron, ibid., vol. xiv. p. 352.

[1296] Finsch, loc. cit. pp. 102, 116. Guillemard, loc. cit. p. 389.

[1297] Angas, 'Savage Life,' vol. i. p. 314.

[1298] Ellis, 'Polynesian Researches,' vol. i. pp. 267, 270.

[1299] In the Kingsmill Islands (Wilkes, loc. cit. vol. v. p. 102), Fiji (ibid., vol. iii. p. 92), Hudson's Island (Turner, 'Samoa,' p. 290), Nukahiva (Waitz-Gerland, loc. cit. vol. vi. p. 127), Solomon Islands (Zimmermann, loc. cit. vol. ii. p. 90), New Caledonia (Turner, p. 340), New Britain (Powell, loc. cit. p. 85), Java ('Das Ausland,' 1881, p. 569), Buru (Riedel, loc. cit. p. 21), and among the Bataks, Sundanese, and other Malay peoples (Hickson, loc. cit. p. 270. Wilken, in 'Bijdragen,' &c., ser. v. vol. i. pp. 161-167).

[1300] Martin, loc. cit. vol. ii. p. 167.

[1301] Vámbéry, 'Das Türkenvolk,' p. 109.

[1302] 'Ymer,' vol. iii. p. 144.

[1303] Hooper, loc. cit. p. 209.

[1304] Andree, loc. cit. p. 141.

[1305] Kutchin (Hardisty, in 'Smith. Rep.,' 1866, p. 312), Chippewas (Keating, loc. cit. vol. ii. p. 157), Iroquois (Morgan, 'League of the Iroquois,' p. 320), Simoos (Bovallius, loc. cit. vol. ii. p. 301).

[1306] Guarayos (v. Martius, loc. cit. vol. i. p. 217), Hos (Dalton, loc. cit. pp. 201, et seq.), Maoris (Waitz-Gerland, loc. cit. vol. vi. p. 125), Fijians (Wilkes, loc. cit. vol. iii. p. 91).

[1307] See ante, p. 40.

[1308] Forbes, 'On the Ethnology of Timor-laut,' in 'Jour. Anthr. Inst.,' vol. xiii. p. 11.

[1309] Oldfield, in 'Trans. Ethn. Soc.,' N. S. vol. iii. p. 248.

[1310] Schoolcraft, 'The Indian in his Wigwam,' p. 72. Cf. Catlin, loc. cit. vol. i. p. 120; Adair, loc. cit. p. 141.

[1311] Buchanan, loc. cit. p. 184.

[1312] Sauer, loc. cit. p. 177. Holmberg, in 'Acta Soc. Sci. Fennicæ,' vol. iv. p. 314. Macfie, 'Vancouver Island and British Columbia,' p. 447. Wilkes, vol. iv. p. 457 (Indians of the Interior of Oregon).

[1313] Keating, loc. cit. vol. ii. pp. 157, et seq.

[1314] Petroff, loc. cit. p. 158.

[1315] Schoolcraft, loc. cit. vol. v. p. 269.

[1316] Bancroft, loc. cit. vol. i. p. 549, note 206.

[1317] Shawanese (Ashe, loc. cit. p. 249), Comanches (Waitz, loc. cit. vol. iv. p. 216), Patagonians (Musters, loc. cit. p. 186).

[1318] Azara, loc. cit. vol. ii. p. 92.

[1319] 'Ymer,' vol. iii. p. 91.

[1320] Bridges, in 'A Voice for South America,' vol. xiii. p. 184. Cf. King and Fitzroy, loc. cit. vol. ii. p. 182.

[1321] Fries, loc. cit. p. 111 (Greenlanders). Brett, loc. cit. p. 354 (Caribs). Dobrizhoffer, loc. cit. vol. ii. p. 207 (Abipones). King and Fitzroy, vol. ii. p. 153 (Patagonians).

[1322] Hannon, loc. cit. p. 341 (Blackfeet, Chippewyans, Crees, &c.). Schoolcraft, vol. v. p. 683 (Comanches).

[1323] Schoolcraft, vol. iii. p. 238.

[1324] Curr, loc. cit. vol. i. p. 108.

[1325] Taplin, loc. cit. p. 10.

[1326] Fison and Howitt, loc. cit. pp. 234, 242.

[1327] Mathew, in 'Jour. Roy. Soc. N. S. Wales,' vol. xxiii. p. 407. Cf. Dawson, loc. cit. p. 34 (tribes of Western Victoria); Lumholtz, loc. cit. p. 213 (natives of Northern Queensland).

[1328] Fison and Howitt, pp. 276, 280, 289, 348-354.

[1329] Taylor, loc. cit. p. 299.

[1330] Martin, loc. cit. vol. ii. p. 167. Cf. Zimmermann, loc. cit. vol. i. p. 456.

[1331] Turner, 'Samoa,' pp. 295, et seq.

[1332] Ellis, 'Polynesian Researches,' vol. i. pp. 267, 270, et seq. Cf. Waitz-Gerland, loc. cit. vol. vi. pp. 99, et seq.

[1333] Kotzebue, loc. cit. vol. iii. p. 172. Waitz-Gerland, vol. v. pt. ii. p. 105.

[1334] Romilly, in 'Proc. Roy. Geo. Soc.,' N. S. vol. ix. p. 10.

[1335] Moncelon, in 'Bull. Soc. d'Anthr.,' ser. iii. vol ix. p. 368. In Samoa (Turner, 'Samoa,' pp. 95, et seq. Cf. ibid. pp. 92, 132; Turner, 'Nineteen Years in Polynesia,' p. 188; Pritchard, loc. cit. pp. 135, et seq.) and the Kingsmill Islands (Wilkes, loc. cit. vol. v. p. 101), elopements frequently take place, and the parents, however mortified they may be, have to submit. In Fiji, according

to Wilkes (vol. iii. p. 92. Cf. Pritchard, pp. 269, et seq.; Waitz-Gerland, vol. vi. p. 632), forced marriages are comparatively rare in the higher classes.

[1336] Wilken, in 'Bijdragen,' &c., ser. v. vol. i. p. 159.

[1337] Boyle, 'Adventures among the Dyaks of Borneo,' p. 236. Cf. Brooke, 'Ten Years in Sarawak,' vol. i. p. 69.

[1338] Crawfurd, loc. cit. vol. i. p. 90.

[1339] Hickson, loc. cit. p. 272.

[1340] Riedel, loc. cit. pp. 447, 302.

[1341] Marsden, loc. cit. p. 235. Crawfurd, vol. iii. pp. 129, et seq.

[1342] Colquhoun, 'Burma and the Burmans,' p. 12. Fytche, loc. cit. vol. ii. p. 69. MacMahon, 'Far Cathay,' p. 275 (Indo-Burmese border tribes).

[1343] Anderson, 'Mandalay to Momien,' p. 301.

[1344] Lewin, loc. cit. p. 347. Cf. ibid., pp. 145, 146, 179, 285.

[1345] Kols, Abors (Rowney, loc. cit. pp. 67, 159), Santals (ibid., p. 76. Cf. Dalton, loc. cit. p. 215; 'Ymer,' vol. v. p. xxiv.; Man, loc. cit. p. 102; Hunter, 'Rural Bengal,' vol. i. pp. 205, et seq.), Todas (Shortt, in 'Trans. Ethn. Soc.,' N. S. vol. vii. p. 242. Cf. Marshall, loc. cit. p. 212).

[1346] Miris, Khasias, Koch, Muásís (Dalton, pp. 29, 57, 91, 125), Oráons (Rowney, p. 81), Kolyas (Watt, in 'Jour. Anthr. Inst.,' vol. xvi. pp. 358, et seq.), Butias (Cunningham, 'Notes on Moorcroft's Travels in Ladakh,' in 'Jour. As. Soc. Bengal,' vol. xiii. pt. i. p. 204).

[1347] Watt, in 'Jour. Anthr. Inst.,' vol. xvi. p. 355 (Kaupuis). Dalton, pp. 192, 299, et seq. (Hos, Boad Kandhs). Spencer, 'Descriptive Sociology, Asiatic Races,' p. 8 (Savaras of Jeypore).

[1348] Lewin, loc. cit. p. 254.

[1349] Gray, loc. cit. vol. ii. p. 393.

[1350] v. Siebold, loc. cit. p. 30.

[1351] Steller, loc. cit. p. 345.

[1352] Sauer, loc. cit. p. 127.

[1353] v. Haxthausen, loc. cit. p. 402.

[1354] Usbegs (Vámbéry, 'Das Türkenvolk,' p. 369), Kalmucks (Moore, loc. cit. p. 181), Aenezes (Burckhardt, loc. cit. p. 61).

[1355] Ross, loc. cit. p. 315.

[1356] Chavanne, 'Die Sahara,' p. 181.

[1357] Darwin, 'The Descent of Man,' vol. ii. p. 408. Cf. Reade, loc. cit. pp. 260, 390, 453, 554.

[1358] Beecham, loc. cit. p. 125 (Ashantees). Soyaux, 'Aus West-Afrika,' pp. 152, 161 (Negroes of Loango). Merolla da Sorrento, loc. cit. p. 236 (Negroes of Sogno). Bosman, loc. cit. p. 419 (Negroes of the Gold Coast).

[1359] Wilson and Felkin, loc. cit. vol. ii. p. 61.

[1360] 'Emin Pasha in Central Africa,' p. 103.

[1361] Holub, loc. cit. vol. ii. pp. 293, 298. Cf. ibid., vol. ii. p. 206.

[1362] Lichtenstein, loc. cit. vol. i. p. 261. Leslie, 'Among the Zulus and Amatongas,' p. 194. According to other authorities, however, the Kafir girl herself is seldom or never consulted about the matter (Maclean, loc. cit. p. 69), though it generally happens that, after repeated elopements with the man of her own choice, the father gives up his original intention as to the disposal of her (Shooter, loc. cit. pp. 57, 60. Cf. v. Weber, loc. cit. vol. i. pp. 331, et seq.; vol. ii. p. 217).

[1363] Thunberg, 'Account of the Cape of Good Hope,' in Pinkerton, 'Collection of Voyages,' vol. xvi. p. 141.

[1364] Burchell, loc. cit. vol. ii. p. 59. Fritsch, loc. cit. p. 444. Chapman, loc. cit. vol. i. p. 258.

[1365] Strabo, loc. cit. book xv. ch. i. p. 699.

[1366] Herodotus, loc. cit. book i. ch. 93.

[1367] v. Bohlen, loc. cit. vol. ii. pp. 148, 367, et seq. Klemm, 'Die Frauen,' vol. i. p. 281. Bachofen, 'Das Mutterrecht,' p. 196. Grimm, loc. cit. p. 421, note *.

[1368] 'The Younger Edda,' p. 158.

[1369] Letourneau, 'Sociology,' p. 378.

[1370] Burckhardt, loc. cit. pp. 149, et seq.

[1371] Fison and Howitt, loc. cit. p. 136. The same view is taken by Mr. Howitt (ibid., p. 358).

[1372] Darwin, 'The Descent of Man,' vol. ii. p. 291.

[1373] Fison and Howitt, loc. cit. p. 354.

[1374] Ibid., pp. 343, 348-354.

[1375] Curr, loc. cit. vol. i. p. 61.

[1376] That the male children also are so disposed of appears, for instance, from v. Martius, loc. cit. vol. i. pp. 393 (Mundrucûs), 690 (Arawaks); Lansdell, loc. cit. vol. ii. p. 225 (Gilyaks).

[1377] 'Jour. Anthr. Inst.,' vol. i. p. 403. Cf. Guillemard, loc. cit. p. 389 (Nufoor Papuans).

[1378] Ahts (Sproat, loc. cit. p. 97) and other Indians (Waitz, loc. cit. vol. iii. p. 103), Maravi (ibid., vol. ii. pp. 419, et seq.).

[1379] Morgan, 'League of the Iroquois,' pp. 321, 323.

[1380] Casalis, loc. cit. p. 186.

[1381] Kisáns, Mundas, Santals, Máriás (Dalton, loc. cit. pp. 132, 194, 215, 279), Mishmis (Rowlatt, 'Expedition into the Mishmee Hills,' in 'Jour. As. Soc. Bengal,' vol. xiv. pt. ii. p. 488), Bhils (Malcolm, in 'Trans. Roy. As. Soc.,' vol. i. p. 83), Yoon-tha-lin Karens (Stoll, 'Notes on the Yoon-tha-lin Karens,' in 'The Madras Journal of Literature and Science,' N. S. vol. vi. pp. 61, et seq.).

[1382] Dalton, p. 252 (Oráons).

[1383] Ibid., p. 132.

[1384] Hunter, 'Rural Bengal,' vol. iii. p. 72.

[1385] Ibid., vol. iii. p. 83.

[1386] Clavigero, 'The History of Mexico,' vol. i. p. 331.

[1387] Clavigero, loc. cit. vol. i. p. 332.

[1388] Bancroft, loc. cit. vol. ii. p. 251.

[1389] Spencer, 'Descriptive Sociology,' Ancient Mexicans, &c., p. 3.

[1390] Heriot, loc. cit. pp. 334, et seq.

[1391] Bancroft, vol. ii. p. 666.

[1392] Ibid., vol. ii. p. 667. Squier, in 'Trans. American Ethn. Soc.,' vol. iii. pt. i. p. 127.

[1393] Garcilasso de la Vega, loc. cit. vol. ii. p. 207.

[1394] Spencer, 'The Principles of Sociology,' vol. i. p. 739.

[1395] Wells Williams, loc. cit. vol. i. p. 646.

[1396] Navarette, loc. cit. p. 75. Cf. 'The Lî Kî,' book xxvii. v. 33.

[1397] Medhurst, in 'Trans. Roy. As. Soc. China Branch,' vol. iv. p. 11.

[1398] Gray, loc. cit. vol. i. p. 205.

[1399] Ibid., vol. i. p. 189.

[1400] Rein, 'Japan,' p. 422.

[1401] Griffis, 'The Mikado's Empire,' pp. 124, 147, 555.

[1402] Küchler, in 'Trans. As. Soc. Japan,' vol. xiii. pp. 117-119.

[1403] Amír' Alí, 'The Personal Law of Mahommedans,' p. 179.

[1404] Ewald, loc. cit. p. 190.

[1405] 'Exodus,' ch. xxi. vv. 15, 17. 'Leviticus,' ch. xx. v. 9.

[1406] 'Deuteronomy,' ch. xxi. vv. 18-21.

[1407] Ewald, loc. cit. p. 188. Cf. Gans, 'Erbrecht,' vol. i. p. 134.

[1408] Michaelis, loc. cit. vol. i. p. 444.

[1409] 'Genesis,' ch. xxiv. v. 4; ch. xxviii. vv. 1, et seq. 'Exodus,' ch. xxxiv. v. 16. 'Deuteronomy,' ch. vii. v. 3. 'Judges,' ch. xiv. vv. 1-3.

[1410] Wilkinson, loc. cit. vol. i. p. 320.

[1411] 'The Precepts of Ptah-Hotep,' ch. xlii. xxxix. Cf. ibid., ch. xliv.

[1412] 'Duodecim Tabularum Fragmenta,' table iv. § 2.

[1413] Plutarch, 'Ποπλικόλας,' ch. vii.

[1414] Mommsen, loc. cit. vol. i. p. 64.

[1415] 'Duodecim Tabularum Fragmenta,' table iv. § 2. Justinian, 'Institutiones,' book i. title ix. § 3.

[1416] Justinian, book i. title x. Rossbach, loc. cit. p. 393. Mackenzie, 'Studies in Roman Law,' p. 104.

[1417] Mackenzie, p. 104, note 4.

[1418] Fustel de Coulanges, loc. cit. p. 116.

[1419] Maine, 'Ancient Law,' p. 138. Fustel de Coulanges, pp. 115, et seq. Hearn, loc. cit. p. 92.

[1420] Justinian, book i. title ix. § 2.

[1421] Maine, 'Early Law and Custom,' pp. 122, et seq.

[1422] 'The Laws of Manu,' ch. viii. v. 416.

[1423] Maine, 'Early Law and Custom,' p. 123.

[1424] Nelson, 'View of the Hindū Law,' pp. 56, et seq.

[1425] 'Rig-Veda Sanhitá,' mandala i. súkta lxx. v. 5.

[1426] Zimmer, 'Altindisches Leben,' pp. 327, et seq.

[1427] 'The Laws of Manu,' ch. iii. v. 32. Cf. Rossbach, loc. cit. p. 208.

[1428] 'The Laws of Manu,' ch. iii. vv. 39-41.

[1429] Spiegel, loc. cit. vol. iii. p. 678.

[1430] v. Bohlen, loc. cit. vol. ii. p. 146.

[1431] Spiegel, vol. iii. pp. 677, et seq.

[1432] Fustel de Coulanges, loc. cit. p. 115.

[1433] Maine, 'Ancient Law,' pp. 136, et seq.

[1434] Cauvet, 'De l'organisation de la famille à Athènes,' in 'Revue de législation,' vol. xxiv. 1845, p. 138.

[1435] Becker, loc. cit. vol. ii. p. 446. Hermann-Blümner, 'Lehrbuch der griechischen Privatalterthümer,' p. 261.

[1436] Cauvet, in 'Revue de législation,' vol. xxiv. p. 147.

[1437] Müller, 'The Doric Race,' vol. ii. p. 298.

[1438] Grimm, 'Deutsche Rechts Alterthümer,' pp. 461, 487, et seq. Weinhold, 'Altnordisches Leben,' p. 473.

[1439] Laboulaye, 'Recherches sur la condition civile et politique des femmes,' p. 80.

[1440] Koenigswarter, 'Histoire de l'organisation de la famille en France,' p. 140.

[1441] Pardessus, 'Loi Salique,' p. 456.

[1442] Koenigswarter, p. 139.

[1443] Tacitus, loc. cit. ch. xxv.

[1444] Olivecrona, 'Om makars giftorätt i bo,' p. 143.

[1445] Tacitus, loc. cit. ch. xviii.

[1446] Weinhold, 'Die deutschen Frauen in dem Mittelalter,' vol. i. p. 303. Wilda, 'Das Strafrecht der Germanen,' p. 802. Olivecrona, loc. cit. p. 48.

[1447] Accurse, in the beginning of the thirteenth century, says, 'Aliæ vero gentes quædam, ut servos tenent filios, ut Sclavi, aliæ ut prorsus absolutos, ut Francigenæ' (Koenigswarter, loc. cit. p. 224, note 2).

[1448] Macieiowski, 'Slavische Rechtsgeschichte,' vol. iv. p. 404.

[1449] v. Haxthausen, 'The Russian Empire,' vol. ii. pp. 229, et seq.

[1450] Mackenzie Wallace, loc. cit. vol. i. pp. 134-136.

[1451] Macieiowski, vol. ii. p. 189.

[1452] Maine, 'Early Law and Custom,' p. 244, note.

[1453] Krauss, loc. cit. pp. 313, 314.

[1454] Ibid., p. 320.

[1455] Ewald, loc. cit. p. 190.

[1456] Lichtschein, loc. cit. p. 41.

[1457] Amír' Alí, loc. cit. p. 179.

[1458] Ibid., pp. 180-183.

[1459] Amír' Alí, loc. cit. pp. 179, 180, 184.

[1460] Maine, 'Ancient Law,' p. 137.

[1461] Mackenzie, 'Roman Law,' p. 141. Koenigswarter, loc. cit. p. 86. Rossbach, loc. cit. pp. 47, et seq.

[1462] Maine, 'Ancient Law,' p. 138. Rossbach, p. 396

[1463] Rossbach, loc. cit. pp. 396, 400, et seq.

[1464] Koenigswarter, p. 93.

[1465] Pardessus, loc. cit. p. 666.

[1466] Guizot, 'The History of Civilisation,' vol. ii. p. 467. A Council at Orleans, in 541, also forbids 'any one to marry a girl without the consent of her parents' (ibid., vol. ii. p. 464).

[1467] Cnut, 'Dômas,' Leges Saeculares, ch. lxxiv.

[1468] 'Westgöta-Lagen,' Codex Recentior, Kirkyu Balker, ch. lii. Additamenta, § 8.

[1469] 'Uplands-Lagen,' Aerfdæ Balkær, ch. i. § 4.

[1470] Nordström, 'Svenska samhälls-författningens historia,' vol. ii. pp. 15, et seq. Wilda, loc. cit. p. 803. Weinhold, 'Deutsche Frauen,' vol. i. p. 304. According to Saxo Grammaticus ('Historia Danica,' book v. vol. i. p. 186), a woman was allowed to dispose of her own hand before the days of King Frotho.

[1471] 'Der Schwabenspiegel,' Landrecht, § 55.

[1472] Kraut, 'Die Vormundschaft,' vol. i. p. 326.

[1473] Weinhold, vol. i. p. 305.

[1474] Quoted in Spencer's 'Descriptive Sociology,' France, p. 38.

[1475] Quoted by de Ribbe, 'Les familles et la société en France avant la Révolution,' p. 51.

[1476] Bodin, 'De Republica,' book i. ch. iv. p. 31.

[1477] Sully, 'Memoirs,' vol. v. p. 180.

[1478] Koenigswarter, loc. cit. p. 231.

[1479] de Goncourt, 'La Femme au dix-huitième siècle,' p. 20.

[1480] 'Code Civil,' art. 374.

[1481] Ibid., art. 375-383.

[1482] Ibid., art. 148.

[1483] 'Code Civil,' art. 151.

[1484] Kent, 'Commentaries on American Law,' lecture xxvi.

[1485] Diderot and d'Alembert, 'Encyclopédie,' vol. xiii. p. 255.

[1486] Darwin, 'The Descent of Man,' vol. ii. p. 384.

[1487] Nicholson, loc. cit. p. 1. Cf. a criticism of 'The Descent of Man,' in 'The Athenæum,' 1871, March 4th.

[1488] Darwin, vol. ii. p. 252.

[1489] Müller, 'The Fertilisation of Flowers,' p. 14.

[1490] Wallace, 'Tropical Nature,' p. 223.

[1491] 'The Colours of Plants and the Origin of the Colour-Sense,' in 'Tropical Nature,' pp. 221-248. 'Darwinism,' ch. x.

[1492] Wallace, 'Tropical Nature,' pp. 193-195.

[1493] Ibid., p. 187.

[1494] Wallace, 'Tropical Nature,' p. 213.

[1495] Idem, 'Contributions to the Theory of Natural Selection,' pp. 73, et seq.

[1496] Ibid., pp. 259-261.

[1497] Fraser, in 'Nature,' vol. iii. p. 489.

[1498] Darwin, 'The Descent of Man,' vol. i. p. 485.

[1499] Wallace, 'Darwinism,' p. 270.

[1500] The Gallinaceæ, however, form an exception; though almost wholly terrestrial, they have the most pronounced sexual colours. But they are active and wander much.

[1501] Wallace, 'Tropical Nature,' pp. 230, et seq.

[1502] Gould, 'Handbook to the Birds of Australia,' vol. ii. p. 383.

[1503] Wood, loc.cit. vol. ii. p. 257.

[1504] Prejevalsky, 'From Kulja to Lob-nor,' pp. 92, 94.

[1505] Brehm, 'Thierleben,' vol. iii. p. 94.

[1506] Gould, loc. cit. vol. ii. pp. 382, et seq.

[1507] Darwin, 'The Descent of Man,' vol. i. p. 62.

[1508] Burdach, 'Physiologie,' vol. i. p. 277.

[1509] Wallace, 'Darwinism,' p. 284.

[1510] Ibid., p. 294.

[1511] Wallace, 'Darwinism,' p. 293.

[1512] Mr. Belt (loc. cit. p. 112) has seen the female of Florisuga mellivora sitting quietly on a branch, and two males displaying their charms in front of her. 'One would shoot up like a rocket, then suddenly expanding the snow-white tail like an inverted parachute, slowly descend in front of her, turning round gradually to show off both back and front.... The expanded white tail covered more space than all the rest of the bird, and was evidently the grand feature in the performance.'

[1513] See Wallace, 'Darwinism,' p. 285.

[1514] Darwin, 'The Descent of Man,' vol. i. pp. 67, 74.

[1515] Darwin, 'Animals and Plants under Domestication,' vol. ii. pp. 102-104.

[1516] According to Professor Vogt ('Lectures on Man,' p. 421), the aversion between allied species in the wild state is more frequently overcome by the males than by the females; and, in crosses between wild and domesticated animals, the female generally belongs to the domesticated species or race (Geoffroy Saint-Hilaire, 'Histoire naturelle générale,' vol. iii. p. 177).

[1517] Taylor, loc. cit. pp. 293, et seq.

[1518] Merolla da Sorrento, loc. cit. p. 236.

[1519] Macdonald, 'Africana,' vol. i. p. 141.

[1520] de Quatrefages, 'The Human Species,' p. 267.

[1521] Peschel, loc. cit. p. 8, note 8.

[1522] Nott and Gliddon, 'Types of Mankind,' p. 401.

[1523] Kerry-Nicholls, 'The Maori Race,' in 'Jour. Anthr. Inst.,' vol. xv. p. 195.

[1524] Schoolcraft, loc. cit. vol. v. p. 612.

[1525] Leguével de Lacombe, 'Voyage à Madagascar,' vol. ii. pp. 121-123.

[1526] Apollodorus Atheniensis, ' Βιβλωθήκη,' book iii. ch. ix. § 2.

[1527] Cf. Castrén, in 'Litterära Soiréer,' 1849, p. 12.

[1528] Bock, 'The Head-Hunters of Borneo,' p. 216. Cf. Wilkes, loc. cit. vol. v. p. 363; Dalton, loc. cit. pp. 40, et seq._ (Nagas of Upper Assam).

[1529] Sibree, loc. cit. p. 251.

[1530] Wilson and Felkin, loc. cit. vol. ii. p. 310.

[1531] Mitchell, 'Expeditions into the Interior of Eastern Australia,' vol. i. p. 307.

[1532] v. Humboldt, loc. cit. vol. iii. p. 233.

[1533] Cook, 'Voyage to the Pacific Ocean,' vol. ii. p. 161.

[1534] Darwin, 'The Descent of Man,' vol. ii. pp. 373, et seq.

[1535] Lumholtz, loc. cit. p. 213.

[1536] Hume, 'Essays,' vol. i. p. 268.

[1537] Bancroft, loc. cit. vol. i. p. 227. Cf. Sproat, loc. cit. p. 29; Heriot, loc. cit. p. 348.

[1538] Palmer, in 'Jour. Anthr. Inst.,' vol. xiii. p. 280, note.

[1539] Williams, 'Narrative of Missionary Enterprises,' p. 539. Cf. Ellis, 'Polynesian Researches,' vol. i. p. 81; King and Fitzroy, loc. cit. vol. ii. p. 527.

[1540] Waitz, 'Introduction to Anthropology,' p. 305.

[1541] Prichard, 'Researches into the Physical History of Mankind,' vol. iv. p. 519.

[1542] Wallace, 'Travels on the Amazon,' p. 493. For other instances of different ideas of beauty, see Darwin, 'The Descent of Man,' vol. ii. pp. 374-381.

[1543] Bombet, 'The Lives of Haydn and Mozart,' p. 278.

[1544] Spencer, 'Essays,' vol. ii. pp. 156, 162. Mr. Spencer's view on this point bears a close resemblance to that of Vischer, the Hegelian, according to whom the Indo-European race alone is really beautiful (Vischer, 'Aesthetik,' vol. ii. pp. 175, et seq.).

[1545] Spencer, 'Descriptive Sociology,' Asiatic Races, p. 29.

[1546] v. Weber, loc. cit. vol. i. p. 174; vol. ii. p. 200. Barrow, loc. cit. vol. i. p. 390.

[1547] Reade, loc. cit. p. 74.

[1548] Livingstone, loc. cit. p. 186.

[1549] Chavanne, 'Die Sahara,' p. 454. Cf. ibid., p. 340.

[1550] This rule does not hold good for all races. Speaking of the natives of King George's Sound, Cook remarks ('Voyage to the Pacific Ocean,' vol. ii. p. 303) that 'the women are nearly of the same size, colour, and form, with the men; from whom it is not easy to distinguish them.' Ellis states ('Polynesian Researches,' vol. i. p. 81) that, among the Tahitians, the difference between the stature of the male and female sex is not so great as that which often prevails in Europe. Diodorus Siculus says (loc. cit. book v. ch. xxxii. § 2) that the Gallic women were as tall as the men; and Dr. Fritsch asserts (loc. cit. p. 398) the same with reference to the Bushman women of South Africa. Among the Californian Shastika, according to Mr. Powers (loc. cit. p. 244), the women are even 'larger and stronger-featured, and in every way more respectable,' than the men. Cf. Burton, 'First Footsteps,' p. 118 (Somals).

[1551] Ploss, 'Das Weib,' vol. i. pp. 9, et seq.

[1552] v. Humboldt, loc. cit. vol. iii. pp. 236, et seq.

[1553] Geoffroy Saint-Hilaire, 'Histoire des anomalies,' vol. i. p. 268. Darwin, 'The Descent of Man,' vol. ii. p. 381. Mantegazza, 'Rio de la Plata e Tenerife.' Waitz-Gerland, loc. cit. vol. vi. p. 27.

[1554] Martineau, 'Types of Ethical Theory,' vol. ii. p. 157. Delaunay, 'Sur la beauté,' in 'Bull. Soc. d'Anthr.,' ser. iii. vol. viii. p. 198.

[1555] Davy, loc. cit. pp. 110, et seq.

[1556] Geoffroy Saint-Hilaire, 'Histoire des anomalies,' vol. i. p. 268.

[1557] Castrén, 'Nordiska resor och forskningar,' vol. i. p. 229.

[1558] Prichard, loc. cit. vol. iv. pp. 434, et seq.

[1559] de Rubruquis, loc. cit. p. 33.

[1560] Waitz-Gerland, loc. cit. vol. vi. p. 543.

[1561] Lane, loc. cit. vol. i. pp. 38; 259, note *.

[1562] v. Humboldt, 'Political Essay on the Kingdom of New Spain,' vol. i. p. 154, note. For other evidence for v. Humboldt's theory, see—besides Darwin, 'The Descent of Man'—Waitz, loc. cit. vol. iv. pp. 62, et seq.; vol. vi. pp. 543, 571; Idem, 'Introduction to Anthropology,' p. 305; Zimmermann, loc. cit. vol. ii. p. 11.

[1563] Macfie, loc. cit. p. 441. Heriot, loc. cit. p. 348. Catlin, 'Last Rambles amongst the Indians,' pp. 145, et seq.

[1564] Ellis, 'Polynesian Researches,' vol. i. p. 81. Angas, 'Polynesia,' p. 272. Waitz-Gerland, loc. cit. vol. vi. p. 27.

[1565] Marsden, loc. cit. pp. 44, et seq.

[1566] Andersson, loc. cit. p. 196.

[1567] Welcker, 'Die Füsse der Chinesinnen,' in 'Archiv. f. Anthr.,' vol. v. p. 149. Katscher, 'Bilder aus dem chinesischen Leben,' p. 51.

[1568] Darwin, 'The Descent of Man,' vol. ii. p. 377.

[1569] Angas, 'Savage Life,' vol. i. pp. 280, 304.

[1570] Waitz, 'Introduction to Anthropology,' p. 305.

[1571] Sibree, loc. cit. pp. 111, 210.

[1572] Crawfurd, loc. cit. vol. i. p. 23. For additional evidence, see Bock, 'The Head-Hunters of Borneo,' p. 183; Zimmermann, loc. cit. vol. ii. p. 92; Georgi, loc. cit. pp. 452, 455.

[1573] Darwin, 'The Descent of Man,' vol. ii. p. 383.

[1574] Turner, 'Samoa,' p. 307.

[1575] Angas, 'Polynesia,' pp. 381, et seq. Cheyne, loc. cit. p. 105.

[1576] Crawfurd, vol. i. p. 23.

[1577] Marco Polo, loc. cit. vol. ii. p. 291.

[1578] v. Humboldt, 'Political Essay,' p. 141.

[1579] Cf. Lawrence, 'Lectures on Physiology,' &c., p. 474.

[1580] Godron, 'De l'espèce et des races,' vol. ii. p. 310.

[1581] Ibid., vol. ii. pp. 175, et seq.

[1582] Quetelet, loc. cit. pp. 59, et seq. Cf. Ranke, 'Der Mensch,' vol. ii. pp. 77-79, 116, et seq.

[1583] Waitz, 'Introduction to Anthropology,' p. 86.

[1584] Geoffroy Saint-Hilaire, 'Histoire des anomalies,' vol. i. pp. 158, 159, 182-185. Cf. Ranke, loc. cit. vol. ii. pp. 131-136.

[1585] Lawrence, loc. cit. p. 400.

[1586] Virchow, 'Untersuchungen über die Entwickelung des Schädelgrundes,' p. 121.

[1587] Spencer, 'Essays,' vol. ii. pp. 153, et seq.

[1588] Schaaffhausen, 'On the Primitive Form of the Human Skull,' in 'The Anthropological Review,' vol. vi. p. 416.

[1589] Ibid., p. 419.

[1590] Waitz, 'Introduction to Anthropology,' pp. 53, et seq. Cf. de Quatrefages, loc. cit. p. 254.

[1591] 'Edinburgh Medical Journal,' vol. xxxi. pt. ii. p. 852.

[1592] Joest, in 'Verhandl. Berl. Ges. Anthr.,' 1885, p. 475. Cf. Peschel, loc. cit. pp. 19, et seq.

[1593] 'Verhandl. Berl. Ges. Anthr.,' 1885, p. 377.

[1594] Cf. Pouchet, 'The Plurality of the Human Race,' p. 92; Virchow, in 'Verhandl. Berl. Ges. Anthr.,' 1885, p. 213.

[1595] 'Verhandl. Berl. Ges. Anthr.,' 1885, p. 475, note.

[1596] Squier, 'The States of Central America,' p. 56.

[1597] Godron, loc. cit. vol. ii. p. 276.

[1598] Mayer, 'Die Mechanik der Wärme,' p. 98.

[1599] Tylor, 'Anthropology,' p. 86.

[1600] de Quatrefages, loc. cit. p. 255.

[1601] Rohlfs, 'Henry Noël von Bagermi,' in 'Zeitschr. f. Ethnol.,' vol. iii. p. 255.

[1602] Reade, loc. cit. p. 526.

[1603] Ibid., p. 526.

[1604] Peschel, loc. cit. p. 92.

[1605] Wallace, in 'The Academy,' vol. ii. p. 182.

[1606] Quoted by Schaaffhausen, in 'The Anthropological Review,' vol. vi. p. 418.

[1607] Cf. Schaaffhausen, 'Darwinism and Anthropology,' ibid., vol vi. pp. cviii., et seq.

[1608] M. Elisée Reclus (quoted by de Quatrefages, loc. cit. p. 255) makes a curious mistake when he asserts that, at the end of a given time, whatever be their origin, all the descendants of whites or of negroes who have immigrated to America will become Redskins.

[1609] Weismann, 'Essays upon Heredity,' &c., p. 81.

[1610] Weismann, loc. cit. pp. 81, &c. Godron, loc. cit. vol. ii. p. 299.

[1611] Rauber, 'Homo sapiens ferus,' pp. 69-71.

[1612] Poiret, 'Voyage en Barbarie,' vol. i. p. 31.

[1613] Mr. Wallace ('Contributions to the Theory of Natural Selection,' Essay ix.), so far as I know, is the only investigator who has tried to explain, by the principle of natural selection, the origin of human racial distinctions.

[1614] A negro child is not born black, but becomes so after some shorter or longer time (Darwin, 'The Descent of Man,' vol. ii. p. 342. Caillié, loc. cit. vol. i. p. 351). The children of dark races are usually fairer than the adults (Darwin, vol. ii. p. 342. Moseley, in 'Jour. Anthr. Inst.,' vol. vi. p. 385).

[1615] Camper, 'Kleinere Schriften,' vol. i. p. 44.

[1616] Darwin, 'The Descent of Man,' vol. ii. pp. 384, et seq.

[1617] Ibid., vol. ii. p. 383.

[1618] Angas, 'Savage Life,' vol. i. p. 316.

[1619] Speaking of the Rejangs of Sumatra, Marsden says (loc. cit. p. 206), 'The quick, and to them inexplicable, revolutions of our fashions are subject

of much astonishment, and they naturally conclude that those modes can have but little intrinsic merit which we are so ready to change.'

[1620] Earl, loc. cit. p. 48.

[1621] Williams, 'Missionary Enterprises,' pp. 538, et seq.

[1622] Darwin, 'The Descent of Man,' vol. ii. pp. 403, et seq.

[1623] Darwin, 'The Descent of Man,' vol. ii. p. 410.

[1624] Mr. Wallace, in his 'Contributions to the Theory of Natural Selection' (p. 359), believes that 'a superior intelligence has guided the development of man in a definite direction,' and considers (pp. 348, et seq.) that the hairless condition of the skin comes under this head. Again, Mr. Belt's experience in tropical countries has led him to the conclusion that, in such parts at least, there is one serious drawback to the advantage of having the skin covered with hair:—'It affords cover for parasitical insects, which, if the skin were naked, might more easily be got rid of' (Belt, loc. cit. p. 209).

[1625] Collins, who wrote sixty years before 'The Origin of Species,' makes the following observation regarding the natives about Botany Bay and Port Jackson (New South Wales):—'Their sight is peculiarly fine, indeed their existence very often depends upon the accuracy of it; for a short-sighted man ... would never be able to defend himself from their spears, which are thrown with amazing force and velocity' (Collins, 'Account of the English Colony in New South Wales,' vol. i. pp. 553, et seq.).

[1626] v. Humboldt, 'Political Essay,' vol. i. pp. 152, et seq. Waitz, 'Introduction to Anthropology,' pp. 113, et seq. Brough Smyth, loc. cit. vol. i. p. 30, note; Salvado, 'Mémoires,' pp. 274, et seq.; Collins, vol. i. p. 553 (Australians). Rengger, loc. cit. pp. 9, et seq. (Indians of Paraguay).

[1627] Lawrence, loc. cit. pp. 422, et seq.

[1628] Reade, loc. cit. pp. 545, 549. Johnston, loc. cit. p. 436.

[1629] Duvernoy, art. 'Propagation,' in 'Dictionnaire universel d'histoire naturelle,' vol. x. p. 546.

[1630] Geoffroy Saint-Hilaire, 'Histoire naturelle générale,' vol. iii. p. 180.

[1631] Ibid., vol. iii. pp. 175, 185, et seq. de Quatrefages, loc. cit. p. 67.

[1632] Vogt, 'Lectures on Man,' p. 414.

[1633] Geoffroy Saint-Hilaire, vol. iii. p. 191.

[1634] Geoffroy Saint-Hilaire, 'Histoire naturelle,' vol. iii. pp. 169-175.

[1635] Darwin, 'Animals and Plants under Domestication,' vol. ii. p. 189.

[1636] Geoffroy Saint-Hilaire, vol. iii. p. 208. Blumenbach, 'Anthropological Treatises,' p. 73.

[1637] Geoffroy Saint-Hilaire, vol. iii. pp. 213, et seq.

[1638] Wallace, 'Darwinism,' pp. 160, et seq.

[1639] Darwin, 'The Origin of Species,' vol. ii. pp. 44, &c. Cf. Godron, loc. cit. vol. i. p. 209.

[1640] The greater or less degree of sterility of hybrids, although, as Mr. Darwin remarks ('The Origin of Species,' vol. ii. p. 46), a very different case from the difficulty of uniting two pure species, yet, to a certain extent, runs parallel with it.

[1641] Geoffroy Saint-Hilaire, 'Histoire naturelle,' vol. iii. pp. 168, 169, &c.

[1642] Darwin, 'Animals and Plants under Domestication,' vol. ii. p. 180.

[1643] 'Exodus,' ch. xxii. v. 19. 'Leviticus,' ch. xviii. v. 23; ch. xx. v. 15. 'Deuteronomy,' ch. xxvii. v. 21. Pliny, loc. cit. book viii. ch. 42. Virgil, 'Bucolica,' Ecloga iii. v. 8.

[1644] Janke, loc. cit. p. 276. Mackenzie, 'Voyages,' p. xcvii. v. Kraft-Ebing, 'Psychopathia sexualis,' pp. 135, et seq.

[1645] See Darwin, 'The Descent of Man,' vol. ii. pp. 125, 126, 128.

[1646] Cf. Blumenbach, loc. cit. pp. 80, et seq.; Steller, loc. cit. p. 289, note.

[1647] Périer, 'Essai sur les croisements ethniques,' in 'Mémoires Soc. d'Anthr.,' vol. i. p. 216. Jacquinot, in Dumont d'Urville, 'Voyage au Pole Sud,' Zoologie, vol. ii. p. 92.

[1648] Darwin, 'Animals and Plants under Domestication,' vol. ii. pp. 102, et seq.

[1649] Darwin, 'The Descent of Man,' vol. ii. p. 381.

[1650] de Quatrefages, loc. cit. p. 273.

[1651] Topinard, 'Anthropology,' p. 371.

[1652] Nansen, loc. cit. vol. ii. p. 238.

[1653] Topinard, p. 372.

[1654] Périer, in 'Mém. Soc. d'Anthr.,' vol. ii. p. 340.

[1655] Topinard, loc. cit. p. 383.

[1656] Prichard, loc. cit. vol. i. p. 149.

[1657] Godron, loc. cit. vol. ii. p. 360, note 2.

[1658] Knox, 'The Races of Men,' pp. 497, &c.

[1659] Nott and Gliddon, loc. cit. pp. 397, et seq.

[1660] Broca, 'The Phenomena of Hybridity,' p. 60. Pouchet, loc. cit. p. 101.

[1661] Prichard, 'The Natural History of Man,' p. 18.

[1662] Godron, loc. cit. vol. ii. p. 363.

[1663] de Quatrefages, loc. cit. p. 264.

[1664] Broca, p. 48.

[1665] Ibid., p. 48.

[1666] Curr, loc. cit. vol. ii. p. 264. Cf. Topinard, 'Note sur les métis d'Australiens et d'Européens,' in 'Revue d'Anthropologie,' vol. iv. pp. 243-249.

[1667] Dr. T. R. H. Thomson says ('On the Reported Incompetency of the "Gins,"' in 'Jour. Ethn. Soc. London,' vol. iii. pp. 244, et seq.) that the Australian woman, when she places herself under the roof of a European settler as his

concubine or wife, appears to become less fertile, although she has more regular diet, comfort, and covering.

[1668] Darwin, 'Animals and Plants under Domestication,' vol. ii. pp. 148-160.

[1669] Peschel, loc. cit. p. 9. Eyre, loc. cit. vol. ii. p. 324. Lumholtz, loc. cit. p. 273.

[1670] Meyer, loc. cit. p. 186.

[1671] Taplin, loc. cit. p. 14.

[1672] Broca, loc. cit. p. 36.

[1673] Peschel, loc. cit. p. 8.

[1674] v. Görtz, 'Reise um die Welt,' vol. iii. p. 288.

[1675] Hensen, 'Die Physiologie der Zeugung,' in Hermann, 'Handbuch der Physiologie,' vol. vi. pt. ii. p. 191.

[1676] Darwin, 'Animals and Plants under Domestication,' vol. ii. pp. 182, et seq.

[1677] Jacobs, 'On the Racial Characteristics of Modern Jews,' in 'Jour. Anthr. Inst.,' vol. xv. pp. 26-28.

[1678] Agassiz, 'Essay on Classification,' pp. 249-252.

[1679] Darwin, 'Animals and Plants under Domestication,' vol. ii. pp. 105, 181, 190, et seq.

[1680] Vogt, loc. cit. p. 421.

[1681] Sebright, loc. cit. pp. 17, et seq.

[1682] v. Langsdorf, loc. cit. vol. ii. p. 64.

[1683] Ross, in 'Smithsonian Report,' 1866, p. 310.

[1684] Wilken, 'Verwantschap,' &c., p. 22. Idem, in 'Bijdragen,' &c., ser. v. vol. i. p. 151. Riedel, quoted by Post, 'Entwickelungsgeschichte des Familienrechts,' p. 221. Garcilasso de la Vega, describing the Indians of Peru before the time of the Incas, says (loc. cit. vol. i. pp. 58, et seq.), 'In many nations they cohabited like beasts, without any special wife, but just as chance directed. Others followed their own desires, without excepting sisters, daughters, or mothers. Others excepted their mothers but none else.' It is said, according to Dr. Hickson (loc. cit. pp. 277, et seq.), that in olden times, in the southern districts of Minahassa, in the neighbourhood of Tonsawang, father and daughter, mother and son, brother and sister, frequently lived together in bonds of matrimony. As regards the Chippewas, Mr. Keating states (loc. cit. vol. ii. p. 170) that 'incest is not unknown to them, but it is held in great abhorrence.'

[1685] Hübschmann, 'Ueber die persische Verwandtenheirath,' in 'Zeitschr. d. Deutschen Morgenländischen Gesellsch.,' vol. xliii. p. 308.

[1686] Lisiansky, loc. cit. p. 83.

[1687] Lewin, loc. cit. p. 276.

[1688] Heifer, 'The Animal Productions of the Tenasserim Provinces,' in 'Jour. As. Soc. Bengal,' vol. vii. p. 856.

[1689] Cameron, loc. cit. vol. ii. p. 70.

[1690] Wilson and Felkin, loc. cit. vol. ii. p. 49.

[1691] 'The Kalevala' (translated by Crawford), vol. ii. p. 548.

[1692] Powers, loc. cit. p. 340.

[1693] Jellinghaus, in 'Zeitschr. f. Ethnol.,' vol. iii. p. 367.

[1694] Krasheninnikoff, 'The History of Kamtschatka,' p. 215.

[1695] Bailey, in 'Trans. Ethn. Soc.,' N.S. vol. ii. pp. 294, et seq.

[1696] Janke, loc. cit. p. 276.

[1697] Liebich, loc. cit. p. 49.

[1698] Thomson, 'Through Masai Land,' p. 51.

[1699] v. Martius, in 'Jour. Roy. Geo. Soc.,' vol. ii. p. 198. Idem, 'Beiträge zur Ethnographie,' &c., vol. i. pp. 115, et seq.

[1700] 'Rig-Veda Sanhitá,' mandala x. súkta 10.

[1701] Schrader, loc. cit. p. 392, note.

[1702] 'Ynglinga Saga,' ch. iv.; in 'Heimskringla' (edited by Unger), p. 6.

[1703] Ibid., p. 6.

[1704] Nordström, loc. cit. vol. ii. p. 18. Grimm, loc. cit. p. 435.

[1705] Bastian, 'Rechtsverhältnisse,' p. 173.

[1706] Moore, loc. cit. p. 169.

[1707] Forbes, 'British Burma,' p. 48, note.

[1708] Emerson Tennent, loc. cit. vol. ii. p. 459.

[1709] Waitz-Gerland, loc. cit. vol. vi. p. 131.

[1710] Ellis, 'Hawaii,' pp. 414, et seq. Wilkes, loc. cit. vol. iv. p. 32.

[1711] Sibree, loc. cit. p. 252.

[1712] Herodotus, loc. cit. book iii. ch. 31. Spiegel, loc. cit. vol. iii. pp. 678, et seq.

[1713] Wilkinson, loc. cit. vol. i. p. 319.

[1714] Ibid., vol. i. pp. 318, et seq.

[1715] Garcilasso de la Vega, loc. cit. vol. i. p. 308.

[1716] Acosta, loc. cit. vol. ii. p. 425. Prescott, 'History of the Conquest of Peru,' p. 9, note 3.

[1717] McLennan, 'Studies,' &c., p. 160. Wilken, 'Huwelijken tusschen bloed-verwanten,' p. 31.

[1718] v. Haxthausen, 'Transcaucasia,' p. 406, note.

[1719] Krauss, loc. cit. pp. 221, et seq..

[1720] 'Genesis,' ch. xx. v. 12.

[1721] Robertson Smith, loc. cit. p. 163.

[1722] Michaelis, 'Abhandlung von den Ehegesetzen Mosis,' p. 128.

[1723] Becker, loc. cit. vol. ii. p. 448. In Homer, the marriage of brother and sister, strictly speaking, is to be found only in myth (Schrader, loc. cit. p. 392, note).

[1724] Bancroft, loc. cit. vol. ii. pp. 664, et seq.

[1725] Wilken, in 'Bijdragen,' &c., ser. v. vol. i. p. 147. Idem, 'Verwantschap,' &c., p. 22.

[1726] Franklin, 'Journey,' p. 289. Cf. v. Martius, loc. cit. vol. i. pp. 116, 393 (certain Brazilian tribes).

[1727] The Rev. B. Danks mentions ('Marriage Customs of the New Britain Group,' in 'Jour. Anthr. Inst.,' vol. xviii. p. 283) that in the New Britain Group, where upon theoretical grounds a man may without law-breaking marry his niece, as belonging to another clan, there is, nevertheless, a great repugnance to such unions, among the natives, and in one case where such a union was brought about, the natives utterly condemned it.

[1728] Tartars (Castrén, loc. cit. vol. ii. p. 298), Somals (Burton, 'First Footsteps in East Africa,' p. 120), Negroes of Bondo ('Das Ausland,' 1881, p. 1027).

[1729] v. Haxthausen, 'Transcaucasia,' p. 406.

[1730] Balfour, loc. cit. vol. ii. p. 880.

[1731] Waitz, loc. cit. vol. iii. p. 422.

[1732] Huth, 'The Marriage of Near Kin,' pp. 123, 137.

[1733] Ibid. pp. 123, 139.

[1734] 'The Korân,' sura iv. v. 27.

[1735] Dall, loc. cit. p. 399. Petroff, loc. cit. p. 158.

[1736] Lyon, loc. cit. p. 353.

[1737] Heriot, loc. cit. p. 325.

[1738] Barrow, loc. cit. vol. i. p. 276.

[1739] v. Siebold, loc. cit. pp. 30, et seq.

[1740] Burckhardt, loc. cit. p. 64. Robertson Smith, loc. cit. p. 82.

[1741] 'The Marriage Customs of the Moors of Ceylon,' in 'The Folk-Lore Journal,' vol. vi. p. 140.

[1742] Kohler, in 'Zeitschr. f. vgl. Rechtswiss.,' vol. vi. p. 406.

[1743] Spencer, 'Descriptive Sociology,' Asiatic Races, p. 8.

[1744] Shortt, 'The Wild Tribes of Southern India,' in 'Trans. Ethn. Soc.,' N. S. vol. vii. p. 187.

[1745] Egede, loc. cit. p. 141.

[1746] Rink, 'The Eskimo Tribes,' p. 23.

[1747] Dall, loc. cit. p. 196.

[1748] Keating, loc. cit. vol. ii. p. 171.

[1749] Schoolcraft, loc. cit. vol. v. p. 655.

[1750] Powers, loc. cit. p. 192.

[1751] Sproat, loc. cit. p. 99.

[1752] Dall, p. 138.

[1753] Frazer, loc. cit. p. 59.

[1754] Hardisty, in 'Smith. Rep.,' 1866, p. 315.

[1755] Frazer, loc. cit. p. 60.

[1756] Morgan, 'Ancient Society,' pp. 90, et seq.

[1757] Ibid., pp. 91-93. Cf. Morgan, 'League of the Iroquois,' pp. 79, 81, 83.

[1758] Frazer, pp. 60-62.

[1759] Bancroft, loc. cit. vol. ii. p. 665.

[1760] Ibid., vol. ii. p. 665. de Herrera, loc. cit. vol. iv. p. 171.

[1761] Bancroft, vol. ii. p. 251.

[1762] Im Thurn, loc. cit. pp. 175, 185.

[1763] Agassiz, 'Journey in Brazil,' p. 320.

[1764] Bastian, 'Rechtsverhältnisse,' p. 172.

[1765] Dobrizhoffer, loc. cit. vol. i. p. 63; vol. ii. p. 212.

[1766] Curr, loc. cit. vol. i. p. 107. Cf. Palmer, in 'Jour. Anthr. Inst.,' vol. xiii. p. 299.

[1767] Frazer, loc. cit. p. 65. Curr, vol. i. p. 112.

[1768] Frazer, p. 65. Howitt, in 'Smith. Rep.,' 1883, p. 800.

[1769] Curr, vol. i. p. 112. Cf. Mathew, in 'Jour. Roy. Soc. N.S. Wales, vol. xxiii. p. 402.

[1770] Curr, loc. cit. vol. i. p. 118. Frazer, loc. cit. p. 58. Mathew, in 'Jour. Roy. Soc. N.S. Wales,' vol. xxiii. p. 399. For the Australian exogamy, see also Howitt, in 'Smith. Rep.,' 1883, pp. 797-824; Fison and Howitt, loc. cit.; Brough Smyth, loc. cit. vol. i. pp. 86-92; Ridley, 'The Aborigines of Australia,' pp. 7-10; Idem, 'Kámilarói,' pp. 161, et seq.; Breton, loc. cit. p. 202; Schürmann, loc. cit. p. 222; Dawson, loc. cit. p. 26; Waitz-Gerland, loc. cit. vol. vi. p. 772; Bonney, in 'Jour. Anthr. Inst.,' vol. xiii. pp. 128, et seq.; Cameron, ibid., vol. xiv. p. 351.

[1771] Curr, loc. cit. vol. i. p. 112; vol. ii. p. 245. Schürmann, loc. cit. p. 222. Cameron, in 'Jour. Anthr. Inst.,' vol. xiv. p. 351.

[1772] Curr, vol. i. p. 106.

[1773] Ibid., vol. iii. p. 546.

[1774] Ibid., vol. i. pp. 107, 111. Dawson, loc. cit. p. 26.

[1775] Dawson, p. 27.

[1776] Brough Smyth, loc. cit. vol. ii. p. 386. Cf. Bonwick, 'Daily Life,' p. 62.

[1777] Huth, loc. cit. p. 80. Waitz-Gerland, loc. cit. vol. vi. p. 131.

[1778] Turner, 'Samoa,' p. 92.

[1779] Codrington, loc. cit. pp. 21, 29.

[1780] Danks, in 'Jour. Anthr. Inst.,' vol. xviii. pp. 282, et seq. Cf. Powell, loc. cit. p. 86.

[1781] Macdonald, 'Oceania,' pp. 181, et seq.

[1782] Waitz-Gerland, loc. cit. vol. v. pt. ii. p. 106.

[1783] Kubary, loc. cit. p. 35.

[1784] St. John, loc. cit. vol. i. p. 198. Cf. Low, loc. cit. p. 300; Wilken, 'Verwantschap,' p. 23.

[1785] Crawfurd, loc. cit. vol. iii. p. 139.

[1786] Hickson, loc. cit. p. 227. Wilken, pp. 21, et seq.

[1787] Wilken, pp. 18, 21.

[1788] Blumentritt, loc. cit. p. 33.

[1789] Wilken, in 'Bijdragen,' &c., ser. v. vol. i. p. 147.

[1790] Riedel, loc. cit. p. 206.

[1791] Wilken, in 'Bijdragen,' &c., ser. v. vol. i. pp. 145, et seq.

[1792] Riedel, p. 416.

[1793] Wilken, in 'Bijdragen,' &c., ser. v. vol. i. p. 146.

[1794] Ibid., p. 146.

[1795] Ibid., p. 148.

[1796] Wilken, 'Huwelijken tusschen bloedverwanten,' pp. 26, et. seq. Riedel, loc. cit. p. 460.

[1797] Wilken, 'Verwantschap,' p. 18.

[1798] Stewart, in 'Jour. As. Soc. Bengal,' vol. xxiv. p. 640.

[1799] Watt, in 'Jour. Anthr. Inst.,' vol. xvi. p. 359.

[1800] Lewin, loc. cit. pp. 186, et seq.

[1801] Macpherson, quoted by Percival, 'The Land of the Veda,' p. 345. Cf. Hunter, 'Rural Bengal,' vol. iii. p. 81.

[1802] Man, loc. cit. p. 103.

[1803] Hale, 'On the Sakais,' in 'Jour. Anthr. Inst.,' vol. xv. p. 291.

[1804] Dalton, loc. cit. pp. 158, 189.

[1805] Ibid., p. 63.

[1806] Tod, loc. cit. vol. i. p. 145.

[1807] Lyall, 'Asiatic Studies,' p. 156.

[1808] Tylor, 'Early History of Mankind,' p. 280.

[1809] This relationship extends to six degrees where the common ancestor is a male. Where the common ancestor is a female, there is a difference of opinion; Manu and Âpastamba extending the prohibition in her case also to six degrees, while Gautama, Vishnu, Narada, &c., limit it to four degrees (Mayne, 'Hindu Law and Usage,' p. 87).

[1810] 'The Laws of Manu,' ch. iii. v. 5.

[1811] Weber, 'Die Kastenverhältnisse in dem Brâhmana und Sûtra,' in 'Indische Studien,' vol. x. pp. 75, et seq.

[1812] Kearns, loc. cit. pp. 33, et seq. For the marriage restrictions of the Hindus, cf. Steele, 'The Law and Custom of the Hindoo Castes,' pp. 26, 27, 163.

[1813] Man, in 'Jour. Anthr. Inst.,' vol. xii. pp. 135, et seq.

[1814] Bailey, in 'Trans. Ethn. Soc.,' N.S. vol. ii. p. 294.

[1815] 'Trans. Roy. As. Soc. China Branch,' vol. iv. pp. 3-10, 23-25, 27, et seq.

[1816] Ibid., vol. iv. pp. 21, et seq.

[1817] Ibid., vol. iv. p. 24.

[1818] Ibid., vol. iv. p. 23. Jamieson, 'Translations from the General Code of Laws of the Chinese Empire,' in 'The China Review,' vol. x. pp. 82, et seq. Cf. Gray, loc. cit. vol. i. p. 186; Tylor, 'Early History of Mankind,' p. 281.

[1819] Medhurst, in 'Trans. Roy. As. Soc. China Branch,' vol. iv. p. 27.

[1820] Lubbock, 'The Origin of Civilisation,' p. 139. Bastian, 'Rechtsverhältnisse,' p. 171.

[1821] Bastian, p. 172.

[1822] Castrén, loc. cit. vol. ii. p. 168. Georgi, loc. cit. p. 282. Finsch, 'Reise nach West-Sibirien,' p. 543.

[1823] Georgi, loc. cit. p. 31.

[1824] Castrén, in 'Litterära Soiréer,' 1849, pp. 12, et seq. Idem, 'Nordiska resor och forskningar,' vol. ii. p. 168. de Quatrefages, 'Hommes fossiles et hommes sauvages,' p. 604.

[1825] v. Haxthausen, 'Transcaucasia,' p. 406, note.

[1826] Ibid. p. 406.

[1827] Bastian, 'Rechtsverhältnisse,' p. 181.

[1828] Reich, 'Geschichte, Natur-und Gesundheitslehre des ehelichen Lebens,' p. 333.

[1829] Burton, 'First Footsteps,' p. 120.

[1830] Du Chaillu, 'The People of Western Equatorial Africa,' in 'Trans. Ethn. Soc.,' N.S. vol. i. p. 307. Ashe, 'Two Kings of Uganda,' p. 285.

[1831] Burton, 'Gorilla Land,' vol. i. p. 75.

[1832] Cf. Fritsch, loc. cit. pp. 114, et seq.; Bastian, 'Ethnologische Forschungen,' vol. i. p. xxvii.; Holden, 'The Past and Future of the Kaffir Races,' p. 200.

[1833] Shooter, loc. cit. pp. 45, et seq.

[1834] Maclean, loc. cit. p. 163.

[1835] Shooter, p. 45.

[1836] Maclean, p. 115.

[1837] Theal, loc. cit. pp. 16, et seq.

[1838] Conder, in 'Jour. Anthr. Inst.,' vol. xvi. p. 85.

[1839] Casalis, loc. cit. p. 191.

[1840] Kolben, 'The Present State of the Cape of Good Hope,' vol. i. pp. 155, et seq.

[1841] Sibree, loc. cit. pp. 185, 248, et seq. Ellis, 'History of Madagascar,' vol. i. pp. 164, et seq.

[1842] Marquardt and Mommsen, 'Handbuch der römischen Alterthümer,' vol. vii. pp. 29, et seq.

[1843] Smith and Cheetham, 'Dictionary of Christian Antiquities,' vol. ii. p. 1727.

[1844] Smith and Cheetham, loc. cit. vol. ii. pp. 1727, 1729.

[1845] Huth, loc. cit. p. 122.

[1846] Man, in 'Jour. Anthr. Inst.,' vol. xii. p. 127.

[1847] Lyon, loc. cit. p. 353. Holm, 'Ethnologisk Skizze af Angmagsalikerne,' in 'Meddelelser om Grönland,' vol. x. p. 96.

[1848] Daniell, in 'Jour. Ethn. Soc. London,' vol. iv. p. 14.

[1849] Dawson, loc. cit. p. 27.

[1850] de Herrera, loc. cit. vol. iv. p. 171.

[1851] Medhurst, in 'Trans. Roy. As. Soc. China Branch,' vol. iv. pp. 24, et seq. note.

[1852] Longford, 'Summary of the Japanese Penal Codes,' in 'Trans. As. Soc. Japan,' vol. v. pt. ii. p. 87.

[1853] 'The Institutes of Vishnu,' ch. xxxiv. vv. 1, et seq.

[1854] 'Leviticus,' ch. xviii. vv. 8, 15, 17; &c.

[1855] 'The Korân,' sura iv. vv. 26, et seq.

[1856] Justinian, loc. cit. book i. title x. §§ 6, et seq.

[1857] See Ewald, p. 197, note 6. Cf. Smith and Cheetham, loc. cit. vol. ii. pp. 1725, et seq.

[1858] Huth, loc. cit. p. 24.

[1859] McLennan, 'Studies in Ancient History,' pp. 75, et seq.

[1860] Spencer, 'The Principles of Sociology,' vol. i. pp. 614-619.

[1861] McLennan, 'Exogamy and Endogamy,' in 'The Fortnightly Review,' vol. xxi. pp. 884, et seq.

[1862] Hooper, loc. cit. p. 201.

[1863] Sproat, loc. cit. p. 94.

[1864] Seemann, 'Voyage of Herald,' vol. ii. p. 66.

[1865] Keene, in 'Jour. Anthr. Inst.,' vol. xiii. p. 206.

[1866] Powers, loc. cit. pp. 192, 271, 382. Cf. Waitz, loc. cit. vol. iii. p. 106.

[1867] Schoolcraft, loc. cit. vol. iii. p. 243. Mackenzie, 'Voyages,' p. xcviii.

[1868] Franklin, 'Journey,' p. 77.

[1869] Dall, loc. cit. p. 399

[1870] Reich, loc. cit. pp. 457, et seq.

[1871] 'Ymer,' vol. v. p. 280.

[1872] Turner, 'Samoa,' p. 79. Williams, 'Missionary Enterprises,' p. 558. Bink, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. xi. p. 392.

[1873] Elton, 'Natives of the Solomon Islands,' in 'Jour. Anthr. Inst.,' vol. xvii. p. 93.

[1874] Kotzebue, loc. cit. vol. iii. p. 211.

[1875] Curr, loc. cit. vol. i. p. 70.

[1876] Lumholtz, loc. cit. p. 272 (natives of Herbert River, Northern Queensland).

[1877] Darwin, 'The Descent of Man,' vol. ii. pp. 400, et seq.

[1878] Fison and Howitt, loc. cit. pp. 134-137. Cf. Farrer, 'Primitive Manners and Customs,' p. 244.

[1879] Mr. Bridges, in a letter. Cf. Idem, in 'A Voice for South America,' vol. xiii. p. 181; Hyades, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. x. p. 331.

[1880] Powers, loc. cit. p. 207. Cf. ibid., p. 183.

[1881] Ellis, 'Polynesian Researches,' vol. i. p. 249.

[1882] McLennan, 'Studies in Ancient History,' p. 160.

[1883] Spencer, 'The Principles of Sociology,' vol. i. p. 619-621.

[1884] Ibid., pp. 627, et seq.

[1885] Mr. Huth, in the first edition of his work, 'The Marriage of Near Kin,' suggests (p. 157) that marriage between parents and children is considered incestuous because marriage between old men and young women in general is considered so. In the second edition, Mr. Huth seems to have given up this most unfortunate hypothesis, as he says (p. 18) that 'the prohibition of marriage with those who were regarded as near of kin was derived from the same causes which made exogamy imperative,' that is, the causes suggested by Mr. Spencer.

[1886] Lubbock, 'The Origin of Civilisation,' pp. 135, et seq. Professor Wilken (in 'De Indische Gids,' 1880, vol. ii. p. 612) accepts this explanation of the origin of exogamy, and considers it certain (ibid., pp. 618, 619, 623) that prohibitions of close intermarriage have everywhere originated in true exogamy.

[1887] McLennan, 'Studies,' &c., p. 345. Among the Australian Gourndicthmara, according to the Rev. J. H. Stähle, the man who captured a woman in war never kept her himself, but was compelled to give her to some one else (Fison and Howitt, loc. cit. p. 276).

[1888] Kohler, in 'Zeitschr. f. vgl. Rechtswiss.,' vol. iii. pp. 361, et seq. Professor Kohler also thinks ('Krit. Vierteljahrschr. f. Gesetzg.,' N. S. vol. iv. p. 181) that one of the chief causes of exogamy was the unpleasantly dependent position in which, in endogamous marriage, the husband stood to the family of his wife.

[1889] Tylor, in 'Jour. Anthr. Inst.,' vol. xviii. p. 267.

[1890] Curr, loc. cit. vol. i. p. 100. Mathew, in 'Jour. Roy. Soc. N.S. Wales,' vol. xxiii. p. 403. Dawson, loc. cit. p. 28. Frazer, loc. cit. pp. 58, et seq. There seem to be two or three exceptions to this rule among the Australian tribes, but Mr. Curr (vol. i. p. 417) ascribes such cases to the influence of the whites.

[1891] Codrington, loc. cit. p. 23.

[1892] Holm, loc. cit. p. 98.

[1893] Prichard, loc. cit. p. 125.

[1894] Tylor, in 'Jour. Anthr. Inst.,' vol. xviii. p. 265.

[1895] Morgan, 'Ancient Society,' p. 424.

[1896] Lubbock, 'The Customs of Marriage and Systems of Relationship among the Australians,' in 'Jour. Anthr. Inst.,' vol. xiv. p. 300. Darwin, 'Animals and Plants under Domestication,' vol. ii. p. 124. Peschel, loc. cit. p. 224.

[1897] Maine, 'Early Law and Custom,' p. 228.

[1898] Curr, loc. cit. vol. i. p. 112.

[1899] Azara, loc. cit. vol. ii. p. 21.

[1900] Cf. Lang, 'Custom and Myth,' p. 256.

[1901] Huth, loc. cit. p. 342.

[1902] Plato, 'Νόμοι,' book viii. ch. vi. p. 838.

[1903] Huth, loc. cit. pp. 10-14.

[1904] Moriz Wagner, in 'Kosmos,' 1886, vol. i. pp. 21, &c. v. Hellwald, loc. cit. pp. 179, et seq. Wake, "The Development of Marriage and Kinship,' p. 55. Dalton, loc. cit. p. 248, note. Speaking of the Australian tribes, Mr. Mathew says ('Jour. Roy. Soc. N.S. Wales,' vol. xxiii. p. 403), 'There may also be an auxiliary cause to exogamy among barbarians in what may be called an instinctive hankering after foreign women.'

[1905] Egede, loc. cit. p. 141. Cf. Cranz, loc. cit. vol. i. p. 147.

[1906] Nansen, loc. cit. vol. ii. p. 330.

[1907] Macpherson, 'Memorials of Service in India,' p. 69.

[1908] Codrington, loc. cit. p. 240.

[1909] Tylor, in 'Jour. Anthr. Inst.,' vol. xviii. p. 268.

[1910] v. Martius, in 'Jour. Roy. Geo. Soc.,' vol. ii. p. 198. Idem, 'Beiträge zur Ethnographie,' &c., vol. i. p. 117.

[1911] Wallace, 'Travels on the Amazon,' p. 497. v. Martius, vol. i. p. 594.

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[1923] Dalton, loc. cit. p. 81.

[1924] Kovalevsky, 'Marriage among the Early Slavs,' in 'Folk-Lore,' vol. i. p. 475.

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[1926] Morgan, 'Houses and House-Life of the American Aborigines,' p. 73.

[1927] Ibid., p. 64.

[1928] Powers, loc. cit. p. 168.

[1929] Egede, loc. cit. p. 147. Cf. Nansen, loc. cit. vol. ii. pp. 291, 297.

[1930] Keating, loc. cit. vol. ii. pp. 153, 170, 171.

[1931] Wallace, 'Travels on the Amazon,' pp. 490, 497.

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[1933] Brough Smyth, loc. cit. vol. i. p. xxiv.

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[1935] Wilken, 'Verwantschap,' pp. 25, et seq.

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[1937] Buchanan, 'Journey from Madras,' p. 738. Bachofen, 'Antiquarische Briefe,' pp. 271, et seq. Starcke, loc. cit. p. 83.

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[1963] 'Codex Justinianeus,' book v. title iv. § 26.

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[1967] 'The Laws of Manu,' ch. ix. v. 235; ch. xi. v. 55; ch. xii. v. 58. 'The Institutes of Vishnu,' ch. xxxv. v. 1.

[1968] Curr, loc. cit. vol. i. p. 66.

[1969] Cf. Robertson Smith, loc. cit. p. 169; Macdonald, 'Oceania,' pp. 184, 192, et seq.

[1970] Kubary, loc. cit. p. 62.

[1971] Robertson Smith, p. 170.

[1972] Heifer, in 'Jour. As. Soc. Bengal,' vol. vii. p. 856.

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[1975] Annamese (Janke, loc. cit. p. 276), Kamchadales (Steller, loc. cit. p. 289, note), Kaniagmuts (Bancroft, loc. cit. vol. i. pp. 81, et seq.).

[1976] Spencer, 'The Principles of Sociology,' vol. i. pp. 606, et seq. Huth, loc. cit. pp. 14, &c. Morgan, 'Systems of Consanguinity and Affinity,' p. 480. Wilken, 'Huwelijken tusschen bloedverwanten,' pp. 24, et seq.

[1977] Mr. Cupples, however, observes that among dogs, the male seems rather inclined towards strange females (Darwin, 'The Descent of Man,' vol. ii. p. 294); and I myself have been told by a thoroughly trustworthy person of a stallion that would not approach mares of the same stable. But such instincts seem to be exceptions at least among domesticated animals.

[1978] Huth, loc. cit. p. 9.

[1979] Ibid., p. 9.

[1980] Müller, 'The Fertilisation of Flowers,' p. 8.

[1981] Darwin, 'The Effects of Cross and Self Fertilisation in the Vegetable Kingdom,' p. 436.

[1982] Ibid., p. 443.

[1983] Darwin, 'Animals and Plants under Domestication,' vol. ii. p. 116.

[1984] Sebright, 'The Art of Improving the Breeds of Domestic Animals,' pp. 12, et seq.

[1985] Wallace, 'Darwinism,' p. 161.

[1986] Crampe, 'Zuchtversuche mit zahmen Wanderratten,' in 'Landwirthschaftliche Jahrbücher,' vol. xii. pp. 402, 409, 418; quoted by Düsing, 'Die

Regulierung des Geschlechtsverhältnisses bei der Vermehrung der Menschen, Tiere und Pflanzen,' p. 246. 'Die Kreuzungsproducte der Familien waren mit ihren Brüdern, Vätern, Grossvätern und Mestizen viel fruchtbarer, als die in Blutschande gezogenen Familien unter denselben Verhältnissen.'

[1987] Huth, loc. cit. pp. 286, et seq.

[1988] Preyer, 'Specielle Physiologie des Embryo,' p. 8.

[1989] Mitchell, 'Blood-Relationship in Marriage,' in 'Memoirs Read before the Anthropological Society of London,' vol. ii. p. 451.

[1990] Pouchet, loc. cit. p. 107, note *.

[1991] Sebright, loc. cit. pp. 11, et seq.

[1992] Darwin, 'Cross and Self Fertilisation,' p. 445.

[1993] Idem, 'Animals and Plants under Domestication,' vol. ii. p. 116.

[1994] Idem, 'Cross and Self Fertilisation,' p. 457.

[1995] Ibid., p. 465.

[1996] Sebright, loc. cit. p. 12.

[1997] Adam, 'Consanguinity in Marriage,' in 'The Fortnightly Review,' vol. iii. p. 81.

[1998] Huth, loc. cit. p. 36.

[1999] Galton, 'Hereditary Genius,' p. 152.

[2000] Huth, p. 37, note.

[2001] Bailey, in 'Trans. Ethn. Soc.,' N. S. vol. ii. pp. 294, 296.

[2002] Périer, in 'Mém. Soc. d'Anthr.,' vol. i. p. 223. Voisin, 'Contribution à l'histoire des mariages entre consanguins,' ibid., vol. ii. p. 447.

[2003] Huth, loc. cit. ch. v. pp. 186-241.

[2004] Ibid., pp. 217, 226.

[2005] G. H. Darwin, 'Marriages between First Cousins in England,' in 'The Fortnightly Review,' vol. xviii. p. 41.

[2006] Idem, 'Marriages between First Cousins in England,' in 'Journal of the Statistical Society,' vol. xxxviii. pp. 181, 170, 182.

[2007] Idem, 'Note on the Marriages of First Cousins,' ibid., vol. xxxviii. pp. 344-346.

[2008] Schmidt's 'Jahrbücher des gesammten Medicin,' vol. clxxxi. p. 89.

[2009] It has escaped even Mr. Huth's keen observation.

[2010] Mygge, 'Om Aegteskaber mellem Blodbeslaegtede,' pp. 162, 272.

[2011] Dahl, 'Bidrag til Kundskab om de Sindssyge i Norge,' pp. 99-102.

[2012] Professor Mantegazza has given a list of fifty-seven authors who have opposed these marriages, and of fifteen who have defended them ('Jour. Statist. Soc.,' vol. xxxviii. p. 179).

[2013] Huth, loc. cit. pp. 141-143.

[2014] Beechey, loc. cit. vol. i. p. 86.

[2015] Voisin, in 'Mém. Soc. d'Anthr.,' vol. ii. p. 447.

[2016] Mygge, loc. cit. p. 126.
[2017] 'Edinburgh Medical Journal,' vol. vii. pt. ii. p. 876.
[2018] Mygge, loc. cit. p. 171.
[2019] Darwin, 'Cross and Self Fertilisation,' pp. 439, 458.
[2020] Ibid., p. 439. G. H. Darwin, in 'Jour. Statist. Soc.,' vol. xxxviii. p. 175.
[2021] Quoted by Düsing, loc. cit. p. 249.
[2022] Mitchell, in 'Mem. Anthr. Soc.,' vol. ii. p. 447.
[2023] Cf. Devay, 'Du danger des mariages consanguins,' p. 10.
[2024] G. H. Darwin, in 'Jour. Statist. Soc.,' vol. xxxviii. p. 163.
[2025] Ibid., pp. 175, et seq.
[2026] v. Martius, loc. cit. vol. i. p. 334.
[2027] Bates, loc. cit. vol. ii. pp. 199, et seq.
[2028] Wallace, 'Travels on the Amazon,' p. 508.
[2029] v. Tschudi, loc. cit. vol. ii. p. 284.
[2030] Gisborne, 'The Isthmus of Darien,' p. 155.
[2031] Davis, 'El Gringo,' p. 146.
[2032] Barrow, loc. cit. vol. i. pp. 144, 147.
[2033] Sibree, loc. cit. p. 248.
[2034] Dalton, loc. cit. p. 66.
[2035] St. John, loc. cit. vol. i. p. 10.
[2036] Foreman, loc. cit. p. 200.
[2037] Batchelor, loc. cit. p. 290.
[2038] Meade, loc. cit. p. 168.
[2039] Marshall, loc. cit. pp. 110, et seq.
[2040] Shortt, in 'Trans. Ethn. Soc.,' N. S. vol. vii. p. 254.
[2041] Ibid., p. 254.
[2042] Metz, loc. cit. p. 15.
[2043] Shortt, in 'Trans. Ethn. Soc.,' N. S. vol. vii. p. 233.
[2044] Polak, loc. cit. vol. i. pp. 200, 201, 216, et seq.
[2045] Dr. Helfer also thinks ('Jour. As. Soc. Bengal,' vol. vii. p. 856) that, among the Karens of the Tenasserim Provinces, close intermarrying is the reason why 'they are a subdued, timid, effeminate, diminishing race.'
[2046] Gason, loc. cit. pp. 260, et seq.
[2047] Richardson, loc. cit. vol. i. p. 406.
[2048] Rink, 'Tales and Traditions of the Eskimo,' pp. 390, et seq.
[2049] Reich, loc. cit. pp. 210, et seq.
[2050] Goldziher, in 'The Academy,' vol. xviii. p. 26. Cf. Wilken, 'Das Matriarchat bei den alten Arabern,' p. 61; Robertson Smith, loc. cit. p. 60.
[2051] Petroff, loc. cit. p. 155.
[2052] Shooter, loc. cit. p. 45.
[2053] Goldziher, in 'The Academy,' vol. xviii. p. 26. Robertson Smith, p. 82.

[2054] For instance, Mr. Morgan ('Systems,' &c., pp. 479, et seq.) and Professor Wilken (in 'De Indische Gids,' 1881, vol. ii. p. 622).

[2055] Bernardin de Saint-Pierre, 'Études de la nature,' vol. i. p. 94.

[2056] Schopenhauer, 'The World as Will and Idea,' vol. iii. pp. 356-359.

[2057] Lucas, 'Traité de l'hérédité naturelle,' vol. ii. p. 238; 'La loi de l'amour est l'accord des contrastes.' Walker, 'Intermarriage,' pp. 119-124. Mantegazza, 'Die Hygieine der Liebe,' p. 321. Allen, 'Falling in Love,' p. 5. v. Hartmann, 'Philosophy of the Unconscious,' vol. i. pp. 237, et seq.

[2058] Bain, loc. cit. p. 136.

[2059] Lucas, vol. ii. p. 238. Walker, 'Intermarriage,' p. 124.

[2060] Quoted by Walker, p. 118.

[2061] Schopenhauer also says (loc. cit. vol. iii. p. 358), 'Blondes prefer dark persons, or brunettes; but the latter seldom prefer the former. The reason is, that fair hair and blue eyes are in themselves a variation from the type, are almost abnormal, being analogous to white mice, or at least to gray horses.'

[2062] de Candolle, 'Hérédité de la couleur des yeux dans l'espèce humaine,' in 'Archives des sciences physiques et naturelles,' ser. iii. vol. xii.; quoted in 'Ymer,' vol. v. p. viii.

[2063] 'Ymer,' vol. v. p. ix.

[2064] Galton, 'Natural Inheritance,' p. 85.

[2065] Mantegazza, 'Physiologie du plaisir,' p. 243.

[2066] Spencer, 'The Principles of Psychology,' vol. i. pp. 487, et seq. Bain, loc. cit. p. 136. Dr. Duboc remarks ('Die Psychologie der Liebe,' p. 14), 'Es giebt keine inhaltvollere und triumphirendere Beseligung der eignen Selbstliebe als von dem über alle Anderen emporgetragen zu werden, den wir selbst höher wie alle Anderen erblicken, als von dem ausgezeichnet zu werden, der uns selbst mit allen Auszeichnungen geschmückt erscheint.'

[2067] Sibree, loc. cit. p. 250.

[2068] Ellis, 'The Tshi-speaking Peoples,' p. 285.

[2069] Duncan, 'Travels in Western Africa,' vol. i. p. 79. Sabatier, 'Étude sur la femme Kabyle,' in 'Revue d'Anthropologie,' ser. ii. vol. vi. p. 58. Bonfanti, 'L'incivilimento dei negri nell'Africa intertropicale,' in 'Archivio per antropologia e la etnologia,' vol. xv. p. 131.

[2070] Munzinger, loc. cit. p. 325.

[2071] Lewin, loc. cit. p. 345.

[2072] Finsch, in 'Zeitschr. f. Ethnol.,' vol. xii. p. 317.

[2073] Heriot, loc. cit. p. 25.

[2074] Egede, loc. cit. p. 144.

[2075] Jones, in 'Smith. Rep.,' 1866, p. 326. Dall, loc. cit. p. 139.

[2076] Morgan, 'Systems of Consanguinity and Affinity,' p. 207, note. Cf. Schoolcraft, loc. cit. vol. v. p. 272 (Creeks).

[2077] Chapman, loc. cit. vol. i. p. 258.

[2078] Johnson, 'The River Congo,' p. 423.

[2079] Chavanne, 'Die Sahara,' pp. 208, et seq.

[2080] Schweinfurth, loc. cit. vol. i. p. 510.

[2081] Dalton, loc. cit. p. 206.

[2082] Jellinghaus, in 'Zeitschr. f. Ethnol.,' vol iii. p. 369. Fawcett, 'The Saoras of Madras,' in 'Jour. Anthr. Soc. Bombay,' vol. i. p. 219. St. John, loc. cit. vol. i. pp. 54, et seq. Man, in 'Jour. Anthr. Inst.,' vol. xii. p. 327.

[2083] Moncelon, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. ix. p. 366.

[2084] Turner, 'Samoa,' p. 102.

[2085] Martin, loc. cit. vol. ii. pp. 171, et seq.

[2086] Seemann, 'Viti,' pp. 193, et seq.

[2087] Brough Smyth, loc. cit. vol. ii. p. 283. Bonwick, in 'Jour. Anthr. Inst.,' vol. xvi. p. 205. Waitz-Gerland, loc. cit. vol. vi. pp. 775, 781. Dawson, loc. cit. p. 37. Lumholtz, loc. cit. pp. 213, et seq.

[2088] Brough Smyth, vol. i. p. 29. Taplin, loc. cit. p. 12. Bonney, in 'Jour. Anthr. Inst.,' vol. xiii. p. 129.

[2089] Lyon, loc cit. p. 353. Cf. Nansen, loc. cit. vol. ii. pp. 325, et seq. (Greenlanders).

[2090] Harmon, loc. cit. p. 292.

[2091] Catlin, loc. cit. vol. i. p. 121.

[2092] Brett, loc. cit. pp. 98, 351.

[2093] Azara, loc. cit. vol. ii. p. 44. Mantegazza, 'Rio de la Plata,' p. 456.

[2094] Weddel, 'Voyage towards the South Pole,' p. 156. Haydes, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. x. p. 334.

[2095] Schoolcraft, loc. cit. vol. iii. p. 236.

[2096] Hall, loc. cit. p. 568.

[2097] Brough Smyth, loc. cit. vol. i. p. xxiv.

[2098] Katscher, loc. cit. pp. 58, et seq.

[2099] Dubois, loc. cit. p. 109.

[2100] Polak, loc. cit. vol. i. p. 206.

[2101] Burckhardt, loc. cit. p. 155.

[2102] Finck, 'Romantic Love,' p. 110.

[2103] Palmblad, 'Grekisk fornkunskap,' vol. i. p. 252. 'Das Ausland,' 1875, p. 321.

[2104] Katscher, loc. cit. pp. 71, 84. Hermann-Blümner, loc. cit. p. 261.

[2105] Plato, loc. cit. book vi. p. 771.

[2106] Plutarch, 'Περὶ τῆς ἠθικῆς ἀρετῆς,' ch. viii.

[2107] Darwin, 'The Descent of Man,' vol. i. p. 215.

[2108] Cf. Bain, loc. cit. p. 117; Sully, 'Outlines of Psychology,' p. 515.

[2109] Walker, 'Intermarriage,' pp. 113-115.

[2110] Haushofer, loc. cit. p. 405.

[2111] Walker, pp. 115, et seq.

[2112] Reich, loc. cit. p. 456.

[2113] Waitz, 'Introduction to Anthropology,' p. 174.

[2114] Bancroft, loc. cit. vol. i. p. 772.

[2115] Spencer, 'Descriptive Sociology,' Ancient Mexicans, &c., p. 4.

[2116] Powers, loc. cit. p. 214. Cf. Mackenzie, 'Voyages,' p. 148 (Beaver and Rocky Mountain Indians).

[2117] 'Das Ausland,' 1884, p. 464.

[2118] Hanoteau and Letourneux, loc. cit. vol. ii. p. 164.

[2119] Jamieson, in 'The China Review,' vol. x. pp. 94, et seq.

[2120] Crawfurd, 'On the Classification of the Races of Man,' in 'Trans. Ethn. Soc.,' N.S. vol. i. p. 357.

[2121] McNair, 'Perak,' p. 131.

[2122] Forbes, 'The Eastern Archipelago,' p. 241.

[2123] Jellinghaus, in 'Zeitschr. f. Ethnol.,' vol. iii. pp. 366, 370, 371.

[2124] Bailey, in 'Trans. Ethn. Soc.,' N.S. vol. ii. pp. 282, 292.

[2125] de Gobineau, 'The Moral and Intellectual Diversity of Races,' pp. 173, et seq.

[2126] Ibid., p. 174, note 1. Cf. d'Escayrac de Lauture, loc. cit. p. 155.

[2127] v. Düben, loc. cit. pp. 200, et seq.

[2128] Morelet, loc. cit. Montgomery, loc. cit. vol. ii. p. 491. Godron, loc. cit. vol ii. p. 360. Fries, loc. cit. p. 159.

[2129] Ewald, loc. cit. p. 193.

[2130] Rossbach, loc. cit. p. 465.

[2131] Tacitus, loc. cit. ch. iv.

[2132] Macieiowski, loc. cit. vol. ii. p. 191.

[2133] Bancroft, loc. cit. vol. i. p. 703.

[2134] Sproat, loc. cit. p. 98.

[2135] Bancroft, vol. i. p. 512, note 120.

[2136] Davis, loc. cit. p. 146.

[2137] Bancroft, vol. i. p. 663.

[2138] v. Humboldt, 'Personal Narrative,' vol. iii. p. 227.

[2139] v. Humboldt, 'Personal Narrative,' vol. iii. pp. 226, et seq.

[2140] v. Martius, loc. cit. vol. i. p. 106.

[2141] Garcilasso de la Vega, loc. cit. vol. i. p. 308.

[2142] Du Chaillu, loc. cit. p. 97.

[2143] Barrow, loc. cit. vol. i. p. 144.

[2144] Chapman, loc. cit. vol. ii. p. 75.

[2145] Sibree, loc. cit. pp. 109, 256.

[2146] Kolams (Dalton, loc. cit. p. 278), Koch (Hodgson, in 'Jour. As. Soc. Bengal,' vol. xviii. p. 707), Karens of Burma (according to Dr. Bunker; Mason, 'On Dwellings, &c., of the Karens,' in 'Jour. As. Soc. Bengal,' vol. xxxvii. pt. ii. p. 151).

[2147] Lewin, loc. cit. p. 201.

[2148] Dalton, p. 28.

[2149] Batchelor, in 'Trans. As. Soc. Japan,' vol. x. pp. 211, et seq. v. Siebold, loc. cit. pp. 30, et seq.

[2150] Riedel, loc. cit. p. 325.

[2151] Hickson, loc. cit. p. 277. Wilken, 'Verwantschap,' pp. 21, et seq.

[2152] Wilken, p. 23.

[2153] Bink, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. xi. p. 396.

[2154] Romilly, in 'Proceed. Roy. Geo. Soc.,' N.S. vol. ix. p. 9.

[2155] Yate, loc. cit. pp. 96, 99.

[2156] Curr, loc. cit. vol. i. pp. 63, 67. Mathew, in 'Jour. Roy. Soc. N.S. Wales,' vol. xxiii. p. 398.

[2157] Curr, vol. i. pp. 298, 303, 330, 343, 377; vol. ii. pp. 21, 179, 197, 307; vol. iii. pp. 252, 272.

[2158] Lewis, loc. cit. p. 196.

[2159] Hearn, loc. cit. pp. 156, et seq.

[2160] Müller, 'The Doric Race,' vol. ii. p. 302.

[2161] Gaius, 'Institutiones,' book i. § 56.

[2162] Marquardt and Mommsen, loc. cit. vol. vii. p. 29.

[2163] Hotz, in de Gobineau, 'The Diversity of Races,' p. 239.

[2164] Müller, 'Chips from a German Workshop,' vol. i. pp. 322, et seq. Cf. Monier Williams, 'Hinduism,' p. 154.

[2165] Rhys Davids, 'Lectures on the Origin and Growth of Religion,' pp. 22, et seq.

[2166] Waitz, loc. cit. vol. iv. p. 64.

[2167] Munzinger, loc. cit. p. 336.

[2168] Waitz-Gerland, vol. vi. p. 6. Lisiansky, loc. cit. p. 85 (Nukahivans).

[2169] Ellis, 'Polynesian Researches,' vol. i. p. 82. Cf. Beechey, loc. cit. vol. i. pp. 205, et seq.; Seemann, 'Viti,' p. 79.

[2170] Anderson, loc. cit. p. 289.

[2171] Bastian, 'Beiträge zur Ethnologie,' in 'Zeitschr. f. Ethnol.,' vol. i. pp. 267, et seq.

[2172] de Tocqueville, 'Democracy in America,' vol. ii. pp. 149-151

[2173] Sproat, loc. cit. pp. 98-99.

[2174] Bancroft, loc. cit. vol. ii. p. 659.

[2175] v. Martius, loc. cit. vol i. p. 71. v. Spix and v. Martius, loc. cit. vol. ii. p. 74.

[2176] Waitz-Gerland, loc. cit. vol. v. pt. ii. p. 112.

[2177] Ibid., vol. vi. pp. 165, 186.

[2178] Cook, 'Voyage to the Pacific Ocean,' vol. ii. pp. 171, et seq. Ellis, 'Polynesian Researches,' vol. i. p. 256.

[2179] Wilken, in 'Bijdragen,' &c., ser. v. vol. i. p. 153. Hickson, loc. cit. p. 278 (Minahassers). Matthes, loc. cit. p. 13 (Bugis and Macassars). Riedel, loc. cit. pp. 302, 434 (natives of Timor-Laut and Wetter). St. John, 'Wild Tribes of the North-West Coast of Borneo,' in 'Trans. Ethn. Soc.,' N. S. vol. ii. pp. 234, et seq. (Sea Dyaks).

[2180] Sibree, loc. cit. pp. 185, 256.

[2181] Munzinger, loc. cit. pp. 240, 313.

[2182] Nachtigal, loc. cit. vol. i. pp. 443, et seq.

[2183] Negroes of Loango (Soyaux, loc. cit. p. 162), Hottentots (Kolben, loc. cit. vol. i. p. 156), Kunáma and Barea (Munzinger, p. 484).

[2184] Burckhardt, loc. cit. p. 63. Cf. Burton, 'Pilgrimage,' p. 305.

[2185] Monier Williams, 'Hinduism,' pp. 153, 155.

[2186] Idem, 'Indian Wisdom,' p. 218, note.

[2187] Davy, loc. cit. p. 284.

[2188] Neale, loc. cit. p. 58.

[2189] Ross, loc. cit. p. 311.

[2190] Lewin, loc. cit. p. 86, note.

[2191] Gray, loc. cit. vol. i. p. 187.

[2192] Küchler, in 'Trans. As. Soc. Japan,' vol. xiii. p. 117.

[2193] Mommsen, loc. cit. vol. i. p. 318. Rossbach, loc. cit. pp. 249, 456, 457, et seq.

[2194] Winroth, 'Äktenskapshindren,' pp. 227, 230, 233. Weinhold, 'Deutsche Frauen,' vol. i. pp. 349, 353, et seq.

[2195] Weinhold, vol. i. pp. 349, et seq.

[2196] Odhner, 'Lärobok i Sveriges, Norges och Danmarks historia,' p. 241.

[2197] Behrend, in v. Holtzendorff, 'Encyclopädie der Rechtswissenschaft,' pt. i. p. 478.

[2198] Maine, 'Early Law and Custom,' pp. 224, et seq.

[2199] Behrend, in v. Holtzendorff, 'Encyclopädie,' pt. i. p. 457.

[2200] Balfour, loc. cit. vol. ii. p. 885.

[2201] Lane, loc. cit. vol. i. p. 137.

[2202] d'Escayrac de Lauture, loc. cit. p. 68.

[2203] Neubauer, 'Notes on the Race-Types of the Jews,' in 'Jour. Anthr. Inst.,' vol. xv. p. 19.

[2204] Frankel, 'Grundlinien des mosaisch-talmudischen Eherechts,' p. xx. Ritter, 'Philo und die Halacha,' p. 71.

[2205] 'Genesis,' ch. xxi. v. 21; ch. xxxvi. v. 2.

[2206] Andree, loc. cit. p. 48. Neubauer, in 'Jour. Anthr. Inst.,' vol. xv. p. 19.

[2207] Jacobs, in 'Jour. Anthr. Inst.,' vol. xv. p. 52.

[2208] St. Paul, '1 Corinthians,' ch. vii. v. 39.

[2209] Tertullian, 'Ad Uxorem,' book ii. ch. 3.

[2210] Winroth, loc. cit. p. 212.

[2211] Herzog, 'Abriss der gesammten Kirchengeschichte,' vol. p. i. 215.

[2212] Winroth, pp. 213-215.

[2213] Ibid., pp. 220, et seq.

[2214] v. Oettingen, loc. cit. § 11.

[2215] Ibid., p. 131.

[2216] Harmon, loc. cit. p. 374.

[2217] Dall, loc. cit. p. 194. Cf. Bancroft, loc. cit. vol. i. p. 81 (Kaniagmuts).

[2218] Bancroft, vol. ii. p. 678.

[2219] Sibree, loc. cit. p. 246.

[2220] Waitz, loc. cit. vol. ii. p. 121. Cf. Reade, loc. cit. p. 242.

[2221] Wilson and Felkin, loc. cit. vol. i. p. 187; vol. ii. p. 49.

[2222] Georgi, loc. cit. p. 382. For other instances, see 'Science,' vol. vii. p. 172 (Greenlanders); Munzinger, loc. cit. p. 387 (Kunáma); Low, loc. cit. p. 196 (Dyaks); Waitz-Gerland, vol vi. p. 135 (Nukahivans).

[2223] Rein, loc. cit. vol. i. p. 426.

[2224] Gray, loc. cit. vol. i. p. 183.

[2225] v. Bohlen, loc. cit. vol. ii. p. 142.

[2226] Polak, loc. cit. vol. i. p. 218. For the ancient Iranians, see Spiegel, loc. cit. vol. iii. p. 681.

[2227] Rossbach, loc. cit. pp. 5, 299.

[2228] Krauss, loc. cit. p. 591.

[2229] Deecke, loc. cit. p. 25.

[2230] Müller, 'The Doric Race,' vol. ii. p. 211.

[2231] African races (Waitz, loc. cit. vol. ii. p. 121. Schweinfurth, loc. cit. vol. ii. p. 31. Du Chaillu, loc. cit. p. 335), Kaniagmuts (Sauer, loc. cit. p. 176), &c.

[2232] Eskimo (King, 'The Intellectual Character of the Esquimaux,' in 'Jour. Ethn. Soc. London,' vol. i. p. 150), North American Indians (Waitz, loc. cit. vol. iii. p. 100), Negroes of Benin (Bosman, loc. cit. p. 527), natives of Monbuttu ('Emin Pasha in Central Africa,' p. 209) and the Indian Archipelago (Wilken, in 'De Indische Gids,' 1880, vol. ii. p. 633), Kirghiz, Tartars of Kazan and Orenburg, Laplanders (Georgi, loc. cit. pp. 10, 105, 221), Hebrews (Michaelis, 'Commentaries on the Laws of Moses,' vol. i. p. 471), ancient Germans (Tacitus, loc. cit. ch. xx.).

[2233] Livingstone, loc. cit. p. 412.

[2234] Schoolcraft, loc. cit. vol. v. p. 272.

[2235] Marshall, loc. cit. p. 214.

[2236] Reade, loc. cit. p. 547. Buch, loc. cit. pp. 45, et seq. Cf. Wilson and Felkin, loc. cit. vol. ii. pp. 309 (Gowane people of Kordofan); Zimmermann, loc. cit. vol. i. pp. 253, et seq. (Solomon Islanders).

[2237] Waitz, loc. cit. vol. iii. p. 105.

[2238] Josephus, loc. cit. book ii. ch. viii. § 13.

[2239] Marshall, loc. cit. p. 209.

[2240] Quoted by Bain, loc. cit. p. 142.

[2241] Gray, loc. cit. vol. i. p. 183.

[2242] Rein, loc. cit. p. 423.

[2243] Spencer, 'The Principles of Sociology,' vol. i. pp. 101, 102, 139, &c.

[2244] Holmberg, in 'Acta Soc. Sci. Fennicæ,' vol. iv. pp. 326, et seq.

[2245] Cf. Georgi, loc. cit. p. 323; Hunter, 'Rural Bengal,' vol. i. p. 205.

[2246] Lane, loc. cit. vol. i. p. 268.

[2247] Glasson, 'Le mariage civil et le divorce,' p. 470.

[2248] Fries, loc. cit. p. 111. Cf. Cranz, loc. cit. vol. i. pp. 145, et seq.

[2249] King, in 'Jour. Ethn. Soc. London,' vol. i. p. 145. 'Globus,' vol. xlix. p. 35.

[2250] Bancroft, loc. cit. vol. i. p. 276.

[2251] de Bode, 'The Yamúd and Goklán Tribes of Turkomania,' in 'Jour. Ethn. Soc. London,' vol. i. p. 75.

[2252] Schoolcraft, loc. cit. vol. v. p. 683.

[2253] Coxe, loc. cit. p. 257.

[2254] Sproat, loc. cit. p. 98.

[2255] Schoolcraft, loc. cit. vol. iv. p. 224. 'Jour. Anthr. Inst.,' vol. iii. p. 30.

[2256] Waitz, loc. cit. vol. iii. p. 355. McLennan, 'Studies,' p. 34.

[2257] v. Martius, in 'Jour. Roy. Geo. Soc.,' vol. ii. p. 197.

[2258] Bancroft, loc. cit. vol. i. p. 733.

[2259] Alcedo-Thompson, 'Dictionary of America and the West Indies,' vol. i. p. 416. Smith, 'The Araucanians,' p. 215.

[2260] Wallace, 'Travels on the Amazon,' p. 497. v. Martius, loc. cit. vol. i. p. 600.

[2261] King and Fitzroy, loc. cit. vol. ii. p. 182. Hyades, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. x. p. 334.

[2262] Andersson, 'The Okavango River,' p. 143.

[2263] Conder, in 'Jour. Anthr. Inst.,' vol. xvi. p. 83.

[2264] Krapf, loc. cit. p. 354.

[2265] Thomson, loc. cit. p. 51. Johnston, loc. cit. pp. 431, 436, et seq.

[2266] Kames, 'Sketches of the History of Man,' vol. i. p. 449.

[2267] Parkyns, loc. cit. vol ii. pp. 55, et seq.

[2268] Macdonald, 'Africana,' vol. i. p. 133.

[2269] Cf. Hodgson, 'Reminiscences of Australia,' p. 243; Angas, 'Savage Life,' vol. ii. pp. 225, et seq.

[2270] Fison and Howitt, loc. cit. p. 343.

[2271] Curr, loc. cit. vol. i. p. 108. Cf. Taplin, loc. cit. p. 10; Palmer, in 'Jour. Anthr. Inst.,' vol. xiii. p. 301.

[2272] Curr, vol. i. p. 108.

[2273] Mathew, in 'Jour. Roy. Soc. N.S. Wales,' vol. xxiii. p. 407.

[2274] Curr, vol. i. p. 108. For marriage by capture among the Australians, cf. also Montgomery, loc. cit. vol. ii. pp. 153, et seq.; Oldfield, in 'Trans. Ethn. Soc.,' N.S. vol iii. p. 250; Sturt, loc. cit. vol. ii. p. 283; Waitz-Gerland, loc. cit. vol. vi. p. 773.

[2275] Waitz-Gerland, vol. vi. p. 813.

[2276] Taylor, loc. cit. p. 336.

[2277] Williams and Calvert, loc. cit. p. 149.

[2278] Wilkes, loc. cit. vol. ii. p. 138.

[2279] Waitz-Gerland, vol. v. pt. ii. p. 191.

[2280] Bink, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. xi. p. 396.

[2281] Wilken, in 'Bijdragen,' &c., ser. v. vol. i. p. 183. Riedel, loc. cit. pp. 69, 133, 415.

[2282] Bodo, Hos, Mundas, Kúrmis (Dalton, loc. cit. pp. 86, 192, 194, 319), Bhils, Káttis, Oráons (Rowney, loc. cit. pp. 37, 46, 81), Gonds (Forsyth, loc. cit. pp. 149, et seq.), Chittagong Hill tribes (Lewin, loc. cit. p. 92), Savaras (Fawcett, in 'Jour. Anthr. Soc. Bombay,' vol. i. p. 235).

[2283] Burckhardt, loc. cit. pp. 61, 62, 150, 153. According to Professor Robertson Smith (loc. cit. p. 72), instances of marriage by capture might be accumulated to an indefinite extent from Arabian history and tradition. At the time of Mohammed the practice was universal.

[2284] Huc, loc. cit. vol. i. p. 185.

[2285] Kirghiz (Atkinson, 'Travels in the Regions of the Upper and Lower Amoor,' pp. 250, et seq.), Chulims (Georgi, loc. cit. p. 231), Mordvins (Mainoff, 'Mordvankansan häätapoja').

[2286] Prejevalsky, 'Mongolia,' vol. ii. p. 121.

[2287] Castrén, loc. cit. vol. ii. p. 168.

Buch, loc. cit. p. 62.

[2289] Teptyars, Tartars of Crimea (Vámbéry, 'Das Türkenvolk,' pp. 523, 541), Ostyaks (Castrén, vol. ii. p. 57), Cheremises, Voguls (Georgi, loc. cit. pp. 56, 67).

[2290] v. Düben, loc. cit. pp. 200, 310.

[2291] Willigerod, 'Geschichte Ehstlands,' p. 9. v. Schroeder, loc. cit. p. 19.

[2292] 'Kanteletar,' book iii. song 22. Topelius, 'De modo matrimonia jungendi apud Fennos quondam vigente,' pp. 28-30. Castrén, in 'Litterära Soiréer,' 1849, p. 13.

[2293] 'Tidningar utgifne af et Sällskap i Äbo,' 1778, no. 148. Heikel, in 'Helsingfors Dagblad,' 1881, nos. 66, 91. Ahlqvist, 'Kulturwörter,' p. 204.

[2294] 'The Laws of Manu,' book iii. vv. 26, 33.

[2295] Dionysius of Halicarnassus, 'Ρωμαϊκή ἀρχαιολογος,' book ii. ch. xxx. § 5.

[2296] Plutarch, 'Λῦκουργος,' ch. xv.

[2297] v. Zmigrodzki, loc. cit. p. 250.

[2298] Rossbach, loc. cit. p. 329.

[2299] Ortolan, 'Histoire de la Législation romaine,' p. 81.

[2300] Dargun, loc. cit. pp. 111-140. Cf. Grimm, loc. cit. p. 440; Nordström, loc. cit. vol. ii. p. 12; Weinhold, 'Deutsche Frauen,' vol. i. pp. 308-310.

[2301] Olaus Magnus, 'Historia de Gentibus Septentrionalibus,' p. 328.

[2302] Kames, loc. cit. vol. i. p. 450. Cf. Lewis, loc. cit. p. 197; Rhys, in 'Trans. Intern. Folk-Lore Congress, 1891,' p. 289.

[2303] Macieiowski, loc. cit. vol. ii. p. 189.

[2304] Ibid., vol. ii. p. 190. 'Globus,' vol. v. p. 317. Kulischer, 'Intercommunale Ehe durch Raub und Kauf,' in 'Zeitschr. f. Ethnol.,' vol. x. pp. 206-208. Kovalevsky, in 'Folk-Lore,' vol. i. pp. 476, et seq. Wolkov, in 'L'Anthropologie,' vol. iii. p. 578.

[2305] Krauss, loc. cit. ch. xiv.

[2306] Olaus Magnus, pp. 481, et seq.

[2307] de Gaya, 'Marriage Ceremonies,' p. 45.

[2308] Cf. the works of McLennan, Tylor, Lubbock, Post, and Dargun, and the essays of Kulischer (in 'Zeitschr. f. Ethnol.,' vol. x.) and Kohler ('Studien über Frauengemeinschaft, Frauenraub und Frauenkauf,' in 'Zeitschr. f. vgl. Rechtswiss.,' vol. v. pp. 334-368).

[2309] Jamieson, in 'The China Review,' vol. x. p. 95.

[2310] Spencer, 'The Principles of Sociology,' vol. i. pp. 623, et seq. Idem, in 'The Fortnightly Review,' vol. xxi. pp. 897, et seq.

[2311] Nansen, loc. cit. vol. ii. pp. 316, et seq.

[2312] Abercromby, 'Marriage Customs of the Mordvins,' in 'Folk-Lore,' vol. i. p. 454.

[2313] McLennan, 'Studies,' pp. 74, et seq.

[2314] Tylor, in 'Jour. Anthr. Inst.,' vol. xviii. p. 265.

[2315] In many cases, however, capture takes place merely because the man wishes to lower the price of the bride or to avoid payment (Cf. Abercromby, in 'Folk-Lore,' vol. i. pp. 453, et seq.).

[2316] Mathew, in 'Jour. Roy. Soc. N. S. Wales,' vol. xxiii. p. 407.

[2317] Curr, loc. cit. vol. i. pp. 62, et seq.

[2318] Tylor, in 'Jour. Anthr. Inst.,' vol. xviii. p. 266.

[2319] It is hard to understand how Herr Kulischer can have persuaded himself that marriage by purchase, as he says in an essay especially devoted to this question, 'kann nur bei sehr wenigen der jetzt lebenden Wilden aufgefunden werden' (Kulischer, in 'Zeitschr. f. Ethnol.,' vol. x. p. 210.)

[2320] Curr, loc. cit. vol. i. p. 107. Cf. Fison and Howitt, loc. cit. pp. 276, 285, 343; Taplin, loc. cit. p. 10; Angas, 'Savage Life,' vol. i. p. 94; Brough Smyth, loc. cit. vol. i. pp. 79, 84; Lumholtz, loc. cit. p. 164.

[2321] Marsden, loc. cit. p. 259.

[2322] Aleuts (Dall, loc. cit. p. 402), Kaniagmuts (Lisiansky, loc. cit. p. 198), Kenai (Richardson, loc. cit. vol. i. pp. 406, et seq.), Naudowessies (Carver, loc. cit. p. 373), Arawaks (Brett, loc. cit. p. 101), Quito Indians (Juan and de Ulloa, loc. cit. p. 521), Brazilian aborigines (v. Martius, loc. cit. vol. i. pp. 107, et seq.), Fuegians (King and Fitzroy, loc. cit. vol. ii. p. 182. Bridges, in 'A Voice for South America,' vol. xiii. p. 201).

[2323] Bushmans (Chapman, loc. cit. vol. i. p. 259), Zulus ('Das Ausland,' 1881, p. 48), Basutos (Casalis, loc. cit. p. 183), Banyai (Bastian, 'Rechtsverhältnisse,' p. 175), &c. (Post, 'Afrikanische Jurisprudenz,' vol. i. pp. 378, et seq.).

[2324] Nagas of Upper Assam, Kukis, Limbus and Kirantis, Tipperahs (Dalton, loc. cit. pp. 41, 47, 104, 110), Gonds and Korkús (Forsyth, loc. cit. pp. 148, et seq.), Bodo and Dhimáls (Hodgson, in 'Jour. As. Soc. Bengal,' vol. xviii. pt. ii. p. 735), Bhils (Hay, 'The Túran Mall Hill,' ibid., vol. xx. p. 507), Mrús (Lewin, loc. cit. p. 234), Lepchas (Hooker, loc. cit. vol. i. p. 125), Gypsies (Liebich, loc. cit. p. 46), Barabinzes, Koriaks (Georgi, loc. cit. pp. 195, 348), Tunguses, Ainos (Dall, loc. cit. pp. 519, 524), Kamchadales (Steller, loc. cit. p. 343), aboriginal tribes of China (Gray, loc. cit. vol. ii. p. 304).

[2325] Dyaks (Bock, 'The Head-Hunters of Borneo,' p. 221), Tagalas and Bisayans of the Philippines (Blumentritt, loc. cit. p. 14. Jagor, loc. cit. p. 235); also in New Britain (Romilly, in 'Proc. Roy. Geo. Soc.,' N. S. vol. ix. p. 8).

[2326] Steller, p. 343 (Kamchadales). Jagor, p. 235 (Bisayans).

[2327] Starcke, loc. cit. p. 39.

[2328] Spencer, 'The Principles of Sociology,' vol. i. p. 721.

[2329] Weinhold, 'Altnordisches Leben,' p. 242.

[2330] v. Weber, loc. cit. vol. ii. pp. 215, et seq. (Kafirs). Dalton, loc. cit. p. 43 (Nagas). Borheck, 'Erdbeschreiburg von Asien,' vol. i. p. 540 (Tartars of Kazan). Landsell, loc. cit. vol. ii. p. 225 (Gilyaks).

[2331] Sproat, loc. cit. p. 97 (Ahts). Shooter, loc. cit. p. 50 (Kafirs). Nachtigal, loc. cit. vol. i. p. 448 (Tedâ); vol. ii. p. 177 (Baele). Munzinger, loc. cit. p. 240 (Marea). Burckhardt, loc. cit. p. 62 (Arabs of Syria). Georgi, loc. cit. p. 431 (Buriats). Neumann, 'Russland und die Tscherkessen,' p. 117 (Circassians).

Rowlatt, in 'Jour. As. Soc. Bengal,' vol. xiv. pt. ii. p. 488 (Mishmis). Hickson, in 'Jour. Anthr. Inst.,' vol. xvi. p. 139 (Talauer Islanders). Wilkes, loc. cit. vol. ii. p. 138 (Samoans). Kotzebue, loc. cit. vol. iii. p. 210 (Caroline Islanders).

[2332] Post, 'Die Anfänge des Staats-und Rechtsleben,' pp. 41, et seq.

[2333] Powers, loc. cit. p. 22.

[2334] Macfie, loc. cit. p. 446.

[2335] Schoolcraft, loc. cit. vol. v. p. 654.

[2336] Powers, p. 247.

[2337] Schoolcraft, loc. cit. vol. iv. p. 214. Cf. Letherman, 'Sketch of the Navajo Tribe of Indians,' in 'Smith. Rep.,' 1855, p. 294.

[2338] Musters, in 'Jour. Anthr. Inst.,' vol. i. p. 201. Falkner, loc. cit. p. 124. Cf. Lewis and Clarke, loc. cit. p. 307 (Shoshones); Dobrizhoffer, loc. cit. vol. ii. p. 207 (Abipones).

[2339] v. Weber, loc. cit. vol. ii. p. 215. Barrow, loc. cit. vol. i. p. 206.

[2340] Chapman, loc. cit. vol. i. p. 341.

[2341] Livingstone, loc. cit. p. 623.

[2342] Wilson and Felkin, loc. cit. vol. i. p. 187.

[2343] Macdonald, 'Africana,' vol. i. p. 133.

[2344] 'Das Ausland,' 1881, p. 1026.

[2345] Caillié, loc. cit. vol. i. p. 348.

[2346] Georgi, loc. cit. pp. 114, 231.

[2347] Vámbéry, 'Das Türkenvolk,' p. 505.

[2348] Huc, loc. cit. vol. i. p. 185. 'Ymer,' vol. iii. p. 144. Georgi, loc. cit. p. 79.

[2349] Dalton, loc. cit. p. 132.

[2350] Griffiths, 'Journals of Travels,' p. 35.

[2351] Forbes, in 'Jour. Anthr. Inst.,' vol. xiii. p. 11.

[2352] Kotzebue, loc. cit. vol. iii. p. 210.

[2353] Turner, 'Samoa,' p. 93.

[2354] Wilkes, loc. cit. vol. iii. p. 92.

[2355] Yurok, Patwin (Powers, loc. cit. pp. 56, 221), Wakamba (Hildebrandt, in 'Zeitschr. f. Ethnol.,' vol. x. p. 401), Bedouins of Mount Sinai (Burckhardt, loc. cit. p. 152), Mishmis (Cooper, loc. cit. pp. 236, et seq.), Lepchas (Rowney, loc. cit. p. 139), Papuans of New Guinea (Kohler, in 'Zeitschr. f. vgl. Rechtswiss.,' vol. vii. p. 371).

[2356] 'Emin Pasha in Central Africa,' p. 86.

[2357] Waitz, loc. cit. vol. iv. pp. 266, 337, 416.

[2358] Gray, loc. cit. vol. ii. p. 193. Jamieson, in 'The China Review,' vol. x. p. 78, note *.

[2359] Küchler, in 'Trans. As. Soc. Japan,' vol. xiii. p. 120.

[2360] Robertson Smith, loc. cit. pp. 78, et seq. Ewald, loc. cit. p. 200. Gans, loc. cit. vol. i. p. 128.

[2361] 'Ruth,' ch. iv. v. 10. 'Hosea,' ch. iii. v. 2.

[2362] Michaelis, 'Commentaries on the Laws of Moses,' vol. i. p. 451.

[2363] Lüttke, 'Der Islam,' p. 119. Warnkoenig, 'Juristiche Encyclopädie,' p. 167. Unger, 'Die Ehe in ihrer welthistorischen Entwicklung,' pp. 46, et seq.

[2364] Herodotus, loc. cit. book i. ch. 196.

[2365] Koenigswarter, 'Études historiques sur le développement de la société humaine,' p. 22.

[2366] Castrén, in 'Litterära Soiréer,' 1849, p. 13. Cf. Porthan, in 'Kongliga Vitterhets, Historie och Antiquitets Akademiens Handlingar,' vol. iv. p. 19; Topelius, loc. cit. §§ 8-10.

[2367] 'Kalevala,' runo xviii. vv. 643, et seq.; runo xxii. vv. 49, et seq. 'Kanteletar,' book i. songs 133, 156; book iii. song viii. vv. 20, 39.

[2368] Heikel, in 'Helsingfors Dagblad,' 1881, no. 68.

[2369] v. Schroeder, loc. cit. pp. 27-29.

[2370] Winternitz, in 'Trans. Intern. Folk-Lore Congress, 1891,' p. 287.

[2371] Zimmer, loc. cit. p. 310.

[2372] Dubois, loc. cit. p. 102.

[2373] Aristotle, 'Τὰ πολιτικά,' book ii. ch. 8.

[2374] Herodotus, loc. cit. book v. ch. 6.

[2375] Cf. Koenigswarter, 'Études historiques,' p. 28.

[2376] Geijer, 'Svenska folkets historia,' in 'Samlade skrifter,' vol. v. p. 88.

[2377] Laband, 'Die rechtliche Stellung der Frauen im altrömischen und germanischen Recht,' in 'Zeitschr. für Völkerpsychologie und Sprachwissenschaft,' vol. iii. p. 154. Olivecrona, loc. cit. p. 150.

[2378] Friedberg, 'Das Recht der Eheschliessung,' pp. 33, 38.

[2379] Schmidt, 'Sitten und Gebräuche in Thüringen,' pp. 13, et seq.

[2380] Schrader, loc. cit. p. 381.

[2381] Cf. Rossbach, loc. cit. pp. 80, 87.

[2382] O'Curry, 'The Manners and Customs of the Ancient Irish,' Sullivan's Introduction, vol. i. pp. clxxiv. et seq.

[2383] Ewers, 'Das älteste Recht der Russen,' p. 226 (Russians). Macieiowski, loc. cit. vol. ii. p. 195 (Bohemians and Pomeranians). Krauss, loc. cit. p. 273 (South Slavonians). Kovalevsky, in 'Folk-Lore,' vol. i. pp. 478, et seq. Wolkov, in 'L'Anthropologie,' vol. ii. p. 168.

[2384] Krauss, p. 275.

[2385] Dalton, loc. cit. p. 28.

[2386] Bickmore, in 'Trans. Ethn. Soc.,' N. S. vol. vii. p. 20. Cf. Dixon, in 'Trans. As. Soc. Japan,' vol. xi. pt. i. p. 43.

[2387] v. Siebold, loc. cit. p. 31.

[2388] v. Martius, loc. cit. vol. i. pp. 109, et seq.

[2389] Petroff, loc. cit. p. 161.

[2390] Powers, loc. cit. p. 238.

[2391] Schweinfurth, loc. cit. vol. ii. p. 31. Post, 'Afrikanische Jurisprudenz,' vol. i. p. 355.

[2392] Lewin, loc. cit. p. 176.

[2393] Riedel, loc. cit. p. 270.

[2394] Le Mesurier, in 'Jour. Roy. As. Soc. Ceylon Branch,' vol. ix. p. 340. Cf. Emerson Tennent, loc. cit. vol. ii. p. 441; Knox, 'Historical Relation of the Island of Ceylon,' p. 126.

[2395] Hartshorne, in 'The Indian Antiquary,' vol. viii. p. 320.

[2396] Finsch, in 'Zeitschr. f. Ethnol.,' vol. xii. p. 317.

[2397] Kotzebue, loc. cit. vol. iii. p. 210. Cheyne, loc. cit. p. 119 (Bornabi).

[2398] 'Ymer,' vol. iv. p. 333.

[2399] Wilkes, loc. cit. vol. v. p. 101.

[2400] Ellis, 'Hawaii,' p. 414.

[2401] Angas, 'Polynesia,' p. 274.

[2402] Wilkes, vol. ii. p. 138. Prichard, loc. cit. p. 136. Turner, 'Samoa,' p. 93. Williams, 'Missionary Enterprises,' p. 538.

[2403] Cook, 'Voyage to the Pacific Ocean,' vol. ii. p. 157. Ellis, 'Polynesian Researches,' vol. i. p. 270. Waitz-Gerland, loc. cit. vol. vi. p. 126.

[2404] v. Langsdorf, loc. cit. vol. i. p. 153.

[2405] New Guinea (Bink, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. xi. p. 396. d'Albertis, loc. cit. vol. i. p. 396), New Britain (Romilly, loc. cit. p. 27. Powell, loc. cit. p. 84), Solomon Islands (Elton, in 'Jour. Anthr. Inst.,' vol. xvii. p. 95), New Hebrides (Macdonald, 'Oceania,' p. 194. Meinicke, 'Die Inseln des stillen Oceans,' vol. i. p. 203), New Caledonia (Moncelon, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. ix. p. 367), Fiji (Wilkes, vol. iii. p. 92. Cf., however, Williams and Calvert, loc. cit. pp. 144, et seq.), Tukopia (Waitz-Gerland, vol. v. pt. ii. p. 191), Melanesia in general (Codrington, loc. cit. p. 240).

[2406] Fison and Howitt, loc. cit. p. 343.

[2407] Peschel, loc. cit. pp. 209, et seq.

[2408] Labillardière, loc. cit. vol. ii. p. 276.

[2409] Weddell, loc. cit. p. 153.

[2410] Hawkesworth, loc. cit. vol. iii. p. 634; vol. i. p. 373.

[2411] Man, in 'Jour. Anthr. Inst.,' vol. xii. p. 340.

[2412] Koenigswarter, 'Études historiques,' p. 53.

[2413] Spencer, 'The Principles of Sociology,' vol. i. p. 625.

[2414] Sproat, loc. cit. p. 98.

[2415] Waitz-Gerland, loc. cit. vol. vi. p. 633.

[2416] Lubbock, 'The Origin of Civilisation,' p. 113.

[2417] Lewin, loc. cit. p. 182.

[2418] Smith, 'The Araucanians,' p. 215.

[2419] Dalton, loc. cit. p. 86.

[2420] Taylor, loc. cit. pp. 336, et seq.

[2421] Prejevalsky, 'Mongolia,' vol. ii. p. 121.

[2422] See ante, p. 40.

[2423] Aleuts (Bancroft, loc. cit. vol. i. p. 92), Achomâwi in California (Powers, loc. cit. p. 270), Araucanians (Alcedo-Thompson, loc. cit. vol. i. p. 416. Pöppig, 'Reise in Chile,' vol. i. pp. 383, et seq.), Samoans (Prichard, loc. cit. p. 139), Barea and Kunáma (Munzinger, loc. cit. p. 487), Kandhs (Percival, loc. cit. pp. 345, et seq.), Igorrotes of Ysarog (Jagor, loc. cit. p. 172), Samoyedes (Pallas, 'Merkwürdigkeiten der obischen Ostjakken, Samoyeden,' &c., p. 66).

[2424] Cf. d'Albertis, loc. cit. vol. i. pp. 395, 396, 414, et seq. (inhabitants of Naiabui in New Guinea, and of Yule Island); Jagor, loc. cit. p. 235 (Bisayans); McNair, loc. cit. p. 232 (Malays of Perak); Colquhoun, 'Amongst the Shans,' p. 178 (Burmese); Forsyth, loc. cit. p. 148 (Gonds); Vámbéry, 'Das Türkenvolk,' p. 230 (Central Asiatic Turks); Ahlqvist, 'Kulturwörter,' p. 203 (Turkish and Finnish peoples); Castrén, loc. cit. vol. iv. p. 126 (Ostyaks); Park, loc. cit. p. 220 (Mandingoes); Merolla da Sorrento, loc. cit. p. 235 (Negroes of Sogno).

[2425] Shooter, loc. cit. p. 49.

[2426] Bancroft, loc. cit. vol. i. p. 277. Cf. v. Weber, loc. cit. vol. ii. pp. 215, et seq. Kafirs.

[2427] Karok, Yurok (Powers, loc. cit. pp. 22, 56).

[2428] 'The Laws of Manu,' ch. iii. vv. 23-25.

[2429] Ibid., ch. iii. v. 51. Cf. ibid., ch. ix. vv. 93, 98.

[2430] 'The Laws of Manu,' ch. iii. v. 29.

[2431] Ibid., ch. iii. v. 53.

[2432] Cf. Jolly, 'Die rechtliche Stellung der Frauen bei den alten Indern,' in 'Sitzungsberichte der philosophisch-philologischen und historischen Classe der Akademie der Wissenschaften zu München,' 1876, p. 433.

[2433] Rossbach, loc. cit. pp. 92, 146, 248, 250, &c.

[2434] Grimm, loc. cit. p. 424.

[2435] Laferrière, 'Histoire du droit civil de Rome et du droit français,' vol. iii. p. 156. Koenigswarter, 'Études historiques,' p. 33.

[2436] Olivecrona, loc. cit. pp. 57, 152, 158.

[2437] Gans, loc. cit. vol. i. p. 138.

[2438] Kohler, in 'Zeitschr. f. vgl. Rechtswiss.,' vol. v. p. 359.

[2439] Cf. Topelius, in 'Litterära Soiréer,' 1850, p. 326.

[2440] 'Kalevala,' runo xviii. vv. 643, et seq. 'Kanteletar,' book iii. song viii. vv. 23-25.

[2441] Jamieson, in 'The China Review,' vol. x. p. 78, note *.

[2442] Koenigswarter, 'Études historiques,' p. 33. Idem, 'Histoire de l'organisation de la famille,' p. 123. Weinhold, 'Deutsche Frauen,' vol. i. p. 320.

[2443] Mayne, 'Hindu Law and Usage,' p. 82.

[2444] Smith, Wayte, and Marindin, 'Dictionary of Greek and Roman Antiquities,' vol. i. p. 691.

[2445] Medhurst, in 'Trans. Roy. As. Soc. China Branch,' vol. iv. pp. 11, et seq.

[2446] Küchler, in 'Trans. As. Soc. Japan,' vol. xiii. p. 123.

[2447] Tacitus, loc. cit. ch. xviii.

[2448] Grimm, loc. cit. p. 429.

[2449] 'The Laws of Manu,' ch. iii. v. 54.

[2450] Mayr, 'Das indische Erbrecht,' p. 170. Mayne, 'Hindu Law and Usage,' p. 82.

[2451] Dubois, loc. cit. p. 103.

[2452] Rossbach, loc. cit. p. 220. Hermann-Blümner, loc. cit. pp. 262, 266. Becker, loc. cit. vol. ii. p. 471.

[2453] Ginoulhiac, 'Histoire du régime dotal,' pp. 187, et seq. Laboulaye, 'Histoire du droit de propriété foncière en Occident,' pp. 403, et seq.

[2454] Tacitus, loc. cit. ch. xviii.

[2455] Olivecrona, loc. cit. p. 152. Weinhold, 'Deutsche Frauen,' vol. i. p. 325.

[2456] Ginoulhiac, pp. 198, et seq.

[2457] Olivecrona, p. 57.

[2458] In Germany and Switzerland, the practice of presenting a morning gift has been kept up till the present time (Eichhorn, 'Einleitung in das deutsche Privatrecht,' p. 726. Bluntschli, 'Staats-und Rechtsgeschichte der Stadt und Landschaft Zürich,' vol. ii. pp. 164, et seq.)

[2459] Schlyter, 'Juridiska afhandlingar,' vol. i. p. 201. Schlegel, 'Om Morgongavens Oprindelse,' in 'Astræa,' vol. ii. pp. 189, et seq. Koenigswarter, 'Histoire de l'organisation de la famille,' p. 123. The old purchase-money which the husband was obliged to give to the bride, was also represented by the fictitious dowry preserved in the rituals of the Church till the sixteenth century. M. Martene mentions a ritual of the Church of Reims, of 1585, in which the bridegroom, at the moment of putting the nuptial ring on the finger of the bride, placed three deniers in her hand (Koenigswarter, p. 174, note 4).

[2460] Ginoulhiac, p. 202. Warnkoenig and Stein, 'Französische Staats- und Rechtsgeschichte,' vol. ii. p. 257.

[2461] 'Ancient Laws of Ireland,' vol. i. p. 155; vol. iv. p. 63.

[2462] O'Curry, loc. cit. Sullivan's Introduction, vol. i. pp. clxxiii. et seq.

[2463] Schrader, loc. cit. p. 382. Cf. Kovalevsky, in 'Folk-Lore,' vol. i. pp. 479, et seq.

[2464] Herodotus, loc. cit. book i. ch. 196.

[2465] Saalschütz, 'Das mosaische Recht,' vol. ii. p. 736. Mayer, 'Die Rechte der Israeliten,' &c., vol. ii. pp. 342, et seq.

[2466] 'Genesis,' ch. xxiv. v. 53.

[2467] Robertson Smith, loc. cit. p. 98.

[2468] Ibid., pp. 78, 91, 100. Mayer, 'Die Rechte der Israeliten,' &c., vol. ii. pp. 353, et seq. Unger, loc. cit. p. 47. Kohler, in 'Zeitschr. f. vgl. Rechtswiss.,' vol. v. p. 358.

[2469] Bechuanas (Fritsch, loc. cit. p. 192), Aenezes (Burckhardt, loc. cit. p. 62). The Laplanders, according to Laestadius ('Ett lappfrieri,' in 'Svenska folkets seder,' p. 125), take presents for their daughters, but do not consider it honourable to receive money.

[2470] Schoolcraft, loc. cit. vol. v. p. 654.

[2471] Sproat, loc. cit. p. 98.

[2472] Musters, in 'Jour. Anthr. Inst.,' vol. i. p. 201.

[2473] Cooper, loc. cit. p. 236. Griffith, loc. cit. p. 35.

[2474] Riedel, loc. cit. p. 68.

[2475] Schadenberg, in 'Zeitschr. f. Ethnol.,' vol. xvii. p. 12.

[2476] Munzinger, loc. cit. p. 387.

[2477] Harkness, loc. cit. pp. 116, et seq.

[2478] Tuski (Dall, loc. cit. p. 381), Thlinkets (Holmberg, in 'Acta Soc. Sci. Fennicæ,' vol. iv. p. 315), Chinooks (Waitz, loc. cit. vol. iii. p. 337), Chippewas (Keating, loc. cit. vol ii. p. 157), Shoshones (Lewis and Clarke, loc. cit. p. 307), Miwok (Powers, loc. cit. p. 354), Quiché (Morelet, loc. cit. p. 257), Budduma, Tedâ (Nachtigal, loc. cit. vol. ii. pp. 370, 448), Todas (Marshall, loc. cit. p. 211), Central Asiatic Turks (Vámbéry, 'Das Türkenvolk,' pp. 233, et seq.), Laplanders (v. Düben, loc. cit. p. 200), Papuans of Dorey (Finsch, 'Neu-Guinea,' p. 102), Samoans (Prichard, loc. cit. pp. 139, et seq. Turner, 'Samoa,' pp. 93, 96), Nukahivans (v. Langsdorf, loc. cit. vol. i. p. 153).

[2479] Bancroft, loc. cit. vol. i. p. 66. Seemann, 'Voyage of Herald,' vol. ii. p. 66.

[2480] Schoolcraft, loc. cit. vol. iii. p. 238.

[2481] Azara, loc. cit. vol. ii. p. 92. For other similar instances, see Waitz, loc. cit. vol. ii. p. 522 (Somals); Munzinger, loc. cit. p. 324 (Beni-Amer); Baker, 'The Nile Tributaries,' p. 124 (Arabs of Upper Egypt); Hanoteau and Letourneux, loc. cit. vol. ii. p. 161 (Kabyles); Proyart, loc. cit. p. 569 (Negroes of Loango); Caillié, loc. cit. vol. i. p. 349 (Mandingoes); Fritsch, loc. cit. p. 192 (Bechuanas).

[2482] Crawfurd, loc. cit. vol. i. p. 90.

[2483] Moore, loc. cit. p. 181.

[2484] Burckhardt, loc. cit. p. 62.

[2485] 'Ymer,' vol. iv. p. 333.

[2486] Cooper, loc. cit. p. 236.

[2487] Georgi, loc. cit. p. 182.

[2488] Ibid., p. 55.

[2489] Negroes of Accra (Daniell, in 'Jour. Ethn. Soc. London,' vol. iv. p. 12), Tartars of Kazan (Vámbéry, 'Das Türkenvolk,' p. 433) and Orenburg (Georgi, p. 103), Tunguses (ibid., p. 324), and other semi-civilized peoples belonging to the Russian Empire. For African peoples, see Post, 'Afrikanische Jurisprudenz,' vol. i. p. 417.

[2490] Munzinger, loc. cit. p. 240.

[2491] 'The Laws of Manu,' ch. ix. vv. 194, et seq.

[2492] In Gautama's time, however, the 'çulka,' did not belong to the 'strîdhan' (Mayr, 'Das indische Erbrecht,' p. 170).

[2493] Macnaghten, 'Principles of Hindu Law,' pp. 33, et seq. Steele, loc. cit. p.67.

[2494] Cauvet, in 'Revue de législation,' vol. xxiv. p. 154.

[2495] Cauvet, in 'Revue de législation,' vol. xxiv. p. 155. Meier and Schömann, 'Der attische Process,' pp. 518, et seq. Mayer, 'Die Rechte der Israeliten,' &c., vol. ii. pp. 345, et seq. Hermann-Blümner, loc. cit. p. 265. Smith, Wayte, and Marindin, loc. cit. vol. i. p. 692.

[2496] Potter, 'Archaeologia Graeca,' vol. ii. p. 273.

[2497] Ginoulhiac, loc. cit. p. 70. Sohm, 'Institutionen des römischen Rechts,' p. 281. Laboulaye, 'Recherches sur la condition des femmes,' P. 38.

[2498] Laboulaye, p. 39. Ginoulhiac, loc. cit. p. 70. Laferrière, loc. cit. vol. i. p. 223.

[2499] Laboulaye, 'Recherches,' pp. 39-41. Idem, 'Histoire du droit de propriété foncière,' pp. 183-185. Smith, Wayte, and Marindin, vol. i. p. 693. Sohm, p. 282.

[2500] Maine, 'Early History of Institutions,' pp. 338.

[2501] Eccius, in v. Holtzendorff, 'Encyclopädie der Rechtswissenschaft,' pt. ii. vol. i. pp. 412, et seq.

[2502] Weinhold, 'Deutsche Frauen,' vol. i. p. 331. Idem, 'Altnordisches Leben,' pp. 241, et seq.

[2503] Olivecrona, loc. cit. p. 51. Nordström, loc. cit. vol. ii. p. 50.

[2504] Macieiowski, loc. cit. vol. ii. pp. 214-218.

[2505] O'Curry, loc. cit. Sullivan's Introduction, vol. i. pp. clxxii., clxxviii. Lewis, loc. cit. pp. 8, et seq.

[2506] Mayer, 'Die Rechte der Israeliten,' &c., vol. ii. pp. 342-344.

[2507] Macnaghten, 'Principles of Muhammadan Law,' p. xxxv. Lane, loc. cit. vol. i. p. 218.

[2508] Lane, vol. i. p. 138, note †.

[2509] Acosta, loc. cit. vol. ii. p. 370.

[2510] Kenai (Richardson, loc. cit. vol. i. p. 407), Thlinkets (Holmberg, in 'Acta Soc. Sci. Fennicæ,' vol. iv. p. 315), Ahts (Bancroft, loc. cit. vol. i. p. 197), Creeks (Hawkins, in 'Trans. American Ethn. Soc.,' vol. iii. pt. i. p. 66), Kingsmill

Islanders (Wilkes, loc. cit. vol. v. p. 101), Siamese (Moore, loc. cit. p. 169), Kukis (Lewin, loc. cit. p. 254), Abyssinians (Lobo, loc. cit. p. 26), people of Madagascar (Rochon, loc. cit. p. 747), Touaregs (Chavanne, 'Die Sahara,' p. 181).

[2511] Cf. Heriot, loc. cit. p. 335 (North American Indians); Ellis, 'Polynesian Researches,' vol. i. p. 270 (Tahitians); Waitz, loc. cit. vol. ii. p. 110 (Negroes); Burton, 'The Lake Regions of Central Africa,' vol. ii. p. 332 (East Africans); Post, 'Afrikanische Jurisprudenz,' vol. i. p. 376 (several African peoples); Huc, loc. cit. vol. i. p. 185 (Tartars); Georgi, loc. cit. pp. 67, et seq. (Voguls).

[2512] Cf. Nordenskiöld, 'Grönland,' p. 508 (Greenlanders); v. Martius, loc. cit. vol. i. p. 115 (Brazilian aborigines); Bove, loc. cit. p. 132 (Fuegians); Waitz, loc. cit. vol. ii. p. 522 (Somals); Marshall, loc. cit. p. 212 (Todas); Prejevalsky, 'Mongolia,' vol. i. p. 70 (Mongols); Pallas, 'Merkwürdigkeiten der Morduanen, Kasaken,' &c., p. 262 (Kalmucks); Post, 'Die Anfänge des Staats-und Rechtsleben,' pp. 54, et seq.

[2513] Cf. Last, in 'Proc. Roy. Geo. Soc.,' N. S. vol. v. p. 532 (Masai); Metz, loc. cit. p. 87 (Badagas); Davy, loc. cit. p. 286 (Sinhalese).

[2514] It is remarkable that dowry is unknown among the Chinese, whereas, in the wild aboriginal tribes of China, it is usual for wives among the wealthy families to receive marriage portions (Gray, loc. cit. vol. ii. p. 304).

[2515] Mayer, 'Die Rechte der Israeliten,' vol. ii. p. 344.

[2516] 'The Korân,' sura iv. v. 3.

[2517] Potter, loc. cit. vol. ii. p. 268. Cauvet, in 'Revue de législation,' vol. xxiv. p. 152. Cf. Meier and Shömann, loc. cit. pp. 513, et seq.

[2518] Isaeus, 'περὶ τοῦ Πυῤῥου κλήρου,' § 51, p. 43.

[2519] Aristotle, loc. cit. book ii. ch. ix. § 11.

[2520] Laboulaye, 'Recherches,' pp. 38, et seq. Ginoulhiac, loc. cit. pp. 66, et seq. Meier and Schömann, pp. 513, et seq.

[2521] Smith, Wayte, and Marindin, loc. cit. vol. i. p. 693. Mayer, 'Die Rechte der Israeliten,' &c., vol. ii. p. 347.

[2522] Ginoulhiac, loc. cit. p. 103.

[2523] For dos necessaria in Germany during the Middle Ages, see Mittermaier, 'Grundsätze des gemeinen deutschen Privatrechts,' vol. ii. p. 3.

[2524] Eccius, in v. Holtzendorff, 'Encyclopädie der Rechtswissenschaft,' pt. ii. vol. i. p. 414.

[2525] 'Code Napoléon,' art. 204.

[2526] Maine, 'Early History of Institutions,' p. 339.

[2527] Euripides, 'Μήδεια,' vv. 231-235.

[2528] Hall, loc. cit. p. 567. Cf. Lyon, loc. cit. p. 352; Dall, loc. cit. p. 139.

[2529] Schoolcraft, loc. cit. vol. iv. p. 223.

[2530] Ibid., vol. ii. p. 132.

[2531] Kaniagmuts (Lisiansky, loc. cit. pp. 198, et seq.), Aleuts (Coxe, loc. cit. p. 230. v. Langsdorf, loc. cit. vol. ii. p. 47. Bancroft, loc. cit. vol. i. p. 92), Mahlemuts (Bancroft, vol. i. p. 81), Chippewyans (Richardson, loc. cit. vol. ii. p. 24), Chippewas (Keating, loc. cit. vol. ii. p. 157), Creeks (Schoolcraft, loc. cit. vol. v. p. 268), Moxes, Iroquois (Heriot, loc. cit. pp. 326, 332), Navajos (Letherman, in 'Smith. Rep.,' 1855, p. 294), Arawaks (Brett, loc. cit. p. 101), Muras (Wallace, 'Travels on the Amazon,' p. 512), Tupis, Chiriguana (Waitz, loc. cit. vol. iii. pp. 422, et seq.), Patagonians (Falkner, loc. cit. p. 124), Fuegians (Bove, loc. cit. p. 132).

[2532] Finsch, 'Neu-Guinea,' p. 62.

[2533] Elton, in 'Jour. Anthr. Inst.,' vol. xvii. p. 94.

[2534] Breton, loc. cit. p. 398.

[2535] Curr, loc. cit. vol. i. p. 107.

[2536] St. Andrew St. John, in 'Jour. Anthr. Inst.,' vol. ii. p. 239.

[2537] Dalton, loc. cit. p. 57.

[2538] Ibid., p. 19.

[2539] Dall, loc. cit. p. 524.

[2540] 'Das Ausland,' 1881, p. 1026.

[2541] Schön and Crowther, 'Journals,' p. 162.

[2542] Wilson and Felkin, loc. cit. vol. ii. p. 49.

[2543] Tartars (Huc, loc. cit. vol. i. p. 186), people of Bornu (Barth, 'Reisen,' vol. iii. p. 31, note), Bazes (Munzinger, loc. cit. p. 525), Copts (Lane, loc. cit. vol. ii. p. 331).

[2544] Bent, 'The Cyclades,' p. 137.

[2545] Bakongo (Möller, Pagels, and Gleerup, loc. cit. p. 270), &c.

[2546] Tuski, Kaniagmuts (Dall, pp. 381, 402), &c.

[2547] Post, 'Die Grundlagen des Rechts,' p. 240.

[2548] Waitz, loc. cit. vol. iii. p. 105. See Lippert, 'Kulturgeschichte,' vol. ii. pp. 141, et seq.; Mantegazza, 'Geschlechtsverhältnisse des Menschen,' ch. xiii.

[2549] Dalton, loc. cit. p. 216.

[2550] Wilken, in 'Bijdragen,' &c., ser. v. vol. iv. p. 405.

[2551] Sibree, loc. cit. p. 251. Dubois, loc. cit. p. 107. v. Schroeder, loc. cit. p. 82. Mantegazza, p. 287. de Gubernatis, 'Storia comparata degli usi nuziali,' p. 168.

[2552] v. Eschwege, 'Journal von Brasilien,' vol. i. p. 96.

[2553] Küchler, in 'Trans. As. Soc. Japan,' vol. xiii. p. 115. For instances of eating and drinking together as a marriage ceremony, see Wilken, in 'Bijdragen,' &c., ser. v. vol. iv. pp. 387-405; v. Schroeder, pp. 82-84; Riedel, loc. cit. p. 460; Winternitz, 'On a Comparative Study of Indo-European Customs,' in 'Trans. Intern. Folk-Lore Congress, 1891,' pp. 280, et seq.; de Gubernatis, p. 168.

[2554] v. Schroeder, p. 84.

[2555] Winternitz, loc. cit. p. 282. Cf. Haas, 'Die Heirathsgebräuche der alten Inder,' in Weber, 'Indische Studien,' vol. v. pp. 310, et seq. (Hindus).

[2556] Wilken, in 'Bijdragen,' ser. v. vol. iv. p. 409.

[2557] Low, cited by Wilken, in 'Bijdragen,' ser. v. vol. iv. p. 409.

[2558] Steel, 'On the Khasia Tribe,' in 'Trans. Ethn. Soc.,' N.S. vol. vii. p. 308.

[2559] Bailey, ibid., N.S. vol. ii. pp. 293, et seq.

[2560] Colebrooke, 'The Religious Ceremonies of the Hindus,' in 'Asiatick Researches,' vol. vii. p. 309.

[2561] Forsyth, loc. cit. p. 149.

[2562] Lubbock, 'The Origin of Civilisation,' p. 84. Cf. Finsch, 'Neu-Guinea,' p. 86 (Wukas of New Guinea).

[2563] Dalton, loc. cit. pp. 131, 220, 319.

[2564] Taplin, loc. cit. p. 12.

[2565] Soyaux, loc. cit. p. 161. Cf. Waitz, loc. cit. vol. iii. p. 392 (Arawaks).

[2566] Forbes, 'Dahomey and the Dahomans,' vol. i. p. 26.

[2567] Krauss, loc. cit. p. 385.

[2568] Meiners, 'Vergleichung des ältern und neuern Russlandes,' vol. ii. pp. 167, et seq.

[2569] The wedding-ring was in use among the ancient Hindus (Haas, in Weber, 'Indische Studien,' vol. v. p. 299). According to Mr. Hooper (loc. cit. p. 390), it is also found among the Indians of James's Bay.

[2570] Turner, 'Samoa,' p. 290.

[2571] Bock, 'The Head-Hunters of Borneo,' p. 222.

[2572] Forsyth, loc. cit. p. 150.

[2573] Heriot, loc. cit. p. 334.

[2574] Wilkes, loc. cit. vol. iii. p. 91.

[2575] Ibid., vol. iii. p. 92. This description, however, does not agree with those given by Williams and Erskine (see Waitz-Gerland, loc. cit. vol. vi. p. 632).

[2576] Ellis, 'Polynesian Researches,' vol. i. p. 271.

[2577] Wilkes, loc. cit. vol. v. p. 101.

[2578] Stewart, in 'Jour. As. Soc. Bengal,' vol. xxiv. pp. 639, et seq.

[2579] Lewin, loc. cit. p. 129.

[2580] Dalton, loc. cit. p. 64.

[2581] Meyer, in 'Verhandl. Berl. Ges. Anthr.,' 1883, p. 385.

[2582] Vámbéry, 'Das Türkenvolk,' p. 161.

[2583] Klemm, 'Cultur-Geschichte,' vol. iii. pp. 169, et seq. For other instances of religious marriage ceremonies, see ibid., vol. iii. p. 281 (Negroes of Congo); Georgi, loc. cit. p. 41 (Chuvashes); Bock, 'Temples and Elephants,' p. 307 (Mussus); Turner, 'Samoa,' p. 276 (Humphrey's Islanders).

[2584] Bock, 'Temples and Elephants,' p. 183.

[2585] Lewin, p. 175.

[2586] Gonds, Kúrmis (Dalton, pp. 201, 319), &c.

[2587] Prejevalsky, 'Mongolia,' vol. i. p. 70.

[2588] Vámbéry, 'Das Türkenvolk,' pp. 339, 459, et seq.

[2589] Sinhalese (Davy, loc. cit. p. 285), Naickers (Kearns, 'Kalyán'a Shat'anku,' p. 54), Gonds and Korkús (Forsyth, loc. cit. p. 149), Khyoungtha (Lewin, loc. cit. pp. 126, et seq.), Siamese (Bock, 'Temples and Elephants,' p. 183), Kalmucks (Georgi, loc. cit. p. 411), Chinese (Wells Williams, loc. cit. vol. i. p. 785), Japanese (Küchler, in 'Trans. As. Soc. Japan,' vol. xiii. p. 121), ancient Mexicans (Waitz, loc. cit. vol. iv. p. 132). In this connection should also be noticed the 'lucky days,' when matrimony in general is concluded under the best auspices. In China, these are especially marked in the almanacks (Montgomery, loc. cit. vol. ii. p. 268). The spring season and the last month in the year are regarded as the most fortunate nuptial periods in that country (Wells Williams, vol. i. p. 791), whereas the ninth month is considered very unpropitious (Gray, loc. cit. vol. i. p. 187). Among the Bedouins of Mount Sinai (Burckhardt, loc. cit. p. 152), the Egyptians (Lane, loc. cit. vol. i. pp. 222, et seq.), and the Mohammedan negroes of Senegambia (Reade, loc. cit. p. 453), Friday is esteemed the most fortunate day for marriage; while the Copts generally marry on the night preceding Sunday (Lane, vol. ii. p. 331). In India, the month Phalguna was considered the luckiest period (v. Bohlen, loc. cit. vol. ii. p. 148), and in Morocco, as I am informed by Dr. Churcher, the month called Moolood (birth of Mohammed). Again, in Thuringia, marriages are generally contracted at the time of the full moon (Schmidt, 'Sitten und Gebräuche in Thüringen,' p. 28); whilst in Orkney and Esthonia, no couple would consent to marry except at the time of the crescent moon. The same superstition prevailed among the ancient Hindus, Greeks, and Germans (v. Schroeder, loc. cit. p. 50). In Scotland, formerly, nearly all avoided contracting marriage in May, and the Lowlanders were disinclined to marry on Friday (Rogers, loc. cit. p. 112). The Romans considered May and the first half of June an unlucky period (Rossbach, loc. cit. p. 265). In Egypt, it is a common belief that, if any one make a marriage contract in the month of Moharram, the marriage will be unhappy and soon dissolved, hence few persons do so (Lane, vol. i. p. 219, note *). For 'unlucky days' among the tribes of the Indian Archipelago, see Wilken, in 'Bijdragen,' &c., ser. v. vol. i. p. 380.

[2590] Acosta, loc. cit. vol. ii. p. 370.

[2591] Waitz, loc. cit. vol. iv. p. 366.

[2592] Ibid., vol. iv. p. 317. de Herrera, loc. cit. vol. iv. p. 172.

[2593] Heriot, loc. cit. p. 333.

[2594] Fytche, loc. cit. vol. ii. p. 70.

[2595] Tartars (Huc, loc. cit. vol. i. p. 186), Siamese (Bock, 'Temples and Elephants,' p. 185), Kalmucks (Liadov, in 'Jour. Anthr. Inst.,' vol. i. p. 403). In

Japan, on the other hand, the marriage ceremony is entirely of a social nature, no religious element entering into it at all (Küchler, in 'Trans. As. Soc. Japan,' vol. xiii. p. 123).

[2596] Gray, loc. cit. vol. i. p. 205.

[2597] Ewald, loc. cit. pp. 201, et seq. Cf. Gans, loc. cit. vol. i. p. 140; Frankel, loc. cit. p. xxx.

[2598] Pischon, 'Der Einfluss der Islâm,' &c., p. 10. For the modern Persians, see Polak, loc. cit. vol. i. pp. 210, et seq.

[2599] Glasson, loc. cit. p. 154.

[2600] Revillout, 'Les contrats de mariage égyptiens,' in 'Journal Asiatique,' ser. vii. vol. x. p. 262.

[2601] Spiegel, loc. cit. vol. iii. p. 677.

[2602] Haas, in Weber, 'Indische Studien,' vol. v. pp. 312-316. Colebrooke, in 'Asiatick Researches,' vol. vii. pp. 288-310.

[2603] Macnaghten, 'Principles of Hindu Law,' p. 46. Cf. Rossbach, loc. cit. p. 202; Colebrooke, pp. 288-311.

[2604] Jacobs, 'Vermischte Schriften,' vol. iv. pp. 180-182. Potter, loc. cit. vol. ii. p. 279.

[2605] Rossbach, pp. 222, et seq. For other facts stated, see Becker, loc. cit. vol. i. p. 457; Palmblad, loc. cit. vol. ii. pp. 258, et seq.; Rossbach, pp. 212, 218, 223, 228.

[2606] Weinhold, 'Deutsche Frauen,' vol. i. p. 374. Rossbach, p. 231.

[2607] Rossbach, p. 111.

[2608] Rossbach, loc. cit. pp. 121, 122, 128, 143.

[2609] Ibid., pp. 294, et seq.

[2610] Ibid., p. 237.

[2611] Ibid., p. 310.

[2612] Ibid., pp. 112, 186.

[2613] Ibid., pp. 102, et seq.

[2614] Ibid., pp. 256, et seq.

[2615] Grimm, loc. cit. pp. 434, et seq. Eichhorn, 'Deutsche Staats-und Rechtsgeschichte,' §§ 108, 183.

[2616] St. Paul, 'Ephesians,' ch. v. v. 32.

[2617] v. Scheurl, 'Das gemeine deutsche Eherecht,' p. 15.

[2618] Glasson, loc. cit. p. 253.

[2619] Ibid., p. 282.

[2620] Garcilasso de la Vega, loc. cit. vol. i. pp. 306, et seq.

[2621] Squier, in 'Trans. American Ethn. Soc.,' vol. iii. pt. i. p. 127.

[2622] Powers, loc. cit. p. 157.

[2623] Lisiansky, loc. cit. p. 83.

[2624] Olivecrona, loc. cit. pp. 47, 160, et seq.

[2625] Powers, loc. cit. pp. 22, et seq. Cf. Sibree, loc. cit. p. 251 (Hovas); Conder, in 'Jour. Anthr. Inst.,' vol. xvi. p. 94 (Bechuanas).

[2626] Rossbach, loc. cit. p. 42.

[2627] Schoolcraft, loc. cit. vol. v. pp. 654, et seq.

[2628] Spencer, 'Descriptive Sociology,' Ancient Mexicans, &c., p. 4.

[2629] Bancroft, loc. cit. vol. ii. p. 265.

[2630] Garcilasso de la Vega, loc. cit. vol. i. p. 310.

[2631] Rein, loc. cit. p. 423. Küchler, in 'Trans. As. Soc. Japan,' vol. xiii, p. 129.

[2632] Ross, loc. cit. p. 315.

[2633] 'Genesis,' ch. xxvi. v. 34; ch. xxix. vv. 23-28.

[2634] 'i. Kings,' ch. xi. v. 3.

[2635] 'ii. Chronicles,' ch. xi. vv. 21, 23.

[2636] 'Deuteronomy,' ch. xxi. v. 15. Scheppig, in Spencer, 'Descriptive Sociology,' Hebrews and Phœnicians, p. 8.

[2637] Andree, loc. cit. p. 147.

[2638] Ibid., pp. 147-149. Polak, loc. cit. vol. i. p. 209.

[2639] 'The Korân,' sura iv. v. 3.

[2640] Lane Poole, in 'The Academy,' vol. v. p. 684.

[2641] 'Das Ausland,' 1875, p. 958. d'Escayrac de Lauture, loc. cit. p. 68.

[2642] Diodorus Siculus, loc. cit. book i. ch. 80.

[2643] Wilkinson, loc. cit. vol. i. pp. 318, et seq.

[2644] Rawlinson, 'The Five Great Monarchies of the Ancient Eastern World,' vol. i. p. 505.

[2645] Rawlinson, loc. cit. vol. ii. p. 319.

[2646] Ibid., vol. iii. pp. 216-219. Herodotus, loc. cit. book iii. ch. 68, 88. Spiegel, loc. cit. vol. iii. p. 680.

[2647] Jolly, in 'Sitzungsberichte Münch. Akad.,' 1876, p. 445.

[2648] Schrader, loc. cit. p. 387. Zimmer, loc. cit. pp. 324, et seq.

[2649] 'The Laws of Manu,' ch. iii. v. 12; ch. viii. v. 204; ch. ix. vv. 85-87.

[2650] Balfour, loc. cit. vol. iii. p. 252.

[2651] Becker, loc. cit. vol. ii. pp. 438, et seq. Jacobs, 'Vermischte Schriften,' vol. iv. pp. 215, et seq.

[2652] 'The Iliad,' book xxi. v. 88. Grote, 'History of Greece,' vol. ii. p. 25, note 2.

[2653] Smith, Wayte, and Marindin, loc. cit. vol. i. p. 525.

[2654] Palmblad, loc. cit. vol. i. p. 256.

[2655] Rossbach, loc. cit. p. 5.

[2656] Tacitus, loc. cit. ch. xviii.

[2657] Geijer, loc. cit. vol. v. p. 88. 'The Heimskringla' (transl. by Laing and Anderson), vol. i. p. 127.

[2658] 'The Heimskringla,' vol. i. pp. 127, et seq.

[2659] Ewers, loc. cit. p. 106.

[2660] Gottlund, 'Otava,' vol. i. p. 92. Topelius, loc. cit. p. 45. Tengström, in 'Joukahainen,' vol. ii. pp. 130, et seq.

[2661] Thierry, 'Narratives of the Merovingian Era,' pp. 17-21. Hallam, 'Europe during the Middle Ages,' vol. i. p. 420, note 2.

[2662] Spencer, 'The Principles of Sociology,' vol. i. p. 665.

[2663] v. Hellwald, loc. cit. p. 558.

[2664] Saalschütz, 'Archäologie der Hebräer,' vol. ii. p. 204, note.

[2665] 'Emin Pasha in Central Africa,' p. 85.

[2666] Serpa Pinto, 'How I crossed Africa,' vol. ii. p. 33.

[2667] Williams, 'Missionary Enterprises,' p. 557.

[2668] Catlin, loc. cit. vol. i. p. 118.

[2669] Reade, loc. cit. p. 44.

[2670] Heriot, loc. cit. p. 323.

[2671] Morgan, 'League of the Iroquois,' p. 324.

[2672] Wilkes, loc cit. vol. v. p. 188. Powers, loc. cit. p. 56.

[2673] Powers, p. 22.

[2674] Domenech, 'Seven Years' Residence in the Deserts of North America,' vol. ii. p. 305.

[2675] Schoolcraft, loc. cit. vol. iv. p. 87. Bancroft, loc. cit. vol. i. p. 661.

[2676] Acawoios (Brett, loc. cit. p. 275), Chavantes, Carajos (v. Martius, loc. cit. vol. i. pp. 274, 298), Curetús, Purupurús, Mundrucûs (Wallace, 'Travels on the Amazon,' pp. 509, 515-517), Guaycurûs (Waitz, loc. cit. vol. iii. p. 472).

[2677] Glas, loc. cit. p. 818. Bontier and Le Verrier, loc. cit. Major's Introduction, p. xxxix.

[2678] Price, 'The Quissama Tribe,' in 'Jour. Anthr. Inst.,' vol. i. p. 189. Chavanne, 'Die Sahara,' p. 315.

[2679] Chavanne, p. 454.

[2680] Bailey, in 'Trans. Ethn. Soc.,' N. S. vol. ii. pp. 291, et seq. Hartshorne, in 'The Indian Antiquary,' vol. viii. p. 320.

[2681] Man, in 'Jour. Anthr. Inst.,' vol. xii. p. 135.

[2682] Distant, in 'Jour. Anthr. Inst.,' vol. iii. p. 4.

[2683] Dalton, loc. cit. p. 91. Stewart, in 'Jour. As. Soc. Bengal,' vol. xxiv. p. 621.

[2684] Dalton, pp. 28, 54. Jellinghaus, in 'Zeitschr. f. Ethnol.,' vol. iii. p. 370.

[2685] Harkness, loc. cit. p. 117. Dalton, pp. 41, 132. Rowney, loc. cit. p. 145.

[2686] Lewin, loc. cit. pp. 193, 235, et seq.

[2687] Man, 'Sonthalia,' p. 15.

[2688] Smeaton, 'The Loyal Karens of Burma,' p. 81.

[2689] Kadams, Ka-káu (Colquhoun, 'Amongst the Shans,' pp. 72, 80), Mantras (Bourien, in 'Trans. Ethn. Soc.,' N. S. vol. iii. p. 80), Italones of the

Philippines (Blumentritt, loc. cit. p. 33), Galela (Riedel, in 'Zeitschr. f. Ethnol.,' vol. xvii. p. 77). In Sumatra, a man married by 'semando,' i.e., a regular treaty between the parties on the footing of equality, cannot take a second wife without repudiating the first one (Marsden, loc. cit. pp. 263, 270).

[2690] Sea Dyaks (Low, loc. cit. p. 195), the Rejang tribe of the Milanowes in Borneo (ibid., p. 342), Kyans of Baram (St. John, loc. cit. vol. i. p. 113), Alfura of Letti (Bickmore, loc. cit. p. 125), Watubela Islanders (Riedel, loc. cit. p. 206).

[2691] Meyer, in 'Verhandl. Berl. Ges. Anthr.,' 1883, p. 385. Cf. Foreman, loc. cit. p. 216 (Tinguianes of the Philippines).

[2692] Low, p. 300.

[2693] Hickson, loc. cit. p. 277.

[2694] Waitz-Gerland, loc. cit. vol. vi. p. 128.

[2695] Finsch, 'Neu-Guinea,' p. 101. Earl, loc. cit. p. 81.

[2696] Curr, loc. cit. vol. i. p. 402.

[2697] Ibid., vol. ii. p. 371.

[2698] Ibid., vol. ii. p. 378.

[2699] Certain Californians (Waitz, vol. iv. p. 243), Calidonian Indians (Gisborne, loc. cit. p. 155), Chiriguana, Jabaána, Paravilhana (v. Martius, loc. cit. vol. i. pp. 217, 627, 632), Guaranies (Southey, loc. cit. vol ii. pp. 368, et seq.).

[2700] Waitz, loc. cit. vol. iv. p. 416.

[2701] v. Siebold, loc. cit. p. 31.

[2702] Campbell, 'A Year in the New Hebrides,' p. 143.

[2703] Maclean, loc. cit. p. 44.

[2704] Last, in 'Proceed. Roy. Geo. Soc.,' N. S. vol. v. p. 533.

[2705] Phillips, in 'Jour. Anthr. Inst.,' vol. xvii. p. 225.

[2706] Proyart, loc. cit. pp. 568, et seq.

[2707] Waitz, vol. ii. p. 108. Chavanne, 'Reisen und Forschungen im Kongostaate,' pp. 398, et seq. (Bafióte tribe). Grade, in 'Aus allen Welttheilen,' vol. xx. p. 6 (people of the Togoland).

[2708] Barrow, loc. cit. vol. i. p. 206. Lichtenstein, loc. cit. vol. i. pp. 261, et seq.

[2709] Holub, loc. cit. vol. i. p. 302.

[2710] Thunberg, loc. cit. p. 141. Kretzschmar, loc. cit. p. 209.

[2711] Archdeacon Hodgson, in a letter.

[2712] Barth, 'Reisen,' vol. iv. p. 497.

[2713] Nachtigal, loc. cit. vol. i. p. 447.

[2714] Munzinger, loc. cit. p. 248.

[2715] Ibid., p. 326.

[2716] Takue, Bazes (ibid., pp. 209, 524), Arabs and Berbs of Morocco (Rohlfs, 'Mein erster Aufenthalt in Marokko,' p. 68).

[2717] Honateau and Letourneux, loc. cit. vol. ii. p. 167.

[2718] Lane, loc. cit. vol. i. p. 252.

[2719] Munzinger, p. 326.

[2720] d'Escayrac de Lauture, loc. cit. p. 250. Pischon, loc. cit. p. 13. Burton, 'Sindh Revisited,' vol. i. p. 340. Burckhardt, loc. cit. pp. 61, 158 (Arabs). Polak, loc. cit. vol. i. p. 209 (Persians).

[2721] Amír' Alí, loc. cit. pp. 29, et seq.

[2722] Balfour, loc. cit. vol. iii. p. 251. Rowney, loc. cit. pp. 68, 158 (Kols, Abors). Dalton, loc. cit. pp. 110, 216 (Tipperahs, Santals). Shortt, in 'Trans. Ethn. Soc.,' N. S. vol. vii. p. 282 (Kotars). Watt, in 'Jour. Anthr. Inst.,' vol. xvi. p. 355 (Kaupuis). Forsyth, loc. cit. p. 148 (Gonds and Korkús). Fytche, loc. cit. vol. ii. p. 74 (Burmese). Bock, 'Temples and Elephants,' p. 186 (Laosians). Colquhoun, 'Amongst the Shans,' p. 292 (Shans). Buddhism disapproves of polygyny, though it does not wholly prohibit it (Fytche, vol. ii. pp. 73, et seq.).

[2723] Gray, loc. cit. vol. i. p. 184.

[2724] Kirghiz (Finch, 'Reise nach West-Sibirien,' p. 167), Galchas (de Ujfalvy, 'Le Kohistan,' p. 16), Kalmucks (Pallas, 'Merkwürdigkeiten der Morduanen, Kasaken, Kalmücken,' &c., pp. 263, et seq.), Tartars, Tunguses, Kamchadales (Georgi, loc. cit. pp. 103, 116, 118, 324, 341), Chukchi (Nordenskiöld, 'Vergas färd kring Asien och Europa,' vol. ii. p. 142), Samoyedes ('Ymer,' vol. iii. p. 144), Ostyaks (Latham, 'Descriptive Ethnology,' vol. i. p. 457), Mordvins and Cheremises ('Äbo Tidningar,' 1794, no. 51), Ossetes (v. Haxthausen, 'Transcaucasia,' p. 402), &c.

[2725] Crawfurd, loc. cit. vol. i. pp. 76, et seq.

[2726] Raffles, 'The History of Java,' vol. i. p. 81. Low, loc. cit. p. 147. Boyle, loc. cit. pp. 25, et seq. Marsden, loc. cit. p. 270. Wilken, 'Verwantschap,' p. 40, note 1. Forbes, in 'Jour. Anthr. Inst.,' vol. xiv. p. 124. Schadenberg, quoted by Blumentritt, loc. cit. p. 7.

[2727] Curr, loc. cit. vol. ii. pp. 196, 361; vol. iii. p. 36. Freycinet, loc. cit. vol. ii. p. 766. Hodgson, loc. cit. p. 213. Cameron, in 'Jour. Anthr. Inst.,' vol. xiv. p. 352. Bonney, ibid., vol. xiii. p. 135. Bonwick, ibid., vol. xvi. p. 205. Waitz-Gerland, loc. cit. vol. vi. p. 771.

[2728] Curr, vol. i. p. 252.

[2729] Brough Smyth, loc. cit. vol. ii. p. 386. Bonwick, 'Daily Life,' p. 71. Calder, 'The Native Tribes of Tasmania,' in 'Jour. Anthr. Inst.,' vol. iii. p. 22.

[2730] Dieffenbach, loc. cit. vol. ii. p. 37.

[2731] Ellis, 'Tour through Hawaii,' p. 414. Cf. Lisiansky, loc. cit. p. 128.

[2732] New Guinea (Finsch, 'Neu-Guinea,' p. 82. Lawes, in 'Proceed. Roy. Geo. Soc.,' N. S. vol. ii. p. 614. Stone, 'A Few Months in New Guinea,' p. 93. Thomson, 'British New Guinea,' p. 193. Bink, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. xi. p. 396. Kohler, in 'Zeitschr. f. vgl. Rechtswiss.,' vol. vii. p. 370), New Hanover (Strauch, in 'Zeitschr. f. Ethnol.,' vol. ix. p. 62), New Ireland ('Das Ausland,' 1881,

p. 29), Solomon Islands (Elton, in 'Jour. Anthr. Inst.,' vol. vii. p. 95), Tana of the New Hebrides (Turner, 'Samoa,' p. 317), Fiji (Zimmermann, loc. cit. vol. i. p. 400), Caroline Group ('Deutsche Rundschau für Geographie und Statistik,' vol. viii. p. 65), Pelew Islands ('Ymer,' vol. iv. p. 333), Tonga (Cook, 'Voyage to the Pacific Ocean,' vol. i. p. 401), Tahiti (ibid., vol. ii. p. 157), Nukahiva (v. Langsdorf, loc. cit. vol. i. p. 153), &c.

[2733] Eskimo (Lyon, loc. cit. p. 352. Franklin, 'Journey,' p. 263. Cranz, loc. cit. vol. i. p. 147. Waitz, loc. cit. vol. iii. p. 308), Mahlemuts (Bancroft, loc. cit. vol. i. p. 81), Ingaliks (Dall, loc. cit. p. 196), Chippewyans (Richardson, loc. cit. vol. ii. p. 23), Tacullies (Bancroft, vol. i. p. 123), Ahts (Sproat, loc. cit. p. 98), Nutkas (Maine, 'British Columbia and Vancouver Island,' p. 276), Chinooks (Bancroft, vol. i. p. 241), Mandans (Catlin, loc. cit. vol. i. p. 119), other North American tribes (Heriot, loc. cit. pp. 551, et seq. Harmon, loc. cit. pp. 292, 339. Buchanan, 'North American Indians,' p. 338), Moxes (Heriot, p. 326), Mosquitoes (Bancroft, vol. i. p. 733, note 37), Indians of Guiana (Schomburgk, in 'Jour. Ethn. Soc. London,' vol. i. p. 270), Passés, Uaupés, Macusís (v. Martius, loc. cit. vol. i. p. 511, 600, 642), Coroados (Hensel, 'Die Coroados der brasilianischen Provinz Rio Grande do Sul,' in 'Zeitschr. f. Ethnol.,' vol. i. p. 130), Botocudos (v. Tschudi, loc. cit. vol. ii. p. 283), and other Brazilian tribes (v. Martius, vol. i. p. 104), Minuanes, Pampas, Guanas, Mbayas (Azara, loc. cit. vol. ii. pp. 33, 44, 95, 114), Abipones (Dobrizhoffer, loc. cit. vol. ii. p. 138), Patagonians (Musters, loc. cit. p. 187).

[2734] Nansen, loc. cit. vol. ii. p. 321, note 1.

[2735] v. Langsdorf, loc. cit. vol. ii. p. 133. Bancroft, vol. i. p. 110.

[2736] Ling Roth, in 'Jour. Anthr. Inst.,' vol. xvi. 272.

[2737] Spencer, 'Descriptive Sociology,' Hebrews and Phœnicians, p. 8. Cf. Saalschütz, 'Das mosaische Recht,' vol. ii. p. 727; Andree, loc. cit. pp. 146, et seq.; Balfour, loc. cit. vol. iii. p. 251.

[2738] Wilkinson, loc. cit. vol. i. p. 318. Herodotus, loc. cit. book ii. ch. 92.

[2739] Spiegel, loc. cit. vol. iii. p. 677.

[2740] Maine, 'Early Law and Custom,' p. 235. Schrader, loc. cit. p. 388.

[2741] Tacitus, loc. cit. ch. xviii.

[2742] Dutt, 'Hindu Civilisation of the Brahmana Period,' in 'The Calcutta Review,' vol. lxxxv. p. 266. Kaegi, 'The Rigveda,' p. 15. Roth, 'On the Morality of the Veda,' in 'Jour. American Oriental Soc.,' vol iii. p. 339.

[2743] 'Rig-Veda Sanhitá,' mandala ii. súkta 39.

[2744] Egede, loc. cit. pp. 138, et seq.

[2745] Holmberg, in 'Acta Soc. Sci. Fennicæ,' vol. iv. p. 313.

[2746] Ibid., vol. iv. p. 399.

[2747] Franklin, 'Journey,' p. 70.

[2748] Eskimo, Chinooks (Waitz, loc. cit. vol. iii. pp. 308, 338), Ahts (Sproat, loc. cit. p. 98), Indians of Western Washington and North-Western Oregon

(Gibbs, 'Tribes of Western Washington and Northwestern Oregon,' in 'Contributions to North American Ethnology,' vol. i. p. 198), &c.

[2749] Erman, in 'Zeitschr. f. Ethnol.,' vol. iii. p. 162.

[2750] Sproat, p. 100.

[2751] Heriot, loc. cit. p. 324.

[2752] Waitz, vol. iv. p. 130.

[2753] Bancroft, loc. cit. vol. ii. p. 671.

[2754] Waitz, vol. iv. pp. 360, 366.

[2755] Garcilasso de la Vega, loc. cit. vol. i. p. 310. Acosta, loc. cit. vol. ii. p. 424.

[2756] Squier, in 'Trans. American Ethn. Soc.,' vol. iii. pt. i. p. 127.

[2757] Bancroft, vol. ii. p. 265.

[2758] Ibid., vol. i. p. 729. v. Humboldt, 'Personal Narrative,' vol. v. p. 548. Wallace, 'Travels on the Amazon,' p. 497. v. Martius, loc. cit. vol. i. p. 392.

[2759] Indians of Guiana (Schomburgk, in Ralegh, 'The Discovery of the Empire of Guiana,' p. 110, note), Tupis (Southey, loc. cit. vol. i. p. 241), Jurís (Bastian, 'Rechtsverhältnisse,' p. 177), Araucanians (Alcedo-Thompson, loc. cit. vol. i. p. 416).

[2760] v. Martius, loc. cit. vol. i. p. 126.

[2761] Dawson, loc. cit. p. 33. Taplin, loc. cit. p. 12. Taylor, loc. cit. p. 338.

[2762] Natives of Tonga (Cook, 'Voyage to the Pacific Ocean,' vol. i. p. 401), Pelew Islands (Kubary, loc. cit. p. 62), Ponapé (Finsch, in 'Zeitschr. f. Ethnol.,' vol. xii. p. 317), Marianne Group (Waitz, loc. cit. vol v. pt. ii. p. 107).

[2763] Turner, 'Samoa,' p. 96.

[2764] Ellis, 'Polynesian Researches,' vol. i. pp. 273, et seq.

[2765] Crawfurd, loc. cit. vol. i. p. 77. Cf. ibid., vol. iii. p. 100; Blumentritt, loc. cit. p. 49, and Schadenberg, in 'Zeitschr. f. Ethnol.,' vol xvii. p. 12 (Philippine Islanders).

[2766] Fytche, loc. cit. vol. ii. p. 74. Dalton, loc. cit. p. 216.

[2767] Colquhoun, 'Amongst the Shans,' p. 182, note 2.

[2768] Dalton, p. 8. Castrén, in 'Helsingfors Morgonblad,' 1843, no. 54.

[2769] Central Asiatic Turks (Vámbéry, 'Das Türkenvolk,' p. 248), Kalmucks (Moore, loc. cit. p. 181), Tunguses, Jakuts (Sauer, loc. cit. pp. 49, 129).

[2770] v. Siebold, loc. cit. p. 31. Bickmore, in 'Trans. Ethn. Soc.,' N. S. vol vii. p. 20. St. John, in 'Jour. Anthr. Inst.,' vol. ii. p. 254. Dixon, in 'Trans. As. Soc. Japan,' vol. xi. pt. i. p. 44. Dall, loc. cit. p. 525.

[2771] Prejevalsky, 'Mongolia,' vol. i. p. 69; vol. ii. p. 121.

[2772] Medhurst, in 'Trans. Roy. As. Soc. China Branch,' vol. iv. p. 21. Parker, 'Comparative Chinese Family Law,' in 'The China Review,' vol. viii. p. 78. Jamieson, ibid., vol. x. p. 80.

[2773] Gray, loc. cit. vol. i. p. 212.

[2774] Medhurst, p. 15. When dying, concubines who have not had children are removed from the dwelling-house to a humbler abode; they are not entitled to die in the dwelling-house of their master (Gray, vol. i. p. 213).

[2775] Ibid., vol. i. p. 212-214.

[2776] Jamieson, p. 80. Medhurst, pp. 15, 21.

[2777] Parker, p. 79.

[2778] Pischon, loc. cit. p. 14. Lane, loc. cit. vol. i. p. 252. Polak, loc. cit. vol. i. p. 226. Le Bon, 'La civilisation des Arabes,' p. 434. Nachtigal, loc. cit. vol. i. p. 723; vol ii. p. 177.

[2779] Waitz, loc. cit. vol ii. pp. 109, et seq. Moore, loc. cit. p. 249. Bosman, loc. cit. p. 419. Burton, 'On M. Du Chaillu's Explorations,' &c., in 'Trans. Ethn. Soc.,' N. S. vol. i. p. 321.

[2780] Waitz, vol. ii. p. 110.

[2781] Macdonald, 'Africana,' vol. i. pp. 134, et seq.

[2782] Chapman, loc. cit. vol. i. p. 341. Cf. ibid., vol. ii. p. 284; Andersson, 'Lake Ngami,' p. 225.

[2783] Casalis, loc. cit. pp. 186, et seq. Cf. Livingstone, loc. cit. p. 185 (Bechuanas).

[2784] 'Das Ausland,' 1881, p. 49.

[2785] Fritsch, loc. cit. p. 92.

[2786] Rochon, loc. cit. p. 747.

[2787] Ebers, 'Aegypten und die Bücher Moses's,' vol. i. p. 310. Cf. 'Das Ausland,' 1875, p. 293.

[2788] Rawlinson, loc. cit. vol. iii. p. 216. Cf. Spiegel, loc. cit. vol. iii. p. 680.

[2789] Mayne, 'Hindu Law and Usage,' p. 92. Jolly, in 'Sitzungsber. Münch. Akad.,' 1876, pp. 445-447. v. Schroeder, 'Indiens Literatur und Cultur,' p. 430.

[2790] 'The Laws of Manu,' ch. iii. v. 12. Jolly, p. 446.

[2791] Steele, loc. cit. p. 31.

[2792] Geijer, loc. cit. vol. v. p. 88.

[2793] Ewers, loc. cit. p. 108.

[2794] Burton, 'The City of the Saints,' p. 518.

[2795] Ancient Hindus ('The Laws of Manu,' ch. iii. v. 12) and Persians (Spiegel, loc. cit. vol. iii. p. 679), Chinese (Gray, loc. cit. vol vi. pp. 212, et seq.), Malays (Crawfurd, loc. cit. vol. i. p. 77).

[2796] Waitz, loc. cit. vol. iii. p. 383.

[2797] Darwin, 'Journal of Researches,' p. 366.

[2798] v. Weber, loc. cit. vol. i. p. 329.

[2799] d'Escayrac de Lauture, loc. cit. p. 68. Georgi, loc. cit. p. 102.

[2800] Krasheninnikoff, loc. cit. p. 215.

[2801] Waitz, vol. ii. p. 110.

[2802] Williams, 'Missionary Enterprises,' p. 538.

[2803] Cf. Lane, loc. cit. vol. i. p. 253, note †.

[2804] Carver, loc. cit. p. 368.

[2805] Schoolcraft, loc. cit. vol. v. p. 210. Cf. ibid., vol. i. p. 236 (Comanches).

[2806] Georgi, loc. cit. p. 153.

[2807] Lane, loc. cit. vol. i. pp. 253, et seq. note 5.

[2808] Ibid., vol. i. p. 253 (Egyptians). Polak, loc. cit. vol. i. pp. 226, et seq. (Persians).

[2809] Gibbs, loc. cit. pp. 198, et seq.

[2810] Baker, 'The Nile Tributaries of Abyssinia,' p. 265. Cf. ibid., pp. 263, et seq.

[2811] Schomburgk, in Ralegh, 'The Discovery of Guiana,' p. 110, note.

[2812] Chavanne, 'Die Sahara,' p. 397. Cook, 'Voyage to the Pacific Ocean,' vol. ii. p. 157. Vámbéry, 'Das Türkenvolk,' p. 248. 'Das Ausland,' 1881, p. 15. Munzinger, loc. cit. p. 246 (Marea). Thomson, 'Through Masai Land,' p. 260 (Masai).

[2813] King, in 'Jour. Ethn. Soc. London,' vol. i. p. 147. 'Das Ausland,' 1881, p. 698. Cranz, loc. cit. vol. i. p. 147.

[2814] Schoolcraft, loc. cit. vol. v. p. 654.

[2815] Salvado, 'Mémoires,' p. 278.

[2816] Klemm, 'Cultur-Geschichte,' vol. iii. p. 278.

[2817] Dalton, loc. cit. p. 8.

[2818] Ewald, loc. cit. p. 196. Herzog-Schaff, 'Religious Encyclopædia,' vol. ii. p. 1415. For other instances, see Georgi, loc. cit. p. 182 (Votyaks); Steller, loc. cit. p. 347 (Kamchadales); Dall, loc. cit. p. 524 (Ainos of the Kuriles).

[2819] v. Langsdorf, loc. cit. vol. ii. p. 47. Christianity has now extirpated this custom among the Aleuts ('Das Ausland,' 1881, p. 792).

[2820] Coxe, loc. cit. p. 300.

[2821] Dall, loc. cit. p. 416. Holmberg, in 'Acta Soc. Sci. Fennicæ,' vol. iv. pp. 315, et seq.

[2822] Seemann, 'Voyage of Herald,' vol. ii. p. 66. King, in 'Jour. Ethn. Soc. London,' vol. i. p. 147. Waitz, loc. cit. vol. iii. p. 308. Regarding the Greenlanders, Cranz says (loc. cit. vol. i. p. 147), 'Women who cohabit with several husbands are subjected to universal censure.'

[2823] Lafitau, loc. cit. vol. i. p. 555.

[2824] v. Humboldt, 'Personal Narrative,' vol. v. p. 549.

[2825] Brett, loc. cit. p. 178.

[2826] Lisiansky, loc. cit. p. 83.

[2827] Moncelon, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. ix. p. 367.

[2828] Brough Smyth, loc. cit. vol. ii. p. 386.

[2829] Bontier and Le Verrier, loc. cit. p. 139.

[2830] Thunberg, loc. cit. p. 141.

[2831] Fritsch, loc. cit. p. 227. Theal, loc. cit. p. 19.

[2832] Sibree, loc. cit. p. 253.

[2833] Emerson Tennent, loc. cit. vol. ii. p. 428. Balfour, loc. cit. vol. iii. p. 250. Davy, loc. cit. p. 286.

[2834] Haeckel, 'Indische Reisebriefe,' p. 240.

[2835] Shortt, in 'Trans. Ethn. Soc.,' N. S. vol. ii. p. 240.

[2836] Balfour, vol. iii. p. 250.

[2837] 'Asiatick Researches,' vol. v. p. 13.

[2838] Dalton, loc. cit. pp. 33, 36, 98.

[2839] Rowney, loc. cit. p. 158.

[2840] Fischer, 'Memoir of Sylhet, Kachar, and the Adjacent Districts,' in 'Jour. As. Soc. Bengal,' vol. ix. pt. ii. p. 834.

[2841] Man, loc. cit. p. 100.

[2842] Balfour, loc. cit. vol. iii. pp. 245, et seq.

[2843] Bellew, 'Kashmir and Kashghar,' p. 118. Moorcroft and Trebeck, 'Travels in the Himalayan Provinces of Hindustan and the Panjab,' vol. i. pp. 321, et seq.

[2844] Dunlop, 'Hunting in the Himalaya,' pp. 180, et seq.

[2845] Gordon Cumming, 'In the Himalayas,' p. 406.

[2846] Stulpnagel, 'Polyandry in the Himâlayas,' in 'The Indian Antiquary,' vol. vii. p. 133. de Ujfalvy, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. v. p. 227.

[2847] Wilson, loc. cit. pp. 206, et seq.

[2848] McLennan, 'Studies,' p. 98.

[2849] Lansdell, loc. cit. vol. ii. p. 225.

[2850] de Ujfalvy, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. v. p. 227.

[2851] Wilson, p. 206.

[2852] Shortt, in 'Trans. Ethn. Soc.,' N. S. vol. vii. pp. 264, et seq., note. Cf. however, Kearns, 'The Tribes of South India,' p. 69.

[2853] Shortt, in 'Trans. Ethn. Soc.,' N. S. vol. vii. p. 264.

[2854] v. Haxthausen, 'Transcaucasia,' p. 403, note. Le Bon, 'L'homme et les sociétés,' vol. ii. p. 295.

[2855] Ahlqvist, in 'Acta Soc. Sci. Fennicæ,' vol. xiv. p. 292, note.

[2856] v. Haxthausen, p. 402.

[2857] 'Rig-Veda Sanhitá,' mandala i. súkta 119, v. 5.

[2858] Strabo, loc. cit. book xi. ch. xiii. p. 526; book xvi. ch. iv. p. 782.

[2859] Rémusat, 'Nouveaux Mélanges Asiatiques,' vol. i. p. 245.

[2860] McLennan, 'Studies,' p. 99.

[2861] Cæsar, loc. cit. book v. ch. 14.

[2862] Weinhold, 'Altnordisches Leben,' p. 249.

[2863] Emerson Tennent, loc. cit. vol. ii. p. 428. Davy, loc. cit. p. 286.

[2864] Marshall, loc. cit. p. 213.

[2865] Balfour, loc. cit. vol. iii. p. 249.

[2866] Dalton, loc. cit. p. 33.

[2867] Ibid., p. 36.

[2868] Fischer, in 'Jour. As. Soc. Bengal,' vol. ix. pt. ii. p. 834.

[2869] 'Ymer,' vol. v. p. xxiv.

[2870] Rowney, loc. cit. p. 158.

[2871] Gordon Cumming, loc. cit. pp. 405, et seq.

[2872] Stulpnagel, in 'The Indian Antiquary,' vol. vii. p. 135.

[2873] Cunningham, 'Ladák,' p. 306.

[2874] Dunlop, loc. cit. pp. 180, et seq.

[2875] Cunningham, 'History of the Sikhs,' p. 18. Cf. Orazio della Penna di Billi, 'Account of the Kingdom of Tibet,' in 'Narratives of the Mission of George Bogle,' &c., p. 336; Moorcroft and Trebeck, loc. cit. p. 180; Bonvalot, 'Across Thibet,' vol. ii. p. 126; Rockhill, 'The Land of the Lammas,' p. 212.

[2876] Mr. Wilson says (loc. cit. p. 207) that it is probably the common marriage custom of at least thirty millions of respectable people.

[2877] Wheeler, 'The History of India,' vol. ii. p. 241.

[2878] Dutt, in 'The Calcutta Review,' vol. lxxxv. p. 266.

[2879] Erman, in 'Zeitschr. f. Ethnol.,' vol. iii. p. 163. Holmberg, in 'Acta Soc. Sci. Fennicæ,' vol. iv. p. 399.

[2880] Lisiansky, loc. cit. p. 83.

[2881] Moorcroft and Trebeck, loc. cit. vol. i. pp. 321, et seq. Turner, 'Account of an Embassy to Tibet,' p. 348. Bellew, loc. cit. p. 118.

[2882] Balfour, loc. cit. vol. iii. p. 246.

[2883] Dunlop, loc. cit. p. 181. Rémusat, loc. cit. vol. i. p. 245.

[2884] Strabo, loc. cit. book xvi. ch. iv. p. 782.

[2885] Cæsar, loc. cit. book v. ch. 14.

[2886] Ganzenmüller, 'Tibet,' p. 87.

[2887] Marshall, loc. cit. p. 213.

[2888] Balfour, vol. iii. p. 251.

[2889] Lewin, loc. cit. p. 130. Cf. Man, loc. cit. p. 100.

[2890] Meares, loc. cit. p. 268.

[2891] Kirby, in 'Smith. Rep.,' 1864, p. 418.

[2892] Coulter, 'Notes on Upper California,' in 'Jour. Roy. Geo. Soc.,' vol. v. p. 67. Seemann, 'Voyage of Herald,' vol. ii. p. 66.

[2893] King, in 'Jour. Ethn. Soc. London,' vol i. p. 152. Lisiansky, loc. cit. p. 237. Powers, loc. cit. p. 243.

[2894] Schoolcraft, loc. cit. vol. iv. p. 577; vol. iii. pp. 601, et seq.; vol. v. p. 707. For other tribes, see ibid., vol. iii. pp. 615, 632; vol. iv. p. 590.

[2895] Morgan, 'Systems of Consanguinity and Affinity,' p. 477. Catlin, loc. cit. vol. i. pp. 119, 212. Cf. Schoolcraft, vol. iii. pp. 562, et seq.

[2896] Waitz, 'Introduction to Anthropology,' p. 111. Azara, loc. cit. vol. ii. p. 60. 'Bulletin de la Société de Géographie,' ser. iv. vol. ix. p. 209.

[2897] Bancroft, loc. cit. vol. i. p. 662.

[2898] Schomburgk, 'Expedition from Pirara,' in 'Jour. Roy. Geo. Soc.,' vol. xv. p. 45.

[2899] v. Humboldt, 'Personal Narrative,' vol. v. pp. 549, et seq.

[2900] Azara, vol ii. p. 93.

[2901] v. Martius, loc. cit. vol. i. pp. 304, et seq. note **.

[2902] Cf. Bonwick, in 'Jour. Anthr. Inst.,' vol. xvi. p. 205.

[2903] Fison and Howitt, loc. cit. p. 148.

[2904] Oldfield, in 'Trans. Ethn. Soc.,' N. S. vol. iii. p. 250.

[2905] Brough Smyth, loc. cit. vol. i. p. 51.

[2906] Lumholtz, loc. cit. p. 134. Cf. ibid., p. 184; Dumont d'Urville, 'Voyage de l'Astrolabe, Histoire du voyage,' vol. i. p. 495.

[2907] Sturt, loc. cit. vol. ii. pp. 136, et seq.

[2908] Breton, loc. cit. p. 404.

[2909] Ellis, 'Polynesian Researches,' vol. i. p. 258.

[2910] Montgomery, loc. cit. vol. ii. p. 12.

[2911] 'Ymer,' vol. iii. p. 167. La Pérouse, loc. cit. vol. ii. p. 28. Kotzebue, loc. cit. vol. iii. p. 226.

[2912] Ellis, 'Tour through Hawaii,' p. 414. Waitz-Gerland, loc. cit. vol. vi. p. 128. Elton, in 'Jour. Anthr. Inst.,' vol. xvii. p. 94.

[2913] Kerry-Nicholls, in 'Jour. Anthr. Inst.,' vol. xv. p. 195.

[2914] Wilkes, loc. cit. vol. v. p. 74.

[2915] Waitz-Gerland, vol. v. pt. ii. pp. 191, et seq.

[2916] d'Albertis, loc. cit. vol. i. p. 390.

[2917] Stone, in 'Jour. Roy. Geo. Soc.,' vol. xlvi. p. 55.

[2918] Marsden, loc. cit. p. 272.

[2919] Low, loc. cit. p. 146.

[2920] Pridham, loc. cit. vol. i. p. 451. Cf. Davy, loc. cit. p. 107, note.

[2921] Quoted by Chervin, 'Recherches sur les causes physiques de la polygamie,' p. 22.

[2922] Marshall, loc. cit. p. 100.

[2923] Dunlop, loc. cit. pp. 181, et seq.

[2924] Wilson, loc. cit. p. 374.

[2925] Cunningham, 'Ladák,' p. 289.

[2926] Ritter, 'Erdkunde,' vol. vi. p. 773.

[2927] Bowring, 'The Population of China,' in 'Trans. Roy. As. Soc. China Branch,' vol. v. pp. 13, et seq.

[2928] Marshall, pp. 100, 102.

[2929] Prejevalsky, 'Mongolia,' vol. i. p. 71.

[2930] Rémusat, loc. cit. vol. i. p. 245. Gerland, 'Das Aussterben der Naturvölker,' p. 49.

[2931] Waitz, 'Introduction to Anthropology,' p. 112. Price, in 'Jour. Anthr. Inst.,' vol. i. p. 189.

[2932] Laing, 'Travels in the Timannee, Kooranko, and Soolima Countries,' p. 59.

[2933] 'Globus,' vol. xli. p. 253.

[2934] Bosman, loc. cit. p. 424. 'Emin Pasha in Central Africa,' p. 225. Mr. Swann, in a letter. Thomson, 'Through Masai Land,' p. 51.

[2935] Cf. Lichtenstein, loc. cit. vol. i. p. 244 (Khosas).

[2936] Wilson and Felkin, loc. cit. vol. i. p. 150.

[2937] v. Oettingen, loc. cit. p. 59. Cf. Wappäus, loc. cit. vol. ii. p. 215.

[2938] Sutherland, 'On the Esquimaux,' in 'Jour. Ethn. Soc. London,' vol. iv. p. 213.

[2939] King, ibid. vol. i. p. 152.

[2940] Bancroft, loc. cit. vol. i. p. 133.

[2941] Shastika (Powers, loc. cit. p. 243), Khosas (Lichtenstein, loc. cit. vol. i. p. 244), Cis-Natalian Kafirs (Mr. Cousins), people of Baghirmi (Nachtigal, loc. cit. vol. ii. p. 616), Waguha (Mr. Swann). In Morocco, according to Dr. Churcher, warfare of a civil or tribal kind has, no doubt, had some influence upon the disproportion of the sexes; and the same is the case in Uganda (Wilson and Felkin, loc. cit. vol. i. p. 151).

[2942] Catlin, loc. cit. vol. i. p. 119. Cf. Morgan, 'Systems of Consanguinity and Affinity,' p. 477.

[2943] Ellis, 'History of Madagascar,' vol. i. p. 152.

[2944] Kutchin (Kirby, in 'Smith. Rep.,' 1864, p. 418), Guanas (Azara, loc. cit. vol. ii. p. 93), Hawaiians (Ellis, 'Tour through Hawaii,' p. 414), Tahitians (Idem, 'Polynesian Researches,' vol. i. pp. 257, et seq.), natives of Maupiti (Montgomery, loc. cit. vol. ii. p. 12), Kulus (de Ujfalvy, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. v. p. 227), Kashmiri (Wilson, loc. cit. p. 374).

[2945] Lewin, loc. cit. pp. 195, et seq.

[2946] Kirby, in 'Smith. Rep.,' 1864, p. 418.

[2947] Ross, ibid., 1866, p. 305. Sproat, loc. cit. p. 94.

[2948] Humboldt, 'Political Essay,' vol. i. pp. 251, et seq.

[2949] Belly, 'À travers l'Amérique Centrale,' vol. i. p. 253, note.

[2950] Sturt, loc. cit. vol. ii. pp. 77, 136, et seq.

[2951] Grey, loc. cit. vol. ii. p. 251.

[2952] Waitz-Gerland, loc. cit. vol. vi. p. 813.

[2953] Davy, loc. cit. p. 289.

[2954] Haeckel, 'Indische Reisebriefe,' p. 240.

[2955] Marshall, loc. cit. p. 100.

[2956] Shortt, in 'Trans. Ethn. Soc.,' N. S. vol. vii. p. 241.

[2957] Man, in 'Jour. Anthr. Inst.,' vol. xii. p. 81.

[2958] Bruce, 'Travels to Discover the Source of the Nile,' vol. i. pp. 284, et seq.

[2959] 'Emin Pasha in Central Africa,' p. 209.

[2960] Wilson and Felkin, loc. cit. vol. i. pp. 150, et seq.

[2961] Süssmilch, 'Die göttliche Ordnung in den Veränderungen des menschlichen Geschlechts,' vol. ii. pp. 258, 259, &c. Chervin, loc. cit. pp. 38, &c.

[2962] Montesquieu, loc. cit. book xvi. ch. 4.

[2963] v. Oettingen, loc. cit. p. 55.

[2964] Sadler, 'The Law of Population,' vol. ii. pp. 337-339. v. Oettingen, p. 56.

[2965] Hofacker and Notter, 'Ueber Eigenschaften, welche sich bei Menschen und Thieren von den Aeltern auf die Nachkommen vererben.' Sadler, loc. cit. vol. ii. pp. 333, et seq.

[2966] Hensen, loc. cit. p. 206. Berner, 'Ueber die Ursachen der Geschlechtsbildung;' quoted by Janke, loc. cit. p. 347.

[2967] Goehlert, 'Die Geschlechtsverschiedenheit der Kinder in den Ehen,' in 'Zeitschr. f. Ethnol.,' vol. xiii. pp. 119-122.

[2968] Stieda, 'Das Sexualverhältniss der Geborenen,' pp. 19, 20, 34, 35, &c.; quoted by v. Oettingen, loc. cit. p. 67.

[2969] For this statement I am indebted to Mr. Joseph Jacobs.

[2970] Burton, 'The City of the Saints,' p. 521. Idem, 'Abeokuta,' vol. i. p. 212, note.

[2971] 'The Anthropological Review,' vol. viii. p. cviii.

[2972] Sanderson, 'Polygamous Marriage among the Kafirs of Natal,' in 'Jour. Anthr. Inst.,' vol. viii. pp. 254-260.

[2973] Burton, 'The City of the Saints,' p. 521.

[2974] Darwin, 'The Descent of Man,' vol. i. pp. 378, et seq.

[2975] Düsing, 'Die Regulierung des Geschlechtsverhältnisses bei der Vermehrung der Menschen, Tiere und Pflanzen.'

[2976] Ploss, 'Ueber die das Geschlechtsverhältniss der Kinder bedingenden Ursachen,' in 'Monatsschrift für Geburtskunde und Frauenkrankheiten,' vol. xii. pp. 321-360.

[2977] Ibid., vol. xii. p. 340.

[2978] v. Oettingen, loc. cit. pp. 64, et seq. Düsing, loc. cit. pp. 159, et seq.

[2979] Düsing, pp. 161, et seq. I may call attention to the fact that among the Swedish nobility, according to censuses taken in the years 1851-1860, contrary to the general rule in Europe, female births actually outnumber male (Bertillon, in 'Diction. encycl. des sciences médicales,' ser. ii. vol. xi. p. 472).

[2980] Ploss, in 'Monatsschrift f. Geburtskunde,' vol. xii. p. 352. In the region between 501 to 1,000 feet, which is the most fertile (ibid., p. 353), the proportion was 105·7 to 100.

[2981] Davy, loc. cit. p. 107, note.

[2982] Seemann, 'Voyage of Herald,' vol. ii. p. 66 (Western Eskimo). v. Humboldt, 'Personal Narrative,' vol. v. p. 548 (Avanos and Maypurs). Waitz-Gerland, loc. cit. vol. vi. p. 128 (Nukahivans). Haeckel, 'Indische Reisebriefe,' p. 240 (Sinhalese). Marshall, loc. cit. p. 214; Shortt, in 'Trans. Ethn. Soc.,' N. S. vol. vii. p. 240 (Todas). Dunlop, loc. cit. p. 181; Fraser, 'Journal of a Tour through the Himālā Mountains,' p. 208; Stulpnagel, in 'The Indian Antiquary,' vol. vii. p. 133 (Himalayans). Rémusat, loc. cit. vol. i. p. 245 (Massagetæ).

[2983] Seemann, 'Voyage of Herald,' vol. ii. p. 66.

[2984] Dunlop, loc. cit. pp. 181, et seq.

[2985] Beauregard, 'En Asie; Kachmir et Tibet,' in 'Bull. Soc. d'Anthr.,' ser. iii. vol. v. pp. 265, 267, 271. Cf. Wilson, loc. cit. p. 212.

[2986] Koeppen, 'Die Religion des Buddha,' vol. i. p. 476.

[2987] Baber, 'Travels and Researches in the interior of China,' in 'Roy. Geo. Soc. Supplementary Papers,' vol. i. p. 97.

[2988] Rockhill, loc. cit. p. 214, note.

[2989] Koeppen, vol. i. pp. 476, et seq. note 2. Du Halde, 'Description de la Chine,' vol. iv. p. 572.

[2990] Cunningham, in 'Jour. As. Soc. Bengal,' vol. xiii. pt. i. p. 202.

[2991] 'Bull. Soc. d'Anthr.,' ser. iii. vol. v. p. 229.

[2992] 'Ymer,' vol. v. p. xxiii.

[2993] Gordon Cumming, loc. cit. pp. 405, et seq.

[2994] Cunningham, 'Ladák,' p. 306.

[2995] Bellew, loc. cit. p. 118.

[2996] Wilson, loc. cit. p. 216.

[2997] Koeppen, loc. cit. vol. i. p. 476. Turner, 'Embassy to Tibet,' p. 351. 'Bull. Soc. d'Anthr.,' ser. iii. vol. v. p. 266. Wilson, pp. 215, et seq.

[2998] Fraser, loc. cit. p. 207.

[2999] Turner, 'Embassy to Tibet,' p. 349. Wilson, pp. 209, 210.

[3000] Emerson Tennent, loc. cit. vol. ii. p. 428.

[3001] Stulpnagel, in 'The Indian Antiquary,' vol. vii. p. 135.

[3002] Düsing, loc. cit. pp. 237-242.

[3003] 1150 unions of horses of the same colour gave 91·3 male foals to 100 female; 878 unions of horses of somewhat different colours, 86·2 to 100 respectively; 237 unions of horses of still more different colours, 56 to 100 respectively; 30 unions of horses of the most widely different colours, 30 to 100 respectively (Goehlert, 'Ueber die Vererbung der Haarfarben bei den Pferden,' in 'Zeitschr. f. Ethnol.,' vol. xiv. pp. 145-155).

[3004] Düsing, pp. 242-245.

[3005] Powers, loc. cit. pp. 149, 403.

[3006] Starkweather, 'The Law of Sex,' pp. 159, et seq.

[3007] Galindo, 'On Central America,' in 'Jour. Roy. Geo. Soc.,' vol. vi. p. 126.

[3008] Peschel, loc. cit. p. 221.

[3009] Squier, loc. cit. p. 58.

[3010] Belly, loc. cit. vol. i. p. 253, note.

[3011] v. Spix and v. Martius, loc. cit. vol. ii. p. 33.

[3012] Burton, 'The Highlands of the Brazil,' vol. i. p. 115.

[3013] de Castelnau, 'Expédition dans les parties centrales de l'Amérique du Sud,' Histoire du voyage, vol. i. pp. 137, et seq.

[3014] Ibid., vol. i. p. 328.

[3015] 'Das Ausland,' 1859, pp. 58, et seq.

[3016] v. Görtz, loc. cit. vol. iii. p. 288.

[3017] Süssmilch, loc. cit. vol. ii. pp. 260, et seq.

[3018] Felkin, 'Contribution to the Determination of Sex,' in 'Edinburgh Medical Journal,' vol. xxxii. pt. i. pp. 233-236.

[3019] Jacobs, in 'Jour. Anthr. Inst.,' vol. xv. pp. 44, et seq.

[3020] Bell, 'The History of Improved Short-Horn, or Durham Cattle,' p. 351.

[3021] Carr, 'The History of the Rise and Progress of the Killerby, Studley, and Warlaby Herds of Shorthorns,' p. 98.

[3022] Janke, loc. cit. pp. 373, et seq.

[3023] Shortt, in 'Trans. Ethn. Soc.,' N. S. vol. vii. p. 285.

[3024] Metz, loc. cit. p. 131.

[3025] Metz, loc. cit. p. 131.

[3026] Theal, loc. cit. pp. 16, et seq.

[3027] Jacobs, in 'Jour. Anthr. Inst.,' vol. xv. p. 26. Mr. Jacobs thinks that English Jews marry their first cousins to the extent of 7·5 per cent. of all marriages, against a proportion of about 2 per cent. for England generally, as calculated by Professor G. H. Darwin. M. Stieda, in his 'Eheschliessungen in Elsass-Lothringen' (1872-1876), gives the proportion of consanguineous marriages among Jews as 23·02 per thousand, against 1·86 for Protestants, and 9·97 for Catholics (Jacobs, 'Studies in Jewish Statistics,' p. 53).

[3028] According to Mr. Jacob's comprehensive manuscript collection of Jewish statistics, which he has kindly allowed me to examine, the average proportion of male and female Jewish births registered in various countries is 114·50 males to 100 females, whilst the average proportion among the non-Jewish population of the corresponding countries is 105·25 males to 100 females. But Mr. Jacobs thinks that the accuracy of these statistics may be called in question, as the abnormal figures for Austria (128 to 100, in the years 1861-1870) and Russia (129 to 100, in the years 1867-1870), when compared

with those for Posen (108 to 100, in the years 1819-1873) and Prussia (108 to 100, in the years 1875-1881), render it likely that some uniform error occurs in the registration of Jewish female children in Eastern Europe. It has also been suggested that less care is taken in the registration of females among poor Jews. Moreover, still-born children are not included in the rates of births, and this certainly affects the figures as to sex, because, parturition being more difficult in the case of males than in that of females, there are not so many still-born females as still-born males (v. Oettingen, loc. cit. p. 57). E. Nagel attributes the excess of male births among Jews to the greater care which Jewish wives take of their health during pregnancy, as also to the smaller number of illegitimate births. But Mr. Jacobs believes that the ratio of male births is greater among Jews than among non-Jewish Europeans, even if we take this objection into account.

[3029] Brehm, 'Bird-Life,' p. 270. Darwin, 'The Descent of Man,' vol. i. pp. 382, et seq.

[3030] Chervin, loc. cit. p. 38.

[3031] Goehlert, in 'Zeitschr. f. Ethnol.,' vol. xiii. p. 127.

[3032] Armstrong, loc. cit. p. 195.

[3033] Jones, in 'Smith. Rep.,' 1866, p. 326 (Kutchin). Dall, loc. cit. p. 403 (Kaniagmuts). Schoolcraft, loc. cit. vol. v. p. 183 (Blackfeet). Bosman, loc. cit. pp. 423, 527; Waitz, loc. cit. vol. ii. p. 121 (Negroes). Andree, loc. cit. p. 142 (Jews). Steller, loc. cit. pp. 347, et seq. (Kamchadales). Riedel, loc. cit. p. 263 (people of Aru).

[3034] Algonquins (Heriot, loc. cit. p. 329), Pelew Islanders (Bastian, 'Rechtsverhältnisse,' p. 31), Malays (Zimmermann, loc. cit. vol. i. p. 27), people of Aru (Riedel, p. 263), Negroes (Reade, loc. cit. pp. 45, 243. Moore, loc. cit. p. 242. Waitz, vol. ii. pp. 121, et seq.), Massagetæ (Beauregard, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. v. p. 264, note 6), Azteks (Bancroft, loc. cit. vol. ii. p. 267).

[3035] Ashe, loc. cit. p. 249.

[3036] Hearne, loc. cit. p. 93.

[3037] Walla Wallas (Wilkes, loc. cit. vol. iv. pp. 400, et seq.), Thlinkets, Mosquitoes, New Zealanders (Waitz, vol. iii. p. 328; vol. iv. p. 291; vol. vi. p. 131), Chinese (Gray, loc. cit. vol. i. p. 185).

[3038] American Indians (Heriot, p. 339), people of Aru (Riedel, p. 263), Caroline Islanders (Kotzebue, loc. cit. vol. iii. p. 210), Fijians (Seemann, 'Viti,' p. 191), Wanyoro ('Emin Pasha in Central Africa,' p. 84), Waganda (Wilson and Felkin, loc. cit. vol. i. p. 187), Ashantees (Reade, loc. cit. p. 45).

[3039] Moore, loc. cit. p. 223.

[3040] Thomson, 'Notes on the Basin of the River Rovuma,' in 'Proceed. Roy. Geo. Soc.,' N. S. vol. iv. p. 75.

[3041] Seemann, 'Viti,' p. 191.

[3042] Cf. Egede, loc. cit. p. 146; Brett, loc. cit. p. 102; Bonwick, in 'Jour. Anthr. Inst.,' vol. xvi. p. 205; Idem, 'Daily Life,' p. 78; Brough Smyth, loc. cit. vol. i. p. 48, note *. 'Thierische Milche,' says Lippert ('Die Geschichte der Familie,' p. 22), 'ist so wenig die allgemeine Nahrung der Menschheit auf einer sehr frühen Kulturstufe gewesen, dass vielmehr sämmtliche Völker der neuen Welt aus eigner Entwicklung gar nie diese Stufe erklommen haben.'

[3043] Carver, loc. cit. p. 262; Powers, loc. cit. p. 271 (North American Indians).

[3044] Dalton, loc. cit. p. 38 (Akas). Oldham, in 'Jour. Ethn. Soc. London,' vol. iii. p. 240 (Khasias). Lewin, loc. cit. p. 261 (Kukis). Harkness, loc. cit. p. 78 (Kotars).

[3045] Wilson, loc. cit. p. 179.

[3046] Bastian, in 'Zeitschr. f. Ethnol.,' vol. vi. p. 389.

[3047] Cf. Sproat, loc. cit. pp. 251, et seq.; Angas, 'Savage Life,' vol. i. pp. 96, 331; Reade, loc. cit. p. 250; Dalton, loc. cit. pp. 46, 85.

[3048] Cf. Holmberg, in 'Acta Soc. Sci. Fennicæ.' vol. iv. pp. 401, et seq. (Kaniagmuts); Bancroft, loc. cit. vol. i. 242 (Chinooks); Powers, loc. cit. pp. 235, et seq. (Wintun); v. Martius, loc. cit. vol. i. pp. 644, et seq. (Macusís).

[3049] Cf. Schoolcraft, loc. cit. vol. iii. p. 243; vol. v. p. 176; Wilkes, loc. cit. vol. iv. p. 456; Waitz-Gerland, loc. cit. vol. vi. pp. 131, 778; Powers, p. 32.

[3050] Reade, loc. cit. p. 45.

[3051] Ploss, 'Das Weib,' vol. ii. pp. 376-387.

[3052] Katscher, loc. cit. p. 48.

[3053] v. Żmigrodzki, loc. cit. p. 177.

[3054] Ross, loc. cit. p. 311.

[3055] Powers, loc. cit. pp. 20, 44.

[3056] Catlin, loc. cit. vol. i. p. 121.

[3057] Hardisty, in 'Smith. Rep.,' 1866, p. 312.

[3058] Musters, in 'Jour. Anthr. Inst.,' vol. i. p. 196. Schomburgk, loc. cit. vol. i. p. 122.

[3059] Angas, 'Savage Life,' vol. i. p. 311. Waitz-Gerland, loc. cit. vol. vi. pp. 15, 22.

[3060] Stavorinus, 'Account of Java and Batavia,' in Pinkerton, 'Collection of Voyages,' vol. xi. p. 193.

[3061] Boyle, loc. cit. p. 199, note.

[3062] Dalton, loc. cit. pp. 50, 66.

[3063] St John, 'The Ainos,' in 'Jour. Anthr. Inst.,' vol. ii. p. 249.

[3064] Lane, loc. cit. vol. i. p. 50. On the Arabs of Upper Egypt, see Baker, 'The Nile Tributaries,' pp. 124, 265.

[3065] Burton, 'First Footsteps,' p. 119.

[3066] Chavanne, 'Die Sahara,' p. 397. Cf. ibid., p. 81.

[3067] 'Ymer,' vol. v. p. 163.

[3068] Reade, loc. cit. p. 447.

[3069] Chapman, loc. cit. vol. i. p. 342. Andersson, 'Lake Ngami,' pp. 50, 196. v. Weber, loc. cit. vol. ii. pp. 199, 200, 216.

[3070] Thulié, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. iv. p. 421.

[3071] Waitz, loc. cit. vol. ii. p. 471. 'Emin Pasha in Central Africa,' p. 85.

[3072] Krieger, 'Die Menstruation,' p. 174.

[3073] Lubbock, 'The Origin of Civilisation,' p. 143. Forster, loc. cit. vol. i. p. 340.

[3074] Merolla da Sorrento, loc. cit. p. 299.

[3075] Lane, loc. cit. vol. i. p. 252.

[3076] Cranz, loc. cit. vol. i. p. 147.

[3077] Cunningham, in 'Jour. As. Soc. Bengal,' vol. xiii. pt. 1. p. 204.

[3078] Colquhoun, 'Amongst the Shans,' p. 71.

[3079] Samuells, 'Notes on a Forest Race called Puttooas or Juanga, Inhabiting certain of the Tributary Mehals of Cuttack,' in 'Jour. As. Soc. Bengal,' vol. xxv. p. 300. Waitz, loc. cit. vol. iii. p. 308.

[3080] Dall, loc. cit. p. 381.

[3081] Katscher, loc. cit. p. 97. Moore, loc. cit. p. 178. Jellinghaus, in 'Zeitschr. f. Ethnol.,' vol. iii. p. 370.

[3082] 'Genesis,' ch. xxx. vv. 1-4.

[3083] Le Bon, 'La civilisation des Arabes,' p. 424.

[3084] Gray, loc. cit. vol. i. p. 184.

[3085] Andree, loc. cit. p. 146.

[3086] Lane, loc. cit. vol. i. p. 252.

[3087] Cf. Waitz, vol. iii. p. 115; v. Martius, loc. cit. vol. i. p. 353, note; Livingstone, loc. cit. p. 15; d'Escayrac de Lauture, loc. cit. p. 132.

[3088] Heriot, loc. cit. p. 551.

[3089] Keating, loc. cit. vol. ii. p. 156.

[3090] Burton, in 'Trans. Ethn. Soc.,' N. S. vol. i. pp. 320, et seq. Cf. Idem, 'First Footsteps,' p. 121.

[3091] Bosman, loc. cit. p. 481.

[3092] In the language of the Bechuanas, the word 'motlanka,' like the 'παῖς' of the Greeks and the 'puer' of the Romans, signifies at the same time boy and servant (Casalis, loc. cit. p. 188, note).

[3093] Schoolcraft, loc. cit. vol. vi. pp. 180, et seq.

[3094] Among the Kamchadales (Georgi, loc. cit. p. 342), Guiana Indians (Brett, loc. cit. p. 413, note 2), Fuegians (Bove, loc. cit. p. 133), Santals (Man, loc. cit. p. 15), Gypsies (Liebich, loc. cit. p. 52), Marea (Munzinger, loc. cit. p. 248), Somals, and Kafirs (Burton, 'First Footsteps,' p. 119), the women are stated to be more or less prolific.

[3095] Catlin, loc. cit. vol. ii. p. 228.

[3096] Hearne, loc. cit. p. 313 (Northern Indians). Ross, in 'Smith. Rep.,' 1886, p. 305 (Eastern Tinneh). Bancroft, loc. cit. vol. i. pp. 169, 218, 242 (Haidahs, Columbians about Puget Sound, Chinooks). Schoolcraft, loc. cit. vol. v. p. 684 (Comanches). Dall, loc. cit. p. 194 (Ingaliks). Mackenzie, 'Voyages,' p. 147 (Beaver Indians). Armstrong, loc. cit. p. 195 (Eskimo). Cranz, loc. cit. vol. i. p. 149 (Greenlanders). Baegert, in 'Smith. Rep.,' 1863, p. 368 (Indians of the Californian Peninsula). Gibbs, loc. cit. p. 209 (Indians of Western Washington and North-Western Oregon).

[3097] Talamanca Indians (Bovallius, loc. cit. vol. i. p. 249), Guaranies (Azara, loc. cit. vol. ii. p. 59), Ostyaks (Ahlqvist, in 'Acta Soc. Sci. Fennicæ,' vol. xiv. p. 290), Kukis (Lewin, loc. cit. p. 255), Dyaks (Wallace, 'The Malay Archipelago,' vol. i. p. 142), Sumatrans (Marsden, loc. cit. p. 257), Australians (Sturt, loc. cit. vol. ii. p. 137. Angas, 'Savage Life,' vol. i. pp. 81, et seq. Waitz-Gerland, loc. cit. vol. vi. p. 780), Maoris (Angas, vol. i. p. 314), Tedâ (Nachtigal, loc. cit. vol. i. p. 448), Mandingoes, (Park, loc. cit. p. 219), Egbas (Burton, 'Abeokuta,' vol. i. p. 207).

[3098] Wallace, 'The Malay Archipelago,' vol. i. p. 143. Mackenzie, 'Voyages,' p. 147.

[3099] Hearne, loc. cit. p. 313.

[3100] Cf. Schoolcraft, loc. cit. vol. iii. p. 238 (Dacotahs); Powers, loc. cit. p. 231 (Wintun); Brett, loc. cit. p. 413, note 2 (Indians of Guiana); Bove, loc. cit. p. 133 (Fuegians).

[3101] Reade, loc. cit. p. 242.

[3102] Macdonald, 'Africana,' vol. i. pp. 141, et seq.

[3103] Wood, 'The Natural History of Man,' vol. ii. p. 685.

[3104] Kirby, in 'Smith. Rep.,' 1864, p. 419.

[3105] Powers, loc. cit. p. 259.

[3106] Zimmermann, loc. cit. vol. i. p. 254. Bosman, loc. cit. p. 419.

[3107] Marco Polo, loc. cit. vol. i. p. 220.

[3108] Cf. Livingstone, loc. cit. p. 196; Catlin, loc. cit. vol. i. p. 118.

[3109] Bancroft, loc. cit. vol. i. p. 512, note 120.

[3110] King and Fitzroy, loc. cit. vol. ii. p. 153.

[3111] Hooper, loc. cit. p. 100.

[3112] v. Langsdorf, loc. cit. vol. ii. p. 47.

[3113] Forsyth, loc. cit. p. 148.

[3114] Andersson, 'Lake Ngami,' p. 465.

[3115] St. John, in 'Jour. Anthr. Inst.,' vol. ii. p. 254.

[3116] Dall, loc. cit. p. 388. Coxe, loc. cit. p. 183.

[3117] Hooper, loc. cit. p. 271. Cf. Hardisty, in 'Smith. Rep.,' 1866, p. 312; Richardson, loc. cit. vol. i. p. 383.

[3118] v. Martius, loc. cit. vol. i. p. 104. Alcedo-Thompson, loc. cit. vol. i. p. 416.

[3119] Reade, loc. cit. p. 259.

[3120] Forbes, 'Dahomey,' vol. i. pp. 25, et seq.

[3121] Inglis, in 'Jour. Ethn. Soc. London,' vol. iii. p. 63. d'Albertis, loc. cit. vol. i. p. 395. Angas, 'Savage Life,' vol. i. p. 94.

[3122] Spencer, 'The Principles of Sociology,' vol. i. p. 657.

[3123] v. Martius, loc. cit. vol. i. p. 106 (Brazilian aborigines). Cranz, loc. cit. vol. i. p. 147 (Greenlanders). Waitz, loc. cit. vol. ii. p. 389 (Kafirs). Le Bon, 'La civilisation des Arabes,' p. 424 (Arabs). v. Siebold, loc. cit. pp. 31, et seq. (Ainos). Navarette, loc. cit. p. 72 (Chinese). Rein, loc. cit. p. 425 (Japanese).

[3124] Reade, loc. cit. pp. 259, et seq.

[3125] Livingstone, 'Narrative of an Expedition to the Zambesi,' pp. 284, et seq.

[3126] Powers, loc. cit. p. 259.

[3127] Cf. Wilkes, loc. cit. vol. iii. p. 93 (Fijians); v. Humboldt, 'Personal Narrative,' vol. v. p. 548 (Indians on Orinoco).

[3128] Waitz, loc. cit. vol. ii. p. 109.

[3129] Bancroft, loc. cit. vol. i. p. 512. Schadenberg, in 'Zeitschr. f. Ethnol.,' vol. xvii. p. 12. Le Bon, 'La civilisation des Arabes,' p. 424. Cf. Nansen, loc. cit. vol. ii. p. 321 (Greenlanders).

[3130] Baker, 'The Nile Tributaries,' pp. 125-127.

[3131] v. Weber, loc. cit. vol. ii. p. 158.

[3132] Cf. Burdach, loc. cit. vol. i. p. 375.

[3133] Nansen, vol. ii. p. 329. Cf. ibid., vol. ii. pp. 321, 329, et seq.

[3134] Hearne, loc. cit. p. 310. Cf. ibid., p. 125.

[3135] Franklin, 'Second Expedition,' p. 301. Waitz, loc. cit. vol. iii. p. 102.

[3136] Schoolcraft, loc. cit. vol. iii. pp. 234, et seq. Cf. ibid., vol. iii. p. 236.

[3137] Brett, loc. cit. pp. 351, et seq. Cf. Schomburgk, in 'Jour. Ethn. Soc. London,' vol. i. p. 270.

[3138] v. Humboldt, 'Personal Narrative,' vol. v. pp. 548, et seq.

[3139] Azara, loc. cit. vol. ii. pp. 22, et seq.

[3140] Bove, loc. cit. p. 131.

[3141] Williams and Calvert, loc. cit. pp. 152, et seq.

[3142] Waitz, loc. cit. vol. v. pt. ii. pp. 191, et seq.

[3143] Palmer, in 'Jour. Anthr. Inst.,' vol. xiii. p. 282. Cf. Freycinet, loc. cit. vol. ii. p. 766; Waitz-Gerland, vol. vi. pp. 758, 781.

[3144] Taplin, loc. cit. p. 11.

[3145] Lumholtz, loc. cit. p. 213.

[3146] St. John, loc. cit. vol. i. p. 56.

[3147] Gray, loc. cit. vol. i. p. 185.

[3148] Balfour, loc. cit. vol. iii. p. 251.

[3149] Tod, loc. cit. vol. i. p. 258.

[3150] Pischon, loc. cit. p. 14. d'Escayrac de Lauture, loc. cit. pp. 250, et seq.

[3151] Polak, loc. cit. vol. i. p. 226.

[3152] Lane, loc. cit. vol. i. pp. 253, et seq.

[3153] Saalschütz, 'Das mosaische Recht,' vol. ii. p. 727.

[3154] Dutt, 'The Social Life of the Hindus in the Rig-Veda Period,' in 'The Calcutta Review,' vol. lxxxv. p. 79.

[3155] Waitz, loc. cit. vol. ii. p. 503. Macdonald, 'Africana,' vol. i. p. 134. Fritsch, loc. cit. p. 142. Casalis, loc. cit. p. 189.

[3156] Sibree, loc. cit. p. 161.

[3157] For other instances of female jealousy, see Kirby, in 'Smith. Rep.,' 1864, p. 419 (Kutchin); Lyon, loc. cit. p. 355 (Eskimo at Igloolik); Franklin, 'Journey,' p. 70 (Crees); v. Martius, loc. cit. vol. i. p. 392 (Mundrucûs); Turner, 'Samoa,' p. 97 (Samoans); Kubary, loc. cit. p. 61 (Pelew Islanders); Ellis, 'Polynesian Researches,' vol. i. p. 269 (Tahitians); Yate, loc. cit. p. 97 (Maoris); Riedel, loc. cit. pp. 335, 448 (natives of Babber and Wetter); Cooper, loc. cit. p. 102 (Assamese); Kearns, 'The Tribes of South India,' p. 72 (Reddies); Rowney, loc. cit. p. 38 (Bhils); Steller, loc. cit. p. 288 (Kamchadales); Reade, loc. cit. p. 444 (Moors of the Sahara); Shooter, loc. cit. p. 78; v. Weber, loc. cit. vol. i. pp. 329, et seq.; Maclean, loc. cit. p. 44 (Kafirs).

[3158] Domenech, loc. cit. vol. ii. p. 306.

[3159] Eastern Tinneh (Ross, in 'Smith. Rep.,' 1866, p. 310), Naudowessies (Carver, loc. cit. p. 367), Kaviaks (Dall, loc. cit. p. 138), Northern Indians (Hearne, loc. cit. pp. 129, et seq.), Crees (Mackenzie, 'Voyages,' pp. xcvi. et seq.), Indians of the Californian Peninsula (Baegert, in 'Smith. Rep.,' 1863, p. 368), Minnetarees and Mandans (Lewis and Clarke, loc. cit. p. 307), Caribs (Waitz, loc. cit. vol. iii. p. 383).

[3160] Indians of Oregon (Bancroft, loc. cit. vol. i. p. 277. Schoolcraft, loc. cit. vol. v. p. 654), Crows (Bastian, 'Der Papua des dunkeln Inselreichs,' p. 128, note 8), Blackfeet (Idem, in 'Zeitschr. f. Ethnol.,' vol. vi. pp. 403, et seq., note).

[3161] Waitz, vol. ii. p. 438.

[3162] Schoolcraft, vol. iii. pp. 195, et seq.

[3163] Heriot, loc. cit. p. 338.

[3164] Bancroft, loc. cit. vol. ii. p. 685.

[3165] Ibid., vol. i. p. 661.

[3166] Strauch, in 'Zeitschr. f. Ethnol.,' vol. ix. p. 62. 'Das Ausland,' 1881, p. 28.

[3167] Wilkes, loc. cit. vol. v. p. 363.

[3168] Hickson, loc. cit. p. 282.

[3169] Man, in 'Jour. Anthr. Inst.,' vol. xii. p. 327.

[3170] Dalton, loc. cit. p. 28.

[3171] Jellinghaus, in 'Zeitschr. f. Ethnol.,' vol. iii. p. 369.

[3172] Man, 'Sonthalia,' p. 15.

[3173] Macpherson, loc. cit. p. 69. Hodgson, in 'Jour. As. Soc. Bengal,' vol. xviii. pt. ii. p. 744.

[3174] Chavanne, 'Die Sahara,' p. 454.

[3175] Ibid., p. 181. Cf. ibid., pp. 209, et seq.

[3176] Nachtigal, loc. cit. vol. i. p. 447.

[3177] Bain, loc. cit. pp. 136, et seq.

[3178] Ibid., p. 137.

[3179] Müller, 'Am Neste,' p. 102. Brehm, 'Bird-Life,' pt. iv. ch. ii. Darwin, 'The Descent of Man,' vol. ii. pp. 293-295.

[3180] Brehm, 'Bird-Life,' pp. 288, et seq.

[3181] Houzeau, 'Études sur les facultés mentales des animaux,' vol. ii. p. 117.

[3182] Gibbs, loc. cit. p. 198.

[3183] Waitz, loc. cit. vol. iii. p. 102.

[3184] Dalton, loc. cit. p. 273.

[3185] Waitz, vol. ii. p. 117.

[3186] Wilkes, loc. cit. vol. iv. p. 45. Seemann, 'Viti,' p. 192. Ellis, 'Polynesian Researches,' vol. i. p. 267.

[3187] Waitz-Gerland, vol. vi. p. 756. For other instances, see ibid., vol. vi. p. 125; 'Das Ausland,' 1857, p. 888.

[3188] Dalton, loc. cit. p. 33 (Miris). Cunningham, 'History of the Sikhs,' p. 18 (Tibetans). Fritsch, loc. cit. p. 227 (Damaras). Bastian, in 'Zeitschr. f. Ethnol.,' vol. vi. p. 388.

[3189] Stulpnagel, in 'The Indian Antiquary,' vol. vii. p. 134. Cf. Davy, loc. cit. p. 287.

[3190] Gordon Cumming, loc. cit. p. 406 (Tibetans). Beauregard, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. v. pp. 264, et seq. (Massagetæ). See ante, p. 116.

[3191] Emerson Tennent, loc. cit. vol. ii. p. 429.

[3192] Wallace, 'The Malay Archipelago,' vol. ii. p. 460.

[3193] Morgan, 'Systems of Consanguinity and Affinity,' p. 477.

[3194] Quoted by Schoolcraft, loc. cit. vol. iii. p. 191.

[3195] Waitz, loc. cit. vol. ii. p. 341.

[3196] Emerson Tennent, loc. cit. vol. ii. pp. 440, 442.

[3197] Dalton, loc. cit. p. 28.

[3198] Lewin, loc. cit. p. 253.

[3199] Ibid., p. 343.

[3200] Spencer, 'The Principles of Sociology,' vol. i. p. 677.

[3201] Turner, 'Samoa,' pp. 315, 317.

[3202] Lewin, loc. cit. p. 191.

[3203] Ibid., p. 231.

[3204] Powers, loc. cit. pp. 5, 406.

[3205] Vámbéry, 'Die primitive Cultur des turko-tatarischen Volkes,' p. 71.

[3206] Mason, in 'Jour. As. Soc. Bengal,' vol. xiii. pt. ii. pp. 19, et seq. Smeaton, loc. cit. p. 81.

[3207] Dutt, in 'The Calcutta Review,' vol. lxxxv. p. 79.

[3208] Goguet, loc. cit. vol. i. p. 22.

[3209] Balfour, loc. cit. vol. iii. p. 252.

[3210] Dubois, loc. cit. p. 101. Cf. the myths of the Nishinam (Powers, loc. cit. p. 339), Thlinkets (Dall, loc. cit. p. 421), Nicaraguans (Waitz, loc. cit. vol. iv. p. 280), Caroline Islanders (ibid., vol. v. pt. ii. p. 136).

[3211] As, for example, by Post, 'Geschlechtsgenossenschaft,' p. 27, and Spencer, 'The Principles of Sociology,' vol. i. pp. 664, et seq.

[3212] Darwin, 'The Descent of Man,' vol. i. p. 334; vol. ii. pp. 394, et seq. Mr. Reade thinks (loc. cit. p. 214) we may infer that Gorillas are polygamous, like stags, cocks, pheasants, and other animals that battle for mates, from the fact that a trustworthy informant had seen two Gorillas fighting. But it is not only polygamous animals that fight for females.

[3213] Hartmann, loc. cit. p. 214.

[3214] Among the Bechuanas, says Mr. Conder ('Jour. Anthr. Inst.,' vol. xvi. p. 86), a man formerly became richer the more wives he had, because they used to hoe his mealies; 'now, however, ploughs have been introduced, and the men take pride in driving a team of eight oxen in a plough.'

[3215] Spencer, 'The Principles of Sociology,' vol. i. p. 752.

[3216] Le Bon, 'La Civilisation des Arabes,' p. 424.

[3217] Letourneau, 'Sociology,' p. 378.

[3218] McLennan, 'The Levirate and Polyandry,' in 'The Fortnightly Review,' N.S. vol. xxi. pp. 703-705. Idem, 'Studies,' pp. 112, et seq.

[3219] Bellabollahs (Bancroft, loc. cit. vol. i. p. 169, note 34), Indians of Western Washington and North-Western Oregon (Gibbs, loc. cit. p. 199), Miwok (Powers, loc. cit. p. 356), Iroquois, Wyandots (Heriot, loc. cit. p. 330), Shawanese (Ashe, loc. cit. p. 250), Azteks, Mayas, Mosquitoes (Bancroft, vol. ii. pp. 466, 671; vol. i. p. 730), Arawaks (Waitz, loc. cit. vol iii. p. 392), Warraus (Schomburgk, in 'Jour. Ethn. Soc. London,' vol. i. p. 275), Tupis (Southey, loc. cit. vol. i. p. 241), Australians (Curr, loc. cit. vol. i. p. 107. Waitz-Gerland, vol. vi. p. 776. Bonney, in 'Jour. Anthr. Inst.,' vol. xiii. p. 135. Palmer, ibid., vol. xiii. p. 298. Salvado, 'Mémoires,' p. 278. Brough Smyth, loc. cit. vol. i. p. 87. Lumholtz, loc. cit. p. 164), Samoans (Turner, 'Samoa,' p. 98), New Caledonians (Moncelon, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. ix. p. 367), people of New Britain (Romilly, in 'Proc. Roy. Geo. Soc.,' N.S. vol. xi. p. 9), Caroline Islanders (Waitz-Gerland, vol. v. pt. ii. p. 106), peoples of New Guinea (Wilken, 'Verwantschap,' &c., p. 66) and the

Malay Archipelago (ibid., pp. 32, 39, 54, 57-60. Marsden, loc. cit. pp. 228, 229, 260, et seq. Joest, in 'Verhandl. Berl. Ges. Anthr.,' 1882, p. 70), Mrús (Lewin, loc. cit. p. 234), Kaupuis (Watt, in 'Jour. Anthr. Inst.,' vol. xvi. p. 355), Kakhyens (Anderson, loc. cit. p. 142), Pahárias (Dalton, loc. cit. p. 273), Bilúchis (Postans, 'The Bilúchi Tribes Inhabiting Sindh,' in 'Jour. Ethn. Soc. London,' vol. i. p. 105), Ossetes (v. Haxthausen, 'Transcaucasia,' p. 403), Ostyaks (Latham, loc. cit. vol. i. p. 457), Kamchadales (Steller, loc. cit. p. 347), Ainos (Dall, loc. cit. p. 524. Dixon, in 'Trans. As. Soc. Japan,' vol xi. pt. i. p. 44), Arabs (Burckhardt, loc. cit. p. 64. Hildebrandt, in 'Zeitschr. f. Ethnol.,' vol. x. p. 406), Gallas (Waitz, vol. ii. p. 516), Kûri (Nachtigal, loc. cit. vol. ii. p. 375), Kunáma (Munzinger, loc. cit. p. 488), Negroes of Senegambia (Reade, loc. cit. p. 455), the tribes in the interior of Western Equatorial Africa mentioned by Mr. Du Chaillu ('Journey to Ashango-Land,' p. 429), Bechuanas, Zulus (Conder, in 'Jour. Anthr. Inst.,' vol. xvi. p. 85), Eastern Central Africans (Macdonald, 'Africana,' vol. i. p. 135), people of Madagascar (Sibree, loc. cit. p. 246), Hebrews ('Deuteronomy,' ch. xxv. vv. 5-10), ancient Egyptians ('Das Ausland,' 1875, p. 293). For other instances, see infra, note 3.

[3220] Cf. Spencer, 'The Principles of Sociology,' vol. ii. p. 649.

[3221] Munzinger, loc. cit. p. 488 (Kunáma). v. Martius, loc. cit. vol. i. pp. 117, 118, 691 (Brazilian aborigines, Arawaks). Gibbs, loc. cit. p. 199 (Indians of Western Washington and North-Western Oregon).

[3222] Atkha Aleuts (Petroff, loc. cit. p. 158), Chippewas (Keating, loc. cit. vol. ii. pp. 170, et seq.), Eskimo ('Das Ausland,' 1881, pp. 698, et seq.), Crees (Waitz, loc. cit. vol. iii. p. 110), Brazilian aborigines (v. Martius, in 'Jour. Roy. Geo. Soc.,' vol. ii. p. 198), tribes of Western Victoria (Dawson, loc. cit. p. 27), people of Nitendi and the New Hebrides (Waitz-Gerland, vol. vi. p. 634), Nufoor Papuans of New Guinea (Guillemard, loc. cit. p. 390), Santals ('Ymer,' vol. v. p. xxiv.). Among the Gonds it is the duty of a younger brother to take to wife the widow of an elder brother, though the converse is not permitted (Forsyth, loc. cit. p. 150).

[3223] Dall, loc. cit. p. 416.

[3224] McLennan, 'Studies,' &c., pp. 112, et seq.

[3225] Fijians, Samoans (Prichard, loc. cit. p. 393), Papuans of New Guinea (Finsch, 'Neu-Guinea,' p. 77. Waitz-Gerland, loc. cit. vol. vi. p. 661), Caroline Islanders (Kotzebue, loc. cit. vol. iii. p. 209. Waitz-Gerland, vol v. pt. ii. p. 117), the tribes in the interior of Western Equatorial Africa mentioned by Mr. Du Chaillu ('Journey to Ashango-Land,' p. 429). Among many other peoples the right of succession belongs in the first place to the brother.

[3226] Man, loc. cit. p. 100.

[3227] Thlinkets (Holmberg, in 'Acta Soc. Sci. Fennicæ,' vol. iv. pp. 316, 325), Kunáma (Munzinger, loc. cit. pp. 484, 488).

[3228] Miris (Rowney, loc. cit. p. 154), Tartars (Marco Polo, loc. cit. vol. ii. p. 221. de Rubruquis, loc. cit. pp. 33, et seq.), Wanyoro (Wilson and Felkin, loc. cit. vol. ii. p. 49), Wakamba (Hildebrandt, in 'Zeitschr. f. Ethnol.,' vol. x. p. 406), Baele (Nachtigal, loc. cit. vol. ii. p. 176), Egbas (Burton, 'Abeokuta,' vol. i. p. 208), Negroes of Fida, &c. (Bosman, loc. cit. p. 480. Waitz, loc. cit. vol. ii. p. 115).

[3229] Brough Smyth, loc. cit. vol. i. p. 97, note.

[3230] Bosman, p. 528.

[3231] Dalton, loc. cit. p. 16.

[3232] Shooter, loc. cit. p. 86.

[3233] McLennan, 'The Patriarchal Theory,' p. 89.

[3234] Cf. Maine, 'Ancient Law,' p. 241.

[3235] Hebrews ('Deuteronomy,' ch. xxv. vv. 5-10), Hindus ('The Laws of Manu,' ch. ix. vv. 59-63), Ossetes (v. Haxthausen, 'Transcaucasia,' p. 403), Bechuanas (Livingstone, 'Missionary Travels,' p. 185), people of Madagascar (Sibree, loc. cit. p. 246). Among the Hindus, the 'levir' did not take his brother's widow as his wife; he only had intercourse with her. This practice was called 'Niyoga.'

[3236] McLennan, 'Studies,' &c., p. 113.

[3237] Starcke, loc. cit. ch. iii.

[3238] Bink, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. xi. p. 395.

[3239] Turner, 'Samoa,' p. 98.

[3240] Shooter, loc. cit. p. 86.

[3241] McLennan, p. 91.

[3242] Lyon, loc. cit. p. 355.

[3243] Davy, loc. cit. p. 287.

[3244] Moorcroft and Trebeck, loc. cit. vol. i. p. 321.

[3245] de Ujfalvy, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. v. p. 228.

[3246] Fraser, loc. cit. p. 208.

[3247] Bogle, loc. cit. p. 123.

[3248] Wilson, loc. cit. p. 212.

[3249] Bailey, in 'Trans. Ethn. Soc.,' N. S. vol. ii. p. 292.

[3250] Fraser, loc. cit. p. 209.

[3251] v. Humboldt, 'Personal Narrative,' vol. i. p. 83.

[3252] Brehm, 'Thierleben,' vol. iv. p. 20.

[3253] Ibid., vol. i. p. 33.

[3254] Man, in 'Jour. Anthr. Inst.,' vol. xii. p. 135.

[3255] Earl, loc. cit. p. 83. Wilken, 'Verwantschap,' p. 66.

[3256] Peoples of Watubela (Riedel, loc. cit. p. 206) and Lampong in Sumatra (Wilken, 'Verwantschap,' p. 58), Igorrotes and Italones of the Philippines (Blumentritt, loc. cit. pp. 28, 33). Professor Wilken thinks (pp. 46, et seq.) the same was the case among the Niasians and Bataks.

[3257] Bailey, in 'Trans. Ethn. Soc.,' N.S. vol. ii. p. 293.

[3258] Waitz, loc. cit. vol. iii. p. 105.

[3259] Nordenskiöld, 'Grönland,' p. 508. Cf. Nansen, loc. cit. vol. ii. pp. 319, et seq.

[3260] Schoolcraft, loc. cit. vol. v. pp. 272, et seq.

[3261] Keane, in 'Jour. Anthr. Inst.,' vol xiii. p. 206.

[3262] Waitz-Gerland, vol. vi. p. 634.

[3263] 'Ymer,' vol. iv. p. 328. Wilkes, loc. cit. vol. v. p. 101. Lumholtz, loc. cit. pp. 193, 213.

[3264] Quoted by Bonwick, 'Daily Life,' p. 73.

[3265] Turner, 'Samoa,' p. 97.

[3266] Crawfurd, loc. cit. vol. i. p. 88.

[3267] St. John, in 'Trans. Ethn. Soc.,' N.S. vol. ii. p. 237.

[3268] Colquhoun, 'Amongst the Shans,' p. 75.

[3269] Rosset, in 'Jour. Anthr. Inst.,' vol. xvi. p. 169.

[3270] Quoted by Pridham, loc. cit. vol. i. p. 253.

[3271] Bourien, 'The Wild Tribes of the Interior of the Malay Peninsula,' in 'Trans. Ethn. Soc.,' N.S. vol. iii. p. 80.

[3272] Jellinghaus, in 'Zeitschr. f. Ethnol.,' vol. iii. p. 370. Yule, 'Notes on the Kasia Hills,' in 'Jour. As. Soc. Bengal,' vol. xiii. pt. ii. p. 624. Huc, loc. cit. vol. i. p. 186.

[3273] Pischon, loc. cit. p. 13. Chavanne, 'Die Sahara,' p. 603.

[3274] 'Das Ausland,' 1875, p. 958.

[3275] Klemm, 'Cultur-Geschichte,' vol. iv. p. 150.

[3276] Polak, loc. cit. vol. i. pp. 207, et seq.

[3277] Lane, loc. cit. vol. i. pp. 247, 251.

[3278] Reade, loc. cit. p. 444.

[3279] Lobo, loc. cit. p. 26.

[3280] Burton, 'First Footsteps,' p. 122.

[3281] Waitz, loc. cit. vol. ii. p. 114.

[3282] 'Das Ausland,' 1881, p. 1027.

[3283] Rawlinson, loc. cit. vol. ii. p. 353.

[3284] Becker, loc. cit. vol. ii. pp. 488, et seq. Hermann-Blümner, loc. cit. p. 264.

[3285] Nordström, loc. cit. vol. ii. p. 34.

[3286] Mackenzie, 'Studies in Roman Law,' p. 125.

[3287] Georgi, loc. cit. p. 371.

[3288] Martin, loc. cit. vol. ii. p. 173.

[3289] Sibree, loc. cit. pp. 161, 250.

[3290] de Herrera, loc. cit. vol. iv. p. 171.

[3291] 'Deuteronomy,' ch. xxiv. v. i. Ewald, loc. cit. p. 203.

[3292] Meier and Schömann, loc. cit. p. 511.

[3293] Mackenzie, 'Studies in Roman Law,' pp. 123, et seq.

[3294] Grimm, loc. cit. p. 454.

[3295] Chinooks (Bancroft, loc. cit. vol i. p. 241), Chippewas (Keating, loc. cit. vol. ii. p. 157), Chippewyans (Mackenzie, 'Voyages,' p. cxxiii.), Shawanese (Ashe, loc. cit. p. 249), Macusís (Waitz, loc. cit. vol. iii. p. 391), Mundrucûs and other Brazilian tribes (v. Martius, loc. cit. vol. i. p. 104), Minuanes, Pampas, Mbayas, Payaguas (Azara, loc. cit. vol. ii. pp. 32, 44, 114, 132), Catalanganes of the Philippines (Blumentritt, loc. cit. p. 41), Siamese (Moore, loc. cit. p. 169), Burmese (Colquhoun, 'Burma,' pp. 12, et seq.), Chukmas (Lewin, loc. cit. p. 187), Yakuts (Sauer, loc. cit. p. 129), Chuvashes, Votyaks, Cheremises, Mordvins, Voguls (Georgi, loc. cit. p. 42), Ossetes (v. Haxthausen, 'Transcaucasia,' p. 404), Takue (Munzinger, loc. cit. p. 209), Beni-Mzab (Chavanne, 'Die Sahara,' pp. 315, et seq.)

[3296] Cranz, loc. cit. vol. i. p. 148.

[3297] Powers, loc. cit. p. 239.

[3298] Carver, loc. cit. p. 375.

[3299] Harmon, loc. cit. p. 342.

[3300] Morgan, 'League of the Iroquois,' p. 324.

[3301] Wallace, 'Travels on the Amazon,' p. 497.

[3302] Azara, loc. cit. vol. ii. p. 23. Faulkner, loc. cit. p. 126.

[3303] Martin, loc. cit. vol. ii. p. 167.

[3304] Dieffenbach, loc. cit. vol. ii. p. 40.

[3305] Elton, in 'Jour. Anthr. Inst.,' vol. xvii. p. 95.

[3306] Lawes, in 'Proc. Roy. Geo. Soc.,' N.S. vol. ii. p. 614. Bink, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. xi. p. 397.

[3307] Waitz-Gerland, loc. cit. vol. vi. p. 129.

[3308] Crawfurd, loc. cit. vol. i. p. 78.

[3309] Dalton, loc. cit. p. 68.

[3310] Cf. Nauhaus, in 'Verhandl. Berl. Ges. Anthr.,' 1882, p. 210; Klemm, 'Cultur-Geschichte,' vol. iii. p. 278; Maclean, loc. cit. p. 70; Lichtenstein, loc. cit. vol. i. pp. 261, 264.

[3311] Ewald, loc. cit. p. 203. Among the Samaritans, divorce, though permitted, does not occur (Andree, loc. cit. p. 217).

[3312] Glasson, loc. cit. p. 151. Meier and Schömann, loc. cit. p. 510.

[3313] Mackenzie, 'Roman Law,' p. 123.

[3314] Lewin, loc. cit. p. 276.

[3315] Colquhoun, 'Amongst the Shans,' p. 64.

[3316] Dawson, loc. cit. p. 33.

[3317] Hunter, 'Rural Bengal,' vol. i. p. 208. Lewin, p. 210.

[3318] Peoples of Ceram, Aru, Sermatta, Babber, Letti, Moa and Lakor, Wetter (Riedel, loc. cit. pp. 134, 263, 325, 351, 390, 448), Buru (Wilken, 'Verwantschap,' &c., p. 51).

[3319] Waitz, loc. cit. vol. ii. p. 110. Cf. Proyart, loc. cit. p. 569 (Negroes of Loango).

[3320] Kolben, loc. cit. vol. i. p. 157.

[3321] Casalis, loc. cit. pp. 184, et seq.

[3322] Marshall, loc. cit. p. 219.

[3323] Mantras (Bourien, in 'Trans. Ethn. Soc.,' N.S. vol. iii. p. 80), Butias of Ladakh (Cunningham, in 'Jour. As. Soc. Bengal,' vol. xiii. pt. i. p. 204), Toungtha (Lewin, loc. cit. p. 194), Timorese (Wilken, 'Verwantschap,' p. 54).

[3324] Bancroft, loc. cit. vol. ii. pp. 263, 265. Waitz, vol. iv. p. 132.

[3325] Waitz, vol. iv. p. 278.

[3326] Medhurst, in 'Trans. Roy. As. Soc. China Branch,' vol. iv. pp. 25, et seq. Gray, loc. cit. vol. i. p. 219. Müller, 'Reise der Novara,' Ethnographie, p. 164.

[3327] Navarette, loc. cit. p. 73.

[3328] Medhurst, in 'Trans. Roy. As. Soc. China Branch,' vol. iv. p. 27.

[3329] Rein, loc. cit. pp. 424, et seq.

[3330] Amír' Alí, loc. cit. p. 332.

[3331] Lane, loc. cit vol. i. pp. 139, 247. Pischon, loc. cit. p. 13.

[3332] 'The Laws of Manu,' ch. ix. vv. 80, et seq. This, however, was not a divorce in our sense of the term. 'Neither by sale nor by repudiation,' says Manu (ch. ix. v. 46), 'is a wife released from her husband.'

[3333] Mayne, 'Hindu Law and Usage,' p. 95.

[3334] Glasson, loc. cit. pp. 204, et seq.

[3335] Glasson, pp. 213, 215.

[3336] Ibid., pp. 367, et seq.

[3337] Ibid., pp. 437, 452.

[3338] Ibid., p. 403.

[3339] Carpentier, 'Traité théorétique et pratique du divorce,' p. 52. For the laws of divorce in the States of Europe and America, see Neubauer, 'Ehescheidung im Auslande,' in 'Zeitschr. f. vgl. Rechtswiss.,' vols. v.-ix.

[3340] Sibree, loc. cit. p. 254.

[3341] Greenlanders (Nordenskiöld, 'Grönland,' p. 509), Damaras (Waitz, loc. cit. vol. ii. p. 416), Marea (Munzinger, loc. cit. p. 241), Kafirs of Natal (Shooter, loc. cit. pp. 85, et seq.), Samoans (Turner, 'Samoa,' p. 97), Dyaks (St. John, in 'Trans. Ethn. Soc.,' N.S. vol. ii. p. 237).

[3342] This is especially the case when the wife is superior to the husband in rank [cf. Soyaux, loc. cit. p. 162 (Negroes of Loango); Klemm, 'Cultur-Geschichte,' vol. iii. p. 284 (Negroes of Sierra Leone); Macdonald, 'Africana,' vol. i. pp. 140, et seq. (Eastern Central Africans); Sibree, loc. cit. p. 254 (Tanàla of

Madagascar); Waitz-Gerland, loc. cit. vol. v. pt. ii. p. 106; vol. vi. p. 128 (Caroline Islanders, Tahitians); 'Ymer,' vol. iv. p. 333 (Pelew Islanders); Moore, loc. cit. p. 289 (Natchez)]; but also when they are of equal rank, as among the Shawanese (Ashe, loc. cit. p. 249), Macassars, Bugis (Wilken, 'Verwantschap,' p. 76), Rejangs (Marsden, loc. cit. p. 235), Malays of Perak (McNair, loc. cit. p. 236), Galela (Riedel, in 'Zeitschr. f. Ethnol.,' vol. xvii. p. 78), Kaupuis (Watt, in 'Jour. Anthr. Inst.,' vol. xvi. p. 355), Badagas (Harkness, loc. cit. p. 117), Kerantis (Rowney, loc. cit. p. 136), Mongols (Prejevalsky, 'Mongolia,' vol. i. p. 70), Beni-Amer, Kunáma (Munzinger, loc. cit. pp. 320, 321, 489), Touaregs Chavanne, ('Die Sahara,' p. 209), Ashantees (Waitz, vol. ii. p. 120), Masai (Last, in 'Proc. Roy. Geo. Soc.,' N.S. vol. v. p. 533), Kafirs (Maclean, loc. cit. pp. 69, et seq.).

[3343] Bancroft, loc. cit. vol. i. p. 277.

[3344] Schoolcraft, loc. cit. vol. iv. pp. 223, et seq.

[3345] Ibid., vol. iv. p. 214.

[3346] Azara, loc. cit. vol. ii. p. 93.

[3347] Lisiansky, loc. cit. pp. 127, et seq.

[3348] Ellis, 'Polynesian Researches,' vol. i. p. 256. Bink, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. xi. p. 397. Chalmers, loc. cit. p. 167. Waitz-Gerland, vol. v. pt. ii. pp. 106, et seq.

[3349] Riedel, loc. cit. pp. 134, 173, 263, 325, 390, 448.

[3350] Colquhoun, 'Amongst the Shans,' p. 295.

[3351] Fytche, loc. cit. vol. ii. p. 73.

[3352] Harkness, loc. cit. p. 92.

[3353] Hunter, 'Rural Bengal,' vol. iii. p. 83.

[3354] Macdonald, 'Africana,' vol. i. p. 140.

[3355] Arnot, 'Garenganze,' p. 194.

[3356] Waitz, vol. iv. p. 86.

[3357] Bancroft, loc. cit. vol. ii. p. 672.

[3358] Gray, loc. cit. vol. i. p. 219. Rein, loc. cit. pp. 424, et seq.

[3359] Glasson, loc. cit. pp. 149, et seq.

[3360] Amír' Alí, loc. cit. ch. xii. et seq. Lane, loc. cit. vol. i. p. 139.

[3361] Kohler, in 'Zeitschr. f. vgl. Rechtswiss.,' vol. iii. pp. 386, et seq.

[3362] Glasson, loc. cit. p. 187.

[3363] Ibid., p. 189.

[3364] Ibid., p. 195.

[3365] Ibid., pp. 152, et seq. Meier and Schömann, loc. cit. p. 512.

[3366] Rossbach, loc. cit. pp. 42, et seq.

[3367] Mackenzie, 'Roman Law,' p. 123.

[3368] Glasson, pp. 291, 298, 304.

[3369] Cook, 'Voyage to the Pacific Ocean,' vol. ii. p. 157.

[3370] Bancroft, loc. cit. vol. i. p. 92.

[3371] Bock, 'The Head-Hunters of Borneo,' p. 315. Cf. Klemm, 'Cultur-Geschichte,' vol. ii. p. 76 (Abipones); Barth, 'Reisen,' vol. i. p. 258 (Touaregs of Rhāt).

[3372] Glasson, loc. cit. p. 469.

[3373] 'Revue d'Anthropologie,' 1883, p. 290. Cf. Keane, in 'Jour. Anthr. Inst.,' vol. xiii. p. 206 (Botocudos); Krauss, loc. cit. p 568 (South Slavonians).

[3374] v. Oettingen, loc. cit. p. 150.

[3375] Dall, loc. cit. p. 139 (Western Eskimo). Egede, loc. cit. p. 143 (Greenlanders). Fritsch, loc. cit. p. 141 (Zulus). Wilson and Felkin, loc. cit. vol. ii. p. 48 (Wanyoro). Buchner, loc. cit. p. 31 (Duallas). Polak, loc. cit. vol. i. p. 218 (Persians). Krauss, pp. 532, 570, et seq. (South Slavonians); &c.

[3376] Schoolcraft, 'The Indian in his Wigwam,' p. 73. Cf. Nansen, loc. cit. vol. ii. p. 320 (Greenlanders); Lichtenstein, loc. cit. vol. ii. p. 48 (Bushmans); St. John, loc. cit. vol. i. p. 66 (Sea Dyaks).

[3377] St. John, in 'Trans. Ethn. Soc.,' N.S. vol. ii. p. 237.

[3378] Bailey, ibid., vol. ii. p. 292. Cf. Fritsch, loc. cit. p. 141 (Zulus).

[3379] For exceptions, see ante p. 19.

[3380] Nutkas, Inland Columbians (Bancroft, loc. cit. vol. i. pp. 197, 277), Shans (Colquhoun, 'Amongst the Shans,' p. 295), Burmese (Fytche, loc. cit. vol. ii. p. 73), Malays of Perak (McNair, loc. cit. p. 236), Beni-Amer, Kunáma (Munzinger, loc. cit. pp. 320, 321, 489).

[3381] Mason, in 'Jour. As. Soc. Bengal,' vol. xxxv. pt. ii. p. 20.

[3382] Dalton, loc. cit. p. 51.

[3383] Riedel, in 'Zeitschr. f. Ethnol.,' vol. xvii. p. 78. Waitz-Gerland, loc. cit. vol. v. pt. ii. p. 107.

[3384] Glasson, loc. cit. p. 187.

[3385] Cf. Codrington, loc. cit. p. 244.

[3386] Sauer, loc. cit. p. 129 (Jakuts). Hildebrandt, in 'Zeitschr. f. Ethnol.,' vol. x. p. 401 (Wakamba). 'Das Ausland,' 1881, p. 48 (Zulus). Merolla da Sorrento, loc. cit. p. 235 (Negroes of Sogno). Holmberg, in 'Acta Soc. Sci. Fennicæ,' vol. iv. p. 315 (Thlinkets). Cf. Powers, loc. cit. p. 56 (Yurok); Lewin, loc. cit. p. 235 (Mrús); Livingstone, 'Missionary Travels,' p. 412 (Negroes of Angola).

[3387] v. Haxthausen, 'Transcaucasia,' p. 404 (Ossetes). Klemm, 'Cultur-Geschichte,' vol. iv. pp. 26, et seq. (Circassians). Harkness, loc. cit. p. 117 (Badagas). Crawfurd, loc. cit. vol. iii. p. 101 (Malays). Merolla da Sorrento, p. 235 (Negroes of Sogno). 'Das Ausland,' 1881, p. 1026 (Negroes of Bondo). Holmberg, in 'Acta Soc. Sci. Fennicæ,' vol iv. p. 315 (Thlinkets).

[3388] Casalis, loc. cit. p. 184.

[3389] Finsch, in 'Zeitschr. f. Ethnol.,' vol. xii. p. 317.

[3390] Munda Kols (Jellinghaus, in 'Zeitschr. f. Ethnol.,' vol. iii. p. 370), Todas (Marshall, loc. cit. p. 218), Bedouins (Klemm, 'Cultur-Geschichte,' vol. iv. p. 150),

Tartars (Georgi, loc. cit. p. 238), East Africans (Burton, 'The Lake Regions of Central Africa,' vol. ii. p. 333).

[3391] Aleuts (Georgi, loc. cit. p. 370), Dacotahs (Schoolcraft, loc. cit. vol. iii. p. 240), Nukahivans (v. Langsdorf, loc. cit. vol. i. p. 153), Papuans of New Guinea (Bink, in 'Bull. Soc. d'Anthr.,' ser. iii. vol. xi. p. 397).

[3392] Turner, 'Samoa,' p. 97.

[3393] Pridham, loc. cit. vol. i. p. 253. Cf. Bancroft, loc. cit. vol. ii. p. 672 (Yucatan).

[3394] Greenlanders (Cranz, loc. cit. vol. i. p. 148), Thlinkets (Waitz, loc. cit. vol. iii. p. 328), Inland Columbians (Bancroft, loc. cit. vol. i. p. 277), Apaches (ibid., vol. i. p. 513), Iroquois (Buchanan, 'North American Indians,' pp. 338, et seq.), Gallinomero in California (Powers, loc. cit. p. 178), and other North American Indians (Waitz, loc. cit. vol. iii. p. 105), Caribs (ibid., vol. iii. p. 383), Payaguas (Azara, loc. cit. vol. ii. p. 132), Marianne Islanders (Waitz-Gerland, vol. v. pt. ii. p. 107), Tongans (Martin, loc. cit. vol. ii. p. 179), Khasias (Steel, in 'Trans. Ethn. Soc.,' N.S. vol. vii. p. 308. Dalton, loc. cit. p. 57).

[3395] Schoolcraft, loc. cit. vol. iii. p. 191.

[3396] Katscher, loc. cit. p. 91. Chavanne, 'Die Sahara,' p. 401.

[3397] Bourien, in 'Trans. Ethn. Soc.,' N.S. vol. iii. p. 80. Cf. St. John, ibid., vol. p. 237; Mason, in 'Jour. As. Soc. Bengal,' vol. xxxv. pt. ii. p. 20.

[3398] Lane Poole, in 'The Academy,' vol. v. p. 684.

[3399] Lane, loc. cit. vol. i. p. 215.

[3400] Mr. Crawfurd (loc. cit. vol. i. p. 79) points out the connection, in Java, between the frequency of women deserting their husbands and the abundance of food; the laboriousness and industriousness of the women, who can earn a subsistence independent of a husband, and the tameness and servileness of the men.

[3401] Crawfurd, vol. iii. p. 101 (Malays). Marsden, loc. cit. p. 235 (Rejangs). Riedel, in 'Zeitschr. f. Ethnol.,' vol. xvii. p. 78 (Galela). Watt, in 'Jour. Anthr. Inst.,' vol. xvi. p. 355 (Kaupuis). Rowney, loc. cit. p. 136 (Kerantis). Marshall, loc. cit. p. 217 (Todas). Harkness, loc. cit. p. 117 (Badagas). Waitz, loc. cit. vol. ii. p. 120 (Negroes).

[3402] Mohammedans (Lane, loc. cit. vol. i. p. 139), Badagas (Harkness, p. 117).

[3403] Bickmore, loc. cit. p. 279. Cf. 'Das Ausland,' 1881, p. 569; Raffles, loc. cit. vol. i. p. 81 (Javanese).

[3404] Burckhardt, loc. cit. p. 63. Chavanne, 'Die Sahara,' pp. 454, et seq.

[3405] Of articles in periodicals only some of the more important have been included in this list.

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